

PHILOLOGICAL
AND HISTORICAL
COMMENTARY ON
AMMIANUS MARCELLINUS
XXVIII

BY

J. DEN BOEFT, J.W. DRIJVERS
D. DEN HENGST, H.C. TEITLER



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CONTENTS

Preface	VII
Introduction	IX
Chronology	XV
Legenda	XXXI
Map.....	XXXV
Commentary on Chapter 1	1
Commentary on Chapter 2	117
Commentary on Chapter 3	147
Commentary on Chapter 4	165
Commentary on Chapter 5	231
Commentary on Chapter 6	253
Bibliography	303
Indices.....	329

PREFACE

Book 28, the third of the post-Julianic hexad, is the most Roman book of the *Res Gestae*. Deplorable events in Rome take up half of its pages. The author voices his exasperation about the situation in the eternal city. In the absence of other sources it is hard, if not impossible, to assess the reliability of his report.

Military actions in Gaul and Britannia were successful and showed that Roman power was not yet at an end. However, the information about these actions lacks precision with regard to chronological and geographical details. In a number of cases we can only offer a plausible reconstruction to our readers. Comparable problems occur in the report on barbarian raids in the province of Tripolitania, which can be regarded as a prelude to the long description of Firmus' revolt in Book 29.

We would like to thank our friends and colleagues for their advice, Ines van de Wetering for her correction of our English, the staff of the Fondation Hardt at Vandoeuvres (CH), where we completed the final version of our commentary in June 2011, for their hospitality; we are also grateful to the publishing house Koninklijke Brill for the professional handling of our manuscript.

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INTRODUCTION

In chapter 5 of Book 26 Ammianus relates how the Roman Empire was divided between the two *Augusti*, Valentinian and Valens. This poses a problem for his historical report: important actions in West and East could take place *uno eodemque tempore* (§ 15). In order to avoid writing a chaotic report ‘by leaps and hops’ (*saltuatim*), the author has chosen another strategy, viz. to deal with the events in separate larger units. He does not refer to the specific sections on events in Rome, in which the terms of office of the various urban prefects are briefly described, possibly because his readers were used to these reports. The contents of Book 26 itself proved, however, to be less suited to the author’s historiographical strategy, in that Procopius’ usurpation took the lion’s share of the available space. In Book 27 the planned structure is more clearly visible, which results in a satisfactory and balanced composition.

Even a superficial glance at the contents of the present book shows a drastic change in proportions. Almost 60 per cent of the contents is taken up with events in Rome, including a concise report on the activities of two urban prefects. Book 28 is the most ‘Roman’ book of the *Res Gestae*. What remains is almost entirely devoted to campaigns in Valentinian’s part of the divided Empire. In fact, only the final four sections of chapter 2 briefly report what happened *procul*, viz. in Syria, which belonged to the domain of Valens, who never appears in the book, as opposed to Valentinian, whose active and indeed successful presence in Gaul is described in chapters 2 and 5.

The very lengthy chapter 1—it takes up a third of the entire book—contains the greater part of the Roman sections, but chapter 4, the other Roman chapter, also exceeds the usual length. More striking in view of the overall structure of Book 28 are the remarkable opening words of chapter 4: *diu multumque a negotiis digressus urbanis, adigente cumulo foris gestorum, ad ea strictim exsequenda regrediar*, ‘It is a long time since I dealt with events in the city of Rome. This was caused by a great many actions in other parts of the world. I shall now return to Rome for a concise account of Roman affairs.’ This is an amazing statement. There are only two comparatively short chapters on *foris gesta* between the extensive first chapter and chapter 4, which does not tally at all with *diu multumque a negotiis digressus urbanis*. However, this phrase would make

sense if chapter 1 did not exist, for in that case the report on Praetextatus' term of office in the last three sections of chapter 10 of Book 27 would be the last 'Roman' passage before chapter 4 of the present book. This counterfactual hypothesis is less strange and daring than it seems at first sight. In the first four sections of chapter 1 Ammianus expresses considerable doubt and hesitation as to whether it is wise to publish his report on a series of 'heartrending disasters' (*clades luctuosas*) which happened in Rome, not least because of his hyperbolical style of writing. It could well be that this hesitation was not merely a literary device, but testifies to a real doubt, which he finally relinquished, when he decided to begin Book 28 with the extensive report referred to above, but failed to alter the introductory phrase of chapter 4.

It is worth mentioning that the length of Book 28 in its supposed form, without chapter 1, would be considerably below average. Moreover, in its actual form the book has a structure which serves the author's specific messages. This structure will gradually become clear when the contents are discussed.

After the introductory sections of chapter 1 referred to above, on the hazards of his historical report of a never-ending series of criminal proceedings against Roman aristocrats and their subordinates, Ammianus starts this long tale of woes with the introduction of the loathsome protagonists. Right from the start his style of writing is decidedly hyperbolical and this continues to be so until the very end of the chapter. He obviously wants to prevent his readers from analysing the facts in a different manner. The gist of his report is that for a long period Roman society, specifically the aristocracy, was terrorized by the total unfairness with which justice was administered. One man was responsible for this, a villainous provincial of low extraction, Maximinus, who with his bloodthirsty assistant Leo made a scandalous use of the free hand which the emperor Valentinian had given him. Even after his promotion to the post of *praefectus praetorio* Maximinus continued to pull the strings from afar by his evil influence on his successors, *longius nocens*, as Ammianus writes. This influence contrasts with Valentinian's rare appearances in the report. In the entire chapter he is a distant figure, not only in the geographical sense, but also by failing to make his imperial authority clearly felt.

In chapter 2, the greater part of which is devoted to the situation in Gaul, the emperor is actively present. He is personally engaged in an ambitious program to fortify the Rhine from Raetia to the Channel with a string of castles and towers. Ammianus praises him for this program,

which in his opinion greatly serves the interests of the Roman Empire: Valentinian acted, *ut officio principis congruebat*. On the other hand the Alamans kept showing their strength, and their invasions of Gaul caused considerable damage. In the last part of the chapter similar events in Syria are reported. In the East as well as in the West Roman power was continuously tested.

Fortunately, the historian is also able to report notable military successes. In Britannia Theodosius the Elder continued his campaigns against the Scotti and their allies, and succeeded in bringing these to an end with a definitive settlement. Ammianus indulges in lavish praise for the general because of this success. The brief chapter 3, which deals with Britannia, has a panegyrical character, and shows that there were still competent men around, who were capable to defend the Empire against barbarians.

In the first part of chapter 4 Ammianus briefly describes the terms of office of two urban prefects, who both in spite of some frailties did their job quite satisfactorily. This description also functions as an introduction to an extensive satirical digression on life and manners in Rome. It is reminiscent of the comparable digression in chapter 6 of Book 14, to which it is stylistically somewhat inferior. However, it must be said that the gradually increasing deterioration in the paradosis of the text plays a host of tricks on the reader in this digression. Ammianus first provides a sketch of the usual behaviour of aristocrats and then turns *ad otiosam plebem...et desidem*. Both groups behave in a manner which is clearly below the normal standard of civil decency.

In chapter 5 Valentinian again plays an important part, viz. in defending Gaul against the invasions of the Saxons and the Alamans, entrusting a renowned general with the command in a campaign against the Saxons, and taking an active part in the military strategy against the Alamans, which also meant persuading the Burgundians to undertake a large part of the operations. The final chapter of the book is devoted to the military measures needed to defend the province Tripolitania, and to stave off all attacks of barbarian warriors who were in the habit of plundering the province, killing many inhabitants, and destroying vineyards and olive groves. The warfare was made more difficult because of the guerrilla tactics of the enemy and the frequent misbehaviour of the leading civil and military leaders involved. As in chapter 1, the emperor is too distant an authority, who is at times misled and ill advised by his courtiers and other assistants. This results in a complicated web of intrigues and corruption, in which the *comes Romanus* is the central

character, portrayed as a true villain in a style comparable to the portrayal of Maximinus in chapter 1. Several times the Tripolitanians send delegates to the emperor to complain about the lack of military protection against the intruders, but by using bribery and blackmail the *comes* and his accomplices interfere not only with these actions but also with the work of imperial envoys sent to inspect the situation in the province. In spite of the evident differences between the deplorable events reported in chapters 1 and 6 there is clearly a similarity in the interpretation of the facts. Ammianus subtly draws attention to this by returning in §29 to the tragic genre, which plays an important part in §4 of the first chapter.

In Book 27 the historian aims to give more than one interpretation of the facts. On the one hand the human and material resources of the Roman Empire as such were still sufficient to cope with the numerous problems within its frontiers and the threats from outside. On the other hand, unfortunately, all sorts of dangers were developing, corruption and injustice were steadily increasing and in spite of his military expertise the senior emperor lacked the experience and the stamina to stop these developments. The message of Book 28 continues in this vein. Both its first and last chapter amply testify to the failure of the administration in the face of the overwhelming abuse of the legal system, and of widespread corruption. Regrettably, the absence of other sources makes it very difficult for the modern reader to make a judgement. The hyperbolical style of chapter 1, and in particular the possibility of a clash of interests between the civil and military authorities in chapter 6, have inspired some scholars to suggest a different interpretation of the facts reported by the author, but even reasonable hypotheses remain tentative. However, there can be no doubt about the author's view: the floodgates of injustice and incompetence have been opened.

Between the gloomy darkness of the first and the last chapter there is still some bright news in the military sphere. Valentinian's fortifications on the Rhine in chapter 2 and his successful actions against the Saxons and the Alamans show his qualities in this field and the feats of the general Theodosius in Britannia are comparable to those that occurred during the heyday of Roman history. Led by high-class commanders the armed forces proved capable of defending the Roman positions, and it was possible to draw on the moral strength of the citizens, but, alas, without true and honest leadership, the hallmark of Julian's short reign, and because they were unacquainted with Roman history, men lacked the ambition to live up to the standard set by their ancestors.

The satirical sketch of Roman society is a specific illustration of this deplorable situation: even the citizens of the eternal city revelled in banal pastimes instead of being conscious of their great past.

In Book 28 Ammianus' assessment of the situation in the Roman Empire is a repeat of the depressive views which he had expressed in Book 27, in even darker colours at that. Nevertheless, there remain signs that a recovery is still possible. The admirable feats of a great general have been given a place in the middle of the book. Theodosius the Elder shows the potential of Roman power. This is also an essential part of the basic conviction of the historian: for all his exasperation he does not give up. Of course not. Being, as Julian had been, *antiquitatum peritus*, he knows an important characteristic of Rome's history: *post calamitosa dispendia res in integrum sunt restitutae* (31.5.14).

CHRONOLOGY

Reiche, 1889, 21–23, 37–38, 44–47, 51–54 also gives a chronological overview of the events described in Book 28, as does Heering, 1927, 36–46, 50, 52–53. Cf. further Seeck, 1906, 486, 521–523 and 1919, 236–246. Thompson 138–140 and Barnes 233–234, 241–246 are relevant for 28.1, Warmington, 1956, Demandt, 1968, Günther, 1997 and Coşkun, 2004 for 28.6.

There is only one precise chronological reference in the whole of Book 28, and that is in 28.5.1: *Augustis ter consulibus*, i.e. the year 370.

Ammianus' narrative in this book deals, as far as Gaul, Britain and Syria are concerned (chapters 2, 3 and 5), almost exclusively with events which took place in 369 and 370. When Ammianus speaks of affairs in Rome (chapters 1 and 4) and Africa (chapter 6) on the other hand, the chronological boundaries are less strict and his account even crosses the border between the reigns of Valentinian and Gratian.

Basically the chronology is clear, but many details are disputed. Some of the dates presented below are reasonably certain, whereas others are no more than educated guesses.

Rome

The last chronological clue given in Book 27 with regard to Rome is the reference in 27.9.8 to Praetextatus' urban prefecture, which is attested for the period between 18 August 367 and 20 September 368. Praetextatus' successor was Olybrius, whose term of office must have begun between 20 September 368 and 1 January 369, and must have ended between 21 August 370 and 1 January 371 (references in the note ad 28.1.8 *Chilo*). Olybrius is mentioned for the first time in 28.1.8, where it is stated that it was during his prefecture that Maximinus, the principal character in chapter 1 of Book 28, began his destructive activities (*Principium autem, unde latius se funditabat* [sc. Maximinus], *emersit ex negotio tali. Chilo ex vicario et coniux eius Maxima nomine questi apud Olybrium, ea tempestate urbi praefectum*).

In view of this it is rather puzzling that Ammianus opens Book 28 as follows: *Dum apud Persas, ut supra narravimus, perfidia regis motus agitat insperatos et in eo tractibus bella rediviva consurgunt, anno sexto decimo et eo diutius post Nepotiani exitium saeviens per urbem aeternam urebat cuncta Bellona ex primordiis minimis ad clades excita luctuosas*. The first part of this phrase is unproblematic. It suggests that the troubles in Rome, which will be reported in the first chapter of Book 28, began simultaneously with what had been narrated in the last chapter of Book 27 (*ut supra narravimus*), viz. the Persian interference in Armenia and Hiberia in the years 367–370. This tallies with the information given in 28.1.8. However, the second part of the phrase refers to 365–366 (Nepotianus died on 30 June 350) and therefore conflicts with the date of Olybrius' prefecture.

Some scholars regard Ammianus' opening words as an example of his confused chronology. Others defend him, though rather unconvincingly. Recently it has been argued, also unconvincingly, that Ammianus in 28.1.1 does not refer to things to come, viz. the trials concerning magic and treason which took place during Valentinian's reign and started during the prefecture of Olybrius, but that he refers back to the description in Book 27 of the disturbances in Rome during the prefectures of Lampadius and Viventius in 365–366, especially the struggle for the episcopal see between Damasus and Ursinus. These views are discussed in the note ad 28.1.1 *anno sexto decimo*. According to us one cannot escape the conclusion that chronologically speaking Ammianus' opening section and § 8 do not really agree with each other. It is Olybrius' prefecture in 368–370, not the years 365–366 which should be regarded as the period in which the troubles in Rome as described in Book 28 began. With the words *et eo diutius* added to the very precise *anno sexto decimo* Ammianus seems to cover himself against possible criticism.

It was not Olybrius himself who in the end dealt with the complaint of Chilo and his wife (28.1.8). Because of a prolonged illness of the urban prefect the plaintiffs became impatient (*negotio tepescente ob diuturnam morborum asperitatem, qua tenebatur Olybrius, morarum impatientes hi, qui rem detulerunt*, 28.1.9) and managed to have the case taken out of Olybrius' hands and turned over to Maximinus, who was *praefectus annonae* at the time (*libello petiverunt oblato, ut examinandum iurgium praefecto mandaretur annonae, idque studio celeritatis concessum est*, *ibid.*). Assuming that Olybrius did not fall ill immediately at the start of his prefecture, the Chilo affair was probably handed over to Maximinus in 369/370 (the reference in Hier. *Chron.* a. 371 *Maximinus praefectus annonae maleficos...investigare iussus plurimos Romae nobilium occidit*

must be misdated). *Cod. Theod.* 11.31.3, addressed to Olybrius on 19 March 370 (cf. Pergami, 1993, 492), seems to allude to the urban prefect's illness. Some months later Olybrius was succeeded by Ampelius. The new PVR entered his office between 21 August 370 and 1 January 371, and was discharged between 5 July 372 and 22 August 372 (references in the note ad 28.1.5 *Maximinus*). In 28.4.1–4 (q.v.) Amm. gives some information about Olybrius and Ampelius and the way in which they acted as urban prefects.

From *praefectus annonae* Maximinus was promoted to *vicarius urbis Romae* (*congeminata potestas*, 28.1.12, with the note; *Maximino Romae agere disposito pro praefectis*, *ibid.*). Up till now Maximinus had conducted his criminal investigations only because of the indisposition of the urban prefect (as *praefectus annonae* he was only a minor official), but as *vicarius urbis Romae* he held a post which gave him independent authority. In the note ad 28.1.5 *Maximinus* it is argued that a plausible date for Maximinus' vicariate is 370–372 (or even 370–373).

As has been said before, Ammianus writes in 28.1.8 of the Chilo affair which offered the then *praefectus annonae* Maximinus the opportunity to begin his misdemeanors. In 28.1.29 he returns to it, relating that the supposed culprits (Sericus, Asbolius, Campensis) had been put to death. Since he told us in 28.1.12 that Maximinus had been promoted to the post of *vicarius urbis Romae*, it seems justified to assume that the end of the Chilo affair must be dated to the time of Maximinus' vicariate, i.e. 370–372/373. The same may hold good for the cases on which Ammianus reports in between, and to which he points with vague expressions like *tunc* (28.1.16), *eodem tempore* (28.1.17), *post hanc gestorum seriem* (28.1.22), *circa hos dies* (28.1.26). This is evident in the case of Hymetius (28.1.17–23, with in § 22 the words *audiendus ab Ampelio urbi praefecto et Maximino vicario*).

In Ammianus' account of Maximinus' activities in Rome the emperor Valentinian, who campaigned in Gaul at the time, is rarely mentioned, but in 28.1.21 and 28.1.25 his name does occur. In 28.1.21 we are told that, when Valentinian was informed about certain developments in the cases of Hymetius and Amantius, he gave orders that the investigations should be carried out with extreme rigorousness (*haec Valentinianus relatione iudicum doctus...vigore nimio in negotium iussit inquiri*). In 28.1.24–25 we hear that senatorial envoys were sent to the court and were received by the emperor (*nobilitatis decreto legati mittuntur...intromissi in consistorium*). We happen to know that Valentinian issued *Cod. Theod.* 9.16.9 and *Cod. Theod.* 9.38.5 in Trier on 19 May 371. The content of these

constitutions is relevant to the cases of Hymetius and Amantius and to the sending of the senatorial embassy. They seem to provide the terminus ante quem for the sending of this embassy (more details in the notes ad loc.).

In 28.1.30 Ammianus starts the second part of his tale of woes. It begins with Aginatus (*Opportunum est, ut arbitror, explanare nunc causam, quae ad exitium praecipitem Aginatium impulit*) and it also ends with him (*Aginatius ad supplicium duci pronuntiatur*, 28.1.56). Three stages are discernable. Ammianus first goes back in time to sketch, in 28.1.31–32, what caused the feud which led to Aginatus' downfall. Next comes Aginatus' unsuccessful attempt to persuade Petronius Probus to conspire against Maximinus, the latter's reaction, and the involvement of Anepsia in the Aginatus' affair (28.1.32–35). These events can still be dated to Maximinus' vicariate, for, after an intermezzo (28.1.36–40), Ammianus reports in 28.1.41 that Maximinus was promoted from *vicarius urbis* to *praefectus praetorio* (which took place “no earlier than the spring of 372, and perhaps somewhat later, conceivably even in 373”, Barnes 242; the earliest firm attestation of Maximinus as PPO Galliarum is on 14 November 374, *Cod. Theod.* 9.24.3). Ammianus finally reports that Maximinus' promotion to the praetorian prefecture and his departure from Rome to Gaul did not prevent him from continuing his crusade against Aginatus, whose execution he brought about through the agency of the then *vicarius urbis* Doryphorianus (28.1.51–56), presumably in 375/376 (cf. for the date the relevant notes ad loc.).

Doryphorianus was not the immediate successor of Maximinus. When the latter was summoned to the court to become praetorian prefect (*ad principis comitatum Maximinus accitus auctusque praefectura praetoriana*, 28.1.41), there was already another vicar (*acceptoque successore*, *ibid.*), whose name is revealed in 28.1.44 (*post hunc venit Ursicinus*). In his turn Ursicinus was replaced by Simplicius (*huic successit Emomensis Simplicius*, 28.1.45). Ursicinus' term of office as vicar must have been rather short. He was still *praefectus annonae* on 22 February 372 (*Cod. Theod.* 14.3.14), while *Cod. Theod.* 9.29.1, posted in Rome on 23 March 374 and therefore sent some time before that date, was addressed to his successor as *vicarius*, Simplicius. As can be deduced from *Avell.* 13 (see the note ad 28.1.53 *cui hanc*), the latter was still in office after 17 November 375, the day on which Valentinian died. Simplicius' death in Illyricum under Gratian is reported by Amm. in 28.1.57 (q.v.), as is that of Doryphorianus and of Maximinus himself. Ammianus' promise to return to this topic later (*ut postea tempestive dicetur*, *ibid.*) is not

fulfilled. The fact that he mentions the *vicarii* Ursicinus, Simplicius and Doryphorianus, as well as his decision not to bring the story of the miseries in Rome to an end after Maximinus had gone to Gaul, serves a well conceived purpose. This is explained in 28.1.43, where we are told that the wrongful acts of the vice-prefects were committed according to the whims and wishes of Maximinus.

In the second half of chapter 1 (§ 30–57) the emperor Valentinian is again conspicuously absent, even more so than in the first half. When he summoned Maximinus to the court (*ad principis comitatum Maximinus accitus*, 28.1.41), presumably in 372 or 373, he resided in Gaul, where he stayed for the greater part of these years (see the note ad 28.1.41 *Post haec*), as he had done in 371 (see above). Before 5 February 374 he went to Milan (*Cod. Theod.* 13.1.10, cf. Pergami, 1993, 621), but in the summer of 374 we find him back in Gaul (*Cod. Theod.* 11.36.22, 13.4.4, 8.5.33). At the end of that year the emperor retired to the winter quarters in Trier (30.3.7) and from there he moved to Illyricum late in the spring of 375 (30.5.1–2) to begin his campaign against the Sarmatae and the Quadi. Since Maximinus as PPO Galliarum had his official residence in Trier (early in 376 he was still in office; see the note ad 28.1.41 *Post haec*), he must have been a frequent visitor at the emperor's court. In 29.3.2 Ammianus states that Maximinus' arrival in Gaul was an incentive for Valentinian, *trux suopte ingenio*, to become even more cruel.

The miserable end of Maximinus, the protagonist of the first chapter of Book 28, is reported in 28.1.57. His death must have taken place in the early spring of 376. *Cod. Theod.* 9.6.1 and 9.6.2 of 15 March 376 were still sent to him, while *Cod. Theod.* 9.19.4, addressed *ad Maximinum p.f.p.*, was posted in Rome on 16 April 376 and therefore issued sometime earlier. His successor as PPO Galliarum, Antonius, is attested for the first time on 23 May 376 (*Cod. Theod.* 13.3.11).

Gaul and Syria

In 27.10.16 Ammianus had told his readers that, after a campaign against the Alamans, the soldiers returned to their winter quarters and the emperors to Trier. Valentinian and Gratian, who were back in Trier on 6 november 368 at the latest (*Cod. Theod.* 1.29.4), must have opened the new campaigning season, the results of which are sketched in the second chapter of Book 28, soon after 14 May 369, which is the date of *Cod. Theod.* 13.5.12, still issued in Trier.

Chapter 2 deals partly with the situation in Gaul (§ 1–10), partly with the activities of the Maratocupreni, a band of brigands in Syria (§ 11–14). The Syrian episode is chronologically connected with that in Gaul, for at the end of it, in 28.2.14, Ammianus says: *et haec quidem textu processere narrato*, ‘these events were contemporaneous with those that I have related’.

In his narrative of the events in Gaul Ammianus first dwells on Valentinian’s fortification of the Rhine/Neckar frontier, in which the emperor was personally involved (§ 1–4). We are reasonably well informed about Valentinian’s whereabouts during that time. In an oration held in Trier on 1 January 370 Symmachus looks back at the 369 campaign and relates, *inter alia*, that Valentinian fortified the harbour of *Nemetae*, modern Speyer (*Or.* 2.28). When precisely the emperor was there is not known, but thanks to data provided by the Theodosian Code we know that Valentinian and his son were in a place called *Complatum* (probably a corruption of *Confluentes*, modern Koblenz) on 17 May 369, that they were in *Martiaticum* (either Wiesbaden or Mainz-Kastel) on 4 June, in *Alta Ripa* (Altrip near Ludwigshafen) on 19 June and in *Brisiacum* (Breisach) on 30 August. We find them back in Trier on 14 October 369 at the latest (references in the note ad 28.2.1 *At Valentinianus*).

Valentinian was not present when Roman soldiers attempted to build a fortress on *mons Piri*, on the other side of the Rhine, nor did he personally witness the subsequent troubles with the Alamans which resulted in a clashing Roman defeat and the death of all Roman combatants except the *notarius* Syagrius (§ 5–9). It is possible that there was some chronological information in § 5, but unfortunately the text is very corrupt (*pro anni et temporis † tudila*). All we can say is that this Roman expedition into the *barbaricum* took place in (the summer of) 369. The same holds good for the devastations in Gaul caused by brigands, and the kidnapping and death of the *tribunus stabuli* Constantianus, a relative of Valentinian (§ 10).

In chapter 5 Ammianus returns to Gaul; in § 1–7, he speaks about a struggle with Saxons who had invaded Roman territory, somewhere, presumably, in Toxandria, the modern Dutch province of North Brabant (see the note ad 28.5.5 *quibus omni*); at the end of this struggle the Saxons were ambushed and massacred. Ammianus starts his account with a reference to the third consulate of Valentinian and Valens in 370: *Erupit Augustis ter consulibus Saxonum multitudo et... Romanum limitem gradu petebat intento* (28.5.1). In Valentinian’s elogium Ammianus again mentions a Saxon invasion which was dealt with successfully by the Romans

(30.7.8). Presumably, both there and in 28.5.1–7 he refers to the same event. It would seem that the war of 370 is also meant in Hier. *Chron.* a. 373, where Jerome refers to a Saxon defeat (*Saxones caesi Deusone in regione Francorum*). Some scholars have taken his words as an indication that there were two invasions, one in 370 and another in 373, but it is more likely that Jerome's date is wrong (cf. the notes ad 28.5.1 *Eruptit* and 28.5.5 *quibus omni*).

According to Ammianus it was after the successful annihilation of the Saxons (*Post haec ita prospere consummata*, 28.5.8) that Valentinian considered to attack the Alamans under king Macrianus (*Valentinianus...circumspiciens, quibus commentis Alamannorum et Macriani regis frangeret fastus*, *ibid.*) and decided to seek the support of Burgundians to destroy them (*sedit...imperator...Burgundios in eorum excitare perniciem*, 28.5.9). Chronologically speaking this is not quite correct. Valentinian may have attempted to win over the Burgundians in 370 too, but we know from Symmachus' second oration that negotiations to this effect had started already in 369 (*Or.* 2.13). Since the Saxon invasion took place in the northern part of Gaul, and Macrianus cum suis lived near the middle and lower Main, the warfare against Saxons and Alamans may have been simultaneous (cf. the introductory words ad §8–13).

Valentinian wanted the Burgundians to make a surprise attack on the Alamans at an appointed time (*scribebatque frequenter...ut isdem tempore praestituto supervenirent*, 28.5.10), while he promised that he himself would cross the Rhine with Roman troops and would also begin military operations and oppose the fleeing Alamans (*pollicitus ipse quoque transito cum Romanis agminibus Rheno occurrere pavidis*, *ibid.*). The Burgundians were, indeed, willing to carry out their part of the bargain (*Gratanter...principis acceptae sunt litterae*, 28.5.11) and did send troops (*catervas misere lectissimas*, *ibid.*). However, the emperor never showed up (*cum neque Valentinianus, ut spoponderat, die praedicto venisset*, 28.5.12), possibly because at that time he was working on fortifications (*imperatore ad exstruenda munimenta districto*, 28.5.11; cf. for other possible reasons the note ad 28.5.12 *igitur*). It is unclear which *munimenta* our author had in mind, but it would seem that *Alteium*, modern Alzey, was one of them. Anyway, Valentinian was there on 15 August 370 (*Cod. Theod.* 11.31.5; cf. the note ad 28.5.11 *catervas*); whether he was in *Vangiones*, modern Worms, on 31 July, is uncertain (*Cod. Theod.* 13.6.3 perhaps dates from 370, but may also be of 368 or 373; cf. Seeck, 1919, 240 and Pergami, 1993, 251).

Although cooperation with the Burgundians had failed to produce an immediate effect, the Romans nevertheless profited from what their short-term allies had accomplished: fear of the Burgundians had scattered the Alamans (*Alamannos gentis ante dictae metu dispersos*, 28.5.15), which made it rather easy for general Theodosius to kill a large number and send others as captives to Italy (*aggressus per Raetias Theodosius ea tempestate magister equitum pluribus caesis, quoscumque cepit, ad Italiam iussu principis misit*, *ibid.*). Theodosius' exploit should also be dated to 370, presumably to its second half.

Britain

Before Theodosius defeated the Alamans in 370, he had operated in Britain. The chronology regarding his arrival in Britain and his activities there is disputed (see the notes ad 27.8.3 *postremo* and 27.8.6 *exinde*), but in our view the general must have left Gaul for Britain in the winter of 367/368 or the spring of 368, and restored order on the island by means of two campaigns, one described in 27.8 and to be dated in 368, the other in 369, of which Ammianus gives an account in chapter 3 of Book 28.

Starting from London (*ab Augusta profectus*, 28.3.1), Theodosius carried on with what he had tried to do in the previous year, viz. to solve the problems which were the result of the 'barbarian conspiracy' (*versis turbatisque Britannorum fortunis opem maximam tulit*, *ibid.*). He was very successful (*fusis variis gentibus et fugatis*, 28.3.2) and, just as Valentinian had done along the Rhine, began a program of restoration and fortification (*in integrum restituit civitates et castra*, *ibid.*). It is not known precisely when and where he did so. While he was thus engaged, a certain Valentinus tried to start a rebellion (*ad res perniciosas consurgebat et novas*, 28.3.4) and to gain the support of other exiles and soldiers (*exsules sollicitabat et milites*, 28.3.5). However, Theodosius nipped the uprising in the bud and had Valentinus and some of his followers put to death (*iamque propinquante temptatorum effectu doctus haec, unde convenerat... Valentinum... cum paucis arta ei societate iunctissimis letali poena plectendos Dulcitio dederat duci*, 28.3.6).

In his narrative Ammianus places the suppression of Valentinus' rebellion in the second year of Theodosius' campaign, that is, in 369, which is preferable to Jerome's 371 and Zosimus' 'before 367' (Hier. *Chron.* a. 371; Zos. 4.12.2). Apparently in the same year the province Valentia was established (28.3.7) and the *Arcani* (*Areani*) were disbanded (28.3.8). After-

wards (*Ita spectatissime ante dictis rebus aliisque administratis similibus*, 28.3.9), that is, presumably, at the end of 369, Theodosius was summoned to the court and promoted to the post of *magister equitum* (until now Ammianus had called him *dux*, e.g. 28.3.1, q.v.).

Africa

In chapter 6 Ammianus writes about troubles in the province Tripolitania. He had already referred to the problems which existed there in 26.4.5 and in 27.9.1. In the latter passage he noted that barbarian raids had started right from the beginning of Valentinian's reign (*Africam vero iam inde ab exordio Valentiniani imperii exurebat barbarica rabies*), that is, strictly speaking, from 25 February 364 onwards. In 28.6.4 he relates that these raids had started even earlier, viz. during the reign of Jovian (*exsiluere sedibus suis Ioviano etiam tum imperante*; Jovian was emperor from 27 June 363 until 17 February 364). There had apparently been a period of quiet under Julian (*Austoriani...paulisper pacati*, 28.6.2).

Ammianus is practically our only source for the Tripolitanian troubles. Some constitutions in the Codes can help to date, or to date more precisely, the term of office of some of the characters in chapter 6. *Cod. Theod.* 8.7.13 attests that Romanus was in office on 29 June 372. *Cod. Theod.* 7.8.2 of 6 May 368 or 370 is addressed to the *magister officiorum* Remigius (28.6.8 and 30). The *proconsul Africae* Hesperius (28.6.28) is mentioned as such in *Cod. Theod.* 15.7.3 (10 March 376) and 1.32.2 (8 July 377).

Dracontius, the same person as the anonymous *vicarius* of 28.6.8 and 28.6.16, is the addressee (*ad Dracontium vic[arium] Afric[ae]*) of inter alia *Cod. Theod.* 11.7.9 of 13 May 364, 11.30.33 of 12 September 364 and 13.6.4 of 28 April 367. Another anonymous vicar is mentioned in 28.6.20. He may have been the Musufilus who is attested as *vicarius Africae* in *Cod. Theod.* 13.6.3 (possibly to be dated to 31 July 368, as Pergami, 1993, 251 supposes; but Seeck, 1919, 240 proposed 370 or 373). The only *vicarii* mentioned by name in chapter 6 are Crescens (28.6.23) and Flavianus (28.6.28). Crescens was in office by 12 July 371 (*Cod. Theod.* 11.1.17) and possibly even earlier, if the date of *Cod. Theod.* 10.4.3 is 4 April 370 (cf. Pergami, 1993, 196 and 498; however, it is possible that the law was issued in 373). *Cod. Theod.* 16.6.2 (17 October 377) was probably sent to the *vicarius Africae* Flavianus, in spite of the address:

ad Florianum vic. Asiae. A similar case is *Cod. Iust.* 11.48.5, issued in 366 and addressed *ad Oricum praesidem Tripolitanae*, where one should probably read *Ruricum*, the *praeses* mentioned in 28.6.11, 22 and 23.

The data provided by the Codes help us to get a clearer picture of the careers of some of the individuals who figure in chapter 6. However, they are of very little use for the chronological reconstruction of the events described in this chapter. We must perforce take Ammianus as our guide.

The Austoriani looted Roman territory near Leptis (Magna) during Jovian's reign, whereupon the Leptinians asked the newly promoted *comes Africae* Romanus for help (*Hac subita clade Leptitani...praesidium imploravere Romani, comitis per Africam recens provecti*, 28.6.5). It will have taken some time before the request reached Romanus (in Sitifis? in Carthage? see the note *ad loc.*), who then had to gather his troops and march to Leptis, where he probably arrived in the late spring or the early summer of 364. Disagreements with the citizens of Leptis soon ensued, which resulted in Romanus' departure after forty days (*diebus ibi quadraginta consumptis nullo temptato idem discesserat comes*, 28.6.6).

The Tripolitanians decided to inform the emperor of what had happened (meanwhile Valentinian had succeeded Jovian). At the annual meeting of the provincial assembly (*allapso legitimo die concilii, quod apud eos est annuum*, 28.6.7) they chose Severus and Flaccianus as their envoys to tell Valentinian about their plight (*Severum et Flaccianum creavere legatos...ut...lacrimosas provinciae ruinas docerent*, *ibid.*). When he had heard about this (*quibus compertis*, 28.6.8), Romanus speedily instructed the *magister officiorum* Remigius to see to it that he, Romanus, and the *vicarius Africae* were charged by the emperor with the investigation of the affair. Remigius must have become MO early in 365; it is likely that the provincial assembly of Tripolitania also took place in that year, presumably in the summer (see for discussion the note *ad* 28.6.7 *Qua spe*).

On their arrival at the imperial court Severus and Flaccianus were given permission to plead their case (*venerunt in comitatum legati adi-toque principe verbis, quae perpessi sunt, ostenderunt*, 28.6.9). Where and when the envoys met Valentinian is not known; it was presumably somewhere in Gaul, in the autumn of 365 or the early months of 366 (see for the whereabouts of the emperor in these days the Note on Chronology in the commentary on Book 26, xvii–xviii). The emperor promised a full investigation (*promissa disceptatio plena*, *ibid.*).

While the Tripolitanians were waiting for help from the emperor, the province was raided for a second time by barbarians. There is no

agreement as to when this happened, but the most likely date seems to be (late in) 366. News of this recent disaster was sent to the emperor in Gaul, who was greatly annoyed by it (*et iam recens inflictæ cladis nuntius missus ad Gallias excitavit acrius principem*, 28.6.12). If the second Austorian invasion actually took place in 366, Valentinian may have heard about it in the winter of 366/367. He reacted by sending the *tribunus et notarius* Palladius, with orders to investigate inter alia what was going on in Tripolitania (*ideoque tribunus et notarius Palladius mittitur, ut...gesta per Tripolim fide congrua scrutaretur*, *ibid.*).

It took a considerable amount of time to consult the emperor in Gaul and to reach Africa. Meanwhile (*post hæc*, 28.6.17) the Austorians invaded and plundered Tripolitania for the third time (*Inter tales...consulendi moras exspectandique responsa Austoriani successu gemino insolentes ut rapaces alites advolarunt*, 28.6.13). This may have happened in the first half of 367. At this point the Leptinians (presumably in the summer of 367; cf. the note ad 28.6.16 *Ob quæ*) decided not to wait for the return of Severus and Flaccianus, but to dispatch other envoys, Iovinus and Pancratius, with the task to let the emperor know what they had personally seen and suffered. In Carthage the emissaries met Severus and Flaccianus, who told them that they had been ordered to make their report to the *vicarius* and the *comes*. In spite of what they had heard from their fellow envoys, Iovinus and Pancratius hastened to the court (*nihilo minus tamen properarunt ad comitatum magnis itineribus ante dicti*, 28.6.16).

After this Palladius arrived in Africa (*Ingresso post hæc Palladio Africam*, 28.6.17), most probably in the autumn of 367 (cf. the note ad loc.). As Ammianus had reported in 28.6.12, Palladius had a twofold assignment. First he distributed the *stipendium* among the army units in Africa. After that he proceeded to Leptis for the second part of his mission, viz. to ferret out the truth concerning the raids of the Austorians; he was assisted in this by two Leptinians, Erechthius and Aristomenes (*confestimque...perrexit ad Leptim, utque ad veritatis perveniret indaginem, Erechthium et Aristomenen...ad loca vastata secum eduxit*, 28.6.18). It is likely that this kept Palladius busy during the autumn and winter of 367/368. Palladius returned to Valentinian's court—seemingly in the early summer of 368—and declared that the complaints of the Tripolitani were unfounded. He also maligned Erechthius and Aristomenes, as a result of which the emperor ordered their tongues to be cut out. Subsequently, Palladius was sent back to Africa, together with Iovinus, one of the members of the second embassy.

Palladius probably arrived in Africa in the late summer or early autumn of 368 with orders to inspect the credentials of the second embassy as well, in cooperation with the *vicarius* (*ut cum vicario ipse merita legationis quoque secundae spectaret*, 28.6.20). He therefore followed the *vicarius* to Tripolitania (*Secutus, ut statutum est, vicarium notarius venit ad Tripolim*, 28.6.21), where the *notarius* and the vicar carried out their enquiries probably during the autumn and winter of 368/369. In the meantime Romanus manipulated the *municipes* of Lep-tis to disown Iovinus, who was compelled to declare that he had lied to the emperor (*ipse quoque Iovinus...confiteretur se imperatori mentitum*, *ibid.*).

We next find Palladius back at the court, where he was heard by the emperor, who gave orders that, among others, Iovinus should suffer capital punishment. We do not know when Palladius went back to Gaul, but it does not seem unreasonable to assume that the *notarius* left Africa in the spring of 369 and arrived at the court sometime in the summer of 369. Iovinus was transported to Utica to be punished by the *vicarius* Crescens. Presumably, his execution took place in 370/373 (see the note ad 28.6.23 *ac Ruricius*).

In 28.6.25 Ammianus' account of the Tripolitanian troubles comes to an end. However, there follows an epilogue (*diu...postea huiusmodi casus emersit*, *ibid.*), in which first the dismissal as well as the retirement of Palladius is related, which occurred most probably in 373 (cf. the note ad loc.), and then his suicide on a festal day of the Christian religion (*festo die Christiani ritus...innodato gutture laquei nexibus interiit*, 28.6.27). This seems to have happened in 375 (see the note ad loc.). Meanwhile Romanus had been outlawed (*proscripti Romani*, 28.6.26, with the note), in all likelihood in 373, and his relative Remigius (cf. §8) had committed suicide (*Remigius...laqueo vitam elisit*, 28.6.30, q.v.), possibly in 374, but at any rate while Valentinian was still alive (*Valentiniano tamen superstite*, *ibid.*; Valentinian died on 17 November 375).

After the death of Palladius (*deleto...tristium concitore turbarum*, 28.6.28), Erechthius and Aristomenes emerged from the hiding place to which they had fled when they heard that Valentinian had ordered their tongues to be cut out. Valentinian was dead now, and when his successor Gratian learned about their unjust treatment, probably some-time in 376, he sent the two Leptinians to the proconsul Hesperius and the vicar Flavianus to have their case heard by them (*docto...super nefanda fraude Gratiano imperatore fidentius—Valentinianus enim obierat—ad Hesperium proconsulem et Flavianum vicarium audiendi sunt*

missi, 28.6.28). We can conclude from the dates of office of Hesperius and Flavianus (details in the note ad loc.) that they undertook their investigation during 376/377. They tortured Romanus' *consiliarius* Caecilius (cf. § 21), who had falsely accused the Leptinian envoys (*ibid.*). Their findings were reported in a *relatio* (*haec acta secuta est relatio gestorum*, *ibid.*).

Romanus was clearly not happy with the outcome of these enquiries. He went to the court (he had been outlawed, § 26, but now reappears on the stage), accompanied by Caecilius, who intended to accuse Hesperius and Flavianus of prejudice in favour of the province (*Romanus ad comitatum profectus secum Caecilium duxit cognitores accusaturum ut inclinatos in provinciae partem*, 28.6.29). At the imperial court Romanus had the support of the *magister peditum* Merobaudes (*isque Merobaudis favore susceptus*, *ibid.*). His hearing must have taken place in Trier, presumably in 377 or 378. Gratian resided there during the first years of his reign; he moved to Milan in 379 (Seeck, 1919, 246 et seq.). It appears that the tribunal was resumed in Milan in 379, for it was to this city that the witnesses were summoned.

350

30 June	Nepotianus, proclaimed <i>Augustus</i> on 3 June, dies in Rome
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363

26 June	The emperor Julian dies near a place called Phrygia
27 June	Election of a new emperor: Jovian; during his reign the Austeriani invade the province of Tripolitania

364

17 February	The emperor Jovian dies near Dadastana
25 February	Valentinian is proclaimed <i>Augustus</i> in Nicaea
Spring/summer	Arrival in Tripolitania of the <i>comes Africae</i> Romanus; he departs after forty days

365

Summer	Remigius is appointed as <i>magister officiorum</i>
Circa 1 November	Meeting of the provincial assembly of Tripolitania
10–12 December	Valentinian on his way to Paris
	Valentinian in Paris; he stays in Gaul for the greater part of the following years
Autumn/winter 365/366	Arrival of the Tripolitanian envoys Severus and Flaccianus at the imperial court

366

Austoriani invade Tripolitania for the second time

367

Summer

The *tribunus et notarius* Palladius is sent to Africa
Austoriani invade Tripolitania for the third time
Iovinus and Pancratius are sent as envoys to the imperial court

Autumn

Arrival of Palladius in Africa; he carries out enquiries

368

Summer/autumn

Theodosius the Elder operates in Britain
Palladius returns to the imperial court; he is sent to Africa again

Autumn

Palladius back in Africa
Olybrius succeeds Praetextatus as urban prefect of Rome; during his prefecture a series of trials starts in Rome, held by the *praefectus annonae* Maximinus

369

17 May

Theodosius the Elder still in Britain

4 June

Operations of the Maratocupreni in Syria

19 June

Valentinian in Complatum

30 August

Valentinian in Martiatum

Summer

Valentinian in Alta Ripa

Valentinian in Brisiacum

Roman soldiers attempt to build a fortress on *mons Piri* and fight against Alamans

Constantinianus, *tribunus stabuli*, kidnapped and killed by brigands in Gaul

14 October

Palladius at the imperial court

Autumn/winter

Valentinian in Trier

Theodosius the Elder promoted to the post of *magister equitum*

370

15 August

Third consulate of Valentinian and Valens

Summer/autumn

Warfare against Saxons, Alamans and Burgundians
Maximinus (still *praefectus annonae* on 19 March) succeeds Aginatus as *vicarius urbis Romae*

Valentinian in Alteium

Ampelius succeeds Olybrius as urban prefect of Rome

370/373

Execution of, among others, the Leptinian envoy Iovinus

372

After 22 February

Maximinus becomes *praefectus praetorio Galliarum* (before 14 November 374); Ursicinus takes over from him as *vicarius urbis Romae*

Summer

The urban prefect Ampelius is released from his post

373

Dismissal and retirement of Palladius; Romanus outlawed

374

Before 23 March

Suicide of Remigius
Simplicius succeeds Ursicinus as *vicarius urbis Romae*

Autumn

Valentinian retires to the winter quarters in Trier

375

Spring
17 November

Suicide of Palladius
Valentinian moves to Illyricum
Death of Valentinian
Simplicius as *vicarius urbis Romae* replaced by Doryphorianus

375/376

Death of Aginatius
Death of Simplicius and Doryphorianus

376

Before 23 May

Maximinus' downfall and death

376/377

The *proconsul Africae* Hesperius and the *vicarius Africae* Flavianus investigate the case of the Leptinians Erechthius and Aristomenes; Romanus' *consiliarius* Caecilius tortured

377/379

Hearing of Romanus and Caecilius at the imperial court

LEGENDA

1. The lemmata are taken from W. Seyfarth's Teubner-edition (Leipzig 1978), with one alteration: consonantal u is always printed as v (*venit* instead of *uenit*).

2. For references to Greek authors we follow the abbreviations and indications of books and chapters in H.G. Liddell and R. Scott, *A Greek-English Lexicon* and for patristic literature those in G.W.H. Lampe, *A Patristic Greek Lexicon*. Passages in Latin authors are indicated according to the system of P.W.G. Glare, *Oxford Latin Dictionary*. For later and Christian authors we follow the *Thesaurus Linguae Latinae*.

Some exceptions to these rules:

- In the case of Caesar, Sallust and Tacitus the division of the chapters into sections in the Teubner-editions has been taken into account.
- Seneca's *Dialogi* are referred to with the title of the individual works.
- For the *Panegyrici Latini* Mynors' OCT-edition has been used.
- Strabo is quoted from Radt's edition (*Strabons Geographika mit Übersetzung und Kommentar herausgegeben von Stefan Radt*, 4 vols., Göttingen 2002–2005).
- The Letters of Julian are quoted from Bidez' edition in the Budé-series.
- Eunapius' *History* is quoted from Blockley's edition (*The Fragmentary Classicising Historians of the Later Roman Empire*, vol. II, Liverpool 1983).
- Ausonius is quoted from Green's edition (*The Works of Ausonius. Edited with Introduction and Commentary by R.P.H. Green*, Oxford 1991).

3. As to secondary literature the following rules are observed:

- References to the six volumes of De Jonge's commentaries (Books 14–19) and to our commentaries on Books 20–27 are usually given with 'see De Jonge ad...', 'see (the note) ad...', or 'q.v.'
- Books or articles are normally referred to with the name of the author(s), the year of publication and the page(s). The full titles

can be found in the bibliography; e.g. Hagendahl, 1921, 64 refers to H. Hagendahl, *Studia Ammianea*, Uppsala 1921, page 64.

- Quotations from existing translations and secondary literature are given between inverted commas (“...”). Our own explanations of words or phrases in Greek and Latin texts are given between single inverted commas (‘...’).
- Occasionally reference is made to commentaries on other authors, e.g. Austin’s on Vergil and Koestermann’s on Tacitus, or to well-known editions like those in the Budé-series. As a rule these works are omitted from the bibliography.
- The volumes of the Groningen Commentaries on Apuleius are indicated by GCA and the year of publication.
- Of the following books, which are referred to regularly, only the name of the author and the page(s) are given:

Barnes	T.D. Barnes, <i>Ammianus Marcellinus and the Representation of Historical Reality</i> , Ithaca-London 1998.
Blomgren	S. Blomgren, <i>De sermone Ammiani Marcellini quaestiones variae</i> , Diss. Uppsala 1937.
Ehrismann	H. Ehrismann, <i>De temporum et modorum usu Ammiano</i> , Diss. Argentorati 1886.
Harmon	A.M. Harmon, <i>The Clausula in Ammianus Marcellinus</i> (Transactions of the Connecticut Academy of Arts and Sciences 16, 117–245), New Haven 1910.
Heumann-Seckel	H. Heumann & E. Seckel, <i>Handlexikon zu den Quellen des römischen Rechts</i> , Jena 1926 ⁹ .
Jones	A.H.M. Jones, <i>The Later Roman Empire 284–602. A Social Economic and Administrative Survey</i> , Oxford 1964 (repr. 1986).
Kelly	G. Kelly, <i>Ammianus Marcellinus. The Allusive Historian</i> , Cambridge 2008.
Kühner-Stegmann	R. Kühner and C. Stegmann, <i>Ausführliche Grammatik der lateinischen Sprache</i> , II, Satzlehre, 2 vols., Hannover 1955 ⁴ , 1976 ⁵ .
Leumann	M. Leumann, <i>Lateinische Laut- und Formenlehre</i> , Munich 1977.
Marié	M.-A. Marié, <i>Ammien Marcellin, Histoire V (Livres XXVI–XXVIII)</i> , Paris 1984.

- Matthews J.F. Matthews, *The Roman Empire of Ammianus*, London 1989 (repr. Ann Arbor 2008).
- Paschoud F. Paschoud, *Zosime, Histoire Nouvelle, II² (Livre IV)*, Paris 1979.
- Sabbah G. Sabbah, *La méthode d'Ammien Marcellin. Recherches sur la construction du discours historique dans les Res Gestae*, Paris 1978.
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- Szantyr J.B. Hofmann and A. Szantyr, *Lateinische Syntax und Stilistik*, Munich 1965 (repr. 1972).
- Talbert R.J.A. Talbert (ed.), *Barrington Atlas of the Greek and Roman World*, Princeton 2000.
- Thompson E.A. Thompson, *The Historical Work of Ammianus Marcellinus*, Cambridge 1947 (repr. Groningen 1969).
- Wagner-Erfurdt J.A. Wagner, *Ammiani Marcellini quae supersunt, cum notis integris Frid. Lindenbrogii, Henr. et Hadr. Valesiorum et Iac. Gronovii, quibus Thom. Reinesii quasdam et suas adiecit, editionem absolvit Car. Gottl. Aug. Erfurdt, 3 vols., Leipzig 1808 (repr. in 2 vols., Hildesheim 1975).*

The following translations are referred to with the name of the translator only:

- Caltabiano M. Caltabiano, *Ammiano Marcellino. Storie*, Milan 1998.
- Hamilton W. Hamilton and A. Wallace-Hadrill, *Ammianus Marcellinus: the Later Roman Empire (AD 354–378)*, Harmondsworth 1986.
- Rolfe J.C. Rolfe, *Ammianus Marcellinus*, with an English translation, 3 vols., London-Cambridge Mass. 1935–1939 (repr. 1971–1972).
- Selem A. Selem, *Le Storie di Ammiano Marcellino. Testo e Traduzione*, Turin 1965 (repr. 1973).
- Seyfarth W. Seyfarth, *Ammianus Marcellinus, Römische Geschichte. Lateinisch und Deutsch und mit einem Kommentar versehen*, vol. IV, Berlin 1986³.
- Viansino G. Viansino, *Ammiano Marcellino. Storie*, 3 vols., Milan 2001–2002.

4. In cases where this is helpful for the reader or relevant for the interpretation the cursus is indicated as follows:

- *revocávit in státum*: cursus planus
- *sublátius éminens*: cursus tardus
- *fécit et vectigáles*: cursus velox

MAP



CHAPTER 1

Introduction

As is pointed out in the general introduction to Book 28, this long chapter, which is basically devoted to a series of criminal proceedings against Roman aristocrats and their subordinates, poses considerable problems, of a chronological nature as well as with regard to its place, and indeed its function, within the structure of Book 28. The chronological aspects will be dealt with in detail in the notes ad § 1 and also in the introduction to chapter 4. As to its function, at the end of the chapter the phrase *verum unde huc fleximus, revertamur* somewhat surprisingly characterizes the entire chapter as a digression.

In the first four sections Ammianus airs his hesitation and doubt as to whether he is acting wisely in drawing up a report of a long series of shocking cases of injustice in Rome. This could be misused as a convincing proof that crime pays. Moreover, the author's sustained hyperbolic style of writing might cause feelings of considerable disgust and indignation. Such an experience is reminiscent of the predicament of the 5th century Athenian tragedian Phrynichus, who was punished for excessive use of emotional language in his tragedy about the fall of Miletus.

In § 5–13 the protagonist of the chapter Maximinus and his assistant Leo are introduced. In his portrayal of these two men Ammianus pulls out all the stops, describing them as horrendous villains, who abused the free hand given to them by Valentinian for a crusade against a number of Roman aristocrats, who were suspected of various crimes, among which *lèse-majesté*. In § 14–40 the reader can witness the horrible couple actively engaged in a series of criminal proceedings against a number of defendants: death sentences abound.

Even the promotion of Maximinus and Leo to prestigious posts far from Rome did not put an end to the horrors, as is clear from § 41–56. Especially Maximinus kept pulling the strings, exerting a pernicious influence over his successors in Rome. This is again illustrated by an account of cases of unmitigated injustice, which culminates in the liquidation of Aginatus, an influential member of the aristocracy, hated by Maximinus. In § 57, the last section of the chapter, Ammianus announces

that in due course he will report on the demise of the scoundrels who had systematically perverted justice. This announcement has not materialized, but it does give a glimpse of Ammianus' conviction that in the long run justice will prevail.

- 1.1–4** When he sets out his principles as a historiographer, Ammianus usually expresses himself with great confidence. The first two sections of Book 26 are a clear example. In the various notes ad loc. this is amply discussed. The author presents himself as a professional who fully understands his business. In the first sections of Book 28 this confidence seems to have disappeared. Having set himself the task to report extensively on a string of disgusting, indeed horrible, examples of unmitigated injustice in Rome, he doubts whether such a report is opportune. Some readers might regard these instances of gross injustice, which will be described, as inspiring examples, to be imitated: crime pays. Another problem is the danger that those who dislike the purport of the message, and in particular its strong, even hyperbolic words, will vent their displeasure on the messenger. Ammianus illustrates his fear by relating what had happened to the Athenian tragedian Phrynichus, who staged a tragedy about the fall of Athens' colony Miletus. Its heavily tragic language stirred up strong emotions and caused such a general outcry that Phrynichus was brought to trial and condemned. Nevertheless, in spite of all these doubts and dangers Ammianus is not to be deterred and embarks on his long tale of woes.

- 1.1** *Dum apud Persas, ut supra narravimus, perfidia regis motus agitat insperatos et in eo tractibus bella rediviva consurgunt* With *supra* Amm. presumably refers to the last chapter of Book 27, in which Sapor's interference in Armenia and Hiberia is reported. As in 27.12.4 *ne quid intemeratum perfidia praeteriret* (q.v.), Amm. characterizes Sapor's actions as a treacherous violation of Jovian's settlement with the Persian king in 363. See for a detailed discussion of this settlement the note ad 26.4.6 *sed iniuste*. See for *motus*, 'disturbance', the note ad 21.15.1 *ad motum*, and for *insperatus* denoting a nasty surprise the note ad 20.4.14 *insperata res*. Because one can hardly imagine that the Roman intelligence service would have had no inkling of Sapor's intentions, *insperatus* rather emphasizes the good faith on the Roman side, which contrasts sharply with Persian perfidy. With *in eo tractibus* Amm. denotes the eastern provinces; see for this the last part of the note ad 26.5.2 *Lupicinus*. Cf. *redivivos barbarorum excursus* (20.9.7), *redivivas bellorum materias* (21.3.2).

anno sexto decimo et eo diutius post Nepotiani exitium saeviens per urbem aeternam urebat cuncta Bellona ex primordiis minimis ad clades excita luctuosas Since Nepotianus (PLRE I, Nepotianus 5) died on 30 June 350 (Kienast, 1996², 321), Amm.'s somewhat curious chronological phrase at the beginning, which is only paralleled by Cic. *Quinct.* 37 *annum et eo diutius post mortem C. Quincti*, refers to 365–366 AD (this date we find, rightly, in Barnes 233 and Coşkun, 2003a, 6). This is rather puzzling. The opening part of the sentence (*Dum apud Persas...consur-gunt*) suggests that the troubles in Rome which will be related in 28.1 began simultaneously with what had been narrated in the last chapter of Book 27 (*ut supra narravimus*), viz. the Persian interference in Armenia and Hiberia in the years 367–370. However, Amm. states in 28.1.8 (q.v.) that the trials concerning magic and treason, which took place during Valentinian's reign, began during the prefecture of Olybrius, who was PVR in 368–370: *Principium autem, unde latius se funditabat* (sc. Maximinus), *emersit ex negotio tali. Chilo ex vicario et coniux eius Maxima nomine questi apud Olybrium, ea tempestate urbi praefectum.*

Seeck, 1906, 486 considered this an example of Amm.'s confused chronology. Thompson 138–140 defended Amm., but rather unconvincingly. He thought that the dates referred to by Amm. (365–366) cause little difficulty and pointed to 28.1.17–23, where Amm. relates the case of Hymetius (PLRE I, Hymetius). This man, accused of treason, was exiled in 370/371, but had already been in trouble with Valentinian before, when he was proconsul of Africa in 366. According to Thompson it must have been this event, the earliest mentioned in the chapter, which Amm. had in mind when he wrote 28.1.1. Barnes 233–234 argued differently: “if Ammianus’ account of the career of Maximinus and of the trials at Rome otherwise reflects a precise and accurate chronology (as argued in Appendix 9), then it should be presumed unlikely that the introduction to his account would commit a gross chronological error. Accordingly, it may be proposed that the transmitted numeral is corrupt and that Ammianus originally wrote either *anno vicesimo* or *anno uno et vicesimo*, and that at some stage during the transmission of the text either XX or XXI has been deformed into XVI”. Unfortunately, in the manuscripts there is no indication of a textual corruption (see for the way numerals are written in the Teubneriana p. xxi of Seyfarth's praefatio). The three scholars mentioned thus far differ in their interpretation of 28.1.1, but they have one thing in common: they all see in the present text a reference to things to come, to the trials to be described by Amm. in the

rest of the chapter. Not so Colombo, 2008, 206–207. He thinks that in 28.1.1 Amm. refers back to the description in Book 27 of the disturbances in Rome during the prefectures of Lampadius and Viventius in 365–366, especially the struggle for the episcopal see between Damasus and Ursinus (“Ammiano non aveva la minima intenzione di collegare direttamente l’uccisione di Nepotiano...con la terribile serie dei processi all’aristocrazia romana...Sul piano narrativo 28, 1, 1...evoca in maniera allusiva i drammatici eventi di 27, 3, 8/9 e 12/13”). If Colombo were right, Amm.’s chronology would be less problematic. But there can be no doubt that Colombo is wrong. He ignores the anecdote about Phrynichus, which clearly sets this chapter apart from the preceding events, and fails to see the parallel between the bloody proscriptions after Nepotianus’ fall and the unrest in Rome caused by Maximinus’ behaviour. There is no other option than to conclude that chronologically Amm.’s opening section and §8 do not really agree with each other. He himself seems to have been aware of this. With the words *et eo diutius* added to the very precise *anno sexto decimo* he apparently covers himself against possible criticism.

Nepotianus was a nephew of Constantine I. His mother Eutropia (*PLRE* I, Eutropia 2) was a daughter of Constantine’s father Constantius Chlorus and Theodora. The authors of *PLRE* I call him Iul(ius) Nepotianus, a name which is found on his gold coinage (Kent, 1981, 261 nr. 167). On his bronze coins he is called Fl(avius) Pop(ilius) Nepotianus (Kent, 1981, 265 nr. 200–202) and Fl(avius) Nep(otianus) Constantinus (Kent, 1981, 266 nr. 203). He relied presumably on his kinship with Constantine when he staged a coup in Rome against the usurper Magnentius. After a mere four weeks Nepotianus was killed by Magnentius’ troops, *gravissimaeque proscriptiones et nobilium caedes fuerunt* (Eutr. 10.11); cf. also Hier. *Chron.* a. 350: *multaeque proscriptiones nobilium et caedes factae*. This episode must have been dealt with in a lost book of the *Res Gestae* (cf. 21.8.1 *cuius in actibus Magnenti meminimus*; see the note ad loc.), but, remarkably, Amm. does not refer to it. He obviously assumes that after forty years the horrible period of the proscriptions in 350 was still firmly present in the collective memory of his Roman readers as a historical parallel for the events which he is going to describe. See Ehling, 2001 for more details.

Bellona’s destructive power is also mentioned in 31.1.1, where Fortuna *Bellonam Furiis in societatem ascitis armabat* and 31.13.1 (cum) *tela lituosque Bellona luctuosas inflaret in clades Romanas solito immanius furens*, but there a war against external enemies is envisaged, which

ended in the disaster at Adrianople. In poetry the fearsome goddess is portrayed as brandishing a whip (Verg. A. 8.703 *quam* (= Discordia) *cum sanguineo sequitur Bellona flagello*), or with blood on her hands (Sen. Ag. 81–82 *sequitur tristis/sanguinolenta Bellona manu*), or with a firebrand (Stat. *Theb.* 4.5–6 *rutilam de vertice Larisaeo/ostendit Bellona facem*; see Steiniger's note ad loc.). It was with this attribute that Bellona spurred Julian on to his, in Amm.'s eyes, disastrous action of burning the ships at the beginning of the katabasis from Ctesiphon: 24.7.4 *et tamquam funesta face Bellonae subiectis ignibus exuri cunctas iusserat naves*; see the extensive note ad loc., in which inter alia references to Bellona's role in Claudian and contemporary Christian poetry can be found. In the present text the dangerous goddess acts within the eternal city of Rome, which makes her deeds even more alarming. See the notes ad 21.12.24 *urbi praefecit* and 26.1.14 *quam rationem* for Rome being called *urbs aeterna*; apart from the present text it is found in this chapter in § 36 and 56. Perhaps *urebat* evokes the firebrand, but this verb can also mean "to affect or to impinge on painfully" (OLD s.v. 8), e.g. in warlike situations; it would, however, be the only instance of such a meaning in Amm. The 'beginnings' of the horrible developments were insignificant, as in the case of the troubles at Constantius' court in 359: *turbo novarum exoritur rerum a primordiis levibus ad luctus et lamenta progressus* (18.3.1, q.v.). The first example of the idea is Arist. *Pol.* 1303 b 17 γίγνονται μὲν οὖν αἱ στάσεις οὐ περὶ μικρῶν ἀλλ' ἐκ μικρῶν.

As to *excita*, it is difficult to establish the precise meaning in the present context. Perhaps the rare expression *bellum excire*, dealt with in the note ad 27.4.1 *Dum aguntur*, is here personified, but one could also think of 21.13.14 *ut turbinibus* ('political strife') *excitis occurramus* or 26.4.5 *excitae gentes saevissimae* as parallels. Alternatively, one could assume that *excita* should be combined with *cuncta*, but there are no parallels for this solution.

quas oblitterasset utinam iuge silentium, ne forte paria quandoque temptentur plus exemplis generalibus nocitura quam delictis The combination of *oblit(t)erare* and *silentium* occurs in several other authors, but this is the only case in which 'silence' is the Agens. See for the adj. *iugis* the notes ad 17.13.11 *iugiter* and 21.5.3 *iugem licentiam*. Alas, a 'continuous silence' had proved to be impossible. Wishes introduced by *utinam* do not occur often in historians; Livy has eleven instances and Tacitus two in the *Annales*, all in speeches. Of Amm.'s six instances only 21.13.12 occurs in a speech, the other five are all authorial: apart from the present

text 14.11.25, 28.4.3, 29.2.13, 30.5.4. The four cases in Books 28–30 bear testimony to the greater frequency of the author's personal comments in the third hexad of the *Res Gestae*.

In his edition of 1636 Henri de Valois printed an exclamation mark after *silentium*. Wagner and Clark agreed with this. In his bilingual edition Seyfarth prints a comma, as does Marié, which is definitely correct, because in this way *ne* introduces a normal final clause: 'so as to prevent etc.' Oddly enough, Seyfarth's translation is based on an exclamation mark. The combination *ne forte* occurs frequently in later Latin, but only here in Amm.; together with *quandoque*, *forte* emphasizes the desirability of keeping silent about the events in question: at any time the same (*paria*) crimes might be attempted. Amm. does not state the reason for this, but one cannot think of anything other than imitation, because people conclude from the past that crime pays. In turn these same evil deeds will cause more damage because of the 'general' examples they provide than because of the specific crimes themselves. This phrase is inspired by Cic. *Leg.* 3.32 *plusque exemplo quam peccato nocent*, to which Amm. for clarity's sake adds *generalibus* in order to refer to the entire 'class' of wrongdoings, whereby a climate is created in which all sorts of crimes are generated.

Amm. had alluded to the phrase just quoted from Cicero in an earlier case. Dealing with the personnel at the imperial court, he notes that the majority of the courtiers *vitiorum omnium seminarium effusius aluisse*, 'had to an excessive degree cultivated a nursery garden of all the vices' (22.4.2, q.v.). They had poisoned society with evil passions, so that they *plusque exemplis quam peccandi licentia laederent multos*. Next Amm. dwells extensively on the deplorable manifestations of the courtiers' misconduct, without any complaint that silence should have obliterated these facts. However, in that case Amm. had other aims in mind: he was reporting Julian's highly necessary purge of the court of Constantius after the latter's death. In the present chapter he will describe an unending string of shocking affairs in Rome during the reign of Valentinian.

- 1.2 *ac licet ab hoc textu cruento gestorum exquisite narrando iustus me retraheret metus multa reputantem et varia, tamen praesentis temporis modestia fretus carptim, ut quaeque memoria digna sunt, explanabo* As is pointed out in the note ad 20.4.11 *quo textu*, two different meanings of *textus* occur in the *Res Gestae*: 'written text' and, as in the present passage, 'train of events'. At first Amm. was afraid (the imperf. *retraheret* expresses that this fear is now past) to compose a meticulous (*exquisite*)

report of the bloody period, a fear not caused by cowardice, but fully justified (*iustus*) by a number of considerations, one of which he will presently disclose. The combination of *multus* and *varius* occurs in several authors, e.g. *cum multa et varia impenderent hominibus genera mortis* (Cic. *Phil.* 14.34), *quom praesertim tam multae variaequae sint artes animi* (Sal. *Jug.* 2.4), *multi et varii timores* (Liv. 3.16.3), *proelia ante urbem multa et varia* (Tac. *Hist.* 3.82.2); 17.8.2, 18.2.2, 20.11.30, 28.4.15, 29.1.17 and 29.2.24 are Amm.'s other instances. However, like Tacitus in the introductory chapter of the *Historiae*: *rara temporum felicitate, ubi sentire quae velis et quae sentias dicere licet* (1.1.4), he has regained confidence because of the improved circumstances at the time of writing. The phrase could be an echo of Cic. *Fam.* 9.16.6 *fit ut...praesentis temporis moderatione me consoler*, but this has a different meaning: "I comfort myself with...the regulation of my conduct in the present" (tr. Shackleton Bailey), "la circonspection dont je fais preuve dans les circonstances présentes" (tr. Beaujeu). In any case the word Amm. chooses when he refers to the circumstances is telling: *modestia*, which he evidently regards as an invaluable virtue. This virtue does not occur particularly often in the *Res Gestae*, eleven times in all (six occurrences of *modestia*, one of *modestus*, four of *modeste*, one of *modestius*). In all other cases it concerns the decent restraint shown by civilized individuals. In 24.3.8 *Hac modesta imperatoris oratione* characterizes Julian's prudent speech to his discontented soldiers; when the Limigantes appeared to be preparing for warlike actions, Constantius, by sending some officers, wisely *explorabat modestius percunctando*, why they were acting as they did (19.11.5); in 29.1.8 *modestia* is mentioned together with four other praiseworthy qualities: Theodorus was *modestia, prudentia, humanitate, gratia, litteris ornatissimus*. In view of such passages it is remarkable, indeed significant, that in the present text *modestia* is used about society as a whole at the 'present time'. Unfortunately, it cannot be established with certainty which time comes in for such high praise. Some scholars think that this must refer to the time after the death of the usurper Maximus in 388 (so e.g. Gutschmid, 1894, 570), others to that after the death of Valentinian II in 392, which meant the end of the Valentinian dynasty (Van de Wiel, 1989, 123). In any case, the circumstances inspired the historian to return to the strategy, which he had outlined so passionately in 26.1.1–2 (q.v.): he will proceed with a deliberate choice of important facts. See for *carptim* denoting the selection of worthwhile details the notes ad 21.16.8 *dinumeratis* and 23.6.10 *carptim breviter*.

There is a remarkable parallel in Aurelius Victor in a passage about a new taxation during the tetrarchy: *Quae sane illorum temporum modestia tolerabilis in perniciem processit his tempestatibus* (Caes. 39.32). In this case *modestia* denotes the restraint shown by the imperial administration with regard to its taxation policy.

nec pigebit quid ex his, quae apud veteres acciderunt, timuerim docere succincte The author does not object to explaining concisely which event in ancient history caused him fear. At first sight this is rather strange: after all, one fears something that may happen in the future, not something that happened in days long gone by. For the historian, however, the past is a series of countless examples (14.11.29 *innumera...exempla*), which may repeat themselves. Petschenig, 1892, 524 suggests *quae aequae* for V's *quaeque*. The editors have not accepted this conjecture, which is understandable, because Petschenig offers no arguments, and there are no other instances of *aequae* in the *Res Gestae*. Moreover, it is superfluous: for the author historical *exempla* were by definition similar to later events.

- 1.3 *bello Medico primo, cum diripuissent Asiam Persae, obsidentes Miletum molibus magnis minantesque defensoribus cruciabiles necesse iniecerunt claudis necessitatem* Amm. turns to a historical example of almost nine centuries before, the Ionian revolt against Persian rule in the years 499–494, which ended with the siege and capture of Miletus. For *Medicus* used for *Persicus* see the note ad 24.6.14 *Medicorum...bellorum*. In modern parlance the term Persian Wars is commonly applied to the three Persian attempts to conquer Greece in 492, 490 and 480/479 BC, or to those two attempts which resulted in the battles of Marathon (490), Salamis (480) and Plataeae (479). In Amm.'s opinion the first war started in 499, when the Greeks in Ionia under the leadership of the tyrant of Miletus Aristagoras revolted against the Persians. In itself the expression *bellum Medicum* (or *bellum Persicum*; cf. Amp. 14.6, 14.7, 15.11) in combination with an ordinal number is unique in the Latin sources. Neither do we find ordinals combined with the Greek equivalents τὰ Μηδικά (e.g. Hdt. 9.64.2, Thuc. 1.41.2), τὰ Περσικά (Pl. Lg. 642 d), ὁ...Μηδικὸς ὀνομασθεὶς πόλεμος (D.S. 11.37.6, cf. Thuc. 1.97.1).

Amm. often uses the word *moles*, in various meanings; see the notes ad 20.6.5 *fervente* and 21.3.3 *urgente*. In the present text it could refer to exertions (“in overwhelming strength”, tr. Hamilton), as in 15.10.2, but perhaps it is preferable to regard it as being used “de machinis bellicis” (TLL VIII 1342.63–78). This would tally with a phrase in Herodotus’

brief report of the siege: παντοίας μηχανὰς προσφέροντες (Hdt. 6.18). However, the other details provided by Amm. do not contain any allusion to the Greek historian's report. As is noted ad 24.6.14 *Sophanem*, it is highly questionable whether Amm. had direct knowledge of Herodotus' *Histories*. The adj. *cruciabilis* does not occur frequently in Latin literature; with twelve instances Amm. surpasses all other authors. Some other instances of *clausi*, 'the besieged', are 20.11.11 *clausorum hebetaverat mentes*, 21.12.7 *erecti in audaciam clausi*, 26.8.3 *clausi apud Nicaeam*. The only other instance of *inicere necessitatem* seems to be Fron. Str. 2.1.12 *subitam hostibus necessitatem decernendi* ('not to flee, but to fight it out') *iniecit*.

*ut omnes magnitudine malorum afflicti peremptis caritatibus propriis pro-
iectoque in ignem mobili censu arsueros se certatim congererent in com-
munem pereuntis patriae rogam* This is entirely absent from Herodotus' report, who in 1.176 has a similar story to tell about the Lycians of Xanthus (cf. Plut. *Brut.* 31 and App. *BC* 4.80). One is further reminded of the end of Masada in 74 AD as narrated by Flavius Josephus (*BJ* 7.389–398). There are many other examples of collective suicide, e.g. by the inhabitants of Gamala in Gaulanitis (J. *BJ* 4.79) and of Saguntum in Spain (at least in the version of V. Max. 6.6 ext. 1). Cohen, 1982, 386–389 lists sixteen such cases from classical antiquity before Masada. In Amm. one can compare the death of part of the defenders of 'Maiozamalcha' (24.4.25). In 551 a group of five hundred Persians preferred to burn themselves alive on the acropolis of Petra in Lazica rather than surrender to the Romans (Procop. *Goth.* 4.12.14–16). See in general on this topic Van Hooff, 1990, 6, 8, 17, 21, 181 and Hofmann, 2007, who on p. 193–194 discusses the present text and states, not quite convincingly (cf. Van Hooff in *BMCR* 2008.9.16): "der Vergleich mit einer Kriegsszene aus der Vergangenheit [ist] offenbar bewußt gewählt: Auch die Verhältnisse in Rom sieht Ammian als Kriegszustand, die ausdrücklich in Analogie zu den Perserkriegen stehen; die Not forderte viele Opfer und hatte auch Suizid zur Folge".

See for *caritates*, 'loved ones', the notes ad 18.5.2 *et omni vinculo caritatum* and 20.4.10 *caritates*. As in 26.8.13, *mobilis census* means 'moveable property'. They set their hometown on fire and threw themselves onto this 'common pyre'.

In this section Amm. reaches the point he wants to make. He sketches the nasty experience of the Athenian tragedian Phrynichus, who in 492

staged a drama devoted to the fall of Miletus. Amm.'s version differs from each of the two clearest testimonies about the affair. The section contains a number of literary technical terms. It is telling that Amm. leaves it entirely to the readers to draw a comparison between Phrynichus and himself: there was no need to state the obvious.

hoc argumentum paulo postea digestum tumore tragico Phrynichus in theatrum induxerat Athenarum As in 28.4.2 *argumenta scaenica*, the word *argumentum* is a t.t. denoting the plot or story of a play: *argumentum est ficta res quae tamen fieri potuit, velut argumenta comoediarum* (Rhet. Her. 1.13), *ut tragici poetae, cum explicare argumenti exitum non potestis, confugitis ad deum* (Cic. N.D. 1.53). Evidently, the *ficta res* of the anonymous *Rhetor* does not suit Phrynichus' tragedy. TLL V 1.1119.45 sqq. contains a list of instances in which *digerere* means "scribendo ordinare". Verbal grandeur is de rigueur in tragedy: *verba tragici tumoris* (Gel. 2.23.21); see also Hor. A.P. 94–95. *Testimonia* and *fragmenta* of Phrynichus can be found in Snell-Kannicht, 1986, 69–79; see further Von Blumenthal, 1941 and Freymuth, 1955. See for other examples of *inducere* as a theatrical t.t. ('to stage') TLL VII 1.1232.69–1233.7. The title of the tragedy in question is usually given as Μιλήτου ἄλωσις, which does not figure in the list in *Suda* F 762, and, referring to another title in *Suda*, Δίκαιοι ἢ Πέρσαι ἢ Σύνθωκοι, Snell-Kannicht note: "fort. non titulus tragoediae, sed argumentum ΠΕΡΣΩΝ". There are no fragments left. See for the reason why the last part of the next note.

paulisperque iucunde auditus, cum coturnatius stilus procederet lacrimosus, indignatione damnatus est populi arbitrati non consolandi gratia, sed probrose monendi, quae pertulerat amabilis civitas nullis auctorum adminiculis fulta, hos quoque dolores scaenicis adnumerasse fabulis inso-lenter Amm. uses *stilus* in various meanings; see Mascoli, 2006. It can denote some sort of 'stake' or 'beam', as in *ligneos stilos per cautiora loca defigunt* (15.10.5) and *ingentibus stilis* (28.2.3, see the note ad *per multos*), or a 'pen', as in 25.3.21 *velut supremo...stilo*, 'as if he was using his pen for the last time'. In this meaning *stilus* lends itself to metonymical use. In 23.6.13 *geographici stili* (q.v.) and 27.4.2 *veteres...stili* it denotes those who use a pen professionally: 'authors'; in 26.1.2 *stilis uberibus* and 31.16.9 *maiores...stilos* (in the famous *sphragis*) a style of writing is indicated; see Kelly, 2007, 225–231. This is the case here, too, and it is quite important; Amm. is not referring to the contents of the tragedy,

but to Phrynichus' style, which by its gradually increasing tragic tones (coturnatius) moved the spectators, who for a time had listened with pleasure (*iucunde*), to tears (*lacrimosus*). Unfortunately, the resulting *indignatio*, instead of being directed at Miletus' dreadful fate, descended on the tragedian himself. As so often, out of dislike for the message, people punished the messenger. As to *indignatione*, this could also be a kind of 'borrowed' t.t.: one of the rhetorical tasks, especially in the *peroratio*, is to create *indignatio* in the audience: *Hic illa magna cum gravitate inducetur indignatio, iuncta conquestioni* (Cic. Inv. 2.36), *ad quam volumus indignationem animum auditoris adducemus* (Rhet. Her. 4.22). The syntactical function of the abl. *indignatione* is not clear: does the author mean 'by the indignant ἐκκλησία' (Agens in a passive sentence) or 'as a result of the outcry of the public in the theatre' (abl. causae)? In the latter case a prepositional phrase would be more usual. Amm. provides no information about the punishment to which Phrynichus was condemned. The addition of *Miletum relegatus est* after *insolenter* by the scribe of codex E, accepted by Accursius and Gelenius (cf. Den Hengst, 2010, 157), is rightly rejected in the Teubneriana and other editions; cf. Valesius ad loc. and Seyfarth, 1962, 63–65; on p. 64 the latter plausibly argues that the scribe may have misunderstood Ael. VH 13.17, quoted below. For the historian's purpose the motive is far more important: Phrynichus' tragedy was interpreted as a reproachful attack on Athens' policy of non-interference during the final phase of the Ionian revolt.

Instead of V's *consulandi* the editores print Gelenius' *consolandi*. This choice seems to speak for itself, and, moreover, there are a few parallels where *consolari* and *monere* are used in contrast to each other, e.g. (te) *ut antea consolabar, hoc tempore moneo* (Cic. Fam. 6.20.1), but it should be added that this would be the only instance of *consolari* in Amm. More importantly, although one can imagine that Amm. is referring to the view that a tragedian task should evoke an emotional reaction from the spectators (Aristotle later developed this with his concept of a παθημάτων κάθαρσις [Poetica 1449 b 28]), it is not easy to understand how Miletus' terrible fate could have been staged to 'comfort' the audience. One wonders whether *conciliandi* might be a better choice: as was emphasized above, Amm. focusses on the style of writing, which at first pleased the audience (*iucunde auditus*), 'winning it over' (*conciliare* as a literary t.t.) by its *tumor tragicus*, but when this developed into a deliberate provoking of tears, it was interpreted as a reproachful exhortation. The parallel with Amm.'s own strategy in his

long tale about woeful injustice in the lawcourts is clear: he chose a hyperbolic grand style to move his readers, with the risk that it might exasperate them.

The adj. *amabilis*, which is dealt with at the end of the note ad 22.15.25 *ibis*, has been carefully chosen: the Athenians ‘loved’ Miletus, which makes the contrast with their lack of assistance, when it was urgently needed, all the more painful. Although they were the ‘founders’ (see OLD s.v. *auctor* 14 and cf. 22.8.24) of Miletus, this city had not been supported by them. The Athenians regarded it a punishable offence that Phrynichus had added these sorrows as well (*quoque*), viz. like the usual mythological themes, to the repertory of tragedy. Cf. for *fabulis* Donatus, *Ter. Ad. 7 ut apud Graecos drama, sic apud Latinos generaliter fabula dicitur*.

The most important Greek source for the affair is Hdt. 6.21: the Athenians showed their great distress at the fall of Miletus in many ways, καὶ δὴ καὶ ποιήσαντι Φρυνίχῳ δρᾶμα Μιλήτου ἄλωσιν καὶ διδάξαντι ἔς δάκρυά τε ἔπεσε τὸ θέητρον καὶ ἐξημίωσάν μιν ὡς ἀναμνήσαντα οἰκία κακὰ χιλίησι δραχμῇσι, καὶ ἐπέταξαν μηκέτι μηδένα χρᾶσθαι τούτῳ τῷ δράματι, “and in particular, when Phrynichus composed and produced a play called *The Fall of Miletus*, the audience burst into tears and fined him a thousand drachmas for reminding them of a disaster that was so close to home; future productions of the play were also banned” (tr. R. Waterfield). The only addition one can make to this information is a brief notice in Aelianus’ *Varia Historica*: ὑποκρινομένου γὰρ Φρυνίχου τοῦ τραγικοῦ τὴν Μιλήτου ἄλωσιν οἱ Ἀθηναῖοι δακρύσαντες ἐξέβαλον δεδοικότα καὶ ὑποπτήσσοντα, “For when Phrynichus the tragedian was acting in *The Capture of Miletus*, the Athenians wept and expelled him from the theatre in his state of fear and terror” (13.17, tr. Wilson). Strictly speaking, in spite of the clear differences there are no contradictions between Amm. and the Greek versions. Herodotus explicitly states that the punishment was a fine. An incorrect interpretation of Aelianus’ ἐξέβαλον, viz. ‘exiled him’ instead of ‘expelled him from the theatre’ (cf. Marx, 1928, 342 and Freymuth, 1955, 61: “von den Zuschauern zum Abbruch der Aufführung gezwungen”) may have been the reason why the scribe of codex E added *Miletum relegatus est* after *insolenter*; both authors agree about the tears of the audience. On the other hand, Amm.’s version, which has not been included among the testimonia in Snell-Kannicht, is far more elaborate, partly of course in view of the parallel which Amm. wanted to highlight. It is impossible to determine precisely what is due to a tradition which is unknown to us,

and how the author uses it. One example: it could well be that a large part of Amm.'s version is, in fact, an elaboration on Herodotus' phrase οἰκῆια κακά, 'their very own disasters', which in the Greek historian's version forms a clear contrast to the usual situation, in which the public watched the tragic fate of others, viz. mythological figures. See for an extensive analysis of οἰκῆια κακά Rosenbloom, 1993. What does make the reader doubt that Amm. used Herodotus' information directly, is the absence of any reference to the 'damnatio memoriae', which affected Phrynichus' work. Even without the parallel being made explicit, this would have added to the ominous implication of the example. Unfortunately, Lizzi, 2000, 77 has no use for any doubts about Ammianus' direct use of Herodotus: "Il suo racconto dipende integralmente da quello di Erodoto". As has been shown above, such a statement is not only untrue, but even improbable in view of the evidence, which made Fornara, 1992, 423 conclude: "it is arbitrary to maintain that Ammianus at one time had studied Herodotus carefully". Nevertheless, it is Lizzi's point of departure for the broad development of a parallel between political conflicts in Themistocles' Athens and those within the Roman aristocracy, resulting in a sketch of which the outlines have no connection at all with Amm.'s report.

erat enim Atheniensium colonia Miletus deducta inter Ionas alios per Nileum filium Codri, qui fertur pro patria bello se Dorico devovisse, sed ad proposita veniamus Here Amm., to some extent literally, repeats the information provided in 22.8.12 (q.v.). The most conspicuous difference in the present text is the use of the t.t. *coloniam deducere*, which occurs in one other passage of the *Res Gestae*: 14.8.2 *Claudiopolis, quam deduxit coloniam Claudius Caesar*. The particle *enim*, which indicates that the information is shared by author and readers, refers specifically to *auctorum*. See on Codrus' self-sacrifice Versnel, 1980, 140–150.

In these sections the protagonist of the chapter, Maximinus, and his assistant Leo are presented to the reader. Ammianus immediately sets an uncompromising and almost bombastic tone in reporting the provenance, the career and, above all, the intensely wicked character of the two villains. Comparisons with dangerous animals support the ghastly sketch, in which the author goes out of his way to sprinkle his text with disparaging adjectives and phrases. The couple was entrusted with the prosecution of crimes in the domains of magic, lèse majesté and sexual offences. Very difficult times lay ahead for Roman society and specifically

for aristocratic circles, the more so because Valentinian had given a free hand to Maximinus. A remarkable feature of the entire chapter makes its first appearance: the large number of juridical and legal technical terms.

- 1.5 *Maximinus regens quondam Romae vicariam praefecturam apud Sopianas Valeriae oppidum obscurissime natus est patre tabulario praesidialis officii orto a posteritate Carporum, quos antiquis excitos sedibus Diocletianus transtulit in Pannoniam* Amm. begins his long and lugubrious survey of the *clades luctuosae* announced in § 1 by presenting the villainous protagonist, Flavius Maximinus (*PLRE* I, Maximinus 7, cf. Szidat, 1995, 481–486, Coşkun, 2000, 88–90 and Lizzi Testa, 2004, 50–51), who ‘at a certain time’ (*quondam*; not “formerly”, as e.g. Rolfe and Hamilton say, cf. Barnes 243) held no less important a post than that of *vicarius urbis Romae*, which Amm. apparently regarded as the most distinguished stage of his career (Maximinus later became PPO Galliarum, 28.1.41). Cf. for this function Sinnigen, 1959 and Ensslin-Schneider, 1958, 2027–2028. As *vicarius urbis Romae* Maximinus was, as is clear from 28.1.32, the successor of Aginatus (*PLRE* I, Aginatus + J.R. Martindale in *Historia* 29 [1980] 474) and, as Amm. makes clear in 28.1.44, the predecessor of Ursicinus (*PLRE* I, Ursicinus 6).

It is noteworthy that there is a difference between a *vicarius urbis Romae* and a *vicarius praefecturae urbis*, who both, rather confusingly, could be called *vicarius urbis* (Ensslin-Schneider, 1958, 2043). The *vicarius praefecturae urbis* was the deputy of the urban prefect of Rome (see in the first place Ensslin, 1936). This post was abolished shortly after the middle of the fourth century (cf. e.g. Ensslin-Schneider, 1958, 2044; Sinnigen, 1959, 100; Chastagnol, 1960, 36–37). The *vicarius urbis Romae* was one of two deputies of the praetorian prefect of Italy (*Not. Dign. Occ.* 1.24); he resided in Rome (his colleague, the *vicarius Italiae*, had his seat in Milan), and the provinces south of the Apennines, including Sicily, Sardinia and Corsica, were dependent upon him (*Not. Dign. Occ.* 19.1–14, cf. De Jonge ad 17.11.5 *Artemius*); on inscriptions we find various designations for his post, e.g. *vicario praeff. praetorio bis in urbe Roma* (ILS 1214), *vicario urbis Romae* (ILS 1253), *vicario urbi Romae* (ILS 1254), *pro praefectis praetorio in urbe Roma finitimisque provinciis* (ILS 1257). Before Maximinus was appointed *vicarius urbis Romae* he governed three provinces and was prefect of the corn supply of Rome (28.1.6, q.v.).

As to the date of Maximinus’ vicariate, *PLRE*’s 370–371 does not seem quite right: 370–372 or even 370–373 would be better (see Barnes 241–242), for Ursicinus, Maximinus’ successor as *vicarius urbis Romae*,

was still *praefectus annonae* on 22 February 372 (*Cod. Theod.* 14.3.14) and the earliest firm attestation of Maximinus as PPO Galliarum is on 14 November 374 (*Cod. Theod.* 9.24.3). The terminus post quem is 19 March 370, when Maximinus himself was still *praefectus annonae* (*Cod. Theod.* 14.17.6, where one should read with most scholars *ad Maximinum* (instead of *Maximum*) *p(rae)ff(ectum) ann(onae)*; Coşkun, 2003a, 9, however, is of a different opinion). From 28.1.22 (q.v.) and *Avell.* 11.4, p. 53, 5–12 it appears that he was *vicarius urbis Romae* during Ampelius' urban prefecture. Ampelius entered his office between 21 August 370 (*Cod. Theod.* 2.10.5 is the last known constitution addressed to his predecessor Olybrius) and 1 January 371 (*Cod. Theod.* 15.10.1), and was discharged between 5 July 372 (*Cod. Theod.* 6.7.1 of this date is the last law addressed to him as PVR) and 22 August 372 (*Cod. Theod.* 6.4.21, addressed to Ampelius' successor Bappo).

Note the contrast between the prestigious function held by the man in an important city like Rome and his low provincial birth. In Amm.'s view, low, and a fortiori very low, birth in most cases entails an unfavourable prognosis about a person's conduct in cases of upward mobility; see for this the note ad 27.3.2 *Terentius*. *Sopiana* (modern Pécs; Talbert 20 F3), situated not far from the Danube, was, as is commonly assumed (but see Fitz, 1994, 1180–1181), the capital of Valeria, one of the Pannonian provinces (cf. 19.11.4 *Valeriam...partem quondam Pannoniae, sed ad honorem Valeriae Diocletiani filiae et institutam et ita cognominatam*; Fitz, 1994, 1177–1181), and not some backward village; see Fülep, 1984. A modern observer fails to see what was wrong with his father's membership of the financial staff in a provincial governor's office, but it should be noted that there was a great difference in status between the financial and the judicial branch of the *officiales* (or *apparitores*, cf. the note ad 27.7.5 *et Diodori*) and that "even in the sixth century the judicial grades affected to despise the finance officials as outsiders" (Jones, 1960, 166). The reason was perhaps that they originated from the slave and freedman accountants of earlier days. *Tabularii*, called *numerarii* before 365 (*Cod. Theod.* 8.1.9 pr.), "were sometimes, even in the fourth century, deprived of their military status and made liable to torture" (Jones 565). This is Amm.'s only reference to a *praesidiale officium*, but he does mention a *praesidialis apparitor* in 17.3.6. In the *Codex Theodosianus* we find, apart from the expression *officia praesidalia* (7.22.6, 8.4.4, 12.6.5), the synonym *officia provincialia* (8.4.22, 8.7.16). See for *officia* and *officiales* in Late Antiquity in general Boak, 1937, 2047–2056 and for *tabularii* Sachers, 1932. Perhaps a more important reason for Amm.'s disdain is the fact that the

man was descended from immigrants, who had lived in an estuary of the Danube. See on the history of the Carpi and their migrations the note ad 27.5.5 *Anno secuto*.

Cf. for *regere*, 'to hold a high office', 19.11.2 *Anatolio regente tunc per Illyricum praefecturam*, 21.16.3 *qui post decennium officiorum magisterium vel largitiones vel simile quidquam esset recturus*, 23.3.3 *praefecturam regente Aproniano in urbe*, 27.11.1 *ad regendam praefecturam praetorianam ab urbe Probus accitus*.

- 1.6 *is post mediocre studium liberalium doctrinarum defensionemque causarum ignobilem et administratas Corsicam itidemque Sardiniam rexit deinde Tusciam* The loss of 'status' of anaphoric *is* in the nominative in later Latin can be illustrated by the contrast between Livy's 362 and Tacitus' 141 instances on the one hand and Amm.'s seventeen on the other; see further Szantyr 186. No doubt *mediocre* is here a disdainful term used by a highly educated and erudite man for an education below his own standard, but one should beware of putting the adj. always on the same level as English and French 'mediocre'. Cf. the definition at the beginning of a long list of relevant cases in TLL VIII 561.49sqq.: "magis respicitur defectus summitatis vel perfectionis". After all, when Julian studies *poeticam mediocriter et rhetoricam* (16.5.7), this hardly denotes a very low degree of competence. Maximinus' higher education left something to be desired, like that of the urban prefect Orfitus, *splendore liberalium doctrinarum minus quam nobilem decuerat institutus* (14.6.1), in contrast to the Egyptian poet Andronicus, *studiis liberalibus et claritudine carminum notus* (19.12.11, q.v.). As an advocate Maximinus failed to make a profound impression; the adj. *ignobilis* is not a moral disqualification, but expresses that his performance was "undistinguished" (OLD s.v. 2). Sextilius Agesilaus Aedesius (PLRE I, Aedesius 7), mentioned by Amm. in 15.5.4, had a better reputation. He is called *causarum non ignobilis Africani tribunalis orator et in consistorio principum* on ILS 4152. The reader will be surprised, when he learns that in spite of all the drawbacks mentioned the man successively became governor of three, admittedly not very important, provinces. Theoretically it was illegal for Maximinus to become even an advocate, let alone a provincial governor, for as son of an *officialis* he had strictly speaking the duty to follow in his father's footsteps (*Cod. Theod.* 7.22.3, Jones 513, 594).

In 29.2.22 Amm. says that Maximinus was a friend and a fellow-barrister of the historian Festus (PLRE I, Festus 3), but we do not know

where or when Maximinus was an advocate. When precisely he was *praeses Corsicae* is not known either. As *vir perfectissimus praeses provinciae Sardiniae* he is attested by AE 1889.32, found at Terranova in northern Sardinia and dated a. 364/367. From another Sardinian inscription, *CIL* 10.8026, we know that Maximinus' full name was Flavius Maximinus. As *corrector Tusciae* he must have been the successor of the former *pistor* Terentius, whom Amm. mentioned in 27.3.2 (q.v.). At that time he was eo ipso a senator ("les correcteurs de Tuscie-Ombrie ont été des clarissimes dès l'origine", Chastagnol, 1963, 358). *Cod. Theod.* 9.1.8 of 17 November 366 is addressed to him in this capacity (*impp. Valentinianus et Valens AA. ad Maximinum correctorem Tusciae*).

unde morato in itinere diutius successore transgressus ad curandam urbis annonam etiam provinciae moderamina retinebat egitque consideratione triplici inter exordia cautius How long Maximinus was governor of Tuscia and who succeeded him, is not known. Possible candidates as successors are Lucilius Constantius (*PLRE* I, Constantius 9) and Betitius Perpetuus Arzygius (*PLRE* I, Perpetuus 3). Although the office of *praefectus annonae* was subordinate to that of the urban prefect (*Not. Dign. Occ.* 4), it was an important department (cf. Herz, 1988; Eck, 2001) and it gave Maximinus a firm power base. When precisely Maximinus occupied this post is not certain. At any rate not before 29 September 367, when his predecessor (*PLRE* I, Aurelianus 2) was still in function (*Cod. Theod.* 13.6.5). From Amm.'s account it appears that Maximinus was *praefectus annonae* during Olybrius' urban prefecture (28.1.9, 28.1.32), in 368/370 (cf. Chastagnol, 1962, 182–183). In office he received *Cod. Theod.* 14.17.6 of 19 March 370 (see for this law the note ad 28.1.5 *Maximinum*). After the prefecture of the corn supply in Rome came the vicariate of Rome, to which Amm. already alluded in section 5 (q.v.) and to which he returns in 28.1.22 (q.v.).

See for the 'poetical' plural *moderamina* the note ad 26.2.6 *nec speranti*. Note the alternation of imperf. and perf. tenses in *retinebat* and *egit*: the former expresses the circumstances in the past, the latter the way he acted within that situation. The temporary combination of two functions foreshadowed the *congeminata potestas* in § 12. As will appear in the next section, not all three reasons for his wariness (*cautius*) were laudable.

primo, quod recalebant in auribus eius parentis effata, quid augurales alites vel cantus monerent oscinum, apprime callentis, ad usque sublimia regimenta...sed perituum ferro poenali See for *recalere*, 'to be still alive' 1.7

(in memory); the note ad 22.12.2 *recalentibus*. As is clear from Cic. *Leg.* 2.20 *fatidicorum et vatium effata* and Amm. 19.12.15 *effata Delphorum* (q.v.), the term *effata* is a solemn t.t., deserved by the expertise of Maximinus' father with regard to augury. With *augurales alites* Amm. probably refers to the flight of the birds; see the note ad 21.1.9 *ut rostrum sonans*. Varro's etymological explanation of *oscen* does in itself express what the word means: *oscines dicuntur apud augures, quae ore faciunt auspicium* (L. 6.76), although the etymology has not convinced modern experts; cf. e.g. Ernout-Meillet-André s.v.: "De **obs-cen*, "qui chante en avant"". See also the note ad 22.12.7 *oscinumque*.

The adv. *apprime* (or *adprime*), which denotes a high degree, occurs a number of times in early Latin and then again in Gellius and later authors. See for the 'poetical' word *regimentum* the note ad 25.9.7 *quae difflantibus*. Among the various attempts to fill the obvious lacuna after *regimenta* Petschenig, 1892, 524 is the most persuasive: "Wahrscheinlicher ist der Ausfall ähnlicher Buchstaben hinter *regimenta*, also 'erigendû'". The prediction of Maximinus' death penalty will be fulfilled in § 57 of this chapter.

dein, quod nactus hominem Sardum, quem ipse postea per dolosas fallacias interemit, ut circumtulit rumor, eliciendi animulas noxias et praesagia sollicitare larvarum perquam gnarum, dum superesset, ille timens, ne proderetur, tractabilis erat et mollior Whereas Maximinus' father was engaged in a time-honoured form of divination, the son dabbled in necromancy. His governorship of Sardinia had provided him with a Sardinian expert, whom he later got rid of, 'as rumour spread around'. See Sabbah 397 for this technique of "insinuation". Hagendahl, 1921, 119–120 notes *eliciendi...sollicitare...gnarum* as the only case in Amm. of an adj. combined with first a gerund and then an infinitive. The diminutive *animula* is best known from Hadrian's famous poem in HA H 25.9, but it also occurs with various meanings in a few other authors. In the present text the diminutive form probably expresses disdain. The 'evil little souls' are presumably the same as the *larvae*; cf. *Larvas quippe dicit esse noxios daemones ex hominibus factos* (August. C.D. 9.11, referring to Apul. Soc. 15).

The editions of Valesius (1633) and Wagner (1808) put a comma behind *ille*, but from Clark onwards editores have moved it, which is not a felicitous measure. The sentence as a whole mainly provides further information on Maximinus; it would be strange to refer to him with *ille* within the sentence itself. Maximinus' fears continued as long as 'the

aforementioned man from Sardinia' was alive, causing him to manifest himself as 'gentle and amenable', the exact opposite of what he really was.

There is ample evidence regarding necromancy in the Graeco-Roman world, both in literature and in magical papyri. The surveys of this phenomenon usually begin with Odysseus' conversations with the dead in Book 11 of the *Odyssey*. Some other examples are Periander consulting the shade of his wife Melissa in Hdt. 5.92, the evocation of Darius' shade in A. *Pers.* 621 sqq., Laberius' mime *Necromantia*, twice mentioned by Gellius (16.7.12, 20.6.6), Erictho reviving a corpse in Luc. 6.624 sqq., and the scene in Apul. *Met.* 2.28–29. Tertullian, *An.* 57.3 says that especially *ahori et biaeothanati* are invoked. Necromancy was not endorsed by everyone: according to Plato τοὺς δὲ τεθνεώτας φάσκοντες ψυχαγωγεῖν deserved heavy punishment (Lg. 909 b), Quintus Cicero declares *ne psychomantia* ('places of necromancy') *quidem, quibus Appius, amicus tuus, uti solebat, agnoscere* (Cic. *Div.* 1.132, see Pease ad loc.). Amm. himself does not mention it in his survey of divination, *doctrinae genus haud leve* (21.1.7–14). He does, however, refer to it in other passages: 18.4.1 *consilia tartareis manibus miscens*, 19.12.14 *sepulchrorum horrores et errantium ibidem animarum ludibria colligens*, 29.2.17 *infernis manibus excitis de permutatione imperii consulere ausus est*. See for further material Cumont, 1949, 78–108 and Ogden, 2001.

postremo, quod tamquam subterraneus serpens per humiliora reptando nondum maiores funerum excitare poterat causas See Blockley, 1975, 183 for the complete list of people who are compared to snakes in the *Res Gestae*. Maximinus is the only one described three times in this way, all three in the present chapter; the other two occur in § 33 and 41. He shares the addition *subterraneus* with Ursicinus' enemy Arbitio (15.2.4), but whereas in the latter case the snake was lurking below the hidden entrance to its hole in order to surprise passers-by with a sudden leap, Maximinus kept crawling around, because as yet opportunities to kill had failed to appear.

Principium autem, unde latius se funditabat, emersit ex negotio tali See 1.8 for the chronological problem with respect to this statement the note ad 28.1.1 *anno sexto*. Occurrences of the verb *funditare* are scarce: four in Plautus, one in Florus, two in Amm., the other one being 24.4.16 *creberrima spicula funditantes*. In the present text it means in principle "to pour out continuously" (OLD s.v. 1). The subject can only be Maximinus, whose snake-like nature is replaced by another metaphor, viz. of a stream.

Chilo ex vicario et coniux eius Maxima nomine questi apud Olybrium, ea tempestate urbi praefectum See for Chilo PLRE I, Chilo 1; in 375 he became *proconsul Africae*. Solin, 2003, 711–712 provides a long list of people bearing this name, which derived from χείλος, ‘lip’, from the second century BC onwards. The description ‘former vicar’ (*ex vicario*) for Chilo deserves close attention. Maxima (PLRE I, Maxima 1) is only known from the present text.

According to Seeck, 1906, 486 this is another example of Amm.’s confused chronology: how could a man, “der erst in den Jahren 374 und 375 im Vicariat nachweisbar ist”, be called *ex vicario* during Olybrius’ prefecture, i.e. in 368/370 (see below for the date)? Seeck alludes to the three constitutions in the *Theodosian Code* addressed to Chilo (13.4.4 of 20 June 374, 12.6.16 of 9 April 375 and 13.6.7 of 3 August 375), but he is not very precise. Only *Cod. Theod.* 13.4.4 is addressed *ad Chilonem vicarium Africae*; 12.6.16 does not specify Chilo’s function, while 13.6.7 is directed to *Chiloni proconsuli Africae*. However, Seeck was right to see the problem. The authors of PLRE tried to solve it by eliminating Chilo’s vicariate of 374. Instead of *vicarium* in *Cod. Theod.* 13.4.4 they read *proconsulem*. Tomlin, 1973, 512 rejected this solution (rightly, it would seem) and suggested in n. 89 on p. 338 that Chilo “may have been *vicarius* twice in his career” (as parallels for this he points to PLRE I, Saturninus 9 and Sallustius 5). Another possibility is that Amm.’s expression is anachronistic: when he wrote this part of the *Res Gestae* Chilo surely was a ‘former vicar’.

Q. Clodius Hermogenianus Olybrius (PLRE I, Olybrius 3; Chastagnol, 1962, 178–184; Lizzi Testa, 2004, 42 n. 94) was as PVR the successor of Vettius Agorius Praetextatus, whom we last met in 27.9.8–10. Olybrius held the city prefecture between 368 and 370, or rather, his term must have begun between 20 September 368 (*Cod. Theod.* 1.6.6, the last law we know of as being addressed to Praetextatus) and 1 January 369 (*Cod. Theod.* 14.3.13, cf. Pergami, 1993, 429–430), and ended between 21 August 370 (*Cod. Theod.* 2.10.5, cf. Pergami, 1993, 523–524) and 1 January 371 (*Cod. Theod.* 15.10.1, addressed to Olybrius’ successor Ampelius). It is quite understandable that Chilo made his complaint before the *praefectus urbi*, for “le préfet urbain du IV^e siècle est essentiellement un juge”, and “le préfet était tout naturellement le juge des crimes commis à Rome contre la personne physique” (Chastagnol, 1960, 84, 88). In this chapter Amm. mentions Olybrius again in § 9 and § 32. In 28.4.1 (q.v.) he characterizes his prefecture as ‘very quiet and mild’ (*ab Olybrii praefectura tranquilla nimis et leni*). Amm. is fond of the phrase *ea tem-*

pestate, ‘at that time’; this meaning of *tempestas* already occurs here and there in classical Latin, especially in Sallust, in whose works *ea tempestate* occurs seventeen times.

vitamque suam venenis petitam asseverantes impetrarunt, ut hi, quos suspectati sunt, ilico rapti compingerentur in vincula, organarius Sericus et Asbolius palaestrita et haruspex Campensis It is in itself not unreasonable to assume, as most translators seem to do, that Chilo and Maxima complained before Olybrius that an attempt had been made on their lives with real poison, in other words, that *venenis* here has to be taken “proprie” (Viansino, 1985, s.v.), as, for example, in 29.2.19, where Amm. relates that a woman of Smyrna had confessed that she had killed her own son and her husband with poison (*Smyrnaea mulier subolem propriam et maritum venenis necasse confessa*). However, while in the case of the woman of Smyrna it is quite understandable that she was able to poison her victims because the three of them evidently lived in the same house, such an attempt is harder to grasp in the case of the *organarius* Sericus, the *palaestrita* Asbolius and the *haruspex* Campensis. It does not seem likely that these men belonged to Chilo’s household. It would, therefore, suit the context better to take *venenis* in the sense of ‘magical practices’ (so Alföldi, 1952, 75; cf. Matthews, 1975, 56). See for this meaning the note ad 26.3.1 *veneficos*, where inter alia Lotz, 2005, 33 is quoted: “Im Lateinischen kann *venenum* als Synekdoche für die gesamte magische Praxis stehen”. In that case Sericus, Asbolius and Campensis would belong to the same category of *venefici* as the *auriga* Athanasius (29.3.5; cf. 26.3.3 and 28.1.27 with the notes), as well as the lowborn Palladius (29.1.5), the interpreter of horoscopes Heliodorus (*ibid.*) and Diogenes, another man of low origin (29.1.44).

This seems to be a unique case of deponential *suspectari*. See the note ad 26.7.4 *ne quid* for the phrase *compingere in vincula* and for literature on the use of prisons. The very rare word *organarius* is interpreted as “qui utitur organo” in TLL IX 2.967.13. According to Solin, 2003, 1211 the present text is the only occurrence of a male person with the name Asbolius, derived from ἄσβελος, “Rauch”; Asbelie only occurs in *ICUR* 6.16987. Apparently the name is not a common one, for *PLRE I* mentions only one other Asbolius (“he may have been CRP”), attested by Lib. *Ep.* 1190.4. OLD’s “manager of a wrestling-school” seems the most probable rendering of the present instance of *palaestrita*. The word, which is used twice by Amm., can also be found in 15.3.4, q.v. See for a discussion of its various meanings Dickie, 1993, who mentions almost all the literary

and epigraphical sources in which *palaestrita* and παλαιστρίτης occur, among them 15.3.4, but not the present text. One should beware of assuming any disparaging purpose in the mention of *haruspex*. In the survey of divination (21.1.7–14) the art of *haruspicina* is treated with respect. See also the note ad 23.5.10 *haruspices* and 26.1.5 *quod tunc*. Add to the literature cited there Briquel, 2000, Haack, 2003 and Haack, 2006. In 28.1.29 Amm. relates how Sericus, Asbolius and Campensis were put to death; in 28.1.21 he mentions the death of a colleague of Campensis, Amantius.

- 1.9** *verum negotio tepescente ob diuturnam morborum asperitatem, qua tenebatur Olybrius* With the meaning ‘to become tepid’ the verb *tepescere* is apt to be used in a transferred sense, e.g. where human feelings are concerned: *mentesque tepescunt* (Luc. 4.284), *prior ira tepescit* (Stat. *Theb.* 12.687), *desiderium quodam modo tepescit* (August. *Ep.* 130.9), *cum omnes amicitiae Romae tepescant* (Amm. 28.4.21). Its use with regard to a judicial case is a novelty. As in 16.7.10 *asperitate morborum*, the plural *morborum* is here perhaps used c.c. Amm. apparently takes the prefect’s ill health seriously. Some modern historians do not. Thompson 104, for example, takes Chilo’s case and that of another person together and suggests that Olybrius must have excused himself from hearing the trials because his own brother was among the accused (this man is mentioned by Amm. in 28.1.16, q.v.: *Alypius nobilis adolescens*). However, apart from the fact that nothing is known of a connection between Chilo’s complaint and the accusation against Alypius, *Cod. Theod.* 11.31.3 seems to confirm Amm.’s statement about Olybrius’ illness (cf. Barnes 243), in that this constitution, addressed to Olybrius on 19 March 370 (cf. Pergami, 1993, 492), apparently alludes to it: *Si in sacrae cognitionis examine audientiam necessitas publica vel aegritudo iudicis abnegaverit, intra tres menses reparatio postuletur atque in adversariorum notitiam impetrata reparatio perferatur* (“If public necessity or sickness of the judge should prevent a hearing in a trial before the sacred imperial court, renewal may be requested within three months, and notice of the impetrated renewal shall be given to the adversary”, tr. Pharr).

morarum impatientes hi, qui rem detulerunt, libello petiverunt oblato, ut examinandum iurgium praefecto mandaretur annonae, idque studio celebritatis concessum est A *libellus* can denote any written text of limited length, here a request presented to an authority (cf. Von Premerstein, 1927, esp. 30–44; Millar, 1977, 241–252). See for *iurgium* as a juridical

t.t. the penultimate section of the note ad 27.11.3 *ita ille*. To whom Chilo cum suis (*hi, qui rem detulerunt*) addressed the *libellus*, is not stated. The Agens of *concessum est* is not mentioned, but he obviously strove to achieve a speedy settlement of the affair (*studio celeritatis*). It must have been Olybrius (Van de Wiel, 1989, 136) and not the emperor (Chastagnol, 1960, 88), who suggested Maximinus as his substitute, as 28.1.32, quoted below, makes clear, but there can be hardly any doubt that ultimately Hier. *Chron.* a. 371 is right in stating that Valentinian ordered Maximinus to take over the affair: *Maximinus praefectus annonae maleficos ab imperatore investigare iussus plurimos Romae nobilium occidit*. However, the date under which Jerome's statement is listed cannot be right, as Valesius already saw ("sed annus perperam assignatur"). As was noted above (ad 28.1.8 *Chilo*), Olybrius was PVR in 368/370. Assuming that he was not ill immediately from the start of his prefecture, the Chilo affair must have been taken out of his hands and handed over to Maximinus in 369/370 (cf. also the note ad 28.1.9 *verum negotio* with respect to *Cod. Theod.* 11.31.3).

The fact that the *praefectus annonae* Maximinus replaced Olybrius at the time, and not the higher ranking *vicarius urbis Romae* Aginatus, which would have been normal practice (cf. Sinnigen, 1959, 103; Chastagnol, 1960, 41, 86–87), was resented by Aginatus, as Amm. relates in 28.1.32: *Aginatus indignissime ferens dolensque in examinandis causis Maximinum ab Olybrio sibi praelatum*. The reason for Valentinian's choice must have been that he preferred a low-born fellow Pannonian (28.1.5) to a blue-blooded Roman aristocrat (28.1.30, 52, 54). See for the function of *praefectus annonae* the note ad 28.1.6 *unde morato*.

accepta igitur nocendi materia Maximinus effudit genuinam ferociam pectori crudo affixam, ut saepe faciunt amphitheatrales ferae diffractis tandem solutae posticis Amm.'s Maximinus turns out to be a real Proteus. First he appeared in the shape of a snake (§ 7), then he became a flooding stream (§ 8), and now he is a wild beast destined for a *venatio* in the arena. See for *materia*, 'opportunity', the list of examples in TLL VIII 464.53 sqq.; Maximinus belongs to the class of people with a compulsive inclination towards harming others (*obstinatum...ingenium ad laedendum* (§ 13). See for this the notes ad 26.10.2 *nam si* and 27.11.6 *ita implacabilis*, and the short survey "Textes de S. Jérôme (et d'autres) sur la joie du malheur d'autrui" in Antin, 1968, 203–208. He gave free range to his savage nature; see for comparable examples of *effundere* with "proprios affectus" as object TLL V 2.225.1–29; some examples: *ut ille...suum*

1.10

vinulentum furorem in me unum effunderet (Cic. *Fam.* 12.25.4), *effusa est laetitia* (Liv. 33.33.4). His ‘innate savage character’ is further defined as ‘firmly attached to his raw heart’.

It should be noted that the beasts destined to perform in the amphitheatre disturb the normal course of events: they do not leave their cages via the normal route, which leads into the arena, but shatter the back doors to set themselves completely free, with undesirable consequences. In the notes of his 1633 edition Henri de Valois provides admirable elucidation: “saepe ex caveis elapsae, in media civitate horrendas strages edebant”. For this he quotes Tert. *Mart.* 6.2 *Quotiens ferae et in silvis suis et in mediis civitatibus elapsae caveis homines devoraverunt*, Libanius, *Or.* 5.14 ἦν ἐν τι τούτων δὴ τῶν ἐν τοῖς ζωγρείοις τεταλαιπωρημένων ὑπερβάν τὸ ἐρκίον θέη διὰ πόλεως, βλέμματι μόνῳ ταράττει τε καὶ ἐκπλήττει, ‘when one of those beasts which have suffered harsh treatment in the game enclosures, having climbed over the fence, runs through the town, it causes disorder and fear merely by being seen’, and John Chrysostom, *Hom. In Mat.* 28 (29).4 (PG 57, 356), in an attack on immoral and greedy people: καθάπερ θηρία χαλεπὰ ἀπὸ γαλεάγρας φυγόντα, τὰς πόλεις θορυβοῦσιν, ‘like wild beasts, which have fled from the cage, they cause chaos in the towns’. Valesius is undoubtedly right, both because of *saepe*, which would not make sense in the usual situation, and with regard to the fact that Amm. uses the adj. *amphitheatrales*, which does not mean “in the amphitheatre”, as some translators assume, but ‘destined for the amphitheatre’. Normal practice is mentioned by Herodian in a passage on Commodus’ exploits during *venationes*: λεόντων δέ ποτε ἐξ ὑπογαίων ἑκατὸν ἅμα ἀφεθέντων, ‘when a hundred lions were released from their underground cages’ (Hdn. 1.15.6, referred to in Amm. 31.10.19 *centum leones in amphitheatrali circulo simul emissos*). This is crucial for the comparison with Maximinus: he did not relax his inclinations within normal juridical procedures, his conduct transgressed all boundaries. See TLL X 2.228.27–33 for other examples, partly in inscriptions, of *posticae* as the doors or gates “cavearum amphitheatri quibus ferae includebantur”; and cf. *diffRACTIS portarum obicibus* (24.5.2, q.v.), *velut diffRACTIS caveis* (31.8.9).

cumque multiformiter quasi in proludiis negotium spectaretur et quidam sulcatis lateribus nominassent nobiles aliquos tamquam usos artificibus laedendi per clientes aliosque humiles, notos reos et indices As in §8 (*emersit ex negotio tali*) and §9 (*negotio tepescente*), the word *negotium* refers to the Chilo affair, discussed by Amm. in §8. There he relates

that three suspects, Sericus, Asbolius and Campensis, were arrested and thrown into prison. They must have been among the *quidam* of the present text, who under torture (*sulcatis lateribus*) implicated certain aristocrats (*nobiles aliquos*) in the affair. In 28.1.29 Amm. returns to the Chilo affair and in that section he not only mentions the execution of Sericus, Asbolius and Campensis, but also that of the *senatores* Paphius and Cornelius, both of whom had confessed *venenorum artibus pravis se polluisse*. Thompson 103 sees in the senators Paphius and Cornelius the *nobiles* mentioned here. This seems a reasonable assumption, pace Barnes, 1974, who distinguishes between ordinary *senatores* and *clarissimi* on the one hand and *nobiles* on the other: “a senator was a *nobilis* if he or a forebear had been either ordinary consul or Prefect of the City or a pretorian prefect” (p. 446). As argued by Salzman, 2001, 360–361 with n. 6, “Barnes’ assertion does not hold in all cases”, and “the exact office or offices necessary for membership in the Roman senatorial *nobilitas* were not so narrowly stipulated”. Although Schlinkert, 1996 cites Barnes’ article (e.g. on p. 164 n. 20), he nowhere examines his theory, but apparently rejects it: “*nobilitas* und sein Adjektiv *nobilis*, zumeist in substantivierter Form, bilden bei Ammian die kategorialen Leitbegriffe, um den Senatsadel als homogene soziale Gruppe zu erfassen” (p. 164). In Book 28 the term *nobilis* occurs, apart from the present text, in 28.1.16, 30, 37, 38, 46; 28.4.12; 28.6.14, the term *nobilitas* in 28.1.24, 42 and 28.4.6. *Clarissimus* we find in 28.1.27, *senator* in 28.1.16, 24, 29, 54; 28.4.9, 17.

The rare adv. *multiformiter* is best explained in connection with *quasi in proludiis*, in which phrase the preliminary phases of Maximinus’ ‘witch-hunt’ are compared to military exercises: *cotidiana proludia exercitus* (14.11.3), *proludia disciplinae castrensis* (16.5.10), *proludiisque continuis rei castrensis et armaturae* (23.6.83). Such drills took on many different forms. Maximinus was as yet in training, torturing some people and arresting some others, but the real action was still to begin. Amm. often uses *spectare* with the meaning ‘to examine’; cf. e.g. the notes ad 21.12.20 *exploratus* and 25.5.7 *quodsi*. In the detailed note ad 26.10.5 *unde post* the phrase *sulcatis lateribus* and torture in the context of judicial enquiries in general are dealt with. See for Amm.’s frequent use of *tamquam* + participle the note ad 24.4.11 *tamquam*. In the present context it emphasizes that those who were tortured ascribed the actions in question to the prominent individuals they mentioned. For *artifex* see the note ad 27.9.2 *qui ventura*. Wagner’s wish “Mallem artificii” has rightly not found response: the indispensable ‘experts in harming’ were found

with the help of clients and other people who were lowly placed on the social ladder and in view of their record of offences were ‘the usual suspects’, willing to betray. See for *cliens* the last part of the note ad 27.11.4 *namque fatendum*. Cf. also the note ad 28.4.10 *Ex his quidam*.

supra plantam, ut dicitur, evagatus tartareus cognitor relatione maligna docuit principem non nisi suppliciis acrioribus perniciose facinora scrutari posse vel vindicari, quae Romae perpetrare complures Amm. refers to the saying, which is also well known in modern languages: ‘let the cobbler stick to his last’. Otto, 1890, 97 provides the Latin examples; the fullest version is Plin. *Nat.* 35.84: the famous Greek painter Apelles used to exhibit his paintings in a public place and then remained out of sight to listen to the remarks of passers-by: *feruntque reprehensum a sutore, quod in crepidis una pauciores intus fecisset ansas, eodem postero die superbo emendatione pristinae admonitionis cavillante circa crus, indignatum prospexisse denuntiantem, ne supra crepidam sutor iudicaret*, “and it is said that he was found fault with by a shoemaker because in drawing a subject’s sandals he had represented the loops in them as one too few, and the next day the same critic was so proud of the artist’s correcting the fault indicated by his previous objection that he found fault with the leg, but Apelles indignantly looked out from behind the picture and rebuked him, saying that a shoemaker in his criticism must not go beyond the sandal” (tr. Rackham). Amm.’s version is probably derived from V. Max. 8.12 *ext. 3 de crure etiam disputare incipientem supra plantam ascendere vetuit*. Note, however, that Amm. does not use the verb *ascendere*, but *evagari*: according to him Maximinus went way beyond the limits of his competence at the time to become a ‘public prosecutor’ (cf. TLL III 1487.70 s.v. *cognitor*: “qui in iudicio cognoscit de aliquo”) and a horrible one at that; the adj. *tartareus* is often used by poets and Christian authors. Maximinus shares the dubious honour of being characterized in this way with the notorious Paul the Chain, *tartareus ille delator* (15.6.1; see also 19.12.1, where *tartareus* is a plausible emendation) and Heliodorus, *tartareus ille malorum omnium...fabricator* (29.2.6); Sapor prepared an all-out attack on the Romans, *consilia tartareis manibus miscens*, “Dabei zog er die Geister der Unterwelt zu Rate” (18.4.1, tr. Seyfarth). Maximinus sent a *relatio*, a term which denotes an official dispatch to a higher authority (see De Jonge ad 15.5.13 *imperator* and 16.11.7 *relatione*), to Valentinian, who was occupied in Gaul (27.10.16, 28.2.1). In itself this was probably not beyond his competence, but the damaging character of the report was, and his request for exceptional powers to

investigate (so-called) criminal offences certainly went too far according to Amm. Normally *supplicium* means ‘punishment’, which here tallies with *vindicari*, but not with *scrutari*; the inclusion of ‘torture’ is likely, the more so because the emperor’s rescript in § 11 only refers to an intensification of torture. Amm. uses the verb *scrutari* quite often, usually as a deponens; see, however, *scrutabamus* (15.5.30) and *scrutatis veteribus libris* (15.8.16). As is noted at the end of the note ad 27.11.3 *ita ille*, Amm. uses the vox media *perpetrare* only about wrongdoing. In classical Latin the indicative *perpetravere* would imply that the author presents it as a fact, the subjunctive that Maximinus had reported this. However, in later Latin the indicative is also used in such cases; see Szantyr 547–548.

his ille cognitis efferatus, ut erat vitiorum inimicus acer magisque severus The author returns to the Valentinian of Book 27, chapter 7. See for *efferatus* the note ad 27.12.11 *hoc comperto*. As Brandt, 1999, 175 notes, apart from 28.4.16, where it is satirical, *severus* and *severitas* are always used in a positive sense by Amm. When confronted with offences, Valentinian reacts with impulsive fervour (cf. 30.8.2 *in acerbitem naturae calore propensior*), not with consistent strictness.

1.11

uno proloquio in huiusmodi causas, quas arroganter proposito maiestatis imminutae miscebat As is noted in TLL X 2.1835.38–39, in the present text and 29.1.38 *proloquium*, which denotes an authoritative judgement, is evidently used “de rescripto imperatoris”. Understandably, Heraeus’ *causis* failed to impress the editores; *in* with acc. here means “for the needs or purposes of” (OLD s.v. 22). Valentinian acted ‘highhandedly’ (*arroganter*) in doing away with well founded legal principles with a long tradition. He merged the type of affairs which the author has described in the preceding sections with the intention (*proposito*; see the note ad 20.5.4 *numquam*) of committing lèse majesté; *propositum* often denotes a person’s intention or will, e.g. *voluntas et propositum delinquentis* (Dig. 47.2.54 *prol.*). The *crimen maiestatis* was a mighty tool in the hands of the prosecution, in that it made two things possible, on the one hand the appliance of torture whatever the rank of the accused (see the next note), on the other the demand of the death penalty which “in general ... was rarely inflicted on *honestiores*” (Jones 519; see the note ad 21.12.20 *exustus*). The juridical history of the crime lèse majesté is dealt with extensively in the note ad 21.12.19 *laesae crimina maiestatis*. See now also Avenarius, 2010.

*omnes, quos iuris prisci iustitia divorumque arbitria quaestionibus ex-
mere cruentis, si postulasset negotium, statuit tormentis affligi* As de-
picted here, Valentinian followed in the footsteps of Constantine, *nova-
toris turbatorisque priscarum legum et moris antiquitus recepti* (21.10.8,
q.v.). The measure he took was, in Amm.'s representation, a clear breach of
the principles which had been laid down in the time-honoured laws and
the rescripts of deified emperors. Note that *iustitia* is not a pleonasm. The
author wants to emphasize that the fact that certain classes of people were
not subject to inquisition under torture was not merely a long-standing
juridical practice, but also just (see for torture in general below, the note
ad § 19 *Amantius*). He may have had in mind laws like *Dig.* 50.2.14 about
decuriones (*De decurione damnato non debere quaestionem haberi divus
Pius rescripsit. unde etiam si desierit decurio esse, deinde damnetur, non
esse torquendum in memoriam prioris dignitatis placet*) and *Cod. Iust.*
9.41.11 concerning *viri eminentissimi* and *perfectissimi* and their descen-
dants (*Divo Marco placuit eminentissimorum quidem nec non etiam per-
fectissimorum virorum usque ad pronepotes liberos plebeiorum poenis vel
quaestionibus non subici*). However, Amm.'s reproach is only partly jus-
tified. Valentinian can be criticized justifiably for combining the *crimen
laesae maiestatis* with other affairs (cf. Tac. *Ann.* 3.38.1 about the time
of Tiberius: *addito maiestatis crimine, quod tum omnium accusationum
complementum erat*), but he was by no means the only emperor who stip-
ulated that, when high treason was involved, the *honestiores* were not
exempt from torture. Valentinian's *Cod. Theod.* 9.35.1 does not differ in
this respect from Constantine's *Cod. Theod.* 9.5.1. On 8 July 369 Valen-
tinian wrote to the *praefectus urbi* Olybrius (*Cod. Theod.* 9.35.1): *nullus
omnino ob fidiculas perferendas inconsultis ac nescientibus nobis vel mili-
tiae auctoramento vel generis aut dignitatis defensione nudetur, excepta
tamen maiestatis causa, in qua sola omnibus aequa condicio est* ("No per-
son whosoever, without the consultation and knowledge of the Emperor,
shall be stripped either of his position in the imperial service or of the
defense by his birth and high rank, for the purpose of compelling him to
submit to torture with cords, except in the case of high treason, in which
there is only one and the same status for all", tr. Pharr, adapted). Cf. *Cod.
Theod.* 9.5.1: *si quis alicui maiestatis crimen intenderit, cum in huiusce-
modi re convictus minime quisquam privilegio dignitatis alicuius a stric-
tiore inquisitione defendatur, sciat se quoque tormentis esse subdendum, si
alii manifestis indiciis accusationem suam non potuerit comprobare* ("If
any person should bring the charge of high treason against another, since
a person convicted in a case of this kind is not protected by the privi-

lege of any high rank from a very severe inquisition, the accuser shall know that he also must be subject to torture if he should not be able to prove his accusation by other clear evidence” (tr. Pharr). Moreover, Amm. himself approved of this exception to the rule: *Et inquisitum in haec negotia fortius nemo, qui quidem recte sapiat, reprehendet. nec enim abnuimus salutem legitimi principis, propugnatoris bonorum et defensoris, unde salus quaeritur aliis, consociato studio muniri debere cunctorum; cuius retinendae causa validius, ubi maiestas pulsata defenditur, a quaestionibus vel cruentis nullam Corneliae leges exemere fortunam* (19.12.17). See De Jonge ad loc. and cf. further the note ad 26.10.5 *unde post*. More on this topic below, ad 28.1.24–25.

Amm. uses the official title *divus* in three other passages: 25.10.5 (see the last part of the note ad *sed ad*), 26.10.8 *divo Iuliano* (see the note ad *inclementius* and the long explanation of 25.4.1 *Vir profecto heroicis connumerandus ingeniis*), and 30.10.1 on the burial of Valentinian *inter divorum reliquias*.

utque congeminata potestas erectaque sublatius altiores consarcinaret aerumnas In a note in his bilingual edition Seyfarth interprets the ‘doubled official authority’ as referring to the addition of Leo. He is followed by e.g. Van de Wiel, 1989, 140 and Coşkūn, 2003a, 10 n. 14. It seems far more likely, however, that *congeminata*, like *erecta sublatius*, summarizes the two positions which Maximinus had obtained, viz. *de facto praefectus urbis* during Olybrius’ illness (cf. §9) and of *vicarius urbis Romae* (*agere disposito pro praefectis* with the next note). As far as criminal justice was concerned, Valentinian’s order to torture aristocratic suspects, when this was needed, ‘elevated’ his power even more. In order to ensure that this would create a bigger patchwork of afflictions Valentinian took a further measure. As is noted ad 22.9.11 *chlamydem*, Amm. uses *consarcinare* mainly in negative contexts, e.g. 14.5.6 *crimina scilicet multa consarcinando a veritate longe discreta*, 16.8.4 *consarcinatis mendaciis*.

1.12

Maximino Romae agere disposito pro praefectis sociavit ad haec cognoscenda, quae in multorum pericula struebantur, Leonem notarium, postea officiorum magistrum While Maximinus up till now had conducted his criminal investigations merely by the grace of the urban prefect’s indisposition, since he himself was as *praefectus annonae* only a minor official, now, as *vicarius urbis Romae*, he obtained a post which gave him independent authority (cf. *cum ampla dignitate* in §13). In 28.1.5 (q.v.) Amm. had already mentioned Maximinus’ vicariate. Cf. for this

syntactical use of *disponere*, ‘to order’, 25.6.14 *quos loca servare dispositos*, 26.6.12 *Divitenses...inter alios celerare dispositos*. See for *sociare* with dat. Kühner-Stegmann 1.317–318; other examples in Amm. are 21.12.1 (*hanc civitatem*) *sibi sociare...properabat*, 23.3.5 (*ut*) *regi sociarentur Arsaci*. The translators assume that *quae in multorum pericula struebantur* denotes the dangerous plans which were devised (viz. by Maximinus and Leo) to imperil many people, but the sinister pair is ordered to investigate *haec*, which is the antecedent of the relative clause. It seems far more likely that this clause expresses Valentinian’s words. The appointment of the *notarius* Leo (PLRE I, Leo 1 + S. Roda in *Historia* 29 [1980] 100), a former *numerarius* (26.1.6, q.v.) as *magister officiorum* is mentioned in 30.2.10. See for the functions of *notarius* and *magister officiorum* the notes ad 20.4.2 *Decentium* and 20.2.2 *Florentium*, respectively. Amm. displays his aversion to the man in 26.1.6 by calling him *exitialis* and in 30.5.10 by saying that in comparison with him even such a nasty character as Petronius Probus would have been praised to the skies.

bustuarium quendam latronem Pannonium efflantem ferino rictu crudelitatem, etiam ipsum nihilo minus humani sanguinis avidissimum
Whereas Maximinus was compared to snakes (§ 7) and wild beasts (§ 10), his companion proved to be a truly bloodthirsty wild beast: Leo was indeed a lion. In an almost Shakespearean compact sequence of pitch-black words and phrases Amm. puts Maximinus’ accomplice on the stage. Originally a *bustuarius* was a gladiator who fought at funeral ceremonies, e.g. Cic. Pis. 19 *cum illo bustuario gladiatore* (= Clodius). In a note on the present text Valesius suggests: “*bustuarius latro* is est, qui a Graecis τυμβωρύχος dicitur, id est sepulcrorum effossor”, but the *Glossaria* do not support this suggestion, preferring νεκροκαύστης, *qui corpora comburit humana*. The word *bustuarius* occurs also in 29.2.15, where it is used to characterize the astrologer Heliodorus. A Pannonian descent bodes ill (cf. the note ad 26.1.4 *qui cum*); the one exception is explicitly mentioned: *Viventius, integer et prudens Pannonius* (27.3.11). The lion breathed cruelty from his gaping jaws: this is a very rare case of *efflare* in a transferred sense; *rictus* is a mainly poetical word. The entire bloodthirsty sketch is a variation of the characterization of Rusticus Iulianus: *quasi afflatu quodam furoris bestiarum more humani sanguinis avidus* (27.6.1, q.v.). Usually *nihilo minus* occurs in concessive contexts, with the meaning ‘nevertheless’; this would obviously not fit the present text, where it means ‘like Maximinus’.

auxit obstinatum Maximini ingenium ad laedendum adventus collegae similis et litterarum cum ampla dignitate dulcedo Maximinus' inclination to harm others is treated above in the note ad §10 *accepta igitur nocendi materia*. "Literae sunt codicilli Vicariae praefecturae, quos Valentinianus Maximino Praefecto annonae miserat" (Valesius ad loc.). The more technical term *codicilli*, a hapax in Amm., is used in 25.8.9 *oblatis magisterii equitum et peditum codicillis* (q.v.). See for *dignitas*, 'rank' or 'high position' the notes ad 20.4.20 *qui ordo*, 20.5.8 *dignitatum*, 21.16.1 *erga tribuendas*. Valentinian's letter of appointment, no doubt brought along to his new station in Rome by the court official Leo, shares its sweet charm (*dulcedo*) with *liberalium studiorum* (18.6.20), *patriae* (20.4.16), *odoris* (24.3.13), *aurae purioris* (27.4.14). The Persian king had, of course, another predilection: *dulcedini rapinarum addictus* (27.12.1).

ideoque pedes huc et illuc exsultando contorquens saltare, non incedere videbatur, dum studebat inter altaria celsius gradientes, ut quidam memorant, imitari Brachmanas The ancients were quite interested in people's gait. Catiline's irregular step springs readily to mind: *citus modo, modo tardus incessus* (Sal. Cat. 15.5; Hor. S. 1.3.9–11 satirizes a similar lack of consistence). About the young son of Caesar and Cleopatra *nonnulli Graecorum similem quoque Caesari et forma et incessu tradiderunt* (Suet. Jul. 52.2). Tiberius *incedebat cervice rigida et obstipa* (Suet. Tib. 68.3). Amm. mentions how the Antiochenes made fun of Julian's macho-like swagger: *grandiaque incedens* (22.14.3, q.v.), in Jovian's brief necrology attention is paid to his heavy step: *Incedebat autem motu corporis gravi* (25.10.14, q.v.). Cic. Off. 1.131 provides some advice; see Dyck ad loc. The way in which people walk received serious attention in physiognomic studies: ch. 50 of Polemon's treatise is called *De incessus et motus signo*; ch. 74 of an anonymus' *De physiognomonica* distinguishes between natural movement and three types of studied movement. Although these passages contain some elements which approach Maximinus' ballet dancer performance, this was obviously a unique case: as Amm. says, it was not *incedere*, but *saltare*. The man did his best to imitate the Brahmins' levitation. See for the Brahmins the note ad 23.6.33 *cuius tranquillis*. Cf. further Parker, 2008, 272 sqq. Their levitation is briefly referred to in Philostr. VA 3.15.1, where Apollonius' companion Damis reports μετεωροπορῶντας δὲ ἰδεῖν ἀπὸ τῆς γῆς ἐς πῆχεις δύο. Amm.'s reference to it is the only testimony in the Latin literature of antiquity which is registered in the survey of André-Filliozat, 1980. This

raises the question from which source Amm. had acquired his information about the Brahman's levitation. It may well have been Philostratus' biography. This work was used around 300 by Sossianus Hierocles in his now lost anti-Christian *Philalethes*, in which Apollonius was favourably compared to Christ. Eusebius replied to this polemical treatise with his *Contra Hieroclem*. From a phrase in 19.1 it appears that Hierocles had referred to Philostratus' VA 3.15.1. Various bits of evidence show that in the last quarter of the fourth century the 'Philostratean' Apollonius was still present in educated circles. A remarkable example is Hier. *epist.* 53.1 (after a brief summary of Apollonius' Asian travels) *ad extremum pervenit ad Bragmanas*. In HA A 24 some very respectful phrases are devoted to him. Amm. himself mentions Apollonius in 21.14.5 (q.v.) and 23.6.19 (q.v.). See especially the note ad 21.14.5 *Tyaneus Apollonius*. Even more important is the information provided by the erudite 5th century bishop of Clermont Ferrand, Sidonius Apollinaris, at the beginning of his *Letter* 8.3: (Philostratus' biography), *non ut Nicomachus senior e Philostrati sed ut Tascius Victorianus e Nicomachi schedio exscripsit...misi*. See on the meaning of this phrase Paschoud on p. 142–143 of his edition with commentary of HA A, who concludes "que Nicomaque Flavien se soit occupé, d'une manière ou d'une autre, de la biographie de Philostrate". This implies that during Amm.'s Roman days this biography was still current. See for this Dzielska, 1986, 153–183. From this evidence one may conclude that Amm.'s information about the Brahman's and their levitation probably derived directly or indirectly from Philostratus' VA.

Maximinus was not the only person on the streets of Rome, whose gait must have caused amazement. Some well groomed clergymen, *ne plantas umidior via spargat, vix imprimunt summa vestigia. Tales cum videris, sponso magis aestimato quam clericos* (Hier. *epist.* 22.28). It is one of the cases in which a certain like-minded satirical streak in Jerome and Ammianus Marcellinus can be descried; see the index in Wiesen, 1964, s.v. Ammianus Marcellinus and Den Hengst, 2007, 176–177.

- 1.14–42** Brief sketches of a number of lawsuits which ended in severe punishments of the (aristocratic) defendants lead up to the first phase of the attack on the high-born Aginatus. These sketches are, as the author notes in §36, only examples of what was going on in the eternal city, where despondency and despair had taken hold of all and sundry. Justice had entirely disappeared. Finally both Leo and Maximinus were promoted to higher posts.

Iamque lituis cladum concrepantibus internarum rerum atrocitate torpentibus cunctis Cf. 14.7.21 *Iamque lituis cladum concrepantibus internarum*, 16.8.11 *inflabant...malorum civilium bucinas*, 19.12.1 *ad vicem bel-lorum civilium inflabant litui quaedam colorata laesae crimina maiestatis* (see for the precise interpretation the note ad loc.), 29.1.14 *internarum cladum litui iam sonabant*. As in the present text, the war trumpets (see for *lituus* the note ad 23.5.15 *signo*) sound at the beginning of what, according to Amm., was ‘civil war’: a series of trials in which Roman aristocrats were involved. In view of the quoted parallel texts *internarum* belongs to *cladum*, not *rerum*. In the long section on the gen. plur. of third declension nouns in Neue-Wagener I 394–429 forms like *apum*, *caedum*, *cladum*, *mensum* are registered; Silius Italicus always has *cladum*; besides the present text Seyfarth prints *cladum* in four other cases; only in 20.1.1 his text has *cladium*. Whereas at the beginning of a normal war one may witness activities on all sides, here all and sundry were paralysed by the horrible situation.

praeter multa cruda et immitia, quorum nec diversitas comprehendi nec numerus potest, mors Marini causarum defensoris eminuit As e.g. in 16.12.24 *utilis praeter ceteros ductor*, 23.6.68 *praeter alios frugalissimi*, *praeter* here means ‘surpassing’, as is noted in TLL X 2.996.49; cf. also *Cod. Theod.* 6.6.1 *praeter ceteros eminere*. Sabbah 396–397 draws attention to other cases in which *eminuit* in a conspicuous position emphasizes “l’utilisation intensive du fait exemplaire, du personnage représentatif”. Remarkably, the pair *cruda et immitia* does not figure in the long list of such combinations of synonymous adjectives in Hagedahl, 1924, 173–183. Cf. 22.15.25 on Egyptian birds: *quarum varietas nullo comprehendi numero potest* (q.v.). The other instances of *defensor causarum*, ‘lawyer’, in the *Res Gestae* are 22.10.4, 25.9.4 (see the note on Silvanus), 29.3.6. In 30.4.2 and 30.4.19 we find the synonym *advocatus*; in 30.4.22 Amm. speaks of *causidicina*. See in general for lawyers in the Later Empire Jones 507–516, Wieling, 1996 and particularly Humfress, 2007, 93–132, for Amm.’s excursus on them in 30.4 Matthews, 1992. For Frakes’ suggestion that Marinus (*PLRE* I, Marinus 3) was not a lawyer, but a “hidden *defensor civitatis*” (1992, 529 and 2001, 121–122) there is no sufficient evidence. Amm. does not give a reason as to why he explicitly mentions that Marinus was a lawyer. Perhaps it is meant to be ominous: even a person with juridical expertise was helpless against the witchhunt launched by a man who himself had been an advocate before embarking on an administrative

career (28.1.6 *post mediocre studium liberalium doctrinarum defensionemque causarum ignobilem*).

quem ut ausum Hispanillae cuiusdam artibus pravis affectasse coniugium transeunter indiciorum fide discussa supplicio letali damnavit Apparently Marinus was not offered the opportunity to prove his innocence as Apuleius had done in a similar trial two centuries before: the reliability of the evidence was only examined *transeunter*, ‘cursorily’. The procedure chosen by Maximinus therefore contravened the rule imposed by Constantine (*Cod. Theod.* 9.40.1) that “if any person is about to pronounce sentence, he shall maintain such moderation that he shall not pronounce a capital sentence or a severe sentence against any person until such person has been convicted of the crime of adultery, homicide, or magic, either by his own confession, or at any rate by the testimony of all witnesses who have been subjected to torture or to questioning” (*qui sententiam laturus est, temperamentum hoc teneat, ut non prius capitalem in quempiam promat severamque sententiam, quam in adulterii vel homicidii vel maleficii crimine aut sua confessione aut certe omnium, qui tormentis vel interrogationibus fuerint dediti...convictus sit*, tr. Pharr). About Hispanilla (not mentioned in *PLRE* I) nothing further is known. In itself the crime Marinus was accused of was punishable according to *Cod. Theod.* 9.16.3, a law of Constantine: *eorum est scientia punienda et severissimis merito legibus vindicanda, qui magicis accincti artibus...pudicos ad libidinem deflexisse animos deteguntur*. See for *ausus* with inf. perf. Kühner-Stegmann 1.133–134 and Szantyr 351–352. Amm.’s two other cases are 14.5.6 *ausos conspirasse Magnentio* and 27.2.9 *ausum hoc...fecisse*. As is noted on p. 169 of the commentary on Book 23, Amm. never refers to magical practices with the words *magus* and *magicus*, which do occur in official laws, but inter alia with *artes pravae*. See for *discutere* as a juridical t.t. TLL V 1.1374.60sq., Heumann-Seckel s.v. 3.

Although the subject of *damnavit* is not mentioned, there cannot be any doubt that it is Maximinus, who is so to speak the prime mover of the entire chain of events. It was apparently Maximinus’ high-handed condemnation of Marinus without a proper trial which roused Amm.’s indignation in the first place. But perhaps the severity of the punishment also played a role. Magic arts, it is true, should be punished severely according to Paul. *sent.* 5.23.17 (*magicae artis conscios summo supplicio adfici placuit, id est bestiis obici aut cruci suffigi. Ipsi autem magi vivi exuruntur*), but a difference should be made between *honestiores* and *humiliores*: *libros magicae artis apud se neminem habere licet: et penes*

quoscumque reperti sint, bonis ademptis, ambustis his publice, in insulam deportantur, humiliores capite puniuntur (Paul. sent. 5.23.18). The fact that Marinus was a *defensor causarum* ought to have safeguarded him against capital punishment.

et quoniam existimo forsitan aliquos haec lecturos exquisite scrutando notare strepentes id actum esse prius, non illud, aut ea, quae viderint, praetermissa 1.15
Amm.'s professional confidence, which seemed to have vanished in § 1–4 of this chapter, has returned. As in 26.1.1–2, he foresees critical remarks from some of his readers, and lectures them in advance on what true historiography is about. The readers might, on the basis of meticulous research (*exquisite scrutando*), protest against chronological errors or omissions. See for *strepere* denoting noisy protests the note ad 26.1.1 *strepentes*.

hactenus faciendum est satis, quod non omnia narratu sunt digna, quae per squalidas transiere personas, nec, si fieri fuisset necesse, instructiones vel ex ipsis tabulariis suppeterent publicis In 14.10.4, Amm.'s only other instance of *satis* in combination with *facere*, editors print *satisfaceret* as one word, which is usual, but not an iron rule. Note that Amm. leaves the chronological aspect entirely aside and only deals with the contested omissions. These are not worth mentioning, and even if they were, the archives are incomplete. Two words are puzzling: firstly *squalidas*. If this has its usual meaning ('dirty', 'filthy'), it is a very humiliating characterization of lower class people. The only other possibility is that Amm. uses it as a self-invented synonym of *sordidus*, which, contrary to *squalidus*, is used quite regularly to denote the lower classes: *homini egenti, sordido, sine honore* (Cic. Flac. 52), *loco non humili solum sed etiam sordido ortus. Patrem lanium fuisse ferunt, ipsum institorem mercis* (Liv. 22.25.18), *sordidae originis* (Tac. Ann. 4.21.3). The second word which is difficult to explain is *transiere*: the unimportant events 'passed through' (?) the lower class people, as if they were inactive themselves. Another enigmatic instance occurs in 27.6.7 *transire...per conscientiam vestram* (see the note ad *id reputantes*). The present text is closer to Sen. Ep. 54.2 *omnia corporis aut incommoda aut pericula per me transierunt*. The definition of *instructio* in Heumann-Seckel is "Unterstützung einer Rechtssache mit den nötigen Beweismitteln". For the present text the addition in TLL V 1.2008.11–12 is relevant: "fere metonymice de ipsis documentis". The official archives are referred to in 16.12.70 *extant denique eius principis dicta in tabulariis publicis condita* and implied in 20.8.18. See the various

notes ad loc. and for Amm.'s use of archives Sabbah 136–137, 213–217, with the remarks of A. Marcone in *ASNP* 11 (1981) 1293–1301. Cf. for archives in the ancient world in general Posner, 1972, for Roman archives e.g. Sachers, 1932; Cencetti, 1953; Gros, 2001 and Moatti, 2003.

tot calentibus malis et novo furore sine retinaculis imis summa miscente, cum iustitium esse, quod timebatur, non iudicium aperte constaret

According to TLL III 149.21–23 *calere* is here a synonym of *vigere* or *florere*; cf. Hamilton's rendering "Too great a mass of mischief was on the boil". Amm.'s *novo*, 'unheard of', seems to betray that he has forgotten his own characterization of Paulus Catena at the start of the trials in Scythopolis: *funesti furoris et anhelitus plenus* (19.12.7). As is noted ad 25.1.13 *ut retinaculis*, the word *retinaculum* is here used in a figurative way, to denote some form of restraint. Otto, 1890, 335 provides a few examples of phrases which play with the opposition *imus*—*summus*; see also the various additions in Häußler, 1968. Otto's oldest example is a brief fragment of the satirist Lucilius: *Cum summa omnia fecerim ima*, but here *ima* is a conjectural addition, which is not accepted, indeed, not even mentioned, in the editions of Marx (712–714), Krenkel (697–699), Charpin (XXVII 5), understandably, because, in fact, Lucilius uses a different phrase, as is evident from Cic. *Att.* 15.13a.1 *omnia summa fecisse*, 'he has done his utmost possible' (tr. Shackleton Bailey). Some other examples of *imus*–*summus*: Hor. *Carm.* 1.34.12–13 *valet ima summis/mutare et insignem attenuat deus*, Ov. *Met.* 7.278 *summisque immiscuit ima*, Vell. 2.2.3 *summa imis miscuit*, Tac. *Hist.* 4.47 *magna documenta instabilis fortunae summaque et ima miscentis*, Aur. *Vict. Caes.* 33.4 *parvis maxima ima summis orbe toto miscebantur*. The nearest parallel to the present text is *crudelis summis miscuit ima furor* (Rut. *Nam.* 2.44). The topsy-turvy phrase can be used for different situations; in the present text it denotes the revolutionary disruption of a society in which normal court procedures in keeping with the intentions of the legal system had come to a halt (*iustitium*). It was as plain as a pikestaff that this was what people feared, not a trial (*iudicium*) as such.

- 1.16** *Tunc Cethegus senator adulterii reus delatus cervice perit abscisa et Alypius nobilis adolescens ob levem relegatus errorem alique humiles publica morte oppetiverunt* Admittedly, "the precise reference of the introductory *tunc* is unclear" (Barnes 244), but since in §12 Maximinus' function of *vicarius urbis* was referred to (*Maximino Romae agere disposito pro praefectis*), it would seem that the Cethegus affair at any rate took

place during Maximinus' vicariate in 370–372/373 (cf. for the date the note ad 28.1.5 *Maximinus*) and not while he still was *praefectus annonae* (cf. 28.1.6). Funke's description of Maximinus' career ("ein ehemaliger Stadtpräfekt, später *praefectus annonae*", 1967, 171) is totally wrong. Cethegus (*PLRE* I, Cethegus) was not the only *senator* who was executed during Maximinus' regime: *Paphius quin etiam et Cornelius senatores ambo venenorum artibus pravis se polluisse confessi eodem pronuntiante Maximino sunt interfecti* (28.1.29). In 28.1.27 we hear of *clarissimi* who were brought to trial, but these were acquitted.

Since the cognomen *Cethegus* was rather common in the *gens Cornelia* (see for the Republic e.g. Broughton, 1951, 197–198, 305, 444 and for the Principate e.g. *PIR*² C 1336, G 98, G 99), Lizzi Testa's suggestion (2004, 276) that the senator of the present text belonged to this family, like the Cornelius of 28.1.29, may well be right. It is generally thought that Ammianus' Cethegus should be identified with the Cethegus of *CIL* 6.1709 (= 6.31907) who was the father of Furius Maecius Gracchus (*Cethego v.c. patri F. Maechius Gracchus v.c.*). The latter, *PLRE* I, Gracchus 3, had been *corrector Flaminiae et Picensis* according to *ILS* 5717 and must have held this function before 350/352, when the province was under a *consularis*. Did this Gracchus later, in 376–377, become *praefectus urbi* and is he therefore identical with *PLRE* I, Gracchus 1? So e.g. Chastagnol, 1962, 199 and Seyfarth, 1986³, 325 n. 18. Lizzi Testa, 2004, 277, however, rejects this identification on chronological grounds ("25 anni fra un governatorato provinciale e la prefettura urbana sembra un periodo eccessivamente lungo") and also has doubts about the identification of the Cethegus of *CIL* 6.1709 with the senator mentioned by Amm.: "Quest'ultimo (i.e. *PLRE* I, Gracchus 1) potrebbe piuttosto essere il figlio del *corrector Flaminiae et Picensis*, mentre il Cethegus accusato di adulterio verso il 370 sarà stato suo fratello, chiamato col cognome del nonno". In other words, Ammianus' Cethegus was, according to Lizzi Testa's attractive suggestion, the grandson of the man known from *CIL* 6.1709.

Among the numerous indictments in this chapter the one for adultery returns in § 28, 44 and 45. ("Avant ce chapitre, l'adultère n'est guère présent dans les *Res gestae*", Sabbah, 1994, 326). All these cases were brought before the *vicarius urbis*. In the present text and in § 28 this is Maximinus, in 28.1.44 Ursicinus and in 28.1.45 Simplicius. This seems to have been normal practice in the second half of the fourth century, while in the first half the *praefectus urbi* presided over adultery trials (Chastagnol, 1960, 89–91). Still earlier there was the permanent *quaestio de adulteriis* (see for the disappearance of this court after the Severan period Bauman,

1968). Cethegus, Claritas and Flaviana (§ 28) as well as Esaias and Rufina cum suis (§ 44–45) were all put to death. Before the time of Constantine *relegatio in insulam* and *publicatio bonorum* had been the penalty for adultery (*Adulterii convictas mulieres dimidia parte dotis et tertia parte bonorum ac relegatione in insulam placuit coerceri; adulteris vero viris pari in insulam relegatione dimidiam bonorum partem auferri, dummodo in diversas insulas relegentur*, Paul. sent. 2.26.14), but this seems to have changed under Constantine in 326: *Sacrilegos autem nuptiarum gladio puniri oportet* (*Cod. Iust.* 9.9.29 [30]). However, the words just cited from the *Codex Iustinianus* do not occur in the *Codex Theodosianus* (9.7.2) and are therefore probably a Justinianic interpolation (cf. e.g. Beaucamp, 1990, 166–168). Nevertheless, “although he did not explicitly call for the death penalty in his law of 326 (unlike the interpolated version found in the *Codex Iustinianus*) Constantine may still have considered it appropriate” (Evans Grubbs, 1995, 218). Cf. *Cod. Theod.* 9.40.1 and see in general Fayer, 2005, 337–373 (with extensive references to further literature on the subject). In 339 *Cod. Theod.* 11.36.4 decreed an even harsher penalty for adulterers: (cum) *sacrilegos nuptiarum tamquam manifestos parricidas insuere culleo vivos vel exurere iudicantem oporteat* (“the judge must sew up alive in a leather sack or burn the sacrilegious violators of marriage as though they were manifest parricides”, tr. Pharr, slightly adapted), but, as e.g. Arjava, 1996, 196 and Krause, 2009, 339 note, it is questionable whether this penalty was ever carried out.

TLL V 1.317.5–15 registers a number of instances of the phrase *reum deferre*; Amm.’s other instances are 16.8.2 (q.v.), 18.6.6, 21.16.9, 27.7.1, 28.1.44. Other explicit cases of decapitation in the *Res Gestae* are 14.11.23 (Gallus), 26.3.3 (the charioteer Hilarinus, condemned for magical practices), 26.9.9 (Procopius).

As to Alypius, *ILS* 1270 gives the text of an inscription dedicated to one Q. Clodius Hermogenianus Olybrius by his brother Faltonius Probus Alypius (Q. *Clodio Hermogeniano Olybrio v.c., fratri admirandae pietatis, Faltonius Probus Alypius v.c.*). These men are commonly (cf. e.g. *PLRE* I, Olybrius 3, Alypius 13 and Chastagnol, 1962, 183–184, 236–237) identified with the *praefectus urbi* of 28.1.8 and 28.4.1–2, and the young aristocrat of the present text. This seems plausible (but see Lizzi Testa, 2004, 257, who suggests that Ammianus’ Alypius is “forse più probabilmente un figlio di Olibrio o di suo fratello Faltonius Probus Alypius, ovvero figlio di una loro possibile sorella”). It is remarkable that Amm. does not say that Alypius was related to Olybrius, who, had he not been ill (28.1.8), would have been the judge in Alypius’ case. See for

nobilis the note ad 28.1.10 *cumque multiformiter*. Alypius was exiled for an *error* which Amm. does not specify (pace Lizzi Testa, 2004, 257: “fu esiliato per magia o adulterio”). His career was not seriously impaired by his condemnation, if, indeed, he is identical with *PLRE* I, Alypius 13. See for the alleged ‘grecizing’ use of *alius* in *alique humiles*, ‘other people, viz. of low birth’, the note ad 27.7.5 *Eminuit*. Amm. relates neither names nor details of these *humiles*, in conformity with his pronouncement in 28.1.15 *non omnia narratu sunt digna, quae per squalidas transiere personas*. There are, however, exceptions to this rule, for the *organarius* Sericus, the *palaestrita* Asbolius and the *haruspex* Campensis, mentioned in 28.1.8 and 28.1.29, no doubt were *humiles* too. The only other example in the *Res Gestae* of the phrase *publica morte* is 22.11.2. Cf. for this expression further Firm. *math.* 3.9.6, 4.14.9 and 4.15.4. Some other late antique texts about public executions, which apparently served as deterrents, are cited by Krause, 2009, 329, inter alia *Cod. Theod.* 9.7.6 (*huiusmodi scelus spectante populo flammis vindicibus expiabunt*), Lact. *mort. pers.* 40.4–5, Chrys. *stat.* 3.6 (PG 49.56), Malalas *Chron.* 13.339–340.

in quorum miseriis velut sui quisque discriminis cernens imaginem tormentum et vincula somniabat et diversoria tenebrarum Cf. *in unius exitio quisque imaginem periculi sui considerans documento recenti similia formidabat* (14.7.6). The present text is also reminiscent of Lucretius 4.757–759: *nec ratione alia, cum somnus membra profudit, / mens animi vigilat, nisi quod simulacra lacesunt / haec eadem nostros animos quae cum vigilamus*, “and when sleep has relaxed the limbs, the understanding of the mind is awake in the same way, except that these same idols, which stir our minds when we are awake, stir them then” (tr. Bailey). The difference is, of course, that Lucretius explains the perception in dreams in a typically Epicurean manner, whereas in the present text the fearsome plight of the victims of injustice returned in other people’s dreams as their own experience. Amm. has not overloaded his narrative with dreams. Not counting daydreams, like 22.12.2, where Julian *impatiens otii lituos somniabat et proelia*, there are only fifteen cases in the whole of the *Res Gestae*; see Den Boeft, 2006. See for *diversoria* the note ad 24.6.3 *diversorium*. In classical Latin it is more often spelled *deversorium*. In a general sense the word denotes a place where one stays temporarily; *diversoria tenebrarum* denotes the proverbial, and indeed factual, darkness in ancient prisons. Two well known passages can serve to illustrate this, Salust’s brief description of the *Tullianum* in Rome: *incultu, tenebris, odore foeda atque terribilis eius facies est* (Sal. *Cat.* 55.4), and Perpetua’s first

ever experience in prison: *et expavi, quia numquam experta eram tales tenebras* (Perp. 3.5). See for imprisonment in the Roman Empire the note ad 26.7.4 *ne quid*, where Krause, 1996 and Chauvot, 2004 are cited (cf. also Neri, 1998, 419–496), and for *tortor* ad 26.10.13 *innocentes*.

- 1.17 *Eodem tempore etiam Hymetii praeclarae indolis viri negotium est actitatum, cuius hunc fuisse novimus textum* The words *eodem tempore* presumably refer to the time of Maximinus' vicariate, i.e. 370–372/373, just as *tunc* in § 16. In the present text this supposition is the more plausible because Maximinus collaborated with Olybrius' successor as *praefectus urbi* Ampelius (§ 22, q.v.), who was in office in 371–372. What kind of *negotium* Iulius Festus Hymetius (PLRE I, Hymetius; the full name in ILS 1256) was confronted with, becomes clear in § 19–20 (q.v.), but Amm. first relates in § 17–18 the reason why Hymetius already had got into trouble before, that is, during his proconsulate in Africa (see the next note). The contents of this and the next section were analyzed in detail by De Jonge, 1948. See PLRE I, Hymetius for his career. The phrase *praeclara indoles* is highly laudatory: of its four other instances in the *Res Gestae* two concern Julian (15.8.10, 16.1.5), one Praetextatus (22.7.6, q.v.). Cf. for *negotium* referring to “legal proceedings” (OLD s.v. 9) *qui spectabant negotium* (18.5.1), *exploratus spectato negotio* (21.12.20, q.v.), *non explorato negotio* (27.11.4); it occurs regularly in the present chapter. Blomgren 172–173 contains a long list of *verba frequentativa* which only occur in the *Res Gestae*. The verb *actitare* does not belong to this category. In fact, it already occurs in Cic. *Brut.* 246 *multas privatas causas actitavit*. There are more examples of *actitare* in a juridical context, e.g. Mart. 1.17.1 *cogit me Titus actitare causas*, Suet. *Gal.* 3.3 *causas industrie actitavit*. See also Heumann-Seckel s.v. Three of Amm.'s five examples, 14.9.8, 28.1.47 and the present text, also belong to this category.

In speaking about his work as a historiographer, Amm. often uses verbal forms in the first person plural, e.g. *diximus*, *praediximus*, *docuimus*, and frequently *rettulimus*. This occurs less often in references to the information which he has gathered, e.g. *legimus* in a number of cases and three times *novimus*; the other two instances are 19.4.6 and 30.1.1. In the present case he may want to emphasize his familiarity with the rather complicated affair. As in § 2 of this chapter, *textus* means ‘train of events’.

cum Africam pro consule regeret, Carthaginiensibus victus inopia iam lassatis ex horreis Romano populo destinatis frumentum dedit pauloque postea, cum provenisset segetum copia, integre sine ulla restituit mora

Amm.'s two other instances of *pro consule* (14.8.4, 27.4.10) both refer to the Roman Republic. Its use in imperial times is rare, but it does occur, for instance on *ILS* 768, an inscription set up by Amm.'s Hymetius himself: *Iulius Festus v(ir) c(larissimus) pro consule p(rovinciae) A(fricae)*. Hymetius' proconsulate, attested by eight inscriptions, lasted from April 366 to April 368 (Barnes, 1985, 150; cf. 273) and not from 371 to 372, as De Jonge, 1948, 76 thought.

Africa, one of the three proconsular provinces in the Later Empire (cf. the note ad 27.6.1 *quasi*), was the most important source of grain for the city of Rome (cf. e.g. Rickman, 1980, 198–209, 231–235; Jaïdi, 1990), but of course the inhabitants of the province and of its capital Carthage in particular had to be fed as well. It was one of the tasks of the *proconsul Africae* to see to it that the so-called *frumentum Carthaginiense* (*Cod. Theod.* 14.25 rubr.), that is the collection and distribution of corn to the people of Carthage, was well organised (*Cod. Theod.* 14.25.1, cf. Lepelley, 1981, 29–31). When Hymetius during his proconsulate was confronted with a scarcity of corn in Carthage (*victus inopia*), he took measures which cost him the sympathy of Valentinian, as Amm. makes clear in §18, but which were greatly appreciated by the provincials, who after Valentinian's death thanked him by setting up two statues of gold, one in Carthage and one in Rome, inter alia *ob depulsam ab eadem provincia famis et inopiae vastitatem* (*ILS* 1256).

The collection in Africa of the corn destined to be shipped to Rome, the so-called *canon frumentarius* (*Cod. Theod.* 14.15 rubr., cf. HA S 8.5, 23.2), was the task of the *praefectus annonae Africae*, who was, according to *Not. Dign. Occ.* 2.41, the subordinate of the praetorian prefect of Italy, Illyricum and Africa. His function is attested as early as the reign of Constantine (*Cod. Theod.* 11.30.4, cf. 13.5.2 and 13.5.3). Another official in Africa who was concerned with the corn supply of Rome was, as is evident inter alia from *Cod. Theod.* 11.1.13, the *vicarius Africae*—during (part of) Hymetius' proconsulate Antonius Dracontius (*PLRE* I, Dracontius 3) held this post (*ILS* 763). As De Jonge, 1948, 74–78 points out, Hymetius must have obtained the cooperation of these officials when he took from the storehouses the supplies intended for the Roman population and sold them to the Carthaginians. However, if a justification of his measure would have been needed, he could have pointed to a law of Constantine, which stipulated that in the utmost necessity “the proconsuls and governors and the fiscal representatives throughout all Africa shall bestow freely the necessary support on all persons whom they observe to be placed in dire need, and from the State storehouses shall immediately

assign adequate sustenance" (*ut proconsules praesidesque et rationales per universam Africam [habeant potestatem et] universis, quos adverterint in egestate miserabili constitutos, stipem necessariam largiantur atque ex horreis substantiam protinus tribuant competentem, Cod. Theod. 11.27.2, tr. Pharr*).

Horrea were storehouses, especially for grain (TLL VI.3 2985.9 sqq.). Some were private and belonged, for instance, to a landowner (e.g. Var. *rust. 1.11.1*), others were public (CIL 8.25895 *horreum publicum, Cod. Theod. 11.14 rubr. De conditis in publicis horreis*), built by cities (AE 1911.106: *res p(ublica) Cuiculitanorum horrea extruxit*), provincial governors (ILS 5910 *horrea ad securitatem populi Romani pariter ac provincialium constructa*), emperors (CIL 8.8836 *horrea in Tubuscutitana <civitate fieri> praeceperunt* sc. the Tetrarchs). In 18.2.3 Amm. speaks of the restoration by Julian of *horrea* in cities in Gaul which had been burnt: *ut...civitates multo ante excisas ac vacuas introiret receptasque communiret, horrea quin etiam exstrueret pro incensis, ubi condi possit annona a Britanniis sueta transferri*. The best known of course are the *horrea* of Rome and Ostia, to which Amm. refers in 19.10.4. Cf. in general Oberhummer, 1913; Rickman, 1971; Tengström, 1974; Jouffroy, 1986. For the *horrea* in Carthage Amm. is our only explicit source, but these granaries are probably identical to those which are called *horrea fiscalia* in *Cod. Theod. 12.6.16* addressed to Chilo in Africa in 375 (cf. for him the note ad 28.1.8): *non autem oportet in horreis fiscalibus nisi fiscalia frumenta constitui*. Cf. further for *horrea fiscalia Cod. Theod. 7.4.16, 15.1.12, 15.10.1, Paul. Nol. epist. 49.1, Salv. gub. 6.68*. For the meaning of *fiscalis* "i.q. ad fiscum pertinens" (TLL VI.1 821.23) and *fiscus* see Delmaire, 1989, 11: "*fiscus* = ensemble de la fiscalité impériale par opposition aux finances des cités ou du sénat".

Instead of V's *dedit* Clark prints *venundedit* in order to create a *cur-sus tardus*; this was accepted by Rolfe and by Seyfarth in his bilingual edition, but not by Marié and Viansino. The addition is obviously inspired by *venumdatis* in the next section and can be easily explained as a case of haplography, but whether it is necessary with regard to the content is questionable: one could interpret *dedit* as 'he placed at the inhabitants' disposal'. Remarkably, this is Amm.'s only instance of the verb *provenire*, which is here correctly used as a t.t., as appears from TLL X 2.2310.21–38; cf. e.g. *quod eo anno frumentum in Gallia propter siccitates angustius provenerat* (Caes. *Gal. 5.24.1*), (*segetes*) *siccis ac pinguibus campis melius...proveniunt quam praecipitibus locis* (Colum. 1.2.4). Cf. also *proventibus fructuariis victitantes* (22.8.32). As

to *integre* translators are like-minded in their rendering: “completely” (Rolfe), “vollauf” (Seyfarth), “in full” (Hamilton), “tout ce blé” (Marié), “totalmente” (Caltabiano), “in uguale misura” (Viansino). They obviously agree with TLL VII 1.2083.17–18, where the present text figures in a list of cases in which *integre* “pertinet ad ipsum obiectum aut subiectum”. However, the adverb *integre* may well characterize Hymetius’ probity: he acted “irreproachably, honestly” (OLD s.v.); cf. the note ad 26.2.7 *quem ab* and cf. also *integerrime provincia administrata* (Quint. *Inst.* 12.1.16), *procuracione Narbonensis provinciae integerrime functus* (Plin. *Ep.* 7.25.2), *integre sancteque egit* (Tac. *Ann.* 13.46.3 about Otho’s period as *legatus Augusti pro praetore* of Lusitania). This honesty is in contrast with Valentinian’s suspicion that he had acted *per nundinationem* (§ 18, see the note ad loc.). Hymetius’ ‘immediate’ restitution adds to his exemplary behaviour.

verum quoniam denis modiis singulis solidis indigentibus venumdatis emerat ipse tricenos, interpretii compendium ad principis aerarium misit 1.18
Hymetius did not merely replace the corn, ‘but’ also parted with the financial profit of the operation; see for adversative *verum* the note ad 21.12.10 *verum*. The abl. abs. *denis modiis venumdatis* is accompanied by the abl. *pretii singulis solidis* (‘having sold the corn at a price of ten bushels for one solidus’). Later, when the famine had passed and there was an abundant supply of corn, he had bought at a price of one solidus per thirty bushels, that is, he had made a gain of 200%. See for *modius* and *solidus* the note ad 25.8.15 *ut, si*. Cf. for *modius* further Duncan-Jones, 1976 (1) and 1976 (2). The pluperfect *emerat* precedes the perfect *restituit*: he returned the corn after he had bought it. He also sent the financial profit of the operation to the imperial treasury (*ad principis aerarium*). See for *aerarium* the note ad 24.3.5 *direptum aerarium*. As is argued in the note above, the collection of the *canon frumentarius* for the city of Rome was the task of the *praefectus annonae Africae* and the *vicarius Africae*, who were both subordinate to the praetorian prefect of Italy, Illyricum and Africa, so that Hymetius, strictly speaking, ought to have sent the money to the *arca* of the PPO (“l’aerarium du Bas-Empire est normalement opposé à l’arca qui est la caisse du préfet du prétoire”, Delmaire, 1989, 6). De Jonge, 1948, 80 saw the problem and concluded that Amm. had made a mistake, but the solution of Marié n. 339 is perhaps preferable: “Nous pensons plutôt qu’Ammien prend *aerarium principis* dans le sens général de fisc et qu’il n’avait pas l’intention de préciser la caisse concernée”. This profit is called *interpretii*

compendium. As appears in TLL VII 1.2257.54–66, *interpretium* is a rare term, which expresses the difference in price between buying and selling; *interpretii* can be explained as a gen. explicativus or, perhaps rather, identitatis.

ideoque Valentinianus per nundinationem suspicatus parum, quam oportuerat, missum eum bonorum parte multavit Note the cynicism inherent in *ideo*: in the rare case of a member of the administration being so honest as to send all the money which he had acquired from a transaction in his official function to the treasury, he was ‘for this reason’ suspected of trafficking. The term *nundinatio*, ‘trafficking’, occurs four times in Cicero, and after him only a few times in late authors. TLL X 1.576.44–49 shows that *parum quam*, probably a contamination of *parum* and *minus quam*, is very rare. Probably, *parte* here means ‘half’: see TLL X 1.452.78–453.21. Tac. *Ann.* 4.20.1 *partem bonorum publicandam, pars ut liberis relinqueretur censuerat* is a clear parallel, with implications for *Ann.* 3.17.4 (see Woodman and Martin ad loc.). A convincing example in an entirely different sphere is Liv. 6.42.2. Amm. does not specify what legal proof Valentinian adduced to have Hymetius convicted, but presumably it was, pace Lizzi Testa, 2004, 237 (“sotto accusa di *crimen repentundarum*”), the *crimen peculatus* (for which see the final part of the note ad 27.3.2 *ad vicem*): the proconsul was supposed to be guilty not of extortion to the disadvantage of provincials, but embezzlement of money earmarked for the emperor’s treasury (see for the distinction between *peculatus* and *repetundae* Dig. 48.13.1 sqq. and *Cod. Theod.* 9.28.1–2 on the one hand, Dig. 48.11.109 and *Cod. Theod.* 9.27.1–7 on the other). How much Hymetius’ *bona* were worth and how much he therefore had to pay is not known. According to Paul. *sent.* 5.27 the penalty for peculation was a fine of fourfold the amount which the condemned man had taken: *si quis fiscalem pecuniam attrectaverit, subriperit, mutaverit, seu in suos usus converterit, in quadruplum eius pecuniae, quam sustulit, condemnatur*. The fourfold repayment of embezzled money is also mentioned in a law of Valentinian concerning individuals who had involved themselves “in criminal compacts and in the scandalous fraud of embezzlers, to the damage of the fisc” (*qui in contractibus scelestis ac fisco perniciosis interversorum maculosis se fraudibus implicuerunt, in quadrupli redhibitionem teneantur*, *Cod. Theod.* 10.1.10, tr. Pharr). This law was addressed to the *vicarius Africae* Dracontius (PLRE I, Dracontius 3), mentioned above (in the note ad §17 *cum Africam*).

ad cuius cladem exaggerandam id quoque isdem diebus acciderat non minus exitiale Some scholars clearly take the temporal specification *isdem diebus* as an indication that Hymetius' consultation of the *haruspex* Amantius took place while Hymetius was still proconsul in Africa (e.g. Funke, 1967, 170; Haack, 2003, 199), but this seems improbable. "Given the attitude of Valentinian to such matters, he would not have been allowed to remain as proconsul with any suspicion of fraud hanging over him" (Matthews 210). It seems best to assume the following course of events: Hymetius had returned from Africa (after April 368; cf. the note ad § 17 *cum Africam*) and had been tried and fined by the emperor (*Valentinianus...eum bonorum parte multavit*, in 369/370, presumably); then, *isdem diebus*, that is, almost simultaneously with this punishment (and while Maximinus was vicar of Rome), his predicament took a turn for the worse when information about some dubious practices of his emerged. The fact that *exitialis* occurs more often in the last hexad of the *Res Gestae* than in Books 14–25 taken together is some indication of the atmosphere in these six books. 1.19

Amantius haruspex, ea tempestate prae ceteris notus, occultiore indicio proditus, quod ob prava quaedam implenda ad sacrificandum ab eodem esset ascitus Hymetio, inductusque in iudicium, quamquam incurvus sub eculeo staret, pertinaci negabat instantia Note the biased elements in the historian's presentation of the facts: Amantius, in contrast to his colleague Campensis (§ 8 and 29) a renowned *haruspex* (Haack, 2006, 20), whose expertise is taken seriously by the author (see 21.1.10, with the notes ad loc.), becomes the victim of an anonymous accusation, which he determinedly denies, when he is brought to justice and subjected to torture. Cf. Tac. *Ann.* 4.10.2 *occulto indicio Drusum veneni in patrem arguens*. This seems a violation of *Cod. Theod.* 9.34.4 (dated 21 October 328) *Famosa scribtio libellorum, quae nomine accusatoris caret, minime examinanda est, sed penitus abolenda*. There are ten similar laws assembled in the Theodosian Code under the heading *de famosis libellis* (9.34 rubr.), which in itself proves that in actual practice the noble principle of not paying heed to anonymous accusations was often thrown overboard. Moreover, some crimes were regarded as being so serious that exceptions to existing rules could be made. In 319 or 320, for instance, in a law *de maleficis et mathematicis et ceteris similibus*, Constantine, who ordinarily punished *delatores* severely (*Cod. Theod.* 10.10.203), wrote: *accusatorem autem huius criminis non delatorem esse, sed dignum magis praemio arbitramur* (*Cod. Theod.* 9.16.1). TLL X 2.1630.406 compares the

remarkable syntactic structure *proditus, quod* with Suet. *Cal.* 19.3 *causam ...proditam, quod*. The vague phrase *ob quaedam prava implenda* refers to magic; see for this connotation of *pravus* the note ad 21.1.7 *malevoli* and cf. *venenorum artibus pravis* in 28.1.29. As is noted ad 22.3.4 *consulatu*, the verb *inducere* can be used as a t.t. for bringing a defendant to court; see also the list in TLL VII 1.1233.8–29. The note ad 26.10.13 *innocentes tortoribus* deals in detail with torture by means of the *eculeus*. For torture in general see ad 26.10.5 *unde post*. Add to the literature cited there Arce, 1992; Arce, 1996 and Rieß, 2002. Amm.’s description does not tally with other accounts, so that a different use of the instrument must be assumed. “Interest in the subject of obstinacy seems almost peculiar to Ammianus” (Seager 40). The pejorative meaning of both *pertinax* and *pertinacia*, as in *pertinaci ignavia* (20.2.3, q.v.), is more frequent, but not to an overwhelming degree; see Seager 31–32. The present text is a clear example of a positive meaning, in contrast to *instantia pervicaci* in Apul. *Met.* 8.7; see GCA 1985, 81.

- 1.20** *quo infitiantie secretioribus chartis ab eius domo prolatis commonitorium repertum est manu scriptum Hymetii petentis, ut obsecrato ritu sacrorum sollemnium numine erga se imperatores delinirentur* Amm. does not specify the meaning of *secretioribus chartis*. He may intend the contents, as in 26.3.3 *secretiora quaedam legibus interdicta* (q.v.), but a ‘neutral’ meaning is also feasible, as in 20.8.18 *His litteris iunctas secretiores alias Constantio offerendas clanculo misit* and 25.8.9 *imperator secretiores addiderat litteras*. In these cases *secretus* denotes that the documents in question were not intended for a wider readership. However, among this ‘private’ material the contents of one document were highly incriminatory. TLL III 1934.22–23 defines the Late Latin noun *commonitorium* in this way: “i.q. *commonitio*, *actio monendi vel res ad commonendum apta*”. Judging by their renderings of the present passage, the translators are, understandably, struggling with it. Lizzi Testa, 2003, 59–62 plausibly argues that *commonitorium* here denotes “un allegato epistolare di contenuto strettamente riservato”, in which Hymetius had written precise instructions, probably expecting that Amantius would destroy the document after reading it. A comparable use of such a secret message, though for a different purpose, can be found in § 53.

Seyfarth follows Clark’s choice of Heraeus’ emendation of V, but Marié adheres to Valesius’ *petentis ut obsecrata ritu sacrorum sollemnium numina erga se imperatores delinirent*. In his notes Valesius regards *ut obsecrato ritu sacrorum sollemnium numine erga se imperatores deliniret*

as also possible. The various solutions differ in two respects: 1. should a *numen* or more *numina* be beseeched? 2. who is the Agens of the attempt at ‘mollifying’ Valentinian and Gratian? In the text of Valesius’ edition more *numina* are the Agens, in his alternative version one *numen* is beseeched with Amantius as the Agens of *delinire*. Seyfarth’s text finally has one *numen* and leaves the Agens unmentioned. The differences are small, but Valesius’ text has the slight advantage that both *numina* and *delinirent* are kept; moreover, they make excellent sense: it is the gods who should appease the emperors. Whichever choice is made, Amm.’s words do not necessarily indicate a magical rite; cf. 19.1.11 *in sollemnibus Adonidis sacris*, 23.3.7 *sacrorum sollemnitate prisco more completa* (q.v.). Nevertheless, the present text is probably meant to clarify the meaning of *ob prava quaedam implenda* in the preceding section. What at first was only an anonymous accusation is now substantiated. Dickie, 2001, 286 aptly compares Amantius’ sacrifice with the kind of spell which in some magical papyri is called a θυμοκάτοχος, a spell intended to check the wrath of someone else, and points to the fact that there is even a prescription in a magical formulary for a spell specifically designed to check the wrath of emperors (*P.Mag.* XXXVI 36–37).

In the present text the verb *obsecrare* may come close to its original sense, which in TLL IX 2.41 is defined as “sacramento facto precari”.

cuius extima parte quaedam invectiva legebantur in principem ut avarum et truculentum Whereas Hymetius’ religious effort to appease the emperors may already have caused suspicion, the final part of the aide-mémoire got him into severe trouble. His verbal attack on Valentinian is reminiscent of Julian’s action against Constantius: *orationem acrem et invectivam...scripserat ad senatum* (21.10.7, q.v.). Julian’s satire *Misopogon* is called a *volumen...invectivum* (22.14.2, q.v.). Hymetius’ censure of the emperor’s greed will have been inspired by the fine imposed on him: *bonorum parte multavit* (above, § 19). As to *truculentus*, see Seager 54; in this respect Valentinian is in the unenviable company of Maximinus Thrax (14.1.8), Gallus (14.11.8) and Sapor (20.6.1, q.v.). The author agrees with Hymetius: *Valentinianus, homo propalam ferus* (27.7.4), *trux suoapte ingenio* (29.3.2), *in acerbitem naturae calore propensior* (30.8.2).

haec Valentinianus relatione iudicum doctus asperius interpretantium facta vigore nimio in negotium iussit inquiri This section contains a number of technical terms. The first is *relatio*, an official dispatch to a higher authority (cf. § 10 *relatione maligna docuit principem*, q.v.). Valentinian

was still in Gaul when he received this report (cf. 27.10.16 and 28.2.1 with the notes). From there he issued three decrees, one of which, *Cod. Theod.* 9.16.9, may be relevant to the cases of Amantius and Hymetius (see below) and, together with *Cod. Theod.* 9.38.5, helps to date the senatorial embassy mentioned in 28.1.24 (q.v.). *Cod. Theod.* 9.38.5, issued in Trier on 19 May 371, was addressed to the senate of Rome, as was *Cod. Theod.* 9.16.9, promulgated on the same date (pace Pergami, 1993, 547–548, who accepts the date of the manuscripts, 29 May 371; but see e.g. Coşkun, 2000, 70 n. 20 and Lizzi Testa, 2004, 231–232). The latter deals with the connection of *haruspicina* and magic. The emperor says: *Haruspicinam ego nullum cum maleficiorum causis habere consortium iudico neque ipsam aut aliquam praeterea concessam a maioribus religionem genus esse arbitror criminis. Testes sunt leges a me in exordio imperii mei datae, quibus unicuique, quod animo inbibisset, colendi libera facultas tributa est. Nec haruspicinam reprehendimus, sed nocenter exerceri vetamus* (“I judge that *haruspicina* has no connection with cases of magic, and I do not consider this *religio*, or any other that was allowed by our elders, to be a kind of crime. Of this opinion the laws given by Me in the beginning of My reign are witnesses, in which free opportunity was granted to everyone to cultivate that in which he was brought up. We do not condemn *haruspicina*, but We do forbid it to be practiced harmfully”, tr. Pharr, adapted). Note the emphatic *ego* (“ein hapax im Codex Theodosianus”, Fögen, 1997, 38) at the beginning of Valentinian’s words. Some of the emperor’s predecessors had ruthlessly condemned the craft of *haruspices* (cf. *Cod. Theod.* 9.16.1, 2, 4 and 6), but Valentinian, unlike Constantine and Constantius, did not take an extreme position in this matter. “This issue would have been raised by Hymetius’ trial and condemnation, which in Ammianus’ narrative is immediately followed by the sending of a senatorial delegation to the Emperor” (Tomlin, 1973, 293; cf. Neri, 2005, 360).

On 6 December of the same year Valentinian sent, also from Trier (cf. Pergami, 1993, 562 and 564) the following decree (*Cod. Theod.* 9.16.10): *Quia nonnulli ex ordine senatorio maleficiorum insimulatione adque invidia stringebantur, idcirco huiusmodi negotia urbanae praefecturae discutienda permisimus. Quod si quando huiusmodi inciderit quaestio, quae iudicio memoratae sedis dirimi vel terminari posse non creditur, eos, quos negotii textus amplectitur, una cum gestis omnibus praesentibus adque praeteritis ad comitatum mansuetudinis nostrae sollemni observationi transmitti praecipimus* (“Because some persons of the Senatorial order were touched by the hateful accusation of practicing magic,

We therefore entrust to the prefect of the City the trial of such cases. But whenever a trial of this kind occurs, which, it is believed, cannot be decided or completed by the judgment of the aforesaid court, We command that those persons who are involved in any connection with the case, together with all the records, present and past, shall be transmitted to the imperial court of Our Clemency for the customary enforcement”, tr. Pharr). This decree was addressed to the *praefectus urbi* Ampelius, who in § 22 is mentioned as the judge in the case of Hymetius.

The prosecuting *iudices* are presumably Maximinus and Leo, whose legal interpretation of the facts was quite unfavourable. See for *interpretari* as a juridical t.t. Heumann-Seckel s.v.; cf. for an adverb modifying the interpretation, though in an entirely different context, *amici adulantes mollius interpretantur* (Tac. *Hist.* 2.96.1). See for *negotium* referring to legal proceedings above the note ad § 17 *Eodem tempore* and cf. for *inquirere* in 15.6.1 *inquirentibus in negotium consistorianis*, 19.12.17 *inquisitum in haec negotia fortius* (q.v.).

et quia Frontinus, consiliarius ante dicti, minister fuisse conceptae precationis arguebatur, concisus virgis atque confessus ablegatus est in exilium ad Britannos, Amantius vero damnatus postea rerum capitalium interiit See for *consiliarius*, ‘adviser’, the note ad 25.3.14 *Phosphorio*; presumably Frontinus (*PLRE* I, Frontinus 3) was already the official adviser of Hymetius (*ante dicti*) in his capacity of *proconsul Africae*. The suggestion (cf. Thompson 139 n. 2) that he was identical with a man of the same name (*PLRE* I, Frontinus 2), who, according to Lib. *Ep.* 232, had been acquitted of embezzlement charges by the *comes Orientis* Modestus circa 360, is a mere guess. See for Amm.’s predilection for the phrase *ante dictus* the note ad 27.6.3 *qui, licet*. As to *minister*, one should take due note of the fact that this word often occurs “in rebus sacris paganorum” (TLL VIII 1000, 22–71). Cf. for *conceptae precationis* e.g. 17.1.13 *iurantes conceptis ritu patrio verbis* (q.v.), 23.6.35 *conceptis precationibus* (q.v.), 29.1.31 *litato conceptis carminibus numine*. These phrases are examples of *conceptus* used “de formula, verbis certis” (TLL IV 55.6–58). Obviously Frontinus was an expert in the correct rules and phrases pertaining to religion, which were relevant to Amantius’ ritual. He confessed his guilt after he had been tortured (*concisus virgis*), unlike Amantius, who, though tortured (*quamquam incurvus sub eculeo staret*), denied the accusations against him (§ 19, q.v.). Banishment to an island and confiscation of property was the punishment reserved

by Constantine for people who had called in a *haruspex*: *illo, qui eum (sc. haruspicem) suasionibus vel praemiis evocaverit, post ademptionem bonorum in insulam detrudendo* (*Cod. Theod.* 9.16.1). For the various types of exile see the note ad 22.3.4 *Taurum*. Frontinus is not the only person in the *Res Gestae* to be exiled to the insular side of the Channel: 22.3.3 *Palladium...in Britannias exterminarunt*, 28.3.4 *ob grave crimen actus in Britannos exsul*. The way in which Amantius' fate is phrased seems to imply that he was condemned to death for other reasons, that is, not for his involvement in the case of Hymetius (§19), but later (*postea*); *capitalium rerum*, 'because of a capital crime', is an example of the *genitivus forensis*: see Kühner-Stegmann II 462–464, Szantyr 75–76. The death of another *haruspex*, Campensis, is reported in 28.1.29.

- 1.22** *post hanc gestorum seriem Hymetius ad oppidum ductus Ocriculum audiendus ab Ampelio urbi praefecto et Maximino vicario* See for *gestorum seriem*, 'course of events', the note ad 25.8.12 *extollere*. Both *ducere* and *audire* function here as technical terms in juridical proceedings. See for *ducere*, 'to transport a defendant', Heumann-Seckel s.v. 2 and the relevant instances in TLL V 1.2139.83–2140.46. Hymetius was brought to Ocriculum 'to be questioned'; see for *audire* in this sense Heumann-Seckel s.v. 5b. The gerundive is here, as so often, used as a part. fut. pass. Ocriculum, modern Otricoli, some 70km north of Rome (Talbert 42 C4; Pietrangeli, 1943), is here mentioned for the second time in the *Res Gestae*. In 16.10.4 Constantius passes through the town (*Ocriculo transcurso*) on his famous voyage to Rome. Chastagnol, 1960, 251 refers to this passage as an illustration of the urban prefect's right to set up court anywhere within 100 miles of his district (cf. *Dig.* 1.12.1.4 *et si quid intra centensimum miliarium admissum sit, ad praefectum urbi pertinet* and see Chastagnol, 1960, 85–86). Ampelius succeeded Olybrius as urban prefect between 21 August 370 and 1 January 371; he was discharged between 5 July 372 and 22 August 372 (references in the note ad 28.1.5 *Maximinus*; see the same note for Maximinus' vicariate). In 28.4.3–4 (q.v.) Amm. gives some information about Ampelius' personality, his career and the way he acted as *praefectus urbi*. In his function of PVR Ampelius received *Cod. Theod.* 9.16.10 (quoted ad §21 *haec Valentianus*), sent on 6 December 371. Van de Wiel ad loc. persuasively suggests that Ampelius and Maximinus preferred to travel to Ocriculum, because they bore in mind the support which Hymetius might receive in Rome.

confestimque perdendus, ut apparebat, data sibi copia tectius imperatoris praesidium appellavit nominisque eius perfugio tectus servabatur incolumis Hymetius' prospects were bleak indeed; his speedy liquidation was clearly on the cards. What had begun as a case of magic (§ 19), must have become (although Amm. does not say so) a treason trial when it had been discovered that Hymetius' *commonitorium* comprised phrases which insulted the emperor (*cuius extima parte quaedam invectiva legebantur in principem*, § 20). So e.g. Funke, 1967, 170 and *PLRE I*, Hymetius (Chastagnol, 1960, 100 n. 1 is of a different opinion: "Hymetius ne paraît pas avoir été accusé de lèse-majesté"). A treason trial was, of course, much more serious than a case of magic in that it made it easier for the prosecutors to demand the death penalty (see above, ad 28.1.11 *uno proloquio*). Things took an unexpected turn, when Hymetius seized the opportunity to appeal to the emperor. Cf. for the expression *Dig. 49.1.10.1 ad principem appellare* and *Dig. 49.1.21.1 rescripserunt ...non recte imperatorem appellatum esse*. See in general for such appeals Jones 505–506; Millar, 1977, 507–516; Paulus, 1996. Amm. mentions a similar case in 28.1.26, where he uses *provocare* instead of *appellare*: *Lollianus...provocavit ad principem* (q.v.). *Appellatio* and *provocatio*, originally distinct terms, as in Liv. 3.56.13 *appellatio provocatioque*, were synonyms in imperial times; Wenger, 1950, 566; Bleicken, 1959, 2456.

Editores and translators are very suspicious of V's *tectius*, for two reasons: a) how could one 'secretly' appeal? b) the presence of *tectus* very near by. Hence a preference for Gelenius' *rectius* or the emendation of Müller, 1873, 357, *erectius*, "ein dem Ammian geläufiges wort für 'dreist, mutig'". It should first be noted that *tectius* is not a hapax in Amm.: 14.10.10 *negotio tectius diu pensato*, 18.5.1 *rimabatur tectius rei publicae membra totius*. Hagendahl, 1921, 111 adds other examples in which similar words occur near each other. The similarities in these examples are, however, less conspicuous and therefore not very persuasive, and in any case not conclusive. Secondly, nobody seems to have considered the possibility that *tectius* qualifies *data...copia*, thereby producing a *cursus tardus*: through the secret agency or manipulation of a supporter Hymetius was given the opportunity to appeal. As to the close presence of *tectus*, why might this not be suspect, if *tectius* is accepted? Its transferred sense does tally with another example in Amm.: *ambizioso necessitudinum studio, quibus tegebatur, morte ereptus*, 'the support of influential relations, by whom he was protected, saved him from death' (29.2.5). Nevertheless, if one is suspicious, *tutus* or *tuto* can be

proposed as healthy alternatives. The combination *perfugium tutum* occurs in Livy, Cicero, Tacitus and Fronto. See for the transferred sense of *perfugium* TLL X 1.1415.21–43. The only other instance in the *Res Gestae* belongs to this category: *Nec afflictis...erat ullum in principis benignitate perfugium* (30.8.14). For the present context the following words in *Cod. Theod.* 11.30.30 (18 December 362) are quite interesting: *Nobis enim moderantibus rem publicam nullum audebit iudex provocationis perfugium iurgantibus denegare*, “For while we are prudently governing the State, no judge shall dare to deny to litigants the refuge of an appeal” (tr. Pharr). Note the difference between perf. *appellavit*, which expresses an act, and imperf. *servabatur*, which denotes a new situation within which further acts took place. Surprisingly, Amm. does not mention any decision of the court against which Hymetius appealed. Does this imply that the mere likelihood of the death penalty (*confestimque perdendus, ut apparebat*) sufficed for an appeal? See Chastagnol, 1960, 383.

- 1.23** *super hoc princeps consultus senatu negotium dedit, qui cum rem librata iustitia comperisset eumque ad Boas, Delmatiae locum, exterminasset, aegre imperatoris iracundiam tulit* See for *super* with abl., ‘concerning’, Szantyr 281 and for the dat. sing. -u of the fourth declension the note ad 19.1.6 *apparatu* and Leumann 442–443. Although it has sometimes been denied (e.g. by Tellegen-Couperus, 1985), the senate in the Later Empire could still function as a court of justice and a court of appeal (see for senatorial jurisdiction during the Principate Talbert, 1984, 460–487). Apart from the present text this is evident from e.g. Sidon. *epist.* 1.7.9, Lyd. *Mag.* 3.10.3, Procop. *Arc.* 27.29. Cf. Vincenti, 1986a, 1986b, Giglio, 1990, 191–222 and Pergami, 2003. The senate sought an equilibrium between offence and punishment. They first established (*comperisset*) the facts (*rem*), which they carefully weighed in the scales of justice (*librata iustitia*), and then settled on banishing Hymetius. In 23.5.17 *librante iustitia* justice is the Agens; printing *Iustitia* would have been preferable. As a paraphrase Rolfé’s “when they had weighed the case in the scales of justice and learned the truth” is satisfactory. Curiously, Amm. does not mention that Boae, modern Bua (Talbert 20 D6; Patsch, 1897), is an island, more often used as a place of exile: *contrusus est in insulam Delmatiae Boas* (22.3.6, q.v.). Pliny (*Nat.* 3.152) called it Bova: *contra Tragurium Bova*. Hymetius was recalled after Valentinian’s death and honoured with two golden statues by the African provincials (see the note ad 28.1.17 *cum Africam*). One would have expected that the senate

had to put up with the emperor's anger, but instead Amm. reports that it resented (*aegre tulit*) this anger. Another case in which the senate's annoyance was caused by an imperial decision is 29.2.17 *ordine omni mussante*.

perciti vehementer, quod hominem addictum, ut ipse proposuerat, morti clementiori sententia didicerat plexum See for Amm.'s predilection for *percitus*, 'emotionally stirred', the notes ad 20.11.5 *dolore* and 21.3.1 *nuntio*. Cf. Cic. *Off.* 3.45 *is qui morti addictus esset*. In that case, however, the sentence had been passed. In the present text this proved not to be the case. Translators disagree about the meaning of *proposuerat*. According to Marié it denotes a decision ("décidé"), Seyfarth ("nach seinem Vorschlag") and Caltabiano ("proposto") regard it as a proposal to the senate, but Rolfe's "intended" and Viansino's "lui si era proposto" interpret *proposuerat* as expressing what he had imagined would happen; see OLD s.v. 5b: "to picture to oneself, to imagine". It would be Amm.'s only example of such a meaning, but it does explain why the senate felt free to make the decision which they regarded as just. Petschenig, 1892, 524 rightly proposes *edidicerat*, because the *e* at the end of V's *sententiae* is obviously one of this manuscript's many incorrect separations of words. See for *plectere* as a juridical t.t ('to punish') *qua poena plecti debeant* (*Dig.* 47.14.3.3), *circa statum dignitatis poena plectimur* (*Dig.* 50.13.5.2), Heumann-Seckel s.v. *plectere* and TLL X 1.2396.29–58.

Ob haec et huiusmodi multa, quae cernebantur paucis, omnibus timeri sunt coepta Translators rightly regard *quae cernebantur paucis* as the subject of *sunt coepta*, with the surprising exception of Seyfarth, who in his bilingual edition interprets *haec et multa* as the antecedent of *quae cernebantur*, which leaves *sunt coepta* without a subject. *Haec et huiusmodi* also occurs in 14.11.25 and in some other late Latin authors. Especially in the present text, it is a handy formula to suggest that one has only selected a handful of examples from a large number. The text in the lemma implies that both *paucis* and *omnibus* are instances of the dat. auctoris. This parallelism favours the acceptance of V's text: that which a few people witnessed with their own eyes, as victims or supporters, struck terror into all. However, Gelenius' *in paucis*, which convinced Clark and Marié, would be a good example of *in*, 'in the matter of' (OLD s.v. *in* 42). In any case, the whole sentence has the same function as the final part of § 16, viz. to testify to the rise of an atmosphere of terror. But does this mean, as Van de Wiel, 1989, 152 suggests, that Amm. in § 24 returns to

1.24

the point which he had reached in § 16, and that, accordingly, sections 17–23 do not form part of the main narrative but should be regarded as a kind of excursus? Not really. More on this in the next note.

et ne tot malis dissimulatis paulatimque serpentibus acervi crescerent aerumnarum, nobilitatis decreto legati mittuntur Turning a blind eye to evils which were gradually creeping up (*paulatimque serpentibus*) would result in ‘heaps of troubles’; cf. *malorum...acervis* (14.1.5), *curarum acervos* (26.2.8). In order to prevent this, the senate sent an official delegation to Valentinian. Cf. for *nobilitas* denoting the senate 21.12.24 *a nobilitate legatos ad Constantium missos* and the note ad 21.10.7 *eminuit nobilitatis*. Add to the literature cited there Schlinkert, 1996. The date of the senatorial embassy is disputed. Van de Wiel thinks that *Cod. Theod.* 9.35.1, issued on 8 July 369 and addressed to the urban prefect Olybrius (part of the text is quoted ad 28.1.11 *omnes, quos*), was Valentinian’s response to the demands of the senatorial delegation mentioned here, and that therefore Praetextatus cum suis came to Valentinian before that date. This tallies with her view that, although Amm. speaks in § 22 of Ampelius as urban prefect and Maximinus as *vicarius*, he jumps ahead in time at that point, sections 17–23 being a kind of digression, to return in § 24 to the point which he had reached in § 16. However, what is mentioned in § 16 seemingly took place during Maximinus’ vicariate in 370–372/373, since Maximinus’ function of *vicarius urbis* is already referred to in § 12 (see the note ad 28.1.16 *Tunc Cethegus*). It would be odd, therefore, if Amm. now, in § 24, returned to the situation of 369, when Olybrius was urban prefect and Maximinus still *praefectus annonae* (cf. the notes ad 28.1.5 *Maximinus* and 28.1.8 *Chilo*). Pace Van de Wiel it is more likely that sections 17–23 simply form part of the main narrative and that the Hymetius affair, which had started in 369/370 (see the note ad 28.1.19 *ad cuius*), but continued to be an issue during the prefecture of Ampelius, who succeeded Olybrius as PVR between 21 August 370 and 1 January 371 (28.1.22, q.v.), was one of the reasons for sending Praetextatus, Venustus and Minervius as delegates of the senate (*haec in Ob haec et huiusmodi multa* must refer to the case of Hymetius). The terminus ante quem for the sending of this embassy is furnished, it would seem, by *Cod. Theod.* 9.16.9 and 9.38.5 (quoted ad 28.1.21 *haec Valentinianus*). Cf. Tomlin, 1973, 293, 323 and Matthews 214: “two laws of 19 May 371 addressed ‘to the senate’, may form part of the emperor’s reply to the senatorial embassy led by Praetextatus”.

Praetextatus ex urbi praefecto et ex vicario Venustus et ex consulari Minervius oraturi, ne delictis supplicia sint grandiora neve senator quisquam inusitate et illicito more tormentis exponeretur See for Amm.'s frequent use of *ex*, 'former', the note ad 25.10.7...*ex actuario*. Vettius Agorius Praetextatus (PLRE I, Praetextatus 1) was often sent by the senate as an ambassador (CIL 6.1777 = ILS 1258: *legato amplissimi ordinis septies*). His career is summed up in CIL 6.1779 (= ILS 1259); see also the notes ad 22.7.6 *Aderat* and 27.9.8 *Haec inter*. As urban prefect of Rome he is attested from 18 August 367 until 20 September 368. He may well have been related to Hymetius' wife Praetextata; see Hier. *epist.* 107.5 *Praetextata nobilissima quondam femina, iubente viro Hymetio*. As to the former vicar Venustus, this is the second time in the *Res Gestae* that we meet him as an ambassador. The first time was in 23.1.4, when he belonged to an embassy sent in 362 to Julian, who subsequently made him *vicarius Hispaniae*. The note ad 23.1.4 *Venusto* needs revision. In the first place, we reported there the common opinion since Seeck, 1883, cxiii–civ, cxlviii (cf. e.g. PLRE I, Venustus 5) and identified Amm.'s Venustus with both the Volusius Venustus who was *corrector Apuliae et Calabriae* (CIL 9.329 = ILS 5557^a) and the Venustus who was the father of Virius Nicomachus Flavianus (Macr. *Sat.* 1.5.13). Chausson, 1996, however, has plausibly argued that the Venusti just mentioned are probably three different men (who were, for that matter, in one way or another related to each other). In the second place, the date of Venustus' embassy to Valentinian was not 368, but, as argued in the foregoing note, between 21 August 370 and 19 May 371. About Minervius no further information is available, but he was possibly "the unnamed father of Minervius 2, Protadius 1 and Florentius 2 and a native of Trier" (PLRE I, Minervius 1, referring to Symm. *Ep.* 4.30 and 4.35; cf. also 4.18 and 4.29). Matthews, 1975, 62 n. 3 and 85–86 suggests that he is possibly the same person as the rhetorician Ti. Victor Minervius (PLRE I, Minervius 4). See for *consularis* the notes ad 21.6.4 *cuius fratres* and 21.10.6 *Pannoniae*.

The phrase *ne delictis supplicia sint grandiora* implies a principle which the senate itself had used according to Amm.: *librata iustitia* (§ 23, q.v.). Adjectival *quisquam* occurs already in classical Latin, but later becomes more frequent; see Szantyr 196. According to Baehrens, 1925, 54 "kann die Variatio *inusitate* (-to vulgo) *et illicito more* beabsichtigt sein". Blomgren 59 agrees. See for *more* with the addition of an adj. or pron. as the equivalent of *modo* TLL VIII 1526.30–53 and OLD s.v. *mos* 7. According to the senate, torturing a senator was not the norm, indeed, it was not permissible. Essentially this was right, but there was one exception to the

rule, as is explained in the note ad 28.1.11 *omnes, quos*: in cases of *maiestas* senators were subject to torture just like anybody else. It should not be overlooked that the term *illicitus* does not necessarily imply ‘by law’. See for its wide range the final part of the note ad 27.11.4 *namque fatendum est*. In the present text the implication ‘by law’ would make *inuitate* entirely superfluous. See for torture in general the note ad § 19 *Amantius*.

- 1.25** *qui cum intromissi in consistorium haec referrent, negantem Valentianum se id statuisset et calumnias perpeti clamitantem moderate redarguit quaestor Eupraxius* See for *intromittere* as almost a t.t. the note ad 20.9.2 *intromissi*, and for *consistorium* the notes ad 20.4.22 *asciti* and 25.10.2 *et cum*. Add to the literature cited there Schlinkert, 1996; Amarelli, 2004–2005; Karamboulas, 2004. The verb *referre* is here used to denote the delivery of an official message (*relatio*, cf. 28.1.10 for this term). Valentinian reacts as if stung by a wasp: this had not been decided by him, he was the victim of false accusations; *calumnia* is here not used in the full official sense of a juridical t.t., ‘a false complaint which has been deliberately and knowingly filed against someone’; see Heumann-Seckel s.v. It was the reaction of a man who repeatedly fell victim to his *ira acerbius effervescens* (27.7.4). The tricky situation was saved by a timely intervention of the *quaestor (sacri palatii)* Eupraxius (see on him and his function the notes ad 27.6.14 *Eupraxius* and 27.3.11 *Advenit*): as he had done in 27.7.6 (q.v.), he contradicted the emperor tactfully (*moderate*), with the desired result, as becomes clear in the next lemma.

hacque libertate emendatum est crudele praeceptum supergressum omnia dicitatis exempla In Sallust *libertas* occurs nearly sixty times, Livy has more than three hundred instances, Tacitus more than a hundred. The nine instances in the *Historia Augusta* and Amm.’s twelve cases, the majority of which are in the first hexad, indicate the changed circumstances in Late Antiquity. It illustrates Eupraxius’ personal authority within an autocratic system. He was able to correct the ‘merciless order’. “Cum in Regio Codice receptum reperissem, non dubitavi quin emendandum esset crudele praeceptum” (Henri de Valois), which probably refers to Valentinian’s decision, reported in the second half of § 11: *omnes, quos iuris prisci iustitia divorumque arbitria quaestionibus exemere cruentis, si postulasset negotium, statuit tormentis affligi*. In the note ad 28.1.11 it is argued that one should distinguish between cases of *maiestas*, when torture of *honestiores* was generally accepted, also by Amm. (19.12.17, quoted in the note ad 28.1.11 *omnes, quos*), and other cases, when it was

not. The indignation of the senate and the author can only be explained in the light of Valentinian's decision, which had been prompted by Maximinus' "malicious report" (*relatione maligna*, 28.1.10) and implied a far wider definition of lèse-majesté: the emperor permitted torture also in cases other than treason trials which he *arroganter proposito maiestatis imminutae miscebat* (§11). For a different interpretation see Coşkun, 2000, 66–70, who regards the *crudele praeceptum* as "eine literarische Fiktion" (p. 70). In the present lemma *crudele* is upgraded by the hyperbolic phrase 'which had surpassed all previous instances of horror'.

Circa hos dies Lollianus, primae lanuginis adolescens, Lampadi filius ex praefecto, exploratius causam Maximino spectante convictus codicem noxiarum artium nondum per aetatem firmato consilio descripsisse Like that of Cethegus, Alypius and Hymetius, the case of young Lollianus (PLRE I, Lollianus 1) cannot be dated precisely, *circa hos dies* being as vague as *tunc*, *eodem tempore* and *post hanc gestorum seriem* in §16, 17 and 22 (q.v.), but presumably he was tried, like the others, while Maximinus was *vicarius urbis*, i.e. in 370–372. Lollianus was one of the four sons of C. Ceonius Rufius Volusianus *signo* Lampadius (PLRE I, Volusianus 5) and Caecinia Lolliana (PLRE I, Lolliana), "grande dame païenne du IV^e siècle après J.-C." (Chastagnol, 1961). As to *ex praefecto*, Lampadius had been both *praefectus praetorio* and *praefectus urbi* (see for details the note ad 27.3.5 *Advenit post* and Lizzi Testa, 2004, 61 ff.).

Cf. *prima etiamtum lanugine iuvenis* (24.1.10, q.v.). In the note ad 21.12.20 *exploratius spectato negotio*, it is shown that *exploratius* means 'with considerable care'. See for the use of the personal passive of *convincere*, 'to prove that a person is guilty of', with an infinitive Kühner-Stegmann II 1.899 and Szantyr 364. Some examples in Amm.: *mulier scripsisse...convicta* (18.3.4, q.v.), *tribunus turpiter proelium deseruisse convincebatur* (25.1.8). There are only two other examples of the word *codex* in the *Res Gestae*: 29.1.41 and 30.4.16. The first of these is quite important in that it shows that Amm. was, of course, fully aware that it differed from the roll of papyrus: *innumeri codices et acervi voluminum*. This difference can already be found in Suetonius: *codex multorum librorum est: liber unius voluminis* (fr. 104 [p. 134 Re]). See the note ad 21.1.7 *malevoli* for *artes* specified by various unfavourable adjectives to denote magical practices. In the present text the combination with *codicem* invites the assumption that *artes* should be interpreted as indicating "the rules and principles of an art in written form" (OLD s.v. 8b): young Lollianus had composed a textbook comparable to the

Papyri Graecae Magicae of Preisendanz. He was not only recognizable as a teenager by his appearance (*primae lanuginis*), but also because he was mentally not yet mature. Amm. may have been inspired by a Ciceronian phrase: *Animum adolescentis nondum consilio ac ratione firmatum pellexit* (Clu. 13). Van de Wiel is probably right in assuming that the young teenager did not write a book himself, but copied existing material. See for this meaning TLL V 1.658.70: “librum scriptum sim. transcribere”. Some examples: (tu litteras) *describendas etiam des improbis civibus* (Cic. Phil. 7.5), (quod librum) *Petronio Sabino describendum dedisset* (V. Max. 1.1.13).

exsulque mittendus, ut sperabatur, patris impulsu provocavit ad principem et iussus ad eius comitatum duci de fumo, ut aiunt, in flammam traditus Sphalangio, Baeticae consulari, cecidit funesti carnificis manu As son of an illustrious father Lollianus apparently hoped to escape the capital punishment which threatened those who were found guilty of practising magic arts (Paul. sent. 5.23.17, quoted ad 28.1.14 *quem ut*), for, although *humiliores* who possessed magical books were to be beheaded, *honestiores* should only be stripped of their possessions and deported to an island (Paul. sent. 5.23.18, also quoted ad 28.1.14). But the death of the *causarum defensor* Marinus (§ 14) was a bad omen. Cf. further the cases of Paphius and Cornelius, both *senatores* (28.1.29).

The gerundive *mittendus* functions as a part. fut. pass.; *sperare*, as often in the *Res Gestae*, means ‘to expect with fear’: see the notes ad 14.7.5 *sperabatur*, 20.11.16 *exitium*, 26.6.18 *procliviorem*. Like Hymetius (*imperatoris praesidium appellavit*, 28.1.22, q.v.), Lollianus now appealed to the emperor, encouraged by his father. In contrast to Amm.’s other four instances of *impulsus*, it is here used to denote ‘encouragement’ by a person. See for *provocare ad*, ‘to appeal to’, TLL X 2.2358.31–40 and Heumann-Seckel s.v. 2b, and cf. Tac. Ann. 6.5.2 *ad imperatorem provocavit*. See for *comitatus*, ‘the emperor’s headquarters’, ‘the court’, the notes ad 20.4.11 *ad comitatum* and 26.5.7 *cum legatis*. Clark prints *adduci*, in order to create a regular cursus. Having listed a number of passages in which an irregular cursus should not be emended, Blomgren 94 notes concerning the present text: “Clark cursus causa vix recte substituit”. A stronger argument in favour of *duci* is the fact that it is a t.t.: see above the note ad § 22 *post hanc*. The only other reference to the proverb *de fumo in flammam* also occurs in the *Res Gestae*: *de fumo, ut proverbium loquitur vetus, ad flammam* (14.11.12). In the absence of any other instances of this ‘old proverb’ in other Latin authors it may well have

been translated from the Greek proverb Τὸν καπνὸν φεύγων εἰς τὸ πῦρ ἐνέπεσεν (Macar. 8.42) by the author himself. Diogenian. 8.45 is similar. The notes ad loc. in the edition of the *Paroemiographi Graeci* by Leutsch-Schneidewin II 220 and I 314 respectively contain ample material to show the proverb's presence in Greek texts. Cf. for *tradere*, "to hand over a person to be at the disposal of another" (OLD s.v. 5) 17.12.21 *subolemq̄ suam obsidatus pignore...tradiderunt*, 26.3.3 *filium suum venefico tradidisse docendum* (q.v.), 29.1.5 (Palladium et Heliodorum) *praetorianae iudicio tradidit praefecturae*.

The *consularis Baeticae* of the present text, whose name is transmitted in V as *flangi(us)*, while Gelenius reads *Phalangi(us)*, is generally identified with the—only epigraphically attested—*v(ir) c(larissimus) praefectus urbi* Tanaucius Isfalangius/Sfalancius of *CIL* 6.1672a–b (when precisely he was PVR is disputed; cf. Barnes 238–239, followed by Lizzi Testa, 2004, 20 n. 20, against *PLRE* I, Isfalangius and Chastagnol, 1962, 194). This identification is indeed likely. Of Sfalancius it is known that he twice judged a case as representative of the emperor (*vice sacra iterum iudicans*, *CIL* 6.1672b), a privilege which was theoretically reserved for praetorian prefects (*qui soli vice sacra cognoscere vere dicendi sunt*, *Cod. Theod.* 11.30.16), but there are numerous exceptions to this rule (*AE* 2002.1676, 2003.2004; *CIL* 8.1358). Presumably, one of these cases was that of Lollianus (Chastagnol, 1962, 194; Van de Wiel, 1989, 155; otherwise Kuhoff, 1983, 306 n. 17: "Daß ein *consularis* die Appellationsgerichtsbarkeit besaß, ist höchst zweifelhaft"). See for *consularis* the notes ad 21.6.4 *cuius fratres* and 21.10.6 *Pannoniae*. There is a note on Baetica ad 23.6.21 *itidemque*. After Diocletian had grouped the Spanish provinces into a diocese, Baetica was at first governed by *praesides*, but the province later advanced from praesidal to consular status, Faustinus (*PLRE* I, Faustinus 9) in 337 being the last known *praeses*. Cf. Lomas Salmonte, 2002 and Kulikowski, 2004, 71–72, 82. It is disputed, for that matter, whether Sfalancius executed Lollianus after the young man had been sent by the emperor to Spain, or whether the *consularis Baeticae* happened to be in Gaul when Lollianus appealed to Valentinian and ordered the execution at the court. Matthews, 1975, 58 n. 1 and 62 prefers the latter option, rightly, it would seem, in view of *traditus*. Cf. 14.11.33 *funesti carnifices*; the phrase may have been borrowed from V. Max. 6.9.13 *funestis carnificis manibus*, where *funesti(s)* is in fact a conjecture which is questionable in the light of the present text. The phrase *carnificis manu* also occurs in 23.5.5 (q.v.), 27.3.2 and 30.5.11. See for *carnifex* further the note ad § 28 *exsulque*.

- 1.27 *Super his etiam Tarracius Bassus, postea urbi praefectus, et frater eius Camenius et Marcianus quidam et Eusafius, omnes clarissimi, arcessiti in crimen* See for *super his* as a synonym of *praeterea* Kühner-Stegmann II 1.572 (“häufig bei Amm. Marc.”) and Szantyr 281 (“häufiger im Spätlatein”). Camenius (*PLRE* I, Camenius 1) and his brother Tarracius Bassus (*PLRE* I, Bassus 21) presumably belonged to the family of the Ceionii Iuliani, if indeed Camenius, as is commonly thought, is identical with Alfenius Ceionius Iulianus signo Kamenius (*PLRE* I, Iulianus 25). As such they were related to the Lollianus of § 26, who, as we saw, was a son of C. Ceonius Rufius Volusianus signo Lampadius. That Tarracius Bassus was *postea urbi praefectus* is confirmed by an undated inscription, *ILS* 6072 (Chastagnol, 1962, 195–196 assigns his prefecture to 375–376). About Marcianus (*PLRE* I, Marcianus 10) and Eusafius (*PLRE* I, Eusafius) nothing further is known. Remarkably, the official title *clarissimus* is rare in the *Res Gestae*; apart from the present text it only occurs in 26.6.18, where it seems to be used in a general sense; in 21.16.2 the term *clarissimus* occurs (in § 29 Amm. speaks of *senatores*). Add to the literature cited in the notes ad loc. Kuhoff, 1983. For Barnes’ theory about the distinction between *clarissimi* and *nobiles* see above, ad 28.1.10 *cumque multiformiter*. Cf. 15.2.1 *in crimen laesae maiestatis arcescebatur*, 29.1.36 *arcessitus in crimen*; the only other instance mentioned in CLCLT is Sulp. Sev. *chron.* 2.50 *tamquam Priscilliani socios aut discipulos in crimen arcesseret*.

quod eiusdem conscii veneficiis aurigam fovere dicebantur Auchenium, documentis etiamtum ambiguis suffragante absoluti sunt Victorino, ut dispersus prodidit rumor, qui erat amicus Maximino iunctissimus Translators struggle with the identity of *eiusdem*; the majority assume Auchenius, only Marié and Viansino choose Lollianus, rightly, because he is the only person ‘mentioned above’, who qualifies. The four gentlemen were accused of being the associates in magic of Lollianus. The object of the shared knowledge, or indeed the complicity, is put in the dat., a construction which occurs already in Cicero: *huic facinori tanto tua mens liberalis conscia...esse non debuit* (*Cael.* 52), *C. Fabricium...conscium illi facinori fuisse arbitrabatur* (*Clu.* 56); V’s *veneficiis* is correct. See for *veneficium* denoting magic above, the note ad § 8 *vitamque suam*. The importance of the chariot races and, therefore, the charioteers in the life of a big city caused the historian to mention five of these by name, the others being Thorax (14.11.12), Philoromus (15.7.2), Hilarinus (26.3.3, q.v.), Athanasius (29.3.5). The two last mentioned were also

involved in magical practices; see Gager, 1992, 53–67 for some illustrative binding spells to influence the races and cf. for more literature the note ad 26.3.3 *Hilarinum*, at the end of which there is an unfortunate repetition; add Lee-Stecum, 2006. In 28.4.25 Amm. mentions again an (anonymous) charioteer who had something to do with *veneficium*. These parallels make it likely that not only the four *clarissimi* of the present section were involved in magic, but the *auriga* Auchenius as well. Cf. for *fovere*, “to support” (OLD s.v. 6), Tac. *Hist.* 3.83.1 *Aderat pugnantibus spectator populus, utque in ludicro certamine, hos, rursus illos clamore et plausu fovebat*. Being a fan of a charioteer is expressed by the verb *favere*: Plin. *Nat.* 7.186 *invenitur in actis Felice russei auriga elato in rogam eius unum e faventibus iecisse se*, “it is found in the official records that at the funeral of Felix the charioteer of the Reds one of his backers threw himself upon the pyre” (tr. Rackham); HA V. 4.8 *Amavit et aurigas prasino favens*, “He was very fond also of charioteers, favouring the ‘Greens’” (tr. Magie). The gentlemen were suspected of not merely ‘being fans’ (*favere*) of Auchenius, but actively ‘supporting’ (*fovere*) him with magical techniques.

Cf. for *documentum*, ‘proof in legal proceedings’ (TLL V 1.1808.76–1809.18), 18.1.4 *documentorum inopia percitus*, 27.2.9 *documentis evidentibus*, the last part of the note ad 28.1.30 *ut locuta*, and Sabbah, 2005, 380. While the proofs were ‘still’ (*etiamtum*) inconclusive, the four aristocrats were acquitted or discharged. What was the reason that the completion of the dossier was not awaited? There was a widespread rumour that this was due to the intercession of a very close friend of Maximinus, *PLRE* I, Victorinus 5 (who also offered protection to Eumenius and Abienus, *ambo ex coetu amplissimo*, 28.1.48; see for Victorinus further 28.1.34–35 and for *amicitia* in Amm. Schlinkert, 1996, 204–209). Cf. for *suffragari*, ‘helping a defendant’, and one of its cognate nouns 14.7.7 *incertum qua potuit suffragatione absolvi*, 16.6.3 *cubiculariis suffragantibus, ut loquebatur pertinax rumor, et vinculis sunt exutae personae*. See Sabbah 397, note 102 on the suggestive use of *fama* and *rumor* as a source of information. What happened to Auchenius is not known (according to Lizzi Testa, 2004, 209–211 he was imprisoned, tortured and put to death, but direct evidence for this assumption is lacking).

Nec minus feminae quoque calamitatum participes fuere similium. nam ex hoc quoque sexu peremptae sunt originis altae complures, adulteriorum flagitiis obnoxiae vel stuprorum Apart from Claritas and Flaviana,

mentioned in the section under discussion, Amm. refers to the following women: Rufina (§ 44–45), Hesychia (§ 47), Fausiana (§ 48) and Anepsia (§ 50–56). Curiously, there are only two other instances of *calamitas* in the *Res Gestae*: 15.5.1 (the Silvanus affair) and 18.4.2 (Sapor's preparations for war). The present instance concerns private interests, which is not unusual, because *calamitas* can denote all sorts of misfortunes. The repetition *feminae quoque—ex hoc quoque sexu* emphasizes the shocking developments: even women were executed, high-born ladies at that. Cf. for *origo* denoting a person's descent Tac. *Ann.* 4.21.3 *sordidae originis*, Suet. *Vit.* 1.1 *Vitelliorum originem*. Cf. for the difference between *adulterium* and *stuprum* the definition in *Dig.* 48.5.6.1 (Papinianus): *proprie adulterium in nupta committitur...stuprum vero in virginem viduamve committitur* and 48.5.35 (34) (Modestinus): *adulterium in nupta admittitur, stuprum in vidua vel virgine vel puero committitur*. See § 16 and 44–45 for other cases of adultery in this chapter, § 50 for an accusation on account of *stuprum*. The penalty for adultery was death, for men and women alike (see the note ad 28.1.16 *Tunc Cethegus*). It is often, and presumably rightly, asserted that this was also the case in respect of *stuprum* (cf. e.g. Lizzi Testa, 2004, 265 n. 192), but, as Rizelli, 1997, 213 n. 145 notes in his discussion of the *crimen stupri* (171–267), such an assertion “non sembra...trovare riscontro nelle fonti”. Cf. further Arjava, 1996, 219.

See for *obnoxius* with a dat. of a crime TLL IX 2.124.61–78. Some examples: *neque delicto neque libidini obnoxium* (Sal. *Cat.* 52.21), *gravissimo crimini...obnoxius* (V. Max. 4.7 ext. 2), *crimini obnoxium* (Cod. Theod. 10.10.29).

inter quas notiores fuere Claritas et Flaviana, quarum altera, cum ducere-tur ad mortem, indumento, quo vestita erat, abrepto ne velamen quidem secreto membrorum sufficiens retinere permissa est. ideoque carnifex nefas admisisse convictus immane vivus exustus est About Claritas (PLRE I, Claritas) and Flaviana (PLRE I, Flaviana 1) nothing further is known, but the name of the latter has led to her being identified as a sister or cousin of Virius Nicomachus Flavianus (PLRE I, Flavianus 15), who was a son of Venustus and possibly related to one of the senatorial ambassadors to Valentinian mentioned by Amm. in 28.1.24 (q.v.). If Flaviana's identification is right, this would make Venustus' presence in the senatorial delegation significant. See Lizzi Testa, 2004, 265–271 for this and other suggestions, also about Claritas (or Charitas/Caritas, as some suggest, which “name has a strongly Christian flavour”, Matthews, 1975,

59 n. 2). She prudently notes that “per ogni eventuale identificazione restiamo nell’ambito delle congetture” (265).

The noun *indumentum* does not occur in classical Latin. Amm. uses it more than twenty times, in the general meaning ‘garment’ or ‘clothes’. From one of the ladies in question—Amm.’s source of information obviously did not mention the name, so that it is impossible to determine which lady is indicated by *altera*, since *alter* without a clearly expressed or implied counterpart can only mean “one or other (of two), one” (OLD s.v. 4)—these were snatched away, and she was not even permitted to protect her private parts with a sufficiently large covering (*velamen*). Obviously, this tasteless assault on the decency of a helpless woman cost the executioner dearly. It was ‘a monstrous abomination’; cf. Verg. A. 6.624 *immane nefas*, where it denotes incest.

The phrase *secretum membrorum* as a civilized alternative for a more physical term is only comparable to a few passages in Christian authors: *feminis quoque veri candentes et reusti ardentes absque ullo humanitatis miserationisque respectu ingerebantur per pudenda viscerum et naturalium secreta membrorum*, ‘women were also maltreated: red-hot spits and burning clubs were, without any regard for humanity and compassion, driven into their genitals and the secret parts of their eliminatory outlets’ (Rufin. *hist.* 8.12.7, where Eusebius’ text does not mention women), *quarta plaga Aegyptiorum est cynomiae, caninae scilicet muscae, secretis etiam membris poenas morsibus infligentes* (Quodv. *prom.* 1.36.50).

Women trying to cover their naked bodies during their execution are almost a topos in martyrological texts. Two famous examples are Perpetua and Agnes. The former *tunicam a latere discissam ad velamentum femoris reduxit, pudoris potius memor quam doloris* (Perp. 20.4); in his eulogy of Agnes Pope Damasus mentions: *nudaque profusum crinem per membra dedisse* (Damas. *carm.* 37.7 Ferrua), Ambrose’s version is: *nam veste se totam tegens/curam pudoris praestitit, / ne quis relectam cerneret* (Hymn. 8.26–28 Fontaine; see Nauroy’s notes ad loc.). For burning alive as a form of capital punishment in Amm. see the notes ad 21.12.20 *exustus* and 27.7.5 *Eminuit*. In this chapter the *haruspex* Campensis was also executed in this way (28.1.29). Both Campensis and the anonymous *carnifex* of the present text were, of course, *humiliores*. See for the social position of executioners Aigner, 1988, 202–205. His suggestion (p. 204) that the *carnifices* in this chapter (the word also occurs in § 26 and 55) were soldiers is improbable.

1.29 *Paphius quin etiam et Cornelius senatores ambo venenorum artibus pravis se polluisse confessi eodem pronuntiante Maximino sunt interfecti* As in the other ten instances in the *Res Gestae*, the phrase *quin etiam* functions as no more than a copulative in a series of persons or other items; see the relevant note ad 16.12.1. As is pointed out above in the note ad *vitamque suam* in §8, *venenorum* probably denotes magical practices. For this reason Adrien de Valois' *pravis se* for V's *prevenisse* has to be preferred to Petschenig's *perversis se*. Whereas in Amm.'s only instance of *perversus*, viz. 26.9.7 *scuta perversa gestantes*, this adjective has an entirely different meaning, the two instances of *pravae artes* (21.1.7 [q.v.] and 28.1.14 [q.v.]) refer to magic; *venenorum* can therefore be explained as a gen. explicativus or identitatis. We have no further information about Paphius (PLRE I, Paphius) and Cornelius (PLRE I, Cornelius). For a possible connection between the latter and the Cethegus who was beheaded for adultery, see the note ad 28.1.16 *Tunc Cethegus*. The fact that Paphius and Cornelius were *senatores* (in §27 Amm. calls Tarracius Bassus cum suis *clarissimi*) and therefore belonged to the *honestiores*, did not, as it should have done, protect them from capital punishment (see the note ad 28.1.14 *quem ut* and cf. the case of Lollianus in 28.1.26). With the anaphoric *eodem* Amm. reminds the reader of Maximinus' role in the preceding text (he was, as we saw earlier, *vicarius urbis Romae* in 370–372/373). The verb *pronuntiare* is here used as a juridical t.t.: “als Richter einen Ausspruch tun” (Heumann-Seckel s.v. *f*); cf. also the second part of the note ad 27.7.8 *itemque aliud*.

pari sorte etiam procurator monetae exstinctus est The meaning of most of Amm.'s eight cases of *pari sorte* is far less clear than e.g. in *omnes tamen pari sorte nascimur* (Min. Fel. 37.10). In the note ad 23.5.6 *pari sorte* it is suggested that the general sense implies a reference to identical conditions; cf. also the note ad 22.3.7 *pari sorte*. Here it seems likely that the victim in question (PLRE I, Anonymus 185) had also been convicted of practising magic, but it may merely couple *exstinctus est* with *sunt interfecti*: ‘he was also executed’. *Procurator monetae* is the official title in contrast to *monetae praepositus* (22.11.9, q.v.).

Sericum enim et Asbolium supra dictos, quoniam, cum hortaretur passim nominare, quos vellent, adiecta religione firmarat nullum igni vel ferro se puniri iussurum, plumbi validis ictibus interemit Amm. returns to the start of the series of victims: *principium...*, *unde latius se funditabat* (§8), when the *organarius* Sericus and the sports instructor Asbolius

were arrested, suspected of practising magic. At the time Olybrius was *praefectus urbi* and Maximinus *praefectus annonae* (28.1.8–9 with the relevant notes). Meanwhile Ampelius had succeeded Olybrius (28.1.22) and Maximinus had been promoted to *vicarius urbis* (28.1.5, 28.1.12). Presumably, the suspects had awaited their execution in prison. Unanimously and understandably, translators fail to render the consensus particle *enim*, which is best explained as a sign of empathy, by which the addressee is expected to identify himself with what is reported by the author: ‘of course’ Maximinus disposed of these men. See also the note ad 24.4.12 *hinc enim* and Kroon, 1995, 199–201. See for *passim*, “at random”, OLD s.v. 3 and TLL X 1.614.35 sqq.

As in 27.12.8 *quibus religione firmatis* (q.v.), the term *religio* can be explained as shorthand for ‘a sacred oath’. See further the note ad 25.9.4 *iuris iurandi*. In his oath Maximinus referred to two current ways of execution: the stake and decapitation (see for the various methods of carrying out the death penalty the literature cited ad 21.12.20 *exustus* and 23.5.6 *apparitoris*). Sericus and Asbolius paid dearly for their failure to see through the trick: Maximinus had them executed in a humiliating way by means of a whip with balls made of lead: Paschoud in n. 2 ad Zos. 5.2.4 (Σφαίραις δὲ μολιβδαίαις αὐτὸν κατὰ τοῦ τένοντος ἐνεκελεύετο παίεσθαι, ‘he ordered him to be beaten on the Achilles tendon’) refers to *Cod. Theod.* 9.35.2.1, 11.7.3, 12.1.80 and 12.1.85, adding: “le terme latin est *plumbatae*”; cf. also 30.5.10 *plumbo vita erepta exstinctum* and Prud. *perist.* 10.116–117 ‘*Tundatur*, inquit, *terga crebris ictibus, / plumboque cervix verberata extuberet*’, “let his back be beaten with many strokes, and his shoulders swell up with the blows of the leaded lash” (tr. Thomson) and 122 *inter ictus...plumbeos*. Maximinus’ behaviour and the method he chose to execute Sericus and Asbolius may cause revulsion in present-day readers, but in itself the execution of *humiliores* who had been found guilty of magic was in accordance with the law (see the note ad 28.1.14 *quem ut*).

et post hoc flammis Campensem haruspicem dedit in negotio eius nullo sacramento constrictus The execution of the *haruspex* Campensis (see for him 28.1.8 with the note, for the stake as punishment the foregoing note) was, like that of Sericus and Asbolius, legal. In his case the prosecutor could not only point to laws against magical practices, Paul. *sent.* 5.23.17–18 (quoted ad 28.1.14 *quem ut*), but also to laws against *haruspicina*, viz. *Cod. Theod.* 9.16.1 (*nullus haruspex limen alterius accedat nec ob alteram causam, sed huiusmodi hominum quamvis vetus amicitia*

repellatur, concremando illo haruspice, qui ad domum alienam accesserit, “No soothsayer shall approach the threshold of another person, not even for another reason, but the friendship, however old, of such men shall be rejected. That soothsayer shall be burned alive who approaches the home of another”, tr. Pharr), 9.16.2, 4, 6. Valentinian’s position in this respect was more moderate (*Cod. Theod.* 9.16.9, quoted ad 28.1.21 *haec Valentinianus*), but he nevertheless disapproved of harmfully practiced divination: *Nec haruspicinam reprehendimus, sed nocenter exerceri vetamus*. See 28.1.21 for the death of another *haruspex*, Amantius.

Curiously, execution at the stake is here denoted by a poetic phrase, which usually occurs in a sacrificial context, especially of frankincense, e.g. Ov. *Met.* 6.164 *turaque dant sanctis et verba precantia flammis*, Stat. *Silv.* 4.91 *tura dedit flammis*. Cf., however, also Sen. *Phoen.* 663 *patriam penates coniugem flammis dare*. Campensis, who is also mentioned at the start of the horrible series, was probably not regarded as being able to provide damaging information about other people, so that Maximinus was not bound by any oath. The present text and 30.3.5 are Amm.’s only instances in which *sacramentum* is no more than a synonym of *ius iurandum*. In the other nine cases it means a military oath in phrases denoting either discharge from military service, e.g. 24.3.2 *duo tribunos sacramento solvit* (q.v.), or re-entry, e.g. 26.7.4 *Gomoario et Agiloni revocatis in sacramentum*.

- 1.30** *Opportunum est, ut arbitror, explanare nunc causam, quae ad exitium praecipitem Aginatium impulit, iam inde a priscis maioribus nobilem* At this point Amm. starts the second part of the tale of woes. It begins and ends (in §56) with Aginatius. Cf. 14.7.21 *quas* (the eastern provinces) *recensere puto nunc opportunum*, 30.7.1 *replicare nunc est opportunum*, and such phrases as *res adigit huc prolapsa...situm monstrare Persidis* (23.6.1; see the note ad loc. for other examples).

In the present text the confident phrase *opportunum est*, ‘mitigated’ by the modest restriction *ut arbitror* (see the first part of the note ad 25.9.9 *numquam*), has to cover up the lack of direct chronological information. Nevertheless, “the chronological indications that Ammianus provides are clear and consistent” (Barnes 245). Three stages can be discerned. Amm. first goes back in time to sketch in §31–32 what caused the feud which led to Aginatius’ downfall: Aginatius a) was upset about the fact that Maximinus, *etiamtum praefectus annonae* (in 368–370, cf. the note ad 28.1.6 *unde morato*) had treated Petronius Probus with contempt, and b) resented that Maximinus was preferred to him in

the case of Chilo and others by the *praefectus urbi* Olybrius (in 369–370, cf. the note ad 28.1.9 *morarum*). Next comes Aginatus' unsuccessful attempt to win over Petronius Probus to conspire against Maximinus, the latter's reaction, and the involvement of Anepsia in the Aginatus' affair (§32–35). These events can be dated to Maximinus' vicariate (in 370–372/373, cf. the note ad 28.1.5 *Maximinus*), for, after an intermezzo (§36–40), in §41 Amm. reports Maximinus' promotion from *vicarius urbis* to *praefectus praetorio* (which took place “no earlier than the spring of 372, and perhaps somewhat later, conceivably even in 373”, Barnes 242; the earliest firm attestation of Maximinus as PPO Galliarum is on 14 November 374, *Cod. Theod.* 9.24.3). Amm. finally reports that Maximinus' promotion to the praetorian prefecture and his departure from Rome to Gaul did not prevent him from continuing his crusade against Aginatus: through the agency of the then *vicarius urbis* Doryphorianus he brought about his execution (§51–56), presumably in 375/376 (cf. for the date the relevant notes ad 28.1.55–56).

There is no direct parallel for the metaphoric phrase *ad exitium praecipitem impulit*, but the following passages bear some likeness to it: *‘praecipitantem igitur impellamus’ inquit ‘et perditum prosternamus’* (Cic. *Clu.* 70), *sed omnia in eo praecipitia ad exitium fuerunt* (Liv. 24.7.1), *urbium quasdam, foederatas sed ad exitium licentia* (‘as a result of their lawlessness’) *praecipites, libertate privavit* (Suet. *Aug.* 47).

PLRE I, Aginatus (+ J.R. Martindale in *Historia* 29 [1980] 474) contains the lacunary evidence about Aginatus' career. Apart from Amm. (who mentions him by name also in §32–34, 50, 51, 53–56), Aginatus is known from a law of Julian about tax payments (*Cod. Theod.* 11.20.1, 12 Nov. 363: *Aginatio consulari Byzacenae*) and from two letters of Valentinian, one addressed to the *praefectus urbi* Olybrius (cf. for him the relevant notes ad 28.1.8 and 28.4.1), in which the emperor refers to *Aginatii clarissimi viri vicariae praefecturae scripta* (Avell. 8.1, p. 50, 10–11), the other to Aginatus himself (Avell. 9.1, p. 50, 22: *ad Aginatum vicarium*). Both letters deal with the aftermath of the struggle for the episcopal see in Rome during the urban prefectures of Viventius (27.3.11–13) and Olybrius' immediate predecessor Praetextatus (27.9.9). Amm. repeats his ancient aristocratic descent in §52 *homo patriciae stirpis* and 54 *senatorem perspicui generis*. The name Aginatus does not occur earlier, but men called Aginatus (Acinatus/Aginantius) are on record in the fifth century, viz. Caecina Decius Acinatus Albinus (PLRE II, Albinus 7), *praefectus urbi* in 414, and Anicius Acilius Agina(n)tius Faustus (PLRE

II, Faustus 4), *consul* in 483, which caused some scholars to hypothesize that our Aginatius belonged to the family of the Anicii (e.g. Seeck, 1894) or the Caeonii (e.g. Chastagnol, 1960, 431 with n. 1).

In the present text the importance of *priscis* should not be overlooked; as is pointed out in the note ad 23.6.32 *divinorum*, the adjective denotes the remote past. Aginatius may well have belonged to a *gens* that pretended to be descended from Trojan stock, as Jerome notes about Toxotius (PLRE I, Toxotius 2), *qui Aeneae et Iuliorum altissimum sanguinem trahit* (epist. 108.4). Toxotius' wife Paula (PLRE I, Paula 1) was supposedly descended from the Gracchi and the Scipiones (Hier. epist. 108.1, cf. the epitaph in 108.33). We know of more such claims. Pammachius (PLRE I, Pammachius) claimed the Furii as ancestors (Hier. epist. 66.6), Furia (PLRE I, Furia) Camillus and the Gracchi (Hier. epist. 54.1 and 54.4). Both L. Aradius Valerius Proculus *signo* Populonium (PLRE I, Proculus 11) and (Valerius) Messalla Avienus (PLRE II, Messalla 3) claimed descent from the Publicolae (Symm. Ep. 1.2.4, Rut. Nam. 1.271–272). Rufius Antonius Agrypnius Volusianus (PLRE II, Volusianus 6) were descended, according to Rutilius Namatianus (1.167–170) from Volusus, mentioned in Vergil's *Aeneis* as an ally of Turnus. The historian Tacitus is assumed to have been the ancestor of both Sidonius' friend Polemius (PLRE II, Polemius 2; Sidon. epist. 4.14.1) and of the emperor M. Claudius Tacitus (PLRE I, Tacitus 3; HA Tac. 10.3). In the *Historia Augusta* AC 1.1, 1.4, AS 44.3, Gd 2.2, 9.4, 17.2 are also relevant. More examples in Speyer, 1976, 1254–1263. Cf. also Näf, 1995, 278–281. See for *nobilis* the note ad 28.1.10 *cumque multiformiter*.

Most if not all of these claims were fictitious. Was this the case also with respect to Aginatius' pedigree? Some very well respected ancient historians have surmised that with *ut locuta est pertinacior fama; nec enim super hoc ulla documentorum rata est fides* Amm. does not refer to the whole story of Aginatius' downfall (so e.g. Alföldi, 1952, 136 and Sabbah 134–135), but expresses doubts about the antiquity of Aginatius' lineage (e.g. Thompson 21; Syme, 1968, 151; Tomlin, 1973, 336 n. 55; Matthews in CR 24 [1974] 102). However, as was remarked above, Amm. twice repeats the status of this lineage, in § 52 and 54, which should be taken seriously, pace e.g. Tomlin, who regards this as “irrelevant, since it is not Aginatius' nobility which is in doubt, but its antiquity” (cf. Arnheim, 1972, 176). Moreover, the perf. *locuta est* does not sit well with a state of affairs, and tallies far better with a report of events, viz. the stages of Aginatius' downfall: at the time a quite persistent rumour ‘spoke’ about the affair.

ut locuta est pertinacior fama; nec enim super hoc ulla documentorum rata est fides This is a highly important testimony to the historian's historiographic principles. Introducing his laudatory report on Julian's feats in Gaul, Amm. announces that only the *fides integra rerum absolvit* ('produced this report') *documentis evidentibus fulta* (16.1.3). The historian's reservation concerning the purely oral tradition is the counterpart of this proud principle: *solet fama novitates augere* (22.2.3), *fama, rumorum nutrix maligna* (31.5.8). Nevertheless, at times the historian cannot afford to neglect this tradition, especially when it is persistent: see the note ad 26.4.4 *ut loquebatur pertinax rumor*, a phrase which also occurs in 16.6.3. From another point of view, a conscientious ruler should not disregard a persistent rumour either, and Valentinian deserves to be blamed for doing just that in 30.5.7. In the present text Amm. excuses his use of the oral tradition as being caused by the total absence of any truly reliable evidence provided by official documents.

Sabbah 133–140 devotes some enlightening pages to Amm.'s use of such documents, arguing that the historian took advantage of the evidence available in archives more frequently than some have assumed. See also on the archives the note above ad § 15 *hactenus*. The term *documentum* occurs thirty times in the *Res Gestae*, with different meanings. In 15.8.15 *irae documentum est* it expresses that soldiers by hitting their shields with their spears indicate their anger; the word can also denote a precedent: during a battle the Persian elephants were *documentis praeteritis formidati* (24.6.8), such a meaning is also present in *documento recenti* (14.7.6, 26.2.4 [q.v.] and 26.5.11), where it is implied that a lesson should be learned from such a precedent. In a number of instances *documentum* has a juridical meaning, e.g. 18.1.4 *documentorum inopia percitus* (q.v.), 20.2.3 *documenta...perspicue demonstrantia* (q.v.), 27.2.9 *ni...documentis evidentibus constitisset* (q.v.). In his section on the various functions of *documentum* (380–386) Sabbah convincingly argues that in the present text “le sens judiciaire...se double d'un sens ‘méthodologique’, celui de ‘document historique’” (383). Unfortunately, his explanations are slightly marred by his preferring V's *illa* to Gelenius' *ulla*, printed by Henri de Valois, Clark, Seyfarth and Marié. Only Viansino agrees with him, rendering *illa...fides* with “l'usuale credibilità”. Sabbah's own translation “la grande confiance qu'inspirent les documents” testifies to a similar ‘overinterpretation’ of *illa*. However in Sabbah, 2005, 380 n. 15 he accepts *ulla*.

In the phrase *documentorum rata...fides* every word adds to the meaning which is required in the context: *documentorum* refers to explicit

evidence which is available in existing written documents, *ratus* is here used in the meaning “regarded as valid, established, authoritative” (OLD s.v. 2), *fides* denotes the reliability of the evidence (see the note ad 23.6.25 *apud quos*). Within their compact coherence the three words create the idea that the information at the disposal of the historian should be totally reliable. Alas, such information is not available and therefore he is forced to content himself with a ‘more than usually persistent oral tradition.’ In other words, especially the comparative *tenacior* is apologetic.

- 1.31** *anhelans flatu superbo Maximinus etiamtum praefectus annonae* The original meaning of *anhelare* is ‘to gasp, to pant’, but the verb tended to be used in phrases denoting ambition: people ‘gasped for’ some sort of success; cf. 16.12.46 *altius anhelabant* (see the note ad loc. for further examples in Amm.). In the present text the metaphorical use somehow returns to its original meaning because of the use of *flatus*. See for some examples of metaphorical *flatus* as a synonym of *ambitus* or *superbia* TLL VI 1.883.56sq. As is noted above ad §6 *unde morato*, Maximinus was *praefectus annonae* in 368/370.

nactusque audaciae incitamenta non levia tendebat ad usque Probi contemptum, viri summatum omnium maximi iureque praefecturae praetorianae regentis provincias In the long series of heavy punishments the focus had gradually shifted to the victims. With ‘having acquired no mean incentives for his rashness’ Amm. probably intends to shift it back to the protagonist and to remind the reader that Valentinian had in fact allowed him a free hand to pursue his crusade; see e.g. §21 *Valentinianus...vigore nimio in negotium iussit inquiri*. The litotes *non levis* or *leviter* occurs in many Latin authors; Amm.’s other instances are 14.6.18, 17.13.21 and 18.3.4. Maximinus went so far as to slight Petronius Probus. There are no clear parallels for the metaphorical use of *tendere (ad) usque*. Some instances of a topographical meaning can be found in the *Vulgata*, e.g. Num. 34.12 *tendent usque ad Iordanem*; cf. also Hier. *epist.* 108.13 *vidit scalam tendentem usque ad caelum*. The metaphorical meaning derived from this can be found in Liv. 8.32.15 *ne ad extremum finem supplicii tenderet* and perhaps Hil. *psalm.* 14.15 *tendit usque ad consummationem perfectam admonitio caelestis*.

Almost the whole of chapter 11 in Book 27 is devoted to the mighty Sex. Claudius Petronius Probus (*PLRE* I, Probus 5). See for a summary of his career the note ad 27.11.1 *ad regendam* and add to the litera-

ture there Lizzi Testa, 2004, 297–305. The *summates* are the leading men at the top of society. Probus was the most eminent of the entire group. In the present text *summatum* is, of course, a gen. partitivus, but the expression as a whole is akin to the “Genitiv der Steigerung” (Szantyr 55), and comparable to biblical phrases like *princeps regum terrae* (Apoc. 1.5). Within the context the long-winded phrase to indicate Probus’ repeated term of office as *praefectus praetorio* is not superfluous, but serves to indicate the wide geographical reach of his power. As is noted ad 27.11.3 *ita ille*, Probus’ third prefecture probably lasted from 368 to 375. In 368, before he was summoned to become PPO, he apparently lived as a private citizen in Rome (see the note ad 27.11.1 *ad regendam*).

quod Aginatius indignissime ferens dolensque in examinandis causis Maximinum ab Olybrio sibi praelatum, cum esset ipse vicarius Romae The noble Aginatus was scandalized by the insulting behaviour of the Panonian upstart Maximinus, *obscurissime natus*, towards the distinguished Roman aristocrat Probus, *nobilitatis culmen* (ILS 1265). His indignation would be the more understandable if Seeck’s suggestion were right that Aginatus belonged to the family of the Anicii (see the note ad § 30 *Opportunum*), for Probus was *Anicianae domus culmen* (ILS 1267; cf. the note ad 27.11.1 *claritudine generis*). Aginatus further resented the fact that he, although as *vicarius urbis Romae* higher in rank than a mere *praefectus annonae*, had been passed over in favour of Maximinus *in examinandis causis* (among these the Chilo affair, 28.1.8–9). The phrase *indigne ferre* is used by several authors; Amm.’s instances are 28.5.7, 29.6.2, 30.10.6, 31.6.2, but the superlative is rare and here perhaps also used c.c. See Heumann-Seckel s.v. for *examinare* as a juridical t.t. Aginatus was *vicarius Romae* in 368–370.

1.32

familiari sermone docuit Probum occulte facile vanum hominem recalcitrantem sublimibus meritis posse opprimi, si ille id fieri censuisset As appears from *has litteras* in the next section, *sermone familiari* does not refer to a private conversation, but to (the content of) a confidential letter. Such a meaning occurs more often in Late Latin, e.g. Symm. *Ep.* 3.3.1 *sermonem tuum festinatione praevenio*, Hier. *epist.* 47.1 *Lecto sermone dignationis tuae*. The translators are quite unanimous in their rendering of *occulte*: “secretly” (Rolfe), “insgeheim” (Seyfarth), “secrètement” (Marié), “di nascosto” (Caltabiano). Although it is slightly pleonastic after *familiari sermone*, this translation seems reasonable enough. Yet in view of

the sequel of the text it is far more likely that it refers to the obscure phrasing of the message: Aginatus could expect Probus to understand immediately who was meant by “a man of no substance kicking against sublime merits”. This man could easily be brought down, if Probus so decided. In TLL IX 373.18 the present text is rightly listed as one of the instances in which *occulte* in combination with *verba declarandi* denotes ‘in a manner which is inaccessible for others’, comparable to Caesar’s custom in confidential letters: *si qua occultius perferenda erant, per notas scripsit* (Suet. *Jul.* 56.6). Amm.’s other instances of *recalcitrare* (14.7.14, 15.7.9, 22.11.5) also denote senseless resistance against authority. Amm.’s only other instance of *sublimis* praising virtue is 16.8.5 *vir sublimis constantiae*. The combination *sublime meritum* occurs in some Christian authors, e.g. Paul. Nol. *Carm.* 27.323 *Felicis meritum sublime*, Casian. *conl.* 21.9 *ad conscendendam sublimium meritorum celsitudinem*. In accordance with the classical rules, in the *oratio obliqua* the subjunctive of the pluperfect *censuisset* substitutes the *futurum exactum* of the *oratio recta*.

- 1.33 *has litteras, ut quidam asseverabant, Probus ad Maximinum eruditorem iam in sceleribus commendatumque principi pertimescens nullo conscio praeter baiulum misit* See the note ad 26.2.1 *Elapso* for an assessment of *ut quidam*-phrases, which occur in many authors. The opinion or information involved is presented to the reader as worthy of being mentioned. Clear-cut scepticism is usually explicitly mentioned. One may surmise that the most Amm. wants to say in the present text is that he has not personally been able to verify the evidence in question. The part. perf. pass. *eruditus* is by no means exclusively used in a positive sense, as e.g. in 16.9.2 *multis...bonis artibus eruditus*. Right at the beginning of the extant part of the *Res Gestae* the sinister couple Gallus and Constantia are introduced with the following words: *paulatim eruditiores facti processu temporis ad nocendum* (14.1.2); cf. also *in assentationem nimiam eruditi* (15.8.2), *eruditior ad laedendum in modum arenariae ferae* (29.1.27). Apart from being an accomplished criminal, Maximinus was greatly favoured by Valentinian. It is not surprising that Probus feared such a man: he was *interdum timidus ad audaces* (27.11.2). As in 15.5.10 and 18.6.17, *baiulus* here denotes a letter-bearer, a meaning which the word has more often in Late Latin, e.g. Hier. *epist.* 6.1 *saepe scripsi, sed neglegentia baiulorum fuit* (as an example of a time-worn excuse), August. *Ep.* 245.1 *celerrimus baiuli reditus*.

hisque recitatis ita homo ferus exarsit, ut machinas omnes in Aginatium deinde commoveret, velut serpens vulnere ignoti cuiusdam attritus In 20.9.2 *hisque recitatis* can mean that Julian's letter was read (aloud) to Constantius, but even there it might also express that Constantius read the letter himself. In view of the confidential character of Probus' letter this meaning is the only one possible in the present text. The same is true for 21.4.2 *signatam quoque chartulam tradidit mandavitque, ne aperiret vel recitaret*. In 27.7.4 Valentinian is called *homo propalam ferus*; see the note ad loc. As appears from TLL VIII 12.26–69, the metaphorical meaning of *machina* as a synonym of *dolus*, *fraus*, *insidiae* is already present in Plautus, e.g. *Mil.* 813 *quantas moveo machinas*. V's *noti* can perhaps be explained as based on a piece of lore reported by Plin. *Nat.* 8.86: when a serpent has been killed, its partner wants to take revenge and *persequitur interfectorem unumque eum in quantolibet populi agmine notitia quadam infestat*, “it pursues the murderer and by means of some mark of recognition attacks him and him only in however large a throng of people” (tr. Rackham). Inexplicably the editors prefer Heraeus' *ignoti*, which does not add anything to the context. Even more difficult to understand is their rejection of Kiessling's *rotae* (1874, 7), supported by E. Bickel, *GGA* 180 (1918) 280, which is based on Vergil's description of the reaction of a snake *aerea quem obliquum rota transiit* (*A.* 5.274). In this case the maimed snake itself reacts with all the means and threats at its disposal, as did Maximinus. Whichever solution is chosen, *attritus*, ‘worn out’ (see the note ad 22.8.18 *attritis*) is a strange term for one incident. See on the verb *atterere* the note ad 28.2.12 *et quamlibet*. One would have expected *obtritus*, as in 21.12.11 *obtriti sunt saxis immanibus*, 31.15.13 *magnis obtriti ponderibus*. However, *Gloss.* II 448.19 mentions *attritus* as one of the possible translations of συντετριμμένος ‘crushed’. Perhaps Amm. had a similar idea.

accessit his alia potior insidiarum materia, quae eundem Aginatium obruit Cf. 24.7.8 *hisque accedebat aliud haud exiguum malum*, 25.7.12 *quibus exitiale aliud accessit et impium*, 26.10.9 *His accedebant alia graviora*, 27.7.8 *ad hanc inclementiam illud quoque accedebat dictu dirum et factu*, 31.5.4 *ubi aliud accessit atrocius*. The stereotyped phrase, which occurs in many authors, can also be used in a positive context: *Accesserat aliud ad gaudiorum praesentium cumulum* (22.8.49), but Amm. more often has a further deterioration to report. In the present chapter this is expressed by comparable phrases in § 19, 26, 48 and 49. See for Amm.'s metaphorical use of *materia* (‘source’, ‘ground’, ‘cause’) the note ad 20.4.15 *discordiarum*

1.34

materias and 27.5.1 *Procopio*. The pleonastic anaphoric *eundem*, ‘just mentioned’, probably serves to emphasize the change of focus from Maximinus to Aginatus.

Victorinum enim defunctum insimulabat ut Maximini actus, dum supererat, venditantem, cuius ex testamento legata ipse sumpserat non aspernanda These somewhat cryptic words are best explained with the help of § 27. There it is reported that four *clarissimi*, who had been accused of magical practices, were unexpectedly discharged *suffragante*... *Victorino*, a very close friend of Maximinus. Such practices were now denounced by Aginatus as the ‘sale’ of Maximinus’ *actus*, interpreted by Wagner as “sententias absolutorias”. However, *actus* is not a juridical t.t. It is possible that the author confuses *actus* with *actio*, which would suit the context, but does not occur in the *Res Gestae*. The distasteful character of the accusation consisted in the fact that in the meantime Victorinus had died, leaving a substantial legacy to Aginatus. See for *testamentum* and *legatum* the definitions given in Ulp. *reg.* 20.1: *testamentum est mentis nostrae iusta contestatio, in id sollemniter factum, ut post mortem nostram valeat* and 24.1: *legatum est quod legis modo, id est imperative, testamento relinquitur*. See for the time-worn litotes *non aspernanda* the note ad 28.2.6 *quos lege*.

parique petulantia Anepsiae quoque, eius uxori, lites minabatur et iurgia It is quite difficult to pinpoint the precise meaning and connotations of *petulantia*: it denotes an impudent, rude and wanton aggressiveness; see also TLL X 1.74–75 about *petulans*: “dicitur de eis, qui alios petere cupiunt, lacessere vel laedere student”, and the note ad 26.7.11 *nullo praeter*. The combination *lites et iurgia* has a long history, as appears from Cic. *Div.* 1.102, where it is ascribed to ‘our forebears’; see Pease ad loc. and for *iurgium* as a juridical t.t. the third paragraph of the long note ad 27.11.3 *ita ille*. In view of the unpleasant prospects Anepsia had to seek assistance. Victorinus’ wife Anepsia, “la femme dont la présence est la plus durable et la plus forte dans ce chapitre” (Sabbah, 1994, 330), is only known from Amm., who mentions her again by name in § 35 (where it becomes clear that Victorinus was not her first husband), 49, 50, 54 and 56.

- 1.35** *quae haec metuens ut Maximini muniretur auxilio, finxit maritum in voluntate, quam condiderat nuper, argenti tria milia pondo eidem reliquisse. qui aviditate nimia flagrans—nec enim hoc quoque vitio caruit—petit*

hereditatis medietatem The phrase *munire auxilio* occurs often in Christian Latin authors, e.g. Chromat. in Matth. 57.1 *nec enim posset tuta esse humana infirmitas...nisi sanctorum angelorum muniretur auxilio*, August. pecc. orig. 1.31.34 *Christi munitur auxilio*. Anepsia fell from the frying pan into the fire with her fabrication of a further considerable legacy left to Maximinus in Victorinus' recently drawn up last will. See for the rare phrase *voluntatem condere*, 'to make a testament', TLL IV 153.63–66. Obviously 'three thousand pounds of silver' (cf. for *pondo* the note ad 20.4.18 *quinos omnibus aureos argentique singula pondo*) were less than half of Victorinus' inheritance, and as Maximinus was very greedy, the reader will easily understand (*enim*) that he raised his claim. See for *medietas*, 'half', TLL VIII 556.84–557.50.

verum etiam hoc ut parum sufficienti nequaquam contentus aliud commentus est, ut arbitratur, honestum et tutum et, ne amitteret amplam sibi oblatam lucrandi uberis patrimonii, Victorini privignam, Anepsiae filiam, petit filio coniugem idque assentiente muliere prompte firmatum est Amm.'s only other instance of the verb *comminisci* is 15.5.4 *fraudem comminiscitur impiam*. The verb occurs often, but not exclusively, in a context of cheating or fraud (TLL III 1887.9: "saepe cum nota fallaciae, malitiae"), a connotation which here contrasts with Maximinus' own assessment (*ut arbitratur*). The combination of *honestus* and *tutus* occurs in many authors. In some situations they exclude one another, as in Cic. Att. 7.22.2, where Cicero mentions the possibility to hand himself over to Caesar: *fac posse tuto (multi enim hortantur), num etiam honeste? nullo modo quidem*, in other cases they denote less contrasting alternatives: *utilitas in duas partes in civili consultatione dividitur: tutam, honestam* (Rhet. Her. 3.2.3). They can also go hand in hand: *clementia ergo non tantum honestiores sed tutiores praestat* (Sen. Clem. 1.11.4); when he concludes his plea for vegetarianism, Pythagoras urges: *corpora...tuta esse et honesta sinamus* (Ov. Met. 15.459–461). According to Amm., Maximinus was wrong in regarding his advantageous matchmaking as belonging to the latter category. He grabbed the 'handle' which had been offered to him: see the notes ad 19.3.2 *ut amplam* and 21.16.8 *si affectatae* for the metaphorical use of *ampla*. The adj. *uber* is well chosen: the late Victorinus' property promised rich future 'harvests'. The phrase *petit coniugem* implies matrimony (*coniugium*), which is referred to by *id*. The verb *firmare* is here used to denote implementation, which is not its usual meaning; cf., however, 21.13.9 *ad firmanda promptius...imperanda* (q.v.). The adv. *prompte* emphasizes Maximinus' achievement, which had been

brought about easily and swiftly. Unfortunately, for all her forced obligingness, Anepsia was in the end unable to save herself: *pari sententia Anepsia interfecta* (§ 56). A cryptic passage in Symmachus' speech *Pro Patre* may well refer to Anepsia's death and her daughter's marriage; see Sabbah 338 with n. 71; Pabst 1989, 162 n. 54. The orator praises the emperors for the improvement of the political climate, which *inter alia* appears from the following words: *nullae iam nuptiae caesa parente iunguntur nec funeri succedit hymenaeus neque flammeo vestis atra mutatur* (Symm. Or. 4.13). This order of events differs from Amm.'s report, in that Anepsia's daughter's marriage follows her mother's death. The historian's eagerness to knit the phases of Maximinus' growing stranglehold on Victorinus' fortune closely together inevitably leads to doubts about his chronology. It was to Maximinus' son, and not to Maximinus himself that Anepsia's daughter was to be married, pace *PLRE* I, Anepsia ("she agreed to the marriage of her daughter to Maximinus 7"). A son of Maximinus (*PLRE* I, Marcellianus 2) is mentioned in 29.6.3. Whether he is identical with the man mentioned here is not known. There is no entry in the *PLRE* for Anepsia's daughter.

Sections 36–40 complete the story of Maximinus' actions on the spot, and report some characteristic aspects of this episode and finally, in § 40, paint a very brief portrait of Maximinus in his role of prosecutor.

- 1.36** *Per haec et alia simili maerore deflenda, quae decolorabant speciem urbis aeternae* Remarkably, not anger, but grief is the emotion which the historian mentions as the intended reaction to the events he is reporting. He is, after all, a Phrynichus redivivus. This is the only instance of *decolorare* in the *Res Gestae*. It could be interpreted metaphorically, but its primary sense fits the text excellently: Rome's appearance had lost its colours in the eyes of those who experienced these days of tears. The designation of Rome as *urbs aeterna* also occurs right at the beginning of this chapter in § 1 (q.v.) and near the end in § 56.

grassabatur per strages multiplices fortunarum homo cum gemitu nominandus ultra forenses terminos semet extentans The first *per* of this section denotes Maximinus' methods, the second in combination with *grassabatur* almost visualizes the scene: the ballet dancer of § 13 has become a gangster (see below in § 38 *latronem*) marching on through the numerous ruins of his victims. See for *grassari* "speciatim de latronibus, piratis sim." TLL VI 2.2200.28–54, and the note ad 28.2.11 *grassator*. The adj.

multiplex, for which Amm. has a great liking (see the note ad 21.6.6 *multiplicisque*), probably emphasizes the various ways in which many people were ruined. See for the plural of *fortuna* denoting ‘property’ the note ad 22.10.1 *et innocentes*. It may, however, also denote status; see the third part of the note ad 26.2.4 *ex eo*. Maximinus gruesomely copied Paul the Chain, *cum multorum gemitu nominandum* (22.3.11). Note that *gemitus* is a loud expression of sorrow, a “lamentabilis sonus” (TLL VI 2.749.54). TLL V 1.1983.23–33 lists only six instances of *extentare*, one in Lucretius, two in Plautus, three in Amm., apart from the present text 17.5.2 about Sapor’s arrogance: *latius semet extentans*, and in a physical sense 22.14.3 *homo brevis umeros extentans angustos* (about Julian, see the note ad loc.). Plaut. *Most.* 594 *venisti huc te extentatum?*, “did you come here to expand yourself?” (tr. Nixon) also expresses a form of arrogance. In the present text Maximinus’ ‘expansion’ of himself even goes beyond the limits of lawful procedures; cf. above § 10 *supra plantam, ut dicitur, evagatus* (q.v.). As will become clear, he made use of two blame-worthy strategies.

namque et resticulam de fenestra praetorii quadam remota dicitur semper habuisse suspensam See for *namque* introducing an example OLD s.v. 3b; *et* at the beginning of the description of Maximinus’ first strategy corresponds with *et* in *et Mucianum* in the last part of the section. There was always a rope hanging from a remote window of Maximinus’ official residence. In Late Antiquity the word *praetorium* (“sedes praetoria, sc. ubi praetor et deinde quilibet praepositus munere suo fungitur et habitat”, TLL X 2.1071.51) most often denotes the headquarters of a military commander (as in 31.5.6), the residence of an emperor or that of a provincial governor (cf. Egger, 1966; Martin, 1989; Lavan, 2001; Alessio, 2006). In Amm. the term occurs four times. In 14.7.10 (q.v.) and 14.7.15 it refers to the residence of a praetorian prefect and in the present text to that of a *vicarius urbis Romae*. Symm. *Rel.* 23.4 and 23.12 uses the term *secretarium commune* for the official residence of the vicar, which he apparently shared with the *praefectus urbi* (cf. Färber, forthcoming).

cuius summitas quadam velut † damusam colligaret, nullis quidem indiciis fulta, sed nocitura insontibus multis Unfortunately, V fails to cooperate where the precise details of the rope are concerned. Obviously, at its end people could, without being seen, fasten incriminatory material about named individuals. We need some word(s) indicating the notes and

how these could be attached. Various solutions have been tried. Valesius found it an easy task: he proposes *quaedam velut clausa*, tentatively interpreting *clausa* as “τετελεσμένα, id est magicis artibus consecrata”. This roused the scorn of Gronovius, who specifically criticized the lack of a satisfactory sense of *velut*. His own solution was *quaedam, velut empusam, colligaret*. An ἑμπούσα is a sort of bogey, able to change shapes. Wagner judges that both scholars had “temere” introduced an element of magic. He seems to be the first textual critic to question the correctness of V’s *quaedam* in his conjecture *quadam velut capsula*, which produces a functional sense of *velut*: ‘something which looked like a small box’, but leaves *colligaret* without object. In the choice of *quadam* he has found followers. However, the most economical repair of the text is proposed by Češka, 1974, 98: building on Heraeus’ *quaedam velut hamus*, “an object made in the shape of a hook” (OLD s.v. 1b), he reads *quaedam* (neutr. plur.: ‘some informative material’) *velut hamus clam*. The addition of *clam* has two advantages: it expresses ‘without being seen’ and with *colligaret* forms a *cursus planus*. Marié’s decision to print this solution is comprehensible. On the other hand, all conjectures proposed assume a minor corruption, but possibly an entire line has been lost.

As in 19.8.8 *ultimae aptavimus summitati* (q.v.), 22.8.7 and 22.8.20, *summitas* is here a synonym of *extremitas* (‘end’). The subj. *colligaret* is final: ‘meant to bind together’. Cf. for *fula* a phrase in Amm.’s programmatic historiographical statement in 16.1.3: *fides integra rerum...documentis evidentibus fula*.

Maximinus’ procedure resembles that of the *praeses Osrhoenae* Alexander (PLRE II, Alexander 14), who in 497 in Edessa “placed a box in front of his palace, and made a hole in the lid of it, and wrote thereon, that, if any one wished to make known anything, and it was not easy for him to do so openly, he should write it down and throw it into it without fear. By reason of this he learned many things which many people wrote down and threw into it” (Josh. Styl. 29, tr. Wright). Alexander, in contrast to Maximinus, behaved in this way to improve his administration of justice.

et Mucianum Barbarumque apparitores aliquotiens discretim trudi iubebat ad fallendum aptissimos As was noted above *ad namque et*, Maximinus’ second strategy is introduced by *et* corresponding with *et* at the beginning of the first. Apart from anonymous and unfounded accusations, Maximinus also made use of ‘agents provocateurs’. From time to

time Maximinus had two of his clerks kicked out. For *apparitor*, ‘clerk’, ‘public servant’ (in the office of a civilian or military dignitary), see the notes ad 23.5.6 *apparitoris* and 27.3.10 *apparitores*. The *apparitores* mentioned there served in the office of the praetorian and urban prefect, respectively, while in 27.7.5 (q.v.) Amm. speaks of three *apparitores* of the *vicarius Italiae*. Mucianus and Barbarus belonged of course to the office of the *vicarius urbis Romae*. These assistants of Maximinus shared the honour of being mentioned by name in the *Res Gestae* with Antoninus, *ex mercatore opulento rationarius apparitor Mesopotamiae ducis, tunc protector* (18.5.1), and Hyperechius, *antehac cellae castrensis apparitorem* (26.8.5). See for *apparitor* in Amm. also the note ad 26.4.3 *participem* and cf. § 43, 47 and 49.

See for Amm.’s frequent use of *aliquotiens* the notes ad 20.6.9 *aliquotiens* and 27.11.2 *nunc beneficium*. The two men were sent away ‘separately’: ‘together’ would have betrayed the matter. The choice of the verb *trudere*, ‘to compel to go’ (OLD s.v. 2) is puzzling: in its ‘physical’ sense it is usually accompanied by an adjunct denoting a direction: *trusi in angustias* (16.11.3), *trusumque in carcerem* (28.1.57 and 28.6.24). However, the two expert cheats were not driven in a particular direction: they only had to use the right opportunity. Sabbah 338 n. 71 most opportunely refers to Symm. Or. 4.14 *Quid loquar...eruditos in mendacium reos et subornandi artifices ianitores*; see Pabst ad loc.

hi tamquam heiulando casus, quibus se simulabant oppressos, iudicis exaggerando crudelitatem The author goes out of his way to depict the fraudulent practices of Maximinus’ two subordinates no less than three times: *tamquam*, *simulabant* and *exaggerando*. See for *heiulare* the note ad 27.12.7 *multis post*. From TLL V 2.314.30–34 it appears that the verb rarely occurs with a direct object. It is difficult to decide whether *quibus* is an instrumental abl. or functions as Agens. See for the latter possibility 22.3.11 (Apodemium et Paulum) *qui sperari debuit, oppressit eventus*, ‘met the fate one must have hoped for them’ (tr. Hamilton). In the present text, however, the cruel *iudex* is the real Agens. Cf. for *exaggerare* in the rhetorical sense 14.1.10 *actus eius exaggerans*, 26.5.7 *factumque exaggerantes*.

1.37

remedium nullum aliud reis ad obtinendam vitam superesse eadem replicando saepe asseverabant, ni criminibus magnis petissent nobiles viros, quibus ad sui societatem annexis facile eos absolvi posse firmabant The phrase *eadem replicando saepe*, a variation of *eadem saepius replicando*

(21.2.2), should be put between commas, with the gerund *replicando* interpreted as the equivalent of a part. praes.: ‘repeating the same ideas’; the various meanings of *replicare* are mentioned in the note ad *replicatoque* (20.9.6). See for the inf. praes. *superesse* instead of an inf. fut. Szantyr 307–308 and the note ad 22.7.5 *promittentes*.

The oratio recta would have been: *remedium nullum aliud reis supererit, nisi criminibus magnis petierint* (fut. exact.) *nobiles viros*. Mucianus and Barbarus gave the assurance that by attacking aristocrats (see for *nobilis* the note ad 28.1.10 *cumque conformiter*) with grave accusations, defendants (*reis*) could expect to get off safely once they had become involved with them. According to Amm., aristocrats were the victims of Maximinus’ idiosyncratic type of ‘class justice’, but his two assistants persuaded people to believe that he was, in fact, shielding them. See for *annectere*, ‘to associate with’, the second section of the note ad 21.12.23 *maxime*.

- 1.38** *Ob quae implacabilitate ultra apposita iam pergente manus vinculis sunt artatae complurium ortuque nobiles inculti videbantur et anxii* See for the rarity of the noun *implacabilitas* the note ad 26.10.13 *haec*. Henri de Valois is absolutely certain of his correction *implacabilitate*: “Nihil certius est quam sic corrigendum esse ut fecimus”. The correction is probably right, inter alia in view of the quotation from Cicero in § 40, but Gelenius’ *impia vilitate*, which he perhaps found in the Hersfeldensis, would also suit the context by contrasting Maximinus’ *vilitas* and the ‘aristocrats by birth’. See for *ultra* in phrases denoting excess the note ad 27.12.11 *hoc comperto*. The implacability went beyond the bounds ‘which were set to it’, as did the evil in 15.8.7 *huic igitur malo ultra apposita iam proserpenti*. In a somewhat laboured phrase the hands of the detainees are said to have been ‘imprisoned in shackles’. The aristocrats were so demoralized and distressed by the events that their failing to take care of their outward appearance was clearly visible.

nec eorum culpari quisquam debuit, cum salutantes humum paene curvatis contingentibus membris persaepe clamantem audirent spiritus ferini latronem nullum se invito repperiri posse insontem The author complicates his report by mixing satirical elements into his indignant lament. The verb *culpare* is not a juridical t.t., but rather denotes criticism or disapproval: *Itaque in vanum operosos culpaverim* (Sen. Ep. 31.4), *Vitellium celebrantes culpantesve* (Tac. Hist. 2.21.4), *hinc Origenes iure culpatur* (August. C.D. 11.23). Amm. excuses the aristocrats: not one of them

deserved at that time (*debut*) to be censured for his conduct. Amm.'s references to the Roman social customs of greeting testify to a certain amazement: in 14.6.12 and 13, and 28.4.10 (q.v.) they occur in the context of satire, formulated in words which are reminiscent of the very humble way in which Antoninus greeted Ursicinus in 18.8.5 *curvatisque membris humum vultu paene contingens salutavit patronum appellans et dominum* (q.v.). Comparable phrases are 16.12.65 *primo curvatus, deinde humi suppliciter fusus*, and 29.5.15 *curvataque cervice humi paene affixus*. Amm. seems to have regarded similar behaviour of Roman aristocrats as ridiculous. In the present text it was not successful either: the humiliation merely resulted in the 'gangster with the breath of a wild animal' (cf. § 12 about Leo: *efflantem ferino rictu crudelitatem*), boasting that he, Maximinus, was the only person to decide whether people were innocent or not. Cf. 19.12.13 about Paulus Catena: *cuius ex nutu, prope dixerim, pendebat incidentium omnium salus*.

quae verba effectui propere iuncta terruissent profecto Numae Pompili similes et Catonem With 'words to which realization was swiftly attached' Amm. achieves a dignified version of proverbial expressions like *dicto citius* (Verg. A. 1.142; see Austin ad loc. for a number of parallels) and *dictum factum reddidi* (Ter. Hau. 760); cf. also the Greek saying ἄμ' ἔπος ἄμ' ἔργον (Zenobius 1.77, Leutsch-Schneidewin I, 1839, 27). See further Otto, 1890, 112. For *effectus*, 'realization', 24.4.10 provides a fine parallel: *ut erat necessarius appetitus, ita effectus res difficillima*; 17.12.11 *aequitati iuncta benignitas* illustrates the function of *iunctus*. Some other comparisons with men from the past are 25.4.17 *Marci illius similis Caesaris* (q.v.), 26.9.11 *illius similis Crassi* (q.v.), 29.5.4 *Domitii Corbulonis et Lusii veterum simillimi*. Maximinus' ruthlessness would have frightened even the likes of Numa Pompilius, that stalwart of integrity, who is also mentioned for this reason in 16.7.4. See also the note ad 21.14.5 *Numaque* and in general for his role as an *exemplum* Brandt, 1988. Blomgren 58–59 regards *Catonem* as a case of 'inconcinnitas sermonis', thus disagreeing with Valesius' tentative proposal ("ut videtur") *Catonum*. Cf. on the one hand Macr. Com. 2.17.8 *inter Romanos Numa, Catones ambo, multique alii*, on the other Mart. 12.3.7–8 Shackleton Bailey *macte animi, quem rarus habet, morumque tuorum/quos Numa, quos hilaris possit habere Cato*. Blomgren has a point in that in Amm.'s five other instances Cato is always in the singular: 14.6.8, 16.5.2 (in both cases Cato Censorius), 14.8.15, 28.4.21 (Cato Uticensis), 30.4.21 (probably Cato Censorius). It would seem that in the present text Censorius, who was consul in 195 and

censor in 184 BC (Broughton, 1951, 339, 374–375; 1986, 170), is meant. See for Uticensis the literature cited ad 28.4.21, for Censorius Astin, 1978 and Suerbaum, 2004.

prorsus enim sic agebatur, ut nec in alienis malis quorundam exarescerent lacrimae; quod in variis et confragosis actibus vitae plerumque contingit Cf. 19.12.15 *et prorsus ita res agebatur, quasi Clarum, Dodoneas arbores et effata Delphorum olim sollemnia in imperatoris exitium sollicitaverint multi*. This occurs in the context of a wave of death penalties imposed for lèse majesté. Immediately before the quoted words Amm. reports that people were regarded as suspect merely because they wore an amulet or passed by a grave in the evening. The *et prorsus* sentence builds on this by a general or stronger statement: “in fact, the matter was handled as if many men had importuned Claros, the oaks of Dodona, and the once famous oracles of Delphi with regard to the death of an emperor” (tr. Rolfe). This passage and the present text are Amm.’s only instances of this specific use of *prorsus*, for which OLD s.v. 4 provides other examples, inter alia in combination with a consecutive clause, e.g. Gel. 2.23.2, where the author, in various ways, praises the literary qualities of some comedies he had been reading and then ends with: *prorsus ut melius posse fieri nihil censeas*, ‘so that, in fact, one has to conclude that nothing could surpass them’. See also TLL X 2.2161.12–36, with inter alia a reference to Tac. *Hist.* 3.83.2, where the disgusting behaviour of Rome’s citizens is first depicted by means of a number of details and then finally summarized in these words: *prorsus ut eandem civitatem et furere crederes et lascivire*.

The text continues with a proverbial reference to the fact that tears shed for other people’s tribulations usually dry up swiftly. The present text clearly derives from Cic. *Part.* 57 *cito enim exarescit lacrima, praesertim in alienis malis*. Cic. *Inv.* 1.109 is an example of the notion that tears tend to dry quickly in general: *Quemadmodum enim dixit rhetor Apollonius, lacrima nihil citius arescit*. Cf. also Quint. *Inst.* 6.1.27 *Nec sine causa dictum est nihil facilius quam lacrimas inarescere*. See for further examples Otto, 1890, 184; Kellogg, 1907. The remarkable aspect of the situation is expressed by *nec* as a synonym of *ne...quidem*: in contrast to the proverbial saying the tears did not dry up. See for tears in the *Res Gestae* De Libero, 2009, 230–233.

Do the words *quod in variis* etc. denote that tears for other people’s distress are usually short-lived or not? Marié’s rendering seems to assume the latter explanation, others choose the former, which is indeed the more likely one, also in view of the quotation from Cicero, whose *praesertim*

was therefore changed to *plerumque*. The reaction to the misfortune of others described in the present text testifies to compassion, which differs from the dreams in §16, which are an indication of fear. As is noted ad 25.7.14, this is Amm.'s only instance of the transferred meaning of *confragosus*: 'difficult'. Such a meaning occurs already in Pl. *Men.* 591 *condiciones tetuli tortas, confragasas*. Cf. also Sen. *Ep.* 107.2 on the 'road of life': *emetiendum est confragosum hoc iter*. Cf. for the 'actions of life' Quint. *Inst.* 11.1.47 *in ceteris actibus vitae*, August. *lib. arb.* 3.22.64 *cum peccatur in actibus vitae*.

a iure tamen iustitiaque crebro discedens ferreus cognitor erat uno quasi praecipuo tolerabilis The combination of *ius*, 'legal system', and *iustitia*, 'the virtue of fairness', occurs regularly in various forms: *per se igitur ius est expetendum et colendum. Quod si ius, etiam iustitia* (Cic. *Leg.* 1.48), *veri iuris germanaeque iustitiae...effigiem* (Cic. *Off.* 3.69; see Dyck's important note ad loc.), *vel ipsa Iustitia iure caesos pronuntiaret* (Amm. 26.9.10). Neither was honoured by the 'iron prosecutor'. See for *ferreus* or σιδήρεος denoting hard-hearted inflexibility Hom. *Od.* 23.172 τῇ γὰρ σιδήρεον ἐν φρεσὶν ἦτορ, A. *Pr.* 242 σιδηρόφρων, Cic. *Cael.* 37 *ferrei sunt isti patres*, Cat. 4.3 *nec tamen ego sum ille ferreus*, Plin. *Ep.* 2.3.7 *saxeus ferreusque es*; cf. also Otto, 1890, 134 and 28.1.10 *tartareus cognitor*. The man had 'one virtue of sorts'; see for *praecipuum*, 'praiseworthy quality', the note ad 21.16.1 *praecipua*. 1.40

interdum enim exoratus parcebat aliquibus, quod prope vitium esse in hoc loco legitur apud Tullium: "nam si implacabiles iracundiae sunt, summa est acerbitas, sin autem exorabiles, summa levitas, quae tamen ut in malis acerbitati anteponenda est" Surprisingly, in the end Maximinus was less inflexible than Petronius Probus: *ita implacabilis et directus, ut, si laedere quemquam instituisset, nec exorari posset nec ad ignoscendum erroribus inclinari* (27.11.6, q.v.). See TLL V 2.1586.49–1587.65 for a long list of instances in which *exorare* is used "cum vi propitiationis". The quotation from Cic. *Q. fr.* 1.1.39 is totally correct. The phrase *ut in malis* should be interpreted as restrictive with *in* denoting the given circumstances; Shackleton Bailey's "Given a choice of evils" is excellent. See for Cicero and Amm. the notes ad 21.16.13 *ut Tullius* and 26.1.2 *haec quidam*. Add to the literature cited there Rota, 1996; Sabbah, 2006; Castillo, 2007.

The reader would be justified in expecting the author to return to his report on important military actions in the West and the East, but 1.41–57

Ammianus explains that he has not yet finished the sad report on the large-scale injustice in Rome. The successors of Maximinus were cast in the same mould and, worse, Maximinus kept pulling the strings from his distant base. Again a number of cases is briefly sketched before the report returns to Aginatus, who in the end could not escape the cruel and criminal hands of the prosecutor. In all these cases Maximinus remained the real perpetrator.

Even without the author's hyperbolic presentation of the facts, most of the readers of the whole chapter would gradually have felt some doubt, if not downright disbelief. Had none of these pitiable victims violated any of the laws that were in force at the time? Unfortunately, there is no other evidence available which might put the events in a different light. Be this as it may, the author ends on a more optimistic note with a reference to the disastrous end of the repulsive protagonists, which proves the conviction which he cherished: in the long run justice will prevail.

- 1.41** *Post haec praegresso Leone acceptoque successore ad principis comitatum Maximinus accitus auctusque praefectura praetoriana nihilo lenior fuit, etiam longius nocens ut basilisci serpentes* Finally the two sinister protagonists were transferred to other posts. The *notarius* Leo (see for him § 12 with the note) was the first to go, to become *magister officiorum* in place of Remigius, as appears from 30.2.10. Maximinus, in Rome replaced by Ursicinus (§ 44), was summoned to Valentinian's court (see for *comitatus* the notes ad 20.4.11 *ad comitatum* and 26.5.7 *cum legatis*) and appointed as *praefectus praetorio Galliarum*. This promotion occurred in 372 or 373, as is argued in the note ad 28.1.5 *Maximinus*. The emperor resided in Gaul during the greater part of these years (*Cod. Theod.* 15.5.1, 16.2.22, 16.6.1 and 12.1.73, with Nagl, 1948, 2180 and Pergami, 1993, 587, 607, 616), as he had done in 371 (cf. ad 28.1.21 *haec Valentinianus*). In 29.3.1–2 Amm. states that Maximinus' arrival in Gaul was an incentive for Valentinian, *trux suoapte ingenio*, to become even more cruel.

Early in 376 Maximinus was still in office (*Cod. Theod.* 9.6.1–2 of 15 March 376, where *ad Maximinum* should be read instead of *ad Maximum*; cf. the subscription of *Cod. Theod.* 9.19.4 and Barnes 246 n. 13). See for *augere* c. abl., 'to provide with a function', in cases of promotion the note ad 20.11.7 *dignitatibus*. His departure gave no reason for jubilation, for he remained as hard as ever, and even from a distance his harmful influence was noticeable.

See the note ad 22.15.27 *basiliscos*. The basilisc's 'harming from a distance' can be explained from the lore in Plin. *Nat.* 8.78 *necat frutices* ('bushes') *non contactos modo verum et adflatos*, 29.66 *hominem, vel si aspiciat tantum, dicitur interimere*. See also Sol. 27.50–53, where the basilisc is called *malum in terris singulare*. In this passage the action from afar is present in *ipsas etiam corrumpit auras, ita ut in aëre nulla alitum impune transvolet infectum spiritu pestilenti* (51). This is the third time that Maximinus is compared to a snake. Cf. §7 (q.v.) *tamquam subterraneus serpens* and §33 *velut serpens*.

in id tempus aut non multo prius scopae florere sunt visae, quibus nobilitatis curia mundabatur, idque portendebat extollendos quosdam despicatissimae sortis ad gradus potestatum excelsos The chronological indication is enigmatic. Presumably, *id tempus* denotes the period in which Maximinus and Leo were moved to another post, and 'temporal' *in c. acc.* means "with the advance of" (OLD s.v. 6), as in the famous phrase in Verg. *A.* 7.8 *aspirant auras in noctem*; see Fordyce ad loc. Cf. for the alternative *aut non multo prius* 26.5.8 *circa id tempus aut non multo posterius* and 27.3.1 *Hoc tempore vel paulo ante*.

1.42

As an old German proverb says: 'alte Besen blühen nicht' (see Wander, 1867, I 322, who refers to the present text). Ancient proverbs and portents are concerned with the broom's primary function, which is sweeping. Davis, 1957 aptly refers to a passage in Plutarch's *Life of Dion*: the central figure sees a woman of lofty stature σαίρουσαν δὲ καλλύντρω τινὶ τὴν οἰκίαν, "sweeping the house with a sort of broom" (*Dio* 55, tr. Perrin) and to August. *C.D.* 6.9.2, where this information provided by Varro is mentioned: when a woman has given birth, three men should clean the entrance of the house, inter alia *deverrere scopis*, 'brush it clean with brooms', in order to prevent the undesirable entrance of Silvanus. Otto, 1890, 313 refers to Cic. *Or.* 235; criticizing the oratorical style of his rivals, Cicero notes: *ut in proverbio est,—etsi humiliter dictum est, tamen simile est—scopas, ut ita dicam, mihi videntur dissolvere*, because, when one breaks a broom, its usefulness is over. See also Cic. *Att.* 7.13a.2 with Shackleton Bailey's note. The best known proverbial expression in this field, 'a new broom sweeps clean', which is already attested in medieval texts, seems to be unknown in antiquity. The same holds true for blooming brooms, but wooden rods or sticks coming to life are more familiar, e.g. Aaron's flourishing rod in *Num.* 17.20 and 23, or Romulus throwing his spear made of cornel, which sank deep into the ground, whereupon the earth βλαστοῦς ἀνῆκε (Plut. *Rom.* 20.5);

the earliest version of this story is Ov. *Met.* 15.560–564: see Bömer's instructive notes ad loc. A comparable phenomenon can be found in Amm.'s contemporary Claudian: *Mavortia signa rubescunt/floribus et subitis animantur frondibus hastae* (*Epith. Hon.* 187–188). Cf. also *ex Macedonia litterae adlatae, in quibus inter cetera scriptum erat lauream in puppi navis longae enatam*, "letters were brought from Macedonia, in which, among other things, it was said that a laurel had grown out of the stern of a war-ship" (Liv. 32.1.12, tr. Sage), *apud insulam Capreas veterrimae ilicis demissae iam ad terram languentisque ramos convaluisse adventu suo...laetatus est*, "He was...pleased that the branches of an old oak, which had already drooped to the ground and were withering, became vigorous again on his arrival in the island of Capreae" (Suet. *Aug.* 92, tr. Bradley). See also Krauss, 1930, 133–138. As to Amm.'s *scopae florere sunt visae*, there is one noticeable fact. In contrast to Latin *scopae*, the Greek word for 'broom', κάλλυντρον, also denotes a plant, viz. 'broom'. Now, in his *Historia animalium* Aristotle mentions a piece of lore concerning bees: these do not come into being through copulation and birth, but are fetched from flowers, inter alia ἀπὸ τοῦ ἄνθους τοῦ καλλύντρον, 'the flower of the broom' (*HA* 5.21, 553 a 20). Perhaps some Greek expression or proverb resulted from this.

As in § 24, *nobilitas* denotes the senate. In itself the addition of *nobilitatis* to *curia* is superfluous, but Amm. probably wants to emphasize the aristocratic character of the senate's official residence in contrast to the 'upstarts deserving utter contempt'. De Jonge ad 16.10.13 has a short note on the *curia (Iulia)*, restored by Diocletian in 303 AD after a fire. See further for this building Morselli and Tortorici, 1989, esp. 1–26; Richardson, 1992, 103–104; Tortorici, 1993. See for *gradus* denoting the stages of a career the note ad 20.5.7 *ad potiozem*. As is pointed out ad 26.6.20 *Adramytenus*, and ad 27.3.2 *Terentius enim*, Amm. cannot stand it when people of low birth climb the social ladder. In this respect Meslin, 1974, 356–358 aptly compares the omen of the present text with the braying donkey in 27.3.1. Note, however, the differences. In 27.3.1 Amm. says that no one, not even *prodigialium rerum periti*, could tell what the miracle of the braying donkey, which was witnessed by many, foretold; it was only afterwards that the predicted event came to pass, viz. the promotion of the lowborn Terentius to the governorship of Tuscia. In the present text no witnesses are mentioned and Amm. is silent about attempts to let experts explain what was going on. He only reports what the meaning of the portent was (*idque portendebat...excelsos*). There is another difference. Whereas for the braying donkey some similar *prodigia* can be

adduced as parallels (cf. the note ad 27.3.1 *asinus tribunali*), the miracle mentioned here is unique. Because of its unique character and the fact that Amm. does not mention any eyewitnesses, Meslin assumes that the blooming brooms have been concocted by the author (“je crois que ce prodige est, pour une fois, un pure invention d’Ammien”, p. 358), who was in need of a portent in view of *Cod. Theod.* 6.35.7, which opened the road to senatorial dignity for officials of relatively low rank, such as *notarii*, *scriniarii*, *agentes in rebus* and *admissionales*. This supposition is improbable. Throughout the *Res Gestae*, and especially in his succinct survey of divination (21.1.7–14, q.v.), the author takes omina too seriously to assume such a fraud.

If the brooms blossomed *in id tempus*, i.e. in 372 or 373, the portent presumably refers to Maximinus’ successors. A connection between *Cod. Theod.* 6.35.7 and the text under discussion is only possible if Amm.’s *aut non multo prius* has preference over *in id tempus*, for Valentinian’s constitution was issued on 18 November 367.

Et quamlibet tempestivum est ad ordinem redire coeptorum, tamen nihil impedituri temporum cursus immorabimur paucis See for *quamlibet* as a concessive conjunction Kühner- Stegmann 2.443, OLD s.v. b. Amm. has two other instances, 28.2.12 (q.v.) and 29.5.44, both with the subjunctive. Cf. 15.9.1 *Galliarum tractus et situm ostendere puto nunc tempestivum*, 17.4.1 *super quo nunc, quia tempestivum est, pauca discurram*. In the very last phrase of Book 22, *evectus longius ad ordinem remeabo coeptorum*, Amm. ends his extensive digression on Egypt and returns to his historical account proper. In the present text the meaning of *ordo coeptorum* is less clear. The explanation should probably be based on the programmatic statement announced in 26.5.15, viz. to report actions in East and West in larger separate units. At the beginning of Book 28 he abandons the ongoing tense situation on the borders with Persia to take up the woeful story of Maximinus and Leo’s campaign of terror at Rome, which he should end now, since they are departing. He excuses himself by promising that the additional information will be brief and will not really interfere with the chronological order. Some other instances of *ordo* denoting the way in which Amm. arranges the historical facts: 14.8.15 *nunc repetetur ordo gestorum*, 23.4.15 *nunc ad rerum ordinem revertamur*. Van de Wiel rightly notes that *temporum cursus* and comparable phrases are not rare in Late Latin, but it should be added that in such phrases concerning time *cursus* is usually in the singular, with the entire phrase denoting the four seasons or the calendar year, e.g. *circumversio cursus annui* (26.1.11). In

1.43

the present text Amm. obviously assumes a different meaning, comparable to Cic. *Fam.* 6.5.2 *is temporum cursus*, but here denoting ‘the course of events’. See for *immorari*, with dat. or abl., ‘to dwell on a subject’, TLL VII 1.491.38sqq.

quae per iniquitatem curantium vicariam praefecturam in urbe contra, quam oportuerat, gesta sunt, quia ad nutum Maximini et voluntatem isdem ministris velut apparitoribus gerebantur Maximinus had left Rome, but he was still pulling the strings, so that Amm. feels compelled to continue his report on the violation of justice in Rome. Note, however, that Amm. first stresses the responsibility of the *vicarii urbis Romae* (sc. Ursicinus, Simplicius and Doryphorianus; § 44, 45 and 53, respectively), whose lack of fairness (*per iniquitatem*) was the cause of wrong juridical decisions. It is remarkable in this respect that Amm. nowhere mentions urban prefects, “whose series forms the backbone of his narrative” (Tomlin, 1973, 318), as if *praefecti urbi* had nothing to do with the trials. But they had, as Tomlin rightly observes. The first case mentioned in this chapter had been brought before the PVR Olybrius (28.1.8) and his successor Ampelius was involved in the case of Hymetius (28.1.22). *Cod. Theod.* 9.16.10 (quoted ad 28.1.21 *haec Valentinianus*) was addressed to the same Ampelius and stated that the trials of senators for *maleficium* were entrusted to the urban prefecture. See for *iniquitas* of highly placed people Brandt, 1999, 299, and for *curare* as an administrative t.t. the notes ad 23.6.14 *quas vitaxae* and 26.7.4 *iubetur*. The sober, even euphemistic, phrase *contra, quam oportuerat*, contrasts rather sharply with the hyperbolic report on the events in § 14–42. Cf. *Caes. Gal.* 1.31.12 *si qua res non ad nutum aut ad voluntatem eius facta sit*, Cic. *Fam.* 3.10.10 *ad eius viri de me meriti voluntatem nutumque converterem*, ‘it would have rendered me obedient to the wishes, to the very nod, of the man to whom I owe so much’ (tr. Shackleton Bailey); the phrase is listed among the combinations of synonyms in Hagendahl, 1924, 169. The last part of the lemma begins with an abl. abs., in which *isdem* is the Head: ‘the people just referred to’ and *ministris* is the predicate: ‘lending their service’ (see TLL VIII 1006.1–19), with *velut apparitoribus* as a disparaging addition: ‘as if they were Maximinus’ clerks’. See for this use of *apparitor* the note ad 26.4.3 *participem* and cf. further for *apparitor* in Amm. above, ad § 36 *et Mucianum*.

- 1.44 *post hunc venit Ursicinus ad mitiora propensior* Cf. *Advenit post hunc urbis moderator Lampadius* (27.3.5). Before Ursicinus became *vicarius*

urbis Romae as successor of Maximinus, he was, like Maximinus himself (28.1.5–6 with the notes), *praefectus annonae* (*Cod. Theod.* 14.3.14 of 22 February 372). There is no need, as Barnes 242 rightly argues, to distinguish between the vicar (*PLRE* I, Ursicinus 6) and the prefect (*PLRE* I, Ursicinus 7). Ursicinus' term of office as vicar must have been rather short, for *Cod. Theod.* 9.29.1, posted in Rome on 23 March 374 and therefore sent some time before that date, was addressed to his successor (sc. Simplicius; cf. §45 *huic successit Emonensis Simplicius*). See the note ad 25.3.18 for Amm.'s three other cases of *propensior ad* combined with a comparative in the neutr. pl. The long lemma on *mitis* in TLL VIII 1151–1159 shows that, where human conduct is concerned, this adj. is always used in a positive sense, as a synonym of *clemens*, *humanus*, *pacificus*, *propitius*.

qui, quoniam cautus esse voluit et civilis, rettulerat Esaiam cum aliis ob commissum adulterium in Rufinam detentis Marcellum maritum eius ex agente in rebus reum imminutae maiestatis deferre conari Cf. *civiliter agens et caute* (26.6.3, q.v.); as in that case, *cautus* denotes careful prudence and *civilis* compliance with the limits of one's office. In 21.5.5 a comparable alliteration, *consideratus et cautus*, describes Julian's prudence in warfare. As in 28.1.25 *cum intromissi in consistorium haec referrent*, the verb *referre* is here used as a t.t.: 'to report to the emperor'. See for *adulterium* the note ad 28.1.16 *Tunc Cethegus* and for the fact that people suspected of adultery were held in custody (see for *detentis* TLL V 1.814.37 sqq.) during the judicial investigation Krause, 1996, 117–121. In naming some individuals involved in the affair, Amm. comes up with a big surprise, which, remarkably, has caused hardly any reaction amongst scholars: a Jewish name, provided *Esaiam* is correct and not a pious scribe's inadvertent adaptation of a Greek or Roman name, e.g. Isaëus. It could concern a Christian, but Old Testament names were not frequent in Christian circles. Unfortunately, Amm. does not add any information about Esaias and his social position. Esaias, who is only mentioned by name in the present text, does not occur in the *PLRE*; Baldwin in 'Some Addenda to the Prosopography' (1976, 119) mistakenly regards him as a woman. The only other biblical names in the *Res Gestae* are *Iacobus* in 19.9.2 (see for him *PLRE* I, Iacobus 1) and *Danielus* (*PLRE* I, Danielus) in 30.1.11 and 17. For Rufina (*PLRE* I, Rufina 1) and her husband Marcellus (*PLRE* I, Marcellus 6; Clauss, 1980 [1981], 207) the *Res Gestae* is also our only source. In §45 Amm. reports the outcome of the affair. *Committre adulterium in* with acc. is a juridical t.t.; cf. *Dig.* 26.12.1.5 *Si quis servum*

suum adulterium commisisse dicat in uxorem suam, apud praefectum urbi erit audiendus. See for *agens in rebus* the note ad 22.3.11 *Apodemium*. The phrase *aliquem reum deferre* also occurs in 27.3.2 and 27.7.1. See for *imminuta maiestas* the note ad 28.1.11 *uno proloquio*. Are we to assume that Esaias and his companions followed the advice of Mucianus and Barbarus in § 37?

ideoque ut cunctator contemptus et ad haec fortiter exsequenda parum conveniens In contrast to other passages in Amm., *cunctator* is here used as a term of abuse. The combination *cunctator et cautus* denotes the prudent military strategy of an emperor in 14.10.14 and 31.12.6; cf. also *dux cunctator et tutus* 27.10.10 (where the sarcasm, explained in the note, emphasizes the positive meaning as such). Obviously, Ursicinus' prudent and 'democratic' conduct was misinterpreted as a lack of the resoluteness needed to cope with the affair in question. The reader is left in the dark as to the identity of the Agens of *contemptus*: the people of Rome or Valentinian and his advisers, who were accustomed to Maximinus' determination, which saved them much work? As in 26.1.5 *aptus ad id, quod quaerebatur, atque conveniens*, the adj. *conveniens* is used here about a person with the meaning 'able to undertake a task', which is not common.

As Tomlin, 1973, 320 points out, Ursicinus was also vulnerable on juridical grounds. He had exceeded his competence by paying attention to the accusation against Marcellus. As an injured husband Marcellus must have been the prosecutor in the case against the men arrested for adultery with his wife (cf. *Cod. Theod.* 9.7.2 *in primis maritum genialis tori vindicem esse oportet*), and a charge brought against him by the accused was therefore *eo ipso* invalid (*Cod. Theod.* 9.1.12 *neganda est accusatis licentia criminandi, priusquam se crimine, quo premuntur, exuerint. nam sanctionum veterum conditores adimendam licentiam omnibus censuerunt in accusatores suos invidiosam dicendi vocem*, "The right to accuse of crime must be denied accused persons until they have cleared themselves of the crimes with which they are charged. For the founders of the ancient sanctions decreed that all persons should be deprived of the right to speak invidious words against their accusers", tr. Pharr).

quae efficere...abrogata potestate discessit V's *que efficere testate* has, roughly speaking, led to two possible ways to repair the text: a) *testate* is a remnant of *potestate* as part of a phrase expressing that Ursicinus was given his congé, b) in *efficere testate* the division of the words is wrong: it

should be *efficeret*, and *estate* is a corruption of *exacte* (Petschenig, 1892, 525), or *statim* (Marié). In both cases the subjunctive *efficeret* should probably be interpreted as final: ‘which it was his task to cope with’. Seyfarth follows Clark in printing Heraeus’ *abrogata potestate*, which implies the loss of an entire word. It may well be that the corruption is more extensive. If this possibility is excluded, Marié’s solution seems the most economical.

huic successit Emonensis Simplicius, Maximini consiliarius ex grammatico, post administratam provinciam nec erectus nec tumidus, sed obliquo aspectu terribilis, qui compositis ad modestiam verbis acerba meditabatur in multos It is possible that in 21.9.8 (q.v.) and 25.3.14 (q.v.) *consiliarius* denotes a member of the *consistorium*, but in the present text it obviously means ‘adviser’, as in 28.1.21 (q.v.), where we met Hymetius’ *consiliarius* Frontinus. Frontinus was presumably the official adviser of Hymetius in his capacity of *proconsul Africae*. Likewise, Simplicius (PLRE I, Simplicius 7) may have been Maximinus’ adviser when the latter was provincial governor in Corsica, Sardinia or Tuscia (see 28.1.6 for these steps on the ladder of Maximinus’ career). The information is functional in that the reader is led to expect that after the ‘soft’ policy of Ursicinus the hand of Maximinus will again be felt. 1.45

Maximinus hailed from Sopianae, the capital of one of the Pannonian provinces (28.1.5, q.v.), which lies at a distance of approximately 360 km east of Simplicius’ home town Emona (Talbert 20 B3), modern Ljubljana (Laibach). And although Herodian calls Emona/Hema ‘an Italian city’ and this city belonged to Italia in the fourth century (cf. Whittaker ad Hdn. 8.1.4 and see Šašel, 1968, 571–576 and 1989), Emona had been part of Pannonia long enough (cf. e.g. Plin. *Nat.* 3.147) to justify the assertion that Simplicius, like Maximinus, belonged to the ‘Pannonian connection’ which came into prominence under Valentinian (cf. for some of them the note ad 26.1.4 *Et rumore*).

As to *ex grammatico*, ‘the reference to Simplicius’s profession is perhaps intended to reproach and condemn him as a parvenu’. So, rightly it would seem, Kaster, 1988, 359 in the standard book on grammarians in Late Antiquity. Simplicius and the man whom he had served as *consiliarius* were birds of a feather (cf. 28.1.5 *Maximinus...obscurissime natus est*). Kaster notes on p. xi that ‘their skills placed them (i.e. *grammatici*) far above the population at large. Yet on the social pyramid of the elite they stood far closer to the base than to the pinnacle’. See on *grammatici* further TLL VI.2 2171 sqq. and Schindel, 2003. For *ex*, ‘former’, see above,

ad § 24 *Praetextatus*. The first known public post of Simplicius was that of provincial governor; *ILS* 5535 provides the information: *Fl. Simplicius v.c. consularis sexfascalis p. N. Constantinae* (N. = *Numidia*). When precisely he occupied this post is not known, but, in view of the opening words of the inscription (*pro beatitudine principum maximorum ddd. nnn. Valentiniani Valentis adq. Gratiani*), the termini post and ante quem are 367 and 375 (Matthews, 1975, 37: “*consularis* of Numidia at a time between 364 and 367”, must be a slip). In V there is an obvious lacuna after *admini-stratam*, which the editors usually repair by adding *provinciam*. It seems, however, more likely that the name of the province (sc. Numidia) was also lost. Simplicius must have become vicar before 23 March 374, the date on which *Cod. Theod.* 9.29.1 was posted in Rome (more on his term of office in the note ad § 53 *cui hanc*). His death in Illyricum under Gratian is reported by Amm. in § 57. The success of his career had not turned Simplicius’ head. About the transferred sense of *erectus* TLL V 2.785.42 notes “tam in bonam partem (i.q. celsus, sublimis) quam in malam partem (i.q. superbus, contumax)”. The latter is evidently intended in the present text. See for *tumor*, ‘swollen pride’, Seager 52–53, who also refers to the present text.

A ‘sidelong glance’ occurs in various contexts with different meaning. In Hor. *S.* 2.5.53 *limis* denotes the furtive look at the text of a testament by a person who tries to hide his curiosity; *obliquo...lumine cernens* (Ov. *Met.* 2.787) describes a jealous glance; in Petr. 113.6 Tryphaena and Giton’s lovemaking is watched *obliquis trucibusque oculis* by Encolpius; Apul. *Met.* 1.12 *obliquo aspectu* denotes Aristomenes’ furtive glance from his hiding-place. See also the last part of the note ad 28.4.10 *Ex his*. In the present text the meaning is determined by *terribilis*. For this reason Simplicius is best compared to Encolpius. See also the discussion of Amm.’s use of *terribilis* in the note ad 26.2.11 *circumsaeptum*. Remarkably, in spite of the large part allotted to eyes (colour, moisture, mobility etc.) in physiognomic texts, their authors pay little or no attention to the sidelong glance. A rare instance occurs in the second of two treatises of anonymous Aristotelians: οἱ κατὶλλανταὶ ὥραιοι (Foerster, *Scriptores Physiognomonici* I 84.102, “sidelong leering glances are held to be characteristic of a fop” [tr. Swain]).

Simplicius turned out to be a genuine hardliner, although his words concealed his thoughts. Amm. avails himself of a ‘Tacitean’ phrase, in which *componere in* means “to modify one’s expression so as to mask up one’s true feelings” (OLD s.v. 11); cf. *ficta haec et in gratiam Muciani composita* (Tac. *Hist.* 3.78.2).

et primo Rufinam cum universis auctoribus adulterii commissi vel consciis interfecit, super quibus Ursicinum rettulisse praediximus, alios deinde complures nullo noxiorum discrimine vel insontium Simplicius began by dealing with the Rufina affair, which was introduced in §44. All those involved were without exception (*universis*) executed (see for sanctions in cases of adultery the note ad 28.1.16 *Tunc Cethegus*), whether they were directly responsible or only knew about it. This means that Esaias, too, was among the victims. Cf. *nec auctor posthac cuiusquam necis nec conscius* (Suet. Tit. 9.1), *auctoribus Bruto et Cassio, conscio etiam plurimo senatu* (Oros. hist. 6.17.1). Having acquired a taste for killing people, Simplicius went on to liquidate others without bothering about guilt or innocence. Rome witnessed a period of terror which resembled the days of Valens' father-in-law Petronius in Constantinople: *nocentes pariter et insontes post exquisita tormenta quadrupli nexibus vinciebat* (26.6.7, see the note ad loc. for other cases). Men like Petronius, Maximinus and Simplicius illustrate Amm.'s conviction that Cicero's rule is correct: *quales in re publica principes essent, tales reliquos solere esse cives* (Fam. 1.9.12). The reigns of the Caesar Gallus and the emperor Constantius II contained similar examples: 14.7.21 (*nullo*) *discernente a societate noxiorum insontes*, 15.3.2 *sine innocentium sontiumque differentia*.

in cruento enim certamine cum Maximino velut antepilano suo contendens superare eum in succidendis familiarum nobilium nervis studebat This is the only passage in the entire chapter in which it is explicitly stated that the lawsuits against aristocrats were, in fact, a campaign against Rome's aristocratic families. In Amm.'s only other instance of *antepilanus* (16.12.20) the term denotes the soldiers in the front line. In the metaphorical sense of the present text the prefix *ante-* has a temporal flavour: as the reader will understand in view of the contents of §45 (*enim*), Simplicius contended with his predecessor. This rivalry was 'bloody' because of the continuous executions. See for *nobilis* the note ad 28.1.10 *cumque multiformiter*, for a different meaning of *familia* in Amm. the note ad 27.11.3 *ita ille* and for the metaphorical use of *nervi* Otto, 1890, 242. The present text has a parallel in 21.16.18 (*ut rei vehiculariae succideret nervos*, "succeeded in hamstringing the postal service" (tr. Hamilton); see the note ad loc. and cf. also *nervos incidere civium Romanorum* (Cic. Tog. Cand. fr. 21, ed. Bayter-Kayser) and (*cum*) *incidunt nervos populi Romani* (Cic. Agr. 2.47).

1.46

Busirim veterem et Antaeum imitatus et Phalarim, ut taurus ei solus deesse videretur Agrigentinus Whereas Maximinus was compared with snakes (§7, 33, 41) and wild beasts (§10), his rival in cruelty is now characterized by his imitation of some notorious villains of the past. Such villains appear here and there in the *Res Gestae*, e.g. Amycus (22.8.14), Catilina (25.3.13), Dionysius of Syracuse (15.5.37, 16.8.10), Geryon and Tauriscus (15.9.6, 15.10.9), but the present text is unique in using three past masters of cruelty to depict a person's conduct. This is Amm.'s only reference to the legendary Egyptian king, who sacrificed foreigners to Zeus; the Libyan giant Antaeus, who also threatened the lives of foreigners, is mentioned in 30.4.19; see for the 6th century tyrant of Agrigentum Phalaris the note ad 26.10.5 *crudelem*. As the 'Gesetz der wachsenden Glieder' prescribes, the third element is made more elaborate. There is a remarkable parallel in 28.4.13: *ut deesse solus magister ludi litterarii videretur*, where the *ut*-clause is clearly consecutive. This may be the case in the present text as well, but it does by no means fit the context as convincingly as in 28.4.13, where a whole scene is depicted. This might be an indication that Chapter 1 was a later addition to Book 28: the author reused a phrase in a new context, which was not entirely suitable.

- 1.47 *His in hunc modum ac talibus actitatis Hesychia quaedam matrona ob intentatum crimen in domo apparitoris, cui custodienda est tradita, multa pertimescens et saeva fulcro plumeo vultu contracto incubuit et animam ocluso narium spiramento effudit* See the note ad 28.1.17 on *actitare* as a juridical t.t. This lends further support to Hadrianus Valesius' plausible conjecture *actitatis*. Cf. for *crimen intentare*, 'to lodge a complaint against', Quint. *Inst.* 3.10.4 *idem crimen invicem intentant*, August. *serm.* 360 *a parentibus intentata falsa crimina*; cf. also Tert. *Apol.* 46.1 *adversus omnium criminum intentionem*.

Hesychia, not mentioned in *PLRE* I, was probably of senatorial rank (Barnes, 1973, 144; Martindale, 1980, 486). Amm. does not specify the complaint against her, but Angliviel de la Beaumelle, 1992, 96–97 suggests that Hesychia was accused of adultery and that with *multa pertimescens et saeva* her fear of torture is meant. Of the criminal offences which led to judicial investigation and confinement in jail (adultery, murder, robbery, theft; cf. Krause, 1996, 92), adultery seems indeed the most likely (cf. §28 and §44, q.v.), whereas *Cod. Theod.* 9.38.4 of 6 June 370 demonstrates that under Valentinian adulterers were subject to torture (see Pergami, 1993, 510 for the date of the law and Chauvot, 2000, 66–67 for the term *quaestio* i.e. *quaestio cruenta* used in it). See also the

beginning of the note ad §48 *Adiunctum est*. Whether Hesychia's fear for torture was realistic is another matter. If she was indeed of senatorial rank, she was theoretically exempt from torture (cf. the note ad 28.1.11 *omnes, quos* and § 24). Her rank and the fact that she was a woman must have been the reason why she was not put in the normal jail (cf. 28.1.57 *in carcerem Tullianum*), but was held in private custody (cf. 29.1.13 *carceres publici...privata domicilia*; Sal. Cat. 47.3; Liv. 24.45.8 *libera custodia*, Tac. Ann. 6.3.3 *custoditurque domibus magistratuum*; Sidon. epist. 1.7.4 and Krause, 1996, 186–188, 266–267). No doubt the *apparitor* of the present text belonged, like Mucianus and Barbarus of § 36 (q.v.), to the office of the *vicarius urbis Romae*.

Hesychia died from suffocation. The Agens is not mentioned, but *multa pertimescens et saeva* clearly indicates Hesychia's motive to kill herself. This case can therefore be added to the list of ancient suicides in Van Hooft, 1990, 198–242. “Die schwierigen Lebensverhältnisse in der Haft, die Angst vor Prozeß und Strafe führten zu zahlreichen Selbstmorden, entweder im Gefängnis selbst oder noch vor der Einkerkierung”, Krause, 1996, 302; Krause cites on p. 303 *inter alia*, apart from the present text, 15.3.10, 28.6.27 and 30.5.6. The manner of her suicide is described in some detail in the long phrase *fulcro...effudit*, but its precise explanation is not easy. TLL VI 1.1507.6 assumes that *fulcrum* is here a synonym of *cervical* (cushion), which is ‘filled with feathers’ according to TLL X 1.2458. Both assumptions are reasonable. The next words pose a far more difficult problem. The phrase *frontem* or *vultum contrahere* usually means ‘to frown’; cf. *contractiore vultu* in 15.8.11 and 30.5.19. This meaning makes no sense in the present text. It is even open to doubt whether *vultu* is the Head of the abl. abs. and not rather *fulcro*. In that case *fulcro...contracto incubuit* might mean ‘having drawn the cushion tightly together in her face, she then threw herself (headfirst) on it’. This solution is not really satisfactory. Emendation is a better idea. There does not seem to be anything wrong with the three nouns; the problem is posed by *contracto*. A helpful parallel is available in V. Max. 9.12.7, where it is reported that a former *praetor*, who had been charged with corruption, *sudario, quod forte in manu habebat, ore et faucibus suis coartatis incluso spiritu poenam morte praecurrit*, ‘tightly bound his mouth and throat with a cloth, which he happened to have in his hand, and through suffocation forestalled his punishment by death.’ This case can be found in Van Hooft, 1990, 217. Although in a different context, the verb *coartare* does occur twice in Amm. (17.13.4 and 18.8.12), and the corruption of *coartato* to *contracto* is conceivable, perhaps by

a scribe who was familiar with the phrase *vultum contrahere*. The first instance of the phrase *animam effundere* is Verg. A. 1.98 *animam hanc effundere*, but from then on it is attested in various authors. With *occluso narium spiramento* Amm. contrives a ‘Tacitean’ circumlocution of *suffocata*.

- 1.48 *Adiunctum est his aliud haud mitius malum. Eumenius enim et Abienus, ambo ex coetu amplissimo, infamati sub Maximino in Fausianam, feminam non obscuram* Does *adiunctum est* merely denote chronological proximity or does it suggest some sort of connection with Hesychia’s case, for instance because she was also involved in adultery, which was not mentioned in § 47? Be this as it may, Amm. describes the next affair as at least as cruel as Hesychia’s plight; the reader will understand (*enim*) this verdict by reading the report. Eumenius (PLRE I, Eumenius 3) and Abienus are only known from Amm. 28.1.48–50. PLRE I Avienus assumes a mistake in the paradosis. Confusion of *b* and *u* also occurs often in inscriptions of the imperial age; see Leumann 159; Sandys, 1927, 198. Seeck’s suggestion (passed on by Marx, 1896, 2387; cf. Matthews, 1975, 59 n. 1), that the Abienus of the present text is the same person as the author of the *Descriptio Orbis Terrae* and the *Ora Maritima* (PLRE I, Festus 12), is unlikely, given the fact that the poet’s name is Avienus, not Avienus (AE 2002.1676: *Abienii*). “Il personaggio ammiano è invece riconducibile a una famiglia senatoria che, sulla base di più tarde attestazioni, può essere quasi con certezza individuata in quella dei Valerii Messalae Corvini” (Lizzi Testa, 2004, 274, referring to Macr. *Sat.* 1.6.26, Rut. Nam. 1.267–276 and Sidon. *epist.* 1.9.4; see also Dorfbauer, forthcoming).

The affair of Eumenius and Abienus began when Maximinus was *vica-rius urbis Romae (sub Maximino)*, i.e. 370–372 or 370–373 (cf. for these dates the note ad 28.1.5 *Maximinus*). Several authors in different periods use the phrase *amplissimus ordo* to denote the Roman senate, e.g. Cic. *Dom.* 55, Liv. 37.52.7, V. Max. 4.1.4, Aur. Vict. *Caes.* 10.3, HA *Val.* 5.3. Amm.’s *amplissimus coetus* is a unique variation; cf. also 14.6.7 about the *comitia* and the senate: *coetuum magnificus splendor*. Remarkably, the only other instances of *infamare in*, ‘to suspect a person of sexual misconduct with’, occur in the abbreviated versions of two *declamations*: *infamari coepit socer in nurum* (Sen. *Con.* 8 exc. 3), *infamabatur in fratrem* (Calp. *Decl.* 44). Fausiana was a high-born lady, the opposite of Maximinus: *obscurissime natus est* (28.1.5). She should have been admitted to PLRE I (Barnes, 1973, 144: “probably...of senatorial rank, and possibly a descendant of Nummius Fausianus, consul in 262”; Baldwin, 1976, 119;

Martindale, 1980, 484). Amm.'s information is functional. Because she was a high-born lady, a severe penalty awaited Fausiana (cf. the note ad 28.1.16 *Tunc Cethegus*). Only adultery with low-born women was not always punished (*Cod. Theod.* 9.7.1).

post Victorini obitum, quo iuvante vixere securius, Simplicii adventu perterrefacti non secus volentis magna cum minis ad secreta receptacula se contulerunt As in the case of the *clarissimi* in 28.1.27 (q.v.), Victorinus had protected Eumenius and Abienus. After his decease (reported in § 34) they were 'scared to death' when Simplicius took office (some time before 23 March 374, cf. the note ad 28.1.45 *huic successit*): Gelenius' *perterrefacti* suits the text excellently; Amm. has three other instances of this verb, which does not occur frequently: 17.1.7, 29.5.38 and 30.1.7. The next words are problematic. The phrase *non* (or *haud*) *secus* does occur in other authors, but only here in Amm. The reader is expected to interpret its usual meaning 'just so' as referring to Maximinus' conduct. Then the difficulties increase, first with *volentis magna*: (Simplicius,) 'who wanted great feats' (?), then with *cum minis*, 'with threats' (?). Viansino's translation "che...voleva compiere azioni eclatanti esercitando minacce" is persuasive, but the available emendations deserve serious consideration. Heraeus' *volventis*, 'turning over in his mind', seems an improvement, but *non secus volenti, sed magni acuminis* (Petschenig, 1892, 683–684) is very attractive. The adj. *violentus* is used about a person in 21.13.3 *rex ...violentus* (q.v.), and 16.7.5 *acumine nimio praestans* provides an example of *acumen* with the meaning 'intelligence', 'shrewdness'. When compared to Maximinus, Simplicius was just as violent, but endowed with great shrewdness (gen. qualitatis) as well. This tallies with Amm.'s characterization in the preceding text. For the addition of *sed*, which seems desirable, the *s* is available in V's *volentis*. Marié has tried to combine the best of the solutions of Heraeus and Petschenig with *non secus volentis magna acumina*, "qui, comme Maximin, méditait des stratagèmes de grande envergure". The plural of *acumen* does indeed occur: *ipsi se compungunt suis acuminibus*, 'they hurt themselves by their own sharp ideas' (Cic. *de Orat.* 2.158 about philosophers), *scintillare acuminibus atque sententiis* ("de points et de traits" [tr. Callu]) *epistulas tuas gaudeo* (Symm. *Ep.* 7.9). However, these examples belong to an entirely different sphere; Hor. *Ep.* 1.17.55 seems more comparable to the present text in *nota refert meretricis acumina*, but Horace may well be using the dignified term ironically.

See for *receptaculum*, 'place of refuge', the note ad 26.6.5 *ubi quoniam*.

- 1.49 *sed Fausiana damnata inter reos recepti vocatique edictis semet abstrusius amendarunt* See for *inter reos recipere* Heumann-Seckel s.v. *recipere* 2b; cf. *L. Ennium...recipi Caesar inter reos vetuit* (Tac. *Ann.* 3.70.1), *neque recepti sunt inter reos Carrinas Celer...aut Iulius Densus* (Tac. *Ann.* 13.10.2), *in reos recepti* (Dig. 48.12.1). See for *vocare*, ‘to summon a person to appear in court’, Heumann-Seckel s.v. 1, and for *edictum*, “speciatim de evocatione absentis ad causam agendam” TLL V 2.69.63 sqq.; cf. also *tribus edictis evocati* (Dig. 49.42.1), *ut...edictis celeberrimis evocentur* (Cod. *Theod.* 5.11.11). Cf. 19.8.5 *in abstrusa quadam parte oppidi...latens*, August. c. *Iul.* 4.82 *abstrusiora latibula*. See for *amendare* in contexts of total concealment the notes ad 20.8.9 *amendatusque*, 25.3.17 *vel cum*, 25.8.1 *longius*, 25.10.7 *Valentinianum*.

quorum Abienus apud Anepsiam diu delitescebat. sed ut solent insperati casus aggravare miserabiles clades, Sapaudulus nomine servus Anepsiae verberatae coniugis dolore percussus negotium ad Simplicium detulit nocte progressus missique apparitores indicatos e latebris abstraxerunt The difficulties Anepsia had to endure after the death of her husband Victorinus, the man who had protected Abienus and Eumenius (§ 48), are described in § 34–35. By hiding Abienus for a long time, she was now in serious trouble, for in Cod. *Theod.* 9.29.1, addressed to Simplicius (see for the date above, ad § 45 *huic successit*), we read: *Eos, qui secum alieni criminis reos occulendo sociarunt, par atque ipsos reos poena expectet* (“If a person, by harboring accused persons, associates himself with the persons who are accused of crimes in which he did not participate, he shall expect the same punishment as the accused”, tr. Pharr). See for *insperatus* denoting a nasty surprise the note ad 20.4.14 *insperata res*. By repairing a case of haplography Clark and Heraeus have restored the slave’s proper name, which indicates his origin from Sabaudia (Savoy). Cf. 15.11.17 *per Sapaudiam* with De Jonge’s note; add to the literature cited there Duparc, 1958 and Van Berchem, 1969. Apart from the historical figure *Eunus quidam ergastularius servus* (14.11.33) it is the only time a slave’s name is mentioned in the *Res Gestae*. Perhaps Amm. wanted to show his thorough documentation. From a strictly legal point of view *coniunx* is not correct, because official matrimony was only possible between free individuals: *iustum matrimonium est, si inter eos qui nuptias contrahunt conubium sit...cum servis nullum est conubium* (Ulp. *reg.* 5.205.5; cf. Dellings, 1959, 686). *Conubernalis* is the normal term for the husband or wife of a slave (TLL IV 790.40 sqq.), but there are exceptions to this rule. We find slave *coniuges* for instance in Cod. *Theod.* 2.25.1, CIL 8.12675, 12755. Cf. Seyfarth, 1963,

145–147. See for ‘slave marriages’ Pólay, 1969 and Astolfi, 2006, 127–130. Cf. for *dolore percussus* the note ad 25.8.13 *maximeque*. The use of the verb *progredi* without an explicit mention of either whence or whereto is rare; see TLL X 2.1968.72; *tandem progreditur* (Verg. A. 4.134), *post victoriam demum progressus* (Suet. *Dom.* 1.3). In the present text the places are unimportant, unlike the time. Like the cord hanging from a window in a remote part of the *praetorium* (§ 36) and the sly tricks of clerks (§ 37), Sapaudulus’ nocturnal betrayal is a sign of the underhand practices of the prosecutors. Simplicius should have rejected Sapaudulus’ incrimination of Anepsia, for theoretically, except in cases of lèse-majesté (*Dig.* 48.4.7.2, cf. Mommsen, 1899, 350 with n. 2; Bauman, 1974, 55–59) and adultery (see the note ad § 55 *iusso sub*), a slave’s evidence *in caput domini* was not permitted: Tac. *Ann.* 2.30.3 *vetere senatus consulto quaestio in caput domini prohibebatur*, (Paulus) *Dig.* 48.18.18.508, Paul. *sent.* 5.16.5 *servi in caput domini neque a praeside neque a procuratore, neque in pecuniariis quam in capitalibus causis interrogari possunt* (“slaves cannot be interrogated against their masters by governors or public prosecutors, either in pecuniary or capital cases”, tr. Scott); cf. Schumacher, 1982, 179 n. 247: “die Anzeige durch ihren Sklaven Sapaudulus...kann nur als eklatanter Rechtsbruch gewertet werden”. However, Valentinian seems to have tolerated the practice, for under Gratian it was stipulated: *Cum accusatores servi dominis intonent, nemo iudiciorum exspectet eventum, nihil quaeri, nihil discuti placet, sed cum ipsis delationum libellis, cum omni scribaturarum et meditati criminis apparatu nefandarum accusationum crementur auctores, excepto tamen appetitae maiestatis crimine, in quo etiam servis honesta proditio est* (*Cod. Theod.* 9.6.2, addressed to the praetorian prefect Maxim(in)us on 15 March 376; “When slaves, as accusers, thunder forth against their masters, no one shall await the outcome of a trial. It is Our pleasure that no inquiry shall be made, no investigation shall be held, but the authors of the nefarious accusations shall be burned, together with the formal statements of the accusations and all the instruments of written documents and of the premeditated criminal charge. We except charges of the crime of high treason, however, betrayal of which is honorable even for slaves”, tr. Pharr). See for *apparitores* the note ad § 36 *et Mucianum* and for *indicare*, “to inform on” (OLD s.v.), Heumann-Seckel s.v. a, TLL VII 1.1155.21–38.

et Abienus quidem exaggerato crimine stupri, quod intulisse dicebatur Anepsiae, morte multatus est The different predicaments of Abienus and Anepsia are accentuated by *quidem...vero*, the Latin equivalent of μέν

...δέ. According to the definitions of *adulterium* and *stuprum* quoted in the note ad 28.1.28 *Nec minus*, Abienus was accused of *stuprum*, not *adulterium*, with Anepsia, who was a widow. The accusation was ‘piled on top of’ his alleged adultery with Fausiana (§48). Usually the existing trouble is the Patiens of *exaggerare*: 28.1.19 *ad cuius cladem exaggerandam id quoque isdem diebus acciderat*. In the present text the verb is used to describe the added misfortune. See the note ad 28.1.28 *Nec minus* for the death penalty in cases of *stuprum*.

mulier vero ut continendae vitae spem firmam dilato posset habere supplicio, appetitam se nefariis artibus vim in domo Aginati perpersam asseveravit Anepsia had some experience in the art of surviving serious trouble (see §34–35), so that her desperate effort to find a way out of the difficulties is not surprising. Unfortunately, in the end her own solution led her from bad to worse. There seem to be no clear parallels to *continere vitam*, ‘to save one’s life’; Sen. *Ben.* 1.11.1 *aliter...pervenit, quod vitam continet, aliter quod exornat aut instruit*, and Macr. *Comm.* 2.16.19 *ad animalis vitam certis vinculis continendam* come nearest. Anepsia hoped to postpone her execution and then to save her life definitively by reporting what had happened to her at Aginatus’ place: she had been submitted to magical practices and then assaulted. *Vis* here has a sexual connotation, as e.g. in Cic. *Mil.* 9; Ov. *Ars* 1.679, *Met.* 4.233, and stands for *stuprum per vim illatum* (cf. Dig. 48.5.30 (29).9 *qui per vim stuprum intulit vel mari vel feminae* and 48.6.3.4 *qui puerum vel feminam vel quemquam per vim stupraverit*), for which see in general Botta, 2004. See for *nefariae artes* denoting magic the note ad 21.1.7 *malevoli*. In an indirect way the reader is informed that at this point the report on Aginatus’ downfall, announced in §30, will be resumed.

- 1.51 *haec, ut gesta sunt, malignius ad principem Simplicius rettulit* “V¹ hat *maugitus*, worin *malignius* steckt; vg. 1, 10” (Petschenig, 1892, 525). The reference to *relatione maligna* (28.1.10) is apt in itself, but it is not easy to understand how the report could be significantly more unfavourable than the bare facts (*haec, ut gesta sunt*). One wonders whether Ernesti’s suggestion *muginatus*, which has not even reached the various apparatus critici, does not deserve reconsideration. The verb *muginari*, which expresses hesitation, is rare, but it does occur in Cic. *Att.* 16.12 *dum tu muginaris* (see Shackleton Bailey ad loc.) and Gel. 5.16.5 *non diutius muginandum*; it is also mentioned in some *Glossaria*. It is possible that Simplicius, who straight after taking office adopted a habit of dealing

resolutely with problems, hesitated to report Anepsia's story, which had the character of an appeal, to the emperor, because he preferred to have her executed without delay. However, another reason for Simplicius' hesitation is far more probable. In § 52 even Maximinus hesitates (*haerens et ambigens*) to send the imperial rescript containing permission to condemn Aginatus to death to Rome, a sentence which his friend Simplicius would have to carry out, thus endangering his reputation. Apart from this, in § 53 the difficulties involved in getting hold of Aginatus, bringing him to court, and finally executing him, show that it would not be a sinecure. Because Simplicius himself, too, foresaw the purport of the rescript and its consequences, he sent his report after some hesitation, *muginatus*. Ernesti deserves at least a place in the apparatus criticus. It would seem that *Cod. Theod.* 9.29.1, the rescript quoted ad § 49 *quorum Abienus*, was (part of) Valentinian's answer to Simplicius' *relatio*.

agensque ibi Maximinus infestus ob causam, quam supra docuimus, Aginatio simultate una cum potestate in maius accensa oravit impense, ut rescriberetur eum occidi, et impetravit facile male sanus incitator et potens Maximinus was staying 'there': from *ad principem* in the preceding part of the sentence the reader can easily interpret this as referring to the imperial court, which, as is argued in the note ad § 41 *Post haec*, resided in Gaul during the greater part of 372 and 373. Before 5 February 374 Valentinian went to Milan (*Cod. Theod.* 13.1.10, cf. Pergami, 1993, 621), presumably to spend the winter there (Nagl, 1948, 2180), but in the summer of 374 we find him back in Gaul (*Cod. Theod.* 11.36.22, 13.4.4, 8.5.33). At the end of that year the emperor retired to the winter quarters in Trier (Amm. 30.3.7) and from there he moved to Illyricum late in the spring of 375 (30.5.1–2) to begin his campaign against the Sarmatae and the Quadi. Since Maximinus as PPO Galliarum had his official residence in Trier (Ensslin, 1954, 2441), he must have been a frequent visitor at the emperor's court. In 29.3.1–2 Amm. states that he had a very detrimental influence on Valentinian. See for *agere*, 'to find oneself', with a local adjunct the note ad 16.2.8 *agere*. Because of the facts reported in § 32–33 Maximinus had a bone to pick with Aginatus. Indeed, his animosity had increased along with his successful career. See for this career since his first quarrel with Aginatus the note ad 28.1.30 *Opportunum est*. There must have been yet another reason why Maximinus turned against Aginatus: his son had married a daughter of Anepsia (§ 35).

A verbal form meaning 'he asked' or 'he urged' has been lost in the paradosis. Gelenius' *oravit* is reasonable in view of e.g. *petivit oravitque*

...*impense* (Gel. 17.10.7), but perhaps the imperfect tense is preferable as denoting a process in contrast to the result expressed in the perfect tense *impetravit*. Note that no Agents of *rescriberetur* is mentioned. Because the verb is the t.t. for an imperial rescript (cf. De Jonge ad 17.3.5 *rescripts* and Schieman, 2001), this is not indispensable. Nevertheless, it is one more element in the remarkable absence of any active interest on the part of Valentinian in the entire chapter, with the exception of § 11; in § 25 he even denies his involvement. See for *male* with an adj. as a synonym of *non* Szantyr 455, OLD s.v. *male* 6. The rare noun *incitator* also occurs in 18.5.4 *auctore et incitatore coetu spadonum* (q.v.) and 21.11.2 *auctore et incitatore Nigrino*.

- 1.52** *metuensque gravioris invidiae pondus, ne pronuntiante Simplicio et consiliario suo et amico periret homo patriciae stirpis* See the note ad 26.6.4 *vitans gravioris invidiae pondus*, and for *pronuntiare* as a juridical t.t. the end of the note ad 28.1.29 *Paphius*. Simplicius would have been the perfect instrument in Maximinus' hands to bring about the definitive downfall of Aginatus, for Amm. has described him as Maximinus' equal in respect of persecuting noble families (§ 46). However, noticing that Simplicius was his adviser and friend, people would regard Maximinus as responsible for the execution of a man from an old aristocratic family. In itself this seems a reasonable cause for Maximinus' fear: nevertheless the text poses difficulties with regard to interpretation. Some scholars argue that the Maximinus of the present section differs strikingly from the Maximinus Amm. had sketched thus far (Van de Wiel, 1989, 176; Coşkun, 2000, 75). The man who by nature was inclined to harm others (*obstinatum Maximini ingenium ad laedendum*, 28.1.13) had, admittedly, acted cautiously in the beginning of his career (*egitque...inter exordia cautius*, 28.1.6), but later on had had no scruples whatsoever to bring people to rack and ruin (*supra plantam, ut dicitur, evagatus*, 28.1.10; *ultra forenses terminos semet extentans*, 28.1.36; *clamantem...nullum se invito repperiri posse insontem*, 28.1.38). Even when he had left Rome for Gaul he continued to cause damage through his successors (28.1.43). And now all of a sudden Maximinus was full of fear for public opinion? On the other hand, Maximinus was not always as inflexible and resolute: *interdum enim exoratus parcebat aliquibus* (28.1.40). At any rate, the text raises various questions. What information does Amm. withhold? Was there perhaps more support for Aginatus among the Roman nobility than Maximinus had initially realized? Was Aginatus' case in this respect similar to that of Hymetius, another distinguished victim of

Maximinus, whose trial was moved from Rome to Ocriculum (§ 22)? These suggestions presuppose that Amm.'s narrative, though incomplete, is reliable. But is it? Is it for instance true that at this time Simplicius was still Maximinus' *amicus*? Cf. Coşkun, 2000, 76, who points inter alia to the fact that Simplicius was soon replaced as vicar by Doryphorianus (§ 53). Could it be that it was not Maximinus but rather Simplicius, who recoiled from the consequences of Aginatus' execution, as Lizzi Testa, 2004, 293 suggests (cf. for Simplicius' hesitations in the case of Anepsia the note ad 28.1.40 *haec, ut gesta sunt*), and that Maximinus therefore looked for another, more compliant person to finish the job? Or did Valentinian's death (see below ad § 53) entail a change in Maximinus' position? Lots of questions, but, unfortunately, we can only guess at the answers. Amm.'s only other instance of the adj. *patricius* is 16.10.5 *reverendasque patriciae stirpis effigies*, "the venerable images of the patrician families" (tr. Hamilton). In 26.6.7 the term *patricius* does not denote noble descent or some function, but is an honorific title; see the note ad loc.

retinuit apud se paulisper imperiale praeceptum haerens et ambigens, quemnam potissimum exsecutorem atrocis rei fidum inveniret et efficacem
 Apart from the present text and 14.9.1 the phrase *imperiale praeceptum* occurs only a few times in some Christian texts and more than twenty times in the *Gesta collationis Carthaginiensis a. 411*. Amm. here, of course, refers to Valentinian's rescript about Aginatus' death mentioned in § 51 (*oravit impense, ut rescriberetur eum occidi, et impetravit*). Like the preceding sentence Amm.'s words have raised doubts as to their reliability. According to Alföldi, 1952, 73 for instance, "it is quite incredible that he (sc. Maximinus) kept in his own hands the imperial order giving the death sentence", but this seems to underestimate Maximinus' influence. The combination of the verbs *haerere* and *ambigere* to denote hesitation also occurs in 15.5.10 and 29.6.9; cf. 16.8.6 (*cum iudices*) *haererent ambigui*. See the note ad 26.4.1 *percunctabatur, quemnam* on the absence of a sign of urgency implied by *-nam* in Amm. Cf. 21.3.4 *fidum secreto-rumque taciturnum exsecutorem et efficacem* (q.v.).

tandemque, ut solent pares facile congregari cum paribus, Doryphorianus quidam repertus est Gallus, audax ad usque insaniam **1.53**
 'Like will to like' is an idea which is already found in Homer: ὥς αἰεὶ τὸν ὁμοῖον ἄγει θεὸς ὥς τὸν ὁμοῖον (*Od.* 17.218). It occurs quite often in a variety of Greek and Roman authors; see Otto, 1890, 264 and the additions in Häussler, 1968, 62, 77, 197, 242 and 283. Amm.'s version seems inspired by Cic. *Sen.* 7

pares autem vetere proverbio cum paribus facillime congregantur; see Powell ad loc. Amm. is our only source of knowledge about Doryphorianus (PLRE I, Doryphorianus). The new character offers fresh opportunities for hyperbolic phrases of abuse. The combination of ‘reckless’ and ‘mad’ occurs in other authors too, but not as specifically as in the present text; cf. 14.7.17 *audaces usque ad insaniam homines*, 17.8.1 *ad insaniam post Argentoratum audaces omnes et saevos*.

cui hanc operam implere brevi pollicito deferri providit vicariam et comonitorium cum Augusti litteris tradidit The long list of verbs with *operam* as direct object in TLL IX 2.666.16sq. does not contain any examples of *implere*. There seems to be only one parallel: Ambr. Vid. 2.12 *tantae operam implere virtutis*. Doryphorianus’ promise to get the job done ‘soon’ (*brevi*) secured for him the post of *vicarius urbis Romae* as successor of Simplicius (Seyfarth’s “eine Statthalterschaft” is wrong). Substantivized *vicaria* also occurs in 23.1.4, where it denotes the vicariate of the diocese Spain: *Venusto vicariam commisit Hispaniae*. Cf. further *Cod. Theod.* 6.26.4 *qui vicarias postea administraverint*.

When precisely Doryphorianus held this post is not quite clear. About his predecessor Simplicius we know that he had taken up his duties before 23 March 374, the date on which *Cod. Theod.* 9.29.1 was posted in Rome, and that he was still in office after 17 November 375, the day on which Valentinian died (cf. Kienast, 1996², 327). This can be deduced from a letter of Gratian and Valentinian II (*Avell.* 13, dated to the autumn of 378 or the beginning of 379 (cf. Girardet, 1996, 266 n. 2) and addressed to the then *vicarius* Aquilinus (PLRE I, Aquilinus 2). In this letter Gratian orders Aquilinus to follow the course which he himself (*clementia nostra*) had recommended at the time to Simplicius: *repetat laudanda et spectata sinceritas tua, quales ad virum clarissimum Simplicium quondam vicarium litteras clementia nostra transmiserit*, *Avell.* 13.3 (p. 55, 10–13). It should be noted that in this letter *clementia nostra* indicates, pace Barnes 245 n. 12 and others, esp. Coşkun, 2000, 78–80, that Gratian (or his *quaestor*) wrote the letter to Simplicius after Valentinian had died and not when he was a non-active Augustus during his father’s lifetime (367–375). Gratian, as Tomlin, 1973, 338 n. 82 points out, when citing constitutions issued when he was a minor member of the imperial college, attributed these explicitly to his father. Thus *Cod. Theod.* 16.7.3, which refers to both *Cod. Theod.* 16.5.3 and Gratian’s own legislation against the Manichees, says: (poena) *quam vel divalis arbitrii genitor Valentianus adscripsit vel nostra nihilo minus saepius decreta iusserunt*. Cf. for

the same procedure *Cod. Theod.* 1.6.8 and 16.6.2. It follows that Simplicius must have been *vicarius urbis Romae* in 374/375 and Doryphorianus, appointed by Gratian, in 375/376 (in this we follow the *PLRE*; see for the date also below, ad § 55). The death of Doryphorianus is reported by Amm. in § 57.

See for *providere* with (a.c.) inf., ‘to see to it’, TLL X 2.2327.68–75 and the note ad 26.6.2 *et, si*. As in *rescriberetur* (§ 51), the Agens of *deferri* is not mentioned. The emperor stays out of sight. Maximinus handed the official rescript to Doryphorianus, adding ‘unofficial practical instructions’. This meaning of *commonitorium*, for which see the note ad § 20 *quo infitianti*, is more likely than Wagner’s suggestion: “codicillos super hac Vicaria ipsi commissa”. As to *cum Augusti litteris*, Van de Wiel, 1989, 177 thinks that these words do not refer to *imperiale praeceptum* in the preceding section, but to Doryphorianus’ letter of appointment (for this meaning of *litterae* see the note ad § 13 *auxit obstinatum*).

instruens hominem saevum quidem, sed rudem, qua celeritate Aginatium sine ullo deleret obstaculo dilatione qualibet inventa forsitan evasurum Doryphorianus may have impressed people with his macho appearance, but he was ignorant (*rudem*; see the note ad 27.5.8 *quibus*) and in need of explicit instructions. See the note ad 21.5.6 *quid agi* on the rare cases in which the verb *instruere* has a non-personal Agens. Speed was essential, for Aginatius had the reputation of postponing and escaping. One of the instances on the long list of *verba moriendi et interficiendi* in Hagendahl, 1921, 100–102 is *delere*. Some examples: *voluntaria morte deleta* (14.8.15), *apri dente ferali deleta* (22.9.15), *carnificis manu deleta* (23.5.6). The strategy described in the lemma closely resembles Constantius’ scheme to liquidate Gallus, who was summoned by his nephew for some urgent business, *ut auxilio destitutus sine ullo interiret obstaculo* (14.11.1).

festinavit, ut mandatum est, Doryphorianus magnis itineribus Romam et inter...andi initia magna quaeritabat industria, qua vi senatorem perspicui generis interficeret iuvantibus nullis The phrase *magnis itineribus* is found almost exclusively in historians; see for Amm. the note ad 25.8.5 *itineribus*. Unfortunately, none of Amm.’s other six instances of the often used phrase *inter initia* is combined with a gerund which might be helpful to complete the lacuna. It is likely that Doryphorianus, himself a Gaul and a tool in the hands of the *praefectus praetorio* of Gaul, travelled to Rome from Gaul. The phrase *magna quaeritabat* 1.54

industria occurs also in 26.3.2 (q.v.). TLL XI 1.1747.69–73 lists only very few instances of *perspicuus* without any further specification as a synonym of *insignis* or *clarus*. Surprisingly, the translators regard Doryphorianus as the Patiens of *nullis iuvantibus*, e.g. Rolfe: “by what act of violence he could without anyone’s help destroy a senator”. One fails to see why Doryphorianus did not want to be assisted by anyone. It is far more likely that he wanted to reach his objective in a situation in which his victim Aginatus was entirely isolated and left without any help; cf. the words *auxilio destitutus* (14.11.1), quoted at the end of the comments on § 53.

cognitoque eum iam pridem repertum in villa propria custodiri ipse tamquam capita sontium Aginatium pariterque Anepsiam horrore medio tenebrarum audire disposuit See for *cognito* as an abl. abs. without a nominal ablative the notes ad *edictoque* (20.5.1) and *cognito* (25.8.6). Obviously the urban administration’s information service had worked rather slowly, but on being informed about Aginatus’ whereabouts (he must have been put under surveillance by Doryphorianus’ predecessor Simplicius), Doryphorianus acted immediately. As a high-born noble Aginatus was held in private custody, a privilege he shared with the lady Hesychia, mentioned in § 47 (q.v.). He was even better off than she, in that he was allowed to remain *in villa propria*, whereas Hesychia was kept *in domo apparitoris*. According to Van de Wiel ad loc. *capita* does not mean ‘leading persons’ (see for this the note ad 25.10.8 *quos capita*), because no other members of a group are hinted at, so that it is more likely to assume the meaning ‘person’ in a juristic sense. See for such a meaning of *caput* Heumann-Seckel s.v. 3. The gen. *sontium* should be explained as explicative. The fact that the entire chapter contains many juridical and legal termini technici could be an added argument. A drawback of this interpretation is the difficulty to define the function of *tamquam*, which poses no problem in the alternative interpretation ‘leaders of the group of guilty people’: it can be regarded as an instance of what is called “quasikausaler Gebrauch” in Szantyr 597. With Valesius’ fine emendation *pariterque* Amm. makes clear that Anepsia’s attempt to attribute the responsibility for what had taken place to Aginatus cum suis (§ 50) had failed: she was treated as a culprit ‘on an equal footing’. See for *horrore medio tenebrarum*, “pendant l’horreur de la pleine nuit” (tr. Marié), the note ad 21.2.2 *horrore medio noctis*. See for *audire*, ‘verhören’, the note ad 28.1.22 *post hanc* and for *disponere* ‘to decide’, the note ad 20.4.9 *disposuit*.

A night trial seems a unique exception to the normal procedure, but Henri de Valois aptly refers to a passage in Libanius' laudation of Ellebichus, *magister militum per Orientem* in 383–388 (PLRE I, Ellebichus). Libanius praises his treatment of the Antiochene population, inter alia for the following reason: χαρίζεται μὲν κἀνταῦθα τὸ μήτε ἐν μέσαις νυξὶ μήτε ἐν πρώταις ἀλεκτρούονων ὥδαῖς ἥκειν ἐπὶ τὸν θρόνον, ὡς αὐτῶν γε ἐν αὐτοῖς τῶν καιρῶν ἐχόντων εἰς ἔκπληξιν ἀφορμάς, “here too he was kind enough not to take his seat either at midnight or at first cock-crow—times which in themselves give cause enough for terror” (Lib. Or. 22.21, tr. Norman). Valesius also refers to Sen. *De ira* 3.19.2 on nocturnal executions.

quo tempore hebetari solent obstrictae terroribus mentes, ut inter innumera multa Ajax quoque Homericus docet optans perire potius luce quam pati formidinis augmenta nocturnae Cf. for *hebetare* ‘to stun’, *clausorum hebetaverat mentes* (20.11.11, q.v.) and *hebetarunt eius anxiam mentem* (25.7.3). With *innumera multa* Amm. hints at his own considerable historical erudition, but it is also reminiscent of the *innumera...exempla* of the past, mentioned in 14.11.29, and analysed by Kelly 289–293. Ajax' grave is mentioned in 22.8.4 (q.v.).

Although Amm. regularly presents himself as a native speaker of Greek (see Den Boeft, 1992 and Barnes 65–78), his references and allusions to Roman literature are far more numerous; see Fornara, 1992. Herodotus is mentioned only once, viz. in the long Egyptian digression: 22.15.28 *scriptor Herodotus docet*, and even in that case direct consultation is doubtful; see the note ad loc. and above the notes ad § 4, where the description of the Phrynichus affair does not show any sign of being directly influenced by Herodotus. The only Greek author who is referred to quite often and with some clear signs of Amm.'s personal familiarity with his work is Homer. He is mentioned sixteen times. In some cases the references to *Iliad* or *Odyssey* do not concern a specific verse, e.g. the Lotophagi in 14.6.21, the Phaeaces (18.5.7, 27.8.4), Proteus (22.16.10), Aegyptus being the original name of the Nile (22.15.3). In other cases Amm. does refer to a specific passage, as in 23.6.53 *quos, ut Homerus fabulosius canit, Iuppiter ab Idaeis montibus contuetur* (Il. 13.1 sqq.), 27.4.3 *Homeri perennis auctoritas docet aquilonem et zephyrum ventos exinde flare fingentis* (Il. 9.1 sqq.). There are only two quotations of the Greek text: 15.8.17 (Il. 5.83) and 23.6.62 (Il. 13.6). Even in the four specific references just mentioned a direct consultation of Homer's text cannot be taken for granted. See the notes ad Amm.'s various ‘Homeric’ passages

for further reflections. The present text alludes to *Il.* 17.645–647 Ζεῦ πάτερ ἄλλα σὺ ῥῦσαι ὑπ’ ἡέρος νῆας Ἀχαιῶν, ποίησον δ’ αἴθρην, δὸς δ’ ὀφθαλμοῖσιν ἰδέσθαι· ἐν δὲ φάει καὶ ὄλεσσον, ἐπεὶ νῦ τοι εὖαδεν οὕτως, “Father Zeus, protect from the darkness the sons of the Achaeans, and make clear sky, and grant us to see with our eyes. In the light even slay us, since such is your pleasure” (tr. Murray-Wyatt). The parallel is not very convincing; in fact, only *perire potius luce* bears some likeness to ἐν δὲ φάει καὶ ὄλεσσον. See for *augmenta* the notes ad 20.8.8 *cuius iracundiae* and 21.16.1 *nihil circa*. As in the instances discussed in these notes, the gen. *formidinis*...*nocturnae* seems to denote what is or has been growing: during the night fear increases. Cf. also Tac. *Ann.* 4.48.2 *tenebrae insuper delectae augendam ad formidinem*; see Martin and Woodman ad loc.

- 1.55 *et quoniam iudex, quin immo praedo nefandus ad id solum, quod promisit, intentus cuncta extollebat in maius* See the notes ad 25.3.17 *quoniam coeptorum* and 25.10.17 *et quia*. If Gelenius’ *quoniam* is correct, it tallies with classical usage in that the causal clause establishes an undoubted fact, with due consequence for what is stated in the following main clause. The term *iudex* is here used in the same way as in 26.3.1 *iudex integer et severus* (q.v.): it may denote Doryphorianus’ status as an ‘official’, but his specific function in the context is being a ‘judge’, which inspires Amm. to make the passionate remark that he behaved as the disgusting opposite of this function.

As is noted in Szantyr 492, the particle *immo*, which corrects a preceding statement, “hat seinen Sitz im Dialog”. Apart from reported speech, it rarely occurs in historiographical texts. Amm.’s only other instance is 17.3.3 *immo eversionum, ut verius dixerim*. As in that case, *immo* has the connotation of a personal appeal to the reader. Here it is accompanied by *quin*: “*immo* neigt von Anfang an zu engeren Verbindungen mit bekräftigenden und steigernden, später auch mit adversativen Partikeln” (Szantyr 492). Because *praedo* is used here as the opposite of *iudex*, it should be regarded as a juridical t.t. (TLL X 2.585.4 sqq.: “in iure de iis, qui mala fide possident, rem alienam invadunt”; see also Heumann-Seckel s.v.). Some examples: *sive bonae fidei possessor sive praedo fuit* (*Dig.* 5.3.25.17), *absurdum videtur eos quidem qui bona fide possiderent excipere actionem, praedones vero securos esse* (*Dig.* 9.4.13). The adj. *nefandus*, which denotes strong disapproval, is not often used about people; *nefando assentatorum coetu* (15.2.8) is Amm.’s only other example. Doryphorianus had promised to deal quickly with Aginatus: *hanc operam implere brevi pollicito* (§ 53). See for Amm.’s use of *intentus* the note ad 20.9.1 *intentique*.

The phrase *in maius extollere* usually indicates excessive praise: *adulatoribus in maius fortunam principis extollentibus* (31.4.4), *nihil in maius extollere more laudantium* (Hier. *epist.* 108.15), which is impossible in the present text, where it rather expresses Doryphorianus' excessive use of the procedural means he had at his disposal.

iusso sub quaestione Aginatio statui agmina fecit introire carnificum catenisque sonantibus triste mancipia squalore diuturno marcentia in domini caput ad usque ultimum lacerabat exitium Referring to 15.5.13 *imperator...praefectum statui sub quaestione praecepit*, Heraeus convincingly added *quaestione*. There seem to be no parallels for the phrase *aliquem sub quaestione statuere*, which obviously means 'to open an official inquiry against a person'. See for *facere* with inf. praes. act. "als Ersatz der mangelnden einfachen Kausativa" Szantyr 354 and TLL VI 1.115.37 sqq. See for *carnifex* the note ad 28.1.28 *exsulque*. In describing how Aginatus' slaves were tortured, Amm. lays it on pretty thick, but in the comparable scene in 29.1.23 he will surpass even this description. The visualization is accompanied by the woeful, or perhaps rather 'ominous', sound of the chains. See for this meaning of *triste* OLD s.v. 5b and cf. *auditisque triste sonantibus classicis* (31.5.8), *sed tuba tum sonitum tristem demittet ab alto/orbe* (Or. *Sibyl.* 8.239 apud August. *C.D.* 18.23). One wonders why Aginatus' slaves were weakened by 'long' neglect. Had this been caused by the house arrest of their owner (§ 54: *iam pridem repertum in villa propria custodiri*), perhaps as a sign of mourning? Or is this an exaggerated stereotype of detainees? Cf. (Paulus Catena) *multos coopertos paene catenis adduxit in squalorem deiectos atque maestitiam* (14.5.9), *si videatis catenas, squalorem, deformitatem civium vestrorum* (Liv. 22.59.15), *inluevieque ac squalore obsitus et tum catena vincus* (Tac. *Ann.* 4.28.1).

Torturing slaves *in caput domini* is another juridical t.t.; see Heumann-Seckel s.v. *caput* 3a, TLL III 419.76–78, (Paulus) *Dig.* 48.18.18.18 *servus in caput...domini...interrogari non potest*. Amm. intensifies the scene by using the verb *lacerare*, 'to mutilate', and adding "to the very verge of death" according to Rolfe's well chosen translation. Cf. *fame ad usque spiritum lacerati postremum* (25.8.1, q.v.) and, about the victims of verbal abuse, *laceratique ad ultimum detestatione atque conviciis* (31.6.3).

quod in stupri quaestione fieri vetuere clementissimae leges As is noted ad 28.1.49 *quorum Abienus* (q.v.), a slave's evidence *in caput domini* was theoretically not permitted (cf. *Dig.* 48.18.18.6). There were, however, exceptions to this rule, in cases of lèse-majesté, for instance, and of adultery:

quaestionem de servis contra dominos haberi non oportet, exceptis adulterii criminibus, item fraudati census accusationibus et crimine maiestatis, quod ad salutem principis pertinet (Cod. Iust. 9.41.1 pr., issued by Septimius Severus). With respect to adultery (Papinianus) Dig. 48.18.17 pr. is also pertinent. But in the present text Amm. does not speak of adultery (Anepsia was a widow, § 34), but of *stuprum*, and *adulterium* and *stuprum* were not identical (see for the difference the definitions quoted in the note ad 28.1.28 *Nec minus*). In a case of *stuprum* it was explicitly forbidden to torture a slave or question him in order to make him testify against his master: *sed [et] in quaestione stupri servi adversus dominum non torquentur* (Dig. 48.18.17.1).

In view of the law just cited, Amm. is right in stating that Doryphorianus acted illegally. That torturing slaves or questioning them *in caput domini* was a violation of the law, was also the opinion of emperor Gratian, for on 15 March 376 he issued the following constitution (Cod. Theod. 9.6.2), which was addressed to Maxi(mi)nus: *quum accusatores servi dominis intonent, nemo iudiciorum expectet eventus, nihil quaeri, nihil discuti placet, sed...nefandarum accusationum crementur auctores, excepto tamen appetitae maiestatis crimine* 'When slaves, as accusers, thunder forth against their masters, no one shall await the outcome of the trial. It is Our pleasure that no inquiry shall be made, no investigation shall be held, but the authors of the nefarious accusations shall be burned...We except charges of the crime of attempted high treason, however' (tr. Pharr). It would seem that this law was issued as a reaction to Doryphorianus' handling of the case of Aginatus (cf. Tomlin, 1973, 323).

Remarkably, Amm. only mentions *stuprum* as the juridical point at issue, and not *stuprum* combined with *veneficium*. It certainly was a case of *stuprum* (cf. *crimine stupri* in § 50), but Anepsia had also accused Aginatus of using *nefariae artes* against her (*ibid.*).

- 1.56** *denique cum iam contigua morti tormenta ancillae voces expressissent obliquo, indicii fide parum plene discussa Aginatus ad supplicium duci pronuntiatur abrupte* Note the cumulative effect of the details of Amm.'s report. Having been tortured almost to death (see for torture in general the note ad § 19 *Adamantius*), a female slave finally uttered some obscure words, which were only superficially examined: this 'evidence' led to Aginatus' peremptory execution. Cf. (cum) *nullam confessionem exprimere tormenta gravia potuissent* (29.2.11). The transferred sense of *contiguus* is quite rare; TLL IV 698.49–53 lists only five instances, three

of which are in the *Res Gestae*: 21.6.2 *suspiciones contiguae veritati* (q.v.), the enigmatic phrase *pericula...veritati saepe contigua* (26.1.1, q.v.) and the present text. Other examples of *obliquus* with the meaning 'obscure' are *verbis obliquis* (15.5.4), *non esse imperatorium obliquis flecti indicii* (22.7.5; cf. 22.14.8). Another example of the inadequate examination of evidence was reported above in § 14: *transeunter indiciorum fide discussa*; see the various notes ad loc. Cf. for *parum plenus*, 'less than exhaustive', Quint. *Inst.* 7.3.24 about the precise formulation of an accusation: *dicit parum plenam*, Lact. *Inst.* 5.17.2 *parum plene respondit Laelius*. The present text seems to be a unique case of *pronuntiare* in a personal passive construction. As in 15.2.9 *damnabantur abrupte* and 26.6.12 *iecit abrupte*, the *cursus planus* with *abrupte* in the final position brings out the suddenness of the event.

nec auditus, cum magnis clamoribus appellaret nomina principum, sublimis raptus occiditur pari sententia Anepsia interfecta Two further breaches of the normal rules result in the utter unlawfulness of the entire procedure: the absence of an interrogation (see for *audire* as a juridical t.t. the note ad § 22 *post hanc*) and the refusal of an appeal to the emperors (Valens, Gratian and Valentinian II). The phrase *aliquem sublimem rapere*, 'to pick up a person and take him away', occurs already a number of times in Plautus, e.g. *Mil.* 1394 *Ducite istum: si non sequitur, rapite sublimem foras*. It is found in a variety of authors. With an almost casual 'Satznachtrag' in the form of a "rallonge à l'ablatif absolu" (see Chausserie-Laprée, 1969, 318–330) of four words about Anepsia's fate Amm. aptly summarizes the mechanical character of the administration of criminal justice by Maximinus and his cronies. The correctness of *pariterque* in § 54 is confirmed by *pari*. The execution by Doryphorianus of Aginatus and Anepsia must be dated to the end of 375 or early 376 (cf. the note ad § 53 *cui hanc*). It occurred probably before 15 March 376, in view of *Cod. Theod.* 9.6.2 (quoted ad § 55 *quod in stupri*). Remarkably, being the mother-in-law of Maximinus' son (§ 35) did not safeguard Anepsia from prosecution and execution by Maximinus' stooge Doryphorianus.

haec agitante, cum adesset, perque emissarios, cum procul ageret, Maximino funera urbs deploravit aeterna At the end of his Phrynician tale of tribulation, Amm. returns to the first section of the chapter: *saeviens per urbem aeternam urebat cuncta Bellona*. The eternal city should never have suffered such a series of disastrous injustices. Only one man was

responsible for it, first in person, when he was *praefectus annonae* and *vicarius urbis Romae*, then after he had moved far away from Rome, as *praefectus praetorio Galliarum* (28.1.41), through the vicars who succeeded him. About *emissarius* TLL V 2.498.5–6 notes: “plerumque contemptim”; some examples: *istius excursor et emissarius, homo omnium ex illo conventu quadruplatorum deterrimus* (Cic. Ver. 2.22), *ex omnibus Neronis emissariis* (Suet. Gal. 15.2), *per emissarios quosdam fallendi perstringendique gnaros* (Amm. 16.9.2). As in *agensque ibi* (§ 51), *agere* means ‘to find oneself’. The word order at the end is c.c., and at the same time emphasizes the importance of *aeterna* in contrast to *funera*.

- 1.57 *Sed vigilarunt ultimae dirae caesorum* The same thought can be found in 28.6.25 *vigilavit Iustitiae oculus sempiternus ultimaeque legatorum et praesidis dirae* and 29.2.20 *caesorum ultimae dirae*. Amm. may have borrowed the phrase *ultimae dirae* from Flor. Epit. 1.22.8 *Saguntinorum ultimae dirae*. It denotes the curses pronounced by victims of injustice in their last moments against those responsible for their plight. Such a meaning is well attested in poetry; see e.g. *ultricesque sedent in limine Dirae* (Verg. A. 4.473) and Fordyce’s note ad Verg. A. 7.324–325 *luctificam Allecto dirarum ab sede dearum/infernisque ciet tenebris*, which phrase suggests that *Dirae* and *Furiae* are identical. This is not the case in Claudian’s *De Raptu Proserpinae* 2.218–219, where *Dirae* is rightly printed with a capital, as in epit. 21.3 about Caracalla: *fratrem suum Getam peremit; ob quam causam furore poenas dedit Dirarum insectatione, quae non immerito ultrices vocantur; a quo post furore convaluit*. In Amm. the personification is perhaps less clear, but the verb *vigilare* supports the use of a capital. Like Claudian, Amm. does not regard *Dirae* and *Furiae* as identical; see 29.2.21, 31.1.1 and 31.10.1.

Basically, the general idea, the fullest form of which is present in 28.6.25, quoted above, expresses Amm.’s firm conviction that some day all wrongdoing will be avenged by the Lady Iustitia’s punishment of the culprits: *manes inultos...sempiternus vindicavit Iustitiae vigor, aliquotiens serus, sed scrupulosus quaesitor gestorum recte vel secus* (30.2.9). History shows that crime does not pay. The evil-doers of the present chapter experienced this.

namque ut postea tempestive dicetur, et idem Maximinus sub Gratiano intoleranter se efferens damnatorio iugulatus est ferro et Simplicius in Illyrico truncatus et Doryphorianum pronuntiatum capitis reum trusumque in carcerem Tullianum matris consilio princeps exinde rapuit rever-

sumque ad lares per cruciatus oppressit immensos Amm.'s intention to report the miserable end of Maximinus and two of his accomplices *tempestive*, 'at the right moment', did not materialize, so that the reader has to content himself with the bare details of the present section. The thrice repeated *et* emphasizes Amm.'s feeling of satisfaction regarding the fall of the villains. It is impossible to draw any conclusions from the absence of references to the end of Leo, whom the author characterized as *bustuarium quendam latronem Pannonium* (§ 12).

As Matthews 511 n. 14 notes, this is one of Amm.'s two unfulfilled promises (the other, less significant, is at 22.8.35, q.v., about white birds resembling halcyons, *super quarum origine et Hellespontiacis proeliis tempore disseremus*). It is one of the main reasons why some scholars argued that a book of the *Res Gestae* has been lost between Book 30 and Book 31 and that Amm.'s work originally consisted of thirty-two books. This theory, proposed by Chiflet, 1627, 62–67, and endorsed by e.g. Hadrianus Valesius in his praefatio ("quam opinionem verisimillimam iudico") and Von Gutschmid, 1894, 572–573, is nowadays no longer accepted (see Thompson 92–93; Barnes 25). Translators tend to give a passive meaning to *intoleranter*: "unerträglich" (Seyfarth), "insupportable" (Marié), "insopportabile" (Caltabiano), but TLL VII 2.25.65–72 seems to be right in preferring the active sense, also in 29.1.20 *intoleranter irascebatur*, as an equivalent of *immoderate* or *impatienter*, characterizing Maximinus himself rather than the reactions of those who hated him. The rare adj. *damnatorius*, which occurs only here in Amm., indicates that he was not the victim of murder: getting a taste of his own medicine, he had been condemned to death, so that his father's prediction proved right: *perituum ferro poenali* (28.1.7, q.v.). There are three other sources which inform us about Maximinus' death. The first is a letter of Symmachus to the emperor Gratian (*Ep.* 10.2.3): *ferox ille Maximinus...poena capitali exitia cunctorum lacrimasque expiavit*, the second a variant in some of the manuscripts of Jerome's *Chronicon*: *in Africa factione eorum perimitur* (sc. the elder Theodosius), *qui et ipsi mox caesi sunt, item Maximinus ex praefecto et ceteri* (*Chron. Min.* I, p. 631; cf. Hier. *Chron.* p. xviii Helm). However, the significance of this statement is uncertain. See Demandt, 1969 and Tomlin, 1973, 522–530 for discussion.

Finally, Symm. *Or.* 4.11–12, a passage of an oration addressed to Gratian. In it Symmachus makes clear that after Valentinian's death the young emperor did not immediately proceed against his father's favourite Maximinus (*interea nos opperiebamur, ut principatus ultro talia vindicaret, vos exspectabatis, ut senatus argueret*, 'meanwhile we waited, hoping that

the emperor of his own accord would punish such behaviour, while you waited for the senate to make the first move in accusing him', 4.11) In the winter of 375/376 therefore Maximinus continued to hold the post of PPO Galliarum (to which he had been appointed in 372 or 373, as is argued in the note ad 28.1.5 *Maximinus*), from which Gratian at first wanted to discharge him as if nothing had happened (*priusquam senatus causa iungeretur tuae, satisfactum tibi putabas, quod insidiator regni exemplo innocentium potestate decesserat*, 'before you and the senate made common cause, you thought it was enough that the man who had attacked your reign had been deposed from his office, as if he was completely innocent', 4.12). It was only at the senate's instigation that the emperor took the appropriate measure and had Maximinus killed (*postquam ventum est ad communes querellas, adhibuisti severitatem, qualem reliqui principes maiestatis tantum negotiis exhibebant*, 'after the complaints had been raised jointly, you treated him severely; other emperors only acted in this way in cases of lèse-majesté, *ibid.*).

Maximinus' downfall and death must have taken place in the early spring of 376. *Cod. Theod.* 9.6.1 and 9.6.2 of 15 March 376 (cf. the note ad § 41 *Post haec*) were still sent to him, while *Cod. Theod.* 9.19.4, addressed *ad Maximinum pf.p.*, was posted in Rome on 16 April 376 and therefore issued sometime earlier. His successor Antonius (*PLRE* I, Antonius 5 + A. Lippold in *Gnomon* 46 [1974] 271) is first attested on 23 May (*Cod. Theod.* 13.3.11).

Simplicius, the man from Emona (§ 45), was executed in the region where he was born. The verb *truncare* may mean 'to behead' here; cf. *truncavitque caput* (Luc. 6.566).

See TLL III 419.64–68 for a list of instances of the t.t. *capitis reus*, 'defendant on a capital charge'; some examples: *pro reo capitis* (Quint. *Inst.* 12.10.70), *homicida sum et reus capitis inducor* (Apul. *Met.* 3.7), *nobis ... tamquam reis capitis quodam modo dicenda causa est* (August. *C.D.* 2.21), *capitis reus suspenso crimine causam fisco deferre non prohibetur* (Dig. 48.2.21), *eo adductus periculi, ut pronuntiaretur capitis reus* (Amm. 19.12.10). The phrase *trudere in carcerem* occurs a number of times in Ambrose, Augustine and other Christian authors. Amm. has one other instance: *ob haec trusus in carcerem* (28.6.24). Apart from the famous phrase in Sal. *Cat.* 55.3 *Est in carcere locus, quod Tullianum appellatur*, this prison is hardly mentioned; Liv. 29.22.10 is a rare case. The *Tullianum* was the part of the *carcer* of Rome (see for imprisonment above, ad 28.1.16 *in quorum*), where people condemned of capital crimes were executed. It was situated at the foot of the Capitoline, between the temple

of Concordia and the *curia*. Varro, *L.* 5.151 provides an explanation of the name: (in this prison) *pars quae sub terra Tullianum, ideo quod additum a Tullio rege*. Cf. Fest. p. 356M *Tullianum, quod dicitur pars quaedam carceris, Ser. Tullium regem aedificasse aiunt*. Modern scholars, however, derive the name from a spring that still wells up from its floor (cf. Welin, 1948, 795; Richardson, 1992, 71; Coarelli, 1993; Eder, 2002), pointing to Fest. p. 352M *Tullios alii dixerunt esse silanos* ('fountains', 'jets of water'), *alii rivos* and Suet. *fr.* 157 (p. 244Re). See in general for the Roman *carcer* and its adjuncts Cadoux, 2008.

Because of the lack of further information it is impossible to find out why Gratian's mother advised her son to let Doryphorianus return *ad lares*, i.e. to Gaul (see § 53 *Gallus*), and whether his subsequent terrible demise had anything to do with his time in Rome (according to Alföldi, 1952, 69 Doryphorianus died "by fire", but that is a mere guess). The mother of Gratian (her son was born on 18 April 359; cf. Kienast 1996², 333) is called Severa (Σεμήρα) in Socr. *HE* 4.31.10–17, Mariana (Μαριανή) in Malalas *Chron.* 13.341, Marina (Μαρίνα) in *Chron. Pasch.* a. 369 and a. 378. Modern authors usually call her Marina Severa (e.g. *PLRE* I, Severa 2; Kienast, 1996², 328; Demandt, 2007², 144), but see Woods, 2006, 173–178, who argues that she should be called Severa rather than Marina or Marina Severa.

Gratian's mother was Valentinian's first wife. The second was Iustina, mentioned by Amm. in 28.2.10 (q.v.) and 30.10.4. Socrates (*loc. cit.*) has a fanciful story about the two ladies: they were friends and accustomed to bathe together; struck by Iustina's beauty Severa introduced the woman to her husband soon after young Gratian had been made Augustus (i.e. on 24 August 367, cf. the notes ad 26.9.1 *translato* and 27.6.4 *vixque se*); Valentinian fell in love with her but did not want to cast off Severa (μη ἐκβαλὼν τὴν Σεμήραν, 4.31.15); he therefore framed a law which permitted any man to have two lawful wives, and then married Iustina (νόμον οὖν ὑπαγορεύσας δημοσίᾳ προτίθησι κατὰ πόλεις, ὥστε ἐξεῖναι τῷ βουλομένῳ δύο νομίμους ἔχειν γυναῖκας. Καὶ ὁ μὲν νόμος προέκειτο, ὁ δὲ ἄγεται τὴν Ἰουστίναν, 4.31.16–17). Undoubtedly, Valentinian committed bigamy according to Socrates. It is, however, hard to believe that this really was the case. Moreover, no vestige of the said law is found in the Codes. It seems plausible, therefore, to assume that at the basis of Socrates' story lies the strong disapproval in Christian circles of remarriage after a divorce. For discussion of all this see e.g. Volterra, 1953; Rougé, 1958; Manfredini, 1987; Sandirocco, 2004; Barnes 123–126; Woods, 2006, 173–175.

In *Chron. Pasch.* a. 369 it is stated that Marina (Severa) was banished by Valentinian (cf. Malalas *Chron.* 13.341; according to Woods, 2006, 179–187 it was not Valentinian’s first wife Severa, but his second wife Iustina who was exiled). Marina (Severa) was later recalled by her son Gratian, according to *Chron. Pasch.* a. 378 (cf. Malalas, *loc.cit.*, who calls the son erroneously Valerianus). The date of 378 provided by the *Chronicon Paschale* is surprising. A recall soon after Valentinian’s death would be more likely, and the present text about the dowager empress’ interference in Doryphorianus’ fate confirms that supposition.

verum unde huc fleximus, revertamur. is urbanarum status, ut ita dixerim, fuit From TLL V 1.895.26–31 it appears that *flectere*, ‘to turn to another subject’, is rarely attested apart from some cases in Tacitus’ *Annales*, e.g. 1.34.4: in a speech to his discontented soldiers Germanicus *a veneratione Augusti orsus flexit ad victorias triumphosque Tiberii*. See Koestermann’s note ad loc. The most remarkable word is *revertamur*. In Amm.’s other seven instances (14.4.7, 20.3.12, 21.1.14, 23.4.15, 27.3.15, 30.4.22, 31.2.25) it is part of a formula to return to the main subject at the end of a digression. This leads to the surprising conclusion that the entire chapter has, in fact, the status of a digression. See the note ad 22.8.48 *prolati* on the manner in which ancient historians conclude digressions.

With *is urbanarum rerum status* Amm. alludes to Tac. *Ann.* 1.16.1 *Hic rerum urbanarum status erat*. According to Koestermann ad loc. these words “schliessen alles Vorhergehende zu einer Einheit zusammen”; cf. also Kelly 183 n. 73. Earlier, Tacitus had used a similar formula in *Hist.* 1.11.3 *hic fuit rerum Romanarum status*. See for the formulaic phrase *ut ita dixerim*, which is used by many authors and occurs often in Christian texts, TLL V 1.976.29sq., Szantyr 333–334 and the notes ad 20.8.9 *libero* and 22.11.3 *vipereis*. It usually expresses an excuse for the boldness of a phrase. This is clearly the case in the present text: far more events, facts, trends, developments etc. characterized Tacitus’ phrase ‘the state of affairs in Rome’ than the criminal trials about which the author has so extensively and hyperbolically reported.

CHAPTER 2

Introduction

The first part of chapter 2, sections 1–4, is devoted to Valentinian's efforts during the summer of the year 369 to secure the Rhine border against the Alamans after the successful campaign of 368, about which Ammianus had written in 27.10. Instead of enumerating all the Valentinianic fortifications on both sides of the Rhine, he singles out one *munimentum*, identified as Mannheim-Neckarau, for a lively description of the personal involvement and the fierce determination of the emperor as well as the heroic efforts of his soldiers in taming the current of the river Neckar.

Despite his at times hostile criticism of Valentinian, Ammianus is full of admiration for his achievements in strengthening the Rhine frontier, which testifies again to his pursuit of balance in the portrayal of his main characters, Constantius, Julian and Valentinian. Several details of Ammianus' account in these sections are confirmed by Symmachus' second and third orations written in or around 370, and by the surprisingly rich epigraphical evidence about Valentinian's building activity.

In the second part, § 5–9, the author discusses Valentinian's ambition to establish another stronghold on barbarian soil across the Rhine. This proves to be less successful. The effort to build a *munimentum* on *mons Piri* (of unknown location) is presented as a surprise attack on barbarian territory and an infringement on a treaty concluded with the Alamans and sealed with hostages. A delegation of Alamannic nobles humbly implores the Romans not to jeopardize the peace. When their plea is ignored, the Alamans attack the soldiers while they are busy building the fort and kill them along with their two commanders. Although Ammianus does not say so in as many words, in this episode Valentinian compares unfavourably with Julian, who in a similar situation (18.2.7) had urged restraint.

The last part of the chapter (sections 10–14) deals with brigandage, which was rife in most parts of the empire, of which Ammianus mentions Gaul, where even a brother-in-law of the emperor fell victim to bandits, and Syria, where a mysterious band of robbers, called the Maratocupreni, terrorized the surrounding districts of Apamea by their unpredictable

and daring raids. Ammianus gives an evocative and colourful description of one of these surprise attacks and concludes the chapter with the statement that the Maratocupreni—men, women and children—were annihilated.

- 2.1** *At Valentinianus magna animo concipiens et utilia Rhenum omnem a Raetiarum exordio ad usque fretalem oceanum magnis molibus communibat* For the use of *at* marking the transition to a “new thematic unit” (Kroon 1995, 362) see the relevant note ad 26.4.1. Amm. picks up the thread from where he had left it in 27.10.16. There he told his readers that after the campaign against the Alamans the soldiers returned to their winter quarters and the emperors to Trier. Valentinian and Gratian were back in Trier on 6 november 368 at the latest (*Cod. Theod.* 1.29. 4). They must have started the campaign sketched in the present chapter soon after 14 May 369, which is the date of *Cod. Theod.* 13. 5.12, still issued in Trier.

On 17 May 369 the emperors issued *Cod. Theod.* 8. 7.10 in a place called *Complatum*, probably a corruption of *Confluentes*, modern Koblenz (Seeck, 1919, 106; Pergami, 1993, 456). On 4 June 369 they were, according to *Cod. Theod.* 10.19. 6, in *Martiaticum*, which should be identified with either *civitas Mattiacorum*, mentioned in e.g. *ILS* 3805 (cf. Amm.’s *Mattiaca aquae* in 29.4.3), or, more likely (cf. Lorenz, 1997, 118), *castellum Mattiacorum*, mentioned in e.g. *ILS* 7085 and *AE* 1997.1187 (Talbert 12 B2). *Civitas Mattiacorum* is modern Wiesbaden, *castellum Mattiacorum* modern Mainz-Kastel, both on the right bank of the Rhine opposite Mainz (cf. Rupprecht, 1990, 466). On 19 June 369 Valentinian and his son were in *Alta Ripa*, modern Altrip near Ludwigshafen (*Cod. Theod.* 11.31. 4), on 30 August 369 in *Brisiacum*, modern Breisach (*Cod. Theod.* 6.35. 8). They were back in Trier on 14 October 369 at the latest (*Cod. Theod.* 9.37. 2). See for the events of 369 described in 28. 2. 1–9 e.g. Maurer, 1910; Von Moers-Messmer, 1979; Lorenz, 1997, 117–145; Seager, 1999, 595–596; Drinkwater, 2007, 289–295.

Amm. is clearly full of admiration for Valentinian’s strategy, since the emperor shows noble ambition while at the same time serving the interests of the state. Amm.’s wording is reminiscent of two famous speeches in Roman historiography. In Liv. 30.30.15 Hannibal warns his opponent Scipio against self-centred conceitedness saying *novi* (‘I know from experience’) *spiritus magnos magis quam utiles* and in Tac. *Hist.* 2.76. 1 Mucianus advises Vespasian to make a bid for power with the words *omnes, qui magnarum rerum consilia suscipiunt, aestimare debent*,

an quod inchoatur rei publicae utile, ipsis gloriosum...sit. An even more grandiose project than that of Valentinian is ascribed to the emperor Maximinus Thrax in HA Max. 13. 3 *animo concipiens usque ad Oceanum septentrionales partes in Romanam ditionem redigere.* In his summary of Valentinian's achievements Amm. mentions also that he increased the size of the army, 30.7.6 *auxit et exercitus valido supplemento et utrubique Rhenum celsioribus castris munivit atque castellis.*

As to *Rhenum omnem a Raetiarum exordio*, in 15.4.2–4 Amm. explains that the Rhine could only be navigated after it had flowed out of the lake *quem Brigantium accola Raetus appellat* (15.4.3), i.e. the Lake of Constance. This lake and the river Rhine up to *Basilia*, modern Basle, formed the border between the Roman province of Raetia Prima and barbarian territory. See for *Raetiae* (always plural in Amm.), the note ad 21.3.1 *confines*.

The spatial sense of *exordium* is found also in 15.11.17 *qui locus exordium est Galliarum* and 22.15.2 *unde exordium Asia Syriarumque provinciae sumunt*; TLL V 2.1565.80–1566.8. The adjective *fretalis* is a hapax; it owes its existence to Gelenius, who either found it in the Hersfeldensis, or conjectured it on the basis of V's *fretalum*. The periphrasis in TLL VI 1.1311.23–24: “i.q. ad fretum pertinens” is not very helpful. Since *fretum* is often used for a sea as a reservoir for rivers (e.g. Ov. Met. 8.835 *utque fretum recipit de tota flumina terra*), *fretalis oceanus* may conceivably be understood as meaning ‘the ocean into which the Rhine flows out’. According to Wagner *fretalis oceanus* refers to the *fretum Belgicum*, i.e. the Channel, but this is a long distance away from the mouth of the Rhine. In 15.4.4 Amm. simply says: (Rhenus) *oceanus gurgitibus intimatur*.

For *magnis molibus* see the note ad 28.1.3. The next part of the sentence explains the meaning of the phrase.

castra extollens altius et castella turresque assiduas per habiles locos et opportunos, qua Galliarum extenditur longitudo The combination of *castra* and *castella* is found ten times in the *Res Gestae*. See the note ad 27.4.6 *et Hister*, and cf. for the meaning of *castra* in Late Antiquity also Geuenich and Zotz, 2008. *Turris* is apparently used here, as in 16.3.1 (*una prope ipsam Coloniam turris*), in the sense of ‘watchtower’, ‘observation tower’, ‘small fort’, more or less as a synonym of *burgus* (Gloss. II 426, 26; 570, 34; cf. Bechert, 1979), a word which is not found in Amm. (cf. Veg. mil. 4.10. 3 *castellum parvulum, quem burgum vocant*). Such *turres*, which required a much smaller garrison than the bigger

castra and *castella*, are mentioned in *Cod. Theod.* 15.1.13, issued by Valentinian on 19 June 364 and addressed to the *dux* of Dacia Ripensis: *in limite gravitati tuae commisso praeter eas turres, quas refici oportet, si forte indigeant refectione, turres administrationis tempore quotannis locis opportunis extrue* (“On the border entrusted to Your Gravity, you shall, during the time of your administration, annually construct watchtowers in suitable places, in addition to the towers which must be repaired, if any, perchance, need repair”, tr. Pharr, slightly adapted).

The comparative *altius* helps to obtain the *cursus velox altius et castellis*, while at the same time stressing the exceptional height of the fortifications. Cf. for the latter connotation also the use of *celsioribus* in 30.7.6, quoted in the note above. The description of the border defenses built by Valentinian is very similar to Anon. *de mach. bell.* 20.1: *est praeterea inter commoda rei publicae utilis limitum cura ambientium ubique latus imperii, quorum tutelae assidua melius castella prospicient, ita ut millenis interiecta passibus stabili muro et firmissimis turribus erigantur* (‘In the interest of the state it is also useful to take care of the border regions which surround the empire on all sides. They will be better protected by a continuous line of fortresses, provided that these are built at a distance of one mile from each other with thick walls and very strong towers’). The sites to be selected for the camps must meet two requirements: they must be suitable for building (*habiles*) and strategically important (*opportunos*). For *habilis* in this sense cf. 23.6.51 *arbusta desunt in locis habilibus ad plantandum*, for *opportunos* see the note ad 20.7.16 *munimenti* and cf. *Cod. Theod.* 15.1.13 just quoted.

As Sabbah 343 n. 87 notes, there is a close resemblance with Symm. *Or.* 2.28 *Rheni ab ortu in oceani ostia riparum margines operum corona praetexit* (‘from the source of the Rhine to its estuary in the ocean he embroidered its borders with a garland of fortresses’). Symmachus held his second oration in Trier on 1 January 370. In it he looked back at the campaign of 369 in which he himself had taken part (cf. Drinkwater, 1999, 132–133). See also Symm. *Or.* 3. 9 (Rhenus) *intersecat castella Romana; a nostris Alpibus in nostrum exit oceanum*. By *Galliarum longitudo* the whole length of the left bank bordering on Gaul is meant (there is a short note on *Galliae* ad 26.5.12 *ne interneciva*). Immediately after the words quoted above from the second oration, Symm. has the very similar phrase *qua regio Nemetensis extenditur*, by which the region of the Nemetenses around *Nemetae*, modern Speyer, is meant (Talbert 12 B3). He relates in the same section that Valentinian fortified the harbour there.

Nemetae, mentioned by Amm. in 15.11.8 and 16.2.12, was one of the towns with a *castellum* and troops at the disposition of the *dux Mogontiacensis* at the time the *Notitia Dignitatum* was written (Occ. 41. 2–13). Three of these towns bordered on the Rhine south of *Nemetae*, viz. *Sale(ct)io* (called *Saliso* by Amm. in 16.2.12, modern Seltz), *Taberna(e)* (Rheinzabern, cf. 16.2.12) and *Vicus Iulius* (Germersheim); Talbert 12 B3–4. The other seven were situated north of *Nemetae*, viz. *Alta Ripa* (Altrip), *Vangiones* (Worms, cf. 15.11.8, 16.2.12), *Mogontiacus* (Mainz, mentioned e.g. in 27.10.1), *Bingium* (*Vingo* in 18.2.4, modern Bingen), *Bodobrica* (Boppard), *Confluentes* (Koblenz, cf. 16.3.1) and *Antonacum* (*Antennacum* in 18.2.4, modern Andernach); Talbert 11 I3–4, 11 H2–3. Apart from *Alta Ripa*, the *castella* just mentioned were pre-Valentinianic in date. Most of these forts must have been renovated by order of Valentinian (cf. Lander, 1984, 273–284; Bernhard, 1990, 150–153), like the *turres* which were in need of repair, mentioned in *Cod. Theod.* 15.1.13, but it is not possible to prove this archaeologically in all cases. In the case of Mainz, for instance, it is disputed whether Julian or Valentinian ordered the reconstruction work (cf. Klein, 2006, 123 with n. 18). Nevertheless, the Pannonian emperor may justifiably, pace Drinkwater, 1996, 27; 1997, 12–13, be called “der letzte ‘Festungsbauer’ an Rhein und Donau” (Bakker, 1997, 116; cf. 28.5.11, 29.4.1, 29.6.2, 30.7.5–6, 30.9.1; Zos. 4.3.5).

One of the new *castella* built by Valentinian was *Alta Ripa* on the left bank of the Rhine. Valentinian stayed there on 19 June 369 (see the note ad §1 *At Valentinianus*). Dendrochronological research has proved its Valentinianic date beyond any doubt (see Von Schnurbein-Köhler, 1989, 523 with n. 43; cf. Lorenz, 1997, 127 with n. 378). In his second oration Symmachus seems to refer to this fort with the words *cui altitudo nomen imposuit* (Or. 2.4; Hall, 1982, 120: “the orator refers to *Alta Ripa*”), but it is not as simple as that: since the antecedent of *cui* is *haec ipsa ripa barbariae*, a fort on the right, not on the left bank of the river must be meant (more on this below, in the note ad 28.2.2 *denique*). Other Valentinianic *castra* and *castella* on or near the Middle and Upper Rhine were for instance *Alteium*, modern Alzey (see the note ad 28.5.11 *catervas*) and Oedenburg (Talbert 11 H4) on the left Rhine valley road diagonally across from Breisach, probably to be identified with ancient *Argentaria*, mentioned by Amm. in 31.10.8 (cf. Nuber and Reddé, 2002, 212–213).

The multiple building on both sides of the Rhine (and the Danube) of rather small forts used as landing-places (*‘Schiffsländeburgi’*, *‘befestigte*

Schiffsländen') forms the most significant part of Valentinian's fortification programme (Drinkwater, 2007, 296–297). "These sites all have similar characteristics, consisting of a gateway parallel to the river, built on a short wall with corner towers linked to the river by two short walls, 20–45 m. long" (Elton, 1996, 160). They all have a close connection to the Rhine fleet, as Höckmann, 1986 has shown. The *munimentum celsum et tutum* of § 2 (q.v.) is only one of the twenty-one fortified landing places along the Rhine counted by Lander in 1984 (p. 284). Another is the *munimentum...prope Basiliam, quod appellant accolae Robur*, which Valentinian built in 374 (30.3.1); the identification of its site is disputed (Seyfarth, 1986³, 350 n. 35 among others opts for *castrum Rauracense*, modern Kaiseraugst, but see e.g. Moosbrugger-Leu, 1974 and Martin, 1998). A fort which is attested both epigraphically and archaeologically is *Summa Rapida* on the left bank of the Rhine near Koblenz/Kleiner Laufen in Switzerland, built in 371 (*CIL* 13.11537; cf. Nuber, 2003, 102–103 with n. 38). A *burgus* built in the same year by soldiers of the *Legio Octava* is mentioned in a building inscription which was found in Etzgen, some six miles from Koblenz down the river (*ILS* 8949). See for forts on the right bank of the Rhine the next note.

For a detailed description of these and other border defenses along the Rhine see Von Petrikovits, 1971, with a map facing p. 218, still a good starting point. There are instructive drawings of these fortresses in Lander, 1984, 285–287, Höckmann, 1986, 402 and Pabst, 1989, 376–380. See further, apart from the literature already cited, Tomlin, 1973, 157–166; Cüppers, 1990; Planck, 2005; Nuber, 2007. In general on fortifications in Late Antiquity: Elton, 1996, 155–174; Southern-Dixon, 1996, 127–147; Le Bohec, 2006, 97–107.

nonnumquam etiam ultra flumen aedificiis positis subradens barbaros fines The *munimentum celsum et tutum* of section 2 (q.v.), Mannheim-Neckarau, is perhaps the most famous of Valentinian's fortifications on the farther side of the Middle and Upper Rhine, thanks to the fact that both Amm. and Symmachus refer to it and that its ruins have been found, but it was by no means the only one. Archaeologists have found ruins of Valentinianic fortresses (or forts restored by him) near Neuwied-Engers (Röder, 1952; Wilhelmi, 1983; Wegner, 1990b), Niederlahnstein (Wegner, 1990a, Böhme, 2003), Trebur-Astheim (Von Kaenel, Helfert & Maurer, 2000/2001, 160–161; Heising, 2003), Biblis-Zullestein (Jorn, 1974; Baatz, 1989²), Sponeck am Kaiserstuhl near Sasbach-Jechtingen (Swoboda, 1986, 103–104; Le Bohec, 1989; Fingerlin, 2005d), Grenzach-

Wyhlen opposite Kaiseraugst (Fingerlin, 2005b) and Küssaberg-Rheinheim (Hartmann, 1987; Sennhauser, 1997, 465–466; Fingerlin, 2005c).

Valentinian was not the first emperor who built fortifications on the right side of the river, as e.g. *ILS* 8937 shows: Constantine founded *castrum Divitensium* (modern Köln-Deutz) in the territory of the defeated Franks (*suppressis domitisque Francis in eorum terris*). It is therefore possible, as already indicated, that some of the forts on the right bank, usually regarded as Valentinianic creations, actually were modifications of those built by his predecessors. It has, for instance, been argued recently that the right-bank fort of Brisiacum (on the Münsterberg in Breisach) was Constantinian rather than Valentinianic (Bender & Pfohl, 2005, 313–325; Fingerlin, 2005a; Zagermann, 2008). Note, for that matter, that “some sites which now appear to lie across the frontier, such as Breisach and Sponeck on the Rhine, were originally built on the Roman bank, but have been affected by the changing course of the river” (Elton, 1996, 160–161).

It is not easy to interpret *subradens*. The only other instance of the verb is Cato *Agr.* 50. 2 *in vinea ficos subradito alte, ne eas vitis scandat*, ‘clear the fig trees in the vineyard to a good height, so that the vine will not climb them’. Metaphorically this might be the equivalent of ‘clearing the land of the barbarians (e.g. by cutting down the forests along the river) in order to prevent the barbarians from reaching the Rhine unnoticed’, but this is not what Valentinian is reported to be doing. Rolfe and Seyfarth take the participle with *flumen* and translate—following Wagner’s note “perstringens”—“which flows by the lands of the savages” and “wo er das Land der Barbaren berührt” respectively. It is true that *radere* and *adradere* are used with a river as subject, e.g. Lucr. 5.256 *ripas radentia flumina rodunt* (“streams graze and gnaw their banks”, tr. Bailey) and Amm. himself says about the Rhine 15.4.3 *altaque divortia riparum adradens* (“cutting its way between high and widely separated banks”, tr. Rolfe). Nevertheless, it seems much more natural to take the participle with *Valentinianus*, the subject of the whole sentence, on a par with *extollens*. Cf. Symm. *Or.* 1.14 *ipse* (Valentinianus) *supra incapati Rheni semibarbaras ripas raptim vexilla constituens*. The meaning would be that, just as rivers graze and nibble at their banks, Valentinian is making inroads into barbarian territory (which Amm. calls *barbaricum* in 17.12.21, 18.2.14 and 27.5.6, q.v.). For the idea that these fortresses meant an extension of Roman territory cf. Symm. *Or.* 2.12 *quid illis* (sc. Alamannis) *remansit immune, quorum salus mancipata est beneficiis tuis et terra castellis?* (‘what can they still rightly call

their own, who owe their very existence to your favours and whose land is claimed by your fortresses?') and 29.6.2 (Valentinianus) *in ipsis Quadorum terris quasi Romano iuri iam vindicatis aedificari praesidiaria castra mandavit*. Amm. has a predilection for compound forms with *sub(ter)-*. Langen, 1867, 6 has a list of ten such verbs found only in Amm.

- 2.2** *denique cum reputaret munimentum celsum et tutum, quod ipse a primis fundarat auspiciis, praeterlabente Nicro nomine fluvio paulatim subverti posse undarum pulsu immani* The particle *denique* marks the high point in the achievements of Valentinian, since his plan to change the flow of the Neckar is even more daring than building fortresses on the right bank of the river Rhine, cf. the note ad 25.6.7 *ausi denique*. As is explained in the relevant note ad 20.7.1, *munimentum* is a general term, not a specifically technical one. Regrettably, Amm. does not tell his readers exactly when this fortress had been built, but it was in all probability in June 369. The *munimentum* in question, one of the *aedificia* on the right bank of the Rhine mentioned in the preceding sentence, should be identified with the 'Schiffsgelände' Mannheim-Neckarau opposite *Alta Ripa* (where Valentinian's presence, as we saw, is attested on 19 June 369), rediscovered in 1936 (Gropengießer, 1937; Schleiermacher, 1942; Wiczorek, 1995). Its ancient name is not known (it is sometimes simply called *munimentum Valentiniani*, e.g. by Franke, 1935), but the suggestion of Maurer, 1910, 27 is attractive: "Da es zu *Alta Ripa* gehörte, wird es unter diesem Namen mitbegriffen gewesen sein. Wenn Symmachus das Hochgestade des rechten Ufers als *ripa barbariae*, *cui altitudo nomen imposuit* bezeichnet [Or. 2.4], so spielt er offenbar auf diesen Namen an". Maurer is followed by e.g. Pabst, 1989, 141 and Drinkwater, 2007, 289.

How long it took to build the *munimentum celsum et tutum* is not mentioned by Amm. either (in 16.11.11 he says that the *munimentum Tres Tabernae* was rebuilt *spe celerius*), but it would be unfair to blame him for that. Anyway, there is only one single source which gives information about the time it took to build a *burgus*, viz. *ILS* 775, found near Esztergom in Hungary; it tells us that in 371 a *praepositus legionis primae Martiorum una cum militibus sibi creditis hunc burgum, cui nomen Commercium, ... a fundamentis et construxit et ad summam manum operis in diebus XXXXVIII... fecit pervenire* (cf. Borhy, 1999, who thinks that the *praepositus* and his men finished their job at the utmost speed; Lander, 1984, 290, on the other hand, deems the forty-eight days "surprisingly long").

One wonders why the emperor or his engineers had not taken the exceptionally strong current of the Neckar (*undarum pulsu immani*) into account before building the fort near the confluence of Rhine and Neckar. In his second oration Symmachus praises Valentinian's expertise as a builder: *Or.* 2.19 *ab usu fabricationis te solum scisse, quid conderes* ('that you as the only one knew from your experience with construction work'). In *Or.* 2.18 he boasts of his being present (sc. in 369) when the emperor designed the floor plan of new buildings and, like an engineer, took the plumb line into his own hand: *interfui, Auguste venerabilis, cum positis armis fundamenta describeres, felicem dexteram fabrilibus lineis occupares*. Cf. further for Valentinian's personal involvement in construction work 28.5.11 (*imperatore ad exstruenda munimenta districto*) and 30.3.1 (*Valentiniano...munimentum aedificanti prope Basiliam*).

As to the Neckar, Symmachus also says that ancient writers showed off their knowledge of exotic rivers like the Ganges or the Borysthenes, but that the Neckar was practically unknown before Valentinian's campaigns: *Or.* 2.24 *Nigrum parem maximis ignoratione siluerunt. nunc primum victoriis tuis externus ('barbarian') fluvius publicatur*. Note that the addition *nomine* suggests that Amm. does not assume that the name of the river is common knowledge. In a passage of the *Mosella* (421–424) in which he alludes to triumphs of Valentinian and Gratian, Ausonius also refers to the Neckar: *Augustae veniens...moenibus urbis/spectavit iunctos natique patrisque triumphos,/hostibus exactis Nicrum super et Lupodunum/et fontem Latiis ignotum annalibus Histri*, "(the river) coming from the walls of the imperial city (i.e. Trier), has beheld the united triumphs of father and son over foes vanquished beyond Nicer and Lupodunum and Ister's source, unknown to Latin chronicles", tr. Evelyn White, adapted). As is argued in the note ad 27.10.8 *cum prope* (q.v.), Ausonius' words must refer to Valentinian's expedition of 369 (and not of 368). It was probably during this campaign that a *burgus* was built on the Neckar, exactly on the spot where now the town hall is in Ladenburg am Neckar, ancient Lupodunum or Lopodunum (Talbert 12 B3). "Beachtliche Überreste dieser 'Schiffslände' konnten freigelegt werden" (Wiegels, 1999, 440; cf. Heukemes, 1981; Rabold, 2005, 168).

The only other instance of *fundare* in its literal meaning 'to lay the foundations' is 22.16.7 *cum ampla moenia fundaret et pulchra*; however, this text is far from certain. For *a primis auspiciis*, 'from the very beginning', see the note ad 20.4.18 *primis*. The verb *praeterlabi* is used five times in Amm. See the note ad 25.10.5 *sed ad perpetuandam*, where it is argued

that in view of Vergil's famous verses *vel quae, Tiberine, videbis/funera, cum tumulum praeterlabere recentem!* (A. 6.873–874), we should read *praeterlaberetur* (Gelenius) rather than *praeterlambere* (Valesius).

meatum ipsum aliorum vertere cogitavit et quaesitis artificibus peritis aquariae rei copiosaque militis manu arduum est opus aggressus In classical authors *meatus* is only used of a river in Plin. Nat. 3.118 (Padus) *trecentis milibus passuum a fonte addens meatu duodenonaginta* ("its length from its source is 300 miles to which it adds 88 by its windings" [*meatu*], tr. Rackham). It is found frequently in this meaning from *Itin. Alex.* onwards, five times in Amm.; TLL VIII 513.2–25. Changing the course of a river is not uncommon in the history of sieges; Frontinus devotes a whole chapter to the subject (*Str.* 3.7). Note that the perfect forms of *cogitare* mean 'to think up', 'devise', as in the present passage, whereas the imperfect forms mean 'to think about', 'to consider', as e.g. in 23.1.2 *templum...instaurare sumptibus cogitabat immodicis*. For *artifex* see the note ad 27.9.2 *qui ventura*. By his cumbersome periphrasis for 'hydraulic engineer', *artifex peritus aquariae rei*, Amm.'s aim is probably to avoid a technical term, as is his wont. For *res aquaria* see Mascoli, 2005. Frontinus uses the term *aquarius* for such technicians in *Aq.* 9.6, 113.4 and 114.1. For *copiosa...manu* cf. the note ad 24.4.11 *lecta*.

- 2.3 *per multos enim dies compaginatae formulae e roboribus coniectaeque in alveum fixis refixisque aliquotiens prope ingentibus stilis fluctibus erectis confundebantur avulsaeque vi gurgitis interibant* Thanks to the ingenuity of Gelenius and Valesius the heavily corrupted text of V has yielded a more or less intelligible account of the work of Valentinian's engineers. The first problem is the word *formulae*, Heraeus' conjecture for V's *formasae*. As it happens, *forma* is a t.t. for the channel of an aqueduct (OLD s.v. 16 d; TLL VI 1.1078.68–1079.7). At first sight this suits the context, because such *formae* might have been used to divert the water of the Neckar. Still, a far easier and more efficient way to achieve this would be to dig a canal into which (part of) the water could be channelled. For that reason the alternative explanation of Valesius seems far more plausible. He interprets *forma* as the equivalent of *arca* 'formwork', and points to Vitruvius 5.12.3: (in order to build a pier) *arcae stipitibus robusteis et catenis inclusae in aquam demittendae destinandaeque firmiter* ("cofferdams, formed of oak piles and tied together with chains, are to be let down into the water and firmly fixed", tr. Granger). This tallies convincingly with the *compaginatae formulae e roboribus coniectaeque in alveum*

fixis refixisque...stilis of our text. The diminutive *formula* is not attested in either of these meanings, so that Heraeus' conjecture must be rejected. For *forma* in the sense of 'mould', 'frame' Valesius pointed to Var. R. 1.14.4 (walls) *ex terra et lapillis compositis in formis* ("formed of earth and gravel in moulds", tr. Hooper-Ash), which Pliny calls *parietes...formaceos* (Nat. 35.169). If this interpretation is correct, the engineers not so much diverted the flow of the river, but erected a barrier against the current in order to protect the walls of the fortress. For *compaginare* see the note ad 21.12.9 *quos ante. Coniectaeque* is Gelenius' (or Accursius') conjecture for V's *cone teque*. For possible connections between the editions of Gelenius and Accursius see Den Hengst, 2010, 157.

The phrase *fixis refixisque* calls to mind the famous passage in Verg. A. 6.622 about one of the great sinners in the underworld: *fixit leges pretio atque refixit*. It shows the strong impact of the *Aeneid* on Amm's language that he introduces a Vergilian phrase in a context which differs *toto caelo* from the original.

For the various meanings of *stilus* in the *Res Gestae* see the note ad 28.1.4 *paulisperque*. Here it has its literal meaning 'stake' or 'beam', as in 15.10.5 *ligneos stilos per cautiora loca defigunt*. The *stili* were probably driven into the bottom of the river to keep the coffer-dams in place. This was expressed in Vit. 5.12.3, quoted above by the words *destinandae firmiter*.

Confundebantur is Gelenius' reading; V has *confidebantur*. The meaning "to bring into disorder", "jumble" (OLD 5) suits the context well. The barrier of coffer-dams is broken up like a battle array, cf. Liv. 9.27.10 *Romanus equitatus concitat equos signaque et ordines peditum atque equitum confundit* and Hirt. Gal. 8.14.2 *perturbatum et confusum...agmen*. The water of the river is pushed up as it runs into the barrier; for this use of *erigere* cf. Verg. A. 7.529–530 *paulatim sese tollit mare et altius undas/erigit*. *Interibant* is Valesius' conjecture for V's *interan*. The verb is used in a comparable context in Caes. Civ. 1.58.5 *naves Massiliensium cum his quae sunt captae intereunt novem*. Clark's *interierunt* is attractive at first glance, but palaeographically inferior to Valesius' *interibant*. Moreover, the imperfect forms *confundebantur* and *interibant* aptly describe the prolonged and ultimately successful struggle of the soldiers (*per multos dies*) to put the barrier in place.

*vicit tamen imperatoris vehementior cura et morigeri militis labor mento
tenus, dum operaretur, saepe demersi* As is noted at 20.4.7 *perpendebat*,
in Roman narrative style the predicate often takes first position in the

sentence. In this case the fact that the perfect *vicit* follows the imperfect forms in the preceding section, emphasizes the final success of the emperor and his men. Amm. uses the phrase *vicit tamen* no fewer than five times. *Vehementia* is characteristic of Valentinian: 28.1.23 *imperatoris iracundiam tulit perciti vehementer*; 30.5.3 *ut acer et vehemens*; 30.6.3 *imperator ira vehementi percussus*. In the present case it is a positive qualification expressing the restless energy with which the emperor supervised the project. For *morigerus* see the note ad 26.4.3 *participem*.

What kind of soldiers Valentinian had put to work is not known. Of old, legionary troops had been employed in the building of fortified camps, the digging of ditches, the construction of roads, bridges, tunnels etcetera (e.g. Tac. *Ann.* 1.35.1, 11.20.3, 13.53.2; *ILS* 2478, 2479, 8937; *AE* 1983.927; Amm. 24.4.21), but auxiliary soldiers also fulfilled these tasks occasionally, be it reluctantly according to Amm. 18.2.6: *auxiliarii milites semper munia spernentes huiusmodi*. Valentinian employed both *milites auxiliares* (*ILS* 774, a. 370) and legionaries (*ILS* 775, a. 371, partly quoted in the note ad 28.2.2 *denique*).

tandem non sine quorundam discrimine castra praesidiaria inquietudini urgentis amnis exempta nunc valida sunt As is noted ad 23.3.7, *castra praesidiaria* were garrisoned fortifications in the border districts. See also De Jonge ad 18.7.10. In the present text the expression is a variation of *munimentum celsum et tutum* in § 2 (cf. *munimenta praesidiaria* in 25.9.12 and *castella praesidiaria* in 19.9.4). The text of V after *praesidiaria* is badly damaged. Seyfarth printed Mommsen's *inquietudini* and Valesius' *urgentis* for V's *inrui etudiner ingentis*. According to TLL VII 1.1802.72sq. *inquietudo* is seldom used of natural phenomena, but there is an excellent parallel in Ambr. in *psalm.* 45.9.3 *procellosi maris inquietudine figuratur anima eius, qui quietus esse non novit*. Cf. also Apul. *Mun.* 18 *inquietudo terrena*, 'earthquake'. Therefore Mommsen's *inquietudini* may well be right. In fact, he would have stayed even closer to V's text, if he had written *inquietudine*, since, as is pointed out at 21.12.11 *quos morte*, the verb *eximere*, 'to save from', is regularly combined with an ablative in Amm. There is no compelling reason, however, why Valesius' *urgentis* should be preferred to V's *ingentis*. It is certainly not excessive to remind the reader that the Neckar is a mighty river. Gronovius considered *ringentis amnis* "πονητικώτερον" than *urgentis*. He was followed by Rolfe and Marié, but a "snarling river" seems too bold even for an audacious author like Ammianus.

His ac talibus laetus exsultansque...pro anni et temporis † tudila conducens rei publicae studium, ut officio principis congruebat The opening words of this otherwise hopelessly corrupt sentence seem reasonably certain. *His* has been added by Gelenius, probably inspired by 18.5.8, 20.11.31, and 21.13.1, where we find the same expression at the beginning of a new section. For the combination of *laetus* and *exsultans* we may compare 23.3.7 *exsultans pernoctavit et laetus*. The next words in V are: *pro animi et temporis tudila conducens rei publicae tridium ut offer principis congruebat*. Seyfarth's text is mainly based on Gelenius. *Alii alia*, as Seyfarth's app. crit. shows. Perhaps one improvement might be suggested: in view of 17.5.12 *negotium publicae utilitati conducens* one could surmise that V's *tudila* is a corruption of *utilitati*. The overall sense of this *locus conclamatus* must be that Valentinian did his utmost in the given situation to protect the state, as is the duty of an emperor. Cf. 29.4.1, where Amm. attests Valentinian's "unfailing shrewdness in matters of state" (Hamilton): *sollertiae vero circa rem publicam usquam digredientis nemo eum vel obtrectator pervicax incusabit*.

ratusque aptissimum ad id, quod deliberabat, implendum trans Rhenum in monte Piri, qui barbaricus locus est, munimentum exstruere disposuit raptim For *aptissimum ad* cf. Cic. Q. fr. 1.4.4 *lacrimae meorum me ad mortem ire prohibuerunt, quod certe et ad honestatem tuendam et ad effugiendos intolerabilis dolores fuit aptissimum*. With *id, quod deliberabat* Amm. refers back to the first section of this chapter, i.e. Valentinian's plans to fortify the Rhine with *castra*, *castella* and *turres*. What the emperor's overall strategy was, is disputed. Did Valentinian's frontier system include an offensive component, in that the forts on the Rhine were erected in order to be able to strike quickly into enemy territory (Lander, 1984, 284; Pabst, 1989, 332)? Or did they serve a purely defensive purpose, namely to prevent barbarian incursion into Roman territory (Lorenz, 1997, 135; Drinkwater, 2007, 296, 299)? In the sources there are very few clues to answer these questions. Symm. Or. 2.31 seems to support the theory in favour of an aggressive purpose by referring to the creation of new provinces on the other side of the Rhine under Roman governors: *dicam senatui plebique Romanae: "fasces in provincias novas mittite, trans Rhenum iudices praeparate"*. One hesitates, however, to accept these words as an expression of imperial policy: the adulatory character of Symmachus' panegyric is too obvious. On the other hand, a brief comment of Zosimus on the way in which Valentinian conducted his war against the Germans, viz. μετρίως, 'moderately', can be adduced

to support the theory in favour of a defence purpose (Οὐαλεντινιανὸς δὲ δόξας πως τὸν πρὸς τοὺς Γερμανοὺς πόλεμον διατιθέναι μετρίως, 4.16.1). It would seem that in 29.4.1 Amm. also points in this direction. The text is corrupt, as in the section under discussion, but the meaning seems to be that Amm. prefers Valentinian's policy of 'containment' over an eventual 'rollback': *illud contemplan, quod maius pretium operae foret in coercendis verius limite barbaris quam pellendis* ("it was a more valuable service to check the barbarians by frontier defences than to defeat them in battle", tr. Rolfe; the reading is that of Seyfarth's bilingual edition and of the Loeb edition). See for a full discussion of the strategy which Valentinian may have delineated Lorenz, 1997, 131–136 and Drinkwater, 2007, 295–301. Cf. also Sabbah-Angliviel de la Beaumelle, 1999, 186 n. 104.

There is a note on *implere*, 'to carry out', ad 20.8.7 *olim deliberatum*. The relative clause *qui barbaricus locus est* seems superfluous (it "may well be a gloss", Tomlin, 1973, 187 n. 106), but it is idiosyncratic of Amm. to add such an explanation after less well known topographical data, e.g. 18.5.3 *in Hiaspide, qui locus Tigridis fluentis alluitur*; 25.10.12 *Dadastanam, qui locus Bithyniam distinguit et Galatas*. For *disponere* 'to order' see the note ad 28.1.12 *Maximino*.

"Eine Lokalisierung des *mons Piri* ist nicht möglich", Lorenz, 1997, 142 rightly states (cf. the note ad 27.10.9 *locorum gnaritate*), listing various spots in the valley of the Neckar which have been suggested, among them the Heiligenberg at Heidelberg. See for some recent attempts to identify the place where the new *munimentum* (see for this word above, ad § 2) was to be built Hildebrandt, 1997, who proposes Wiesloch near Heidelberg, and Schmich, 2003/2004, who suggests Rohrbach near Heidelberg.

utque celeritas effectum negotii faceret tutum, per Syagrium tunc notarium, postea praefectum et consulem, Aratorem monuit ducem, ut, dum undique altum esset silentium, id arripere conaretur In 369 Syagrius belonged to the corps of (*tribuni et*) *notarii*, like, for instance, Decentius under Constantius (20.4.2, q.v.), Philagrius under Julian (21.4.2) and the notorious Leo under Valentinian (28.1.12). The *notarii*, originally imperial stenographers, became in the course of the fourth century highly placed imperial officials who carried out all sorts of tasks. According to Amm. this Syagrius later became *praefectus* and *consul*, but which Syagrius was he? This is a moot question. We know of two contemporaneous Syagrii (PLRE I, Syagrius 2 and PLRE I, Syagrius 3), whose careers partly over-

lapped. Both became consul, in 381 and 382, respectively, and both were praetorian prefect while consul (*P. Rainer Cent.* 86.1, *P. Lips.* 20.1 and *P. Lips.* 28.1 for the consul of 381, *P. Lips.* 21.1 for the consul of 382). One of them was, according to *Cod. Theod.* 8.7.15, urban prefect of Rome in 381. Martindale, 1967 and the *PLRE* identify the consul of 381 (*PLRE* I, Syagrius 3) with Amm.'s *notarius*, but Demandt, 1971, 45 and Bagnall et al., 1987, 297 are sceptical and, no doubt wisely, opt for a non liquet. See further for the careers of the Syagrii Clauss, 1980 (1981), 192–193; Barrau, 1985 and Gonis, 2004. The imperial *notarius* Syagrius was sent from the imperial court (cf. §9 *ad comitatum reversus*) to the troops under command of the *dux* Arator (*PLRE* I, Arator). The whereabouts of the emperor and the *dux* at the time are unknown. The suggestions of Maurer, 1910, 31 and Von Moers-Messmer, 1979, 71 that it was already autumn and that the soldiers were on their way back to the winterquarters, are plausible guesses, but no more than that. As to Arator, the term *dux* is sometimes used by Amm. rather loosely in the sense of 'general'. In 21.12.19 (q.v.) and 21.13. 5 (q.v.), for instance, it is the equivalent of *magister peditum* / *magister equitum*, in e.g. 24.4.13 (q.v.) of *comes rei militaris*. In the present text, however, the word is probably used in its technical sense of 'zone commander of the frontier troops' (see the note ad 21.7.1 *cum ducibus*), in this case of the troops on the Rhine frontier (pace Colombo, 2006, 152 with n. 22, who thinks that *dux* here, too, is synonymous with *comes rei militaris*). Arator's full title was probably *dux Germaniae primae* (cf. 29.4.7 *Florenti Germaniae ducis* and Scharf, 2005, 52–53).

Amm. repeatedly insists on the importance of speed and decisiveness in a military commander; cf. 17.9.2 *ut consilium prudens celeritas faceret tutum*; 19.7.6 *consilium, quod tutius celeritas fecit*. It was a typical characteristic of Julian: 21.5.1 *nihilque tam convenire conatibus subitis quam celeritatem sagaci praevidens mente*; 22.2.2 *celeritatem negotiis suis aliquotiens profuisse expertus*. Like *alta quies* (27.9.9) *altum silentium* is a phrase coined by Vergil. See the note ad 21.4.8 *superato Rheno* and Harrison ad A. 10.63. For *arripere* see the last part of the note ad 24.7.3 *infaustis*.

transiit cum notario dux, ut iussum est, statim fodereque per militem, quem duxit, fundamenta exorsus Hermogenen suscepit successorem Amm. 2.6
lays great stress on the speed with which this plan is carried out. After the words *raptim* and *celeritas* in the preceding section this is emphasized again by *statim*. In this way Amm. prepares his readers for the abrupt

refusal on the part of the Romans to pay attention to the request of the Alamans not to violate the agreements between the two parties.

For *fodere fundamenta* cf. Var. L. 5.7.41 *cum fundamenta foderentur* and Vitr. 1.5.1 *tunc turrium murorumque fundamenta sic sunt facienda, uti fodiantur, si queat inveniri, ad solidum et in solido* ('then the foundations of the towers and the walls are to be laid, in such a manner that they are to be dug down to the solid, if it can be found, and into the solid'). The word *fundamentum* is used rather frequently in inscriptions with respect to Valentinianic buildings, e.g. ILS 762, 773, 774, 775 (quoted in the note ad 28.2.2 *denique*), 5358, 5554; AE 1903.241, 1996.1612, 1996.1613. Cf. further Symm. Or. 2.18 (also quoted in the note ad 28.2.2 *denique*).

The different shades of meaning of *suscipere* are discussed in the note ad 22.14.1 *nulla probabili*. Here, as often, it is the equivalent of *accipere*; cf. 15.5.21 *accepto Ursicino successore*. The pluperfect *susceperat* must have been chosen *cursus causa*, since Arator's crossing of the Rhine and the preliminary work on the fortress precede the arrival of Hermogenes, cf. Hagedahl, 1921, 122. Hermogenes (*PLRE* I, Hermogenes 6), like Arator, probably was *dux Germaniae primae* (see the preceding note). When and where precisely Arator crossed the Rhine is a matter for speculation (cf. e.g. the suggestion of Hildebrandt, 1997, 22: either near Alta Ripa [Altrip] or near Nemetae [Speyer], but at any rate south of the Neckar estuary). About the status of the soldiers under Arator's command who were put to work to lay the foundations of the new fort, we grope in the dark (cf. the note ad 28.2.4 *vicit tamen*), but they will have been *limitanei* rather than *comitatenses* (as Colombo, 2006, 155 suggests, assuming that Arator was a *comes rei militaris*; cf. the preceding note).

eodemque puncto quidam optimates Alamanni venere Amm. uses *punctum* in a spatial sense in 15.1.4 (terra), *quae nobis videtur immensa, ad magnitudinem universitatis instar brevis obtinet puncti* and 20.3.12; with a temporal meaning here and in 19.5.1 *proelia ne puncto quidem brevi cessabant*, 22.1.2 *eodem enim puncto, quo idem obierat in Cilicia*. For *optimates* used of foreigners (Persians, Goths, Sarmatians and others) see the note ad 20.6.3 *per optimates*. Apart from the present text and § 8 Amm. uses this word to denote Alamannic nobles also in 14.10.9, 16.12.26, 16.12.49 and 29.4.7. As Amm. makes clear in what follows, the Alamannic nobles had concluded a treaty with Valentinian which was sealed with hostages. Marié is alone among modern editors to print V's *venire*.

In view of the extreme rarity of the historic infinitive in the *Res Gestae*, for which see the note ad 27.10.13 *acri igitur*, it seems preferable to accept Gelenius' *venere*.

obsidum patres, quos lege foederis mansuraeque diutius pacis haud aspernanda pignora tenebamus On treaties between Alamans and Romans see the note ad 26.4.5 *Gallias Raetiasque*. Amm. does not specify to which treaty he refers here, but from Symm. Or. 2.23 it may be inferred that such a treaty was concluded shortly before: *iam minus mirum est, quod tibi regum liberi pro foederibus offeruntur*. For *lex* in the sense of 'term' of an agreement cf. Liv. 1.24.3 *foedus ictum inter Romanos et Albanos est his legibus*; 24.29.9 *itaque aut eximendum id de foedere esse, aut legem eam foederis non accipiendam*. The expression *haud aspernandus* is rare, but cf. 28.1.34 *cuius ex testamento legata ipse sumpserat non aspernanda*. It must be read as an authorial comment on the situation described. The hostages were an important guarantee for lasting peace (the genitive *pacis* depends on *pignora*), which should not be taken lightly. See on hostage-taking in general the note ad 27.9.7 *obsidibusque* and for another example of this practice 28.5.4 (q.v.) about Saxons. The special interest of the author is also shown by his use of the first person plural *tenebamus*, to which Chalmers, 1959, 184 has drawn attention. Apart from speeches, Amm. uses the first person plural when speaking about his own work, as in 28.1.17 *cuius hunc fuisse novimus textum* (q.v.). Elsewhere the meaning is 'we Greeks', as in 20.3.4 *quos ἀναβιβάζοντας et καταβιβάζοντας ἐκλειπτικούς συνδέσμους... Graeco dictitamus sermone* (q.v.). In a sentence like 20.3.5 *ut crassato aere ne proxima quidem et apposita cernere queamus* the meaning is 'we human beings'. Especially interesting are the numerous cases in which the author describes events in which he himself took part, e.g. 23.5.7 *Profecti exinde Zaithan venimus locum* (q.v.). For a full and detailed discussion of these passages see Kelly 35–44. In the present context the meaning must be 'we Romans'. It shows how closely the author identifies with the Roman side in the event he is describing; see also the notes ad 20.4.4 *ad nostra* and 22.8.21 *post quos*.

Valentinian displays a more cavalier attitude towards treaties with the Alamans than Julian, who in a similar situation refused to provoke them: 18.2.7 *renitebatur firmissime Caesar asserens pacatorum terras non debere calcari, ne, ut saepe contigit, per incivilitatem militis occurrentia vastantis abrupte foedera frangerentur*. Amm. obviously holds the Romans responsible for the fatal outcome of this risky undertaking. A very similar

attempt to build a fortress on the left bank of the Danube in the territory of the Quadi, described in 29.6.2, leads to an even greater disaster than the present undertaking.

- 2.7 *qui flexis poplitibus supplicabant, ne Romani securitatis improvidi, quorum fortunam sempiterna fides caelo contiguam fecit, pravo deciperentur errore pactisque calcatis rem adorerentur indignam* Almost every single word in this relative clause contributes to making the Romans look arrogant and untrustworthy liars. The Alamans act humbly, warn the Romans of the danger for themselves and remind them of their traditional trustworthiness, all to no avail. The meaning of *fides* is unequivocal here: it refers to faith in observing one's obligations, a traditional (*sempiterna*) characteristic of the Roman people, according to the Alamans. V. Max. 6.6.2 lists examples of *speciosa illa Romana fides*. The connotation of 'protection' which Brandt, 1999, 235 suspects here does not fit the context. For *flexis poplitibus* the only parallels seem to be Stat. *Theb.* 6.590 *poplite nunc sidunt flexo* (cf. 7.193); Plin. *Nat.* 11.248 tells us about the elephant *poplites intus flectit hominis modo*. The phrase *caelo contiguus* is found only here and in 15.5.37 *Constantius ut iam caelo contiguus*. The relative clause is part of the request of the Alamans, so that one would expect a subjunctive instead of the indicative *fecit*. Amm., however, does not follow this rule as strictly as authors belonging to the classical period; see the note ad 20.4.12 *ubi potestas*. While forms like *orere(n)tur* are found side by side with *orire(n)tur* in prose of all periods of Latin, forms like *adorere(n)tur* (also in 31.6.4) are very rare. Neue-Wagener, 1892, 255 mention Suet. *Cl.* 13 and Heges. 5.20.1, to which Apul. *Soc.* 19 may be added. Gelenius prints the classical *adorirentur* here and in 31.6.4.
- 2.8 *verum haec et similia loquentes in cassum cum nec audirentur nec quietum aliquid vel mite referri sentirent, filiorum flentes exitium discesserunt* The expression *loqui in cassum*, to which *ventis* is added pleonastically in 15.5.8 and 25.9.2, is found only in Amm. See the note ad 27.6.4 *Sed dum* on the spelling of *in cassum* as one or two words in the Teubneriana. The postposition of the *cum*-clause brings out the contrast between the efforts of the Alamans to avoid an open conflict and the blunt refusal by the Romans to listen to their request. *Quietus* 'peaceable' is normally used of people, as in 23.6.67 *agunt autem ipsi quietius Seres, armorum semper et proeliorum expertes* and 29.2.16 (Hypatius) *vir quieti placidique consilii*. For *quietum* instead of the partitive gen. see the note

ad 20.4.15 *aliquid indecorum*. The alliteration *filiorum flentes* heightens the emotional impact of the scene; the Alamans are fully aware of what is to follow.

isdemque aegre digressis ex abdito collis propinqui sinu barbaricus prosiluit globus optimatibus danda responsa, ut intellegi dabatur, opperiens Mommsen conjectured *aegre digressis* for V's *agri gressis*. The adverb *aegre* suits the context perfectly, as it denotes both the reluctance of the Alamans to break off the negotiations and the swiftness of the ensuing attack. In the second meaning *aegre* is the equivalent of *vix*, as in 22.15.11 (the Nile passes by some islands, that are so elongated) *ut singulas aegre tertio die relinquat*, which is based on Sol. 32.6 *ut vix eas dierum quinque cursu praetermeet*; TLL I 943.48–60. For *globus* see the note ad 27.8.7 *divisis* and Bitter, 1976, 124–125. The barbarians had been hiding in the hollow flank (*sinu*) of a hill that was hidden from view (*abdito*). *Danda* is a striking example of the gerundive as a passive future participle and is equivalent to *quae darentur*. The phrase *ut intellegi dabatur* is a variation on *ut opinari dabatur*, for which see the note ad 26.10.16 *valliumque*. It implies that *danda responsa opperiens*, ‘waiting for the answers that would be given’, is not based on personal observation, but on conjecture *ex post facto*: “wie jetzt verständlich wurde” (Seyfarth) rather than “as they were given to understand” (Rolfe).

adortus milites seminudos humum etiamtum gestantes expeditis agiler gladiis obruncabant, inter quos etiam duces ambo sunt caesi The soldiers had, of course, laid down their armour as they were busy carrying away the soil they had dug up. Sander, 1963, 147 points for comparison to Veg. *mil.* 3.8.11 about soldiers laying out a stationary camp: *scutis vel sarcinis suis in orbem circa propria signa dispositis, cincti gladio fossam aperiunt* (“the men distribute their shields and packs in a circle around their own standards and, armed only with a sword, open a fosse”, tr. Milner). The only other instance of the adjective *seminudus* in the *Res Gestae* is in the digression on the Saracenes 14.4.3 *omnes pari sorte sunt bellatores seminudi coloratis sagulis pube tenuis amicti*.

nec indicaturus gesta superfuit quisquam praeter Syagrium, qui deletis omnibus ad comitatum reversus irati sententia principis sacramento exutus abiit ad lares Since Syagrius was the sole survivor of this failed enterprise, he must have been the primary source for this report. Whether Amm. heard it directly from Syagrius cannot be decided. See Sabbah 2.9

157–159, who puts forward the idea that Syagrius' story held a special interest for Amm., because he himself had also been one of the few survivors of a lost battle (i.e. the capture of Amida), which, according to Sabbah, must have been held against him. He concludes "l'amertume de Syagrius est la sienne." It is an enticing notion, but in the absence of any remark by the author in the context of his escape from Amida, it must remain speculative. The abl. abs. *deletis omnibus* is not superfluous. Syagrius did not run out on his comrades during the fight, but fled only after everybody had been killed. For *comitatus* see the note ad 26.5.7 *cum legatis*. Valentinian acts entirely in character by not taking the decision to cashier Syagrius after due consideration of the situation, but in a fit of temper. For *sacramento exuere* and similar expressions see the notes ad 24.3.2 *residuos* and 25.1.9 *abieci sunt*. Syagrius' dismissal from the imperial service apparently did not hinder him in his further career (*postea praefectum et consulem*, 28.2.5, q.v.). He almost certainly hailed from Gaul, as can be inferred from the work of Sidonius Apollinaris: one of the consular Syagrii had his tomb in Lyon (Sidon. *epist.* 5.17.4 *conditorium Syagrii consulis*), while a correspondent of Sidonius by the name of Syagrius (*PLRE* II, Syagrius 3) is called *consulis pronepos* (Sidon. *epist.* 5.5.1; cf. 8.8.3) and possessed ancestral estates in Gaul (Sidon. *epist.* 8.8.1); the Gallic nobleman Tonantius Ferreolus (*PLRE* II, Ferreolus) was a grandson by the daughter of one of the 4th century Syagrii (Sidon. *epist.* 1.7.4 *Afranii Syagrii consulis e filia nepos*).

id commeruisse scaevo iudicatus arbitrio, quod evaserit solus The adjective *scaevo* is a plausible emendation by Günther, 1891, 72 of V's *scaeso* ("perverse", "misguided"; OLD 3). Günther compares 29.3.1 (Maximinus) *qui potestate late diffusa scaevum imperatori accesserat incentivum* ("His authority was extensive, and he exercised a sinister influence on the emperor", tr. Hamilton), which is a certain emendation of V's *diffusas cevum*. The only author who uses *scaevus/scaevitas* frequently is Apuleius. See Van Mal-Maeder on *Met.* 2.13 and the relevant notes in GCA 1977, 33 and 142. *Commerere*, "to merit fully" (OLD) is again a rare word, found mainly in comedy; TLL III 1880.15 sqq. The compositum adds to the scornful tone of the sentence. The perf. subjunctive *evaserit* instead of *evasisset* is a form of *repraesentatio*, which results in a *cursus planus*; see the note ad 23.2.6 *ubi cum*.

- 2.10** *Haec inter per Gallias latrociniorum rabies saeva scatebat in perniciem multorum observans celebres vias fundensque indistanter, quidquid incide-*

rit fructuosum In his love of personification Amm. goes to new extremes in this sentence. *Latrociniurum rabies saeva* might be paraphrased as ‘bandits in their savage frenzy’. Who were these *latrones*? Since *rabies* is used predominantly, though not exclusively, of barbarians (Seager 57), and *latrones* sometimes of rebellious barbarians (cf. 28.5.7 and the notes ad 27.2.3 *et nanctus* and 27.9.7 *tali successu*), it is tempting to think of them, in particular of the Alamans, but also of Franks and Saxons, of whom it was said in 27.8.5 that they were plundering Gaul (see further 28.5.1). Cf. what Amm. says about Sarmatians in 16.10.20 *latrocinandi peritissimum genus* and 17.13.27 *latrocinii assuetus occultis*. Alternatively, and in view of the parallel story about the Maratocupreni in §12 preferably, *latrones* from within the empire might be meant, veterans, deserters, fugitives from barbarian raids, dissatisfied locals, impoverished farmers and shepherds, runaway slaves etc. who pillaged and plundered the country. Cf. for such *latrones* in Amm. e.g. 14.11.23 and 22.16.23. For the various shades of meaning of the word see TLL VII 2.1014.82–1017.15; Burian, 1984; Lafer, 2004.

“Brigands (were) endemic in the ancient world” (MacMullen, 1966, 256; cf. Grünewald, 1999, 26–39). We find them in Italy (Valentinian in 364 ordered a *consularis Campaniae* to take measures against *omnes latronum conatus* in his district, *Cod. Theod.* 9.30. 2; Symm. *Ep.* 2.22.1 complains about brigands wreaking havoc near Rome: *nunc intuta est latrocinii suburbanitas*) as well as in the provinces (in the story of the Good Samaritan Luke 10.30–31 writes: *homo quidam descendebat ab Ierusalem in Iericho, et incidit in latrones, qui etiam despoliaverunt eum*; Cypr. *ad Donat.* 6 speaks of *itineria latronibus clausa*, ‘roads barred by brigands’). According to MacMullen, 1966, 211 brigandage “was worst in Gaul”. Gaul in Late Antiquity was the heartland of the *Bagaudae* (“vel potius *Bacaudae*”, TLL II 1680.81), *manu agrestium ac latronum* (Aur. Vict. *Caes.* 39.17). See in general MacMullen, 1966, 211–241, 255–268; Shaw, 1984; Van Hooff, 1988; Grünewald, 1999.

The verb *scatere* is used in its literal meaning (‘to bubble up’) of a bitumen source in 24.2.3 and metaphorically of the senseless drivel of advocates *circumlocutionibus indigestis ita scatentes, ut in colluvione taeterrima audire existimes ululabili clamore Thersiten* (30.4.15). It is difficult to establish the meaning of *fundens*. TLL VI 1.1569.30 (reading *indubitanter*) brings it under the heading “expendendo perdere, abicere, dissipare”, but why and how would these bandits squander their booty? Rolfe and Marié translate “fell upon” and “se jetait sur”, which fits the context well, but attributes a meaning to the verb for which there are no

parallels. Seyfarth's "brachten um" is preferable, since *fundere* in the sense of *prosternere* (TLL VI 1.1569.70sq.) is not at all unusual in Amm.: 24.2.14 *cum certaretur asperrime multique funderentur altrinsecus*; 23.5.19 *at si fortuna versabilis in pugna me usquam fuderit* (q.v.). *Indistanter*, 'indiscriminately', is a convincing emendation by Müller, 1873, 359 of V's *indutanter*. The only other instance in Amm. is 27.9.4 *ex nutu suo indistanter putant omnium pendere fortunas* (q.v.). For *quidquid* used of human beings cf. 15.4.8 *e latebris hostes exsiliunt et sine parsimonia, quidquid offendi poterat, telorum genere multiplici configebant*. They are called *fructuosum*, because they promise a rich booty. For this meaning cf. 31.10.18 *Hanc victoriam opportunam et fructuosam*; Cic. *Amic.* 79 *sed plerique neque in rebus humanis quicquam bonum norunt nisi quod fructuosum sit* (quoted in 28.4.26); Apul. *Met.* 9.8 *praedam de rapinis uberrimam fructuosamque capturi*.

As Szantyr 562 observes, the subjunctive after *quicumque* becomes ever more frequent in Late Latin; cf. 22.15.15 *perniciosis morsibus, quidquid contigerit, pertinaciter petens*; 23.4.5 *disiectat, quidquid invenerit*. Gelenius' *inciderat* is another instance of his 'classicizing' tendency.

denique praeter complures alios, quos absumpserunt insidiae tales, Constantianus tribunus stabuli impetu est clandestino exceptus moxque interceptus, Valentiniani affinis, Cerialis et Iustinae germanus Hagendahl, 1921, 100–101 illustrates Amm.'s rich *copia verborum* by listing no fewer than 29 expressions for 'to die' and 23, among which *absumere*, for 'to kill'. For *excipere* 'to capture', 'catch' cf. 31.9.5 *si qui iam adultus aprum exceperit solus* and Cels. 1 *pr.* 43 *viatorem a latronibus exceptum*. Constantianus and his companions were, of course, not the only victims of *latrones*. Numerous inscriptions testify to the fact that all over the Roman world, and in every period, people were kidnapped (e.g. *ILS* 8505 *decepto a latronibus*, 8506 *abducto a latronibus*, 5795 *inter vias latrones sum passus*; *nudus saucius evasi cum meis*) and/or killed by them (e.g. *ILS* 2646, 8504, 8507; *CIL* 2.2968, 2.3479; 3.1559; 13.3689 *o crudele nefas tulit hic sine crimine mortem/damnatus periit deceptus fraude latronum*; *AE* 1982.512, 1989.480).

We have met Constantianus before, in 23.3.9 (q.v.), if indeed the tribune there and the *tribunus stabuli* of the present text are one and the same (so *PLRE* I, Constantianus 1; cf. Chausson, 2007, 161–162, who accepts the identification, but both here and in 23.3.9 wants to read *Constantius* instead of *Constantianus*). For the function of *tribunus stabuli* see the note ad 20.4.3 *stabuli tunc tribunus*. Prior to Constantianus

Valentinian's brother Valens (*PLRE I*, Valens 8) had occupied this post (26.4.2), while after Constantianus' death his brother Cerialis, Valentinian's brother-in-law (*PLRE I*, Cerealis 1), was holder of the same office (30.5.19).

Both Constantianus and Cerialis were brothers of Iustina (*PLRE I*, Iustina), Valentinian's second wife. See for the remarkable story of the friendship between Iustina and Valentinian's first wife (Marina) Severa and Valentinian's supposed bigamy with Iustina the note ad 28.1.57 *et Doryphorianum*. The father of Iustina and her brothers was Iustus (*PLRE I*, Iustus 1). Their mother was in all probability related to Constantine the Great (in what way is disputed; see e.g. Rougé, 1958 and 1974; Woods, 2004; Chausson, 2007, 104–105, 160–173). Like Valentinian Iustina had been married before, namely to Magnentius (*PLRE I*, Magnentius), when she was a young girl. Iustina's Constantinian descent may have been the principal reason why the usurper and Valentinian sought marriage with her. She bore Valentinian a son, the future emperor Valentinian II (*PLRE I*, Valentinianus 8) and three daughters, Iusta (*PLRE I*, Iusta 1), Grata (*PLRE I*, Grata) and Galla (*PLRE I*, Galla 2); Galla became the second wife of Theodosius I and was mother of Galla Placidia.

When Valentinian died in 375 Iustina and her son lived near Sirmium *in villa, quam Murocinctam appellant* (30.10.4). A couple of days later she witnessed her son's proclamation as Augustus, in which her brother Cerialis played a prominent part (30.10.5; cf. Girardet, 2004). After her husband's death Iustina revealed her sympathy for Arianism, which resulted in a long struggle with bishop Ambrose of Milan (references in the *PLRE* s.v. Iustina) and earned her the nickname Jezebel (*Ambr. epist.* 10.76.18; *Rufin. hist.* 11.15; *Gaudent. serm. praef.* 5). She died in the summer of 388.

At procul tamquam horum similia cientibus furiis per omne latus Maratocupreni grassatores acerrimi vagabantur, vici huius nominis incolae in Syria prope Apameam positi See for *At* above, ad § 1. Adrien de Valois conjectured *cientibus* for *V's actentibus*, comparing 31.10.1 *quae temporum rabies velut cuncta cientibus Furiis ad regiones quoque longinquas progrediens late serpebat*, where the expression also introduces a sudden change of scene. The episode of the Maratocupreni is very loosely connected to the context by the words *horum similia*, interrupting the account of affairs in the West, which is taken up again in the next chapter. Amm. is our only source for these bandits. According to Matthews 402, the first part of their name is derived from Aramaic *m'ârâtâ* 'caves' and

the second from *kapra*, the equivalent of κώμη. Interestingly, Theodoret mentions a village called Marato near Apamea (*h. rel.* 10.9 Παράκειται δὲ τῷ φροντιστηρίῳ [‘monastery’] κώμη Μαρατῶ συριστὶ καλουμένη); see Shahīd, 1984, 172–175 and 531–532. For Apamea (Talbert 68 B3) see De Jonge ad 14.8.8. According to Lenski, 2002, 196 the suppression of the Maratocupreni may have found an echo in Them. *Or.* 8.117 αὐτὸν δὲ ἐκ Μυσῶν Φοίνικας ἐφορᾷ καὶ ὑπεραγανακτεῖ ἀδικουμένων. For a reference to these events in Libanius see the note ad 28.2.14 *interiere omnes*.

The expression *per omne latus* means ‘in all directions,’ ‘everywhere’; cf. 16.10.13 *perque omne latus, quo se oculi contulissent*, 31.6.5 *per Thraciarum latus omne*. A *grassator* is a vagabond or a highwayman, “fere i.q. latro, praedator” (TLL VI 2.2198.49). Amm. uses the term of Isaurians (14.2.7; 27.9.6), Laeti (16.11.5), Sarmatae (17.13.31), Sarmatae and Quadi (29.6.13), Austoriani (28.6.15), Picti, Attacotti and Scotti (30.7.9), Goths and Taifali (31.9.4). In 24.3.2 *grassatoribus foeda consternatione depulsis* (q.v.) the troops of the Persian Surena, who had launched a surprise attack on the Roman army, are disdainfully dubbed *grassatores* and in 26.9.5 (q.v.) Arbitio even calls the usurper Procopius *publicum grassatorem*.

nimum quantum numero et exquisitis fallaciis abundantes ideoque formidati, quod mercatorum militumque honoratorum specie sine strepitu ullo diffusi opimas domos et villas et opes pervadebant On the alleged Grecism *nimum quantum* see the note ad 21.16.16 *uxoribus*. See for *exquisitus*, used by Ammianus both in bonam and in malam partem the note ad 26.6.7 *qui ad*. The words *exquisitis fallaciis*, ‘wily tricks’, seem to betray a reluctant admiration on the part of the author for the cleverness of these brigands. For an overview of such tricks in the *Res Gestae* see Pagnon, 2005, with a reference to the present text on p. 170. Although *honoratus* is used both of civilians and military men (TLL VI 3.2949.25–2950.35), the adj. *honoratorum* is best taken with *militum*, since we do not know of a class of *mercatores honorati*. In the case mentioned as an example of their *modus operandi* (section 13, q.v.) the Maratocupreni disguised themselves as a high official with his retinue to plunder a rich man’s house. The official in question is a *rationalis (rei privatae)*, that is to say not a military man, but a civil servant. See for this meaning of *miles* the note ad 26.6.5 *ubi quoniam*. V’s text *species inestre...ullo die fosi* shows the disastrous results of a wrong demarcation of words, a recurrent feature of this mainstay of the textual tradition. It took the combined ingenuity

of Gelenius and Henri de Valois to sort things out. The sequence *opimas domos et villas et opes* sounds very suspect, but it seems just possible to defend *et opes* as meaning ‘and the riches contained in them’; cf. *quamlibet coniurati multorum opes attriverint* in the next section. There is no reason to doubt *pervadebant*, for which cf. 14.1.6 *honoratorum circulis assistendo pervadendoque divites domus egentium habitu*.

nec quisquam adventum eorum cavere poterat inopinum non destinata, sed varia petentium et longinqua et, quocumque ventus duxerat, erumpentum For *inopinus* see the notes ad 20.8.8 *cuius iracundiae* and 26.9.2 *quo praesidiis*. The participle *destinatus* is used as an adjective meaning “certus, fixus, definitus” (TLL V 1.761.23–24), like in 17.13.34 *militares numeri destinatas remearunt ad sedes*, and contrasts with *quocumque...erumpentum*. Novák’s *quocumque* is in all probability correct; cf. 16.12.51 *quocumque avexerit ventus*. The phrase *quocumque ventus duxerat* is, surprisingly, without parallel in other authors. For once, Petschenig, 1892, 525 was a bit rash in his statement on V’s *torum pentum*: “Darin kann nur *per-rumpentum* stecken.” Löfstedt’s *erumpentum* is closer to V and *erumpere*, rather than *perrumpere*, is Amm.’s favourite verb for surprise attacks; cf. the note ad 24.1.3 *si erupissent*. He was right, however, in defending the gen. plural in *-um*, although it would have been better if he had referred to 22.15.25 *nidulis suis ad cibum suggerens ova serpentum* as a parallel rather than to *potentum* in 27.12.2 (q.v.).

2.12

quam ob causam prae ceteris hostibus Saxones timentur ut repentini What the Saxons (see for them the notes ad 27.8.5 *Gallicanos* and 28.5.1 *Erupit*) and the Maratocupreni had in common was their unpredictability; cf. 30.7.8 *Saxonas semper quolibet inexplorato ruentes*. Lindenbrog aptly compared Oros. *hist.* 7.32.10 *Valentinianus Saxones, gentem in Oceani litoribus et paludibus inviis sitam, virtute atque agilitate terribilem, periculosam Romanis finibus eruptionem magna mole meditantes in ipsis Francorum finibus oppressit*.

et quamlibet coniurati multorum opes attriverint oestroque concepti furoris exagitati strages edidere luctificas sanguinis nihilo minus avidi quam praedarum The substantivized participle *coniurati* suggests that the Maratocupreni were not just a bunch of thieves and murderers, but an organised gang. In the next chapter (3.6) the term *coniurati* will be applied to the followers of Valentinus, who rose up in arms against Theodosius in Britain. The text of this concessive clause has been restored by Gelenius,

Lindenbrog and Valesius. *Attriverint* is Lindenbrog's conjecture for V's *attribuerint*; cf. Sal. Jug. 5.4 *Hannibal... Italiae opes maxume adtriverat*; Tac. Hist. 1.10.1 (cf. 4.12.3) *adtritis opibus*. Gelenius and Valesius conjectured *oestroque* to fill the lacuna between V's *attribuerint* and *troque*, which is convincing despite the fact that *oestrus* ('gadfly', 'fury') is not found elsewhere in the *Res Gestae*. *Oestro furoris* is an example of the gen. identitatis, for which see the note ad 22.12.7 *caerimoniarum ritus*. For *concupere furorem* cf. Verg. A. 4.474 *concepit furias* and Sil. 5.182 '*concipe*' ait *dignum factis, Aequane, furorem*'. Valesius 'X-rayed' the muddle in the mss. (see app. crit.) and brought to light *strages edidere*; cf. 17.5.3 *quas aliquotiens ediderit strages* and 19.6.5 *apparebat enim eos, si impetrassent, strages maximas edituros*. The poeticism *luctificus*, possibly inspired by Cic. Tusc. 2.25 *Luctifica clades nostro infixata est corpori*, is discussed in De Jonge's note ad 14.5.2 *victoriam*.

tamen, ne per minutias gesta narrando rectum aliquatenus operis impediam cursum, id unum sufficiet eorum exitiale poni commentum Amm. assures his readers time and again that it is *infra dignitatem* for a serious historian to delay and obscure his narrative with insignificant details. See Sabbah 25–26 and the note ad 26.1.1 *similia plurima*. The expression *per minutias*, 'in detail', is also used in 14.6.25, 23.6.74 and 27.2.11. The words *rectum aliquatenus* have been conjectured by Brakman, 1909, 15, to fill the lacuna of ten letters between V's *narrando* and *enus* in V. They are of the required length and suit the context admirably. As TLL I 1605.78–79 observes, *aliquatenus* is always used by Amm. in a temporal meaning, 'for some time'; the other instances are 25.8.15 *ni iumentorum caro caesorum aliquatenus perdurasset* and 27.10.4 *aliquatenus hostiles torpuere discursus*. It should be taken with *impediam*, not with *rectum*, as Marié does ("le fil relativement droit de mon ouvrage"), so that the meaning of the final clause is: 'lest I hold up for some time the straight course of my work by narrating in detail what happened'. The expression is reminiscent of 28.1.43 *Et quamlibet tempestivum est ad ordinem redire coeptorum, tamen nihil impedituri temporum cursus immorabimur paucis* (q.v.), in which the focus is on the chronological order of the events rather than the unhindered progress of the narrative. For *sufficiet poni/ponere* see the note ad 22.10.5. There is a note on *commentum*, 'device', ad 20.6.6 *omne prohibendi*.

- 2.13** *quaesitus in unum impiorum hominum globus imitatus rationalis officium ipsumque iudicem vespertinis tenebris lugubre clamante praecone ci-*

vitatem ingressi ambitiosam domum cuiusdam primatis ut proscripti ius-sique interfici cum gladiis obsederunt The phrase *quaerere in unum* is Amm.'s own; see the note ad 26.2.2 *in unum*. This is the only instance in Amm. of *impius* used of men, which may have been the reason for Gelenius to omit *hominum*, thereby unwittingly violating the *cursus*, as Harmon 235 observes. He must have done this deliberately, since *hominum* has been added to V by the corrector Vm2, who used the Hersfeldensis (M), from which V was copied (see Robinson, 1936, 136–137), and from Book 26 onward Gelenius based his edition on M, which in all probability contained the word *hominum*. Normally, the adjective *impius* qualifies murder or intent, as in 26.10.10 *consiliis impiis* (q.v.); the Maratocupreni not only committed evil deeds, they personified evil. *Globus* is also used of a band of robbers in Apul. *Met.* 3.28 (*globus latronum*). For *imitari* “de actione corporali et mimica” (TLL VII 1.434.6–21) cf. 23.5.3 (cum mimus) *e medio sumpta quaedam imitaretur* (q.v.). *Officium* here means the ‘staff’ of a magistrate, as in 28.1.5 *tabulario praesidialis officii* (q.v.). The magistrate in question is a *rationalis* (*rei privatae*), in this case a provincial fiscal agent whose task it was inter alia to incorporate confiscated property into the imperial fisc (cf. *Cod. Theod.* 10.9.1, issued by Valentinian on 29 March 369: *si quando aut alicuius publicatione aut ratione iuris aliquid rei nostrae addendum est, rite adque sollemniter per comitem rerum privatarum, dein rationales in singulis quibusque provinciis commorantes incorporatio compleatur*, “if at any time any property must be added to Our privy purse, either by confiscation of anything or by due operation of law, the incorporation shall be duly and formally completed through the count of the privy purse and then through the fiscal representatives who are stationed in the various provinces”, tr. Pharr). See Delmaire, 1989, 201, 601. As is noted ad 22.4.9 *non rationalem* (q.v.), *rationales* had a reputation for rapaciousness. The *rationalis* here is next called *iudex*, a general designation for an official, as is explained in the note ad 20.5.7 *civilis...iudex*. The supposed *praeco* proclaims the terrible news that one of the citizens has been condemned to death, and that his possessions will be confiscated. See in general for *praecones*, “homin(es), qui praeconandi officio sollemni funguntur” (TLL X 2.495.55 sqq.), Schneider, 1954 and De Libero, 2001. The word occurs three times in Amm., apart from the present text in 22.3.4 and 31.1.2. See for *primas* “in vita publica” TLL X 2.1238.34 and the note ad 24.7.1 *Digesto*. Amm. describes a similar case in 15.5.8. Apodemius, with the help of a *rationalis*, *quasi proscripti iamque necandi magistri peditum clientes et servos hostili tumore vexabat*. For *ambitosus*, ‘showy’, cf. 14.7.6

domum ambitiosam; 22.4.5 *ambitiosa ornatarum domorum...spatia*. It is found already in Ov. *Tr.* 1. 9a.18 *nota quidem, sed non ambitiosa domus*.

raptaque suppellectili pretiosa, quia subito percussi familiares hebetatis sensibus non defenderant dominum, caesis pluribus ante revolutam lucem gressu discessere veloci In the other six instances of *sup(p)ellex* ('furniture') in the *Res Gestae* the word is written with a single p. In 26.8.13 and 28.1.3 Amm. prefers the term *mobilis census*. The participle *percussus*, 'surprised', 'confounded', is a great favourite of Livy, who uses it 70 times. Normally it is combined with an abl. *causae*; absolute use is found in Liv. 22.5.1 *Consul percussis omnibus ipse satis, ut in re trepida, inpavidus*; Hor. *Epod.* 7.16 *mentesque percussae stupent*. See for Amm.'s use of *familiaris* the note ad 27.3.8 *ni vicinorum*.

For *hebetare*, 'to stun', see the notes ad 20.3.9 *penitus* and 20.11.11 *clausorum*. The poeticism *gressus* is discussed in the note ad 27.10.8 *post haec*.

- 2.14** *verum cum exuviis referti multorum rapiendi dulcedinem praetermitterent interceptam imperiali motu, oppressi* Valesius' correction *referti* for V's *repti* is obviously right; cf. 28.6.4 about a band of thieving Austoriani: *referti rapinis reverterunt ingentibus*. The phrase *rapiendi dulcedinem* calls to mind king Sapor in 27.12.1 *dulcedini rapinarum addictus* (q.v.). For *praetermittere* 'to renounce' cf. 27.7.2 *lucrandi opportunas occasiones occultationis spe numquam praetermittens*. The Teubner text is not above suspicion, since there is a contrast between the Maratocupreni's renouncing of their evil ways and the harsh punishment they receive. Marié found a simple way to solve the problem by writing *intercepti, tamen* for V's *at interceptam*. Amm. uses *intercipere* in different shades of meaning: 'to intercept' in 21.4.6 *cum interceptum notarium...comperisset*, 'to (take by) surprise' in 19.3.1 *stationibus interceptis*, 'to steal' in 15.5.36 *ut etiam quaedam scriberet de Gallicanis intercepta thesauris, quos nemo attigerat*, 'to take away' (by death) in 14.7.8 *Theophilum insontem atrox interceperat*. *casus*, 'to catch', 'capture' in 20.6.9 (Nisibin) *aliquotiens interceptum* (q.v.). The meaning 'to surprise' fits the present context very well. V's next word *oppressunt* should be taken seriously. In all probability it represents *oppressi sunt*, followed by a full stop, which would result in a sentence ending with a proper *cursus* (*tardus*) *intercepti tamen imperiali mótu oppréssi sunt* 'surprised by a military intervention by the emperor (for this meaning of *motus* see the note ad 27.5.2 *motus adventantis*) they

were crushed.' The emperor is of course Valens. Cf. Lenski, 2002, 196–197, giving “early 370” as the probable date for Valens’ army moving into Syria.

interiere omnes ad unum eorumque suboles parva etiamtum, ne ad parentum exempla subcresceret, pari sorte deleta Marié is the only modern editor who prints *interiere*. In view of the rarity of the historic infinitive (see above ad 28.2.6 *eodemque*), it is better to accept Gelenius’ *interiere*. Valesius saw the connection between this passage and Libanius’ *Or.* 48.36 (a century before the first publication of the speech!) ἀλλ’ ἴσμεν δὴ τήν τε κώμην ἐκείνην καὶ τὸ ἐν αὐτῇ γένος ὡς ἐξεκόπη μεχοῖ τῶν ἐν γάλακτι παίδιων προελθόντος τοῦ πυρός προνοηθέντος, οἶμαι, τοῦ τότε βασιλέως, ὅπως μὴ πάλιν ἀναφύσεται τὸ δεῖνον ἐκεῖνο γένος (“but we know how that village and its entire population was cut down, while the fire did not even spare the babes at the breast, since the ruling emperor took pains, I feel, to ensure that that terrible brood should never sprout out again”, tr. Norman adapted). The correspondence between the two passages is indeed striking. At the very least we may suppose that both accounts refer to the same event, which probably made a deep impression in Antioch. Amm. may well have been inspired by Libanius’ account, as Sabbah 286 suggests. For *subcrescere* see the note ad 27.6.8 *sed familiae*.

et lares versi, quos ambitiose luctuosis aliorum dispēdiis construxerunt The simplex (*versi*) pro composito (*eversi*) in combination with *lares* instead of *domus* gives the sentence a poetic ring. The only parallel seems to be Stat. *Theb.* 4.56–57 *seu Thracum vertere domos, seu tecta Mycenes/impia Cadmeumve larem*. For *ambitiosus* see the end of the note ad 28.2.13 *quaesitus*. The perfect *construxerunt* instead of the pluperfect *construxerant* is chosen to obtain the cursus velox.

et haec quidem textu processere narrato “These events took place within (were contemporaneous with) the train of events that I have narrated.” The words mark the end of an episode which constituted an interruption of Amm.’s account of affairs in the West. The author stresses in this way that chronologically the episode does belong where it stands, i.e. within the series of events narrated in this chapter (for this meaning of *textus* see the note ad 20.4.11), so that *textu* may be taken as an abl. temporis. Cf. similar remarks in 19.9.8 *et haec quidem haud diu postea contigerunt* (cf. 21.12.20) and 23.5.3 *et haec quidem Gallieni temporibus evenerunt*.

For *procedere* in the sense of “apparendi, eveniendi, locum habendi” see TLL X 2.1502.36–56 and cf. 20.9.9 *cum haec ita procederent, timebatur Lupicinus* 22.12.8 *haecque dum ita procedunt*; 26.8.6; 29.5.14.

CHAPTER 3

Introduction

In the second half of Chapter 8 of Book 27 Amm. reports that Theodosius the Elder had been given the task to combat the ongoing rebellious activities in Britannia. The *dux efficacissimus* crossed the Channel and restored order in the southern regions of Britannia. There was, however, still a lot of work to do before the job could really be regarded as done. In the present chapter the author reports on the continuation of Theodosius' operations, which met with unqualified success, so that he earned Valentinian's gratitude as well as promotion to the post of *magister equitum*.

As was the case in the earlier chapter, the report on the military actions lacks details and chronological precision. Numerous stereotyped phrases are used, and the author's main objective is, obviously, to sing the praises of the great general, who never put a foot wrong. His expertise, perseverance, prudence as well as his other accomplishments are duly hailed. More than once the attentive reader is reminded of the author's laudatory phrases concerning Julian: Theodosius the Elder possessed what were regarded as the true virtues which were characteristic of Julian's era.

The entire chapter is a sort of *laus Theodosii*, the exact opposite of Chapter 11 of Book 27, the wholly disparaging portrait of Petronius Probus, who never put a foot right.

Theodosius vero, dux nominis incluti, animi vigore collecto ab Augusta profectus, quam veteres appellavere Lundinium, cum milite industria comparato sollerti versis turbatisque Britannorum fortunis opem maximam tulit As is argued ad 27.8.3 *postremo*, the second campaign on British soil of Theodosius the Elder (PLRE I, Theodosius 3) should be dated to the year 369 rather than to 368. In the same note Theodosius' designation as *dux* is discussed (cf. for *dux* also above, ad 28.2.5 *utque celeritas*). See the note ad 27.8.3 *officiis Martiis* for a number of instances illustrating Amm.'s admiration and lavish praise for him. The 'famous name' in the present text may be an indirect tribute to the emperor Theodosius I, 3.1

who in all likelihood served as a young man in Britain under his father (*Pan.* 2.8.3, *Zos.* 4.35.3, *Joh. Ant. fr.* 186.2 Müller = 279 Roberto; cf. Paschoud n. 171, Nixon and Rodgers, 1994, 458 n. 32). Interestingly, we find the adjective *inclutus* in combination with Theodosius' name in a honorary inscription found in Canosa di Puglia: *inclutae venerandeque memoriae viro Theodosio, genitori domini nostri invictissimi perennisque principis Theodosi perpetui Aug(usti)...statuam equestrem subauratam Apuli et Calabri pro voto et devotione posuerunt* (ILS 780).

The combination *animi vigor* can be found in a number of authors, and the phrase *animum* or *mentem colligere*, "to recover one's courage" (OLD s.v. *colligere* 17b; cf. the note ad 21.9.7 *colligens mentem*), is not unusual, but *animi vigore collecto* is new-found. Amm. probably wants to depict Theodosius' determination which ended the prudent hesitation after his first successful campaign: *futuri morabatur ambiguus* (27.8.9, q.v.). As is noted ad 27.8.7 *egressus tendensque ad Lundinium, vetus oppidum, quod Augustam posteritas appellavit*, it is not known when the city received the honorific title *Augusta* (the statement of Thompson, 1990, 8 that "Theodosius set out from Rome" is, of course, a mistake). See for discussion Tomlin, 2004, who uses the so-called Huggin Hill inscription (AE 1992.1119 [...] MAX/[...] NIA), to suggest that in the early part of the second century London's name was *colonia Aelia Augusta Londinium* or similar. Theodosius had arrived there *ovantis specie laetissimus* (27.8.8, q.v.). As to *cum milite*, in 27.8.7 (q.v.) Amm. mentioned some of the units (*numeri*) Theodosius had at his disposal, viz. *Batavi*, *Heruli*, *Iovii* and *Victores*, while in 27.8.10 he related that many deserters as well as soldiers, who were wandering around on furlough, returned to the colours when summoned (add Wesch-Klein, 2004 to the literature on deserters cited in the note ad 27.8.10 *denique*). In the note ad 27.8.3 *ascitaque* (q.v.) it is stated that perhaps the legion *II Augusta* had been placed under Theodosius' command. The combination of application and skilfulness is implicitly praised in a comparable context in *sollerti industria magnas opes parabat* (Iust. 13.6.18), and in an entirely different one in *haec sunt corpora quae mathematica vocantur, de quibus sollerti industria geometriae disputatur* (Macr. *Comm.* 1.5.7). Cf. 21.12.16 about Julian: *sollerti remedio turbatis consuluit rebus*.

The words *versis turbatisque Britannorum fortunis* imply that Theodosius' successes had only solved some of the problems in Britannia, which were the result of the 'barbarian conspiracy' (*Britannias...barbarica conspiratione ad ultimam vexatas inopiam* [27.8.1]).

opportuna ubique ad insidiandum barbaris praeveniens loca nihilque gregariis imperans, cuius non ipse primitias alacri capesseret mente Amm. had clearly named the barbarians who had launched attacks on Britain: Picts, divided into Dicalydones and Verturiones, Attacotti and Scots (see for some overlooked evidence on the Scotti Rance, forthcoming). TLL X 2.1100.7–16 lists only very few examples of *praevenire* with a place as direct object, with the explanation “antequam alius ea occupet”. It is impossible to say which *loca* Theodosius secured. Amm.’s *ubique* is too imprecise to allow helpful guesses as to their location. Just like the previous lemma, the present one also reminds the reader of Julian: in 23.5.24 the soldiers reacted with great enthusiasm to Julian’s speech: *nihil periculum fore vel arduum clamitabat sub imperatore plus sibi laboris quam gregariis indicente* (q.v.). See for *primitiae* in a very general sense, “quaecumque prima sunt”, TLL X 2.1253.60 sqq. and De Jonge ad 14.1.1 *primitiae*. Amm. has a predilection for using *alacer* and *alacritas* to express a fighting spirit.

hocque genere cum strenui militis munia et praeclari ducis curas expleret, fusis variis gentibus et fugatis, quas insolentia nutriende securitate aggredi Romanas res inflammabat See for *hoc genere*, ‘in this way’, the note ad 26.3.5 *hoc genere*. The present text is Amm.’s only example of the alliterative combination of the synonyms *fusus* and *fugatus*, which is especially frequent in Livy. As is noted by Brandt, 1999, 218, in the *Res Gestae* arrogance is most often, although not exclusively, ascribed to barbarians, especially when it comes to military actions against Roman interests and positions. As appears from TLL VII 1.1455.47–50, this is one of the rare cases of *inflammare* with an inf. as complement. See the note on 21.12.25 *securitatem* on the two meanings of this word, viz. the actual absence of any danger, anxiety or care. The present case belongs to the second category, like e.g. *quos...securitas placido vinxerat somno* (25.6.14) and *ob securitatem altiore stertitur somno* (27.12.8).

in integrum restituit civitates et castra multiplicibus quidem damnis afflicta, sed ad quietem temporis longi fundata TLL VII 1.2080.11–58 lists a large number of instances of *in integrum restituere* in various contexts; see also OLD s.v. *integer* 3b. In the present text the phrase expresses Theodosius’ thorough measures with regard to the complete restoration and repair of towns and fortifications. In §7 Amm. returns to this topic (*instaurabat urbes et praesidiaria, ut diximus, castra*). By taking these measures the general took a leaf out of Valentinian’s book

(cf. 28.2.1 ff.); we may surmise that he did not act on his own initiative but was instructed by the emperor. The project was practicable: although a lot of damage had been done to the buildings, they had been founded to withstand the ravages of time.

Civitas, 'town', occurs already in Old Latin: *in qua civitate tandem te arbitrare vivere?* (Ter. *Ad.* 685) See TLL III 1229.40–1240.29. In the *Res Gestae* the word is often synonymous with *urbs*, 'city' (cf. e.g. 14.6.16 and 28.3.2). It can, for instance, be used of Rome (27.3.7, 29.6.18), Trier (15.6.4) and Arles (15.11.14). By the universal grant of Roman citizenship in A.D. 212 all towns and cities had in theory become equal in rank (cf. Jones, 1979, 134), but in spite of this there was a certain hierarchy. In Britain "there were three main categories of major towns, *coloniae*, *municipia* and so-called *civitas* centres" (Mattingly, 2006, 200), the *civitates* ("designated chief towns of distinct peoples") being the lowest in rank. They were, according to Mattingly, sixteen in number. Some examples: *Isca Dumnoniorum*, modern Exeter, the capital of the *Dumnonii*; cf. Rivet and Smith, 1979, 342–343, 378. *Durnovaria*, modern Dorchester, the capital of the *Durotriges*; cf. Rivet and Smith, 1979, 345–346, 352–353 and see *RIB* 1.1672, found near Cawfields on Hadrian's Wall: *c(ivitas) Dur(o)tr(i)g(um) [L]endin(i)e(n)sis*, and *RIB* 1.1673, from Housesteads on Hadrian's Wall: *ci(vitas) Durotr(i=a)g(um) Lendin(e)n[s]i[s]*. According to Rivet and Smith the stones with these inscriptions "are probably of AD 369", but others think that they may date from the time of Septimius Severus. Cf. Welsby, 1982, 109.

One should not rule out the possibility that Amm. in the present text refers to *civitates* in this technical sense. However, in view of the fact that in §7 he uses *urbes* as a synonym of *civitates*, it is far more likely that the term here should be understood in a general sense to denote the major towns and cities of Britain, *municipia*, such as *Verulamium* (St Albans), and *coloniae* included. There were four *coloniae* (cf. Hurst, 1999), some of which were *municipia* before they were promoted to *colonia* status: *Camulodunum* (Colchester), *Eburacum* (York), *Glevum* (Gloucester), *Lindum* (Lincoln), to which perhaps *Augusta/Londinium* (London) should be added (see Tomlin, 2004).

As to *castra*, this word is also linked with *civitas*. It occurs in 31.16.8: *per varias civitates et castra* (in 23.6.4 the term *castellum* is added to the other terms: *civitatum et castrorum castellorumque munimentis oppleta Perside*). Amm. refers back to the *castra* of the present text in §7, where he speaks of *praesidiaria...castra* ('garrisoned fortifications in the border districts'), a combination which he also used in 28.2.4 (q.v.) when he

spoke of Valentinian's forts on the German border. Amm. does not provide us with more specific information. This may have been "due to the evident inferiority of his sources" (Austin, 1979, 45), or because he found it appropriate *in descriptione multiplici regionum super exiguis silere castellis* (26.1.1, cf. Thompson, 1990, 7). Exactly as was the case regarding the *castra* and *castella* built or rebuilt by Valentinian along the Rhine, he is silent about the names of the forts which Theodosius restored in Britain. For the answer to the question which *castra* (*praesidiaria*) might be meant we can look at the *Notitia Dignitatum*.

In *Not. Dign. Occ.* 40 there are thirty-six forts and army bases listed under the command of the *dux Britanniarum*. They are divided into two groups. Firstly, we find twelve *castella* (40.5–16, 20–31): *Danum* (Doncaster), *Morbium* (Piercebridge), *Arbeia* (South Shields), *Dictum* (unidentified; cf. Rivet and Smith, 1979, 359), *Concangis* (Chester-le-Street), *Lavatris* (Bowes), *Verteris* (Brought Castle), *Braboniacum* (Burwens, Kirby Thore), *Maglona* (probably the Roman fort at Old Carlisle; Rivet and Smith, 1979, 407), *Magis* (?; cf. Rivet and Smith, 1979, 406–407), *Longovicium* (Lanchester), *Derventio* (Malton). The second group, consisting of twenty-four bases (40.33–56), was located 'along the line of (Hadrian's) Wall' (*per lineam valli*, 40.32) and comprised inter alia *Segedunum* (Wallsend), *Pons Aelii* (Newcastle), *Hunnum* (Halton Chesters), *Aesica* (Greatchesters), *Glannibanta* (Ravenglass), *Bremetennacum* (Ribchester) and *Virosidum* (Brough by Bainbridge). *Sub dispositione viri spectabilis comitis litoris Saxonici per Britanniam* the *Notitia* lists nine *castella* (*Occ.* 28.3–11, 13–21): *Othona* (Bradwell-on-Sea), *Dubris* (Dover), *Lemannis* (Lympne), *Branodunum* (Brancaster), *Gariannonor*/*Gariannum* (Burgh Castle), *Regulbium* (Reculver), *Rutupiae* (Richborough), *Anderidos* (Pevensey) and *Portus Adurni* (Portchester).

The *Notitia Dignitatum* does at least provide us with names (more could be added, Walton Castle, for instance, whose site has been swallowed up by the sea), but this does not solve the problem. The *Notitia* reflects the situation in the empire at different times and one cannot with impunity transpose the data given in this administrative document to the period of Theodosius' stay in Britain. Archaeology does not help. Although some decades ago scholars quite confidently assigned the building or rebuilding of many of the forts listed above to a Valentinianic date, nowadays they are more sceptical. "There is not a single building in Roman Britain which we can attribute with certainty to Count Theodosius, and far too much scholarly ink has been wasted on the effort to define this or that group of structures as definitely

‘Theodosian’” (Faulkner, 2000, 165; see further e.g. Southern, 2004, 404; Ottoway, 2004², 140; Mattingly, 2006, 237, 330). Neither is epigraphy helpful. Valentinian’s efforts to fortify the Rhine frontier can be evidenced both archaeologically and epigraphically, as is observed in the notes on chapter 2, but in the case of Theodosius’ activities in Britain this is not possible. There is, admittedly, an inscription from Ravenscar on the coast of Yorkshire which might be relevant. It deals with the construction of a watchtower: *Iustinianus p(rae)p(ositus) Vindicianus magister turr[e]m castrum fecit a solo* (AE 1954.15). Unfortunately, however, its date is not certain (cf. PLRE I, Iustinianus 1).

- 3.3 *Evererat autem eodem haec agente facinus dirum erupturum in periculum grave, ni inter ipsa conatus principia fuisset extinctum* The first position of the predicate does not in any way express emphasis, but is due to the fact that it is a so-called presentative sentence, in which a new topic is introduced. Such a topic, in the present text *facinus*, prefers a later, if not the last, position in the sentence. See for this phenomenon Pinkster, 1990, 183–184; Dik, 1997, 212–214 and 315–317; Spevak, 2005, 731–740. A wellknown example is *erant omnino itinera duo* (Caes. Gal. 1.6.1). See for *erumpere*, ‘to take a turn for the worse’, the last part of the note ad 26.6.19 *Mirantur*, for the anaphoric use of *idem* in *eodem* (= Theodosius) *haec agente* the note ad 15.5.19 *Ursicinum* and Szantyr 188, and for the combination of the part. fut. with a *ni*-clause Kühner-Stegmann II 1.761. Other examples in Amm. are 15.5.1 *calamitatum turbo novarum exstincturus omnia simul, ni*, 18.2.1 *ausuros immania, ni*, 21.11.1 *ausa...impeditura cursus eius ardentes, ni*. TLL V 2.1919.69–1920.41 provides many examples of *exstinguere*, ‘to put an end to “mala”’.
- 3.4 *Valentinus natus quidem in Valeria Pannoniae, superbi spiritus homo, Maximini illius exitialis vicarii, postea praefecti coniugis frater* V’s *Valentinianus quidem* was convincingly emended by Mommsen’s *Valentinus quidam natus*, printed by Clark and by Seyfarth in his bilingual edition (but not in his Teubneriana). It tallies with the many instances in the *Res Gestae* where a new person is introduced with his name, followed by *quidam*, e.g. *Luscus quidam* (14.7.17), *Amphilochius quidam* (21.6.2), *Venustus quidam* (26.8.6). Henri de Valois calls attention to the fact that Zos. 4.12.2 and Hier. *Chron.* a. 372 make the same mistake as V. See PLRE I Valentinus 5. Mommsen’s *Valentinus* repeats the text of Accursius and Gelenius, and this version of the name is also found in V’s text of 28.3.6 and 30.7.10, where Amm. returns to the man’s activities: *Efficacia pari*

Valentinum quoque, Pannonium exsulem, per has provincias molientem otium turbare commune, antequam negotium effervescat, oppressit (note that Amm. here credits the emperor Valentinian, not the general Theodosius, with the happy outcome of the affair). The name *Valentinus* is also commonly used in modern studies; cf. e.g. *PLRE I*, Valentinus 5 and, most recently, Szidat, 2010, 325–326, 390. However, Demandt, 1972, 90 prefers *Valentinianus*, pointing to Hier. *Chron.* a. 371 (p. 246 Helm) in *Brittania antequam tyrannidem invaderet oppressus* (Helm follows the *Floriacensis*; the *Oxonienensis* has *Valentinus*), Zos. 4.12.2 Οὐαλεντινιανός, διὰ τινὰ πλημμελήματα τὴν Βρεττανικὴν νῆσον οἰκεῖν κελευσθεῖς, ἐπιθέμενος τυραννίδι συναπέθετο ταύτῃ τὸν βίον. ('Valentinianus, because of some offences ordered to live on the island of Britain, endeavoured to obtain despotic rule, but was at once deprived of his life and his power'), and Iord. *Rom.* 308 *alter Valentinianus in Britannia tyrannidem adsumens in continenti suppressus est*.

As to *Valeria*, the reader is expected to recall that the main villain of Chapter 1 was also a native of this province (28.1.5, q.v.). Amm. uses *superbus* only in *malam partem*, e.g. *homo superbae mentis et turgidae* (20.9.9), *anhelans flatu superbo* (28.1.31). A further blot on Valentinus' escutcheon was the fact that he was the brother-in-law of Maximinus, that 'destructive' official; *exitialis* is here, as in 26.1.6 *exitialis postea magister officiorum*, used to characterize a person, which is not common. See for Maximinus' vicariate and his function of *praefectus praetorio Galliarum* 28.1.5, 12 and 41, with the relevant notes.

ob grave crimen actus in Britannias exsul quietis impatiens malefica bestia ad res perniciosas consurgebat et novas in Theodosium tumore quodam, quem solum resistere posse nefandis cogitationibus advertebat One wonders what had caused Valentinus' exile, but neither Amm. (*ob grave crimen*) nor Zosimus (διὰ τινὰ πλημμελήματα) gives a detailed explanation. We do not know either when precisely he had been banished. It must have been before his brother-in-law Maximinus as vicar of Rome had gained the power to prevent his banishment, for Maximinus only became *vicarius* in 370 (see for this date the note ad 28.1.5 *Maximinus*).

Exile as a punishment occurs quite often in Amm. See the extensive note ad 22.3.4 *Taurum*. Other cases of banishment to Britannia are *Palladium...in Britannos exterminarunt* (22.3.3), *ablegatus est in exsilium ad Britannos* (28.1.21, q.v.). As appears clearly from the long list of instances of *inquietus* in TLL VII 1.1805.73–1806.70, restlessness was regarded as a dangerous threat to law and order; cf. e.g. *inquietorum hominum licentius*

etiamtum percursantium extima Galliarum (20.10.2, q.v.), *uxore Tullia inquietum animum stimulante* (Liv. 1.46.2), *insatiabilis, impotens, semperque inquietus* (Vell. 2.11.1 about Marius), *in otio* ('in time of peace') *civibus infestissimus quietisque impatientissimus* (Vell. 2.23.1, also about Marius). Kellerbauer, 1873, 135 added *ut* before *malefica*, a very reasonable conjecture in view of the two texts he refers to: 26.6.10 *ut praedatrix bestia* (q.v.) and 30.5.10 *ut sagax bestia*. Cornelissen, 1886, 292 agrees, as do Clark and Marié; Seyfarth accepted the addition in his bilingual edition. In V's text, printed by Seyfarth in the Teubneriana, one has to assume a parenthesis, with a comma before either *quietis*, or rather *malefica*, and after *bestia*.

Valentinus' projects were not merely 'destructive', but actually 'revolutionary' (*novas*), because they were aimed at an official authority. He was driven by some sort of (*quodam*) arrogance. Compared to the utterances of Jerome, Zosimus and Jordanes (cited in the preceding note), who explicitly charge Valentin(ian)us with an attempt to establish a *tyrannis*, Amm.'s terminology is more restrained. In his eyes Valentinus was not a real usurper, but a "conspirator" (Thompson, 1990, 12) or a "rebel" (*PLRE* I, Valentinus 5; cf. Szidat, 2010, 390: "Es kam zu keiner eigentlichen Erhebung"). As to chronology, the date given by Jerome for the suppression of the attempted usurpation, 371, is impossible, as is Zosimus' suggestion that it took place before the emperor Valentinian's illness in 367 (cf. for this illness the note ad 27.6.1 *Inter haec*). It is better to follow Amm., who in his narrative places Valentinus' rebellion in the second year of Theodosius' campaign (*eodem haec agente*, § 3), that is, in 369 (cf. the note ad 27.8.3 *postremo*).

Cornelissen, 1886, 292 notes the remarkable absence of a part. perf. to go with the abl. causae *tumore* and proposes the addition of *inflatus*. He does not add any parallels, but e.g. *tumore inflatus vanae scientiae* (August. *C.D.* 10.28), *inflatus eloquentiae tumore* (Hier. *vir.* 29) can be adduced as support. On the other hand, in *nos tumore inusitato quodam et novo...incusat* (14.7.14) and *clientes et servos hostili tumore vexabat* (15.5.8) a part. perf. is also missing. Being an obstacle to "wicked designs" (tr. Hamilton) may remind the reader of Julian, who *vitia cohibebat*, 'checked wrongdoing' (25.4.8).

- 3.5 *multa tamen clam palamque circumspiciens crescente flatu cupiditatis immensae exsules sollicitabat et milites pro temporis captu ausorum illecebras pollicendo mercedes* As is pointed out in the note ad 20.5.1, Amm. often uses *tamen* as a purely connective particle. The first instance of

the polar expression *clam palamque* (and its variations) is Enn. *Ann.* 277 *clamque palamque*. It occurs in various authors; Amm.'s other instances are 14.9.1 and 15.5.28. See for *flatus* as a synonym of *ambitus* or *superbia* the note ad 28.1.31 *anhelans*. It is perhaps best to regard *cupiditatis immensae* as a gen. qualitatis. Apparently, there were, apart from Palladius (*PLRE* I, Palladius 4), if he was still alive and in Britain (he had been banished in 361/362, 22.3.3), more exiles who were potential allies of Valentinus. Frontinus (*PLRE* I, Frontinus 3), however, mentioned in 28.1.21, should not be counted amongst these; this victim of Valentinus' brother-in-law Maximinus was only sent into exile after Valentinus' rebellion had been quelled. As to *milites*, we saw earlier, in 27.8.10 (q.v.; see also above, ad § 1), that the loyalty of the army in Britain left much to be desired.

See for *pro captu* with gen., 'as well as...allowed', the notes ad 14.11.4 *pro rerum* and 25.6.5 *pro captu*. See for *sollicitare*, 'to bribe', the note ad 27.12.2 *et primo* and for *tempus*, 'circumstances', the note ad 25.1.4 *quae tempus*. See on *ausum* the note ad 21.11.1 *ausa* and cf. *ausorum* ...*participem concitoremque* (15.2.10). The adj. *illecebrosus*, 'enticing', is found once in Plautus (*Bac.* 87) and then again in Late Latin.

iamque propinquante temptatorum effectu doctus haec, unde convenerat, dux alacrior ad audendum et corde celso ad vindictam compertorum erectus See for *effectus*, 'implementation', the note ad 20.8.5 *ut effectus*. Theodosius had received information *unde convenerat*: does this mean 'from where it was fitting' with the pluperfect tense as the equivalent of the perfect one (see the second section of the note ad 26.1.1 *convenerat*) or 'from where it had been arranged beforehand', as translators interpret the phrase (e.g. Marié: "instruit comme prévu par ses informateurs")? The latter solution is preferable. The pluperfect is not used c.c. here and, moreover, this small detail goes well with the various other phrases in praise of Theodosius: as a competent commander he had taken care of an efficient intelligence service. See for Theodosius' designation as *dux* the note ad 27.8.3 *postremo* (cf. for *dux* also the next note) and for *alacrior* the note ad § 1 *opportuna*. There is no real parallel for *corde celso*, but it is reminiscent of 24.3.8, where Julian's soldiers praise his *auctoritatem* ...*sublimitatemque cordis*: see the note ad loc. Theodosius was ready for action and keen not only to take revenge but also to liquidate Valentinus and his retinue, but, as the sequel of the text will show, he was not carried away by these feelings nor did he lose sight of the main objective of his mission, namely peace and order in Britannia. 3.6

Valentinum quidem cum paucis arta ei societate iunctissimis letali poena plectendos Dulcitio dederat duci With *quidem...vero* the author marks the deliberately different approach in Theodosius' measures: the severe punishment of Valentinus and his inner circle contrasts with his prudent avoidance of further proceedings against the larger group of conspirators. Does *arta* denote the restricted number of those involved, as in *profectio arto comitatu fuit* (Tac. *Ann.* 4.58.1; see Koestermann ad loc.) or the closeness of the relationship, as in *necessitudines artae* (17.7.4, q.v.)? Both suit the context. See for *plectere* as a juridical t.t. *qua poena plecti debeant* (Dig. 47.14.3.3), *circa statum dignitatis poena plectimur* (Dig. 50.13.5.2), Heumann-Seckel s.v. *plectere* and TLL X 1.2395.29–58. See for the punishment of usurpers and would-be usurpers and their associates Szidat, 2010, 322–337 and for Dulcitius the note ad 27.8.10 *Dulcitium*. However, in Amm., *dux* does not always denote a specific function (cf. the note ad 21.7.1 *cum ducibus*), but can also be used as a non-technical term for any military authority. Cf. further the note ad 28.2.5 *utque celeritas*.

militari scientia vero, qua superabat praesentes, futura coniciens de coniuratis quaestiones agitari prohibuit, ne formidine sparsa per multos reviviscerent provinciarum turbines consopiti Theodosius' excellence in the field of military expertise is clearly reminiscent of the author's praise of Julian in this respect: see the notes ad 22.7.9 *ut fortitudine* and 25.4.1 *eisque accedentes*. The word *scientia* fits the context well: after the attention paid to his mental and moral commitment in the immediately preceding text, the focus is now on his rational side. Curiously, the only other instances of the phrase *futura conicere* are found in a handful of passages in Augustine, e.g. *de praeteritis experimenta faciunt etiam futura conici* (*doctr.* 2.47), *sed plurimum interest, utrum experimento praeteritorum futura coniciantur* (*Trin.* 4.22). Cf. also Amm. 31.5.6 *futuri coniciens exitum*. In these examples *conicere* does not denote a mere guess, but a foresight which is founded on past experience. One wonders if Amm. was thinking of the usurpation in 383 of Magnus Maximus, a relative of the Theodosii, "who served under Theodosius 3 (the elder)" and "went on campaign in Britain, presumably in 369" (*PLRE* I, Maximus 39). See for the phrase *quaestionem agitare*, which occurs seven times in the *Res Gestae*, the note ad 22.3.1 *Brevi*. Theodosius foresaw that criminal investigations would spread fear and agitation, a result which he regarded as the opposite of his mission's prime objective. See for *provinciarum* below, ad §7 *instaurabat*. Theodosius' conduct contrasts sharply, as Rance, 2001,

244 notes, with Paulus Catena's savage reprisals against the supporters of the usurper Magnentius in Britain in 353–354 (14.5.6–9). As to the *milites* who perhaps by taking sides with Valentinus (cf. § 5) had been among the *coniurati* (this word also in 28.2.12): if they were spared, too, they were lucky, for Theodosius was not always as lenient as in this case (cf. 29.5.21–22).

Clark, Seyfarth, and Marié wisely accept Henri de Valois' fine emendation c.c. *consopiti*, which tallies with Amm.'s use of the verb (*con*)*sopire*. Kellerbauer, 1873, 135 mentions some instances; see also the notes ad 25.8.4 *sopitis belli turbinibus* and 27.5.1 *Procopio*.

Hinc ad corrigenda plura conversus et necessaria periculo penitus dempto, cum aperte constaret nulla eius propitiam deseruisse fortunam See for Amm.'s use of *corrigere* with the meaning 'to put right what has gone wrong', inter alia military set-backs, the note ad 27.2.1 *correcturus*. Julian is praised for such actions in Gaul in 16.1.2 *res magnae, quas per Gallias virtute felicitateque correxit* and 25.4.25 *quae omnia...correxit* (see the note ad loc.). Cf. for *necessaria* 15.5.8 *et quamquam utilia moneret et necessaria*, 19.9.7 *paraturus necessaria convivio nuptiali*, 23.3.2 *dum necessaria parat*. For V's impossible *nulla eius propitia deseruisse fortunam* various emendations have been suggested: Gelenius adds *coepta* after *eius*; however, the loss of *coepta* cannot be explained easily. Most are content with Gelenius' *propitiam* to go with *fortunam*, without bothering about the superfluosity of *propitiam* or the problem of substantivized *nulla*, meaning 'no projects'. However, what is wrong with Gardthausen's *proposita*? Admittedly, Amm.'s instances of the singular *propositum* are far more numerous than the plural, but *proposita* suits the present text well: the temporal clause *cum aperte* sqq. would mean 'when it had become fully clear that 'none of his projects' had been let down by fortune, or perhaps rather the Lady Fortuna': the capital F seems preferable. See for the importance of 'fortune' as an indispensable piece of the identikit of a competent general the notes ad 21.5.9 *fortunatum* and 25.4.14 *Felicitas*. 3.7

instaurabat urbes et praesidiaria, ut diximus, castra limitesque vigiliis tuebatur et praetenturis recuperatamque provinciam, quae in dicionem concesserat hostium, ita reddiderat statui pristino See on *instaurare* denoting the restoration of buildings the note ad 20.11.6 *instaurata esse*, on *castra praesidiaria* the note ad 28.2.4 *tandem* and on *praetentura*, 'border post', the note ad 21.13.3 *sed praetenturis*. Presumably, *ut*

diximus refers to §2 of this chapter. The identity and location of the *provincia* which Theodosius restored to its former status, and which got the name *Valentia* as the result of the decision of the emperor (*Valentia deinde vocaretur arbitrio principis*) is disputed (see for discussion in the first place Birley, 2005, 397–400). Amm.’s wording (*recuperatamque provinciam...reddiderat statui pristino*) seems to suggest that the *provincia* mentioned was identical with one of the provinces into which the diocese of Britain had been divided since the Diocletianic-Constantinian reforms at the end of the third and the beginning of the fourth century. There were four such provinces according to the *Laterculus Veronensis* (p. 249 Seeck) and the *Breviarium* of Festus (c. 6), viz. Britannia Prima, Britannia Secunda, Maxima Caesariensis and Flavia Caesariensis. Valentia therefore “may simply have been a rebranding of Maxima Caesariensis or another of the existing four” (Mattingly, 2006, 28; cf. e.g. Blockley, 1980, 225, who opts for Britannia Secunda as the old name of Valentia, and White 2007, 64, who prefers Britannia Prima).

However, there is a problem. The *Notitia Dignitatum* (Occ. 1.75–77, 118–121; 3.32–37; 23.3–7, 8–15) mentions five provinces, of which Valentia is listed separately, the other four being the same as the ones in the Verona List and in Festus’ *Breviarium*. More or less the same holds good for the *Laterculus* of Polemius Silvius (*chron.* I p. 542), except that here the name of the province is spelled as *Valentiniana*, and that six provinces are listed instead of five, *Orcades* being the sixth. This would suggest that Theodosius, in 369, did not give a new name to an old province, but added a new province to the existing four.

Clearly, the evidence is conflicting. It has been assumed that a fifth province already existed in 369 under another name (cf. Birley, 2005, 399), but if this is so, it is surprising that Festus, a contemporary, mentions only four. Another attempt to reconcile Amm.’s statement with the other evidence is that of Hind, 1975, 106–107, who suggested that Amm. used the word *provincia* here in the sense of diocese, but his arguments are unconvincing. The issues cannot be resolved and the unavoidable conclusion is that Amm. made a mistake by stating that Valentia was a newly created province: it is difficult to ignore the evidence of Polemius Silvius (as does Bartholomew, 1984; Hind, 1975, 101 dismisses him as unreliable) and to discount that of the *Notitia* (Bartholomew, 1984, 178–179 regards the entries as later insertions or as textually corrupt). Note that Amm. in 22.16.1 (q.v.), when speaking of the division of provinces in Egypt, is also mistaken.

In view of the uncertainties with regard to the identity of Valentia, it will come as no surprise that various suggestions have been made with respect to its location: in Scotland, near Hadrian's Wall, in Wales, not to mention Hind's view "Valentia being the whole of Britain" (1975, 106). For an overview see Dornier, 1982, 253. It seems unnecessary to go into this further.

There is a note on the term *limes* in Amm. ad 23.3.4 *vicino limite*. In the present text it clearly has undertones of a line of demarcation. See for its use in the *Res Gestae* in the first place Drijvers, 2011. Cf. further Pietzner, 2010. The phrase *concedere in dicionem* does not occur often; Livy has a few instances, but the best known is perhaps *postquam res publica in paucorum potentium ius atque dicionem concessit* (Sal. Cat. 20.7). The word *hostium* is puzzling. One can think of the *barbari* of § 2 and 8, but, as Salway, 1981, 396 reminds us, *hostis* does not automatically mean a foreign enemy (cf. TLL VI 3.3056.65 sqq.), and one should, therefore, not rule out that Amm. refers with this word to the conspirators around Valentinus.

ut eodem referente et rectorem haberet legitimum et Valentia deinde vocaretur arbitrio principis velut ovantis Theodosius officially reported (see for this meaning of *referre* the note ad 28.1.44 *qui, quoniam*) the positive results of his campaign to the emperor. See Sabbah 172–173 for the probability that Theodosius' report was Amm.'s source for the events described in this chapter. The province received a legitimate *rector*, 'ruler'; as is noted ad 20.1.1 *rectore*, this word can denote any high officer or official. According to *Not. Dign. Occ.* 1.77 and 3.11 Valentia was governed by a *consularis*, as was Maxima Caesariensis (Britannia Prima, Britannia Secunda and Flavia Caesariensis were ruled by *praesides*). There were several towns called Valentia, in Italy for instance (e.g. Vell. 1.14.8, Plin. Nat. 3.73 *Hippo, quod nunc Vibonem Valentiam appellamus*), in Spain (e.g. Liv. per. 55) and in Gaul (e.g. 14.10.1, 15.11.4), but there was only one province of that name. The name has Valentinianic overtones and does not need any further explanation as in the case of the Pannonian province Valeria (*Valeriam venit, partem quondam Pannoniae, sed ad honorem Valeriae Diocletiani filiae et institutam et ita cognominatam*, 19.11.4). The last word of the lemma is a plausible emendation in view of 15.3.2 *velut ovantes* and 27.8.8 (about Theodosius) *ovantis specie*; see the note ad loc., in which it is pointed out that both *velut* and *specie* qualify *ovare*, in that there was no question of an official *ovatio*, which could only take place in Rome. HA S. 14.7 (about the emperor Septimius Severus) is

surprising: *veluti ovans urbem ingressus*. Cf. also *imperator Mediolanum ad hiberna ovans revertit* (15.4.13), which is perhaps a subtle indication of the fact that Rome was no longer the residence of the emperor.

- 3.8 ...*tudio nuntio inest. haec etiam praecipua* The first part of this lemma is beyond repair. After this, Seyfarth with *haec etiam praecipua* remains as close as possible to V's version; however, his rendering "Dies waren die wichtigsten Ereignisse" fails to convince. As was to be expected, Henri de Valois' tentative reconstruction ("videtur tale quippiam desiderari") is elegant, but perhaps too good to be true. Heraeus' version, *inter haec tam praecipua*, may be nearer the truth: Marié, who accepts this emendation, refers to comparable passages in the *Res Gestae*, e.g. *inter praecipua enim* (16.7.8), *inter praecipua tamen et seria* (22.14.1, q.v.).

arcanos genus hominum a veteribus institutum, super quibus aliqua in actibus Constantis rettulimus, paulatim prolapsos in vitia a stationibus suis removit Demandt, 1970, 90 defends Heraeus' emendation *Arcanos* (cf. Seyfarth in *Gnomon* 53 [1981] 452), plausibly spelled with a capital at the beginning: "Der Name spiegelt die Funktion wie bei den vergleichbaren irregulären Einheiten der *Exploratores*, *Superventores* usw." Cf. e.g. Lee, 1993, 179 with n. 30; Elton, 1996, 242: "Roman spies...who operated in the *barbaricum*"; Nicasic, 1998, 159. However, Egger, 1929–1930, 13, note 1 remarks that the description of the *Arcani*'s task is exactly what was expected of *Exploratores* and that V's *Areani* could well be derived from an indigenous word. Hence it is sometimes "assumed that they were native recruits operating in the north beyond Hadrian's Wall" (Southern, 2004, 403) See for Amm's use of *vetus* to refer to a distant past the note ad 26.9.9 *ad veteris*. This raises the question why the present text is the only source for the formation and the tasks of this 'secret' contingent, which had been created long ago. See for the emperor Constans in the *Res Gestae* the note ad 27.8.4 *Et quoniam*. Cf. *ad haec...scelesta prolapsos* (18.8.6) and *ad unum prolapsos errorem* (29.5.23). Theodosius removed the *Arcani* from 'their', not 'his', posts. See for *statio* the note ad 26.7.5 *oppressurus* and for this use of *suus*, namely not referring to the subject of the sentence, the note ad 20.5.4 *cum iactura*. As appears from the treatment of this phenomenon in Szantyr 175, examples can be found from early Latin onward.

aperte convictos acceptarum promissarumque magnitudine praedarum allectos, quae apud nos agebantur, aliquotiens barbaris prodidisse See the

note ad 28.1.26 *Circa* for the use of the personal passive of *convincere*. As to *praedarum*, the present text would not have been out of place in the brief list in TLL X 2.526.65–77 of cases in which *praeda* denotes “quae dono accipiuntur, praemio constituuntur”, e.g. HA AS 23.2 *cum diceret omnes praeda corrumpi posse*. The word *aliquotiens* implies that the Arcani had more than once acted in cooperation with barbarians. Presumably, their main fault was their failure to report the *conspiratio barbarica* of Picts, Scots and Attacotti who had overrun Britain in the summer of 367 (27.8).

id enim illis erat officium, ut ultro citroque per longa spatia discurrentes vicinarum gentium strepitus nostris ducibus intimarent With *enim* Amm. assumes that the reader will understand that the specific duties of the Arcani created the opportunities mentioned in the preceding lemma. The phrase *ultro citroque discurrere* occurs nine times in the *Res Gestae* and only twice in other authors. Amm. uses it for energetic activities in a large area; see the note ad 27.5.3 *iamque sublatus* and for *ultro citroque* the note ad 25.6.1 *Quae dum*. See for *nos* and *noster* referring to the Romans and Roman rule the notes ad 20.4.4 *ad nostra*, 22.8.21 *post quos*, 23.6.9 *nobiscum*, 27.4.11 *quo imminente*. In the context of the chapter the slightly surprising term *strepitus* denotes signs of unrest. Remarkably, in the elogium of Valentinian the same word is used: *Britannici strepitus* (30.9.1). As to *ducibus*, in 367–369 the successive *duces* (*Britanniae*) were Fullofaudes (27.8.1) and Dulcitius (27.8.10; 28.3.6). See the notes ad loc. and Austin and Rankov, 1995, 237.

See for *intimare* meaning ‘to make known’ the note ad 21.11.1 *nuntius*. The verb has an entirely different meaning in 15.4.4 and 22.8.40: in both cases *intimatur* is used to describe a river discharging itself into the sea.

Ita spectatissime ante dictis rebus aliisque administratis similibus ad comitatum accitus tripudiantesque relinquens provincias ut Furius Camillus vel Cursor Papirius victoriis crebris et salutaribus erat insignis The concise laudatory account of Theodosius’ feats in Britannia now assumes jubilant tones in a coda which moves from the general joy to the great personal delight of the emperor. With *aliis...similibus* as an addition to *ante dictis rebus* the author aims to conceal the gaps in his information. This is a rare instance of the adverb *spectatissime*: Theodosius had performed in such a way as to win very great distinction. See on the adj. the note ad 24.3.7 *praeque me*. See the notes ad 20.4.11 *ad comitatum* and 26.5.7 *cum legatis* for this usual term to denote the emperor’s headquarters, the

‘court’. As is noted ad 28.2.1 *at Valentinianus* (q.v.), after his 369 campaign the emperor was back in Trier on 14 October at the latest. Theodosius must have met him there at the end of 369. See the note ad 27.1.6 *quod insultando* for the rare verb *tripudiare*, which is not used in its literal sense here (‘to perform ritual dances’), but rather denotes the jubilant mood in Britannia. See for the *provinciae* in this diocese above, ad § 7. The greatness of the distinguished general could only be compared to two legendary icons of the remote past, Camillus, the conqueror of Veii (Broughton, 1951, 87–88), the ‘second founder of Rome’ (see the note ad 21.16.13 *Camillus*), and L. Papirius Cursor, the successful general in the wars with the Samnites, consul for the first time in 326 (Broughton 1951, 146) *solus ad resistendum aptus Alexandro Magno, si calcasset Italiam, aestimatus* (30.8.5). See further Felmy, 1999, 125–159 and Münzer, 1949, for Camillus and Cursor respectively.

et favore omnium ad usque fretum deductus leni vento transgressus venit ad commilitium principis cumque gaudio susceptus et laudibus in locum Iovini ut lentis successit, qui equorum copias tuebatur The Channel could pose considerable problems because of its unpredictable behaviour, but Theodosius’ return to the continent was, of course, just as comfortable as his crossing to Britannia had been; see the note ad 27.8.6 *attolli*. Note that in mentioning Theodosius’ arrival at the imperial court Amm. switches from *comitatus* to *commilitium*, emphasizing the military character of the general’s honourable reception by the emperor, who subsequently rewarded him with promotion to the post of *magister equitum per Gallias* as successor of Iovinus (*PLRE* I, Iovinus 6; see for him also the notes ad 21.8.3 *cum Iovino* and 26.5.2 *Iovinus*). Iovinus had served in Britain before Theodosius was sent there (27.8.2). Note the various ways in which Amm. denotes this function: *qui equorum copias tuebatur* in the present text, *armorum magister per Gallias* in 25.8.11 and, in a different word order, in 26.5.2, *magister equitum* in 28.5.15.

The result of the successive efforts to emend V’s *locum ut lentis Iovini* is persuasive, but does leave room for some doubt. Apart from the intervention in the word order, the adj. *lentus*, when used about a person, is by no means exclusively negative; cf. Amm.’s only other instance: *quod iudicis lentis et considerati est proprium* (19.12.18, q.v.). There are indeed examples where it is used in a disapproving way. Erotic poetry has no use for a lover of this sort: *a pereat, si quis lentus amare potest* (Prop. 1.6.12); it is normally not used to describe a virtue on the battlefield, as is implied in the following praise of Fabius Cunctator: *arte/bellandi lento*

similis (Sil. 7.92), and the best support for the emendation is provided by Amm. himself: *ut quondam Maharbal lentitudinis increpans Hannibalem* (18.5.6, see the note ad loc. sub *d*). However, the laconic brevity with which the reason for the dismissal of the distinguished general Iovinus is given, is strange. Could V's *ut lentis* be the remains of a reference to ill health, e.g. *ut parum valentis*? Cf. *si mulier, quae gravis non est, parum valet* (Cels. 2.10), *cum ipse animo parum valeret* (Aur. Vict. Caes. 14.10). Cf. for *tueri* in a description of an official function *qui aerarium tuebatur* (20.11.5, q.v.), *qui Gallicanos tuebatur thesauros* (22.3.7, q.v.).

CHAPTER 4

Introduction

Like the first chapter of Book 28, chapter 4 is devoted to Roman affairs, though of a very different nature. It is surprising in itself that Ammianus has put these very long chapters almost side by side, but what is really astonishing is the opening sentence of 28.4, in which the author says that foreign affairs have kept him away from Roman matters for a long time. As Matthews 216 remarks: "Ammianus writes momentarily as if the long first chapter of Book 28 did not exist at all." If one of the two chapters is a later insertion into Book 28, it seems more likely that chapter one is the addition, in view of the fact that the opening sentence of 28.4 would cause no surprise whatsoever if 28.1 had not existed, and that the Roman digression in 28.4 follows the report on Ampelius' prefecture as naturally as the first digression on Rome in 14.6 followed the report on Orfitus' term of office.

There must have been at least one more digression of this type in the lost books, as is evident from the word *aliquotiens* in 28.4.6 *Et primo nobilitatis, ut aliquotiens pro locorum copia fecimus, dein plebis digereamus errata*. The two extant digressions are remarkably similar in structure, tone and content. First the behaviour of the Roman *nobiles* is described at some length, then follows a shorter section on the plebs. The tone is satirical, and consequently the author focuses on the *errata* of both groups. To a large extent the vices criticized in the two digressions are the same: arrogance, ostentatious riches, lack of culture and greed on the part of the aristocrats; on the part of the mob: sloth and addiction to food, drink, the theatre and the races. New elements in the second digression are the pride in family names felt by both groups, the pulp authors Juvenal and Marius Maximus studied by the aristocrats, their addiction to astrology and their conduct in financial matters.

Stylistically the digression in 28.4 is slightly inferior to the one in 14.6, in that it is less finished and coherent. There are some repetitions, e.g. the treatment of creditors in sections 25 and 27 and of legacy hunting in 22 and 26. The lack of finish is partly due to the fact that the text is so badly damaged in some places that a precise interpretation or even an educated

guess about its meaning is impossible. This is not to say that there are no brilliant passages in this digression; see above all the vivid snapshots of the arrogant *nobiles* in section 10 and of the greedy plebeian starvelings in section 34.

Many of the themes in this chapter, such as arrogance, legacy hunting and gluttony, are familiar from Roman verse satire and Greek Menippean satire as practiced by Lucian. It is clear that Ammianus knows both genres well, although verbal borrowings are few. The resemblance is not limited to the thematic material; the reader is also constantly reminded of the way in which Juvenal composes his work with loosely connected short vignettes. Amm. makes the transition between the short scenes by using words like *quidam*, *pauci*, *aliqui*, *quidam... licet rari*, *multi*, *in his plerique* et cetera, which in themselves are practically meaningless, but forestall possible accusations that the author is lumping everyone together.

This brings us to the question of Amm.'s intended audience. If these digressions make anything clear about the author himself, it is that he is an outsider in Rome, who views the nobility from a distance and the common people with contempt. At the same time, however, he identifies passionately with Rome's greatness and history. This paradoxical stance may explain his disgruntled and, at times, indignant tone when writing about the *nobilitas* and the plebs of Rome. For this reason several scholars have argued convincingly that the senatorial aristocracy of Rome is not Amm.'s intended audience (Cameron, 1964, 26–28; Rosen, 1982, 35–41; Matthews 8–9; Frakes, 2000) but rather the “imperial functionaries and bureaucrats who would have appreciated an outsider's view of the city from a resident alien.” (Rohrbacher, 2007, 471).

The structure of the digression is as follows: Ammianus begins with the urban prefectures of Olybrius (§1–2) and Ampelius (§3–5). The latter tried to curb the vulgar consumption of cooked meat and hot wine at all hours of the day, but failed eventually because of his lack of determination. The reference to these abuses prompts the digression. The *nobilitas* is dealt with in sections 6–26. It is remarkable that Ammianus pays no attention to the political activities of these aristocrats, but only deals with their leisure time. In §6–9 he speaks of the pride in their *praenomina*—a strange hotchpotch of real and fantasy names—, their ostentatious, silken dresses, their hosts of slaves and their exasperating behaviour in the baths, where they flatter common prostitutes as if they were queens. In §10–11 Ammianus chides their high-handed behaviour towards aliens (*peregrini*) and the obsession with horse racing, which they share with the plebs. Sections 12 and 13 are devoted to the toadies

they receive in their houses, who praise them *ultra mortalitatem*, and to their sumptuous dinner parties. In § 14–15 Ammianus illustrates their lack of interest in culture by reporting that the only authors they read are Juvenal and Marius Maximus. By contrast he reminds his readers of Socrates, who on the eve of his death was nevertheless learning to play the lyre. Sections 16–17 are devoted to their outrageous treatment of slaves and guests. Effeminacy is the theme in sections 18–19. A short boat trip is compared to a victory in a sea battle, and after bathing they take finely pressed garments from a clothes press. Section 20 is textually beyond repair. Another passion shared with the common people is gambling, to which § 21 is devoted. Sections 22–27 deal with astrology and financial matters, such as legacies, the payment of debts and the bickering over testaments.

The rest of the chapter (§ 27–35) is a portrayal of the plebeians. It falls into four parts, the first dealing with their ridiculous names, of which they are inordinately proud (§ 28). Their life depends on the Circus, where they spend their days and nights (§ 29–31). The rest of their time is devoted to the theatre, where they terrorize the actors, demand the expulsion of strangers or yell meaninglessly (§ 32–33). The last section before the conclusion of the chapter in § 35 graphically describes the obsession of these people with food: from dawn to dusk they think of nothing but their meals. In this way the author returns to his starting point, the *irritamenta gulae et ganeas taetras* of section 3.

Diu multumque a negotiis discussus urbanis adigente cumulo foris gestorum ad ea strictim exsequenda regrediar Gelenius' reading *discussus* (V has *discursis*) has been accepted by all modern editors. This is surprising, since there are no parallels for the required meaning of *discussus*, 'kept away from', either in Amm. himself or in any other Latin author. On the other hand, Accursius' simple remedy *digressus* is entirely convincing in view of parallels like 20.11.30 *narratione redire, unde digressa est, festinante* and Cic. Ver. 4. 35 *Verum uti Lilybaeum unde digressa est oratio, revertamur*. Cicero uses the verb also with the author as subject: *Verum ut ad classem, quo ex loco sum digressus, revertar* (Ver. 5.59). *Diu multumque* is a stereotyped phrase, in which *multum* only adds emphasis to *diu*. Cf. Cic. Sul. 73 *haec diu multumque et multo labore quaesita una eripuit hora*; Mart. 9.59.1 *In Saeptis Mamurra diu multumque vagatus*. See also the note ad 21.7.1 *diu multumque anxius*.

4.1

How on earth can Amm. say that he has been kept away from city matters (*negotia urbana*) for a long time after his extremely detailed

report on trials in Rome (for which he uses the term *negotium* nine times) in the opening chapter of this book, that ended with the words *is urbanarum rerum status, ut ita dixerim, fuit* (28.1.57, q.v.)? The answer is probably given by the author himself in the words that immediately follow the present lemma: *exorsus ab Olybrii praefectura*, which suggest that by *negotia urbana* he means the terms of office of the urban prefects, which he has discussed at regular intervals throughout his work. Still, the absence of any reference back to the prefectures of Olybrius and Ampelius, who were mentioned in 28.1.8 and 28.1.22, remains puzzling. See the Introduction to this chapter. The last urban prefecture discussed by Amm. was that of Praetextatus in 27.9.8–10. Since then his narrative has moved from Germany to Armenia, Gaul, Syria and Britain.

For *adigere* with inf. cf. 23.6.1 *Res adigit huc prolapsa* (q.v.) and see the note ad 21.16.10 *hic etiam*. Amm. uses *cumulus* with the meaning ‘large quantity’ literally in 31.4.4 (ut) *thesauris accederet auri cumulus magnus*. For *cumulus* with an abstract noun cf. Cic. *Tusc.* 1.110 *non enim tam cumulus bonorum iucundus esse potest quam molesta decessio*. The adverb *foris* forms a contrast with *urbanas*. Elsewhere Amm. writes *domi forisque* (15.2.2, 16.1.4, 25.4.4) or *domi...et foris* (30.9.2); cf. Liv. 4.11.2 *gloriae rerum domi forisque gestarum*.

The promise of brevity, implied in *strictim*, is traditional and almost obligatory; cf. 22.15.1 *Strictim itaque, quoniam tempus videtur hoc flagitare, res Aegyptiacae tangantur*. Even at the outset of the longest digression in the *Res Gestae*, the description of Persia, Amm. tells his readers that he will treat the subject *ut in excessu celeri* (23.6.1, q.v.). Van de Wiel, 1989, 187 observes that both in 15.1.1 and 23.6.1 the author anticipates criticism for long-windedness and stresses that *brevitas* must never be at the expense of *cognitio gestorum*, c.q. *scientia plena*. See further Curtius, 1963⁴, 479–485; Janson, 1964, 96 and 154–155; Sabbah 26–27 and 80–83.

exorsus ab Olybrii praefectura tranquilla nimis et leni, qui numquam ab humanitatis statu deiectus sollicitus erat et anxius, ne quid usquam factum eius asperum invenirétur aut dictum Q. Clodius Hermogenianus Olybrius (PLRE I, Olybrius 3) succeeded Praetextatus as prefect of Rome. For his date of office see the note ad 28.1.8 *Chilo*. Olybrius was the son of Clodius Celsinus Adelphius (PLRE I, Celsinus 6 + Barnes, 2006), *praefectus urbi* in 351, and Faltonia Betitia Proba (PLRE I, Proba 2), the probable author of the *Cento Vergilianus de laudibus Christi*—in recent years the authorship of the *Cento* has also been ascribed to Anicia

Faltonia Proba (*PLRE* I, Proba 3); see in general Green, 2008. Like his mother he was a Christian; *Avell.* 1.8–10, p. 50–52; Von Haehling, 1978, 378–379. Olybrius belonged to the family of the Petronii, but through his marriage with Tyrrania Anicia Iuliana (*PLRE* I, Iuliana 3) he became related to the family of the Anicii; *PLRE* I, Stemma 7, p. 1133. He had a brilliant career, as we know from *CIL* 6.1714 (= *ILS* 1271). Before he became city prefect he had been *consularis Campaniae* and proconsul of Africa. In 378 he was PPO Illyrici for a short while. In the same year he became PPO Orientis, to which function he was possibly appointed during the interval between the death of Valens (9 August 378) and the accession of Theodosius (19 January 379). In 379 he was consul with Ausonius; Bagnall et al., 1987, 292–293.

Amm.'s characterization of Olybrius' prefecture as *tranquilla nimis et lenis* comes as a surprise, since it was during his prefecture that Maximinus began the judicial investigations against senators for, inter alia, the alleged practicing of magic arts (see the notes ad 28.1.8–9), a period when, as Amm. wrote in 28.1.1, *saeviens per urbem aeternam urebat cuncta Bellona*. It may well be, as Matthews 212 says, that “the involvement of the prefecture in the judicial hearings at Rome was deeper than is stated or suggested by Ammianus”. According to Van de Wiel, 1989, 187, however, Amm. wanted his readers to believe that the responsibility for the investigations and the subsequent terror in Rome lay exclusively with Maximinus and his mate Leo, who were allowed a free hand by Valentinian (28.1.11), and that Olybrius was not to blame.

See for *nimis* ‘exceedingly’ the notes ad 21.16.3 *in conservando* and 23.5.13 *ideoque hoc*. According to Pease ad Cic. *N.D.* 1.66 *priusque te quis de omni vitae statu quam de ista auctoritate deiecerit* (“it would be easier to make you alter all your principles of conduct than abandon the teachings of your master”, tr. Rackham) the phrase *deicere a* (or *de*) *statu* “seems to be taken from a pugilistic knockout” (or rather a wrestler’s throw?). Cf. also Cic. *Or.* 129 *adversarios de statu omni deiecimus* and Kroll ad loc. Amm. uses it in 26.6.4 *a celsiore statu deiectus*. On the different meanings of *humanitas* in Amm. (‘clemency’, ‘hospitality’, ‘erudition’) see the notes ad 21.6.4 *in culmine* and 27.6.9 *ineunte adolescentia*; Van de Wiel, 1989, 188; Seager 20, 36–38, 132; Brandt, 1999, 133–141. The familiar combination of *anxius* and *sollicitus* is discussed ad 27.11.7 *in summis* (q.v.). *Ne...usquam* seems to have the value of a strong denial, just like *numquam*; Szantyr 454. Note the strong hyperbaton of *dictum*, which creates a *cursus planus*.

calumniarum acerrimus insectator, fisci lucra, unde poterat, circumcidens, iustorum iniustorumque distinctor et arbiter plenus in subiectos admodum temperatus In this general characteristic of Olybrius the term *calumnia* is probably not used in its specific legal meaning, for which see the note ad 28.1.25 *qui cum*. The noun *insectator*, 'opponent', is very rare in classical authors. Quint. *Inst.* 10.1.129 calls Seneca *egregius...vitiatorum insectator*, imitated by Lact. *Inst.* 5.9.19 *morum vitiatorumque publicorum et descriptor verissimus et insectator acerrimus fuit*. Julian is characterized as *nimius religionis Christianae insectator* in Eutr. 10.16.3. For *circumcidere*, 'to curtail', cf. *cunctis vitae praesidiis circumcisis* (17.13.14). *Unde poterat* refers to the magistrates from whom Olybrius reclaimed their ill-gotten gains. For *unde* = *a quo/quibus* cf. 15.5.16 *Francos, unde oriebatur* and 16.8.2 *reus, unde non poterat opinari, delatus*. V reads *iustorumque distinctor*. The correction by Valesius, here and in 31.14.3, is certainly correct, since the phrase *iustorum iniustorumque*, which is all Amm.'s own, occurs with slight variations also in 18.1.2, 22.3.4 and 30.5.5; Kellerbauer, 1873, 135. *Plenus*, used absolutely of persons with the meaning 'all-round', is extremely rare. Cf. Cic. *de Orat.* 1.59 *oratorem plenum atque perfectum*; Cic. *Brut.* 125 (about Gaius Gracchus) *noli enim putare quemquam, Brute, plenior aut uberior ad dicendum fuisse*, followed by Tac. *Dial.* 18.2 *Catoni seni comparatus C. Gracchus plenior et uberior*.

Financial affairs, such as the control over the *vectigalia* and the *arcae*, fell under the responsibility of the *praefectus urbi*; Chastagnol, 1960, 335 ff. The city's food supply, the supervision of markets, the care for public buildings and the city's infrastructure as well as the administration of justice, for all of which the *PVR* was responsible, involved dealing with money by the various bureaus and officials. It was probably unavoidable that these officials demanded additional and lucrative fees for personal gain. Unfortunately, we do not have actual evidence that city officials demanded *fisci lucra*, but we do know that such demands, made by tax gatherers and other officials as well as the requisition of *sportulae* by public functionaries and judges occurred all over the Roman Empire and thus were in all likelihood common in Rome as well. These were probably the practices that Olybrius wanted to curb. Emperors also tried to curtail and regulate these wrongdoings by means of legislation; *Cod. Theod.* 8.10.1–4, 9.27; Kelly, 2004, 152–158. On corruption in the later Roman Empire, see MacMullen, 1988. Olybrius himself seems to have been a positive exception among the officials, many of whom took every opportunity to gain material profit; see the note ad 27.7.2 *sed lucrandi*. For the meaning of the term *fiscus*, see Delmaire, 1989, 11–13.

The term *subiecti* for Roman citizens with regard to their urban prefect is without parallel. Even when Pliny characterizes the Romans as *subiecti* of the emperor Trajan, he does so with some qualification: *Pan.* 24.4 *regimur quidem a te et subiecti tibi, sed quemadmodum legibus sumus*. Tacitus uses the word in a general statement: *Ag.* 31.3 *virtus porro ac ferocia subiectorum ingrata imperantibus*, or about other nations conquered by the Romans: *Hist.* 4.64.3 *instituta cultumque patrium resumite, abruptis voluptatibus, quibus Romani plus adversus subiectos quam armis valent*. In his discussion of Valentinian's stance in religious matters (30.9.5) Amm. writes: *nec interdictis minacibus subiectorum cervicem ad id, quod ipse voluit, inclinabat*.

sed obnubilabat haec omnia vitium parum quidem nocens rei communi, sed in alto iudice maculosum See for *obnubilare*, 'to darken', 'to damage', found for the first time in Apuleius and Gellius, the note ad 27.6.15 *quae imperatorem*. As is explained in the note ad 23.6.82 *parum alienis*, the adverb does not always imply excess, but is sometimes simply the equivalent of *non*. Perhaps surprisingly, this is the only occurrence in the *Res Gestae* of *altus* denoting highplaced people (Amm. has a preference for *celsus*), apart from 29.1.8 *altis humilibusque iuxta acceptus*. As in this case, *iudex* is often used by Amm. in the meaning of 'civil official'; see the note ad 20.5.7 *civilis*. It is evident from 30.8.11 *Arguebat hic idem princeps timidos saepius maculosos tales appellans et sordidos et infra sortem humilem amendandos* that the adjective *maculosus* expresses strong disapproval. Cf. also Tac. *Hist.* 1.7.2 *Capitonem ut avaritia et libidine foedum ac maculosum*.

4.2

quod citeriorem vitam paene omnem vergentem in luxum per argumenta scaenica amoresque peregerat nec vetitos nec incestos The expression *citerior vita*, which is found only in Amm., is discussed in the note ad 27.10.4 *fraude citerioris*. The tendency of Olybrius towards *luxus* manifested itself in his passion for the theatre and his love affairs. For a similar use of *vergere* in cf. 31.10.18 *vergens in ludibriosos actus natura* about Gratian ("he had an innate tendency to play the fool", tr. Hamilton). The ponderous historian has no time for the frivolity of the theatre. In § 32 he also speaks disdainfully of *theatralem... vilitatem*. The phrase *argumenta scaenica* is the equivalent of *fabulae teatrales* in 14.6.20; cf. Quint. *Inst.* 5.10.9 *fabulae ad actum scaenarum compositae argumenta dicuntur*, and see the note ad 28.1.4 *hoc argumentum*. There is no compelling reason to follow Adrien de Valois' proposal to read *peragebat* instead of V's *peregerat*.

The pluperfect refers to the time preceding the main verb *obnubilabat* and results in a *cursus planus*. In the present passage *amor vetitus* is a wider term than *amor incestus*. It refers to the crimes of *adulterium* and *stuprum*, on which see the notes ad 28.1.16 *Tunc Cethegus* and 28.1.28 *Nec minus*. The adj. *incestus* is probably used in the modern sense of the term, as in Tac. *Ann.* 12.4.2 (about Silanus and his sister) *fratrumque non incestum, sed incustoditum amorem*. It is also used of the initiatory homosexuality practiced by the Taifali—which Amm. condemns in no uncertain terms in 31.9.5—, at the end of which the young man *colluvione liberatur incesti*. On Amm.'s views on sexuality in general see Sabbah, 1994.

Olybrius' outstanding reputation was damaged by his inclination towards lasciviousness in his private life. The author hastens to add that this fault did not impair his public performance (*parum quidem nocens rei communi*). Amm.'s criticism testifies both to his strict moral standards where people in high positions are concerned, and to his effort to give a balanced judgement. This in itself casts doubt on the characterization in Barnes 119 of Amm.'s portrait of Olybrius as "subtly and deliberately polemical", for which, it is suggested, Olybrius' Christianity was Amm.'s motive. Moreover, it is significant that *obnubilare* is used twice in a very similar context about Julian: 16.1.5 *sic praeclarae huius indolis rudimenta tunc multis obnubilantibus tegebantur* and 22.10.6 *ni quaedam suo ageret non legum arbitrio erransque aliquotiens obnubilaret gloriarum multiplices cursus*. Kelly 152 rightly points out that "identifying religious attachment *tout court* as a reason for personal admiration or disapprobation" is hazardous.

In addition to Olybrius' faults reported by Amm., Symm. *rel.* 28 accuses him of land-grabbing. In that respect Olybrius lived up to the covetousness of the Anician family (cf. 16.8.13 and 27.11.1 ff.), of which he had become a member through his marriage. Even though Ammianus considers Olybrius' mistakes as belonging to his private life and not harmful to the citizens of Rome (*parum quidem nocens rei communi*), or as being of a criminal or incestuous character, he nevertheless condemns them in a person of high standing. As Van de Wiel, 1989, 189–190 observes, Amm. expects from high-ranking magistrates a certain degree of erudition (14.6.1), clemency (19.12.18) and modesty (27.3.7).

- 4.3 *Post hunc urbem rexit Ampelius, cupidus ipse quoque voluptatum, Antiochiae genitus* Publius Ampelius (PLRE I, Ampelius 3) became PVR in the period between 21 August 370—the date of the last law addressed to his predecessor Olybrius (*Cod. Theod.* 2.10.5; cf. Pergami, 1993, 429–

430)—and 1 January 371, the date of the first law addressed to Ampelius (*Cod. Theod.* 15.10.1); see Chastagnol, 1962, 185–188. Because he originated from the eastern part of the Empire and held his first official positions in the east (see note below), it is possible that he was initially a member of the senate in Constantinople before he made the transition to the Roman senate. He was an educated man: he corresponded with Libanius (*Ep.* 208) and was called *κάλος* ('excellent') by the Antiochene orator (*Ep.* 315.2). He was possibly the same man as the poet Ampelius about whom Sidon. *carm.* 9.302–304 speaks in laudatory words: *Sed ne tu mihi comparare temptes, / quos multo minor ipse plus adoro, / Paulinum Ampeliumque Symmachumque*. He was an adherent of the traditional cults; Von Haehling, 1978, 379.

Ampelius is the recipient of *Cod. Theod.* 9.16.10, dated 6 December 371 and quoted ad 28.1.21, which stipulates that *nonnulli ex ordine senatorio* who were accused of magical practices should be heard by the urban prefect. If the prefect's court could not reach a verdict, the case was to be referred to the emperor. Ampelius was already mentioned in 28.1.22, where he is said to have heard the case of Hymetius together with Maximinus. Like Amm. Ampelius came from Antioch. Barnes 114 states that Amm. knew him personally, but there is no solid evidence for this statement even though our author was well informed about Ampelius' career. He was one of the few city prefects who did not come from a Roman senatorial family. Others were the Pannonian Viventius—see 27.3.11–13 with the notes—and Hypatius, prefect of Rome in 378–379, who probably was a native of Thessalonica, although his family originally came from Antioch; *PLRE* I, Hypatius 4; Chastagnol, 1962, 204–206.

ex magistro officiorum, ad proconsulatum geminum indeque multo postea ad praefecturae culmen evectus According to Clauss, 1980, 145, Ampelius held the office of *magister officiorum* before 356; for this function see the note ad 20.2.2 *Florentium*. Before that he had either been *praeses* of Cappadocia or a landowner in this province; Lib. *Ep.* 208.3 δόξεις τε ἐπιλελῆσθαι τῆς φιλάτης σοι Καππαδοκίας. One of the two proconsulates Amm. is referring to is that of Achaëa which Ampelius held in 359/360; *IG* 12.9.907 (= *SIG*³ 905); Groag, 1946, 42–43; Heil, 1995, 162–165; Lewin, 2001. The other was the proconsulate of Africa in 364; e.g. *Cod. Theod.* 13.5.10 dated 8 May 364; Kuhoff, 1983, 182–183; see also Chastagnol, 1962, 186–187. To hold an office twice was generally not appreciated and even considered an offence in a law of Honorius dating from 416; *Cod. Theod.* 9.26.4. This law forbids holding the offices of

proconsul, *vicarius*, *consularis* and *praeses* twice. But it seems that already before Honorius' law people who only aspired to a second proconsulate could be rebuffed, as appears from Amm. 29.3.6 (Theodosius pleads with Valentinian to grant Africanus, at his request, a second proconsulate) *subagresti verbo pius responderat imperator: "abi", inquit, "comes, et muta ei caput, qui sibi mutari provinciam cupit"* ("who received this rough answer from the gracious emperor: 'Go, count, and change his head for him, since he wants his province changed'", tr. Hamilton). Ampelius was probably dispatched to the western part of the empire shortly after the accession of Valentinian and Valens early in 364.

For *columen/culmen* see the note ad 20.8.21 *eum ad*. The word is used elsewhere of an Augustus (15.5.16, 17; 20.8.21; 21.5.5; 21.16.11; 22.1.2; 25.2.3; 25.8.8), a Caesar (14.1.1; 20.5.3) and a *magister militum* (16.6.1): it clearly marks the high point in a military or civil career. *Praefecturae culmen* refers of course to Ampelius' urban prefecture (pace Hamilton, who translates: "at a much later date [he] reached the height of praetorian prefect").

lectus alia et ad populi favorem adipiscendum aptissimus, nonnumquam tamen rigidus atque utinam in proposito perseverans The acc. respectus is also found in 15.13.2 *prudens alia tolerabilisque provinciis* and 29.3.9 *vitia principis, alia commodissimi*; 31.14.6 *iniuriosus alia et iracundus*; Szantyr 37–38. For a complete discussion see Müller, 1908, 87–89.

The adj. *rigidus* here has the positive connotation of sternness. It is used in 30.4.1 for Valentinian's qualities as a judge: *homo rigidus audire cupiens lites*; Sen. *Helv.* 12.4 speaks admiringly of *Stoicorum rigida ac virilis sapientia*; Luc. 2.390 characterizes Cato with a fine enallage as *iustitiae cultor, rigidi servator honesti*. The opposite of being *rigidus* is expressed by *flexus in molliora* in the next phrase. For *utinam* see the note ad 28.1.1 *quas oblitterasset*. 'Elliptic' *utinam* occurs also in 14.11.25 *Haec et huiusmodi quaedam...operatur Adrastia—atque utinam semper* (sc. *operaretur*)! Cf. Leeman-Pinkster ad Cic. *de Orat.* 2.361 *utinam non impudentis* and 3.46 *utinam quidem*. There is a note on *propositum* 'purpose', 'intention' ad 20.5.4 *numquam*.

correxisset enim ex parte licet exigua irritamenta gulae et ganeas taetras, ni flexus in molliora amisisset gloriam diu victuram For *licet* 'if only', giving concessive force to an adj., a participle or a noun, see the note ad 20.6.9. Amm. follows the classical historians in his choice of words: cf. Sal. *Jug.* 89.7 (the Numidians) *neque salem neque alia irritamenta gulae*

quaerebant; Tac. *Hist.* 2.62.1 (during the reign of Vitellius) *epularum foeda et inexplabilis libido: ex urbe atque Italia inritamenta gulae gestabantur*, imitated by Ambr. *Iac.* 1.2.5 (ratio) *quae inritamenta gulae ceterasque recideret cupiditates*. The noun *ganea* either denotes a disreputable eatery, as in Liv. 26.2.15 *eum in ganea lustrisque* (brothels) *ubi iuventam egerit senectutem acturum*, or ‘gluttony’, as in Sal. *Cat.* 13.3 *sed libido stupri ganeae ceterique cultus non minor incesserat* and Tac. *Ann.* 3.52.1 *ventris et ganeae paratus* (‘the trappings’). See Woodman-Martin ad loc., Dyck ad Cic. *Cat.* 2.7 and for literature on eateries in general Fagan, 1999, 77 n. 9. For *taeter* see the note ad 23.6.80 *magnidici*. Blomgren 79–80 mentions the present sentence amongst a number of instances in Amm. where the participle and the finite verb seem to have traded places, *correxisset...*, *ni flexus...amisisset* being the equivalent of *correxisset...*, *ni flexus esset...*, *quare amisit*. The future participle *victuram* is part of the irrealis: *quae diuturna fuisset*. Ampelius forfeited lasting fame because he was not *in proposito perseverans*, and therefore unable to correct gluttony and immorality.

namque statuerat, ne taberna vinaria ante horam quartam aperiretur neve aquam vulgarium calefaceret quisquam Taverns were the hubs for social gatherings of the plebs. The common people spent an important part of their leisure time there, discussing public affairs while drinking and eating. The elite considered drinking in public as morally wrong because of the excesses and violence it would cause, and because meat consumption was traditionally the preserve of the elite, it was frowned upon when practised by the plebs. Regulations against drinking and eating by the plebs had clear moral overtones and were directed against plebeian social behaviour considered unacceptable by the elite; Toner, 1995, 65–88. Apart from that, these regulations were intended to reduce social and political unrest, as MacMullen, 1966, 167–168 argues. Already the emperors Tiberius, Claudius and Nero had discouraged excessive drinking and eating; Suet. *Tib.* 34.2 *dato aedilibus negotio popinas ganeasque usque eo inhibendi, ut ne opera quidem pistoria* (‘pastry’) *proponi venalia sinerent*; D.C. 60.6.7 *τά τε καπηλεία ἐς ἃ συνιόντες ἔπινον κατέλυσε, καὶ προσέταξε μήτε κρέας που ἐφθὸν μήθ’ ὕδωρ θερμὸν πικράσκεισθαι, καὶ τινὰς ἐπὶ τούτῳ μὴ πειθαρχήσαντας ἐκόλασεν* (‘he [Claudius] abolished the taverns where they were wont to gather and drink, and commanded that no boiled meat or hot water should be sold, and he punished some who disobeyed in this matter’, tr. Cary); Suet. *Nero* 16.2 *interdictum ne quid in popinis cocti praeter legumina aut holera veniret, cum antea*

nullum non obsonii ('dainty') *genus proponeretur*; Toner, 1995, 79–80. In 28.4.29 Amm. again puts forward the elite point of view by accusing the Roman plebs of spending their whole life drinking wine and indulging in other vulgar pleasures.

In the capital the fourth hour of the day in midsummer fell between 8.13 and 9.29 and in midwinter between 9.46 and 10.31; Balsdon, 1969, 16. Normally daily business started at the third hour—see the note ad 27.3.1 *in oppido*.

This is the only instance in the *Res Gestae* of substantivized *vulgaris* in the sense of *plebeius*, apart from 26.6.17 *insita plerisque vulgarium novitatis repentina iucunditate*. It is found only in Late Latin, e.g. Clem. *ad Cor.* 3.3 *exsurrexerunt vulgares contra honoratos*. Of course there is nothing against heating water as such, but what was forbidden was its use for the preparation of *caldum* 'Glühwein'; Mart. 1.11.3–4 *iam defecisset portantis calda ministros, / si non potares, Sextiliane, merum* ("by this time the warm water would have failed the attendants who bring it, were it not, Sextilianus, that you drank your wine unmixed", tr. Ker); Petr. 65.7 *continuoque vinum et caldam poposcit*. Wine mixed with warm water could be purchased at so-called *thermopolia*, which were rarely visited by *honestiores*; Marquardt, 1886², 470–471; Daremberg-Saglio, 1918, s.v. *aqua/aqua calda*; Blümner, 1911, 450.

vel ad usque praestitutum diei spatium lixae coctam proponerent carnem
Normally *diei spatium* refers to the (variable) length of the day, as in Macr. *Sat.* 1.21.15 *ad minimum diei sol pervenit spatium, quod veteres appellavere brumale solstitium*. In the present passage one would have expected *ad usque praestitutam diei partem*. For *ad usque* 'right until' cf. 20.3.1 *a primo aurorae exortu ad usque meridiem*. The use of the term *lixa* without any connection with the army is highly unusual. A few parallels, none of them concerning eateries, are mentioned in TLL VII 2.1550.67–76. Amm. may have inadvertently used a word from the *sermo castrensis*, on which see the note ad 21.16.21 *ut ipsi* and add to the literature quoted there Pighi, 1935, 173 and Mosci Sassi, 1983, 137–138.

vel honestus quidam mandens videretur in publico Eating in public was obviously in bad taste. The verb *mandere* is found also in 25.7.4 *absumptis omnibus, quae mandi poterant* and 31.8.4. As TLL VIII 270.44–45 observes "*saepe subauditur notio quaedam ferinae aviditatis*", which was possibly the reason why Amm. chose it here.

quae probra aliaque his maiora dissimulatione iugi neglecta ita effrenatius exarserunt As was noted ad 21.10.7, *probrum* has the double meaning of ‘abuse’ (by far the most common in Amm.) and ‘fault’, which is required here. We can only wonder which other acts he considered even worse than drinking wine and eating cooked meat early in the morning, but the impression one gets from Amm. is that the Rome of his time was a sinful city. *Dissimulatio* has the meaning ‘overindulgence’, ‘negligence’, as in Tac. *Hist.* 4.18.1 *Hordeonius primos Civilis conatus per dissimulationem aluit*. The use of the adj. *iugis* here makes Lindenbrog’s suggestion to read *iugis pacis* in 27.5.1 even more attractive; see the note ad *quam ob causam*. Ampelius’ *dissimulatio* was obviously a fault he had in common with his predecessors. For *effrenatus* and *ardere* see the note ad 22.3.11 *quem in*.

4.5

ut nec Epimenides ille Cretensis, si fabularum ritu ab inferis excitatus redisset ad nostra, solus purgare sufficeret Romam Many legends and miracle stories circulated about Epimenides from Crete; he is said to have become extremely old and to have lived several lives; *FGrH* 457 T 1–11; D.L. 1.109–116. He is reported to have purified Athens early in the sixth century BC from pestilence, the so-called Kylon’s curse, with sacrificial rites; Arist. *Ath.* 1; Plato (*Lg.* 642d) dates Epimenides’ purification of Athens some ten years before the Persian wars. In Roman literature he is mentioned as the enactor of purifying operations in Cic. *Leg.* 2.28 and Apul. *Fl.* 15. See for Epimenides in general Parker, 1997.

For *nec = ne quidem* see Szantyr 450. *Fabula* and its derivatives *fabulosus* and *fabulari* refer to mythological tales; 14.11.26 *fabulosa vetustas*; 15.4.6 *ut fabulae ferunt*; 22.16.10 *insula Pharos, ubi Protea cum phocarum gregibus diversatum Homerus fabulatur*. When *fabula* refers to the theatre, a specific adjective is used, as in 14.6.20 *fabulae teatrales* and 28.1.4 *scaenici...fabulis*. For *ab inferis excitare* see the note ad 26.6.15 *excitum putares*. Amm. uses *sufficere* often in the sense of ‘to have enough power to’; see the note ad 25.2.6 *scintillas*.

tanta plerosque labes insanabilium flagitiorum oppressit This dramatic conclusion prepares the reader for the indictment of the Roman senatorial aristocracy and the plebs in the following digression on Rome. The choice of words is undoubtedly influenced by Sallust; cf. *Cat.* 36.5 *tanta vis morbi atque uti tabes plerosque civium animos invaserat* and *Jug.* 32.4 *tanta vis avaritiae animos eorum veluti tabes invaserat*. This is not to say that one should change *labes* to *tabes*, which is not found in Amm. For *labes* on the other hand cf. 27.9.4 *ad labes delictorum immanium*

consurgebant; 31.14.6 *vitiorum labes*; Aur. Vict. Caes. 15.1 *Hunc fere nulla vitiorum labes commaculavit*. TLL VII 2.771.34–66 offers many instances of *labes* with a gen. explicativus.

- 4.6 *Et primo nobilitatis, ut aliquotiens pro locorum copia fecimus, dein plebis digeremus errata incidentia veloci constringentes excessu* After giving his opinion on the moral decay of Rome, Amm. starts a detailed description of the vices of the nobility and the plebs to prove his point. The copula *et* is best taken as the equivalent of *et ideo, itaque*; TLL V 2.892.70–76. The words *ut aliquotiens...fecimus* imply that there must have been at least one digression on Rome in the lost books. What Amm. intends to criticize are *errata*, ‘frailties’, rather than punishable offences. For this use of *erratum* cf. 30.9.1 *cum gregariorum etiam levia puniret errata, potiorum ducum flagitia progredi sinebat in maius*. See also TLL V 2.813.38 sqq. “*de moribus* (i.q. *peccatum, culpa*)”, quoting Cic. *Clu.* 133 *Nullam quidem ob turpitudinem, nullum ob totius vitae non dicam vitium sed erratum*. Amm. deals with the *errata* of the nobility in sections 7–27 and with those of the common people in sections 28–34. The first excursus on Roman life and manners was structured in the same way: 14.6.8–24 about the vices of the Roman aristocracy and 14.6.25–26 about the vulgar pleasures of the Roman mob. The emphasis is clearly on the aristocracy, which Amm. had also castigated in 26.3.4–5, 27.3.14–15 and 27.11 (about Probus). For *nobilitas* referring to the senatorial class see the notes ad 21.10.7 *eminuit*, 28.1.10 *cumque multiformiter* and 28.1.14 *et ne*. The word *plebs* is used by Amm. to denote four large groups: the mob of Rome, the flock of a bishop, common soldiers and a foreign nation; see the note ad 20.6.6 *ad quam*.

In the prepositional phrase *locus* refers to a place in the narrative, *copia* to the opportunity offered by such a place to discuss a topic. Cf. Marié “dans la mesure où notre sujet nous en donnait l’occasion”. For this meaning of *locus* cf. 15.5.38 *cum interdum et vituperationi secus gestorum pateat locus* and for *copia* expressions like 25.5.1 *pro copia rerum et temporis*. Amm. uses *incidentia* ‘everything that presents itself/comes to mind’ quite often; see the note ad 21.2.3 *animo tranquillo*. For the promise of brevity implied in *veloci constringentes excessu* see the final section of the note ad § 1 *Diu multumque*.

- 4.7 *praenominum claritudine conspicui quidam, ut putant, in immensum semet extollunt, cum Reburri et Flavonii et Pagonii Gereonesque appellantur ac Dalii cum Tarraciis et Ferasiis* This problematic section has

given rise to lively discussions; see the literature quoted in Den Hengst, 2007, 160 n. 4 and 5, and add Hartke, 1951, 126–132; Marié n. 400; Salway, 1994, 140–141; Birley, 1995, 59–60; Mathisen, 2003, 14. The first problem is *praenominum*, because the following names are no *praenomina* in the strict sense of the word. The classical distinction between the *tria nomina*, however, tends to become blurred in texts from Late Antiquity; TLL X 2. 732.3–14; Kajanto, 1966, 66–70; Cameron, 1985, 73; Burgersdijk, 2010, 156–157. There is therefore no compelling reason for a drastic change of the text like *prae* (ceteris) *nominum* or *cognominum*, as proposed by Barnes 207. Rees, 1999, 150 aptly compared Juv. 8.30–32 *quis enim generosum dixerit hunc, qui/indignus genere et praeclaro nomine tantum/insignis?* Note the ironical parenthesis *ut putant*, which in combination with the hyperbolic phrase *in immensum semet extollunt* sets the satirical tone for this digression. The phrases are also combined in the first Roman digression, 14.6.10 *patrimonia sua in immensum extollunt cultorum, ut putant, feracium multiplicantes annuos fructus*.

In his highly satirical *epist.* 22.54 Jerome writes *nomina taceo, ne saturam putes*, and indeed names play an important role in satire. Horace saw the *auctor* of Roman verse satire Lucilius as totally dependent on Attic Old Comedy (S. 1.4.6 *hinc omnis pendet Lucilius*), of which ὀνομαστικὸν κωμῳδεῖν (‘deriding someone by name’) was the fundamental characteristic. Lucilius dared to attack important Roman contemporaries in this way. Horace himself was more careful and named only unimportant living people, apart from using type names and nicknames (see LaFleur, 1981, and the lists in Rudd, 1986, 54 and 57). Juvenal attacked people by name only if they were dead and buried. Amm. takes after Horace, using obscure names (with the exception of Tarracius) and in the case of plebeians (§28) nicknames.

Names, especially unfamiliar ones, are a notorious source of textual mistakes in V. For that reason the readings of Gelenius are of interest, since from Book 27 on he used the Hersfeldensis (M) from which the Fuldensis (V) was copied; Robinson, 1936. See the note ad 28.4.22 *quod ei*. Gelenius reads *Gerionesque* instead of *Gereonesque*, and *Tarraciis et Perrasiis aliisque*—undoubtedly correct endings following *cum*—instead of V’s *Tarracus Perrasusque*. Heraeus proposed to read *Flavonii* instead of *Flabunii* and *Ferasius* instead of *Perrasus*, probably because the names *Flavonius* and *Ferasius* (or rather *Ferrasius*) are on record (see below), whereas *Flabunius* and *Perrasius* are not. Like most modern historians Heraeus supposed that these were authentic names of 4th century

Roman families, be it in a garbled form. Birley, 1995, 59–60 made the most drastic attempt to restore the supposed original names by “desperate and palaeographically implausible methods”, as he himself admits, resulting in “*cum Probi et Faltonii et Ragonii Ceioniique appellantur Albini cum Pammachiis et Vitrasiiis*”. Apart from the fact that a copula before *Albini* is missing, this is an blatant example of misguided ingenuity. It disregards Gibbon’s prudent warning (1912⁶, IV 77 n. 36): “The minute diligence of antiquarians has not been able to verify these extraordinary names. I am of opinion that they were invented by the historian himself, who was afraid of any personal satire or application”. Amm. was not afraid to criticize individual Roman dignitaries, but provoking the wrath of the whole senatorial aristocracy with one sentence is something altogether different. Moreover, this is a satirical text. Being proud of belonging to the real aristocracy is not funny, bragging about being a real Reburus or Dalius is. And what about the series of plebeian names in § 28? Should they also be rewritten? Of course not. It seems best, therefore, not to try to tamper with names which were not meant to be correct, apart from obvious emendations like *Tarraciis* and *Perrasiis*. The problem is rather why there is one name of a well known Roman family in the series, which even produced an urban prefect, *Tarracius Bassus*, *postea urbi praefectus* (28.1.27, q.v.).

As for the other names, *Reburus* is a cognomen of Celtic origin, meaning “with bristling hair” (Kajanto, 1965, 236). The name is found on the Iberian peninsula; Tovar, 1977, 286. In Dacia a Reburus is attested in an inscription of a Roman military; Russu, 1977, 359. *PIR*¹ T 209 suggests that Titucius Roburru, city prefect in 283, is a Reburus; however, we can agree with Syme, 1968, 151 that the name Reburus was “never borne by anybody of consequence”. The name *Flavonius* (proposed by Heraeus) does indeed occur; Groag, 1909 refers to a senator named Flavonius Lollianus and in Pisidian Antioch a family of that name is attested; *PIR*² F 446ff.; Schulze, 1904, 168; Syme, 1968, 151. As to *Pagonii*, Hartke, 1951, 130 n. 4 suggests that the name was of Egyptian origin. Syme, 1968, 150 and Birley, 1995, 59, following an emendation by Heraeus, prefer the reading *Ragonii*, a rare gentilicium attested in Opitergium in north-eastern Italy; Schulze, 1904, 87 n. 2. A Ragonius Vincentius Celsus is known as *praefectus annonae* before 389; *ILS* 1272; *PLRE* I, Celsus 9. *Gereones* is only attested as the name of a soldier of the Theban legion stationed in Germany, who died a martyr’s death at the beginning of the fifth century; Von Petrikovits, 1978, 586–588. Seyfarth in n. 87 of his bilingual edition associates *Dalii* with *dalivus*, which is glossed as *supinus*

(‘languid’) or *stultus* in Fest. p. 68M *dalivum supinum ait esse Aurelius, Aelius stultum*. A Ferrasius is known from CIL 13.6646; Schulze, 1904, 356.

For *cum* in enumerations cf. Verg. A. 7.696–697 *hi Soractis habent arces Flavinaque arva/et Cimini cum monte lacum lucosque Capenos*; TLL IV 1377.42–59.

aliisque ita decens sonantibus originum insignibus multis There is a remarkable similarity with Hier. *epist.* 107.2 about a relative of the addressee Laeta, who had been urban prefect: *propinquus vester Gracchus, nobilitatem patriciam nomine sonans*. For pride in real or putative noble descent in Jerome see Feichtinger, 1997, 201 n. 7, and the note ad 28.1.30 *Opportunum est*. The unparalleled expression *originum insignia* is the equivalent of *nomina gentium*. For *insigne* “de appellatione” see TLL VII 1.1900.67–73. As TLL V 1.135.52 observes, *decens* is an adverbial accusative.

nonnullos fulgentes sericis indumentis ut ducendos ad mortem vel, ut sine diritate ominis loquamur In 14.6.9 Amm. speaks of the *ambitiosus vestium cultus* of Roman aristocrats. Their garments were richly embroidered and they made gestures with their arms *ut longiores fimbriae tunicaeque perspicue luceant varietate liciorum effigiatae in species animalium multiformes* (“to show off their long fringes and display the garments beneath, which are embroidered with various animal figures”, tr. Hamilton). Silk garments are often mentioned with scorn by Christian authors as a sign of reprehensible luxury: Cypr. *laps.* 30 *tu licet indumenta peregrina et vestes sericas induas, nuda es*; Hier. *vita Pauli* 17 *vos vestiti sericis, indumentum Christi perdidistis*. For silk in general see Ferguson, 1978.

Ducere ad mortem does not refer to burial, but to execution. Cf. 28.1.28 *cum duceretur ad mortem* (q.v.) and 29.1.44 *filiū miserabiliter ductum ad mortem*. Cf. Cic. *Cat.* 1.2 *ad mortem te, Catilina, duci iussu consulis iam pridem oportebat*; TLL V 1.2136.69–78. The point of similarity between the Roman aristocrats and people led to their execution lies, of course, not in their dress, but in the fact that both are followed by a host of people. Valesius pointed to an interesting parallel in Lucian. *Peregr.* 34 (Peregrinus on his way to his self-chosen death rejoiced at seeing a crowd of people following him) οὐκ εἰδὼς ὁ ἄθλιος ὅτι καὶ τοῖς ἐπὶ τὸν σταυρὸν ἀπαγομένοις ἢ ὑπὸ τοῦ δημίου ἔχομενοις πολλῷ πλείους ἔπονται (“not knowing, poor wretch, that men

on their way to the cross or in the grip of the executioner have many more at their heels”, tr. Harmon).

The prepositional phrase *sine diritate ominis* is, like *casuum diritate* in 26.1.3, a good example of a gen. inversus. For *diritas* see the end of the note ad 26.10.5 *crudelem* and cf. Suet. *Nero* 8 *cum ob totius diei diritatem non aliud auspicandi tempus accommodatius videretur*. As Hertz, 1874, 287 pointed out, Gel. 4.9.10 *sed dies “religiosi” dicti, quos ex contraria causa, propter ominis diritatem, relinquimus* provided the model for this phrase. See for similar ‘reversed’ allusions Kelly 198–200.

praegresso exercitu arma cogentes manipulatim concitato fragore sequitur multitudo servorum The alternative comparison, introduced by *vel...loquamur* is far from clear. If we take *arma cogentes* (‘bringing up the rear’) as the object of *sequitur*, as all editors do, a contradiction arises, because the nobles, who are compared to army commanders, must be at the head of their troops, not at the rear. For that reason Petschenig, 1892, 684 conjectured *ut progressos* (V reads *progressae*) *exercitu armato duces*, in which, however, *armato* seems pointless, while the expression *arma cogere* instead of *agmen cogere*, which is found only in Amm. (16.2.10 *legiones duas arma cogentes*; 25.3.2 *invasa subito terga pone versus arma cogentium*) is lost. The same objections can be raised against Marié’s proposed reading *praegressos exercitui armato duces*, apart from the fact that *praegredi* is construed with an accusative, as in 26.7.2 *Hos omnes Sophronius vivacissimo cursu praegressus*. An alternative might be to take *arma cogentes...sequitur multitudo servorum* as a constructio ad sensum, as in 14.6.17 *multitudo spadonum a senibus in pueros desinens obluridi distortaque liniamentorum compage deformes* or 17.12.10 *multitudo...omnes clipeis telisque proiectis manus precibus dederunt*. For many more examples see TLL VIII 1601.67–1602.11. That would result in *ut* (not strictly necessary) *progressos exercitu arma cogentes*, ‘like generals leading the way before the army, they are followed by a host of slaves bringing up the rear’. For the use of the abl. with *progredi* TLL X 2.1770.56–58 gives the following examples: *Caes. Gal.* 5.9.3 (*hostes*) *equitatu atque essedis ad flumen progressi*; *Sil.* 14.179–180 *Marcellus victricia signa, quieto/agmine progrediens, Ephyraea ad moenia vertit*. The details *manipulatim* ‘in battle order’, for which cf. *Liv.* 23.42.10 *iam ne manipulatim quidem sed latronum modo percursant totis finibus nostris*, and *concitato fragore* (“amid noise and confusion”, tr. Rolfe) serve to heighten the military character of the comparison. In this respect it closely resembles the

one in 14.6.17 between a throng of slaves following their masters and the army following its commander: *velut tessera data castrensi iuxta vehiculi frontem omne textrinum* (“all those employed in weaving”, tr. Hamilton) *incedit*.

tales ubi comitantibus singulos quinquaginta ministris tholos introierint balnearum, “ubi ubi sunt nostrae?” minaciter clamant 4.9 The scene is loosely connected to the preceding one by *tales*, as it concerns the same type of people, who dress extravagantly and are followed by a throng of slaves. It is again reminiscent of Lucian, who in his *Nigrinus* describes the intimidating arrogance of Roman grandes in the baths: 13 ἀλλ’ ἐπεὶ κὰν τοῖς γυμνασίοις καὶ λουτροῖς ὀχληρὸς ἦν θλίβων τοῖς οἰκέταις καὶ στενοχωρῶν τοὺς ἀπαντῶντας (“But when he made himself a nuisance at the athletic clubs and the baths by jostling and crowding passers with his retinue”, tr. Harmon) and 34 Περὶ δὲ τῶν ἐν τοῖς βαλανείοις δρωμένων πολλὰ μὲν διεξήει, τὸ πλῆθος τῶν ἐπομένων τὰς ὕβρεις κτλ. (“He had much to say about their behaviour in the baths—the number of their attendants, their offensive actions”, tr. Harmon). The vaulted rooms in the bathhouse are in all probability the sweating rooms or *sudatoria*. Cf. Alciph. 3.40.2 (in the bitter cold) ἐβουλευσάμην οὖν Ὀδύσειον βούλευμα δραμεῖν εἰς τὰς θόλους τῶν βαλανείων (‘I devised a plan worthy of Ulysses—to run to the vapour rooms of the public baths’) and Claud. *carm. min.* 26.62 about the hot springs of Aponus *adflatosque vago temperat igne tholos* (‘and warms the arches, which are blown upon by its hot streams’). *Introierint* is an instance of the *coni. iterativus*, which is found constantly in these vignettes.

V’s *nostru* was emended to *nostrī* by Haupt; Clark conjectured *nostrae*. Both make sense in a satirical context: *nostrī* bringing out the class consciousness of these aristocrats, *nostrae* their lechery. In view of the sequel the latter is certainly preferable. The geminatio *ubi ubi* emphasizes the urgency with which the gentlemen demand their usual entertainment. Sabbah, 1994, 322 supposed that the ladies in question belonged to the staff of the bathhouse, because mixed bathing had already been forbidden by the emperor Marcus and was inconceivable “à une époque fortement christianisée”. This is far from certain, as is shown by Merten, 1983, 90–97 and Fagan, 1999, 26–29, who quote a considerable number of texts of pagan and Christian authors from which it appears that mixed bathing did not come to an end in the second century AD.

Minaciter does not necessarily mean that the men utter threats, but rather that their behaviour is arrogant and intimidating. For this weakened sense of *minax* cf. 20.11.21 (*acies*) *conisque galearum minacius nutans*.

si apparuisse subito ignotam compererint meretricem aut oppidanae quondam prostibulum plebis vel meritorii corporis veterem lupam, certatim concurrunt A conjunction before *compererint* is necessary and Gelenius' *si* is unobjectionable. There are no parallels for the postposition *apparuisse si* proposed by Brakman. *Meretrix* "a paid woman", is the common word for a prostitute; a *prostibulum*, "one who stands in front of the *stabulum* (inn)", was a low-class prostitute, as was a *lupa*. On the great variety of Latin words for prostitutes, see Adams, 1983. Apart from the *fora*, theatre and circus, temples and colonnades, the public baths were places where prostitutes were picked up and where they satisfied their customers; Stumpp, 2001, 128–136.

For X *aut* Y *vel* Z cf. 31.13.4 *succiso poplite aut abscisa ferro dextera vel confosso latere*. The alliteration *certatim concurrunt* adds to the ridicule.

palpantesque advenam deformitate magna blanditiarum ita extollunt ut Semiramin Parthi vel Cleopatras Aegyptus aut Artemisiam Cares vel Zenobiam Palmyreni As Van de Wiel, 1989, 197 observes, *palpari* is deliberately ambiguous. The erotical context of a meeting with a prostitute suggests the literal meaning 'to caress', whereas the sequel suggests 'to flatter'. *Deformitate magna blanditiarum* is an example of the gen. inversus. For *deformis* ('shameful') and its derivatives cf. 22.14.4 *adulando deformiter* (q.v.). In the note ad 27.12.6 it is argued that *muliebria palpamenta* means 'womanish cajolery'. That would imply that the behaviour of the noblemen is doubly shameful: they treat a prostitute as if she were a queen, and do so in an effeminate manner.

The four queens are mentioned in obvious contrast to the prostitute. HA T 27.1 refers to Semiramis, Cleopatra and Zenobia as examples of manly behaviour: *Zenobia... eosdemque* (her sons) *adhibens contionibus, quas illa viriliter frequentavit, Didonem et Samiramidem et Cleopatram ... inter cetera praedicans*. In the same text (30.1–12) Zenobia is described as an excellent ruler, better than many men, and a model of chastity. The other women are also known for their leadership qualities. For Semiramis, who had been mentioned by Amm. in his first excursus on Rome (14.6.17, q.v.), see the notes ad 23.6.22 *nomen Nini* and 23.6.23 *Babylon*. Amm. uses *Parthi* as a generic term for designating Persians; see the note

ad 23.3.2 *Parthos*. Apparently, he also considered Semiramis as Persian. Although there have been several Ptolemaic queens of that name, Amm. in all likelihood refers to the last of them, Cleopatra VII Philopator (69–30 BC), consort of both Julius Caesar and Marc Antony, and mentioned by Amm. in 22.16.9 (q.v.) and 22.16.24. The plural “typisiert” (Szantyr 19): ‘women like Cleopatra.’ The modern literature on Cleopatra is vast and not always of a high scholarly standard but see e.g. Kleiner, 2005 and Tyldesley, 2008. Artemisia has not been mentioned before by Amm.; she was wife and sister of Mausolus and after his death became queen of the satrapal kingdom of Greater Caria in the years 353–351 BC; D.S. 16.36.2, 45.7. She is known to posterity mainly because of her extraordinary grief at the death of her husband as well as for the way in which she commemorated him: she mixed his ashes into her drinks; to perpetuate his memory she erected the famous mausoleum, which became one of the wonders of the world; she also instituted a panegyric contest to honour Mausolus; Cic. *Tusc.* 3.31; Str. 14.2.16 (656C); Gel. 10.18.5; V. Max. 4.6 ext. 1; Hornblower, 1982, 40–41, 129, 238, 258ff. This is the first and only time that Amm. mentions Zenobia, but he had undoubtedly discussed her and her revolt against Rome in one of the lost books. She was the wife of Odaenathus of Palmyra; when he died in 267 she became regent for her young son Vaballathus (Zos. 1.39.2; HA A 38.1). In 270 Zenobia made use of the political instability in the empire and expanded her realm beyond Syria to Egypt as well as to a large part of Asia Minor. In 272 she was besieged at Palmyra by Aurelian and defeated; Zos. 1.54.2–55.1; HA A 26–28. She probably was a prisoner of war in Aurelian’s triumph and spent the rest of her life in Rome where she died a natural death; HA T 27.2 mentions that Zenobia’s descendants were still part of the Roman nobility. See for her e.g. Stoneman, 1992; Hartmann, 2001.

et haec admittunt hi, quorum apud maiores censoria nota senator afflictus est ausus, dum adhuc non deceret, praesente communi filia coniugem osculari Like all Roman satirists Amm. contrasts the degenerate present with the idealized past. Cf. in the first Roman digression the *exempla* of Cato the Censor (14.6.8) and Valerius Publicola (14.6.11). The story is probably based on Plut. *Cat. Ma.* 17.7 where Cato is said to have removed a certain Manilius from the senate *ὅτι τὴν αὐτοῦ γυναῖκα μεθ’ ἡμέραν ὁρώσης τῆς θυγατρὸς κατεφίλησεν* (“because he embraced his wife in open day before the eyes of his daughter”, tr. Perrin); cf. also Plut. *Mor.* 139 ε ‘Ὁ Κάτων ἐξέβαλε τῆς βουλῆς τὸν φιλήσαντα τὴν ἑαυτοῦ γυναῖκα τῆς θυγατρὸς παρούσης’ (‘Cato expelled a man from the senate

who had kissed his own wife in front of his daughter'). Since the *nobiles* themselves are guilty of these shameful acts, *admittunt* does not mean 'to permit' ("billigen", as Seyfarth takes it), but 'to commit'.

In this sentence *dum* might be interpreted as 'at a time when'. In that case *dum* + *coni.* would not be exceptional (see the note ad 20.6.1 *Haec dum*). Still, Ehrismann 48–49 understandably wonders whether we should read *cum*, since the conjunction may well have adversative force here, 'he dared to kiss her, although it was improper at the time'. The same applies to 29.1.18 *nocentes innocentesque...perurgebat, ut, dum adhuc dubitaretur de crimine, imperatore non dubitante de poena damnatos se quidam prius discerent quam suspectos*.

- 4.10** *Ex his quidam, cum salutari pectoribus oppóitis cóeperunt, osculanda capita in modum taurorum minacium obliquantes adulatoribus offerunt genua savianda vel manus* This "cartoon", as Matthews 416 aptly calls this type of miniature sketch, is again strongly reminiscent of a passage in Lucian about a Greek philosopher living in Rome who describes the Roman aristocracy: *Nigr.* 21 οἱ δὲ σεμνότεροι καὶ προσκυνεῖσθαι περιμένοντες...δεῖ προσελθόντα καὶ ὑποκύναντα...τὸ στήθος ἢ τὴν δεξιὰν καταφιλεῖν, ζηλωτὸν καὶ περιβλεπτον τοῖς μηδὲ τούτου τυγχάνουσιν ("some, lordlier than the rest, even require obeisance to be made to them...you must go up, bow your head...and kiss the man's breast or his hand, while those who are denied even this privilege envy and admire you!", tr. Harmon); Den Hengst, 2007, 173–176.

The aristocrats obviously considered themselves superior to citizens who did not belong to their class as well as to *peregrini*, and turned their foreheads away like threatening bulls in order to avoid being kissed on the cheek; instead they offered their knees and hands. The Romans were sensitive to this kind of behaviour; Sen. *Ep.* 118.3 relates that candidates in election time were happy to be kissed on the hand by anybody, but radically changed their behaviour when they were elected: (*cum*) *alius eorum manus osculis conterat, quibus designatus contingendam manum negaturus est*. In another passage (*Ep.* 47.13) the same author relates that the elite degraded itself by kissing the hands of the slaves of others who apparently were more powerful: *Hos ego eosdem deprehendam alienorum servorum osculantes manum*; cf. Plin. *Pan.* 71.1 *iam quo adsensu senatus, quo gaudio exceptum est, cum candidatis ut quemque nominaveras osculo occurreres*. HA Max. 28.7 tells us about the younger Maximinus *in salutationibus superbissimus erat et manum porrigebat et genua sibi osculari patiebatur, nonnumquam etiam pedes; quod numquam passus est senior Maximinus*,

qui dicebat: "Di prohibeant, ut quisquam ingenuorum in genua mea osculum figat". On the kiss and kissing, see the notes ad 22.7.3 *exosculatum* and 27.6.11 *corona*. See Krause, 1987, 21–23, Hirschmann, 2001 and Goldbeck, 2010 for the *salutatio*, "the early morning greeting of patron by client—familiar from authors from Cicero through Seneca, Martial, and Juvenal to Ammianus and beyond" (Garnsey, 2010, 35). "We can note that Ammianus's account of the *salutatio* contains good detail and is laced with technical terms. He had clearly observed the event, and may even have taken part in it, though evidently with no great pleasure" (Garnsey p. 48).

The avoidance of being kissed, which is a demonstration of a lack of social finesse, stands in glaring contrast with the greeting by the noblemen of the prostitute mentioned in the previous section. It has been suggested that descriptions like these are based on Amm.'s own experience; e.g. Thompson, 1941–1942. However, Kelly 135 is probably right to be sceptical on this point. Although it is not impossible that the present passage is an echo of what Amm. himself had experienced—*Cod. Theod.* 6.24.4 confirming the right of *protectores* and *domestici* to be kissed as equals on greeting *vicarii* may have been on the author's mind—, it may also very well be a reflection of a literary tradition, more in particular of Lucian's *Nigrinus*, quoted above.

For *coepi/coeptus sum* with inf. praes. pass. see the note ad 21.12.15 *obsideri*. The verb has its full force here: as soon as the nobleman sees that he is about to be kissed, he turns his head away. The gerundive *osculanda*, which is, as so often, the equivalent of a ptc. fut. pass. (see the note ad 27.12.17 *Quae imperator*) is in keeping with this. Therefore Hamilton's "though that is the natural place for a kiss" misses the mark. Harmon 211 discusses the clausula *oppositis coeperunt*. He mentions a few forms in *-erunt* with a short penultimate—inter alia *processerunt longius* in § 18—which he calls legitimate, though exceptional. In the present passage *coeperint* with an iterative subjunctive, as suggested by Novák, 1896, 63–64, is tempting.

For *obliquare* cf. Sen. *Thy.* 160 (Tantalus looks away from the food before him) *obliquatque oculos oraue comprimit*; Ov. *Met.* 7.411–412 (Theseus drags Cerberus from the underworld) *restantem contraque diem radiosque micantes/obliquantem oculos*. As a sign of arrogance it is used again in 28.4.23 *Alius cum dignitate licet mediocri cervice tumida gradiens notos antea obliquato contuetur aspectu, ut post captas Syracusas existimes reverti Marcellum*. The threatening bull-like glance calls Socrates to mind, Pl. *Phd.* 117 b ὥσπερ εἰώθει ταυροῦ ὑποβλέψας

πρὸς τὸν ἄνθρωπον (“He just fixed the man with his well known glare”, tr. Hackforth) and Aeschylus, *Ar. Ra.* 804 Ἐβλεψε γοῦν ταυρηδὸν ἐγκύπας κάτω (“He glared, at least, like a bull with lowered head”, tr. Stanford).

id illis sufficere ad beate vivendum existimantes et abundare omni cultu humanitatis peregrinum putantes, cuius forte etiam gratia sunt obligati, interrogatum, quibus thermis utatur aut aquis aut ad quam successerit domum Note the satirical exaggeration in *sufficere ad beate vivendum* and *abundare omni cultu humanitatis*. The pronoun *id* refers back to the permission to kiss the aristocrat. The two phrases *id illis* (sc. *adulatoribus*) *sufficere* and *abundare...peregrinum...interrogatum* are ordered chiastically. *Peregrinum* is the subject of *abundare* and the participle *interrogatum* is the equivalent of *si interrogatus sit*, so the meaning is: “they believe that a stranger is given an abundance of all the duties of courtesy...if he is asked” (tr. Rolfe). The phrase is misunderstood by Seager 20, who, writing about *humanitas*, seems to take *peregrinum* as an adjective (“Ammianus castigates those who are so arrogant as to think it unroman”). For *humanitas* see the note ad 28.4.1 *exorsus*. *Cultus humanitatis* is an example of the gen. identitatis and equivalent to *humaniore cultu* in 24.1.9. The small detail that the Roman aristocrat who treats the *peregrinus* so arrogantly may actually be in the latter’s debt, has the ring of a personal grievance. The expression *succedere ad domum*, which must mean ‘to move into a house’, is without parallel.

- 4.11 *Et cum ita graves sint et cultores virtutum, ut putant, si venturos undelibet equos aut aurigas quendam didicerint nuntiasse* As in 20.11.5 *quod dictum ita amarum* (q.v.), *ita* refers to words in the preceding sentence, viz. *cultu humanitatis*. The notion that Rome owed its greatness to the respect of its habitants for the virtues is a cherished tenet found e.g. in Liv. 4.3.13 *ergo dum nullum fastiditur genus, in quo eniteret virtus, crevit imperium Romanum* and Gel. 20.1.39 *Omnibus quidem virtutum generibus exercendis colendisque populus Romanus e parva origine ad tantae amplitudinis instar emicuit*. In 16.10.13, the description of Constantius’ *adventus* in the capital, Amm. called Rome *imperii virtutumque omnium larem*, but in his first Roman digression he had already hinted that this was a thing of the past: 14.6.21 *cum esset aliquando virtutum omnium domicilium*. Amm.’s parenthesis *ut putant*, for which cf. the note ad §7 *praenominum*, may well have been suggested by the passage in *Nigr.* 29, where Lucian ridicules the ἱππομανία of the Roman elite: πολλή γὰρ

ὥς ἀληθῶς ἡ ἱππομανία καὶ πολλῶν ἤδη σπουδαίων εἶναι δοκούντων ἐπείληπται (“The craze for horses is really great, you know, and men with a name for earnestness have caught it in great numbers”, tr. Harmon).

The nobility, instead of being concerned with high culture, had disgraced itself by indulging in the passions of the common people about whom Amm. in 14.6.25 and 28.4.30–31 reports that horse racing was one of its main enthusiasms.

A similar nervous expectation is described, be it without criticism, in Symm. *rel.* 6.3 *expectantur cotidie nuntii, qui propinquare urbi munera promissa confirment; aurigarum et equorum fama colligitur* (“messengers are awaited to confirm that these promised shows [by the emperors] will soon arrive at the city; reports on charioteers and on horses are being collected”, tr. Barrow). See Roda’s commentary, who points to comparable passages in Christian authors, such as Ambr. *Nab.* 3.54 *Quid te iactas de nobilitatis prosapia? Soletis et canum vestrorum origines sicut divitum recensere, soletis et equorum vestrorum nobilitatem sicut consulum praedicare.*

*ita sollerter imminent eidem et percunctantur, ut Tyndaridas fratres eorum suspexere maiores, cum priscis illis victoriis indicatis gaudio cuncta com-
plessent* The first four words are Heraeus’ conjecture for V’s *italos ter-
himinent vident*. Whereas *imminere* ‘to lean or bend over’ (OLD 2) suits the context well, *sollerter* is less convincing. The only other instance of *sollerter* in the *Res Gestae* is 16.11.8 (*vias*) *concaedibus clausere sollerter arboribus immensi roboris caesis*, where it has its normal meaning ‘shrewdly’. Callu’s *sollicite* (‘anxiously’), printed by Marié, is very attractive, since the adverb is regularly used with verbs denoting inquiry: 14.3.1 *explorabat nostra sollicite, si repperisset usquam locum, vi subita perrup-
turus*; 18.3.1 *superque hoc ei prodigiorum gnaros sollicite consulenti*. The Tyndarids Castor and Pollux are sons of Tyndareus and Leda, but had been begotten by Zeus. *Suspexere*, ‘looked up to’, is in humorous contrast to *imminent* (if that reading is correct), since the divine brothers were on their white horses when they announced the victory over Perseus in the battle of Pydna, according to V. Max. 1.8.1 *Item bello Macedonico P. Vatinius Reatinae praefecturae vir noctu urbem petens existimavit duos iuvenes excellentis formae albis equis residentes obvios sibi factos nuntiare die, qui praeterierat, Persen regem a Paulo captum*. For an overview of the various versions of the legend see Pease ad Cic. *N.D.* 2.6. The plural *victoriis* is correct, since the Tyndarids were also said to have reported the

victories over the Latini at Lake Regillus in 499 (Cic. *Tusc.* 1.28) and the Cimbri (Flor. *Epit.* 1.38.20). *Priscus* refers to the distant past; see the note ad 20.6.9 *temporibus*.

- 4.12 *Horum domus otiosi quidam garruli frequentant variis assentandi figmentis ad singula ulterioris fortunae verba plaudentes parasitorum in comoediis facetias affectando* As Valesius noted, Amm. follows Cicero here: *Amic.* 98 *nec parasitorum in comoediis adsentatio faceta nobis videretur, nisi essent milites gloriosi*. The periphrasis *assentandi figmentis* emphasizes the insincerity of these flatteries. For the noun see the note ad 22.9.7 *figmento*, for *affectare* the note ad 21.16.4 *doctrinarum*. *Ulterioris* is a conjecture by Haupt, 1876, 391. It is admittedly closer to V's *uiterieris* than Gelenius' *altioris*, but there is no parallel for *ulterior fortuna* in Latin literature, whereas in 29.2.9 Amm. writes *ad cupidinem altioris fortunae*, so that Gelenius' reading seems preferable.

The scene as a whole recalls Amm.'s description of Constantius' court in 21.16.16 *uxoribus et spadonum gracilentis vocibus et palatinis quibusdam nimium quantum addictus ad singula eius verba plaudentibus et, quid ille aiat aut neget, ut assentiri possint, observantibus*.

ut enim illi sufflant milites gloriosos obsidiones et pugnas adversum milia hostium isdem ut heroicis aemulis assignantes In Roman comedy the parasite and the *miles gloriosus* constitute a regular combination. Here Amm. alludes specifically to Plautus' *Miles*. The passage is discussed by Salemmé, 1989, 32–33 and Kelly 207–209, who point to *Mil.* 46, where the parasite Artotrogus figures out that a total of 7000 victims has been slain by the braggart Pyrgopolynices (PY. *Quanta istaec hominum summast? AR. Septem milia*) and to lines 61 and 1054, in which the soldier is associated with Achilles. Roman comedy was also the source of inspiration in 14.6.16 *ne Sannione quidem, ut ait comicus* (Ter. *Eu.* 780), *domi relicto* and 28.4.27 *soccus* (or rather *soccatus*) *ut Micionas videbis et Lachetas* (Micio and Laches figure in Ter. *Ad.* and *Hec.* respectively). For another quotation from Plautus see the note ad 28.4.34 *humum summis*.

Illi refers to *parasitorum*, *hi* in the next sentence to *otiosi quidam garruli*. Amm. probably deviates from the rule that *hic* refers to the last mentioned person(s), because comedy belongs to the past, whereas the *garruli* are contemporaries. There is a note on *sufflare* ad 22.14.2 *ira*. The preposition *adversum* is conjectured by Petschenig, 1892, 526 on the basis of V's *virum* between *pugnas* and *milia*. It is unique in Amm., but the fact that it occurs frequently in comedy may have induced the author

to use it in this context. The combination with *pugna* is found also in Tac. *Ann.* 3.21.4 *prosperam adversum Numidas pugnam facit* and Gel. 12.5.2 *non dolorem magis indicantes quam pugnam adversum dolorem*. The adj. *heroicis* is the equivalent of a gen. obiectivus *heroum*.

ita hi quoque columnarum constructiones alta fronte suspensas mirando atque parietes lapidum circumspectis coloribus nitidos ultra mortalitatem nobiles viros extollunt Except in stylistic discussions about the arrangement of words (*verborum constructio*), the noun *constructio* is very rare. Amm. has it only once more, 19.5.2 *in operum constructione* ('in building defensive works'); here it refers to column drums piled on top of each other. For *suspendere* cf. Verg. *A.* 8.190 *iam primum saxis suspensam hanc aspice rupem*, where Fordyce notes that *suspendere* and its derivatives are the t.t. for vaulting. Cf. also Sen. *Ep.* 41.3 *si quis specus saxis penitus ex-sis montem suspenderit* ("if a cave, made by the deep crumbling of the rocks, holds up a mountain on its arch", tr. Gummere). Strictly speaking, the columns themselves are not 'hanging' or 'looming', but rather the capitals or the architrave. For that reason *alta fronte* is best taken as an abl. of respect, the phrase as a whole being roughly equivalent to *fastigium altis columnis suspensum*.

Plin. *Nat.* 36.6 criticizes the use of huge marble columns in private buildings *etiamne tacuerunt* (leges), *maximas earum* (columnarum) *atque adeo duodequadragesimum pedum Lucullei marmoris in atrio Scauri conlocari?* ("Were not the laws silent also when the largest of these columns, which were each fully 38 feet long and of Lucullan marble, were placed in the hall of Scaurus' house?", tr. Eichholz).

The 'walls gleaming with marble plates in striking colours' are faced with *opus sectile*, as Valesius notes, a technique where multicoloured marble platelets are laid in geometric or figurative patterns, in floors or on walls. It is described by the Elder Seneca—who condemns this adornment as a manifestation of *demens luxuria*—in *Con.* 2.1.12 *varius ille secatur lapis, ut tenui fronte parietem tegat*; cf. also Sen. *Ep.* 115.9 *parietes tenui marmore inductos* and Luc. 10.114–115 *nec summis crustata domus sectisque nitebat/marmoribus* ("nor was the glittering palace veneered with marble on the surface only and in slabs", tr. Haskins). As Marié observes in her instructive n. 410, the technique was en vogue in the fourth century.

Circumspectus in the sense of 'ostentatious' has often been regarded as a calque of περιβλεπτος and thus as a grecism, but at the end of the note ad 27.3.14 *cum id* it is argued that Amm. borrowed it from Gellius.

For *ultra mortalitatem* and similar expressions see the notes ad 22.9.1 *ultra* and 26.6.8 *et onerosior*. As Lucian observes in *Nigr.* 23, the flatterers are responsible for the pride of the aristocrats: ἐγὼ μέντοι γε πολὺ τῶν κολακευομένων ἔξωλεστέρους τοὺς κόλακας ὑπέιληφα, καὶ σχεδὸν αὐτοὺς ἐκείνους καθίστασθαι τῆς ὑπερηφανίας αἰτίους (“For my part I hold that the toadies are far worse than the men they toady to, and that they alone are to blame for the arrogance of the others”, tr. Harmon).

- 4.13** *poscuntur etiam in conviviis aliquotiens trutinae, ut appositi pisces et volucres ponderentur et glires* Both sea- and river fish in a wide variety were a regular item on the Roman menu; the same goes for poultry; André, 1961, 97–116 (fish), 130–136 (poultry). For fish cf. Hor. S. 2. 2.33–34 *laudas, insane, trilibrem/mullum* and Sen. Ep. 95.42 about a mullet weighing four and a half pounds which was offered to Tiberius. The reader, however, is reminded first and foremost of Juvenal’s fourth satire about a gigantic turbot sent to the emperor Domitian. *Apponere* is the usual verb for dishing up, cf. 16.5.1 *ambitiosam mensam fortuna, parcam virtus apponit*; 30.1.20 *cumque apponerentur exquisitae cuppediae*. In Plin. Nat. 36.4 *glires*, ‘dormice’, are mentioned as luxurious delicacies, in the same breath as the costly marble columns denounced in the preceding section: *exstant censoriae leges Claudianae in cenis glires et alia dictu minora adponi vetantes; marmora invehī, maria huius rei causa transiri quae vetaret, lex nulla lata est*. One gets the feeling that Amm. had been browsing through Pliny’s *Natural History* when he prepared this digression. Other *censoriae leges* against the serving of *glires* for dinner are recorded in Plin. Nat. 8.223 *glires, quos censoriae leges princepsque M. Scaurus in consulatu non alio modo cenis ademere quam conchylia aut ex alio orbe* (from the end of the world) *convectas aves*. More details in André, 1961, 122–123. For a recipe consult Apic. 8.9.

quorum magnitudo saepius replicata non sine taedio praesentium ut antehac inusitata laudatur assidue Adrien de Valois conjectured *replicata* for V’s *licata* (after a lacuna of two letters). For *replicare*, here in its usual meaning ‘to repeat’, see the note ad 20.9.6 *replicatoque*; it tallies perfectly with *non sine taedio praesentium*. Since the combination of *saepius* and *replicare* occurs four more times in the *Res Gestae* (14.11.11, 16.12.34, 17.5.4, 21.2.2), it is overly subtle to interpret it as an “intertextual marker”, as Kelly 185 suggests. For *antehac inusitata*, ‘unheard of’, found only in Amm., cf. 17.4.13 *navis amplitudinis antehac inusitatae*; 22.12.7 *cum impensarum amplitudine antehac inusitata*.

maxime, cum haec eadem numerantes notarii triginta prope assistant cum thecis et pugillaribus tabulis, ut deesse solus magister ludi litterarii videretur The wonderful scene of the thirty secretaries resembling schoolboys is loosely attached to the description of the *convivium* by *maxime, cum*. As Seyfarth observes in n. 95 of his bilingual edition, the scene was probably inspired by Pl. *Mil.* 38 *tabellas vis rogare. habeo, et stilum*, where the parasite takes writing tablets and stylus in hand to add up the victims of his master. It is a striking example of grotesque exaggeration and vividness of presentation, both characteristic of satirical writing. More examples in Den Hengst, 2007, 168–169.

Haec eadem must refer to the weight of fish, fowl and dormice. The *theca* is a pen case and *pugillares tabulae* are wax tablets serving as notebooks. The adj. is extremely rare; TLL X 2.2534.67–73 quotes Prud. *perist.* 9.15 (styles), *unde pugillares soliti percurrere ceras* (“with which they (pupils) used to run over their wax tablets”, tr. Thompson). The standard equipment of schoolboys obviously triggered the comparison between the secretaries and a class in primary school. The *coni. imperf. videretur* instead of *videatur* at the end of a section which is entirely in the present tense cannot be explained. Ehrismann 39 notes the problem without suggesting a solution. The mistake may have originated before Gelenius corrected the reading *ponerentur* in V to *ponderentur*. The consecutive clause is strikingly similar to 28.1.46 *ut taurus ei solus deesse videretur* (q.v.).

Quidam detestantes ut venena doctrinas Iuvenalem et Marium Maximum curatiore studio legunt, nulla volumina praeter haec in profundo otio contrectantes, quam ob causam non iudicium est nostri Amm. had already criticized the indifference of the *nobiles* to erudition in the first Roman digression, 14.6.15 *homines enim eruditos et sobrios ut infaustos et inutiles vitant* and 14.6.18 with the unforgettable phrase *bibliothecis sepulchrorum ritu in perpetuum clausis*. Here he goes one better, using the strong verb *detestari* to express their loathing for serious studies. The only authors these people deign to study are Juvenal and Marius Maximus, which does not reflect well on either of them.

4.14

The mention of Juvenal has caused surprise among students of Amm., since especially in his Roman digressions the historian denounces many aspects of Roman society which had also been castigated by the satirist. For a summary of their views see Rees, 1999, 151–154. This has even led Salemme, 1989, 105–110 to revive a suggestion by the 17th century scholar Thomas Reinesius to substitute *Iuventium Martialem* for

Iuvenalem. This Iuuentius Martialis is known only from Sidon. *epist.* 9.14.7 *quis opera Suetonii, quis Iuventii Martialis historiam...fando adaequaverit?* Reinesius went on to identify him with the biographer Gargilius Martialis, mentioned in HA *Pr.* 2.6 among the models of the author of the HA: *Marium Maximum, Suetonium Tranquillum, Fabium Marcellinum, Gargilium Martialem, Iulium Capitolinum, Aelium Lampridium ceterosque* and in AS 37.9 *Gargilius eius temporis scriptor*. This is all very learned and ingenious, and one certainly cannot put it beyond the scribe of V simply to change an obscure name like *Iuuentium Martialem* into *Iuvenalem*, but an alteration of the text as drastic as this is only permitted if the transmitted reading is truly inexplicable. This is not the case here. Different reasons have been suggested for the dismissive remark on Juvenal. Thompson 14–15 suggested that Amm. as a citizen of Antioch had taken offence at Juvenal's notorious line: *iam pridem Syrus in Tiberim defluxit Orontes* (3.375); Smith, 1994 saw the explanation in the virulent anti-Greek sentiment in Juvenal's Third Satire; according to Rees, 1999, 152 Amm. felt hurt by Juvenal's disparaging remark on historians in 7.105 *sed genus ignavum, quod lecto gaudet et umbra* ("Well, they are a lazy lot, too fond of their couch in the shade", tr. Rudd). However, one would do better to look for the answer in the immediate context of the remark. Amm. chides the aristocrats for their lack of interest in *doctrina*, 'Bildung', or, as he called it in 14.6.18, *studiorum seriis cultibus*. They should have taken Socrates as their model, who on the eve of death tried to acquire new knowledge (§15). Juvenal may be a brilliant poet, but he cannot possibly be called instructive or edifying. On the contrary, he presents the reader with a catalogue of vices and an unequalled degree of scurrility, which is why Amm. disapproves of him.

The same applies *mutatis mutandis* to Marius Maximus. Apart from the passage under discussion and a scholion on Juv. 4.53 with information from Marius Maximus on informers under Domitian, all our knowledge of Marius Maximus stems from the HA, in which he is mentioned thirty times as a biographical source for the lives of Hadrian up to and including that of Caracalla; see Barbieri, 1954. He is probably identical with L. Marius Maximus Perpetuus Aurelianus, prefect of Rome in 217/218 (*PIR*² M 308). For two sharply divergent views on Marius Maximus see Birley, 1997 and Paschoud, 1999. In the HA Q 1.2 he is characterized as *homo omnium verbosissimus, qui et mythistoricis se voluminibus implicavit*, ("the wordiest man of all, who involved himself in pseudo-historical works", tr. Magie). What is meant by *mythistoria* is explained

in HA *Gd.* 21.3 and Q 6.3–4, quoted in full in the note ad 26.1.1 *similia plurima*, viz. petty and spicy details, unworthy of the attention of a serious historian, whose task it is to *discurrere per negotiorum celsitudines* (26.1.1). We get an idea of the sort of information provided by Marius Maximus in HA C 15.4 *habuit praeterea morem, ut omnia quae turpiter, quae impure, quae crudeliter, quae gladiatorie, quae lenonie faceret, actis urbis indi iuberet, ut Marii Maximi scripta testantur* and after a section on Heliogabalus' shameless behaviour we read *Hel.* 11.6 *horum pleraque Marius Maximus dicit in vita ipsius Heliogabali*. Evidently Marius Maximus is not the author to consult if one wants serious enlightenment; Bird, 1999. For possible traces of Marius Maximus in the *Res Gestae* see Kulikowski, 2007.

For *curatiore studio*, “with attentive care” (Rolfe), cf. Tac. *Ann.* 16.22.3 *diurna populi Romani...curatius leguntur* and 30.2.3, where Valens assures king Sapor that he will defend the existing political treaties with all his might: *nihil derogare se posse placitis ex consensu firmatis, sed ea studio curatiore defendere*. It is quite as sarcastic as the following in *profundo otio*, for which cf. Apul. *Met.* 6.29 *inter cibos delicatos et otium profundum vitaeque totius beatitudinem* and 21.4.3 *nihil in profunda metuens pace* (q.v.). The verb *contrectare* merits special attention. Like *palpari* in §9 it is often used in an erotic context meaning “to handle amorously” (OLD 2), as in 24.4.27 *nec contrectare aliquam voluit nec videre*, which would be in keeping with the dubious nature of the books in question. In Hor. *Ep.* 1.20.11 the object of *contrectare* is Horace's own collection of letters, which will be ‘thumbed’ by their readers; see Mayer's note ad loc. In Gel. 17.19.3 Epicurus speaks indignantly about a depraved man who dared to interfere with philosophical studies: *istiusmodi...hominem cum viderat studia quoque et disciplinas philosophiae contrectare*. The verb has the connotation of sacrilege in 17.4.12 (Augustus obeliscum) *nec contrectare ausus est nec movere*, 23.6.35 *eratque piaculum aras adire vel hostiam contrectare*, 30.8.9 *de civili luctu fructum contrectare*. In 17.9.5 and 22.16.22, however, the meaning is simply ‘to touch’, ‘to handle’, which may also be the case in the present passage. For the ironic phrase *non iudicium est nostri* cf. 27.11.1 (q.v.), where the author declares that it is not for him to decide whether Petronius Probus had acquired his possessions justly or unjustly.

cum multa et varia pro amplitudine gloriarum et generum lectitare deberent For the combination of *multus* and *varius* see the note ad 28.1.2 *ac licet*. The reproach, that the Romans do not live up to the reputation of

their city, is also expressed in the first digression, 14.6.7 *levitate paucorum incondita, ubi nati sunt, non reputantium, sed tamquam indulta licentia vitiis ad errores lapsorum atque lasciviam*. The plural *gloriarum* refers to the many glorious deeds of their ancestors, *generum* to the great families of Rome. The plural of *genus* in this sense is extremely rare. TLL VI 2.1886.81 quotes Cic. *Div.* 1.91 *genera quaedam et nationes huic scientiae* (divinationi) *deditas* and 1887.67 Gel. 15.27.5 *Cum ex generibus hominum suffragium feratur, 'curiata' comitia esse*. As this is the only instance of *lectitare* in the *Res Gestae*, the intensivum/frequentativum must be given its full value; see the note ad 20.3.4 *Graeco*.

audientes destinatum poenae Socraten coniectumque in carcerem rogasse quendam scite lyrici carmen Stesichori modulantem, ut doceretur id agere, dum liceret In other cases Amm. combines *audiens* with either *legens* (15.1.4, 21.12.1) or *sciens* (22.12.1). Since these nobles are ignoramuses, he limits himself to *audiens*. The present participle has preterite force; see the note ad 22.8.14 *cedentesque*. Tigellius Hermogenes criticized Horace *quod carmina eius parum scite modulata esse dicebat* (Porph. *Hor. S.* 1.2.3), that is to say that he considered his poems metrically deficient. Normally *carmen modulari* means 'to accompany a song', as in Verg. *Ecl.* 10.51 *carmina pastoris Siculi modulabor avena*. That is probably also the meaning here, although the instrument on which the musician played is not specified. It will have been a lyre; cf. Quint. *Inst.* 10.1.62 (Stesichorum) *epici carminis onera lyra sustinentem*. The Greek lyric poet Stesichorus was active in Magna Graecia in the first half of the sixth century BC. The subjects of his poems were, inter alia, episodes from the Trojan war and the works of Heracles. He also wrote an *Oresteia*. Most of his work is lost and what is left is fragmentary; Robbins, 2001. In *Euthd.* 272 c Plato says that Socrates as an old man took music lessons with the lyre player Connus. The story is also told by Cic. *Sen.* 26 and V. Max. 8.7 ext. 8: *Socraten etiam constat aetate provectum fidibus tractandis operam dare coepisse satius iudicantem eius artis usum sero quam numquam percipere*. In prison Socrates, according to Pl. *Phd.* 60 d–61 b, occupied himself by writing a hymn to Apollo and putting some fables of Aesop into verse.

As Valesius saw, Amm. made a mistake in telling this story about Socrates. In fact it was Solon, who as a very old man heard a nephew sing a wonderful poem of Sappho and asked the young man to teach him that song. A similar inaccuracy is found in 14.9.6, where Amm. mistakes Zeno of Citium for Zeno of Elea; see Rosen, 1982, 133. In

an age without *Realencyklopädie* or *Wikipedia* such confusions were inevitable.

interroganteque musico, quid ei poterit hoc prodesse morituro postridie, respondisse, ut aliquod sciens amplius e vita discedat In the words of Aelianus, quoted in Stob. 3.29.58 (ed. Hense): ἐρωτήσαντος δέ τινος διὰ ποίαν αἰτίαν τοῦτο ἐσπούδασεν, ὃ δὲ ἔφη ἵνα μαθὼν αὐτὸ ἀποθάνω ('and when someone asked him for what reason he was eager to learn this, he answered: "in order to die knowing it"'). Amm. may have had Solon's famous dictum in mind *fr.* 17 γηράσκω δ' αἰεὶ πολλὰ διδασκόμενος ('I grow old learning many things'). For the ind. in indirect questions—not uncommon in Late Latin—see Szantyr 538 and the notes ad 14.6.2 *mirari posse* and 21.1.13 *mussando*.

Ita autem pauci sunt inter eos severi vindices delictorum, ut, si aquam calidam tardius attulerit servus, trecentis affligi verberibus iubeatur; si hominem sponte occiderit propria, instantibus plurimis, ut damnetur ut reus, dominus hactenus exclamat: "quid faciat male factis famosus et nequam? et si quid aliud eiusmodi deinceps ausus fuerit, corrigetur" The section is best taken as one single sentence, with a sharp asyndeton adversativum after *iubeatur*. *Pauci* introduces the representatives of the next abuse on a par with *quidam* (§7, 10, 14, 21), *nonnullos* (§8), *pars* (§18), *aliqui* (§22), *alius* (§23), *multi* (§24). *Ita* goes with *severi* and consecutive *ut* governs both *iubeatur* and *exclamat*, which necessitates the reading *exclamet*, as Valesius saw. The focus of the sentence as a whole is on the incongruity between an absurdly severe punishment for a minor household offence, and overindulgence towards cold-blooded murder. *Ita*—*ut* is therefore either ironical ('so severe that a murderer goes scot-free') or *ita* introduces a limitation: 'in such a way that' (*OLD* s.v. *ita* 16). Other instances of *ita* + adj. followed by a consecutive clause are discussed in the note ad 22.9.3 *ita magnis*. If we retain V's *exclamat*, this results in a less pointed anacolouthon.

4.16

Excessive cruelty towards slaves is criticized in Sen. *Ep.* 47.19 as a manifestation of *luxuria*: *Sed ad rabiem nos cogunt pervenire deliciae, ut quicquid non ex voluntate respondit, iram evocet*. Seneca's letter is followed closely by Praetextatus in Macr. *Sat.* 1.11.7–16, which was one of the reasons for Cameron, 1966, 38 to suggest that Macrobius' idealized picture of Praetextatus and his friends was intended as a rebuttal of Ammianus' bleak description of the Roman aristocracy. Drexler, 1974, 34 was reminded of Petronius Probus, about whom it was said in 27.11.4

*si eorum (servi vel clientes) quemquam crimen ullum compererat admis-
sisse, vel ipsa repugnante Iustitia non explorato negotio sine respectu boni
honestique defendebat.*

For *vindex* and its derivatives in combination with *severus* cf. Sal.
Jug. 15.3 *Hiempsalis mortem severe vindicandam censebant*; Sen. *Phaed.*
1209–1210 *dum falsum nefas/exsequor vindex severus, incidi in verum
scelus* and for *affligere* 15.3.2 *alios verberibus vel tormentis afflicto*s.

The expression *sponte propria* or vice versa is not found before the
fourth century, when it appears in Ammianus (seven times) and in
Christian authors. It emphasizes that the slave has acted on his own
initiative, not at the command of his master, which might explain the
leniency of the latter. All modern editors print Clark's *ut damnetur ut
reus* 'that he be condemned as a defendant', i.e. in a formal process. It
must be accepted for want of something better, despite the unparalleled
repetition of *ut* at such a short distance. For 'restrictive' *hactenus* see the
note ad 24.2.1 *sed hactenus*. As Valesius observes, questions introduced
by *quid faciat*,—*faceret*? often serve as an excuse. He compared Ov. *Ars*
2.369–370 *Quid faciat? vir abest, et adest non rusticus hospes, / Et timet in
vacuo sola cubare toro*, followed by *Viderit Atrides: Helenen ego crimine
absolvo*. Cf. also Verg. *A.* 9.399–400 *quid faciat? qua vi iuvenem, quibus
audeat armis/eripere?* with Hardie's note. Ma⟨le factis fa⟩mosus is Novák's
ingenious suggestion to fill the lacuna of eight letters in V. The text of M
obviously offered no help here, as is evident from Gelenius' desperate
maniosus, and the fact that he simply leaves out the second half of the
sentence *et si—corrigetur*, which is the result of the joined efforts of
Valesius and Petschenig to mend the double lacuna in V. For *corrigere*
cf. 30.5.3 (Valentinianus) *erat severus in gregariis corrigendis, remissior
erga maiores fortunas*. Details of the text remain uncertain, but there
seems to be no reason to doubt the general drift of the section. For the
future perfect *ausus fuerit* see Szantyr 324.

- 4.17 *Civilitatis autem hoc apud eos est nunc summum, quod expedit pere-
grino fratrem interficere cuiuslibet, quam, cum rogatus sit ad convivium,
excusare* When *civilis* and its derivatives are used to describe human
behaviour, they always refer to either an emperor who acts with restraint
(15.1.3; 21.16.9, q.v.; 25.4.7, q.v.) or a magistrate, who shows, as Seager
22 puts it "moderation...in keeping to one's proper station or within the
bounds of one's office" (19.13.2; 26.6.3, q.v.; 28.1.44, q.v.). Since neither is
the case here, Gelenius' *civilitatis*, where V has only *tis*, must be regarded
with suspicion. Van de Wiel proposed to read *humanitatis*, which would

suit the present context, in which the behaviour towards *peregrini* is the topic, distinctly better. Cf. § 10 *abundare omni cultu humanitatis peregrinum putantes* with the note. Also ⟨*summu*⟩*m*, Eyssenhardt's proposal for the lacuna of eight letters after *nunc* is less than convincing. *Documentum* deserves to be considered in view of 22.15.21 *quorum sollertiae duo interim ostendere documenta sufficiet* and 29.4.1 *Et haec quidem morum eius et propositi cruenti sunt documenta verissima*. As was observed ad 27.8.8 *mersam*, Amm. often leaves out comparative words before *quam*. This is another case in point, for which there are some parallels in juridical texts and very many in Christian authors, e.g. August. in *psalm.* 40.1 *expedit ut unus moriatur homo, quam tota gens pereat*; TLL V 2.1616.42–60. Amm. probably added *cuiuslibet*, because killing one's own brother would go too far. Refusing a dinner invitation was evidently considered a grave offense, like failing to turn up at a *salutatio* (14.6.13). Valesius aptly compares Lib. *Decl.* 28.1.18 οἶδα πηλίκαι τοῖς καλοῦσιν ὀργαὶ προσιζήνουσιν, ἐπειδὴ τῶν κεκλημένων τις ἐκλίπη τὴν σύνοδον ('I know how great the anger is of those who invite people to dinner, when one of the invited guests fails to turn up').

defectum enim patrimonii se opimi perpeti senator existimat, si is defuerit, quem aliquotiens libratīs sentiētiis invitaverit semel It may be of interest to note that this is one of only two cases in the Roman digressions where Amm. uses the word *senator*. In the first digression on Rome (14.6) the word is completely absent; in the present digression the only other instance is in § 9, where it refers to a senator from the distant past. Still, Amm. must be thinking constantly about members of the senate, since he writes in § 27 *hactenus de senatu*; cf. the note ad 28.1.10 *cumque multiformiter*. The noun *defectus* is normally used of eclipses, also in Amm. (20.3.4,7). In 23.6.61 *Circa defectus et crepidines montium* (q.v.) it means 'slope'. In 16.5.5 *in tanto rerum defectu* ("in these austere conditions", tr. Hamilton) it comes close to its meaning in the present passage, which must be 'want', 'loss'; TLL V 1.291.61–69. The combination *patrimonium opimum*, 'a fortune', is found only in Amm.; cf. 29.1.43 *ut opimum patrimonium eius diriperetur, capitali est poena affectus* and 29.2.5 *patrimonio opimo exutus est*. Just as *adesse* may mean 'to appear', *desse* may mean 'to fail to turn up', which explains the use of the perfect tense *defuerit*; TLL V 1.780.46. Sending out dinner invitations was no laughing matter, as is illustrated by 14.6.14 *anxia deliberatione tractatur, an...peregrinum invitari conveniet et, si digesto plene consilio placuerit fieri et cetera*. Note the opposition *aliquotiens*—*semel*: after weighing the pros and cons time

and again, the senator decides to invite the *peregrinus* once for dinner. *Libratis sententiis* is a unique expression (Amm. elsewhere prefers *libratis consiliis*, 16.10.21, 18.2.18), which, however, suits a senator.

- 4.18** *Pars eorum, si agros visuri processerunt longius aut alienis laboribus venaturi, Alexandri Magni itinera se putant aequiperasse vel Caesaris* Harmon 211 scans *procésserunt*; see the note ad 28.4.10 *Ex his*. It is tempting, however, to follow Dederichs, 1878, 43 in reading *processerint* (and *invecti sint*), since in this digression all other *si*-clauses (there are 14 of them) have the iterative subjunctive. *Longius* is a sarcastic remark made by the widely travelled soldier about the business trips of these people, as is *alienis laboribus* about those who delegate the actual shooting to their servants. A fine illustration is provided by Plin. *Ep.* 1.6.1, where Pliny tells Tacitus that he had taken part in a boar hunt: *ad retia sedebam: erat in proximo non venabulum aut lancea, sed stilus et pugillares*, “I was sitting by the hunting nets with writing materials by my sides instead of hunting spears”, tr. Radice. As Rolfe suggests, the phrase *alienis laboribus* may have been inspired by Plin. *Nat.* 29.19 *alienis pedibus ambulamus, alienis oculis agnoscimus, aliena memoria salutamus, aliena et vivimus opera*. In his discussion of Sallustius’ much debated statement *non fuit consilium... agrum colundo aut venando, servilibus officiis, intentum aetatem agere* (*Cat.* 4.1) Syme, 1964, 44 observed “Hunting was princely and aristocratic”, quoting Symmachus’ indignant comment: *recuso sententiam, quae rem venaticam servile ducit officium* (*Ep.* 5.68.2). Traditionally the Roman elite considered hunting a good preparation for military service; Cic. *N.D.* 2.161 (ut) *exerceamur in venando ad similitudinem bellicae disciplinae*. Hor. *S.* 2.2.10–11 calls hunting *Romana militia*.

Amm. mentions Alexander eighteen times; see the notes ad 21.8.3 *id enim* and 24.4.27 *Alexandrum*. For Iulius Caesar, who is mentioned four times, see the note ad 25.2.3 *ad aemulationem* and Felmy, 1999, 265–280.

aut si a lacu Averni lembis invecti sunt pictis Puteolos, Duili certamen, maxime cum id vaporato audeant tempore The beauty of Amm.’s prose in this digression lies in the small details such as *pictis*, which characterizes these ships as pretty pleasure boats, thereby making the comparison with Duilius ridiculous; see the note ad 21.9.2 *lembis* and Nisbet-Hubbard ad Hor. *Carm.* 1.14.14–15 *nil pictis timidus navita puppibus/fidit*. Lake Avernus is very close to the Bay of Baiae, where Puteoli is located; Talbert 44 F4. The area was a favourite resort for the elite of Rome, many of whom had villas there; D’Arms, 1970. The lake, a volcanic crater of some

65 meters deep, was considered to be the entrance to the underworld; Str. 5.4.5 (244C); Verg. A. 3.442ff. In 37 BC Agrippa dug a canal from the lake to the newly built *Portus Iulius*; D.C. 48.50; Flor. *Epit.* 2.18.6; Suet. *Aug.* 16, Auson. *Mos.* 208–219 refers to *naumachiae* at Lake Avernus in memory of the battle of Actium. From the second century BC onward Puteoli became increasingly important as a commercial port for the provisioning of Rome, in particular for the capital's grain supply; Sen. *Ep.* 77.1 *Gratus illarum* (the Alexandrian grainships) *Campaniae aspectus est: omnis in pilis* (on the pier) *Puteolorum turba consistit et ex ipso genere velorum Alexandrinas quamvis in magna turba navium intellegit*. It remained an important harbour and a prosperous city well into imperial times. In Late Antiquity sections of the city subsided into the sea due to seismic activity in the region; *CIL* 10.1690–1692. On Puteoli see D'Arms, 1970 *passim* and D'Arms, 1974. *Duilli* is an excellent conjecture by Kellerbauer, 1873, 135 for V's *velle*. We need a name here on a par with Alexander and Caesar, and Duilius (or rather Duillius), who won Rome's first naval battle, is the obvious candidate; cf. 26.3.5 *ut Duilium* (q.v.).

Note the sarcastic *audeant*. For *vaporatus*, 'hot', see De Jonge ad 18.9.2 *vaporatis*.

ubi si inter aurata flabella laciniis sericis insiderint muscae vel per foramen umbraculi pensilis radiolus irruerit solis, queruntur, quod non sunt apud Cimmericos nati The *aurata flabella* are presumably either gold-handled fans or fans of gold cloth waved by slaves. The scene is reminiscent of Mart. 3.82.10–12 *et aestuanti tenue ventilat frigus/supina prasino concubina flabello/fugatque muscas myrtea puer virga* ("and a concubine, lying on her back, with a green fan stirs a gentle breeze to cool his heat, and a boy flaps away the flies with a sprig of myrtle", tr. Ker). *Lacinia*, 'fringe', 'rag', is here used as *pars pro toto* for 'garments'; TLL VII 2.835.8. In 20.11.15 (q.v.) and 31.2.9 it means 'rope'. See the note on silk clothes ad 28.4.8 *nonnullos*. The perfect form *insidi*, for which cf. 31.10.16 *montes his, quos ante insiderant, altiores*, is discussed in the note ad 26.10.19 *ingentes*; TLL VII 1.1883.73–79. The *umbraculum* is a parasol, a sign of effeminacy, as is evident from Claud. *Eutr.* 1.463–465 (eunuchi) *flabella perosi/adspirant trabeis; iam non umbracula gestant/virginibus* ("They now despise the fan and aspire to the consul's cloak. No longer do they carry parasols for young ladies", tr. Platnauer, adapted). The adj. *pensilis* is glossed as "ab hominibus portata" in TLL X 1.1101.52 and compared to *Juv.* 1.158–159 (veneficus) *vehatur/pensilibus plumis atque illinc despiciat nos*? ("Are we to let him ride in his feather-bedded litter, and look down

his nose at us?”, tr. Green). Alternatively, *umbraculum* might mean ‘bal-dachin’, as in Claud. IV *Cons. Hon.* 339–341 *neu flantibus Austris/neu pluuiis cedas, neu defensura calorem/aurea summoveant rapidos umbracula soles* (“Though the storm winds blow and the rain descends yield not to them and use not cloth of gold to guard thee from the sun’s fierce rays”, tr. Platnauer).

In Hom. *Od.* 11.14–19 the Cimmerians are represented as a people on whom the sun never shines; cf. also Cic. *Luc.* 61 *Cimmeriis...quibus aspectum solis sive deus aliquis sive natura ademerat*. There is a connection between Lake Avernus and the Cimmerians, as appears from Strabo 5.4.5 (244C), who derives his information from Ephorus (*FGrH* 70 F 134), and Plin. *Nat.* 3.61 *lacus...Avernus, iuxta quem Cimmerium oppidum quondam*. Salemmé, 1989, 31 n. 31 quotes Fest. p. 43M *Cimmerii dicuntur homines, qui frigoribus occupatas terras incolunt, quales fuerunt inter Baias et Cumas in ea regione...quae neque matutino, neque vespertino tempore sole contingitur*.

- 4.19** *dein cum a Silvani lavacro vel Mamaeae aquis ventitant sospitalibus* The *Silvani lavacrum* is only known from this passage. Alexander Severus had built a palace and a pool near Baiae for his mother Mamaea, which was known under her name: *et in Baiano palatium cum stagno, quod Mamaeae nomine hodieque censetur* (HA AS 26.9). The adj. *sospitalis* is found once in Plautus (*Ps.* 247), twice in Macrobius (*Sat.* 1.17.15, 25) and five times in Amm., also about therapeutic waters in 18.9.2 *in qua vicus est Abarne nomine sospitalium aquarum lavacris calentibus notus*. Baiae and other sites in Campania and on the gulf of Naples were known for their mineral springs; Plin. *Nat.* 31.4–5 *nusquam tamen largius* (sc. *emicant aquae*) *quam in Baiano sinu nec pluribus auxiliandi generibus: aliae sulphuris vi, aliae aluminis, aliae salis, aliae nitri, aliae bituminis, nonnullae etiam acida salsave mixtura, vapore ipso aliquae prosunt, tantaque est vis, ut balneas calefaciant ac frigidam etiam in soliis fervere cogant* (“Nowhere however is water more bountiful than in the Bay of Baiae, or with more variety of relief: some have the virtue of sulphur, some of alum, some of salt, some of soda, some of bitumen, some are even acid and salt in combination; of some the mere steam is beneficial, of which the power is so great that it heats baths and even makes cold water boil in the tubs”, tr. Jones). Cf also Str. 5.4.7 (246C); Plin. *Ep.* 6.4.1–2 (about Calpurnia going to the springs in Campania for health reasons); D.C. 60.34.4 (about Narcissus being sent to the waters for the treatment of his gout). See in general D’Arms, 1970, 139–142.

ut quisquam eorum egressus tenuissimis se terserit linteis, solutis pressorii vestes luce nitentes ambigua diligenter explorat The treatment of Trimalchio in Petr. 28.2 is even more delicate: *iam Trimalchio unguento perfusus tergebatur, non linteis, sed palliis ex lana mollissima factis*. In Apul. Met. 1.23 the hero is provided with *oleum unctui et lintea tersui* before he is sent to the baths. For *pressorium* see TLL X 2.1196.5–12; the only other occurrence is August. *serm.* 181.7. Clothes were put into a clothes press (the usual word is *prelum*) in order to heighten their sheen; Sen. *tranq.* 1.5 *placet...non ex arcula prolata vestis, non ponderibus ac mille tormentis splendere cogentibus expressa* (“I do not like clothing pressed by weights and a thousand mangles to make it glossy”, tr. Basore); Mart. 2.46.3–4 *sic tua suppositis collucent prela lacernis* (“so shine your presses with mantles laid between them”, tr. Ker). Lipsius’ simple emendation of V’s *solitis* is plausible in view of Claud. *carm. min.* 25.101–102 *prelisque solutis/mira Dionaeae sumit velamina telae* (“taking from out the press the wondrous garments spun by her mother Dione”, tr. Platnauer). *Solvere pressoria* means to release the mangle (*tormentum*), so that the garments can be taken out of the press. See Cleland, Davies & Llewellyn-Jones, 2007, 152 and for a picture Smith, Wayte & Marindin, 1890³, 528. Valesius conjectured *ambigua* for V’s *arbitraria*, for which he compared 16.5.5 *stragulis sericis ambiguo fulgore nitentibus* (“a coverlet of shot silk”, tr. Hamilton), to which 23.6.84 *indumentis...lumine colorum fulgentibus vario* may be added.

quae una portantur, sufficientes ad induendos homines undecim; tandemque electis aliquot involutus receptis anulis, quos, ne violentur umoribus, famulo tradiderat, digitis † et metatis Neid The text is again uncertain. It is impossible to decide whether Gelenius conjectured *portantur* (V has a lacuna between *p* and *tur*) or found it in M. The interpretation seems to be that the rich man brings enough garments with him for eleven people from which he selects some (*aliquot*) for himself to wear. Rings were sometimes taken off before a bath; Ter. *Hau.* 655 *ea lavatum dum it, servandum mihi dedit* (anulum); Mart. 11.59.1–3 *Senos Charinus omnibus digitis gerit/nec nocte ponit anulos/nec cum lavatur*. Amm. pokes fun at this habit by adding *ne violentur umoribus*. The end of this section may well be beyond repair. Rolfe reads *ut metatis* and translates “after his fingers have been as good as measured to receive them”, but it seems impossible to accept this interpretation of *digitos metari*. One may consider *digitisque aptatis*; cf. Suet. *Tib.* 73.2 *Seneca eum scribit...anulum...parumper tenuisse, dein rursus aptasse digito*.

4.20 *Enimvero si qui vetus in commilitio principis recens digressus...rit in...aevi provecti, sub tali praesente...irio...silentii praesul existimatur: ceteri taciturni audiunt dicta...solus pater familias textui narrans aliena et placentia referens erudite pleraque fallendo* This section resembles nothing so much as a fragment of Sappho. V's text is in fact even worse than what is printed here by Seyfarth. It runs as follows: *enimvero siquibus in mil (lac. 7) regens (lac. 14) rit m (lac. 7) aeut provectibus presente (lac. 6) irio (lac. 5) lenii tacitur (lac. 6) dicta solias tectu (lac. 2) rant aliena (lac. 5) referrent et urile fallendo (lac. 5)*. Gelenius leaves the section out completely, which proves that the text of M was no better than that of V. The scene of the old soldier who tells a spellbound audience about his adventures in the service of the emperor, conjured up by Wagner, is built on quicksand from a to z. To cap it all, the only clearly discernible word *enimvero* is highly suspect, since Amm. uses it nowhere else. "Nugae!" was Wagner's own conclusion. It is wiser to let this passage be than to indulge in guesswork.

4.21 *Quidam ex his licet rari aleatorum vocabulum declinantes ideoque se cupientes appellari tesserarios, inter quos tantum differt, quantum inter fures et latrones* It has gone unnoticed that the main sentence, as printed in all modern editions, lacks a finite verb. This can be remedied by substituting *declinant* and *cupiunt* for the participles, but the question as to what caused the corruption remains unanswered. There seems to be no reason to suspect a lacuna, since the following sentence follows naturally enough. The phrase *licet rari* seems to anticipate *tamen* in the next sentence: although there are only a few people who call themselves *tesserarii*, yet (*tamen*) they are the ones who know real friendship. As is observed in TLL VII 2.1366.62–63, Amm. uses *licet* "saepissime" in combination with adjectives and participles. Cf. 22.16.17 *apud quosdam licet raros* 'with some persons, however few' and see the note ad 20.6.9. In this digression it occurs in §3 *correxisset enim ex parte licet exigua* ('in part, however small') and—if Valesius' conjecture is correct—in §23 *cum dignitate licet mediocri*. Transitive *declinare* 'to avoid' is rare; TLL V 1.192.65–79.

Alea was popular among the plebeians of Rome; cf. 14.6.25 *pugnaciter aleis certant*. It was a board game for two people; the throw of the dice decided how far the pieces on the board were moved. The game was associated with gambling, and *aleatores* were practically synonymous with gamblers; Toner, 1995, 96 ff. They were considered to belong to the same category as gluttons, prostitutes, mime artists and dancers; cf. Cic. *Phil.* 3.35 *libidinosi, petulantibus, impuris, impudicis, aleatoribus, ebriis*

servire, ea summa miseria est. Not only plebeians played the game of *alea*, emperors did as well; e.g. Sen. *Cons. Pol.* 17.4; Suet. *Aug.* 70.2, 71.3, *Cal.* 41.2, *Nero* 30.3, *Vit.* 4.1; HA *V.* 4.6, *C.* 2.8, *DI* 9.1. Claudius even wrote a treatise on how to play the game skilfully; Suet. *Cl.* 33.2. The Christian Ps.-Cyprian wrote a treatise against the game: *De aleatoribus* (PL 4, 903–911; CSEL 3.3, 92–104; C. Nucci [Bologna 2006]). On the game and its social connotations and impact see the searching study by Purcell, 1995 and Toner, 1995, 89–101.

In V there is a lacuna of nine letters between *appellarit* and *s. Gele-*
nius' t(esserario)s is very attractive on account of the expression *artis tesserariae callentem arcana* in this same section. The normal meaning of the word is given in Veg. *mil.* 2.7.5 *Tesserarii qui tesseram per contubernia militum nuntiant; tessera autem dicitur praeceptum ducis, quo vel ad aliquod opus vel ad bellum movetur exercitus.* As Marié n. 422 observes, Amm.'s remark that the difference between an *aleator* and a *tesserarius* is as big as that between a *fur* and a *latro* is a play on words, since *fur* and *latro* are both terms used in the *latrunculorum ludus*, as *alea* is often called.

hoc tamen fatendum est, quod, cum omnes amicitiae Romae tepescant, aleariae solae quasi gloriosis quaesitae sudoribus sociales sunt et affectus nimii firmitate plena conexae For *tepescere* in its metaphorical sense cf. 28.1.9 *negotio tepescente* and Luc. 4.284 *paulatim cadit ira ferox mentesque tepescunt.* The only other occurrence of the adj. *alearius* is Pl. *Mil.* 164 *ut ne legi fraudem faciant aleariae* (“just to keep them from breaking the Dicing Act”, tr. Nixon). Real friendship should be the result of achievements won together with great effort, not of shared interest in a stupid game; cf. 17.13.31 *his enim virtutem oportet esse contentam, quae sudore quaesivit et dexteris*; for the expression cf. Cic. *Agr.* 2.69 *plurimo maiorum vestrorum sanguine et sudore quaesita.* As regards *amicitiae sociales*, in the tale of Cupid and Psyche Apuleius describes the consequences of the absence of Venus from the world as follows, *Met.* 5.28: *non voluptas ulla, non gratia, non lepos...non nuptiae coniugales, non amicitiae sociales, non liberum caritates* (“no pleasure anywhere, no grace, no charm...no more marriages, no more mutual friendships, no children’s love”, tr. Kenney). The use of the gen. *inversus affectus nimii*, depending on *firmitate plena*, allows Amm. to describe these feelings as being at the same time warm (*nimii*) and strong in the full sense of the word. For the positive meaning of *nimius* see the note ad 21.16.3 *in conservando.*

unde quidam ex his gregibus inveniuntur ita concordēs, ut Quintilios esse existimes fratres As the TLL VI 2.2332.59 notes, *grex* can be used in *bonam* and in *malam partem*. An instance of the latter is Cic. *Cat.* 2.23 *in his gregibus omnes aleatores...versantur* and Hor. *Carm.* 1.37.9–10 *contaminato cum grege turpium, / morbo virorum*. Quintilios is a brilliant conjecture for V's *quit illios* by an unknown Renaissance scholar (possibly Poggio Bracciolini himself; Seyfarth, 1962, 67) found in the margin of E. Amm. has a predilection for exempla from Republican times such as Cato Maior (14.6.8, 28.1.39), Furius Camillus (21.16.13; 28.3.9), Papirius Cursor (28.3.9, 30.8.5), Decius Mus (16.10.3, 23.5.19, q.v.) and C. Duilius (26.3.5, q.v.)—because the Republic was considered an age of high moral standards and courage; Demandt, 1965, 126–128 and the note ad 25.3.13 *Sicinium*. Demandt points to the paradox that Amm. was much better informed about imperial history than about the history of the Republic. Nevertheless, he took only a few examples from the former period. On p. 130 n. 171 Demandt mentions the wife of the emperor Maximinus (14.1.8), the generals Corbulo (15.2.5, 29.5.4) and Lusius Quietus (29.5.4) and an anonymous soldier under Galerius (22.4.8). The Quintilii—Sextus Quintilius Condianus (*PIR*² Q 21) and Sextus Quintilius Valerius Maximus (*PIR*² Q 27)—lived in the second century AD. The brothers were very close: they were consuls together in 151; in 169–170 Condianus was *corrector Achaëae*, his brother was *proconsul Asiae* in 169; see for the latter French, 1976. They named their sons after each other. Both were killed in 183 on the order of Commodus; D.C. 72.5.3–4; HA C 4.9. See further Hanslik, 1963a and 1963b.

ideoque videre licet ignobilem artis tesserariae callentem arcana ut Catonem Porcium ob repulsam praeturae nec suspectam antea nec speratam incedere gravitate composita maestiores The ironical expression *ars tesseraria* is found in a comparable context in 14.6.14, *artem tesserariam profitetur*. See for *callere* with acc., 'to be skilled in', Kühner-Stegmann II 1.264 and cf. Tac. *Ann.* 13.3.2 *Tiberius artem quoque callebat, qua verba expenderet*. Other examples in Amm. are given in the note ad 21.1.6 *coniciens*.

M. Porcius Cato Uticensis (95–46) was defeated in 55 BC in the elections for the praetorship through intimidation and bribery instigated by Pompey and Crassus, but he eventually became praetor in 54; Plut. *Cat. Mi.* 42.1–4; Broughton, 1952, 216, 221–222; 1986, 170–171. He has been mentioned in 14.8.15. For Cato in general see Fehrlé, 1983. Cf. also 28.1.39 with the note. The combination of *susplicere* and *sperare* (in which

sperare has the meaning ‘to expect’ or even ‘to fear,’ for which cf. 20.11.16 *exitium affore iam sperantes* and 26.6.18 *ut sperabat*, q.v.) is unique. It expresses total surprise and disillusionment. Amm. may have found the expression *gravitate composita* in Gel. 4.1.1 *vocisque et vultus gravitate composita*.

quod ei in maiore convivio vel consessu proconsularis quidam est antelatus
Here begins the second fragment of the Hersfeldensis (the first one covered 23.6.37–45). It ends in § 29 with *lustris et volupt*. The Hersfeldensis was used by Gelenius when he prepared his edition of 1533, but disappeared afterwards. In 1875 six leaves of the ms. were discovered in Marburg (hence the siglum M in the app. crit.). After a thorough comparison of the Marburg fragments with the text of the Fuldensis (V) Robinson, 1936 came to the conclusion that V is a copy of the Hersfeldensis. Recently a few more snippets of the Hersfeldensis came to light, which were published by Broszinski and Teitler, 1990. Unfortunately, they add little to our knowledge.

The *ignobilis* is here contrasted with a *proconsularis*, that is to say a man of senatorial status; see the note ad 27.6.1 *quasi afflatu*. Since the administrative reforms of Diocletian and Constantine only three proconsulates remained: Achaëa, Asia and Africa. Amm. uses *consessus* elsewhere in combination with *vehiculi*, as in 15.8.17 *susceptus denique ad consessum vehiculi*, where it means ‘sharing a carriage’. See also 16.10.12 and 22.9.13. Here it has the more general meaning of ‘company’, as in HA AS 4.3 *cum amicis tam familiariter vixit, ut communis esset ei saepe consessus* (“he associated with his friends on such familiar terms, that he would sit with them as equals”, tr. Magie); Gel. 16.10.1 *Otium erat quodam die Romae in foro a negotiis et laeta quaedam celebritas feriarum, legebaturque in consessu forte conplurium Ennii liber ex annalibus*.

Subsident aliqui copiosos homines senes aut iuvenes orbos uel caelibes aut etiam uxores habentes seu liberos, nec enim in hoc titulo discrimen aliquod observatur, ad voluntates condendas allicientes praestigiis miris At the outset of his digression on lawyers Amm. calls them (30.4.8) *violenta et rapacissima genera hominum per fora omnia volitantium et subsidentium divites domus*. Another example of *subsidere* with acc., ‘to lie in wait for’, is 15.2.4 *subterraneus serpens foramen subsidens occultum*. In the present section Amm. is still speaking of the *nobiles*, who are guilty of legacy hunting, one of the vices most often criticized by satirists; see Demandt, 1965, 17 n. 15. The victims are normally wealthy people without children,

but according to Amm. these nobles try their luck with everyone. Note the chiasmus *orbos vel caelibes aut etiam uxores habentes seu liberos*. For *in hoc titulo* in the sense of *in hoc genere* cf. 14.9.2 *in hoc causarum titulo dissimilem sui*. The expression *voluntatem condere* is also found in 28.1.35 (q.v.). In 21.15.5 (q.v.) Amm. had written *Constantium voluntatem ordinasse postremam*. Valesius brilliantly conjectured *eos praestigiis miris* for V's *potest regiis (regnis M)* and Löfstedt put the finishing touch to it by leaving out *eos* and writing *praestrigiis*. For *praest(r)igiae*, 'tricks', see the note ad 26.4.4 *ut loquebatur* and TLL X 2.936.61–937.9.

qui cum supremis iudiciis ordinatis quaedam reliquerint his, quibus morem gerendo testati sunt, ilico pereunt Exactly the same phrase for 'writing a last will' in combination with the verb *testari* is found in Quint. *Inst.* 6.3.92 *an primipilari seni iam testato rursus suaderet ordinare suprema iudicia*. The vague *quaedam*, proposed by Heraeus, is no improvement on Clark's *quae habent*, which is also closer to *quaebant* (written as one or two words) of MV. For *morem gerere* see the note ad 26.9.5 *orabat*. The suggestion implied in *ilico pereunt* is of course that the legacy hunter lends a helping hand to achieve his goal.

ut id impleri sorte fatorum opperiente, nec putes nec facili potest aegritudo testam...comitatu est his quisquam Here again, the text is damaged so badly, that one can only guess at the meaning. The complete *ut*-clause is left out by Gelenius. Valesius conjectured *impleri sorte fatorum* on the basis of VM's *inpleris orae fatorem*, very convincingly in view of 14.11.19 *Pandente itaque viam fatorum sorte tristissima*; 26.3.1 *Dum haec in oriente volubiles fatorum explicant sortes* (q.v.) and 31.16.8 *comperta enim fatorum sorte*. The verb *implere* often has the meaning 'to fulfill', (OLD 10); cf. 20.8.19 *Ad id munus implendum electi viri sunt graves*. The pronoun *id* must then refer to the drawing up of the will, so that the clause can mean 'as if the allotted life span was waiting for this to be discharged'. There are, however, no parallels for *opperior* with Acl and only one for *opperior* with inf.: Hier. *epist.* 4.2 *opperior cum tremore...reddere*. It may be better, therefore, to follow Eyssenhardt in deleting *nec* before *putes* and interpret *id impleri* as depending on *putes*. For the 'Satznachtrag' *ut...putes* cf. § 27 *ut Heraclidas...putes* and § 34 *ut...Democritum putes docentem*. This results in 'so that you think that this is fulfilled while the allotted life span was waiting for it'. Alternatively, Petschenig, 1892, 684 proposed to read *ut id impleri sorte fatorum operante nec putes nec facile possit aegritudo testari* 'man kann weder annehmen, der Tod sei auf

natürlichem Wege erfolgt, noch ist in der Regel ein Leiden vorhanden, das zum Beweise dafür dienen könnte". With this reading *id* refers to the death of the testator. For *operare* in the required sense Petschenig compares 14.11.25 *Haec et huiusmodi quaedam innumerabilia...operatur Adrastia*. As to the second half of the *ut*-clause, this is very strained, in particular with regard to the passive use of *testari*, for which there seems to be no parallel. In MV *testam* is followed by a lacuna of no fewer than 13 letters, which makes it practically impossible to bridge the gap.

Alius cum dignitate licet mediocri cervice tumida gradiens notos antea obliquato contuetur aspectu, ut post captas Syracusas existimes reverti Marcellum 4.23 It is important to realize that in view of the deplorable state of the text a precise demarcation of the sections is impossible. Still, it is clear that after the legacy hunter Amm. introduces a new character, viz. the upstart. This makes Gelenius' insertion of *Alius* acceptable. For MV's *vicet umida* Valesius conjectured *cervice tumida*, powerfully supported by Cic. *Vat.* 4 *repente enim te tamquam serpens e latibulis oculis eminentibus, inflato collo, tumidis cervicibus intulisti*; Luc. 9.701 *aspida somniferam tumida cervice*; Sil. 6.233–234 *tumidis cervicibus altum/nutat utroque caput*. Note that in all three cases the swollen neck belongs to a snake. Of men the only other instance is Flor. *Epit.* 4.12.2 *nova quippe pax, necdum adsuetae frenis servitutis tumidae gentium inflataeque cervices ab inposito nuper iugo resiliebant*. For possible implications see Salemmme, 1989, 15–16 and Kelly 168–171. The preceding *dignitate licet mediocri* is the fruit of Valesius' *ingenium*, not necessarily right, but certainly 'ben trovato'. The 'sidelong glance' is discussed in the note ad 28.1.45 *huic successit*. As is observed there, its meaning is determined by the context. In the present passage it is a sign of arrogance. M. Claudius Marcellus, consul in 222 BC, also mentioned by Amm. in 25.3.13 (q.v.), had taken Syracuse after a siege of three years in 212 BC; Marincola, 2005. The sarcastic comparison of these members of the Roman aristocracy with their great forebears from Republican times, such as Caesar and Duilius (§ 18), Cato Uticensis (§ 21) and now Marcellus eloquently expresses the author's contempt.

Multi apud eos negantes esse superas potestates in caelo For *superae potestates* as a designation of gods, demons or angels see the note ad 25.3.17 *quoniam coeptorum*. The addition *in caelo* may refer to the distinction made by Serv. A. 3.93 *potestates aliae caelestes sunt, aliae terrenaes, aliae permixtae*; in any case it prepares the reader for the subject of 4.24

astrology, central in this section. It is not clear which group Amm. refers to—Christians, Epicureans, atheists?—if he refers to a specific group at all. The Christians are the most likely candidates for the rejection of a plurality of celestial powers. The objection that the Christians condemned astrology is not decisive, since the frequency and the vehemence of Augustine's attacks on this pseudo-science—to name only its most spirited opponent—prove that many Christians in his day must have practiced it; as witness his pithy remark *in Gal.* 35 about would-be Christians *ex ephemeridis vitam naufragam gubernantes*; see Van der Meer, 1951, 88 ff.; Hegedus, 2007, 45–61. Amm., however, primarily criticizes not so much a form of atheism, but rather the inconsistent behaviour of those who on the one hand deny the existence of the planetary gods, while on the other hand studying the motions of the celestial bodies with the utmost care for guidance in their most trivial daily activities. In this respect the structure of this section resembles that of section 16.

As regards Amm.'s own opinion about astrology, it is noteworthy that he does not even mention it in his survey of divination in 21.1.7–14. Ensslin, 1923, 80–81, followed by several other scholars, saw in 23.6.25 *Hic prope Chaldaeorum est regio, altrix philosophiae veteris, ut memorant ipsi, apud quos veridica vaticinandi fides eluxit* proof of Amm.'s respect for astrology, but, as is argued in the note ad loc., it is more likely that the *veridica vaticinandi fides* refers to 'the *Oracula Chaldaica*, beloved by Julian, specially as interpreted by his favourite philosopher Iamblichus.' In his digression on Alexandria as a centre of science Amm. mentions astrology with respect among the branches of learning that are still cultivated in his own day: *recalet apud quosdam adhuc licet raros consideratio mundani motus et siderum doctique sunt alii numeros; pauci super his scientiam callent, quae fatorum vias ostendit* (22.16.17). Another passage adduced by Ensslin as support for his thesis that Amm. was interested in astrology, viz. the digression on the intercalary day in 26.1.8–14, has little or nothing to do with astrology proper. Although it cannot be said that Amm. is unfavourably disposed towards astrology as such, his attitude is best described as indifferent.

nec in publicum prodeunt nec prandent nec lavari arbitrantur se cautius posse, antequam ephemeride scrupulose sciscitata didicerint, ubi sit verbi gratia signum Mercurii vel quotam cancri sideris partem polum discurrens obtineat luna Lindenbrog was the first to identify Juv. 6.572–574 as Amm.'s model: *illius occursus etiam vitare memento, / in cuius manibus*

ceu pingua sucina tritas/cernis ephemeridas ("When you meet such a woman, clutching her well-thumbed/ Almanacs like a string of amber worry-beads,/ Keep very clear of her", tr. Green). This is guaranteed by the extremely rare word *ephemeris*, and confirmed by the sequel, in which Juvenal says that the lady consults her *ephemeris* before deciding at which time she will go out of town (cf. *in publicum prodeunt...ephemeride scrupulose sciscitata*). For the relationship between Ammianus and Juvenal see Rees, 1999, who also refers to this passage (p. 150) and, in a more sceptical vein, Den Hengst, 2007, 171–173.

Consulting horoscopes to discover what the future has in store had a widespread appeal among the elite as, for instance, the publication in 334 of Firmicus Maternus' *Mathesis*, a handbook of astrology, makes clear. The Codex Calendar of 354, composed for a Roman aristocrat, has an astrological section; Salzman, 1990, 30–32. Lucky and unlucky days were marked on calendars, such as the one described in Petr. 30.4: (*habebat inscriptum*) *lunae cursum stellarumque septem imagines pictas; et qui dies boni quique incommodi essent...notabantur*. For horoscopes in general see Barton, 1994, 71–94. In the present passage the aficionados of astrology want to know in what zodiacal sign the planet Mercury is, or what degree (*partem*) of the sign of Cancer the moon has reached during its course through the heavens. For this technical meaning of *pars* see the note ad 20.3.2 *quas geometrica*.

For *scrupulose*, 'meticulously', cf. 17.3.4 *scrupulose computando* and 31.5.10 *ne quis a nobis scrupulose gesta vel numerum exigat peremptorum, qui comprehendi nullo genere potuit*. The adverb is found for the first time in Col. 9.8.5, and is used frequently only from the fourth century onwards. See also Brandt, 1999, 384–386 on *scrupulositas* and cognate terms. *Lavari* means 'to go to the baths'; cf. *lavacrum* in 16.10.14 *lavacra in modum provinciarum exstructa*. The expression *verbi gratia* is found also in 16.12.69 and 30.5.10 *ubinam ille esset verbi gratia honore ante suos cellens et nomine vel ille dives aut alius ordinis primus*.

Alius, si creditorem suum flagitare molestius adverterit debitum, ad auri-
gam confugit audentem omnia praelicenter eumque ut veneficum curat
urgeri Cf. Pallad. *hist. mon.* I 24 p. 306^D *faenerator, exigens debitum*
...ac flagitans. The comparative *molestius* has its full force 'too urgently'. Charioteers seem not to have been too fussy about regulations and moral rules. They were, for instance, notorious for administering drugs to their horses and practicing magic; see the notes ad 26.3.3 *Hilarinum* and 28.1.27 *quod eiusdem*. It is therefore a sign of their brashness that

they of all people dare to bring a charge of magic against someone else, but, as Dickie, 2001, 297 says in his discussion of this passage: “They were the sort of men to whom people went if they wanted someone who could plausibly claim to know who was practicing magic”. The adverb *praelicenter* (‘with excessive freedom’) is also found in 16.5.3 and 17.8.3. The only other instance is Gel. 16.7.1—probably Amm.’s model—*Laberius in mimis, quos scriptitavit, oppido quam verba finxit praelicenter*; TLL X 2.691.25–31. For *veneficium* and its derivatives as “Synekdoche für die gesamte magische Praxis” see the note ad 28.1.8 *vitamque suam*. For *urgere* in a judicial context cf. 19.12.11 *cum secura mente nullis suspicionibus urgeretur, purgando semet fidentius absolutus est* and 21.6.2 “desinite” ait “*urgere hominem, ut existimo, sontem, sed nondum aperte convictum*” (q.v.).

unde non nisi reddita cautione dispendioque afflictus gravi discedit A *cautio* is a written statement, in this case an acknowledgement of debt; Heumann-Seckel 61. The creditor is made to give the *cautio*, which had been written by the debtor, back to him, by which the debtor is freed from the obligation to pay his debt. Of course this entails a financial loss (*dispendium*) for the creditor. For the expression cf. 29.2.11 *exsilio et pecuniariis afflictis dispendiis*.

et additur huic, debitorem voluntarium includit ut proprium nec ante eius professionem absolvit The asyndeton expresses Amm.’s indignation: ‘and indeed, that is not all’. In order to escape prosecution, the creditor promises his former debtor money; he makes himself his debtor of his own free will. Now the tables are turned completely. The former debtor even puts his former creditor under arrest. See for this meaning of *includere* 29.1.13 *cumque nec carceres publici iam distenti inclusorum catervas nec privata domicilia sustinerent*. The words *ut proprium* are ambiguous. Taken out of context they would mean ‘as if he were his property’, but *proprius* is clearly in contrast with *voluntarius*. Cf. Sen. *Ben.* 5.19.6 *dico me tibi obligatum pro filio; non quia sum, sed quia volo me offerre tibi debitorem voluntarium*, where the same contrast is expressed by *non quia sum, sed quia volo*. It seems preferable therefore to follow Valesius and interpret *ut proprium* as meaning ‘as if he was really his debtor’. The prisoner is set free only after a formal statement before a magistrate (*professio*) that he owes his former debtor a sum of money. See for this meaning of *professio* Heumann-Seckel 466 s.v. *profiteri*; TLL X 2. 1688.44–48 and 1689.30–56.

Parte alia uxor, ut proverbium loquitur vetus, eandem incudem diu noctuque tundendo maritum testari compellit, hocque idem ut faciat uxor, urget maritus instanter The opening words *parte alia* come as a surprise; one would expect them to follow another topographical indication, as in 16.11.2 and 31.2.16. Either Amm. uses the phrase carelessly, or it should be connected to the preceding section. The link may be that after the senator we meet his wife, who ‘on her part’ is busy with her own schemes. The ‘ancient proverb’ is found in Cic. *de Orat.* 2.162 *uno opere eandem incudem diem noctemque tundentibus*; see also 18.4.2 *eandem incudem, ut dicitur, diu noctuque tundendo*; Otto, 1890, 174.

4.26

Why do both husband and wife insist so urgently that their spouse writes his or her will? Obviously because they hope to profit from it. The double-crossing involved in procedures of this kind is not made explicit in Amm.’s version, but we see a glimpse of it in texts from Lucian and Jerome. One way to induce another person to leave everything to you is described in Lucian’s *Dialogi mortuorum* 18.1 ἔδοξε δὴ μοι καὶ σοφὸν τοῦτο εἶναι, θέσθαι διαθήκας εἰς τὸ φανερόν, ἐν αἷς ἐκείνων καταλείποινα τὰμὰ πάντα, ὥς ἀκείνους ζηλώσειεν καὶ τὰ αὐτὰ πράξειεν (“So I thought of another clever move and decided to make my will public. I’ve left him all my property in it, hoping he in turn would emulate me, and do the same by me”, tr. McLeod). Another text from Lucian provides an even more striking parallel, since in it the astrologers also play a role: 21.1 (two rich men, Aristeas and Moerichus, made their testaments public, in which they appointed each other sole heir) ταῦτα μὲν ἐγγράπτο, οἱ δὲ ἐθεράπευον ὑπερβαλλόμενοι ἀλλήλους τῇ κολακείᾳ. καὶ οἱ μάντις, εἴτε ἀπὸ τῶν ἀστρον τεκμαιρόμενοι τὸ μέλλον εἴτε ἀπὸ τῶν ὀνειράτων, ὥς γε Χαλδαίων παῖδες, ἀλλὰ καὶ ὁ Πύθιος αὐτὸς ἄρτι μὲν Ἀριστέα παρεῖχε τὸ κράτος, ἄρτι δὲ Μοιρίχῳ, καὶ τὰ τάλαντα ποτὲ μὲν ἐπὶ τοῦτον, νῦν δ’ ἐπ’ ἐκείνον ἔρρεπε (“This was all written down in black and white, and they tried to outdo each other with obsequious attentions, and not only the prophets divining the future from stars or from dreams in the best Chaldaean tradition, but even the Delphic god himself would assign the victory first to Aristeas, and then to Moerichus, and the scales would dip, now of one, now of the other”, tr. McLeod).

A similar situation is described in Hier. *epist.* 54.15, addressed to the widow Furia, who has asked Jerome, inter alia, whether it would be financially advisable for her to marry again, *scribuntur tibi nunc sponsales tabulae, ut post paululum testamentum facere compellaris. Simulabitur mariti infirmitas et, quod te morituram facere volet, ipse victurus faciet* (“A marriage settlement is made in your favour today, but soon you will

be induced to make your will. Your husband will feign illness, and will do for you what he wants you to do for him: but he means to go on living, and you are destined for an early grave”, tr. Wright). In view of these parallels we must take *testari* and *testamentum facere* to mean not just ‘to write a will’, but ‘to make a will public.’

et periti iuris altrinsecus asciscuntur, unus in cubiculo, alter eius aemulus in triclinio repugnantia tractaturi If this scene is inspired by Lucian’s *Dialogi mortuorum*, Amm. has taken pains to create a Roman setting by adding vivid details like the *cubiculum* and the *triclinium*, in which the senator and his wife deliberate with their advisers. “Humour aside, this passage...underlines the immediacy of the consultation between clients and legal experts. Oral answers are given to oral questions” (Humfress, 2007, 73). The adverb *altrinsecus* originally meant “ab altera parte”; in 4th century writers, however, it normally (and in Amm. always) means “ab utraque parte” (TLL I 1771.49 sqq.). There is a note on *asciscere* ad 20.4.22 *asciti in consistorium*. The competing legal experts are looking after the different interests of their clients, who both hope to be appointed sole heir in the testament of their spouse. For *repugnare* in the sense of ‘to be incompatible’ cf. 21.13.4 *speculatores vero et transfugae...repugnantia prodebant* (q.v.).

isdemque subseruntur genitalium factorum interpretes controversi hinc praefecturas profusius largientes et sepulturas divitum matronarum, inde ad exsequias virorum iam adventantes necessaria parari oportere iubentes For *subserere*, ‘to insert’, ‘to add’, see the note ad 20.3.8 *ferienti*. In 29.1.5 a certain Heliodorus is called *factorum per genituras interpretem*, i.e. an astrologer who predicts the future on the basis of one’s horoscope (*genesis, genitura*). Like the lawyers they serve the conflicting interests of husband and wife; for *controversus* see the note ad 22.15.7 *spiritu*. It is used to characterize the Egyptians in 22.6.1 as *genus hominum controversum* (q.v.).

The predictions introduced by *hinc* are intended for the husband. Amm.’s satirical hyperbole becomes evident when one realizes that there were just four PPO’s in the whole of the empire, and that *profusa largitio* is used elsewhere of politicians spending huge sums to obtain popular favour, as in V. Max. 3.2.17 (about C. Gracchus) *in tribunatu profusissimis largitionibus favore populi occupato* and Suet. *Jul.* 13.1 *pontificatum maximum petit non sine profusissima largitione*. The second prediction is a not overly subtle announcement of the impending death of the wife.

She, on her part, is made happy by the announcement that she has to prepare the funeral of her husband.

et testatura... ancillas suapte natura pallidior, spiritu pridie consumpto defuncta... †umrom atque, ut Tullius ait: "nec in rebus humanis quidquam bonum norunt nisi quod fructuosum sit; amicos tamquam pecudes eos potissimum diligunt, ex quibus se sperant maximum fructum esse capturos"

The first half of this section is again riddled with lacunas, which makes a restitution of the text or even an educated guess as to its purport illusory. The text as printed by Seyfarth is for the greater part based on conjectures. It is a sign of the haste with which Gelenius prepared his edition of 1533 that he leaves the whole passage, up to the quotation from Cicero, out except the words *ut Milliū (!) ait* (MV). They had been corrected already in E; Den Hengst, 2010, 158. The quotation is taken from Cic. *Amic.* 79 *Sed plerique neque in rebus humanis et cetera*. According to Cicero, most people are only interested in the profit they may gain from their fellow men. According to Amm., this applies even to married couples. See for Cicero in the *Res Gestae* the note ad 28.1.40 *interdum*.

Cumque mutuum illi quid petunt, soccos ut Micionas videbis et Lachetas, cum adiguntur, ut reddant, ita coturnatos et turgidos, ut Heraclidas illos Cresphonten et Temenum putes. hactenus de senatu The Greek slipper (*soccus*) is a symbol of comedy, just like the buskin (*cothurnus*) is a symbol of tragedy, or, as Quint. *Inst.* 10.2.22 puts it, *nec comoedia in cothurnos adsurgit, nec contra tragoedia socco ingreditur*. In spite of 27.11.2 (Petronius Probus) *ut videretur, cum sibi fideret, de coturno strepere tragico et, ubi paveret, omni humilior socco* (q.v.) it seems necessary to accept *soccatos*, as proposed by C.F.W. Müller, 1873, 360, in view of the parallel phrase *coturnatos... ut Heraclidas*. For other references to comedy see the note ad 28.4.12 *ut enim illi* and on metaphors from the theatre in Amm. Jenkins, 1987. The submissive and modest old men Micio and Laches are characters in the comedies *Adelphoe* and *Hecyra* by Terentius. The Heraclids Cresphontes and Temenus are the mythical conquerors of the Peloponnese. Cresphontes became king of Messene and Temenus of Argos. They were characters in a tragedy by Euripides, entitled *Kresphontes*; Pley, 1922; Mayer, 1934; Harder, 1985. For *coturnus* and its derivatives see the notes ad 20.1.2 *supercilia erigentem ut cornua et de tragico, quod aiunt, coturno strepentem*, 21.16.1 *imperatoriae auctoritatis coturnum ubique custodiens popularitatem elato animo contemnebat* and 27.11.2 quoted above. 4.27

As regards the concluding words *hactenus de senatu*, it was observed ad 28.4.17 *defectum* that Amm. uses the word *senator* only twice in this digression. *Senatus* is found only here. It designates not so much the senate as a political institution, but rather the *ordo senatorius* as the upper stratum in Roman society, called *nobilitas* at the outset of this digression 28.4.6 *Et primo nobilitatis...dein plebis digeremus errata*.

- 4.28 *Nunc ad otiosam plebem veniamus et desidem. in qua nitent ut nominibus cultis quidam calceorum expertes* In the first Roman digression Amm. also speaks about the idleness of the *plebs*, 14.6.17 *servitium cum otiosis plebeiis*. According to Plin. *Nat.* 36.75 the Egyptian kings started work on the pyramids *ne pecuniam successoribus aut aemulis insidiantibus praeberent aut ne plebs esset otiosa*. In connection with the *lex frumentaria* of C. Gracchus Cicero mentions the resistance of the *boni*, *Sest.* 103 *repugnabant boni, quod et ab industria plebem ad desidiam avocari putabant et aerarium exhauriri videbant*. Amm. uses *nitere* several times in the sense of ‘to stand out’, 22.16.6, 23.6.49, 27.4.12. In 29.5.4 it is used of the qualities of the elder Theodosius *cuius virtutes ut impetrabilis ea tempestate prae ceteris nitebant*. Apparently, there were common people who boasted about their names (for *cultus* in the metaphorical sense of ‘chic’ see TLL III 1692.34–35) and pretended to be of a high social position. Amm. makes fun of these people by calling them *calceorum expertes*, which should not be translated as “who have no shoes” (Rolfé, Hamilton), “qui n’ont pas de chaussures à se mettre” (Marié), “wenn sie auch barfuss gehen” (Seyfarth), but should be understood with Van de Wiel, 1989, 218 as not having the *calcei patricii*, i.e. the red or black sandals or half-boots that only senators were allowed to wear; Talbert, 1984, 219–220. The expression *calceos mutare*, used e.g. by Cic. *Phil.* 13.28 *aperitam curiam vidit post Caesaris mortem; mutavit calceos: pater conscriptus repente factus est*, means ‘to become a senator.’ So these people try to keep up a senatorial appearance but their footwear betrays them immediately, as do their names which, though sounding splendid, are actually rather banal.

ut Messores, Statarii, Semicupae et Serapini et Cicymbricus cum Gluturino et Trulla et Lucanicus cum Porclaca et Salsula similesque innumeri What has been said about the list of names of the *nobiles* in section 7 applies also to these plebeian names. In the words of Bartalucci, 1960, 149: “questi nomi, anche se presi, almeno in parte, dalla realtà, oppure contraffazioni di soprannomi o di *cognomina* reali, sono propriamente creazioni dotte

dello spirito satirico dello scrittore". Some of the names refer to food and drink, others to menial occupations. Although the name *Messor* is attested as a personal name (e.g. Schulze, 1904, 38 n. 5), there is no compelling reason to change MV's *Cimessores*, which was interpreted by Vale-sius as a hybrid from Greek κῦμα 'cabbage' and Latin *essor* 'eater'. As Bartalucci rightly observes, no copyist would change the perfectly ordinary words *ut mессores* into something as outlandish as *cimessores*. As a name *Statarius* is unknown, but *statarii* were actors in the *comoedia stataria*, so called because of their quiet and static style of acting. Probably for that reason Cic. *Brut.* 239 called C. Piso *statarius et sermonis plenus orator*. In 14.2.8 and 20.8.1 Amm. speaks about a *congressio* or *pugna stataria*, explained in Forcellini's lexicon as a battle "qua pede collato pugnatur et immobili". What these expressions have in common is the notion of a 'standstill'. *Semicupa* means something like 'half-tun' or 'pot-belly' and is clearly a nickname. *Serapinus* is probably derived from the Egyptian god Serapis; Bartalucci, 1960, 153–154; Seyfarth n. 121. Amm. 16.12.25 mentions an Alamannic king Serapio, *ideo sic appellatus, quod pater eius diu obsidatus pignore tentus in Galliis doctusque Graeca quaedam arcana hunc filium suum, Agenarichum genitalem vocabulo dictitatum ad Serapionis transtulit nomen* ("he was so named because his father, who had for a long time been kept as a hostage in Gaul and had been taught certain Greek mysteries, changed his son's original native name of Agenarichus to that of Serapio", tr. Rolfe). Serapio was derived from Serapis, as was Sarapio, which already occurs in the second century BC and was used as a nickname; Münzer, 1920. The reasons why Clark, followed by Seyfarth, changed MV's *Cicimbricus* into *Cicymbricus* are unfathomable. Obviously, it did not really help, since in his n. 121 Seyfarth admits that *Cicymbricus* "ist nicht zu deuten"; he suggests that the name is connected with the Cimbri. See Bartalucci, 1960, 154–155 for some highly fanciful speculations. *Gluturinus* can be connected with the words *glutto* ('glutton') and *gluttire* ('gulp down'), and denotes someone who stuffs his face or a gourmand. A *trulla* is a scoop for ladling wine from a dipping bowl into a drinking cup. *Lucanicus* is a person from Lucania, but there is a *double entendre* with the sausage *lucanica*, a specialty of the region. *Lucanicus* is used in jest in HA Cc 5.6: *et cum Germanos subegisset, Germanicum se appellavit vel ioco vel serio, ut erat stultus et demens, adserens, si Lucanos vicisset, Lucanicum se appellandum*; see Syme, 1968, 34–35. *Porclaca* is possibly to be associated with *porcula*, a little sow, as Seyfarth n. 121 suggests, rather than with *portulaca*, the vegetable purslane, as Bartalucci, 1960, 158–159 proposes. As to *Salsula*, Lewis and Short s.v.

call it “a Roman female name.” This is correct (e.g. *CIL* 10.7643; Guido, 2007), but in the present context it is more relevant that the name is a pun on *salsus* ‘salty’, which connects it with food, and at the same time means ‘witty’. The translation by Demandt, 1965, 20 brings out well the burlesque character of this list: “die Ackerbauers und Stehestills, Schmerbauchs und Scheuegotts, die Gurkes und Schluckkaufs, Schöpfkelles und Knobelwursts, die Schmatzferkels und Salztopfs”.

- 4.29 *hi omne, quod vivunt, vino et tesseris impendunt et lustris et voluptatibus et spectaculis* The satirical hyperbole is evident in the highly unusual phrase *omne, quod vivunt* ‘every single day of their lives’. For *vivere* with internal object cf. Liv. 25.6.23 *quidquid postea viximus* and Sen. *Phoen.* 47–48 *quid segnis traho/quod vivo?* (“Why do I sluggishly drag out such a life as I have?”, tr. Fitch). For *impendere vitam* cf. 31.13.6 *conabantur modis omnibus vitam impendere non inultam*; Luc. 2.382 names as Cato’s guiding principles *naturamque sequi patriaeque impendere vitam*. In view of such weighty phrases it is clear that in this trivial context Amm.’s words have a sarcastic ring. There is a note on *tessera* ad 28.4.21 *Quidam*. For *lustra* cf. 18.5.6 *Dum haec in castris Constantii quasi per lustra aguntur et scaenam* (“While the court of Constantius was the scene of doings fit for the brothel or the stage”, tr. Hamilton).

eisque templum et habitaculum et contio et cupitorum spes omnis Circus est Maximus Henri de Valois conjectured *cupidorum* for V’s *copitorum*; his brother Adrien went one better and proposed *cupitorum*, which is closer to the ms. and results in a fine example of the gen. identitatis; see the note ad 22.12.7 *caerimoniarum ritus*. For substantivized *cupitum* cf. Sen. *Ep.* 88.29 *optimum esse modum cupitorum* and Pan. 4.2.6 *cupitorum irriti non sumus*; TLL IV 1431.51–64.

In 14.6.25 Amm. had already referred to the popularity of the races among the common people of Rome: *aut, quod est studiorum omnium maximum, ab ortu lucis ad vesperam sole fatiscunt vel pluvii per minutias aurigarum equorumque praecipua vel delicta scrutantes*. A *contio* is originally an assembly called together by a magistrate; the use of the word here is possibly meant to refer to the circus as a political meeting point, which it definitely was, as well as being an arena for chariot races. In the circus, the theatre and the amphitheatre the plebs vented its feelings and expressed its opinions in front of the emperor and magistrates, made requests and submitted petitions. This made the circus an important venue for communication between the lower classes and the

ruling elite; 16.10.13 *et saepe, cum equestres ederet ludos, dicacitate plebis oblectabatur nec superbae nec a libertate coalita descendentis*; Cameron, 1976, 157–192; Veyne, 1976, 701 ff.; Heucke, 1994.

In the fourth century there were still 66 days a year on which chariot races took place, i.e. an average of five days of races per month. In contrast to gladiatorial games the races remained important in the christianising empire of Late Antiquity. In particular Constantine paid much attention to the Circus Maximus; he redecorated it and increased its seating capacity; Aur. Vict. *Caes.* 40.27; *Pan.* 4.35.5. The Circus could hold some 150,000 spectators; Humphrey, 1986, 126, 129. As Amm. 17.4.12–14 reports, Constantine planned to have an obelisk from Egypt set up in the circus, a project which was only carried out when Constantius visited Rome in 357. The organization of the games was still a matter of concern to the emperors, as appears from legislation; e.g. *Cod. Theod.* 6.4.1, 2, 5, 13, 33; *clarissimi* were obliged to come to Rome in order to give their *ludi*; *Cod. Theod.* 6.4.4. Not only emperors showed their interest in the games, Roman aristocrats also still gave sumptuous shows; see the note ad 27.3.6 *hic cum*. In spite of the fact that the iconography of the Circus Maximus was still markedly polytheistic—there were statues of deities, temple structures and altars—Christian emperors felt compelled to maintain the Circus and the races because they formed a strong link between the Roman mob, the senatorial aristocracy and the emperors. See in general for the Circus Maximus in the fourth century, Curran, 2000, 230–259.

et videre licet per fora et compita et plateas et conventicula circulos multos collectos in se controversis iurgiis ferri aliis aliud, ut fit, defendantibus The *compita*, ‘crossroads’, seem to have been the haunt of the plebeians; Gel. 1.22.2 *Atque id dicitur non in compitis tantum neque in plebe volgaria, sed in foro, in comitio, apud tribunalia*. Auson. *epist.* 4.19–20 *Green nam populi coetus et compita sordida rixis/fastidientes cernimus*. About *platea* Harsh, 1937, 49 remarks: “‘Boulevard’ would be a good translation...preserving in English the foreign flavor which *platea* has in Latin”. Amm. uses *conventiculum* twice for a church (15.5.31, 27.3.13 *ritus Christiani...conventiculum*), which suggests that he is thinking of a roofed building. *Controversis iurgiis* is well translated by Hamilton: “heated discussions on one side or the other of some question”. For *ferri* in ‘to attack’ cf. 19.11.10 *incondita multitudo...ululans ferum in ipsum principem ferebatur*; Cic. *S. Rosc.* 88 *is qui ardens avaritia feratur infestus in suos*; Man. 4.873 *quid iuvat in semet sua per convicia ferri* (“What boots it to assail oneself with self-reproach?”; tr. Goold).

4.30 *inter quos hi, qui ad satietatem vixerunt potiores auctoritate longaeva per canos et rugas clamitant saepe rem publicam stare non posse* Cf. 31.6.8 *senes denique multi ad satietatem vixisse clamantes*; V. Max. 8.13 ext. 4 *Arganthonius autem Gaditanus tam diu regnavit, quam diu etiam ad satietatem vixisse abunde foret*. Comparing Sen. brev. vit. 7.10 *Non est itaque quod quemquam propter canos aut rugas putes diu vixisse: non ille diu vixit, sed diu fuit*, Valesius conjectured *per canos et rugas clamitant* for V's *per ianos et rogant vel amittant*, which is very convincing, although it is more likely that Amm. had in mind Cic. Sen. 62 *non cani nec rugae repente auctoritatem arripere possunt, sed honeste acta superior aetas fructus capit auctoritatis extremos*. For *per*, 'by', in forms of adjuration (OLD 10 b) cf. 24.3.9 *cum non per caritates, sed per inchoatas negotiorum magnitudines deieraret assidue*. Under the heading "In difesa del testo" Salemme, 1989, 115–117 breaks a lance for Gelenius' *per Ianos et fora* ('under arches and in public squares') *clamitant*, which, however, tallies less well with *potiores auctoritate*. The phrase *rem publicam stare non posse* calls to mind statements like Cic. Dom. 73 (*senatus ostendit*) *nec stare potuisse rem publicam si ego non fuisset, nec futuram esse ullam si non redisset* and Tac. Hist. 1.16.1 *Si immensum imperii corpus stare ac librari sine rectore posset et cetera*, which adds ridicule to the doom-mongering of these old men.

si futura concertatione, quem quisque vindicat, carceribus non exsiluerit princeps et inominalibus equis parum cohaerenter circumflexerit metam Cf. 21.11.3 *futurae concertationi* with the note. The noun refers here to the impending chariot race. Since *circumflexerit* is said of the charioteer, who with his horses (*equis*) rounds the *meta*, and since *exsiluerit* and *circumflexerit* must have the same subject, the relative clause must refer to the *auriga*. There seems to be no parallel for *vindicare* in the sense of *favere* required here.

The starting gates, *carceres*, were at the narrow side of the hippodrome, i.e. the side of the *porta pompae*; Var. L. 5.153; Lucr. 2.264, 4.990; Cic. Brut. 173; Verg. G. 1.512. In the fourth century the Circus Maximus had twelve starting gates. For a detailed study of the literary and archeological material about the *carceres* of the Circus Maximus, see Humphrey, 1986, 132–174. The phrase *inominalibus equis* poses an interesting textual problem. MV have a lacuna of thirteen letters after *prin* and resume the text with *nominalibus*. Harmon's *inominalibus* ('inauspicious') seems unassailable palaeographically. Moreover, Amm. may have borrowed this rare adj. from Gel. 5.17.3 *Ante diem quoque quartum Kalendas vel Nonas*

vel Idus tamquam inominalem diem plerique vitant, quoted literally in Macr. *Sat.* 1.16.26. But what are ‘inauspicious horses’? Explanations range from ‘put under a curse’ to ‘doomed to failure’ (because of a wrong manoeuvre), which seems a far cry from the meaning in Gellius. Valesius conjectured *funalibus equis*, which suits the context perfectly. The charioteer of a *quadriga* has two yoke horses (*iugales*) and two track horses (*funales*), one on the inside (left), one on the outside (right). The latter two were of crucial importance for rounding the *meta*. As an illustration Valesius quotes Luc. 8.199–201 *moderator equorum, / dexteriore rota laevum cum circumit axem, / cogit inoffensae currus accedere metae* (“the charioteer makes the right wheel spin round the left [the left wheel acting as a pivot], and forces the car close to the turning post without striking it”, tr. Duff). So we have to choose between a reading which is palaeographically superior and a reading superior in content. In view of the damaged state of the text at this point with a lacuna preceding the words in question and a lacuna following it—which makes a full reconstruction illusory—it seems wise to let sense prevail. For *cohaerenter* ‘closely’ see the note ad 20.7.4 *quod*. Amm. borrowed the verb *circumflectere* in this literal meaning from Verg. *A.* 3.429–430 *praestat Trinacrii metas lustrare Pachyni / cessantem longos et circumflectere cursus* and 5.131.

et ubi neglegentiae tanta est caries, exoptato die equestrium ludorum illucescente nondum solis puro iubare fusius omnes festinant praecipites, ut velocitate currus ipsos anteeant certaturos Some translators attribute to *ubi* a temporal (“then”, Rolfe) or even a causal meaning (“puisque”, Marié), but the local meaning, ‘in surroundings where’, referring to Rome, is perfectly adequate. For *neglegentia* as the opposite of *diligentia* cf. Ter. *Andr.* 20–21 *quorum aemulari exoptat neclegentiam / potius quam istorum obscuram diligentiam* and Cic. *Att.* 8.11.6 *Epistularum Pompei duarum quas ad me misit neglegentiam meamque in rescribendo diligentiam volui tibi notam esse*. *Neglegentiae caries* is a fine specimen of the gen. identitatis. One cannot expect the *plebs otiosa et deses* to be a flock of early birds, except when the ‘eagerly awaited’ day of the races has come. As De Jonge observed in the note ad 16.10.13 *equestres*, Amm. refers to *ludi circenses* when he speaks of *ludi equestres*. In 14.11.12 Amm. had used the same expression. For the poeticism *iubar* see Hagendahl, 1921, 32. On p. 102–103 Hagendahl mentions *illucescente nondum solis puro iubare* among Amm.’s thirty-five expressions for ‘daybreak’. Surprisingly *purus* is hardly ever an attribute of the sun; one of the rare examples is Hor. *Carm.* 3.29.43–45 *cras vel atra / nube polum Pater occupato / vel*

4.31

sole puro; see TLL X 2.2719.15–45 and Nisbet-Rudd ad loc. For *fusius* ‘en masse’ see the notes ad 16.11.3 *vagantesque* and 21.16.18 *progressa*. Note the fine alliteration in *fusius omnes festinant praecipites*.

super quorum eventu discissis votorum studiis anxii plurimi agunt pervigiles noctes As van de Wiel observes ad 27.3.12 *scissis studiis*, Amm. probably imitates Verg. A. 2.39 *scinditur incertum studia in contraria vulgus*. *Votorum* refers to the hopes and prayers of the aficionados. TLL X 1.1872.56 correctly takes *pervigiles* with *noctes*.

- 4.32** *Unde si ad theatralem vēntum fuerit vilitātem, artifices scaenarii per sibilos exploduntur, si qui sibi aere humiliorem non conciliaverit plebem* For passive perfect forms with *fui* see the note ad 20.11.19 *cum ventum*. Note that at the end of the first colon six unaccented syllables separate the accented ones if we take *ventum fuerit* as one word (as is the rule with such composite verb forms; cf. 15.3.10 *sed ubi uēntum est Aquileiam*, 21.13.15 *si uēntum fuerit cōminus*, 31.5.10 *Et quoniam ad has partes post multiplices uēntum est āctus*). Harmon 169 mentions only five other instances of this type. The adj. *theatralem* is the equivalent of a gen. inversus. Cf. 27.12.6 *in asperitate montana* and see Szantyr 60 for cases of an adj. as a substitute for a gen. possessivus.

As was observed ad 28.4.2 *quod citeriorem*, Amm. had little regard for the theatre. Jenkins, 1987, 56 n. 5 notes that he shared this disdain with Julian himself, who wrote in *Ep.* 89 b, 304 c ἀξιῶ δὲ τοὺς ἱερέας ὑποχωρῆσαι καὶ ἀποστῆναι τῷ δήμῳ τῆς ἐν τοῖς θεάτροις ἀσελγείας (‘But I do demand that priests should withdraw themselves from the licentiousness of the theatres and leave them to the crowd’, tr. Wright). Amm. uses *vilitas* in the sense of ‘cheapness’, 22.14.1 (Julian) *vilitati studebat venalium rerum*; ‘lowness of rank’, 14.1.6 *homines quidam ignoti vilitate ipsa parum cavendi*; and ‘banality’, 14.6.2 (about Rome) *nihil praeter seditiones narratur et tabernas et vilitates harum similes alias*. For *artifices scaenarii* (or *scaenici*) ‘actors’ see TLL II 699.18–46. Actors could be driven off the stage by clapping, catcalls or hissing, cf. Cic. *Q. Rosc.* 30 *posteaquam e scaena non modo sibilis, sed etiam convicio explodabatur*. As Liebeschuetz, 1972, 212 explains, the claque was employed by the actors, who consequently had a lucrative bargaining position in dealing with officials who wanted to manipulate the crowd by hiring clagues. *Cod. Theod.* 15.9.2 (from 409) encourages judges to attend the performances, but not to spend too much money on the claqueurs: *cunctos iudices admonemus, ut ludorum quidem, quibus moris est,*

intersint festivitati et oblectamentis favorem eliciant populorum, verum expensarum non excedant duorum solidorum librata impendia, nec inconsulta plausorum insania curialium vires, fortunas civium, principalium domus, possessorum opes, rei publicae robur evellant (“We encourage all judges that they shall be present at the festivities of shows, where that is the custom, and elicit the favor of the people by amusements, but their expenses shall not exceed the moderate outlay of two solidi. They shall not, through imprudent and insane cravings for plaudits, destroy the resources of decurions, the fortunes of citizens, the houses of the chief decurions, the riches of the landowners, the strength of the municipalities”, tr. Pharr, adapted). Petr. 5 is the first to mention a paid claue: *neve plausor in scaenam sedeat redemptus histrionis ad rictus* (‘let him not sit in the theatre paid to applaud the grimaces of actors’). Nero is known to have organised a professional claue of Roman *equites*; Tac. *Ann.* 14.15.5 *ii dies ac noctes plausibus personare, formam principis vocemque deum vocabulis appellantes*; also *Ann.* 16.4.4, 16.5.1; Suet. *Nero* 25.1 *sequentibus currum ovantium ritu plausoribus*. Like the amphitheatre and the circus, the theatre too functioned as a political arena; slogans and chants of the clagues could have political consequences, and clagues were sometimes organized for political reasons; see Arnaud, 2004.

qui si defuerit strepitus, ad imitationem Tauricae gentis peregrinos vociferantur pelli debere Presumably *qui strepitus* is the equivalent of *eius rei strepitus* ‘an uproar for this reason’. In 22.8.33–34 (q.v.) Amm. described the Tauri as a ferocious and barbaric people, who were guilty of human sacrifice and offered strangers to Diana: *deos enim hostiis litantes humanis et immolantes advenas Dianae*.

Is this an indication of xenophobia on the part of the Roman plebs? The present passage is reminiscent of 14.6.19, where Amm. speaks in bitter terms about the expulsion of strangers from the city when there was a scarcity of food: *cum peregrini ob formidatam haud ita dudum alimentorum inopiam pellerentur ab urbe praecipites*, with note De Jonge ad loc.; cf. Kelly 132 ff. who opposes the view expressed by many scholars that Amm. himself was expelled from Rome during a period of food shortage. Such an expulsion was not an unusual measure, as appears for instance from Suet. *Aug.* 42.3 *cum...peregrinosque omnes exceptis medicis et praeceptoribus partemque servitorum urbe expulisset*; D.C. 55.26.1; Oros. *hist.* 7.3.6. Tiberius expelled Egyptians and Isis worshippers in 19 AD; J. *AJ* 18.65–80; Tac. *Ann.* 2.85.5. In the same year he also expelled

Jews—Tac. *Ann.* 2.85.5; Suet. *Tib.* 36.1, as did Claudius in 49 AD; Suet. *Cl.* 25.4; *Acta* 18.2. Astrologers, philosophers and actors were also victims of expulsion from Rome; e.g. Tac. *Ann.* 2.32.3, 4.14.3; Tac. *Hist.* 1.22.1, 2.62.2; D.C. 57.21.3, 67.13.3; Tac. *Ag.* 2.2; Suet. *Dom.* 10.3.

quorum subsidiis semper nisi sunt ac steterunt The idea that Rome owed much of its greatness and stability to immigrants from the provinces is forcefully expressed by the emperor Claudius in his famous speech to the senate in Tac. *Ann.* 11.24 and, in the emperor's own words, on the *Tabula Lugdunensis* (CIL 13.1668 = ILS 212). See also Aur. Vict. *Caes.* 11.12–13: *Hactenus* (until the end of the Flavian dynasty) *Romae seu per Italiam orti imperium rexere, hinc advenae quoque; nescio an ut in Prisco Tarquinio longe meliores. Ac mihi quidem audienti multa legitique plane compertum urbem Romam externorum virtute atque insitivis artibus praecipue crevisse* ("Up to this time men born at Rome or in Italy had ruled the empire, afterwards foreigners did, too; perhaps, as was the case with Tarquinius Priscus, they were far better. And to me at least, it is perfectly clear that the city of Rome grew great in particular through the qualities of outsiders and imported talents", tr. Bird).

et taetris vocibus et absurdis; quae longe abhorrent a studiis et voluntate veteris illius plebis, cuius multa facete dicta memoria loquitur et venusta It seems best to take *et taetris vocibus et absurdis* as an abl. of manner with *vociferantur*, 'in words that are both repulsive and senseless'. For *taeter* cf. 19.12.16 *blanditiarum taetra commenta* and for *absurdus* 15.5.37 *versus absurdos et inconcinnos*. The two adjectives are chiasmatically opposed to *multa facete dicta* and *venusta*. Blomgren 86 n. 1 plausibly suggests that both *multa* and *venusta* qualify *facete dicta* 'jokes', which would make *venuste*, proposed by Novák, 1896, 65, superfluous. *Studium* and *voluntas* are often combined, the latter noun expressing a more or less permanent inclination, the former a particular preference or concern, 'the wishes and the disposition'. The proud self-assurance of the Roman plebs vis-à-vis the emperor is painted in glowing colours by Nazarius in *Pan.* 4.35.3 *Populi vero Romani vis illa et magnitudo venerabilis ad imaginem antiquitatis relata non licentia effrenis exsultat, non abiecta languide iacet, sed sic adsiduis divini principis monitis temperata est ut, cum ad nutum eius flexibilis et tenera ducatur, morigeram se non terrori eius praebeat sed benignitati* ("Even that force and venerable greatness of the Roman people, restored to the likeness of its ancient self, does not exult in unrestrained licence, does not lie feebly despondent, but has been so tempered

by the constant admonitions of the divine ruler that since it is made pliant and soft to his will it shows itself obedient not to his fearsomeness, but to his kindness”, tr. Rodgers). The yells of the mob in the theatre were not only funny but could also have serious political undertones; see the note above ad § 29 *eisque templum*. In 16.10.13, quoted there, Constantius is said to have been amused by the freedom with which the plebeians expressed themselves in his presence. Julian, however, was scoffed at by the Antiochenes, 22.14.2 *post quae multa in se facete dicta comperiens coactus dissimulare pro tempore ira sufflabatur interna* (q.v.).

As Kelly 74 n. 128 observes, *memoria* may be translated as ‘history’ in many places in Ammianus. Note the remarkable hyperbaton c.c. of *venusta*.

sed enim nunc repertum est pro sonitu laudum impensiore, per applicatos homines ad plaudendum For MV’s *venustas id enim* Eyssenhardt proposed *venusta sed enim*, which was printed by Clark and Seyfarth. It would have been better to accept Gelenius’ *venusta id enim*, as Rolfe and Marié did, since Amm. nowhere writes *sed enim*, whereas *id enim* occurs fifteen times, in which *id* is used both anaphorically and cataphorically. Here evidently the latter is the case. Amm. contrasts the civilized behaviour of the ancient plebs with its tasteless misconduct in his own days, something Amm.’s audience will certainly know from experience (*enim*). With *sonitu laudum impensiore* we may compare Gel. 9.4.8 *si impensius forte laudaverint*. For *applicare ad* TLL II 298.74–77 compares Fron. Str. 1.5.9 *tertia autem acie furtim a tergo ad opus applicata* (“while the third line secretly applied itself to work in the rear”, tr. McElwain), so that this would refer again to a claque hired for the purpose. Libanius mentions such ‘professionals’ in Or. 56.2: Οἱ...ἐπὶ ταῖς εὐφημίαις οὗτοι τεταγμένοι καὶ τοῦτ’ ἔχοντες τέχνην (‘those who are appointed for that purpose and whose skill that is’).

4.33

ut in omni spectaculo exodiaro venatori aurigae et histrionum generi omni et iudicibus celsis itidemque minoribus nec non etiam matronis clametur assidue: “per te illi discant”; quid autem debeat disci, nemo sufficit explanare According to Schol. Iuv. 3.175 the *exodiarus* was a comic actor, who played in an *exodium*, a farce at the end of a theatre performance; Suet. Tib. 45 and Dom. 10.4. A *spectaculum exodiarium* was presumably such a farce, after which the public thanked not just the animal hunter, the charioteer and all kinds of actors, but also the higher and lower magistrates, or even the ladies who had paid for the shows. A

venator is a hunter at a *venatio*, i.e. a staged hunt in the arena; *venatores*, who wore no armour as other stage fighters did, had as weapons a *venabulum* (a thrusting spear) and a *lancea* (a light throwing spear); Dunkle, 2008, 78–89.

The yell *per te illi discant* must mean ‘let them take lessons from you’ or ‘they should take you as their model’, which is certainly meant to express praise. *Illi* refers to future givers of games, as can be seen in a series of acclamations preserved on a mosaic from Smirat in Tunisia quoted by Matthews 542 n. 32: *Adclamatum est: “exemplo tuo, munus sic discant futuri”*; Roueché, 1984, 183; Beschaouch, 1966 and on acclamations in general, Liebeschuetz, 1972, 208–219; Cameron, 1976, 231–233; Matthews, 2000, 35–54. For *sufficere* ‘to be able’ see the note ad 25.2.6 *scintillas*.

- 4.34 This section is the triumphant final chord of the digression with its densely knit literary allusions and the accumulation of graphic details resulting in a virtuoso display of *evidentia*. The historian has been taken over completely by the satirist. A full discussion is to be found in Salemme, 1989, 16–21. See also Kelly 195.

In his plerique distentioribus saginis addicti praeunte nidoris indagine acutisque vocibus feminarum a galliciniis ipsis in modum pavorum ieiunitate clangentium The last type to be reviewed is the glutton, who is addicted to fattening food. For *addictus* in this meaning cf. 27.12.1 *dulcedini rapinarum addictus* (q.v.). In 22.12.6 the author speaks about Julian’s soldiers, who in Antioch gorged themselves on sacrificial meat: *milites carnis distentiore sagina victitantes incultius*. There, as here, *distentiore* is a transferred epithet. In 22.15.23 *ut...sagina distentum* (ventrem) *faciat levem* it is used in its proper sense. The gluttons are guided by the rich smell of food. For *praeire* in the metaphorical sense of ‘to act as a guide’ cf. 26.6.12 *praeunte perdita ratione facinus adoritur audacissimum* (q.v.). In TLL VII 1.1107.3 *indagine* is well paraphrased as “fere i.q. odoratione”, so that the men are implicitly compared to a pack of hounds. The emperor Claudius once left a meeting of a court, tempted by the smell of a dinner prepared for the Salii (*ictus...nidore prandii*, Suet. *Cl.* 33.1). Cf. also Juv. 5.162 *captum te nidore suae putat ille culinae*. The most relevant parallel has been pointed out by Salemme, 1989, 18, viz. Gel. 6.16.6 *has undique vorsum indagine cuppediarum maiore detestatione dignas censebimus* (“this eager quest of dainties from all quarters we shall consider deserving of greater detestation”, tr. Rolfe).

The starvelings also go towards the shrill voices of the women preparing the meal, who are explicitly compared to peacocks crying with hunger (*ieiunitate* was convincingly conjectured by Haupt, 1876, 392 for V's *hiennitare*). There is no reason to reject V's *pavorum* in favour of A's *pavonum*; TLL X 1.835.70sqq. It seems best to take *clangentium* apokoinou with *feminarum* and *pavorum*, since otherwise a *galliciniis ipsis* would be unconnected with a verb. Marié's translation "comme des paons qui piaillent de faim, ils montent la garde près des marmites" mistakenly suggests that it is the men who are compared to the peacocks. The choice of *clangere* may well be ironical, in view of Suet. *fr.* 161 (p. 250–251Re) *aquilarum* (est) *clangere*. Salemmé, 1989, 17 n. 10 aptly refers to *Physiogn.* 130 *Pavus animal est...clamosum, femininae vocis*. The contrast between the beauty of the peacock's feathers and the ugliness of its voice is mentioned in *Phaed.* 3.18.4 (the peacock complains) *se derideri, simul ac vocem miserit* and *Tert. anim.* 33.8 *Et si pulcherrimus pavus...sed displicet vox*. For *gallicinium*, a term well suited to the context, cf. 22.14.4 (Cassius montem) *unde secundis galliciniis videtur primo solis exortus* (q.v.) and *Cens.* 24.2 *sequitur gallicinium, cum galli canere incipiunt, dein conticium, cum conticuerunt; tunc ante lucem, et sic diluculum, cum sole nondum orto iam lucet*.

humum summis pedum unguibus contingentes aulis assistunt digitos praerodentes, dum patinae defervescent The starvelings, standing tiptoe around the saucepans, bite their nails impatiently. *Aula* is explained in *Non.* p. 543M: *aula, quam nos ollam dicimus; et est capacissimum vas*; TLL II 1453.12–13. For *summis...unguibus* cf. 25.4.22 *ab ipso capite usque unguium summitates*. According to Mazzarino, 1951, 220 *Amm.* describes here the public distribution of meat; Chastagnol, 1960, 325–330. Lindénbrog spotted *Pl. Ps.* 883–884 as *Amm.*'s model, where the cook promises a delicious meal *ut quisque quicque conditum gustaverit/ipsus sibi faciam ut digitos praerodat suos*. There is a difference in that in *Amm.* the men bite their nails in anticipation, whereas in *Plautus* the guests lick their fingers after eating, but the rarity of *praerodere* guarantees that this is a deliberate allusion. Kelly 195 plausibly connects *dum patinae defervescent* 'until the pots will cool down' with *Pl. Ps.* 840 *ubi omnes patinae fervont* 'when all the pots grow hot', but again *Gel.* 17.8.17 *aula deferbuerat, tempusque esse coeperat edendi*, quoted by Salemmé, 1989, 19, is even more to the point. This would be the only instance of *dum* with a future indicative in *Amm.*, apart from 14.6.3 *dum erunt homines*, where it is flanked by a future participle *victura*. It seems

better therefore to write *defervescunt* in accordance with the following *dum excoquitur*, which is the reading of MV.

alii nauseam horridae carnis, dum excoquetur, intentius despectantes, ut discissarum pecudum exta rimari cum anatomicis Democritum putes docentem, quibus modis posteritas mederi doloribus possit internis The phrase *nauseam horridae carnis* is a kind of gen. inversus: 'a nauseating and hideous chunk of meat'. The word *nausea* seems to evoke the sickening smell of the boiling meat, while *horridae* would refer more naturally to its unpleasant sight. For the future *excoquetur*, printed c.c. by Clark and Seyfarth instead of MV's *excoquitur*, see the preceding note. It seems preferable to keep *excoquitur* and either accept an irregular *cursus*, or let the colon end with *inténtius despectántes*.

For other consecutive clauses with *ut...putes* see the note ad 28.4.22 *ut id*. For *discindere* 'to carve' cf. Fest. p. 73M *lanius dicitur, qui pecus discindit*, Verg. G. 3.514 *discissos nudis laniabant dentibus artus*, Sen. Med. 259–260 *caesi senis/discissa membra*. Democritus of Abdera (born c. 460 BC) is also mentioned in 15.1.4, 16.5.1 (q.v.) and 22.8.3. Although he is especially known as one of the main representatives of atomistic theory, he also wrote about medical issues. However, only the titles of his medical treatises have been preserved; D.L. 9.46–47. Cicero reports that Democritus approved the practice of the ancients, who studied the entrails of sacrificial animals in order to discover whether the food they had eaten was healthy or not, Div. 1.131 *Democritus autem censet sapienter instituisse veteres, ut hostiarum immolatarum inspicerentur exta; quorum ex habitu atque ex colore tum salubritatis, tum pestilentiae signa percipi*. In his note ad loc. Pease quotes Vit. 1.4.9, who was of the opinion that the knowledge thus obtained could be useful also for human beings: *si autem vitiosa inveniebant* (sc. the livers), *iudicio transferebant item humanis corporibus pestilentem futuram nascentem in his locis aquae cibique copiam* ('if, however, they found them faulty, by analogy they judged that the supply of food and water which was to be found in these places would be also pestilential for human bodies', tr. Granger, adapted). Still, the choice of the terms *discissarum* instead of *immolatarum*, and the mention of anatomists, shows that Amm. is thinking of anatomical research for scientific purposes. A spurious letter in the *Corpus Hippocraticum* describes how Hippocrates visited Democritus in Abdera to cure him of his *mania*. He found the philosopher surrounded by piles of dissected animals of which he studied the livers to find a cure for madness, Hp. Ep. 17 σεώρευτο δὲ καὶ ζῶα συχνὰ ἀνατετμημένα. See

Sabbah, 1982, 156 n. 100; Nutton, 2004, 49. According to Sabbah, 1982, 147, by sketching an ‘anatomy lesson’ of the common people studying the cooking of meat and comparing it with the serious and salutary work of real anatomists such as Democritus, Amm. emphasizes the moral degeneration and sickness of Roman society. This is an interesting notion, but hardly in keeping with the hilarious character of this vignette, which is strongly reminiscent of the schoolmaster and his pupils in section 13. For the rare noun *anatomicus* TLL II 21.60–62 quotes August. *C.D.* 22.24 *medicorum diligentia...quos anatomicos appellant, laniavit corpora mortuorum*.

Sit satis interim haec digessisse super rebus urbanis. nunc redeamus ad cetera, quae per prouincias agitauere multiplices casus Cf. 15.11.18 *sit satis de situ locorum* and in general about the conclusion of digressions the note ad 22.8.48 *prolati*. The *multiplices casus* are the works of fortune, which brings about the events in the provinces that Amm. will describe in the next chapters. For comparable phrases see the note ad 27.1.1 *Dum per eoum orbem haec, quae narravimus, diversi rerum expediunt casus*. 4.35

CHAPTER 5

Introduction

As he had announced at the end of the previous, 'Roman', chapter, Ammianus now returns to the provinces. The present chapter contains his reports on campaigns in the north-west part of the *limes*. These reports leave much to be desired: too often do stereotyped phrases take the place of enlightening information.

The first sections of the chapter give an account of a Saxon invasion of Roman territory in 370. This account fails to inform the reader where the Saxons invaded, where the Roman-Saxon military encounters took place, and where the Saxons were finally massacred. In all probability, Ammianus' sources were inadequate. He did, however, know that Valentinian took the invasion very seriously, since he replaced the regional commander with the highest Roman general in Gaul, who coped successfully with the dangerous situation. A disturbing aspect of this success was the flagrant breach of the truce with the Saxons, who were fatally ambushed during their homeward retreat. Ammianus acknowledges the questionable character of the Roman strategy, but argues that Roman interests had to prevail.

The second part of the chapter focuses on the Burgundians. Valentinian entered into an agreement with this warlike Germanic people in order to deal a decisive blow to the Alamans, whose restlessness was worrying him considerably. The strategy agreed upon obviously implied a pincer movement. The Burgundians executed their part of the agreement satisfactorily, but Valentinian strangely refrained from any action and countered the complaints of his allies with various excuses. In spite of this strange conduct he achieved his aim, because the Alamans suffered heavy losses.

Ammianus wrongly describes the crushing of the Saxon attack and the operations against the Alamanni as two consecutive events. In actual fact they took place simultaneously in the summer of 370.

Erupit Augustis ter consulibus Saxonum multitudo et oceani difficultatibus permeatis Romanum limitem gradu petebat intento saepe nostrorum

funeribus pasta The third consulate of Valentinian and Valens is dated in 370; Bagnall et al., 1987, 274–275. Amm. had first mentioned the Saxons in 26.4.5 (q.v.) as one of the peoples that caused the Romans serious troubles with their raids and invasions into Roman territory. In 28.2.12 (q.v.) he had compared them to the Maratocupreni who, like the Saxons, were feared by their enemies for the suddenness and unpredictability of their raids; cf. also 30.7.8 *Saxonas semper quolibet inexplorato ruentes* (“The Saxons who were always rushing wherever they pleased without reconnaissances”, tr. Rolfe). For Amm.’s characterization of the Saxons, see Bartholomew, 1984, 171–172. The Saxons inhabited what is now the north of the Netherlands, northern Germany and Denmark; Elton, 1996, 21; Halsall, 2007, 119–120. This is not the first time that the Romans suffered from a Saxon invasion. Amm. had earlier referred to Saxon raids on the Gallic coast in 27.8.5 (with the note ad *Gallicanos*). Where exactly the Saxons attacked the Roman frontier in 370 is not known, but because Amm.’s words *oceanī difficultatibus permeatis* indicate that it was a seaborne attack—*oceanus* refers to the North Sea—the inroads probably took place on the Gallic coast, the north-western part of Belgica Secunda and the northern part of Germania Secunda. Oros. *hist.* 7.32.10 *Valentinianus Saxones, gentem in oceanī litoribus et paludibus inuisitā, virtute atque agilitate terribilem, periculosā Romanis finibus eruptionem magna mole meditantē in ipsis Francorum finibus oppressit* most probably refers to the same invasion. According to Errington, 2006, 50 the main aim of these Saxon attacks were the Salian Franks in Toxandria (i.e. roughly modern North Brabant) which was situated within the Roman Empire; see also Gutmann, 1991, 47–48. These were in all likelihood other Franks than those, together with whom the Saxons had attacked the Gallic regions three years earlier, and referred to by Amm. in 27.8.5. A Saxon raid is also mentioned in Valentinian’s necrology in 30.7.8: *Inter haec tamen caute gesta iam conversos ad metuendam rabiem Saxonas... malefido quidem, sed utili commento peremit* (“While he was accomplishing these deeds with due caution, the Saxons had broken out in formidable madness... but by a treacherous but expedient stratagem he [Valentinian] crushed them”, tr. Rolfe). Although it has been argued by e.g. Verlinden, 1946, 65–68 and Seyfarth, 1986³, 333 n. 131 that this was another invasion than took place in 373—Hier. *Chron.* a. 373 *Saxones caesi Deusone in regione Francorum* is the most important evidence—, there was only one Saxon invasion during these years. Amm.’s opinion as to how the Romans ultimately dealt with the Saxons—*factum incusabit... non feret indigne* (28.5.7) and *malefido quidem, sed utili commento*

peremit—is a strong, if not a decisive, indication for this. The passage in 30.7.8 therefore refers to the invasion of 370 as Angliviel de la Beaumelle n. 312 correctly argues (“La campagne contre les Saxons est relatée en 28,5,1–7”); cf. also the note *occulte* at § 5 below.

The first position of the predicate *erupit* characterizes the opening sentence of the chapter as ‘presentative’; cf. for this phenomenon the note ad 28.3.3 *Evenerat*. See the notes ad 24.1.3 *si erupissent* and 28.2.12 *nec quisquam* for *erumpere* denoting sudden attacks on Roman territory. Amm. has a predilection for *multitudo* and uses it often in contexts of fighting; see the note ad 21.7.5 *multitudo*. Cf. *permeato flumine* (21.13.2, q.v.) and *permeatoque...mari* (26.8.1, q.v.). Here the verb is used in a slightly transferred sense with ‘difficult situations’ during their crossing of the sea. See for the Roman *limes* the notes ad 17.13.1 *limitem*, 20.10.1 *in limitem*, 23.3.4 *vicino limite*, the last section of the note ad 28.3.7 *instaurabat* and 25.6.11 *fama*. TLL VII 1.2118.15–25 registers a number of cases in which *intentus* is used as a synonym of *acer* or *strenuus*; other examples in Amm. are *studio...intento* (18.2.14, q.v.), 22.16.13 *vigiliis intentis*, 27.12.5 *intentione cura*. Cf. for *pasta*, ‘having fed on’, *pasti enim ex his quidam templorum spoliis* (22.4.3, q.v.). The crudeness of the metaphor is illustrated in 14.9.9 where Gallus is said to behave *ut leo cadaveribus pastus*. See further TLL X 1.600.51–601.41.

cuius eruptionis primae procellam Nannienus sustinuit comes regionibus isdem appositus, dux diuturno bellorum labore compertus The first part of the lemma seems to have been inspired by *terror effecit ne sustinere primam procellam eruptionis Romani possent* (Liv. 43.10.6). Most translators assume that *primae* means ‘first’, obviously of a series, but no other *eruptiones* of Saxons are mentioned in the chapter. “La tempesta provocata dall’inizio di questa eruzione” (Viansino) is therefore a better solution. See for *primus* denoting the first part or phase of something Kühner-Stegmann II 1. 233, OLD s.v. *primus* 3b; some examples: *a prima obsidione ad Ciceronem perfugerat* (Caes. Gal. 5.45.2), *vere et prima aestate* (Sen. Nat. 4a.2.19).

Apart from giving Nannienus (*PLRE* I, Nannienus) the title *comes*, Amm. is unclear about his military function. The *PLRE* suggests that he was either *comes tractus Armorici* or, less probably, *comes litoris Saxonici* or *Brittanniarum*. He is mentioned again in 31.10.6–10 as one of the Roman commanders at the battle of Argentaria (378) against the Lentienses; Amm. characterized him as a leader of valour and discretion (*virtutis sobriae duci*, 31.10.6). In 387–388 Nannienus was *magister*

militum, if the information in Greg. Tur. *Franc.* 2.9 (*Nanninus et Quintinus militaris magistri*) is correct and applies to the same Nannienus. The regions Amm. is referring to are obviously located in north-western Gaul. Cf. for *appondere aliquem alicui rei*, 'to appoint a person to a task', *spectatores apponebat his litibus* (21.16.9); in the present text *regionibus isdem* is shorthand for 'the defence of the regions just mentioned'. Anaphoric *isdem* refers to *Romanum limitem*. Cf. for *compertus* as a synonym of *spectatus* 22.4.2 *morumque probitate compertos* (q.v.), 23.1.4 *meritisque probabilis vitae compertos*.

- 5.2 *sed tunc ad mortem destinatae plebi congressus cum milites quosdam ruisse et se vulneratum imparem fore certaminibus adverteret crebris* The words *sed tunc* express the contrast between Nannienus' merits in the past with the situation he had to cope with now: combating an enemy who was determined to fight to the bitter end; cf. *barbarorum mori destinatorum* (19.11.13, q.v.) See for *destinatus*, 'determined', also the notes ad 17.2.2 *destinatus*, 20.4.14 *destinatus*, 25.5.3 *honoratior*, and Seager 29–30. Bartholomew, 1984, 171 prefers to translate "marked out for death" because, in his view, Amm. anticipated with this phrase the disastrous end of the Saxon expedition as related later in this chapter, when all Saxons were massacred by the Romans. Bartholomew's interpretation is incorrect; *destinatus* as used by Amm. means 'resolved' or 'determined'; see the note ad 20.11.7 *atque cum*. Rolfe's translation is therefore correct as are the renderings by Seyfarth ("zum Tode zu kämpfen entschlossen"), Caltabiano ("pronta a morire"), and Marié ("résolue à combattre jusqu'à la mort").

Cf. for *ruere*, 'to fall in battle', *graviter vulnerati ruebant* (19.5.6), *sagitta perniciose saucius ruit* (31.13.12). As in 22.8.36 *quaedam per Tauricam civitates*, plural *quidam* means "some number of, some few" (OLD s.v. *quidam* 1, 4b). Although the Roman losses were as yet limited, Nannienus, who foresaw many more battles, drew the lucid conclusion that reinforcements were indispensable. More and better forces as well as another experienced commander were needed for the confrontations with the Saxons. That his forces were insufficient is expressed in Amm.'s words *qui ducens militem rei sufficientem* in § 3 of this chapter.

docto imperatore, quid agi deberet, id est adeptus, ut peditum magister Severus opitulatum rebus dubiis adveniret Nannienus' despatch to Valentinian met with considerable success: none other than the *magister peditum praesentalis* was sent to the threatened region. See for this function

the note ad 20.2.1 *peditum magistrum* and for the ‘old-fashioned’ verb *opitulari* with a complement in the dative the relevant note ad 20.2.4. Its supinum I also occurs in 16.12.45 *opitulatum conturmalibus suis celeri cursu Batavi venere*. For Severus (PLRE I, Severus 10) see the note ad 27.6.3 *contra hos*.

qui ducens militem rei sufficientem cum venisset ad loca, discriminatis 5.3
ordinibus superbos barbaros ante colluctationem adeo terruit et turbavit,
ut nec controversas opponerent manus, sed signorum aquilarumque ful-
gore praestricti venialem poscerent pacem See for the collective singular *miles* Kühner-Stegmann I 1.67; Szantyr 13; OLD s.v. 1b. Cf. 26.6.11 *sufficiens equitum adiumentum et peditum mitti iussit*. It seems that the phrase *ad loca* without any specification of the ‘places’ only occurs in the *Res Gestae*: 17.10.6, 17.13.13, 29.6.4 and in the present text, where it could denote some region in North Brabant; see below the note ad § 5. The only other instance of *discriminare* in the *Res Gestae* is 18.8.12 *discriminato capite*. Here it has a completely different meaning, viz. ‘to divide’, probably denoting the change from the marching order into a battle array. Surprisingly, Clark’s *superbos* for V’s *per* has convinced the other editors. The emendation *feros*, tentatively suggested by Petschenig, 1892, 527 is more probable both from a palaeographical viewpoint and because Amm. uses *ferus* three times more often than *superbus* to describe foreign nations; cf. also Seager 55: “*Ferus* und *feritas* refer almost exclusively to barbarians.” TLL III 1656.33–39 registers cases in which *colluctatio* is a synonym of *pugna*. In Amm.’s only other example 15.3.4 the word denotes a wrestling match. As is noted ad 22.15.7 *spiritu controverso* and ad 24.4.18 *controversae partes*, Amm. uses *controversus* remarkably often, usually as a synonym of *oppositus*.

See for *signa* and *aquilae* 27.6.9 *in pulchra*. The dazzling armour of Severus’ army complied with Vegetius’ prescription: *Plurimum enim terroris hostibus armorum splendor importat* (mil. 2.14.8); see further the notes ad 25.1.1 *radiantes* and 27.2.6 *signo itaque* and cf. especially 31.10.9, where Amm. reports that the Lentienses were struck by fear because of the flashing of the arms: *et splendore conspicui proculque nitore fulgentes armorum imperatorii adventus iniecere barbaris metum*. See the note ad 27.5.7 *dein quod* for the words *venialem poscerent pacem*: peace as a ‘token of pardon’.

dique variatis consiliis, cum id rei publicae conducere videretur, pactis 5.4
indutiis et datis ex condicione proposita iuvenibus multis habilibus ad

militiam discedere permissi sunt Saxones sine impedimento, unde venerant, reversuri Cf. *variatis sententiis* (31.10.15), which may have been inspired by *variatis hominum sententiis* (Cic. *Mil.* 8). The phrase denotes a discussion during which various points of view are defended. See also the note ad 25.5.3 *nulla variante*. The high-flown phrase *rei publicae conducere* seems also to have been borrowed from Cicero, in whose works it occurs five times. In the case of *permittere* a personal passive construction is normal in Late Latin; see Szantyr 365 and Blomgren 162. As was common—see the note ad 27.9.7 *obsidibusque*—the truce was sealed with hostages, in this case young Saxon men who were fit for military service in the Roman army. Cf. also the note ad 28.2.7 *obsidum patres* and 31.10.17 where Amm. reports that the Lentienses were allowed to go home after surrendering their young men: *Lentienses...oblata ut praeceptum est, iuventute valida nostris tirociniis permiscenda ad genitales terras innoxii ire permissi sunt*. In this way the military strength of the barbarians was weakened while the Roman army was strengthened by the incorporation of these young men as auxiliary units. The Saxons received permission to return ‘without hindrance’, a phrase which will turn out to be crucial in the sequel of the text.

The *Notitia Dignitatum* (Or. 32.37) mentions an *ala prima Saxonum*; this contingent of *limitanei* probably goes back to the time of the Tetrarchs or perhaps even to Aurelian; Hoffmann, 1969–1970, I, 140. The words *unde venerant* aim to conceal Amm.’s ignorance about the location of the native territory of the Saxons.

- 5.5 *quibus omni iam formidine vacuis reditumque parantibus occulte pedites missi insidias in abdita quadam valle struxerunt, unde praetereuntes aggredi negotio poterant levi* The phrase *formidine vacuus* occurs only here and may be a variation of *metu vacuus*, which is attested in various authors: e.g. *vacui metu* (Cic. *Phil.* 1.25, Ov. *Met.* 3.582, Tac. *Ann.* 2.44.2). See on *negotio levi* the relevant note ad 20.10.2, in which the phrase is shown to be characteristic of Amm. The Romans clearly did not stick to their part of the truce, i.e. to let the Saxons return to their home country.

As has been mentioned in the note ad § 1 above, there was only one Saxon invasion under Valentinian, i.e. that of 370. The information given by Hier. *Chron.* a. 373 *Saxones caesi Deusone in regione Francorum* is therefore misdated and must refer to 370, as inter alios Stolte, 1956 and in his wake Gutmann, 1991, 48 argue. Jerome is the only source which mentions where the Roman massacre of the Saxons took place,

i.e. at Deuso. The location of Deuso is debated; e.g. Duisburg close to Brussels, Duissern near (German) Duisburg, Diest, Diessen in North-Brabant, Doesburg in Gelderland have been suggested; Verlinden 1946; Tischler, 1949; Stolte, 1956. From the information that the massacre took place *in regione Francorum*—also mentioned by Oros. *hist.* 7.32.10 and Paul. Diac. *Hist. Rom.* 11.4.4—one may conclude that the Romans massacred the Saxons at a site somewhere in the regions of the lower Rhine. Interesting information is also provided by coins of the usurper Postumus (260–274) that have the legend *Herculi Deusoniensi*; Webb, 1933, 331. Apparently, Deuso had a cult of Hercules. Since Hercules seems to have been venerated in particular by the Batavians—cf. the cult of Hercules Magusanus—Deuso is probably to be looked for in the regions where the Batavians used to live. Taken together this information leads to the conclusion that Deuso was located somewhere in Toxandria, roughly the modern Dutch province of North Brabant. Unfortunately, Talbert does not mention Deuso, not even as an unidentified toponym.

sed longe secus accidit, quam sperabatur. sonitu enim adventantium perciti exsiluere quidam intempestive visique subito, dum se firmare festinant, ululantibus lugubre barbaris vertuntur in pedes Cf. *quod secus atque rebatur evenit* (20.11.24), *longe aliter, quam rebatur, evenit* (31.3.6). As is noted ad 21.3.1, Amm. has a predilection for *percitus* to denote emotional reactions. The verb *firmare* occurs more than eighty times in the *Res Gestae*, with various meanings. In the present text the soldiers in question ‘strengthened’ themselves. Should this be taken in a ‘mental’ sense: ‘they took heart’? See for this the note ad 27.6.5 *et paratis*. Or should the interpretation of the translators be preferred? They ascribe a ‘physical’ sense to *firmare*, e.g. “raffermir leur position” (Marié), which fits in better with *festinant*. The onomatopoeic verb *ululare* and its cognate nouns and adjectives are regularly used to denote the battle cries of barbarians; see the note ad 20.6.7 *ululabili*; cf. especially *ferum ululantes et lugubre* (16.11.8). The phrase *ululabiles undique planctus et lugubres sonus audiebantur* (22.9.15, q.v.) occurs in an entirely different context, viz. the Adonis festival. See the note ad 27.2.3 *quos versos in pedes* for Amm.’s idiosyncratic *verti in pedes*, ‘to take to one’s heels’.

stetere tamen mox conglobati extremaque sorte vires licet non integras suggerente confligere cogebantur Cf. *dum starent barbari conglobati* (16.12.14, q.v.), *restitimus conglobati* (18.8.4); ‘crowding together’ is a

potentially dangerous situation, as Vegetius warns: *ne dispersi longius aut conglobati amplius, quam expedit, impedirent suos hostibusque prodessent* (mil. 3.6.18). The phrase *extrema sorte* expresses the life-threatening plight of the soldiers, as is clearly illustrated by Auson. *Periocha Iliados* 16: *Achilles Graecorum statum iam sub extrema sorte miseratus*. See for *suggerere*, ‘to provide’ the note ad 22.15.5 *incrementa*.

multaque caede percussi concidissent nullo relicto, ni catafractorum equitum cuneus ad inferendum periculum transeuntibus barbaris ex alio latere prope divortium itineris pari modo locatus clamore percitus tristi agiliter subvenisset After having rushed out prematurely to attack the Saxons, the Roman foot soldiers were initially put to flight by the barbarians, but they managed to organise themselves again. Amm. is vague about the layout of the Roman ambush. It seems, however, that the Roman infantry lay in hiding at the end of the valley through which the Saxons marched, and that the Roman horsemen were stationed at the other end (*ex alio latere*) close to a fork in the road (*prope divortium itineris*). It probably took a while before the cavalry was informed about the dire straits into which the foot soldiers had landed themselves and came to their aid. For *catafracti* see the notes ad 20.7.2 and 24.2.5 and for *cuneus* the note ad 25.6.7 *ausi*.

The first extant instance of the phrase *multa caede* is Verg. A. 1.471 (*tentoria quae*) *Tydidēs multa vastabat caede cruentus*. It can be found in various authors, e.g. *cum multa caede ac foeda fuga ad naves compulsi sunt* (Liv. 22.31.4), *multaque rubentia caede/lubrica saxa madent* (Luc. 2.103–104), *omnia templi ornamenta detraxit ac multa caede vastavit* (Sulp. Sev. *chron.* 2.18.7). See for *periculum inferre* TLL VII 1.1384.66sq., where it is listed among other cases in which *inferre* is used “de malis”. The phrase *clamore...tristi* can also be regarded as a Vergilianism: *it tristis ad aethera clamor* (Verg. A. 12.409). The adj. *agilis* and its cognates indicate swift and energetic action: *captus agilitate nostrorum* (16.12.19), *mentis agilitate et corporum* (18.2.12, q.v.), *agili gradu* (23.5.1), *milites seminudos...expeditis agiliter gladiis obtruncabant* (28.2.8).

- 5.7 *firmitasque pectoribus hinc inde incumbentes Romani clausos hostes eductis gladiis obtruncabant. nec quisquam eorum genitales revisere potuit lares ne uno quidem caedibus concorporalium superesse permissio* See for *pectus* “as the seat of the emotions, moral qualities, etc.” OLD s.v. 3a., for *hinc inde*, ‘on either side’, the relevant note ad 20.6.5 and for *incumbere*, ‘to attack’, the note ad 24.8.6 *nonnulli*, where, in contrast to the

present text, the verb has a complement in the dat. The verb *obtruncare* figures in the list of synonyms for 'to kill' in Hagendahl, 1921, 101–102. See for *genitales lares* the notes ad 22.8.19 *ad loca* and 21.5.12 *ille innoxius*. Like *unde venerant* in §4, it is a convenient phrase to conceal a lack of precise geographical information. Amm.'s only other instance of *concorporalis* as a synonym of *commilito* is 21.12.15. By the addition of *ne uno...permisso* Amm. emphasizes the complete contrast to what had seemed to be the Romans' fate: *concidissent nullo relicto* (§6).

ac licet iustus quidam arbiter rerum factum incusabit perfidum et deforme, pensato tamen negotio non feret indigne manum latronum exitialem tandem copia data consumptam Remarkably little attention has been paid to this telling sentence, which should be regarded as part of the identikit of the author's intended readership. The adj. *iustus* is fundamental. Amm.'s imaginary reader does not judge the event superficially or looks merely at what is advantageous for the Roman interest. The first reaction of this reader consists in criticizing the ambush strongly as immoral, but, having 'weighed' the event, he loses his indignation, because he realizes that this was a golden opportunity to get rid of people who deserved to be regarded as murderous brigands. In other words, the author's ideal reader is a person who does appreciate moral values, but is also ready to make an exception where Roman interest is clearly at stake. This was the author's conviction too, as is clear from 31.16.8, the penultimate section of the *Res Gestae*.

What is an *arbiter rerum*? Two quotations may help to pinpoint the meaning of this phrase. In 24.6.15–16 Amm. briefly sketches Julian's true military leadership. He knows his men and addresses by name those *quos stabili mente aliquid clarum fecisse ipse arbiter perspexit* (24.6.15). In *Conf.* 1.15 Augustine looks back at his miserable schooldays, when he preferred playing with his friends to learning his lessons. He admits that a fair judge who knows the facts might approve of the punishment he received for neglecting his studies: *nisi vero adprobat quisquam bonus rerum arbiter vapulasse me, quia ludebam pila puer et eo ludo impidebar, quominus celeriter discerem litteras*. Julian and Augustine's imaginary *arbiter* have in common their precise knowledge of the facts on which they base either their approval or their disapproval. Hence the use of the juridical metaphor; see Heumann-Seckel s.v. This meaning of *arbiter* should be taken full account of in interpreting Amm.'s references to the never failing divine watching of man's actions: (*Adrastia*) *regina*

causarum et arbitra rerum ac disceptatrix (14.11.26), *inconivus Iustitiae oculus, arbiter et vindex perpetuus rerum* (29.2.20).

In the present text the *arbiter* did not witness the *res* himself, but Amm.'s report has provided him with the necessary facts, so that he is fully able to judge the ambush. The verdict of the 'fair judge' is severe indeed: Brandt, 1999, 237–240 shows that according to Amm. barbarians are regularly guilty of "Vertragsbrüchigkeit" in their relations with Rome. However, *perfidia* was not an exclusively barbarian vice. Marcellianus had Gabinius, king of the Quadi, murdered *hospitalis officii sanctitate nefarie violata* (29.6.5). The murderous ambush is also called 'ugly'. The adj. *deformis* and its cognates can be used to describe outward appearance, e.g. *corpora mortuorum ad ultimam truncata deformitatem* (14.7.16), *spinturnicia omni deformitate ridicula* (22.15.14, q.v.), but also of moral vices, e.g. *animo deformis et habitu* (26.6.7, q.v.), *retractus a deformi proposito* (26.7.13); see further TLL V 1.368.79 sqq. The use of the same words for denoting moral and aesthetical virtues and vices is a well-known phenomenon in many languages. However, the judge has second thoughts when he considers the affair: the verb *pensare* is well chosen in that he weighs both the *honestum* and the *utile* and then concludes that the latter carries more weight, so that his indignation disappears. Note the strong bias in the choice of words: the Saxons were no more than a murderous (*exitialis*) gang (*manus latronum*), which could at long last (*tandem*) be liquidated. See for *latrones* denoting barbarians who resist Roman rule the notes ad 27.2.3 *et nanctus* and 27.9.7 *tali successu*. In the necrology of Valentinian Amm. refers to the ambush with these words: *Saxonas...malefido quidem, sed utili commento peremit*. In 30.4.1 he sets a radically different standard in blaming the gradual collapse of civil society on Valens' entourage, in which *honestate utilitas erat antiquior* ('more important'). Obviously, dealing with external enemies implies an adaptation of moral values.

- 5.8–13 Amm. presents the events described in the following sections, in particular Valentinian's contacts and agreement with the Burgundians to advance together against the Alamanni, as having taken place after the massacre of the Saxons in the summer of 370. However, Valentinian's negotiations with the Burgundians started already in 369, as we know from Symm. *Or.* 2.13 *non est...otiosum, quod Burgundionum crebra legatio concordiam postulavit*; this oration was delivered on 1 January 370. Therefore, the Saxon raids and the Burgundian invasion of Alamannic territory described below overlapped in time as Tomlin, 1973, 167–169

plausibly argues. Cf. Colombo, 2006, 149 ff. who rather improbably considers Amm.'s account of the military alliance between the Burgundians and Valentinian to advance against the Alamanni, as well as the reported pincer movement attack on the Alamanni, as unfounded and meant to denigrate Valentinian's military policy and achievements.

Post haec ita prospere consummata Valentinianus versando sententias multiformes anxia sollicitudine stringebatur reputans multa et circumspiciens, quibus commentis Alamannorum et Macriani regis frangeret fastus sine fine vel modo rem Romanam irrequietis motibus confundentes 5.8
 Note that 'after this successful achievement' would have sounded cynical without the apologetic explanation in the preceding section. At times Amm.'s emperors are engaged in deep thought concerning the complicated problems confronting them. Some examples: (Julian as Caesar) *dubia bellorum coniectans sobrius rector magnis curarum molibus stringebatur* (17.3.1, q.v.), (Constantius) *in varia sese consilia diducens et versans* (20.11.24, q.v.), about Julian: *in unum omni cogitatione intenta* (21.4.1), (Valentinian) *curis diducebatur ambiguus* (26.5.9, q.v.); in the case of Jovian the problems were actually too much for him: *curarumque ponderibus diversis afflictum* (25.10.4, q.v.). In the present text Amm. marshals no fewer than eleven words to express how many thoughts crossed Valentinian's mind, when he was trying to figure out how the Alamans could be checkmated.

See for the various contexts in which *stringere*, 'to bind', is used the note ad 20.11.2 *suis*, for *circumspicere* denoting the thorough examination of a dangerous situation the note ad 20.8.3 *circumspectis* and for *commentum*, 'device', 'strategy', the note ad 20.6.6 *omne*. The Alamans displayed *fastus barbaricos* (16.12.3, q.v.) in their habit "in alios insolenter agendi" (TLL VI 1.330.58), viz. by continuously disturbing the Roman order with their restless manoeuvres; see the note ad 26.4.5 *Gallias*. Macrianus (*PLRE* I, Macrianus 1), *rex* or chieftain of the Bucinobantes (cf. 29.4.7), had last been mentioned by Amm. in 18.2.17–18 when he had concluded peace with Julian in 359. Macrianus clearly profited from his good relationship with the Romans in the 360s; he was able to consolidate his power in the region of the middle Main and even to extend it to the lower Main; Drinkwater, 2007, 173–174. Amm.'s account of events at the Rhine frontier is dominated by the confrontations between Valentinian and Macrianus; the latter is presented as one of the greatest Alamannic leaders. Relations between Macrianus and Rome seem to have broken down as a consequence of Rando's raid of Mainz in 368. Drinkwater, 2007,

304–305 plausibly suggests that that raid showed that Mainz was vulnerable, which gave Macrianus the opportunity to extend his influence close to the Rhine in regions which were still decidedly Roman. This was considered arrogant (*fastus*) by the Romans, gave rise to restless disturbances (*irrequietis motibus*), and disturbed the Roman cause (*rem Romanam ...confundentes*). See the note ad 28.3.4 *ob grave* on the Roman authorities' allergy for restlessness. The verb *confundere* is here used to denote the creation of chaos and disorder; see the notes ad 21.13.11 *tempore* and 26.6.8 *cuncta confuderat*.

Valentinian intended to break Macrianus' power, inter alia with the assistance of the Burgundians, as is related in the following sections. Either in 371 or 372 Valentinian himself invaded Macrianus' territory with the intention of capturing him; Macrianus, however, escaped and Fraomarius was made chieftain in his place; 29.4.2–7. In 374 Macrianus, who had regained command over the Bucinobantes, and Valentinian reached an agreement at Mainz after which Macrianus became a Roman ally again. He was killed when he invaded the land of the Franks after being lured into an ambush by the Frankish leader Mallobaudes; 30.3.3–7. On Valentinian's dealings with Macrianus see Tomlin, 1973, 174–177; Drinkwater, 2007, 283–287, 303–309.

- 5.9 *immanis enim natio iam inde ab incunabulis primis varietate casuum imminuta ita saepius adolescit, ut fuisse longis saeculis aestimetur intacta* Amm. has a predilection for, perhaps even a “unique obsession with *immanitas*” (Seager 131); see the notes ad 21.4.6 *ne...immanissimus* and 21.11.1 *ausa indicans*. In the present text *immanis* characterizes the Alans as fearsome barbarians. See for *ab incunabulis* the note ad 25.1.13 *iuxtaque*. Should *ita* be understood as defining *adolecit* (“erholte sich immer wieder so”, Seyfarth) or as connected with *saepius* (“so often”, Rolfe; “così spesso”, Viansino)? The order of words is c.c. and therefore not decisive. The instances of the combination of *ita* with an adj. or adv. which are mentioned in the note ad 20.11.5 *quod dictum* are of a different nature. Moreover, the combination of *ita* with a comparative is unlikely, as in 28.4.5 *ita effrenatius exarserunt*. The conclusion must be that Seyfarth's rendering is the correct one. The Alans' remarkable knack to recover time and again from all sorts of setbacks created the impression that for long periods they had suffered no losses; cf. 26.6.11 *intactam ideoque saevissimam*. See the note ad 20.6.5 *diebus aliquot* on Amm.'s sparing use of the abl. of duration.

seditque consilia alia post alia imperatori probanti Burgundios in eorum excitare perniciem, bellicosos et pubis immensae viribus affluentes ideoque metuendos finitimis universis See for the ‘Vergilianism’ *sedit* (e.g. A. 5.418 *idque pio sedet Aeneae*) the notes ad 14.1.5 (sprachlich) *sedet* and 24.8.5 *sedit*. It suits the present text well: Valentinian’s versatile brainwork finally ‘settled’ on playing the Burgundian card. This warlike nation seemed cut out to cause havoc to the Alamans. Curiously, there seems to be no other instance of the phrase *alia post alia*. As is noted ad 20.1.2 *bellicosum*, this adj. usually has a positive meaning in Amm. From the viewpoint of Valentinian this characteristic is, of course, an invaluable asset, the more so because of the huge and frightening manpower which the Burgundians had at their disposal.

The Burgundians, who may originally have come from Scandinavia, are first mentioned by Plin. *Nat.* 4.99 as members of the Vandals: *Vandili quorum pars Burgodiones, Varinnae, Charini, Gutones*. In the second century Ptol. 2.11.8 locates them in the region between the Oder and the Weichsel rivers. Orosius (*hist.* 7.32.12) reports that they were subjugated by Drusus and Tiberius, later coalesced into a great people and set up *burgi* along their frontier, hence their name according to Orosius’ “ridiculous etymology” (words used by Matthews 310) *hos quondam subacta interiore Germania a Druso et Tiberio, adoptivis filiis Caesaris, per castra dispositos in magnam coaluisse gentem atque ita etiam nomen ex opere praesumpsisse, quia crebra per limitem habitacula constituta burgos vulgo vocant*. Probably in the second half of the third century large groups of Burgundians migrated to regions along the upper German *limes*; according to Oros. *hist.* 7.32.11 they had come to settle with more than 80,000 people on the Rhine frontier; *Burgundionum quoque, novorum hostium novum nomen, qui plus quam octoginta milia, ut ferunt, armatorum ripae Rheni fluminis insederunt*; cf. Iord. *Rom.* 309 *Burguntionesque qui plus LXXX milia armatorum primum Reni in limbo castra metassent*. On the *limes* they were involved in military encounters with the Romans during the reigns of Probus and Maximian in the 270s and 280s; Zos. 1.68; *Pan.* 10.5.1. There is some debate as to where exactly on the *limes* the Burgundians settled; based on the sections in this chapter and Amm.’s remark in 18.2.15 (q.v.) that in 359 Julian’s forces reached a region *ubi terminales lapides Romanorum et Burgundiorum confinia distinguebant*, it has been suggested that they lived east of the old *limes* between the forts of Jagsthausen and Öhringen, i.e. north of Schwäbisch-Hall between the Kocher and Main rivers. However, Drinkwater, 2007, 110–112 has recently suggested that the

Burgundians had settled further north along the middle Main and expanded from there downriver to Mainz; see also Schutz, 2001, 21–23 and 35–36. When the Burgundians came to this part of Germany they seem to have occupied land of the Alamanni; *Pan.* 11.17.3 *Burgundiones Alamannorum agros occupavere, sed sua quoque clade quaesitos* (“The Burgundians have taken over the land of the Alamanni, but obtained it at a great cost of themselves”, tr. Rodgers), which may be part of the explanation for the hostilities between the Alamanni and the Burgundians. On the Burgundians in general see e.g. Anton, 1981 and Leube, 1983.

In his necrology of Valentinian Amm. mentions again that the emperor had aroused the Burgundians against the Alamanni; 30.7.11 *Burgundios, quos ipse admoverat Alamannis*. It is generally assumed that the conflict over salt pits and territory between Burgundians and Alamanni, mentioned by Amm. in § 11, prompted Valentinian to encourage the Burgundians to attack the Alamanni; Schutz, 2001, 36; Drinkwater, 2007, 109. The Alamannic-Burgundian animosity is possibly also referred to in 16.12.16 *finitimis, quos hostes fecere discordiae*; Gutmann, 1991, 34–35.

Orosius (*hist.* 7.32.12–13) calls the Burgundians powerful and dangerous, but thanks to the fact that they converted to Christianity in the fifth century the Burgundians became peaceful and caused no further harm: *eorumque esse praevallidam et perniciosam manum Galliae hodieque testes sunt, in quibus praesumpta possessione consistunt; quamvis providentia Dei Christiani omnes modo facti catholica fide nostrisque clericis, quibus oboedirent, receptis blande mansuete innocenterque vivant, non quasi cum subiectis Gallis sed vere cum fratribus Christianis*, “They are a powerful and dangerous group, as the Gallic provinces, of which they have assumed ownership and where they have settled, bear witness to this day. However, through the providence of God, they have all become Christians according to the catholic faith, received priests from us whom they obey, and live peacefully, calmly, and causing no harm with the Gauls, looking on them not as their subjects, but truly as brother Christians” (tr. Fear, slightly adapted).

- 5.10 *scribebatque frequenter ad eorum reges per taciturnos quosdam et fidos, ut isdem tempore praestituto supervenirent* This is a nice example of Roman diplomacy towards Germanic peoples; see in general Lee, 1993, 66 ff., although he does not mention this instance. *Symm. Or.* 2.13 may refer to the same, but he alleges, probably incorrectly (Tomlin, 1973,

167), that the initiative for a Roman-Burgundian alliance was taken by the Burgundians: *non est...otiosum, quod Burgundionum crebra legatio concordiam postulavit: aut arma principis sentiuntur, aut iam celsa eminus castrorum tecta rutilarunt. Optant cohaerere victoribus prius pace quam limite*. Names of the Burgundian *reges*, or chieftains, are nowhere mentioned by Amm. Valentinian set such great store by the cooperation of these chieftains that he kept up a lively correspondence with them, by means of fully reliable agents. The combination of loyalty and reticence is fairly common. Their indissoluble bond is perhaps most clearly expressed in *quod meae concreditumst/tacurnitati clam, fide et fiduciae* (Pl. *Trin.* 141–142) and *alliga sensum tuum fida taciturnitate* (Ambr. *in psalm.* 118 *serm.* 22.20, commenting on “make for your mouth a door that locks” [*eccles.* 28.25]). Valentinian wanted the Burgundians to make a surprise attack on ‘those who were mentioned above’ (*isdem*), viz. the Alamans. As is noted ad 25.10.3, *praestituere* in the *Res Gestae* usually concerns a human arrangement; in the sequel of the text *tempore praestituto* will prove to be a crucial phrase. See for *supervenire* with dat., ‘to attack unexpectedly’, *munientibus supervenit Marcellus* (Liv. 24.35.9), *supervenire ipsi regiae* (Amm. 19.6.7, q.v.).

pollicitus ipse quoque transito cum Romanis agminibus Rheno occurrere pavidis pondus armorum vitantibus insperatum Possibly, *ipse* here means that Valentinian intended to cross the Rhine ‘personally’. However, it seems more likely that it contrasts Valentinian and his forces with the Burgundian chieftains and their men, but Rolfe’s translation “he too would cross the Rhine” implies that at the time the Burgundii lived in Gaul, which does not tally with the facts. Other translators do not commit this error, but they tend to paper over *quoque*, which can be explained by assuming that *occurrere* is shorthand for ‘to begin military operations and to oppose the fleeing Alamans’: Valentinian promised that he would cross the Rhine and ‘also’ operate there against the Alamans, when they were trying to avoid a surprise confrontation with a massive battle array; see for a comparable meaning of *pondus* the note ad 24.5.8 *in unum pondus* and 27.10.12 *advenit omne pondus armorum*. The idea behind the scheme seems to have been that, while the Burgundians would attack the Alamanni from the north-west, the latter would flee southward in the direction of Raetia where Valentinian’s forces under the command of Theodosius (§ 15 below), which in the meantime had crossed the Rhine, would await them.

5.11 *Gratanter ratione gemina principis acceptae sunt litterae: prima quod iam inde temporibus priscis subolem se esse Romanam Burgundii sciunt, dein quod salinarum finiumque causa Alamannis saepe iurgabant* The adv. *gratanter*, ‘joyfully’, occurs in various Late Latin authors; Amm. has six other instances. The phrase *gemina ratione*, ‘for a twofold reason’, also occurs in other authors, but Amm. has most instances; see the notes ad 17.13.24 *gemina* and 26.10.3 *gemina*. As is pointed out in the note ad 26.9.8 *et Barchalba*, in the present text the missing preposition *a(b)* after *iam inde* should be restored. The vague phrase *temporibus priscis* refers to the distant past. The phrase is to be interpreted as an adjunct of *sciunt*: the awareness of their Roman descent dates from time immemorial, which is very doubtful; in this case the Burgundian descent from the Romans could go back to the German expeditions of Drusus and Tiberius; Oros. *hist.* 7.32.12; for the passage see above ad §9. It is, however, generally believed that the notion of the Burgundians being of Roman descent was an invention of Roman diplomacy; Tomlin, 1973, 167; Anton, 1981, 238; Drinkwater, 2007, 109.

The present text is the only instance of *salina* in the *Res Gestae*. Salt was (and still is) an indispensable part of (the conservation of) food; cf. *vita humanior sine sale non quit degi* (Plin. *Nat.* 31.88, with Mayhoff’s plausible emendation of *degere*) and *totis corporibus nihil esse utilius sale et sole dixit* (Plin. *Nat.* 31.102, registered as a proverb in Otto, 1890, 1570). Both quotations have been chosen from a long discussion on the extraction of salt from salt lakes and sea water, the mining of salt, the varieties of salt and the use of salt in Plin. *Nat.* 31.73–105. Because salt is a vital nutrient for the human and animal organism, it was a sought-after commodity. It was, therefore, necessary to guarantee its continuous availability by transport routes like the *Via Salaria* from Rome to Reate or by the possession of salt pans. Hence Vegetius’ advice how to cope with its scarcity in a beleaguered town (*mil.* 4.11). Henri de Valois aptly refers to Tac. *Ann.* 13.57.1 as an example of armed conflicts over the possession of salt supplies: *eadem aestate inter Hermunduros Chattosque certatum magno proelio, dum flumen gignendo sale secundum et conterminum vi trahunt*, “The same summer a great battle was fought between the Hermunduri and the Chatti, both forcibly claiming a river which produced salt in plenty, and bounded their territories” (tr. Church and Brodribb; see also Koestermann ad loc. and Str. 7.5.11 (317C–318C) Αὐταριᾶται μὲν οὖν τὸ μέγιστον καὶ ἄριστον τῶν Ἰλλυριῶν ἔθνος ὑπῆρξεν. ὃ πρότερον μὲν πρὸς Ἀρδιαίους συνεχῶς ἐπολέμει περὶ ἁλῶν, “Now the Autariatae were once the largest and best tribe

of the Illyrians. In earlier times they were continually at war with the Ardiaei over the salt-works” (tr. Jones). In the Germanic regions salt occurred as halite, i.e. rock salt, in the mountain ranges, or as brine in springs in the lower areas. The salt deposits which the Alamanni and Burgundians fought over were in all probability located in the Kocher valley at Schwäbisch-Hall, Niedernhall and possibly also Bad Kissingen; Gutmann, 1991, 35; Drinkwater, 2007, 110.

catervas misere lectissimas, quae, antequam miles congregaretur in unum, ad usque ripas Rheni progressae imperatore ad exstruenda munimenta districto terrori nostris fuere vel maximo This report is not conspicuous by its clarity. It probably implies that Valentinian has crossed the Rhine and is now tied up with building a line of fortifications, so that his troops have not yet gathered for military operations. Therefore ‘our men’ panicked, when the Burgundians advanced as far as the banks of the Rhine, where they were at work.

See the notes ad 16.2.6 *catervatim* and 20.7.14 for the use of *caterva* to denote barbarian troops, as in the present text. However, as is explained in the note ad 26.8.4 *Lupicinum*, Amm. also uses it for Roman forces. The term seems to be a non-technical word rather than a disparaging one, which would not tally at all with *lectissimas*. The subj. *congregaretur* seems to be in accordance with classical usage, in that within the temporal relation specifically the mere possibility of the action and its failed implementation are envisaged. Caes. *Gal.* 2.12.1 is a clear example: *Caesar priusquam se hostes ex fuga reciperent, in fines Suessionum exercitum duxit*. Caesar’s enemies were in fact unable to recover from their flight. In the present text the Burgundians advanced before the Romans could concentrate their troops. See for the use of *vel* to add further strength to a superlative Kühner-Stegmann II 2.477, Szantyr 165.

The Burgundian crack troops already advanced to the Rhine—probably in the summer of 370—while the Roman forces had yet to be assembled and Valentinian was still working on fortifications. It is unclear which fortifications Amm. has in mind: particular strongholds for the expedition against the Alamanni or the general reinforcement of the Rhine *limes* referred to in 28.2.1 (q.v.). However, it would seem that Alteium, modern Alzey (Talbert 11 I3), was one of the *munimenta* meant here. According to *Cod. Theod.* 11.31.5 Valentinian was in this fort on 15 August 370: in the subscription of the constitution the manuscripts’ *Altino* (Altinum lays in northern Italy), already suspected by

Gothofredus and Seeck (see Pergami, 1993, 522), should be changed into *Alteio*, as in *Cod. Theod.* 10.4.3. In August 370 the emperor was probably busy restoring the fort in Alteium which had been destroyed during the invasions of 352–355. Cf. e.g. Tomlin, 1973, 167–168; Oldenstein, 1986; Oldenstein, 1990

Cf. for *distringi*, ‘to be busy (with)’, ‘to be occupied (by)’, *occupationibus districtus* (Sen. *Ben.* 5.23.1), *negotiis publicis et varia iniunctorum occupatione distringitur* (Symm. *Ep.* 5.22). According to TLL V 1.1551.73–74 this is the only example in which the verb is accompanied by *ad* with a gerundivum. The predicative dat. *terrori* occurs in various literary genres; *terrori cunctis erat* (30.5.3) is Amm.’s only other instance.

- 5.12 *igitur paulisper morati, cum neque Valentinianus, ut spoponderat, die praedicto venisset nec promissorum aliquid adverterent factum, ad comitatum misere legatos poscentes adminicula sibi dari redituris ad sua, ne nuda hostibus exponerent terga* The traditional perfect stem *spopond-* is fully alive in Late Latin texts. With *die praedicto* Amm. refers to *tempore praestituto* (§ 10). As is pointed out in the note ad 24.7.8 *adminicula*, here this term denotes military reinforcements. These were needed to protect the homeward march.

Valentinian is presented here as a ruler who did not keep his promises, and therefore put the Burgundians in immediate danger. Even the Burgundian envoys were not able to persuade the emperor to give them the necessary military support for their retreat. The reasons for Valentinian’s failure to observe the agreement with the Burgundians and his unwillingness to comply with the request of the Burgundian emissaries are obscure. On the one hand one might suspect that the emperor never had any intention to cooperate with the Burgundians against the Alamanni, but that, in keeping with Roman divisive policies in this region, the whole scheme was set up to incite Alamannic-Burgundian hostilities with the intention that the two Germanic tribes would weaken one another. On the other hand it is possible that Valentinian had every intention to keep his side of the bargain—Theodosius’ invasion of Alaman-nia from Raetia is an indication for this—but that he was unable to do so because there were insufficient troops at hand: reinforcements were needed in the lower Rhine region, i.e. the forces under the command of the *magister peditum* Severus (see § 3–4 above), to deal with the Saxon invasions; and a part of the emperor’s army was dispersed along the frontier for the construction and restoration of strongholds; Tomlin, 1973, 168–169.

Valentinian's failure to live up to the agreement was apparently no reason for the Burgundians to end military collaboration with the Romans. A funerary inscription found in Trier (probably dating to the reign of Valentinian, according to Drinkwater, 2007, 116) provides evidence for Burgundian integration into the Roman army; it mentions a *protector domesticus* by the name of Hariulfus, *filius Hanhavaldis regalis gentis Burgundionum*; CIL 13.3682.

quod ubi negari per ambages sentirent et moras, maesti exinde discesserunt et indignati. hocque comperto reges ut ludibrio habiti saevientes captivis omnibus interfectis genitales repetunt terras Cf. for *ubi* as a temporal conjunction with subj. *haec ubi latius fama vulgasset* (14.2.20, q.v.), *ubi ...celsiore fiducia repugnarent* (21.12.17, q.v.) and Szantyr 652. When the Burgundian envoys concluded that the beating about the bush (*ambages*) and the delaying tactics (*moras*) on the Roman side in fact meant a rejection of their request, they returned to their basis in dejected spirits. Cf. *amputandas esse verborum nostrorum moras et tarditates adque ambages sermonis humani subtrahendas* (Cypr. Fort. pr. 4), *omnium morarum superfluis ambagibus* (August. adv. Don. 31.54). The Burgundian leaders felt they had been made a laughing stock; the phrase *ludibrio habere* first occurs in Roman comedy and then in various authors; some examples: *Qui lubet ludibrio habere me* (Pl. Men. 396), *populus ludibrio habitus* (Sal. Jug. 34.2), *palam ludibrio deos habuit* (Lact. Inst. 2.4.25). The reaction was violent. Seager 54–55 contains an impressive survey of individuals and groups characterized by *saevitia* and its cognates. Among these, barbarians “bear the brunt”. Who were the *captivi* falling victim to the Burgundians’ savagery? Alamans or Romans? Amm. leaves his readers in the dark. It seems, however, more likely that these prisoners were of Alamannic stock; the fact that they had been killed cannot have pleased the Romans because the Alamans could have made useful soldiers in the Roman forces, or become farmers on Roman soil. For the native country of the Burgundians, see the note above ad §9.

Apud hos generali nomine rex appellatur Hendinos et ritu veteri potestate deposita removetur, si sub eo fortuna titubaverit belli vel segetum copiam negaverit terra, ut solent Aegyptii casus eiusmodi suis assignare rectoribus This section consists of a strange mini-digression on the Burgundian authorities. The only direct link with the preceding text one can think of is the conduct of the Burgundian *reges*, whose military campaign had not achieved their objectives and who now, perhaps, had to face the criticism

of their people. This is a rather laboured solution. Moreover, § 15 would be a far more natural sequel of the preceding text. There are, however, no linguistic deviations from Amm.'s usual style, so that the assumption of a learned marginal gloss, which has entered the text, is unlikely. The only explanation left is Amm.'s wish not to withhold this interesting bit of lore from his readers, without worrying as to whether it suits the context.

No other source has this information about the Burgundian leadership. The duality of secular and religious authority is reminiscent of Tacitus' description of Germanic leadership which was divided between a *sacerdos civitatis* and a *rex vel princeps civitatis*; Ger. 10.1–2. The word *hendinos* is in all likelihood a derivative of the Gothic *kindins*, which occurs, for instance, in the Gothic Bible to designate Pontius Pilate; it means 'judge', 'tribal leader', but also possibly the leader of a confederation of tribes; Wolfram, 1988, 94; Heather, 1991, 98; Heather & Matthews, 1991, 191; for the etymology of the word see Wagner, 1999. Amm.'s comparison with Egypt could mean that he drew his information from an old source. According to Rike, 1987, 92 the Egyptian comparison signals Amm.'s "positive mental engagement" towards the Burgundians. Although the Burgundians were ruled by kings or tribal leaders and must have had priests, the lack of other evidence does not allow us to use this passage, as has been often done, to draw conclusions about the political set-up of the 4th century Burgundians; Wood, 2003, 244. Moreover, the institutions of a king and a permanent chief priest seem to suggest that the Burgundians were a real people or *gens*, but as Drinkwater, 2007, 109 has argued, the Burgundians were not a unified polity; they consisted of a variety of groups, of which those at the German *limes* were only a part.

The phrase *generale nomen* occurs in various authors, but most often in Augustine, who uses it specifically in contexts in which questions of defining are dealt with, e.g. *Organum autem generale nomen est omnium vasorum musicorum* (in *psalm.* 150.7), *persona generale nomen est, in tantum ut etiam homo possit hoc dici, cum tantum intersit inter hominem et Deum* (*trin.* 7.4.7). In the present text the phrase is less technical. Amm. probably wants to state that *Hendinos* is a 'generic' title allotted to all kings. In 22.9.15, where Gelenius has *veteri*, the editors print *ritu vetere*; see for the abl. sing. of *vetus* Neue-Wagener II 85–87. TLL V 1.578.30–44 lists some examples of *deponere*, 'to resign an office'. Cf. for *titubare* in a transferred sense *raro rem titubasse Romanam* (17.5.14, q.v.) and *homini pusillo solacium in malis fuit magnorum virorum titubare fortunam* (Sen. *De ira* 3.25.1). The phrase *segetum copia* also occurs in 28.1.17. Modern

readers can understand that failure in war makes a king look inadequate; it was even better understood in antiquity, when good luck was not merely an asset, but a requirement: *res magnae, quas per Gallias virtute felicitateque correxit* (16.1.2). See the notes ad 21.5.9 *fortunatum* and 25.4.14 *Felicitas*. A king's responsibility for failure of the crop may cause some wonder, but the fate of the Burgundian kings is by no means unique, as is shown by Bremmer, 1980, 74–76, who also mentions the present text. The idea is the counterpart of the general agricultural prosperity under an excellent king in the famous description in Hom. *Od.* 19.109–114; see the commentary of Russo et alii ad loc. and Nilsson, 1933, 220. The source for Amm.'s learned parallel with Egyptian sacred kingship has not been identified. In his brief survey of comparable phenomena in various parts of the world Frazer, 1911³, 354 quotes the present text as a testimony to what happened “in ancient Egypt”.

nam sacerdos apud Burgundios omnium maximus vocatur Sinistus et est perpetuus obnoxius discriminibus nullis ut reges This is a good example to illustrate the definition of the function of *nam* which is proposed for the majority of instances of this particle by Kroon, 1995, 169: “*nam* signals the occurrence of a discourse unit which has a subsidiary role with regard to another, more central discourse unit”. One could paraphrase the lemma in this way: ‘apropos, in Burgundian society the high priest has the title Sinistus; in contrast to the kings he is never exposed to any dangers’. See for this meaning of the adj. *obnoxius* OLD s.v. 3. The word *sinistus* (‘the oldest’) goes back to the Gothic word *sinistans* or *sinista*, the superlative of *sineigs*, which means old (Latin *senex*); Heather & Matthews, 1991, 191; Reichert, 2005. Apart from his reference to *drysidæ* in the digression on Gaul (15.9.4, 8), this is the only time that Amm. mentions a barbarian priesthood. The translators interpret *est perpetuus* as a noun predicate: cf. e.g. “Er führt sein Amt zeit seines Lebens” (Seyfarth). There is an example of this in the *Res Gestae*: 19.10.4 (about Rome) *perpetuamque fore spopondit*, but the lemma in TLL XI 1.1638.65 sqq. does not offer any clear instances of this specific use concerning functionaries. Examples of *perpetuus* as an adjectival adjunct of a religious function are available; see TLL X 1.1842.56–60. The present text would, however, be a unique example of *perpetuus* as the nominal part of the predicate in a phrase concerning a person. If this is the case, a comma after *perpetuus* would be useful. One wonders whether it should not be deleted as a gloss, since *obnoxius discriminibus nullis ut reges* is a satisfactory contrasting counterpart of *potestate deposita removetur*.

5.15 *Per hanc occasionem impendio tempestivam Alamannos gentis ante dictae metu dispersos aggressus per Raetias Theodosius ea tempestate magister equitum pluribus caesis, quoscumque cepit, ad Italiam iussu principis misit, ubi fertilibus pagis acceptis iam tributarii circumcolunt Padum* For Theodosius and his career see the note ad 27.8.3 *postremo*. As *magister equitum* he had succeeded Iovinus in 369; 28.3.9 with the note ad loc. This campaign against the Alamanni probably took place in the second half of the year 370; Demandt, 1972, 92. Although Amm. implies that Theodosius' action was improvised and undertaken on his own responsibility, Theodosius' military campaign against the Alamanni must be seen as part of the agreement between Valentinian and the Burgundians. The latter, the *gentis ante dictae*, had made the job relatively straightforward for Theodosius because the Alamanni roamed around disorganised and were therefore easy to kill and capture.

Amm. refrains from any form of disapproval of Valentinian's failure to act in accordance with his agreement with the Burgundians. On the contrary, he joyfully reports that Theodosius benefited most satisfactorily from their daunting appearance and actions in southern Alamannic regions. This is Amm.'s only instance of the phrase *per occasionem*, "at a favourable opportunity" (OLD s.v. *occasio* 1b), which occurs in many authors. See the note ad 25.3.15 *impendio tempestivum* and the note ad 27.6.3 *qui, licet* for Amm.'s remarkable predilection for *ante dictus*. What Valentinian had sowed on the Lower Rhine was reaped by Theodosius on the Upper Rhine.

It was not an unusual procedure to settle captives in the Roman Empire with the status of *tributarii*. A *tributarius* is actually someone who paid tax through his landowner, but barbarians settled in Roman territory were also called *tributarii*; Mirković, 1997, 107–109. As *tributarii* the Alamannic settlers were completely subjected to Rome and had to work the land as farmers; 20.4.1 with note; see also Grey, 2011.

The settlement of the Alamanni in the Po valley has been associated with *Cod. Theod.* 3.14.1—addressed to Theodosius the Elder—about the prohibition of marriages between Roman provincials and barbarians of 28 December 370 or 373; for references see Demandt, 1972, 92 n. 2. This, however, is unlikely; the law was probably inspired by the infiltration of barbarians in the Roman Empire through marriages with Roman provincials as Demandt, 1972, 92 argues. But cf. Sivan, 1996 who makes the attractive argument that the law should be seen in the context of the troubles in Mauretania in the early 370s and the wish to erect ethnic boundaries between Roman provincials and outsiders.

CHAPTER 6

Introduction

This chapter is devoted to the plight of the province of Tripolis. It is a subject of special interest to Ammianus, as he intimates at the outset by saying that Iustitia herself wept at its suffering and by his promise to give an unambiguous account of the events in that part of the world.

The central character is the *comes* Romanus. He had already been introduced in 27.9.1–2, where he was described as a greedy villain bent on inflicting even greater damage on the province than its barbarian enemies. The role of Romanus does not end in Book 28, since he provides the trait d'union with the account of the revolt of Firmus, also in Africa, which is dealt with in Book 29.

There are no nuances in the portrayal of Romanus: it is pitch-black. As was to be expected, this has aroused suspicion. In a number of articles, which will be quoted in the commentary, scholars have tried to make adjustments to Ammianus' version of events. However, we are faced with the problem that Ammianus is practically our only source for Romanus, so that we have no opportunity to compare his version with that of other historians. Scepticism as to the correctness of Ammianus' account will therefore have to be based on internal inconsistencies and lacunae in his narrative, and on details which are in themselves improbable in view of what we know of the historical context. As we will see, such deficiencies are not lacking.

The chapter deals not only with the bad conduct of one single magistrate, but also with the way in which the central authority in the person of the emperor with his advisers supervised the situation. It is very informative as to how complaints of provincials were submitted to the emperor, and then examined and dealt with at court. According to Ammianus the misconduct of Romanus remained unpunished, because he was protected by a relative of his, the *magister officiorum* Remigius.

At the provisional end of the narrative about Tripolis in section 25 the province has not received the military assistance it needed so badly. On the contrary, some of the members of the municipal elite, who had dared to bring the complaints of the provincials before the emperor,

were found guilty of slander and executed, whereas the villains escaped punishment. But that is not the real end of the story. Just like the first chapter of Book 28, the last chapter ends with the triumph of justice over evil. Ammianus abandons the chronological order of events in order to report how, many years later, two of the main culprits, Palladius and Remigius, paid for their crimes. However, the chief offender, Romanus, escaped scot-free.

The following gives the details of the narrative with its many twists and turns.

The Austoriani, a tribe from the desert to the south of Tripolitania, are angered by the execution of a fellow tribesman for espionage; they attack the province and return to their homeland laden with booty (§ 1–4).

The inhabitants of Leptis, the most important town in Tripolitania, turn to the *comes* Romanus for help. Upon arrival the *comes* declares himself willing to come to their assistance on condition that they give him an enormous amount of victuals plus 4000 camels. The citizens are unable to meet his demands. Romanus stays in the region for forty days without undertaking any action, after which he returns to barracks (§ 5–6).

During the annual *concilium* of the province the Tripolitanians decide to send two delegates, Severus and Flaccianus, to the emperor to bring him the *aurum coronarium*, and to give him an account of the terrible things that have happened to them. Romanus manages to alert his relative, the *magister officiorum* Remigius, before the arrival of the delegates, asking him to see to it that the enquiry will be entrusted to himself and to the vicar of Africa. The emperor believes neither the report of the delegates nor the plea of Remigius in favour of Romanus; the matter is postponed indefinitely (§ 7–9).

The Austoriani invade for the second time, plunder the province and kill a number of *decuriones*. According to Ammianus this raid could not be staved off, because Romanus had been reinstated as military commander after having been replaced for a short time by the *praeses* Rusticianus. This casual remark proves that the emperor had, indeed, reacted positively to the complaints of the Tripolitanian delegates, in spite of Ammianus' suggestion that no measures had been taken. No explanation is given as to why the military command was handed back to Romanus. News of the second raid greatly angers the emperor, who sends the *tribunus et notarius* Palladius to the region with a twofold assignment: to bring the troops which are stationed here their stipend, and to enquire into the events in Tripolitania (§ 10–12).

While the Tripolitani are anxiously awaiting the reaction of the emperor, the Austoriani attack for the third time. This time they destroy vineyards and olive groves and even dare to lay siege to Leptis, causing panic in the city, which had never before been attacked. After eight days the Austoriani withdraw empty-handed. Deeply perturbed, the Tripolitani do not wait for the return of their delegates, but send two new envoys, Iovinus and Pancratius, to the emperor in Trier. On their journey these envoys meet Severus and Flaccianus in Carthage, who tell them that the enquiry has been entrusted to Romanus and the vicar. Nevertheless, the new envoys decide to continue their journey to the court (§ 13–15).

When Palladius arrives in Africa, Romanus persuades the commanders in the region to hand over to the imperial envoy a substantial part of the money meant for the soldiers. Palladius accepts these gifts and holds his enquiries in the province, after which he accuses Romanus of negligence and threatens to deliver a damning report to the emperor. Romanus reacts by saying that in that case he will inform the emperor that Palladius has accepted bribes. Palladius is checkmated (§ 17–19).

Palladius informs Valentinian that the complaints of the Tripolitani are unfounded. He is sent back to Africa to check together with the vicar whether the report made by the second delegation, consisting of Iovinus and Pancratius, is correct. Romanus' personal assistant Caecilius manages to persuade the *decuriones* to go back on their former statements and to declare that the report of Iovinus is not in accordance with their mandate. To save his life Iovinus himself 'confesses' that he had lied to the emperor. When Palladius informs Valentinian of these findings, the emperor orders the execution of Iovinus and some other *decuriones* for giving false information (§ 20–22).

Before these executions Flaccianus, a member of the first delegation, had been interrogated by Romanus and the vicar. When he stuck to his accusation that Romanus had failed to come to the aid of the Tripolitani, he was shouted down by the soldiers, who blamed the provincials for refusing to supply them with the necessary means for a punitive expedition. By reporting this incident Ammianus gives the reader a glimpse of the case for the defence (§ 23–24).

After all this the province was reduced to silence. However, Lady Justice did heed the curses of the victims. Many years later, when Romanus had been arrested by Theodosius the Elder, his house was searched and a letter turned up which proved beyond doubt that Palladius had lied to the emperor. Palladius was arrested and escaped execution only by committing suicide. After Valentinian's death Caecilius, the assistant of

Romanus, confessed under torture that he had persuaded the *decuriones* to lie about their mandate to the envoys. A full report of his trial by the proconsul Hesperius and the vicar Nicomachus Flavianus, which may well have provided Ammianus with his material, was sent to the emperor, but elicited no response from him (§ 25–28).

Romanus went to Milan and tried to convince the PPO Merobaudes that Hesperius and Nicomachus had been prejudiced in favour of the province, but in vain. This is the last we hear about Romanus in Book 28. As for Remigius, he ended his life by hanging himself, as Ammianus reports in Book 30 (§ 29–30).

- 6.1** *Hinc, tamquam in orbem migrantes alium, ad Tripoleos Africanae provinciae veniamus aerumnas* This is the first detailed account in the extant books of the province of Tripolis, or Tripolitania as it is usually called; it had been mentioned in passing in 15.5.36. Named after its three principal cities Leptis Magna, Oea (modern Tripoli) and Sabratha, the province was created under Diocletian, probably in 303, as part of his administrative reforms. It was governed by *praesides* of equestrian rank, who also had responsibility for the troops at the *limes*; Donaldson, 1985, 165; Mattingly, 1995, 171–173. *Not. Dign. Occ.* 20.3–7, which presents the situation as it was around the year 400, mentions *Tripolitana* as one of the five provinces under the *vicarius Africae*; civic and military rule were by then divided between the *praeses Tripolitanae* (*Not. Dign. Occ.* 20.13) and the *dux provinciae Tripolitanae* (*Not. Dign. Occ.* 31).

In 27.9.1–3 Amm. had already paved the way for this chapter by announcing the troubles in Africa and the slackness with which the army under the command of Romanus dealt with these troubles in order to protect the people of Tripolitania. Amm. is now fulfilling the promise he made in 27.9.3: *Gestorum autem per eas regiones seriem plenam...cum adegerit ratio, diligentius explicabo.*

The transition formula *veniamus ad*, as in 20.3.7 *Nunc veniamus ad lunam*, is made more lively by the *tamquam*-clause: the change in topic is combined with a change of scene. For the expression cf. Liv. 5.34.7 (the Gauls wonder) *quanam...in alium orbem terrarum transirent*; Petr. 1.2 (junior orators are badly prepared for the reality of the forum) *ut cum in forum venerint, putent se in alium orbem terrarum delatos*; Tac. *Ann.* 2.2.2 (the Parthians accept a king from Rome) *degeneravisse Parthos; petitem alio ex orbe regem*; 19.9.3 (the wife of Craugasius on the point of being deported) *maerebat velut orbem alium sine marito visura*. For the archaism *aerumnae* see De Jonge's note ad 15.4.10 *aerumnae*.

quas, ut arbitror, Iustitia quoque ipsa deflevit Lady Justice makes several appearances in the *Res Gestae* and is presented as displaying a watchful interest in the actions of men. Cf. 22.3.7 *ipsa mihi videtur flesse Iustitia imperatorem arguens ut ingratum* (q.v.), 26.9.10 *si principem legitimum prodidissent, vel ipsa Iustitia iure caesos pronuntiaret*, 27.11.4 *ipsa repugnante Iustitia*. On the whole Amm. has no rosy illusions about the course of history, but he does believe in the ultimate triumph of justice. As Den Boeft, 2007, 308 points out, this conviction is expressed even more strongly in the context of the Tripolitanian affair than in 14.11.25, where *Iustitia* (or rather her daughter *Adrastia*) is called *ultrix facinorum impiorum bonorumque praemiatrix*, adding *atque utinam semper!*, which implies, as we will see in section 29, that there were occasions on which Justice did not punish the guilty or reward the righteous. In section 25 of this chapter, however, he says: *conticuit Tripolis non indefensa, quia vigilavit Iustitiae oculus sempiternus*. He expresses himself in the same vein in 29.2.20 *inconivus* ('unsleeping') *Iustitiae oculus, arbiter et vindex perpetuus rerum, vigilavit attente*, and he introduces his report on the suicide of the culprit Remigius in 30.2.9 with the words *Africanas clades et legatorum Tripoleos manes inultos etiam tum et errantes sempiternus vindicavit Iustitiae vigor, aliquotiens serus, sed scrupulosus quaesitor gestorum recte vel secus*. Cf. also Rike, 1987, 17; Brandt, 1999, 274–279.

quae unde instar exarsere flammaram, textus aperiet absolutus Amm. uses the verb *exardescere* in its literal meaning 'to become burning hot' in 18.7.5 *ubi solis radiis exarserit tempus* ("when the burning sun brings the torrent season", tr. Hamilton). More often it refers to anger, as in 14.11.13 *Constantius ultra mortalem modum exarsit*, or barbarian fury, 16.12.44 *barbari in modum exarsere flammaram*, 31.10.5 *Germani...exarsere flagrantius*. Amm. uses *absolutus*, *-e* always in the sense of *sine ambagibus*, 'plain(ly)', 'honest(ly)'. See the note ad 21.16.18 *Christianam* and cf. 29.1.7 *absolute confessus* ("he admitted unreservedly", Hamilton), 30.2.4 *responsum absolutum et uniusmodi* ("a quite unambiguous message", id.). Amm.'s opening promise, that his report will be reliable, testifies to the importance he attaches to the Tripolitanian affair.

Austoriani his contermini partibus barbari in discursus semper expediti veloces vivereque assueti rapinis et caedibus The troubles with the Austoriani had already been announced by Amm. in 26.4.5 *Austoriani Mauricaeque aliae gentes Africam solito acrius incursabant* (q.v.). They were a

nomadic people living in the mountains and desert areas of the African hinterland. They may have been a subgroup of a larger confederation, which the 6th century poet Corippus in *Ioh.* 1.144, 4.48, 7.535, 8.434 calls the Laguatan; Mattingly, 1995, 173–174. In the fourth and fifth centuries the Austoriani regularly raided the fertile regions of Tripolitania and Cyrenaica, as we know not only from Amm., but also from Synesius of Cyrene, who calls them Αὐσουρίανοι. Synesius refers to them in letters 57 and 78 and in his second oration, the *Catastasis*, which shows remarkable similarities to Amm.'s account, and reports the ravaging of fertile regions and the stealing of cattle. Philostorgius mentions them in *HE* 11.8 under the name of Αὐξωρίανοί together with the Mazices, for whom cf. 29.5.17–19. *IRT* 480 reports military successes against the Austoriani by the *dux* Ortygius in the early decades of the fifth century. See also Romanelli, 1959, 565–567; Olshausen & Sonnabend, 2006, 160–161. The characterization of the Austoriani resembles that of another nomadic tribe, the Saracens: 14.4.1 *Saraceni tamen...ultra citroque discursantes, quidquid inveniri poterat, momento temporis parvi vastabant milvorum rapacium similes*. The Austoriani, too, are compared to birds of prey in 28.6.13 *Austoriani...ut rapaces alites advolarunt*. The barbarous nature of the Austoriani had already been indicated in 27.9.1, where Amm. characterizes their raids as *barbarica rabies*. In §4 of this chapter he compares them to wild beasts (*ferarum similes rabie concitarum*) and in §5 he speaks of their *barbaricus tumor*. Note the hyperbaton of *veloces* (which goes with *discursus*) in order to obtain a cursus planus. The nouns *caedes* and *rapinae* are often combined; see the note ad 27.9.1 *Haec in*.

paulisper pacati ad genuinos turbines revoluti sunt hanc causam praetendentes ut seriam For *pacatus* in the sense of 'peaceful', 'quiet' see TLL X 1 22.62sq. As *genuinos* 'inborn' shows, the noun *turbines* does not refer to actual disturbances, but describes a typical characteristic of the Austoriani: 'unruliness'. It was stated in the note ad 23.5.11 *etenim* that *praetendere*, in itself a *vox media*, is often used concerning dubious statements. The reason why the Austoriani disturb the peace, i.e. the execution of Stachao related in the next section, was a pretext. The true reason, according to Amm., was their way of life: *vivereque assueti rapinis et caedibus*. According to Mattingly, 1995, 176 these incidents, which apparently had already started in the 350s and resulted in the plundering of the fertile Tripolitanian plains in the 360s, revealed a deep-rooted tension between desert peoples suffering from economic adversity and

city dwellers. Matthews 367 and 384 sees in Amm.'s account an implicit contrast between city dwellers, with whom Amm. clearly identifies, and inhabitants of the hinterland, who are considered socially and culturally inferior.

Stachao quidam nomine popularis eorum ut in otio nostra peragando licentius agebat quaedam vetita legibus Amm. is our only source for Stachao. The information he provides about Stachao's sojourn in Tripolitania leaves much to be desired. Gutmann, 1991, 57 supposes that he belonged to the "höheren Kreisen" of the Austoriani; he may have stayed in Tripolitania because he was on an official mission on behalf of the Austoriani to establish relations with the Tripolitans because of the dire straits in which the Austoriani found themselves economically. 6.3

Valesius convincingly conjectured *ut in otio* for MV's *uti novo*, thus providing an explanation for the fact that Stachao felt free to travel through Roman territory: "availing himself of peaceful conditions" (tr. Hamilton). For *licenter/licentius* see the note ad 20.10.2 *inquietorum*. The phrase *vetita legibus* occurs also in 27.9.10 *priscis quoque vetita legibus* (q.v.). It is not as common as one might think; in fact, the only other instance is Hor. *Carm.* 3.24.58 *vetita legibus alea*.

inter quae illud potius eminebat, quod provinciam omni fallaciarum via prodere conabatur, ut indicia docuere verissima; quocirca supplicio flammaram absumptus est As is noted in TLL V 2.491.78, Amm. often uses *eminere* in enumerations in the sense of 'to stand out', 'to be important', as in 22.8.36 *sunt autem quaedam per Tauricam civitates, inter quas eminent Eupatoria et Dandace et Theodosia*. It is not stated what Stachao's forbidden activities were, but Amm.'s wording suggests that he was a spy, who secretly (*omni fallaciarum via*) provided his fellow tribesmen with military information about the province in an attempt to overthrow Roman authority, rather than a "Räuber", as Brandt, 1999, 283 n. 68 calls him. For *via*, 'method', see the note ad 20.4.9 *et sollemniter*. Amm. insists that Stachao's execution was fully justified, since there was solid evidence of his guilt. For *indiciu*m see the note ad 26.6.5 *ut indicio*. Sabbah 391 n. 74 notes that *indicia verissima* is the equivalent of *documenta*, 'proofs', which Amm. avoided because of *docuere*. In the imperial period *crematio* was, next to crucifixion and beheading, one of the most severe penalties for crimes against the state. For burning alive as a form of capital punishment see the notes ad 21.12.20 *exustus*, 27.7.5 *Eminuit* and the end of the note ad 28.1.28 *inter quas*.

6.4 *Huius necem ulcisci ut propinqui damnatique iniuste causantes ferarum similes rabie concitarum exsiluere sedibus suis Ioviano etiam tum imperante* For *causari* “causam afferre vel veram vel fictam”, TLL III 704.67, see the note ad 26.4.6 *sed iniuste*. The context often shows that the reason is a pretext, as in 19.11.6 *vana quaedam causantes et irrita*. As *praetendentes* in the preceding section indicated, this is also the case here. Amm. has a strong predilection for “animal images” (Blockley); see the note ad 27.6.1 *quasi afflatu*. For *rabies* cf. 27.9.1 *Africam vero iam inde ab exordio Valentiniani imperii exurebat barbarica rabies*. As Seager 68 observes, “*barbara feritas, barbarica rabies* are virtual tautologies”.

Amm. gives no information about the native country of the Austoriani. Their origins are probably to be found in the mountainous and desert-like areas that border in the south on the fertile territory of Tripolitania. Since Jovian (*PLRE I*, Iovianus 3) ruled from 27 June 363 until 17 February 364, the first invasion of the Austoriani should be dated to this time span, possibly to the winter of 363–364; Demandt, 1968, 335; Günther, 1997, 447; Coşkun, 2004, 295.

The fact that the *limes Tripolitanus* was not properly maintained made it possible for the Austoriani to invade the plains of Tripolitania. This line of defence was divided in zones under the command of *praepositi limitum*; it had *centenaria*, forts or fortified farmsteads along the *limes* (Matthews, 1976, 171), which were manned by indigenous people—Hoffmann, 1968, 238 speaks of “Wehrbauern”—whose task it was to control and prevent outsiders from entering Roman territory; Jones 652; Gutmann, 1991, 59–60; see also Trouset, 1974 with Rebuffat’s (1980) critical remarks; Mattingly, 1995, 194 ff. However, the care for and costs of maintenance of the *limes* were the responsibility of the *possessores* who owned land at the *limes*; many of these *possessores* were probably rich Tripolitani and wealthy inhabitants of Leptis Magna. Apparently, these landholders had neglected to pay their obligatory taxes for the maintenance of the *limes* as appears from *Cod. Theod.* 11.1.11 dated 17 June 365 and addressed to the *vicarius Africae* Dracontius: *pro loco ac proximitate possessionum annona ad limitem transvehatur* (“The payment of taxes in kind shall be conveyed to the frontier in accordance with the situation and proximity of the landholdings”, tr. Pharr); Warmington, 1956, 56–57; Gutmann, 1991, 61–63. Apart from the *centenaria* there was a small number of fortlets along the *limes Tripolitanus* manned by Roman *limitanei*. It seems that the number of soldiers occupying these fortifications decreased in the course of the fourth century; see Mattingly, 1995, 191–194 for a list of archaeologically identified Roman fortifications. In the

350s, possibly because of the increased threat posed by desert nomads, Flavius Archontius Nilus (PLRE I, Nilus 1), *comes et praeses provinciae Tripolitanae* between 355 and 360, seems to have undertaken a programme of strengthening the *limes Tripolitanus* (CIL 8.22766=22767); IRT 562 and 563 from Leptis Magna describe him as an *instaurator mœnium publicorum*, indicating that he strengthened the city defences. The *comes et praeses* Flavius Nepotianus (PLRE I, Nepotianus 4) according to IRT 565 from Leptis defeated the barbarians and made the frontiers secure against future invasions: *quod limitis defensionem tuitonemq(ue) perpetuam futuris etia(m) temporibus munitam securamq(ue) ab omni hostili incursione praestiterit*; see Donaldson, 1985, 169–172. The date of Nepotianus' governorship is uncertain, but Donaldson (1985, 172) dates it to 367–368, after the Austorian inroads; he was appointed with a specific mandate to restore the defensive system of Tripolitania in order to put a halt to the incursions by the Austoriani. Cf. Mattingly, 1995, 176–177 who dates the governorships of both Nilus and Nepotianus before the invasions of the Austorian raids of the 360s; he holds both men responsible, in spite of their efforts of restoring the defences, for not having done enough, and for not anticipating the Austorian raids.

veritique prope Leptim accedere, civitatem muris et populo validam, suburbano eius uberrimo insidere per triduum For the perfect *insidi* see note ad 26.10.19 *ingentes*. The verb is used in the military meaning 'to occupy' only here and in 31.10.16 (cum) *Germani...petissent alios montes his, quos ante insiderant, altiores*. As a rule it is transitive; other instances with the dative are given in TLL VII 1.1886.28sq. For *suburbanum* 'a country estate near a city', cf. 26.5.1 *in suburbano, quod appellatum Mediana a civitate tertio lapide disparatur* and see the note ad 20.4.12. The plural *suburbana* is used in the more general sense of 'the area surrounding a city', 'the suburbs', as in 21.12.14 *suburbana omnia circumibat*.

There were two cities named Leptis: Leptis Magna and Leptis Minor. The latter was a Phoenician colony (modern Lamta) located on the east coast of Tunisia; Talbert 33 G1. Here, however, Leptis Magna, modern Lebda in Libya, is meant; Talbert 35 G2. Like Leptis Minor, Leptis Magna was originally a Phoenician colony founded before 500 BC. Leptis is the name generally used in the Latin sources, but the local Latin inscriptions have Lepcis, which is closer to the Libyphoenician name of the city: Lpqy. It was brought under Roman control in the middle of the first century BC and became prosperous because of its trans-Saharan trade and its harbour at the Mediterranean. In 109 AD it received the status

of *colonia* which made its people Roman citizens. The city profited considerably from the patronage of the emperor Septimius Severus (193–211), who was a native of Leptis. He gave the city tax exemptions and started a lavish building programme: he financed a colonnaded street, a quadriform arch which had, *inter alia*, a relief of the emperor and his family, a new forum and a basilica; he also remodelled the harbour. The city wall of Leptis probably dates back to the first quarter of the fourth century; Mattingly, 1995, 116–122, 182. Leptis was captured by the Vandals in 455. For the history of the town see Seibert, 1999, 807–811.

mactatisque agrestibus, quos inopinus hebetaverat pavor vel confugere coegerat ad speluncas, incensa suppellectili multa, quae vehi non poterat, referti rapinis reverterunt ingentibus trahentes captivum Silvam quoque casu cum caritatibus in agro inventum, ordinis sui primatem For *inopinus* see the end of the note ad 20.8.8 *cuius iracundiae* and for *hebetare* 'to paralyse' the note ad 20.11.11 *clausorum*. The graphic description of the plight of the peasants culminates in the alliterations *referti rapinis reverterunt* and *casu cum caritatibus*. For a wealth of examples of this stylistic device see Petschenig, 1897. Amm. has a predilection for the abstractum pro concreto *caritas* 'beloved person', which he uses thirteen times, so that Valesius' conjecture for MV's *casuum seritatibus* seems fully justified. See the note ad 20.4.10 *caritates*. As in 24.6.3 *in agro consedimus opulento* (q.v.) the words *in agro* refer to a country estate.

Amm. is our only source for Silva. The words *ordinis sui primatem* imply that he belonged to the highest echelon of the *ordo curialis* of Leptis. As Matthews 384 suggests, Silva and his family were taken captive at his country estate for the sake of a ransom. For *primas* 'highest ranking' see the note ad 24.7.1 *Digesto*. From inscriptions on statues in Leptis we know the names of several of the local leading families such as the Flavii Vibiani, the Volusii and the Aemilii; Lepellet, 1981, 347–354.

- 6.5 *Hac subita clade Leptitani perterriti ante incrementa malorum, quae intentabat barbaricus tumor, praesidium imploravere Romani, comitis per Africam recens provecti* The shades of meaning of *incrementum* are listed in the note ad 22.7.9 *eum*. Seager 52–53 discusses *tumor* and its derivatives. It is most often used of the arrogance of Roman emperors and officials, but also repeatedly of foreigners, especially barbarians; cf. 15.4.9 (Alamanni) *strictis mucronibus discurrebant frendendo minas tumidas intentantes*.

Amm. is our main source for Romanus (*PLRE* I, Romanus 3); see the note ad 27.9.1 *quam rem*, and add to the literature mentioned there Mratschek, 2007. In 364 he had become *comes rei militaris Africae*—the official title is attested in *Not. Dign. Occ.* 1.30, 32; cf. Donaldson, 1985, 168 who suggests that in the fourth century the official title may have been *comes per Africam*. This means that Romanus had only recently taken up his post when the people of Leptis called upon him for help. Although it is generally believed that Romanus owed his promotion to Valentinian (Warmington, 1956, 55), Tomlin, 1973, 199 thinks Jovian promoted him. He probably remained *comes Africae* until his arrest by order of Theodosius in 373; 29.5.5–7, 27. Although *Not. Dign. Occ.* 31 mentions a *dux provinciae Tripolitanae*, this function seems to be a later creation. At the time of the troubles in Tripolitania as described by Amm. the Tripolitani had to call for the help of the *comes Africae*; Hoffmann, 1968, 241; Gutmann, 1991, 60. The chronology of the Leptis affair is controversial and various reconstructions have been put forward, e.g. by Warmington, 1956; Demandt, 1968; Günther, 1997; Coşkun, 2004. See the Note on Chronology.

Probably immediately after the Austoriani had invaded the countryside of Leptis, the Leptinians appealed for military assistance to Romanus, who according to Mattingly, 1995, 183 had his headquarters in Sitifis (Talbert 31 C4). However, Donaldson, 1985, 168 considers Carthage as the headquarters of the *comes Africae* on the basis of *Cod. Theod.* 12.1.15 (21 September 319 or 329) addressed by Constantine to the *comes Africae* and posted there. The appeal may have been made early in 364. It will have taken some time before the request reached Romanus, who then had to gather his troops and march to Leptis; he probably arrived there in the late spring or the early summer of 364.

qui cum venisset militares copias ducens ferreque opem rebus rogaretur afflictis, non nisi abundanti commeatu aggesto et camelorum quattuor milibus apparatis castra firmabat esse moturum Romanus' demand for provisions and 4000 camels is presented by Amm. as outrageous. He reports in section 6 that the citizens were stunned (*stupefacti*) and called the required supplies excessive (*enormibus*). Several scholars (Warmington, 1956, 57; Demandt, 1968, 336–337; Gutmann, 1991, 63; Coşkun, 2004, 294) have argued that Romanus had every right to ask for support for his campaign against the Austoriani. The question remains, however, whether the Leptitani were able to meet Romanus' demands after the *vastationes et incendia* (§6) by the Austoriani. Although the number of

4000 camels has been considered as suspiciously high (Barnes 182 n. 69) and possibly a corruption of the text (Courtois, 1955, 100 n. 6), Syne-sius' *Catastasis* 2.3, where it is reported that the Austoriani carried their booty away on some 5000 camels (καίτοι πεντακισχίλιας που καμήλους ἐσκευαγώγησαν), indicates that this is not per se an impossible number; Gutmann, 1991, 63; Demandt, 2007², 464 n. 137. It is not unlikely that the Austoriani had depleted the camel herds of the Leptitani in order to carry off their booty.

A connection has been suggested between Romanus' demand for supplies and camels and the negligence of the *limes* by the Tripolitani, mentioned in *Cod. Theod.* 11.1.11; see the note ad section 4 *exsiluere*. If this is correct, it makes the Tripolitanian affair essentially a conflict about "the administration of the supply of the *limes*", as Warmington, 1956, 56 has phrased it; cf. Demandt, 1968, 359 ("Interessenkonflikt über die Finanzierung der Verteidigung") and Matthews 281 ("an issue of taxation lies behind the dispute"); see also infra the note ad §23 *Flaccianus*. Günther, 1997, 452–455 makes a convincing point by arguing that Romanus needed such a high number of camels for logistical reasons, i.e. the transportation of supplies to the *castra* and *castella* at the *limes Tripolitanus*: "Da ein Feldzug gegen die Berbernomaden ohne eine angemessene logistische Basis in den grenznahen *castra* nicht realisierbar war, sollte eine unverzügliche Verproviantierungsaktion Abhilfe schaffen: Dafür benötigte Romanus die 4000 Kamele" (p. 454). The verb *apparare* probably means not just 'to supply', but 'to equip'. Camels were not used in warfare other than as beasts of burden; see the notes ad 23.6.56 *a Mithridate* and 25.8.6 *mactatis*. Tripolitanian reliefs show camels used in agriculture, e.g. for ploughing; Mattingly, 1995, 178–179.

The attitude of the elder Theodosius as a military commander in Africa provides a striking contrast: 29.5.10 *id amorem eius auxerat in immensum, quod a provincialibus commeatum exercitui prohibuit dari, messes et condita hostium virtutis nostrorum horrea esse fiducia memorans speciosa* ("he made himself immensely more beloved by this—that he did not allow the provincials to furnish supplies for the army, declaring with splendid confidence that the harvests and stores of the enemy were the granaries of our valorous troops", tr. Rolfe).

- 6.6 *hocque responso miserandis civibus stupefactis atque negantibus sufficere se posse post vastationes et incendia ita enormibus instrumentis remedia quaerere damnorum immanium* For *sufficere*, 'to have enough power to', see the note ad 25.2.6 *scintillas*. The combination *sufficere posse* followed

by an infinitive is a pleonasm, for which cf. 31.6.6 *vectigalium perferre posse non sufficientes sarcinas graves*. The phrase *enormibus instrumentis* should not be taken as a dative with *sufficere*, but as an abl. instr. with *remedia quaerere*. For *instrumentum* cf. the note ad 21.6.6, where Amm. mentions, among many other things, provisions and horses. The adj. *enormis* is found only here in the *Res Gestae*.

dissimulanter diebus ibi quadraginta consumptis nullo temptato idem discesserat comes In all probability the *militaris socordia* mentioned in 27.9.1 referred to this inactivity on the part of Romanus. Amm. uses *dissimulanter* in the sense of ‘surreptitiously’ in 14.1.6 *dissimulanter honoratorum circulis assistendo*. Here the meaning is rather ‘without showing any interest’, ‘fere i.q. otiose’, TLL V 1.1486.3. For *dissimulare* in the sense of “to turn a blind eye to” (OLD 3) cf. 28.1.24 *tot malis dissimulatis*, q.v. This information has often been taken at face value; e.g. by Romanelli, 1959, 568. However, the fact that Romanus stayed for forty days is significant and may indicate that he intended not only to protect the Tripolitani, but also to start a campaign against the Austoriani. This seems to be corroborated by the declaration of the soldiers, mentioned by Amm. in § 23 of this chapter, that the Tripolitani could not be defended because they had refused to furnish what was needed for the campaign (*ideo Tripolitanos non potuisse defendi, quod ipsi ad expeditionales usus praebere necessaria detrectarunt*); Demandt, 1968, 336–337; Tomlin, 1973, 200.

For *nullo* as the abl. of *nihil* see the note ad 20.8.19 *post oblatas*. The pluperfect *discesserat* refers to the time before the Tripolitani decided to appeal to the emperor, as will be related in section 7.

Qua spe Tripolitani frustrati formidantesque extrema allapso legitimo die concilii, quod apud eos est annuum, Severum et Flaccianum creavere legatos As was observed in the note ad 22.6.4 *spe praesumpta* (q.v.), Amm. uses the participle *frustratus* always in a passive sense, whereas the forms of the present stem are deponential. For substantivized *extrema*, ‘doom’, ‘destruction’, cf. 16.12.1 (the Alamannic kings) *venere prope urbem Argentoratum extrema metuentem Caesarem arbitrati retrocessisse*; 22.8.19 *extrema perpessae vicinitatis* (q.v.); 25.6.11 *ut solent extrema metuentibus etiam ficta placere* (q.v.). In 27.6.1 *Valentiniano magnitudine quassato morborum agitanteque extrema* it means ‘peril of death’. For *allabi*, ‘to approach’, cf. 18.5.2 *allapsuro iam praestituto die solvendae pecuniae*; 22.7.1 *Allapso itaque kalendarum Ianuariarum die* (q.v.).

Remarkably, this is the only certain reference in the *Res Gestae* to the provincial assembly. In 16.12.65 the lacuna in the text makes it impossible to decide whether the *concilium* mentioned there is the provincial assembly or a meeting of the soldiers. Provincial assemblies, consisting of delegates from the cities of a province, had become general throughout the empire under the Principate. At least until the first decades of the fifth century the *concilium provinciae* was a vitally important institution. The assemblies themselves decided when to convene, as *Cod. Theod.* 12.12.13 testifies: *Provinciale concilium quo tempore iniri debeat, cum adsensu omnium atque consilio propria auctoritate definiat, ita ut ipse conventus in una opulentiore totius provinciae urbe absque ullius iniuria celebretur* ("The provincial council shall define by its own authority with the consent and advice of all, the time when it must meet, so that the meeting itself shall be formally held in one of the more opulent cities of the entire province, without injustice to anyone", tr. Pharr). The regular *concilium* of Tripolitania assembled once a year (*quod apud eos est annuum*) on a fixed date (*legitimo die concilii*), but extraordinary assemblies could also take place.

The *sacerdos provinciae* was the highest official in the province; he was president of the assembly and was responsible, financially as well, for the provincial *ludi* and for the imperial cult; Jones 764–765; Marié n. 458. The *concilium* discussed matters of public interest, in particular the political and administrative affairs of the province; it could send envoys—three at the most, as *Cod. Theod.* 12.12.7 dictated—to the imperial authorities, or even to the emperor himself. The assembly also presented the emperor with the *aurum coronarium*; Jones 763–766; De Dominicis, 1970 and 1972; Amoroso, 2004–2005; Demandt, 2007², 463–464. *CIL* 8.11025, which dates from the 380s, refers to the provincial assembly of Tripolitania.

The Tripolitani made use of their right to send delegates to the emperor directly, as decreed by *Cod. Theod.* 12.12.1 of 1 August 355: *in Africanis provinciis universis conciliis liberam tribuo potestatem, ut...quod sentiunt eloquantur decretis conditis missisque legatis* "I grant unrestricted power to all councils in the province of Africa, that...they shall have the right to speak out freely what they think; they shall have the right to establish their decrees and send their delegates" (tr. Pharr). Seyfarth n. 148 and Marié n. 455 assume that the complaint against Numerius concerning embezzlement, mentioned by Amm. in 18.1.4, was a similar case brought up by the provincial assembly of Gallia Narbonensis about the behaviour of an imperial official. There, however, it is

not evident from Amm.'s account whether the complaint was filed by the provincial assembly.

The meeting of the provincial assembly is likely to have taken place in Leptis, the main city of the province; Demandt, 1968, 337–338. The provincial assemblies of Tripolitania probably took place in the summer, as Demandt, 1968, 345 argues, but in which year the assembly took place is open to debate. It is linked *inter alia* with the date on which Remigius was appointed as *magister officiorum*, and that date is uncertain. He must have been in office when the assembly convened or at least shortly thereafter, as is evident from what Amm. states in the next section (*Romanus...magistrum officiorum petit Remigium*). The date of Remigius' appointment is connected with the abdication of his predecessor Ursatius. He is mentioned for the last time in 26.5.7 (q.v.) when he insulted the Alamannic envoys who had come to the court in Milan in November/December 364. See the Note on Chronology, Book 26 in this series, xvii and xxiii. It is generally, and rightly, believed that soon afterwards Ursatius was replaced by Remigius—probably by early 365; Clauss, 1980 [1981], 186, 196–197. Demandt, 1968, 338–446 prefers the year 366 because of an alternative chronological reconstruction of the Alamannic affairs as a result of which Ursatius was replaced by Remigius; this reconstruction should be rejected, as is argued in the note ad 26.5.8 *Et circa*. As mentioned ad §4, the first invasion of the Austoriani took place in the winter of 363–364; Romanus arrived in Leptis in the late spring or early summer of 364 and stayed there for at least forty days (§5–6). It is therefore most likely that the *concilium provinciae* mentioned here by Amm. assembled in the summer of 365, a date favoured by e.g. Warmington, 1956, 58, Tomlin, 1973, 201 and Marié n. 455.

The names of the delegates representing the province, Severus and Flaccianus, are only known from Amm.

Victoriarum aurea simulacra Valentiniano ob imperii primitias oblaturus, utque lacrimosas provinciae ruinas docerent intrepide Note the variation in *oblaturus, utque...docerent*, for which cf. 21.13.3 *non, ut lacerarent Persas in proelia, sed praetenturis iuncturos citeriores Tigridis ripas* (q.v.). The golden statuettes of Victory were a form of *aurum coronarium*, an offering made by the cities of the empire to the emperor on his accession, on which see the notes ad 21.1.4 *quinquennialia* and 25.4.15 *coronarium* with the literature quoted there, to which add Ando, 2000, 175–190.

For *primitiae* cf. 26.6.16 *ob principatus primitias* (q.v.). The plight of the Tripolitani has already been hinted at in 27.9.2, where it is said that Valentinian ignored their *lacrimosa dispendia*. The addition of *intrepide* is certainly not superfluous. It took considerable courage to bring a complaint like this before the emperor, as section 22 will show.

- 6.8 *quibus compertis Romanus misso equite velocissimo magistrum officiorum petit Remigium, affinem suum vel rapinarum participem, ut provideret imperatoris arbitrio cognitionem huius negotii vicario sibi que deferri* For Remigius and his position at Valentinian's court see the note ad 27.9.2 *affinitate*. Amm. uses *petere aliquem, ut* also in 29.5.51 *Theodosium suppliciter petit, ut...iuberet*. In classical Latin this construction is exceedingly rare. TLL X 1.1976.7–11 mentions just one example, (Dolabella) Cic. *Fam.* 9.9.2 *illud autem te peto, ut...tu tuis rebus consulas*. “Unlikely to be sound in so carefully composed a letter” is Shackleton Bailey's verdict, who prints ⟨a⟩ *te*. Viansino, 1985, II 769 is probably right in interpreting *vel* here as “introducing a more correct or precise expression”, to quote OLD s.v. 3, despite the fact that a word like *potius* is lacking. Amm. has used *rapinae* twice in this chapter (sections 2 and 4) in connection with the Austoriani. Here it refers to Romanus, of whom it was said in 27.9.2 that he was eager to outdo the enemies in his efforts to ruin the Tripolitani. For the construction *providere* with a.c.i. see the note ad 26.6.2 *et, si* and TLL X 2.2327.68 sqq.

Remigius was probably nominated *magister officiorum* in the first months of 365 (see the note ad §7 above) and not c. 367 as is incorrectly mentioned in the note ad 27.9.2. As a relative and friend he supported, and looked after, the interests of Romanus at the imperial court of Valentinian; 27.9.2, 29.5.2. Assuming that Remigius was at the imperial court, the horseman not only travelled over land, but also had to cross the Mediterranean. The name of the *vicarius* is not mentioned in the manuscripts, and there does not seem to be any cogent reason to add one. On the suggestion of Kellerbauer, 1873, 84 that the *vicarius Africae* in question must have been Vincentius, Clark, followed by Rolfe in the Loeb edition, has added that name: *Vincentio vicario*. This is patently wrong: not Vincentius but Dracontius (*PLRE* I, Dracontius 3) was *vicarius Africae* at the time, a position he held in the years 364–367, as is evident from inscriptions and the Theodosian Code; *IRT* 57–58, 472–473; *Cod. Theod.* 11.7.9, 11.30.33. See also Warmington, 1956, 57; Demandt, 1968, 357; Poggetto della Nave Martini, 1975. Dracontius is also mentioned in the note ad 28.1.17 *cum Africam*. The only *vicarii* mentioned

by name in this chapter are Crescens (§ 23) and Flavianus (§ 28). Eventually Romanus' wish was fulfilled and he carried out the investigation himself together with the *vicarius*, as Amm. reports in § 16 and 23 of this chapter.

venerunt in comitatum legati aditoque principe verbis, quae perpassi sunt, ostenderunt; obtulerunt decreta textum continentia rei totius It is not clear how long it took the envoys to reach the imperial court—for *comitatus* see the note ad 26.5.7 *cum legatis*—and how long they had to wait before they were given an audience with the emperor, or when they returned. Until c. 1 November 365 Valentinian resided in Milan, whence he went to Paris where he is attested to have been on 10–12 December 365; on 7 April 366 Valentinian is known to have been in Rheims; see the Note on Chronology, Book 26 in this series, xxiv. The earliest possible date for the meeting between Valentinian and the Tripolitanian envoys is the autumn of 365, but it is more likely that this meeting took place in the early months of 366; Tomlin, 1973, 201: “winter 365/366?”.

On their arrival the delegates were admitted into the emperor's presence (for this meaning of *adire principem* see TLL I 621.7–35) and received permission not just to hand over their petition, but to plead their cause with a speech (*verbis*). For the whole procedure cf. Matthews 385. The *decreta* contained the mandate of the embassy drawn up by the city councils, as in Cic. *Dom.* 75 *nam quid ego illa divina atque immortalia municipiorum et coloniarum et totius Italiae decreta commemorem, quibus tamquam gradibus mihi videor in caelum ascendisse?* Cf. 18.6.2 *ordines civitatum et populi decretis et acclamationibus densis iniecta manu detinebant paene publicum defensorem* (Ursicinum), where *decretis* refers to *ordines* and *acclamationibus* to *populi*; TLL V 1.152.8–32. *Cod. Theod.* 12.12.11 of 386 prescribes that petitions by municipalities, provinces and guilds should be substantiated by letters and decrees. For *textus*, ‘train of events’, see the note ad 20.4.11 *quo textu*.

quibus lectis cum neque relationi officiorum magistri faventis Romani flagitiis nec contraria referentibus crederetur, promissa disceptatio plena dilata est The Agens of *crederetur* is deliberately suppressed. As the sequel shows (*eo more, quo*), this is a general statement about the *modus operandi* in high places. For Remigius' report cf. 27.9.2 *quo prava et contraria referente* with the note. *Disceptatio*, ‘judicial enquiry’, is found only here and in 15.5.28 *sub disceptatione ignobili crudeliter agitatus*.

eo more, quo solent inter potiorum occupationes ludi potestates excelsae In 29.5.2 Amm. describes how Remigius managed to prevent Firmus' reports on Romanus from reaching the emperor: *inter potiores imperatoris necessitates haec velut minima et superflua non nisi opportune legi posse asseverante*: he told Valentinian that these trivialities (*minima et superflua*) would have to wait until matters of greater importance (*potiores imperatoris necessitates*) had been dealt with. We may infer from the similar wording in the present passage that he used the same method in dealing with the report of the Tripolitani. That means that *potiorum* must be taken as the gen. of *potiora*, 'matters that deserve priority', so that "when advantage is taken of their being occupied with more important business" (Hamilton) is better than "among the distractions to which the powerful are liable" (Rolfe) or "à la faveur des occupations qui assaillent les puissants" (Marié).

For transitive *ludere*, 'to hoodwink', see the note ad 26.8.3 *rumore quodam* and cf. 27.12.11 *regis multiformes lusere conatus*.

- 6.10** *Dum remedia quaedam a commilitio principis expectantur, suspensis Tripolitanis diuque anxii rursus globi supervenere barbarici fiducia sublatis praeteritorum* For *remedium* in its usual metaphorical sense of 'measure to remedy a unfavourable situation' see the note ad 20.5.3 *ut remedia*. As the addition of *quaedam* intimates (see for *quidam* 'some few' the note ad 28.5.2 *sed tunc*) the Tripolitani did not expect miracles, but even their modest hopes were frustrated by the intrigues at court. See for *commilitium principis* as a term for the imperial court the relevant note ad 20.2.1. For the combination of *suspensus* and *anxius* cf. Plin. *Ep.* 3.17.3 *ipse valeo, si valere est suspensum et anxium vivere*. See for *supervenire* the end of the note ad 28.5.10 *scribebatque*, and for *globus* ad 16.12.49 *Exsilivit*. The proposition of Hagendahl, 1923, 45, that Amm.'s use of the perfect forms in *-ere* and *-erunt* shows that quantity still played an important role in his prose, which was referred to in the note ad 26.10.19 *ingentes* (q.v.), is roundly rejected by Oberhelman, 1987 on statistical grounds. According to his findings, Amm. adheres more strictly than any other Latin author to the three forms of the accentual cursus: (in order of frequency) the planus, velox and tardus.

For the expression *sublatus fiducia*, not found in other authors, cf. 27.5.3 *iamque sublatus fiducia* (q.v.) and 29.2.7 *ea fiducia sublatis*. The gen. *praeteritorum* is best explained as objective, as in 20.5.8 *hac fiducia spei maioris animatus* (q.v.). The last three words are a condemnation of the gross negligence shown by the central authority, which failed to

defend its subjects, and thereby incited the barbarians to greater violence. The idea is repeated in § 13 *Austoriani successu gemino insolentes* and § 15 *unde elati in pertinaciam*.

The date of the second incursion of the Austoriani is debated. One indication for its date is Amm.'s comment in § 12 that Valentinian heard about it in Gaul, where he was from the beginning of November 365 onward; see the note ad § 9 *venerunt*. Warmington, 1956, 58 therefore believes that the second Austorian invasion took place in 365 not long after the meeting of the provincial assembly. Demandt, 1968, 348, dates it in the winter of 366/367 or even the spring of 367; Günther, 1997, 448 believes the second and third (§ 13) incursion of the Austoriani took place in the same winter i.e. that of 366/367. Furthermore, the second invasion must have happened after Severus and Flaccianus had had their meeting with the emperor because, as Amm. mentions in the next section, at the request of the Tripolitani Valentinian had entrusted the *praeses* Ruricius with military authority over his province, although this was soon afterwards transferred to Romanus. This makes it very likely that the second raid by the Austoriani took place in 366, and probably rather late in the year because it happened after Romanus had taken over again the military command over Tripolitania from Ruricius (see § 11 below).

Leptitanoque agro et Oeensi interneciva populatione transcursis expleti praedarum acervis ingentibus abscesserunt Oea (Talbert 35 F2)—modern Tripoli—was the second city of Tripolitania after Leptis, and originally a Punic settlement. The city owed its prosperity to its natural harbour and adjacent oasis. Leptis overshadowed Oea economically and politically during most of the Roman period, but while Leptis was in decline by the end of the fourth and early fifth century, Oea remained a prosperous city with a large population; Mattingly, 1995, 122–125.

The phrase *interneciva populatio* itself is unique, but cf. 30.3.7 (Francia) *quam...internecive vastando perrupit*. The verb *transcurrere* is used here in its proper meaning 'to cross', 'to pass by' (also in a temporal sense: 23.6.9 *Quibus peractis transcursisque temporibus longis*). In 14.11.29 *pauca tactu summo transcurram* and 27.4.1 *pauca...transcurrere per brevem excessum* it means "to treat cursorily" (OLD 5). As TLL V 2.1715.25 observes, *explere* often has the connotation of excess ("fere i.q. saginare"). Cf. 17.2.1 *expleri se posse praedarum opimitate sunt arbitrati*; 19.11.2 *expletus praedarum opimitate exercitus*; Sallust's description

of the ways in which Jugurtha bought support in Rome may have been Amm.'s model: *Jug.* 13.6 *uti veteres amicos muneribus expleant*; 20.1 *quos paulo ante muneribus expleverat*.

occisis decurionibus multis, inter quos Rusticianus sacerdotalis et Nicasius enitebat aedilis This is the only instance of *decurio*, 'member of the city council', in the *Res Gestae*. Amm. prefers *curialis* (four times; see the note ad 21.12.20 *Romulus*) and *municeps* (six times; see the note ad 22.9.10 *municipem*). Rusticianus as *sacerdotalis* had held the office of *sacerdos provinciae*, for which see the note ad 28.6.7 *Qua spe*. In 29.5.16 Amm. reports that Firmus humbly offered Theodosius *militaria signa et coronam sacerdotalem cum ceteris, quae interceperat*. It is tempting to think, with Wagner, that this *corona sacerdotalis* had belonged to Rusticianus. About Nicasius nothing else is known. Amm. is the only source which mentions both men. Old city magistracies continued to exist in the later Roman period, including that of *aedilis*. The office which seems not to have differed from that of earlier times, is frequently mentioned in inscriptions and literary sources; Jones 720, 731; Lepelley, 1992, 62; Demandt, 2007², 457.

For *enite(sc)ere* see the note ad 24.4.24 *enituerunt*.

- 6.11** *haec autem eruptio ideo arceri non potuit, quod ad legatorum preces negotiorum quoque militarium cura praesidi delata Ruricio mox translata est ad Romanum* Amm. uses *erumpere* and its derivatives very often for incursions into Roman territory; see the notes ad 24.1.3 *si erupissent* and 27.8.5 *Gallicanos*. *Eruptio* refers to the second Austorian raid. The *legati* are Severus and Flaccianus (§7). The preposition *ad* has the meaning "in response to" (OLD 33), for which cf. the note ad 20.4.7 *ad relationem*.

For Ruricius, only known from Amm. (but see PLRE I, Ruricius, concerning *Cod. Iust.* 11.48.5) see the note ad 27.9.3 *Gestorum*. The casual remark about the temporary transfer of the military command to him in response to the request of the provincial embassy (*ad legatorum preces*) is highly intriguing. As has been pointed out by Demandt, 1968, 347–348, it makes it clear that, in spite of Amm.'s complaint in §9, the central government did react, by transferring the command from the *comes Romanus* to the *praeses* Ruricius, who thus became also (*quoque*) responsible for the conduct of the operations against the Austoriani. From Amm.'s information it is not clear whether Ruricius replaced Romanus as *comes Africae*, and hence received the military command over Africa, as Demandt argues, or whether he only had the military supervision over

Tripolitania, as Warmington, 1956, 58 thinks. Whatever the case, this must have implied a disapproval of Romanus' handling of the situation. It is difficult to understand why Amm. chose to provide this information in such an offhand manner, and why he failed to explain how Romanus quickly (*mox*) managed to have this measure annulled. The explanation as to why the inhabitants of Leptis and Oea were unable to stave off the invading barbarians adds to the vilification of Romanus. Amm. suggests that, if Ruricius had still been in charge of the military, he might have been able to resist the Austoriani.

According to Donaldson, 1985, 173–174 *praesides* had, apart from civil, also military authority over Tripolitania as, for instance, the titles *comes et praeses* of Ruricius' predecessor Nilus and his successor Nepotianus show (see ad § 4 above). Donaldson argues that when Romanus arrived in Tripolitania he had the overall military command, because as *comes Africae* he was, of course, higher in rank than Ruricius, but when he withdrew from Tripolitania the command reverted again to Ruricius. What the envoys asked for, according to Donaldson's interpretation of Amm.'s words, was not the return of the command to Ruricius but they "asked at court that the *comes Africae* should be sent back to Tripolitania with an expeditionary force and automatically the control of the conduct of operations taken from the *praeses* and transferred to the *comes*" (p. 174). This is not what Amm. says. According to him the Tripolitani were frustrated (*frustrati* § 7) by Romanus' reaction to their request for military assistance after the first raid of the Austoriani, and Romanus was again to blame for the failure to stave off their second raid.

et iam recens inflictæ cladis nuntius missus ad Gallias excitavit acrius principem If the second Austorian invasion took place late in 366 (see the note ad § 10 *Dum remedia*), Valentinian may have heard about it in the winter of 366/367. 6.12

Chausserie-Laprée, 1969, 497–517 discusses this use of *iam*; he calls it "de préparation" and traces it back to Ennius. It is common in Livy and other historians of the classical period and is normally followed, as the table on p. 517 shows, by a verb in the imperfect or pluperfect. In Amm., too, we find preparatory *iam* with imperfect (14.11.20 *Iamque non umbratis fallaciis res agebatur*; 31.10.2 *et iam Lentienses, Alamanicus populus...collimitia nostra temptabat*) and pluperfect (31.3.8 *Huni passibus eum citis urgebant et iam oppresserant adventantes, ni gravati praedarum onere destitissent*), but, as was observed by Kroon & Risselada, 2004, 201, he has a marked preference for combining it with a

present participle in phrases like 14.7.21 *Iamque lituis cladum concrepantibus internarum*; 15.2.1 *Iamque...sonante periculorum iudicialium tuba*; 17.13.8 *Iamque vergente in vesperum die*; 21.10.7 *iamque altius semet extollens*; 25.6.2 *egredi iam coeptantes* (q.v.); 30.1.20 *iam vino incalescente ipso convivii domino*. Only occasionally does he use a past participle, as in 24.5.8 *iamque vineis et residuis omnibus, quae poscebat obsidium, paratis*; 25.6.11 *iamque...fama circumlata*. The combination with the perfect *excitavit* is therefore highly unusual. For this reason it may be better to take *iam* with *missus* and to paraphrase: ‘immediately after this new disaster had been inflicted, a message had been sent, which roused the emperor to greater (or extremely great) fury.’ See further Kroon & Risselada, 1999. The phrase *infligere cladem* is found only in Amm., here and in 31.5.12 *post inflictas rei Romanae clades*. For *excitare* used of emotions cf. Cic. *Inv.* 1.103 *acriter excitata indignatio*.

ideoque tribunus et notarius Palladius mittitur, ut et militi disperso per Africam praeberet stipendium debitum et gesta per Tripolim fide congrua scrutaretur For Palladius, see *PLRE* I, Palladius 10 and Teitler, 1985, 155 (Palladius 2), and for his function see the note ad 28.2.5 *utque celeritas*. He only makes an appearance in this chapter of Amm. His being sent to Africa to investigate what was going on in Tripolitania indicates that Valentinian was persuaded by the complaints of the Tripolitanian delegation to take some action. Possibly at the same time, the emperor sent a military mission to Africa because he feared invasions: *sollicitusque super Africa, ne repente perrumperetur, Neoterium postea consulem, tunc notarium ad eandem tuendam ire disposuit* (26.5.14 with relevant notes). Whether this had anything to do with information provided by the envoys from Tripolitania on the Austorian raids is impossible to say; cf. Demandt, 1968, 353–354 who dates this mission in January–April 366.

When in Africa, Palladius accepted part of the pay for the soldiers when this was offered to him. For this he was blackmailed by Romanus (§ 17–20). He was sent on a second mission to Africa by Valentinian without much result (§ 21). After his retirement from the imperial service (§ 25) he was ordered to defend himself at the court, whereupon he committed suicide (§ 27).

The pay of a soldier consisted of a *stipendium*, *donativa* and *annonae*. The stipend was an annual pay which was still in existence in 360, as can be concluded from Julian’s complaint to Constantius that his troops had not received their *annuum stipendium* (20.8.8) since his accession as Caesar. This complaint also makes it clear that the *stipendium* was paid

irregularly. The only indication as to its value comes from papyri dating from the years 299 and 300: legionaries and *equites* of an *ala* received some 600 *denarii*, and infantrymen in the cohorts some 400 *denarii*; Jones 623. It is unknown whether this amount was adjusted in the fourth century. *Donativa* were probably the main source of income for soldiers. They were paid on imperial birthdays, accession days and on days when emperors became consul. Jones 623 estimates that legionaries received some 1250 *denarii* for each celebration of an Augustus and half that amount for that of a Caesar; auxiliaries received only some 250 *denarii*. Although the *donativa* were of course gifts, they tended to become a fixed part of the soldiers' pay. Stipends and donatives were supplemented by *annonae*, rations of inter alia food and clothing. For payment to soldiers see Elton, 1996, 120–125; Southern/Dixon, 1996, 76–82 and the notes ad 20.8.8 *cuius iracundiae* and 26.8.6 *Venustus*. Amm. distinguishes between stipends and donatives—cf. *nec donativum meruit nec stipendium* (17.9.6, q.v.), but in this chapter it is not clear whether Palladius was sent to pay the annual stipend or donatives. In § 17 he uses the term *stipendium* again, while in § 19 he speaks of a *donativum*. Perhaps Palladius was sent to pay both, but it is also possible that, since donatives had become fixed and regular payments, the distinction between the two terms had become blurred. Demandt, 1968, 356 and Tomlin, 1973, 203 following Seeck, 1906, 523 suggest that Palladius came to bring the *donativum debitum* that Valentinian owed the soldiers because of having become emperor.

The enquiry had to be held with the scrupulousness that befitted the seriousness of the case. The expression *congrua fide* can be compared with *clara fide* in 17.1.4 and 21.13.6, where it refers to reliable reports. Valentinian demands what is called in 28.6.28 *relatio gestorum pandens plenissimam fidem*.

Inter tales tamen consulendi moras exspectandique responsa Austoriani successu gemino insolentes ut rapaces alites advolarunt irritamento sanguinis atrocius efferatae As is explained in the note ad 20.4.9 *Inter has tamen moras absentis Lupicini motusque militares timentis praefecti*, the genitive explains what caused the delay: it took a considerable time to consult the emperor in Gaul and to return to Africa with his orders. For resumptive *tamen* see the note ad 20.5.1 *His tamen*. As Amm. had already observed in § 10, the lack of action on the part of the military made the Austoriani overconfident. They had been compared to wild beasts in § 4 (q.v.); this time their lightning attack suggests a comparison with birds of prey, for which cf. 14.4.1 (Saracens) *milvorum rapacium similes* and

6.13

24.2.8 *fugientiumque cervicibus insistentes laniatu avium prostraverunt* with the note. For the idea that wild beasts become more ferocious after they have tasted blood cf. 31.15.2 *ut bestiae sanguinis irritamento atrocius efferatae*. It fits lions and tigers better than birds. *Sanguinis* is a gen. subiectivus: the blood the birds have tasted whets their appetite.

It is hard to establish when the third incursion of the Austoriani took place, but the first half of 367 seems a reasonable guess. Supposedly, the dispatch of the envoys Iovinus and Pancratius, which Amm. mentions in § 16, was the outcome of another provincial assembly, i.e. that of the summer of 367 (see the note ad § 16).

cunctisque, nisi quos fuga discriminibus eximeret, interemptis praedas, quas antehac reliquerant, avexerunt arboribus exsectis et vitibus V leaves out the main verb in this sentence. Gelenius added *avexerunt*. Petschenig's *averterunt* is better, because there is no parallel for *avehere praedam*, whereas *avertere* is found in 14.2.2 *merces opimas...avertebant*; 23.3.4 *equestres hostium turmas...avertisse subito praedas*; 31.7.6 *magnamque spoliolum averterent partem*. It may even be a Vergilian echo: A. 10.78 *arva aliena iugo premere atque avertere praedas*. Cf. also Liv. 1.7.5 *cum avertere eam praedam vellet*. Obviously, the people working in the fields who could not reach the safety of the walls were the victims of the Austoriani, whose savagery induced them not just to carry off what they had left during their first two raids, but even to destroy the olive groves and the vineyards. For destroying fruit trees see the note ad 27.12.12 *qui operam*.

- 6.14** *tunc Mychon quidam nobilis oppidanus et potens captus in suburbano lapsusque, antequam vinciretur, quia pedibus aeger evadere penitus vetabatur, in puteum aquis vacuum sese coniecit* Mychon, about whom nothing else is known, was presumably a member of the curial class of Leptis; he is not mentioned in *PLRE I* (Baldwin, 1976, 120). For *suburbanum* see the note ad 28.6.4 *veritique*. As often in Amm. *labi* means 'to escape'; cf. 14.7.19 *per minorem Armeniam lapsus Constantinopolim petit*, 16.12.58 *reperta copia discedendi lapsus*; 24.6.13 *lapsorum agminibus mixtus* (q.v.). Amm. has *antequam* 34 times, always followed by a subj. except in 22.15.26 *antequam finibus suis excedunt* (where Gelenius reads *excedant*); see the note ad 20.4.22 *quam*. In this case the subj. happens to be in conformity with the rules of classical Latin: Mychon tried to escape capture. He obviously suffered from podagra; cf. Sal. Cat. 59.4 *Antonius, pedibus aeger quod proelio adesse nequibat*; Aur. Vict. Caes. 20.25 *Nam cum pedibus aeger*

bellum moraretur. The *quia*-clause explains the main verb *coniecit*. For *vetare* with an impersonal Agens see the note ad 20.7.12 *fomentisque*. As is observed in the note ad 27.3.1 *idque*, the adverb *penitus* is often used with negative verbs like *ignorare*, *vastare* and *abolere*. Mychon's podagra made it absolutely impossible for him to escape, so he threw himself into the well "fere ad mortem voluntariam obeundam", as TLL X 2.2754.75 rightly observes, comparing Cic. *Prov.* 6 *quod constat nobilissimas virgines se in puteos abiecisce et morte voluntaria necessariam turpitudinem depulisse* and August. *epist.* 173.4 *quod te in puteum, ut morereris, misisti, utique libera voluntate fecisti*.

unde costa diffracta levatus a barbaris ductusque prope portas coniugis miseratione redemptus est et ad pinnas muri fune sublatus post bídium interiit The rescue of Mychon was not an act of mercy on the part of the Austoriani, but, as the verb *redemptus est* shows, a means of making extra money. The use of the neutral conjunction *et* instead of *sed tamen* adds an element of surprise to the bleak ending of this short story. The details of how Mychon was hauled up from the well with his broken rib and later pulled up to the wall of the city give a lively impression of the horrors of such a barbarian raid. Amm. uses *miseratio* both with the meaning 'pity', as in 20.7.4 *eorum enim miseratione telum nemo contorsit*, and in the sense 'appeal for mercy', as in 19.10.3 (after a moving speech from the urban prefect) *qua miseratione vulgus ad clementiam suapte natura proclive lenitum conticuit*. The second meaning is more in keeping with the portrayal of the Austoriani. For *pinna*, 'pinnacle', cf. 16.4.2 *die noctuque inter propugnacula visebatur et pinnas*. V's *interiit* provides no cogent reason to read *interivit*, since in the other nine occurrences of this form V has *interiit*. As was observed ad 25.3.8 *vi vulneris*, the accent in *interiit* is on the penultima.

unde elati in pertinaciam saevissimi grassatores ipsa pulsavere moenia Leptitana Their renewed success leads to a change in the tactics of the Austoriani. From swift raids they turn to prolonged attacks, even to an attempt at a real siege, which is unusual for barbarians. For a similar case cf. 15.8.19 *Coloniam Agrippinam...pertinaci barbarorum obsidione reseratam magnis viribus et deletam*. There is a note about *efferr* ad 21.4.7 *hoc casu*. For *efferr* in cf. 14.1.1 *efferebatur in fastus* and 16.10.12 *elatus in arduum supercilium*. See for *grassari* and its derivatives the notes ad 28.1.36 *grassabatur* and 28.2.11 *At procul*. Normally *pulsare* is used of siege engines, as in Verg. A. 12.706 *imos pulsabant ariete muros* and Ov.

Tr. 1.2.48 *grave ballistae moenia pulsat onus*. However, in Sil. 17.300–301 *pulsantem te, belliger Appi, / moenia sublimis Capuae*, it means ‘to attack, to storm’, as here.

funestis plangoribus resonantia feminarum, quas numquam antea hostiliter clausas pavor exanimabat insolitus The phrase *plangoribus resonantia* is probably inspired by Verg. A. 2.487–488 *plangoribus aedes / femineis ululant* and 12.607 *resonant late plangoribus aedes*. The combination of *plangor* and *funestus* is unique; it indicates that the women are already bewailing their death. For *clausus*, ‘besieged’, cf. 26.8.3 *clausi apud Nicaeam* (q.v.).

obsessaque urbe per octo continuos dies, cum quidam oppugnatores sine ullo vulnerarentur effectu, redierunt ad propria tristiores For *quidam* in the sense of *aliquot*, *nonnulli* see Szantyr 197. The prepositional phrase *sine (ullo) effectu* is found from Cicero onwards; TLL V 2.133.74 sqq. In view of 17.10.9 *ad propria remeare*; 21.13.8 *ad propria revertisse*; 31.15.8 *ad propria remeantes* there seems no reason to doubt the correctness of the text, despite the fact that V has *proprias*, followed by a lacuna of four letters. The insertion of *sedes*, proposed by Clark, would spoil the cursus. The disappointment of barbarians after a failed siege is also mentioned in 16.4.2 *post tricensimum denique diem abiere barbari (Alamanni) tristes inaniter stultequae cogitasse civitatis obsidium mussitantes* (Sens) and 31.15.15 (Gothi) *rediere ad tentoria tristes* (Adrianople).

- 6.16** *Ob quae super salute dubii cives ultimaque temptantes propectis ante legatis nondum reversis Iovinum mittunt atque Pancratium, quae viderint quae ipsi perpassi sint, imperatorem fida relatione docturos* In Late Latin *super* is a synonym of *de*; see the relevant notes ad 20.1.2 *super quo* and 20.4.3 *super...cogendis*. For the asyndeton *quae viderint quae ipsi perpassi sint* cf. 23.2.2 *quo tenderet, quid deberet urguere* with the note.

Since the decision to send Severus and Flaccianus was taken by the provincial assembly of Tripolitania (§7), the decision to send another pair of envoys to the imperial court to inform the emperor about the dire straits the Tripolitani were in, was presumably also taken by the *concilium provinciae*; Tomlin, 1973, 205. If so, this assembly is likely to have taken place in the summer of 367. At that time Severus and Flaccianus had not yet returned. If Iovinus and Pancratius, for whom Amm. is our only source, had left immediately after the meeting of the provincial assembly, they could have reached the imperial court at the

earliest by late summer; Günther, 1997, 448; cf. Demandt, 1968, 348 who dates the second embassy earlier, in the winter of 366/367 or spring 367. The fact that the Tripolitani do not await the return of Severus and Flaccianus illustrates their anxiety. Although Amm. does not state explicitly that the two new delegates acquitted themselves of their task to report the events truthfully, there is every reason to believe that they did. But, as we are told in section 20, Palladius contradicted them at the court with the result that Iovinus was sent back with him for closer examination (Pancratius had died in Trier). Meanwhile (section 21) Romanus had induced the Tripolitani, through his *consiliarius* Caecilius, to retract their former complaints, and Iovinus, who had to follow suit to save his skin, declared that he had lied to the emperor, which implies that he had truthfully reported the sufferings of the Tripolitani. For *fida relatione* cf. 15.5.13 *imperator doctus gesta relatione fideli*. The future participle *docturos* is used in a final sense, as in 28.6.7 *aurea simulacra ...oblaturus, utque lacrimosas provinciae ruinas docerent*. See the note ad 20.2.2 *quaesitores*.

qui Severum apud Carthaginem inventum et Flaccianum, superiores illos legatos, percontando, quid egerint, cognoverunt eos audiri a vicario iussos et comite For Severus and Flaccianus see the preceding note. The hyperbaton of *et Flaccianum* is chosen to create a *cursus velox*. The verb *agere* here means ‘to achieve’, as in Cic. *Fam.* 11.8.1 *omnia enim erant suspensa propter expectationem legatorum, qui quid egissent nihil dum nuntiabatur*; OLD s.v. 11; TLL I 1377.77–79. The answer given by the first pair of envoys proves that Romanus, who had asked Remigius to see to it that the matter would be put before the vicar and himself (§ 8 *cognitionem huius negotii vicario sibi que deferri*), had got his own way, despite the fact that neither the report of Remigius, nor that of the African envoys had found credence at the court (§ 9 *cum neque relationi officiorum magistri ...nec contra referentibus crederetur*).

The *vicarius* must have been Dracontius (see the note ad § 8 above) and the *comes* is of course Romanus.

e quibus Severus ilico perit vexatus acerbitate morborum; nihilo minus tamen properarunt ad comitatum magnis itineribus ante dicti As was observed ad 25.6.13 *id impetratur*, Amm. uses the historic present sparingly to mark high points in the narrative, so that it seems preferable to accept *periit* (E). Severus died a natural death in Carthage, just like the delegate Pancratius in Trier (§ 20). For the gen. inversus *acervitas*

morborum cf. 14.6.23 (in Rome) *morborum acerbitates celsius dominantur*; 16.7.10 *vexatam asperitate morborum*. The envoys Iovinus and Pancratius hurry on to the court despite the fact that Valentinian had already decided that the case should be heard by the vicar and Romanus. They had good reason to expect these men to cover up the affair. There is a note on *ante dictus* ('mentioned above') ad 27.6.3 *qui, licet*.

- 6.17 *Ingresso post haec Palladio Africam Romanus, quas ob res venerat, ante praestructus, ut securitatem suam in tuto locaret, numerorum principii per quosdam secretorum mandaverat conscios* The words *post haec* suggest that Palladius only set foot on African soil after the third Austrian incursion (e.g. Warmington, 1956, 58), the dispatch of Iovinus and Pancratius to the imperial court, the meeting of the latter with Severus and Flaccianus at Carthage, and the death of Severus. Palladius therefore probably arrived in Africa in the autumn of 367; cf. Demandt, 1968, 349 who favours 367; Coşkun, 2004, 295 is indecisive, dating it to 366–367(?)—the question mark is Coşkun's.

Amm. uses the verb *praestruere* twelve times in the sense of 'to prepare' (see the notes ad 16.6.1 *decora*, 16.11.3 *solliciteque* and 20.6.2 *cunctisque*), but only here with a human object, for which cf. Claud. *Bell. Get.* 286 *praestructum bellis civilibus hostem*, 'the enemy, who was informed beforehand by civil wars'. Other examples are given in TLL X 2.946.26 sqq. There is therefore no reason to change V's reading. For the expression *locare in tuto* ('to secure') see the note ad 21.4.1 *ut securitatem*. The *numerorum principia* must have been officers of the *miles dispersus per Africam* mentioned in section 12. For the abstractum pro concreto *principia* see the second half of the note ad 22.3.2 *praesentibus* and for *numeri* as a "general term covering units of all kinds" (Jones 610) the notes ad 20.1.3 *numerisque* and 27.8.7 *unde cum*. In classical Latin the phrase *secretorum conscius* (with which cf. 26.6.14 *arcanorum conscios*) is found only in Suet. *Tib.* 14.4. It does occur a few times in Christian authors such as Ambrose and Augustine.

ut ei tamquam potenti et palatii summatibus proximo stipendii, quod pertulerat, praestarent maximam partem; et ita est factum The reason why the officers, according to Romanus, should give substantial sums to Palladius, is stunningly cynical: Palladius was an influential man and a friend of the highest courtiers. One wonders whether Palladius expected that something like this might happen; how did he dare to accept these poisoned gifts? Amm., who repeatedly vents his indignation about the

misconduct of officials in this affair, is conspicuously silent in this case and leaves the judgment to his readers with the cool phrase *et ita est factum*.

confestimque ille ditatus perrexit ad Leptim, utque ad veritatis perveniret indaginem As Amm. has reported in section 12, Palladius was sent to Africa with a twofold assignment. Having accomplished his first task, the distribution of the *stipendium* among the army units in Africa, he proceeded to Leptis for a fact-finding mission concerning the raids of the Austoriani, probably in the autumn and winter of 367/368. For the expression cf. 22.4.1 *ut philosophus veritatis indagandae professor* with the note. For *indago* “speciatim de cognitione magistratuum” see TLL VII 1.1107.48sqq. **6.18**

Erechthium et Aristomenen, facundos municipales et insignes, libere suas civiumque et finitimorum retexentes aerumnas ad loca vastata secum eduxit Erechthius and Aristomenes belonged to the curial elite of Leptis (by *municipes* Amm. means members of the *municipalis ordo*, see the notes ad 22.9.10 *municipem* and 28.6.10 *occisis*). They have no entry in *PLRE* I, but should have had one, as Baldwin, 1976, 118–119 observes. They had to pay dearly for their outspokenness, as Amm. reports in § 20 and 28.

Amm. attaches great importance to *facundia*, which is regularly mentioned as one of the good qualities of a man, e.g. in the case of Diogenes, a governor of Bithynia, 29.1.43 *vir nobili prosapia editus, ingenio, facundia forti suavitateque praestans* and the emperor Gratian 31.10.18 *praeclarae indolis adolescens, facundus et moderatus et bellicosus et clemens*. In the present case, the two gentlemen are chosen for their ability to give an impressive account of the sufferings of the Tripolitani. For *retexere*, “to go back over or retrace” (OLD 3b), see the note ad 20.5.4 *retexere superfluum puto*. Agozzino, 1972, 70 calls it a poeticism, and compares Apul. *Met.* 9.17 *nosse valde cupio et oro, mater, ordine mihi singula retexe*, to which may be added Stat. *Theb.* 3.338 *multumque et ubique retexens* (“renewing everywhere and oft the tale”, tr. Mozley). For *aerumnae* cf. 20.7.7 *post aerumnas*. The *loca vastata* are probably the destroyed olive groves and the vineyards mentioned in section 13.

quibus aperte cuncta monstrantibus luctuosis provinciae cineribus visis revertit The motif of the suffering of the Tripolitani first appeared 27.9.3 *Ruricii praesidis legatorumque mortem et cetera luctuosa* and is **6.19**

repeated time and again. For the metaphorical use of *cineres* cf. 16.12.61 (king Chnodomarius) *post feros lugubresque terrores cineribus Galliarum insultans* and 24.4.11 *tamquam superatura vel devota cineribus* with the note.

Romanumque ut desidem increpans relaturum se cuncta verissime, quae viderat, minabatur ad principem The charge of *desidia* in the sense of ‘neglect of duty’ does not come as a surprise in this narrative, cf. section 6 *dissimulanter diebus ibi quadraginta consumptis nullo temptato idem discesserat comes* (q.v.) and the reproach in section 12 that the second incursion of the Austoriani could not be averted because Romanus held the military command at the time. The superlative *verissime* adds to the threatening tone of Palladius’ words. It also creates a *cursus planus*.

atque ille ira percitus et dolore se quoque mox referre firmavit, quod missus ut notarius incorruptus donativum militis omne in quaestus averterit proprios When Amm. introduced Romanus in 27.9.2 (q.v.), he called him *ventura providus transferendaeque in alios invidiae artifex*. In all probability Amm. had in mind the present situation, in which Romanus manages to blame Palladius (not Ruricius, as was mistakenly said in the note ad loc.) for an offence which he himself had orchestrated. Romanus’ threat may be hyperbolic (*stipendii... maximam partem* in section 17 has become *donativum militis omne*), but it would even so be lethal if he were to accuse Palladius of keeping for himself the money which was meant for the soldiers. Therefore Palladius chose to lie to the emperor—an act of *laesa maiestas*—and to betray the Tripolitani.

Amm. has a predilection for *percitus* with an abl. causae; see the relevant note ad 28.1.23. The phrase *ut notarius incorruptus* expresses the opinion the emperor had of Palladius when he sent him to Africa. For *avertere*, ‘to embezzle’, cf. Tac. *Hist.* 1.53.1 *compertum publicam pecuniam avertisse* (‘having been found out to have embezzled public money’). The use of the perf. *avertit* is best interpreted as a form of *repraesentatio*, for which see the note ad 23.2.6 *ubi cum*. At the same time it creates a *cursus planus*.

- 6.20** *qua gratia flagitiorum arbitra conscientia cum Romano deinde Palladius concordabat* There is a note on *qua gratia*, ‘therefore’, ad *qua gratia in laetitiam imperator versus* (21.13.16). For *arbiter* see the note ad 28.5.7 *ac licet*. In all probability *flagitiorum arbitra conscientia* is an abl. abs.

The addition of *arbitra* lends it a bitter tone. At this new stage in the Tripolitan affair Palladius' bad conscience makes him decide to side with Romanus, so that *arbitra* denotes the driving force which leads to new forms of injustice; contrast *arbitra aequitate* in *Cod. Theod.* 10.10.10, quoted ad § 22 *Ruricius*. In the last resort, however, it will be the unsleeping eye of Iustitia which dictates the course of events: 29.2.20 *inconivus Iustitiae oculus, arbiter et vindex perpetuus rerum*; cf. 14.11.26 (Adrastia, Iustitia's daughter) *regina causarum et arbitra rerum*. At the same time, *arbiter* retains its meaning of 'umpire'. The conflict between Palladius and Romanus is resolved by the former's awareness of his wrongdoings. From then on (*deinde*) the two have no choice but to be associates. Valesius aptly quotes Tac. *Ann.* 6.4.2 *metum prorsus et noxae conscientiam pro foedere haberi* and Juv. 3.53–54 *carus erit Verri qui Verrem tempore quo vult/accusare potest*. Gelenius' *concordabant*—either conjectured or found in the Hersfeldensis—for V's *concordia cum dabat* (possibly influenced by the preceding *conscientia cum*) is convincing. Amm. uses *concordare* six times; cf. 16.12.16 *sedata iurgiorum materia vicinae gentes iam concordabant* and 20.5.10 *sententia concordante multorum*, q.v. For *concordare cum* cf. Sen. *Ep.* 74.30 *Virtus enim convenientia constat: omnia opera eius cum ipsa concordant et congruunt* ("For the underlying principle of virtue is conformity; all the works of virtue are in harmony and agreement with virtue itself", tr. Gummere).

reversusque ad comitatum arte mendaciorum impia Valentinianum fefellerat Tripolitanos frustra queri commemorans For *comitatus* as a term for the imperial court, see the note ad 26.5.7 *cum legatis*. Palladius has made lying into an art form, be it an immoral one. For the phrase *arte mendaciorum* cf. 15.13.3 *arte despecta furtorum rapiens propalam* ("thought it superfluous to employ art in his thievery and plundered openly", tr. Hamilton). The pluperfect *fefellerat* should be interpreted as referring to an action preceding the next phase *rursus ad Africam...remittitur*, just like *decesserat* and *iusserat*. For *frustra* in the sense of "temere, inaniter, iniuria, sine causa" (TLL VI 1.1434.74–75) cf. 15.5.18 (Vrsicini) *consiliis rei bellicae praestantissimi frustra gravi iniuria lacesciti*; 26.2.4 *id frustra creditum videbatur*; 28.6.30 (cum) *frustra se tractos ob simultates documentis probabilibus ostendissent*.

ideoque rursus ad Africam cum Iovino postremo omnium legatorum remittitur—*Pancratius enim decesserat apud Treveros—, ut cum vicario*

ipse merita legationis quoque secundae spectaret Amm. makes a careful distinction between the successive delegations. The first pair of envoys, Severus and Flaccianus, are called *superiores illos legatos* in § 16. Iovinus is called *postremo omnium* rather than *posteriore*, because after the death of his companion Pancratius he is the last remaining delegate. The inquest after the first delegation was to be conducted by the unnamed vicar and Romanus (§ 16). As has been observed ad § 11 *ad haec*, Amm. does not give any details about the temporary dismissal of Romanus as commander, which must have been the result of the first delegation. After the second delegation it is again the vicar who will conduct the inquest, this time assisted by Valentinian's personal envoy Palladius. After his inspection of Tripolitania and his encounter with Romanus, Palladius returned to the imperial court. How long he had stayed in Africa, and when he returned, is hard to say. If he did arrive in the autumn of 367 (see the note ad § 17 *Ingresso*), it would have taken him at least several months to visit the troops, to inspect Tripolitania and to meet with Romanus. A reasonable guess, therefore, is that he left Africa in the beginning of the spring of 368 and arrived some months later at the court, possibly in the early summer of 368; at that time Valentinian was at the Rhine frontier fighting the Alamanni; see the Note on Chronology, Book 27 in this series, xv and xxv. Cf. Demandt, 1968, 349 who argues for late 368 by making a connection between the issue of *Cod. Theod.* 12.12.6 addressed to the *proconsul Africae* and dated 2 February 369 about unnecessary requests by delegates, and the delegation from Tripolitania. However, this does not make sense, since Valentinian seems to have taken the complaints of the Tripolitani seriously. Otherwise he would not have sent his representative Palladius to Africa to investigate these complaints. After his meeting with the emperor, who does not seem to have taken action in response to his report, Palladius was probably immediately sent back to Africa to examine the complaints of the second Tripolitanian delegation. He possibly arrived in Africa again in the late summer or early autumn of 368; cf. Demandt, 1968, 349–350 who argues for 369. The name of the *vicarius* with whom Palladius had to conduct his investigations is not known. It may have been Musufilus (*PLRE I*, Musufilus) who is attested as *vicarius Africae* in *Cod. Theod.* 13.6.3 which possibly dates from (31 July) 368, so Pergami, 1993, 251, but may also be later: 370 or 373 as Seeck, 1919, 240 proposed. Another possibility is Crescens (*PLRE I*, Crescens 1), who is attested as *vicarius* at least from 12 July 371 (*Cod. Theod.* 11.1.17) but may have entered the vicariate before; see the note ad § 23 *ac Ruricius*.

For Trier see the note ad 27.8.1 *Profectus*. The noun *merita*, ‘the merits (of a case)’, is often used by jurists in this sense; TLL VIII 2.821.33 sqq., as in Ambr. in *psalm.* 118 *serm.* 20.36 *bonus iudex...examinat causae merita, non mutat*.

praeter haec linguas Erechthi et Aristomenis praecidi iusserat imperator, quos invidiosa quaedam locutos idem Palladius intimarat Erechthius and Aristomenes were treated as *delatores*. Valentinian probably based his punishment of the two on *Cod. Theod.* 10.10.2 issued by Constantine: *Comprimatur unum maximum humanae vitae malum, delatorum execranda perniciēs, et inter primos conatus in ipsis faucibus stranguletur, et amputata radicitus invidiae lingua vellatur, ita ut iudices nec calumniam nec vocem prorsus deferentis admittant; sed si qui delator exstiterit, capitali sententiae subiugetur* (“The accursed ruin caused by informers, the one greatest evil to human life, shall be suppressed; at the beginning of an attempt it shall be strangled in the very throat, and the tongue of envy shall be cut off from its roots and plucked out, so that judges shall not grant a hearing at all either to such calumny or to the voice of an informer, but if any informer should arise, he shall be subjected to the capital penalty”, tr. Pharr).

As TLL VII 2. 208. 23 sqq. makes clear, *invidiosus* is almost a juridical t.t. for discrediting statements. Some examples: Cic. *Ver.* 2.113 *cumque magis invidioso crimine quam vero arcesseretur*; Liv. 34.7.14 *invidiosis nominibus utebatur modo consul, seditionem muliebrem et secessionem appellando*; Suet. *Aug.* 56.1 *Iocis quoque quorundam invidiosis aut petulantibus lacessitus contra dixit edicto*. The outspoken remarks (§ 18 *libere*) made by Erechthius and Aristomenes when they showed Palladius around the region of Leptis were probably directed against Romanus. For *intimare* see the note ad 28.3.8 *id enim*.

Secutus, ut statutum est, vicarium notarius venit ad Tripolim An educated guess would be that the *vicarius* and Palladius arrived in Tripolitania in the autumn of 368. They probably carried out their enquiries in the autumn and winter of 368/369; Günther, 1997, 448; Warmington, 1956, 59: “in 368 at the earliest”. Amm. does not use the phrase (*ut*) *statutum est* in Books 14–25, whereas in 26–31 it is found nine times. It seems likely that Palladius and the vicar travelled together to Tripolis from Carthage, since the normal route from Gaul to Tripolis seems to have been through that city (see § 16).

hocque comperto Romanus domesticum suum illuc volucriter misit et Caecilium consiliarium in ea provincia genitum In a characteristically learned note ad 15.6.1 *Silvani* Valesius points out that the *domesticus* was not just a servant, but a personal assistant of the *comes* and as such an important official; TLL V 1.1872.50 sqq. More about this function in Jones 602–603. Romanus reacts to the threat posed by this new inquest with his habitual alertness, cf. § 8 *quibus compertis Romanus misso equite velocissimo magistrum officiorum petit Remigium*. For *volucriter* see the note ad 20.4.21 *occupavere*. For *consiliarius*—not an official function but generally ‘a person who gives advice’—see the note ad 25.3.14 *Phosphorio* and TLL IV 439.4–14. Caecilius (*PLRE* I, Caecilius 1) is to Romanus what Frontinus was to Hymetius (28.1.21) and Simplicius to Maximinus (28.1.45, q.v.). He is obviously chosen by Romanus because he knows the local situation well.

per quos—incertum pretio an fallaciis—circumventi municipes omnes gravabant Iovinum destinatus asserentes nihil eorum mandasse, quae docuerat principem The real Agent of *circumventi* is, of course, Romanus, who through his agents bends the *municipes* of Tripolis (see for *municipes* the note ad 28.6.18 *Erechthius*) to his will by using bribery or deceit. Amm. uses the verb *circumvenire* only here and in 29.6.12 *quod per ipsum circumventum regem existimabant insontem* in its metaphorical sense of ‘to cheat’. For *circumvenire* in combination with derivatives of *fallere* cf. Liv. 4.21.4 *falsis criminibus a Minucio circumventum Maelium arguens*; Tac. *Hist.* 4.10 *Baream Soranum falso testimonio circumventum arguebat*. Sabbah 530 shrewdly observes that Amm., by admitting that he does not know *how* Caecilius managed to talk the Tripolitani round, only emphasizes his certainty *that* he in fact did this. The verb *gravare* is used in the juridical sense of “*crimine onerare*” (TLL VI 2 2314.70), as in section 28 *gravarent mentiendo legatos*. See for *destinate*, *-ius* as an equivalent of *pertinaciter* the note ad 25.5.3 *honoratior*. Amm. is not consistent in the use of *se* as subject in the AcI. Here it is left out, as in 19.12.12 *asserens propitiandi causa numinis haec a prima adolescentia factitasse*; elsewhere it is not: 23.2.4 *loquebatur asperius se eos asserens postea non visurum*.

The Tripolitani now flatly deny that Iovinus had reported truthfully to the emperor what had happened in their province. This abrupt change in the attitude of the Tripolitani is the most surprising development in this eventful narrative. One can only regret that the author tells us so little about this volte-face.

eo usque iniquitate grassante, ut ipse quoque Iovinus ad salutis suae discrimen confiteretur se imperatori mentitum Cf. 26.3.4 *usque eo grassante licentia* with the note. It is significant that the only other instance of the abl. abs. *iniquitate grassante* in Latin literature is 29.5.8, where Firmus offers documents to Theodosius which would prove that he had not rebelled against the emperor of his own accord, but because of unjust treatment (by Romanus!): *eum non sponte sua ad id rupisse, quod norat scelestum, sed iniquitate grassante licentius*. In this way the author suggests that both the unjust treatment of Iovinus and the rebellion of Firmus were the responsibility of Romanus. The preposition *ad* is best explained as meaning “at, in response to” (OLD 33). Iovinus’ enemies press him so hard that his life is in danger. For that reason he yields to the pressure and ‘admits’ that he has lied to the emperor. Some translators interpret *ad vitae suae discrimen* as a reference to his later execution on the orders of Valentinian. So Marié: “mettant ainsi sa vie en danger” and Rolfe: “Iovinus himself was forced to endanger his own life by confessing that he had lied to the emperor”. It is doubtful whether this could be expressed by *ad*, and moreover, the reason given for Iovinus’ execution is not that he had lied to the emperor, but that he had been the *auctor* of the alarming reports from the province (see the next section).

Quibus per Palladium regressum cognitis Valentinianus ad acerbitem proclivior Iovinum quidem ut auctorem, Caelestinum vero Concordiumque et Lucium ut falsi conscios et participes puniri supplicio capitali praecepit Again, Amm. leaves us in the dark with respect to the chronology. It is not known how long the investigation of the *vicarius* and Palladius took, nor when Palladius returned to the court and was heard by the emperor. It seems not unreasonable, as was said above, to assume that the investigation took place in the autumn and winter of 368–369 and that Palladius left Africa in the spring of 369 to arrive at the court sometime in the summer of 369.

6.22

On Amm.’s characterization of Valentinian see the notes ad 27.7.4 *Et quamquam*, 27.10.10 *nullo potentium* and in general Teitler, 2007. *Acerbitas* is the opposite of *lenitas* and *humanitas*. It manifests itself in ruthlessness and excessive harshness; see Seager 20–21 and Brandt, 1999, 148–152. It is also mentioned as a characteristic of Constantius in 21.16.9, and in the elogium of Valentinian 30.8.2 *cum esset in acerbitem naturae calore propensior*.

Iovinus is found guilty of *falsum*, the bringing of a false charge, which is a form of *calumnia*; see Heumann-Seckel s.v. The normal punishment is

deportatio and *omnium bonorum publicatio*. Amm. introduces Caelestinus, Concordius and Lucius without any qualification such as *quidam* or an indication of their rank, as if they had been mentioned before. He must have found their names in a report and inserted them into his narrative, leaving it to his readers to guess that they, like Erechthius and Aristomenes (§ 18), were members of the *ordo municipalis*. For the combination of *conscius* and *particeps* cf. 30.5.1 *nullius diri facinoris particeps ... aut conscios* and Quint. Decl. 366.5 *non omnes lex punit, sed conscios, sed particeps sceleris*. Note the alliteration in this and the following sentence.

Ruricius autem praesidem ut mendacem morte multari hoc quoque accedente, quod in relatione eius verba quaedam, ut visum est, immodica legabantur Like the names of Iovinus' fellow victims this comes as a surprise, since the only thing we have heard about Ruricius so far, apart from the announcement of his execution in 27.9.3 (*Ruricii praesidis legatorumque mortem*), is the brief statement in section 11 (q.v.) that he temporarily replaced Romanus as military commander. Here we are given to understand that he too had been critical of Romanus in a *relatio*, which Valentinian judged (*ut visum est*) to be slanderous and offensive. As Valesius suggests, the *relatio* in question was probably the first one sent on the initiative of the provincial assembly (§ 7). Generally, Amm. paints Ruricius as one of the good guys, but Demandt, 1968, 351–353 does not believe that Ruricius was innocent: “Die immer wieder vertretene Unschuld des Ruricius, ist eine Fehlinterpretation des Faktenbestandes Ammians aus dem Geiste seiner Tendenz”. Demandt sees a direct connection between *Cod. Theod.* 10.10.10 (4 February 365), addressed to the provincials of Africa, which decrees the death penalty for *delatores*, and these executions: *In tantum humani generis inimicos arbitra aequitate persequimur, ut delatores pronuntiatos puniri gladio iusserimus* (“With Our judicial equity We prosecute the enemies of the human race to such an extent that We command that these persons pronounced to be informers shall be punished by the sword”, tr. Pharr). To argue his case Demandt even goes so far as to change the date of the law to 4 February 370, which makes his argument implausible.

The qualification *immodicus* belongs to Amm.'s vocabulary of excess, for which see Seager's first chapter 'Moderation and Excess'. It is used of people who do not know their place. When Suetonius describes the youthful arrogance of Domitian before he became emperor, he writes

ab iuventa minime civilis animi, confidens etiam et cum verbis tum rebus immodicus (Dom. 12.3).

ac Ruricius quidem apud Sitifm caesus, reliqui apud Uticam sententiae vicarii Crescentis addicti Sitifis was the capital city of the province Mauretania Sitifensis, one of the new provinces created by Diocletian; Lepelley, 1981, 497–503; Talbert 31 C4. Utica was located 33 km north-west of Carthage; Lepelley, 1981, 241–244; Talbert 32 F2. Crescens (*PLRE* I, Crescens 1) was *vicarius Africae* by 12 July 371 as we know from *Cod. Theod.* 11.1.17 which is addressed to him, and possibly even earlier if *Cod. Theod.* 10.4.3 is to be dated to 4 April 370, cf. Pergami, 1993, 196 and 498—it may, however, also have been issued in 373. Be that as it may, it is not unlikely that he already took office in 370; Demandt, 1968, 358. He remained in office until 373. The executions, therefore, took place sometime during the years 370–373; Günther, 1997, 447.

Clark added *est* c.c. after *caesus*. Blomgren 71, however, may well be right in defending V's text, in view of the frequent ellipses of forms of *esse* with a perfect participle. Cf. in this book 28.5.7 *exin concursum infestius*. For *addicere* cf. Heumann-Seckel 12: “zuweisen, zustellen”. The reading *sententiae* (V has *sententia*) is a necessary correction by Demandt, 1968, 357 n. 1, since *addicere* requires a complement in the dative. Normally the dative complement indicates the punishment, as in 15.3.2 *residuos capitalibus addixere suppliciis*; 15.7.5 *Patruini consularis sententia supplicio est capitali addictus*. With the present passage cf. 15.5.28 (*ut Ursicinus) ab oriente raptus odiis inimicorum addiceretur*.

Flaccianus tamen ante legatorum interitum, cum a vicario audiretur et comite, constanter saluti suae propugnans acclamationibus iratorum militum impetuque cum conviciis paene confossus est It is unclear why Flaccianus, member of the first Tripolinian embassy to Valentinian, was heard and kept alive until the emperor had been consulted (§ 24), whereas the others who had pleaded the cause of Tripolitania were immediately executed. In § 16 Amm. mentions that the first Tripolitanian envoys Severus and Flaccianus had been sent back by the emperor to present their report to the *vicarius* and the *comes*; the second delegation, consisting of Iovinus and Pancratius, met them in Carthage: *Severum apud Carthaginem inventum et Flaccianum, superiores illos legatos, percontando, quid egerint, cognoverunt eos audiri a vicario iussos et comite*. Severus and Flaccianus probably returned in the summer of 367, which implies that the hearing of Flaccianus—Severus had died in the meantime—took place sometime

between the summer of 367 and 369/370 when Ruricius and the *legati* were convicted and executed. The *comes* is of course Romanus; the name of the *vicarius* is not known.

The *legati* are Iovinus, Caelestinus, Concordius and Lucius. The contrast indicated by *tamen* marks the opposition between Iovinus cum suis, who were killed, and Flaccianus, who miraculously escaped with his life. The only other envoys mentioned by name, Severus and Pancratius, had died from illness in Carthage and Trier respectively (§ 16 and 20). It is only natural that Amm. wants to inform his readers about the fate of the only remaining envoy. In order to do this, he had to go back in time. The reason why Amm. chose both to manipulate the chronological order in this way, and to treat the trial of Flaccianus near the—provisional—end of the narrative is a matter for speculation. One is reminded of the case of Syagrius, sole survivor of a battle against the Alamans (28.2.9), who must have been Amm.'s direct or indirect source for that episode. In the same way Flaccianus may have been in contact with Amm. during his period in hiding in Rome; Günther, 1997, 457.

The adverb *constanter* is best interpreted as 'consistently'; Flaccianus fought for his life steadfastly and without contradicting himself. For metaphorical *propugnare* with dative cf. 18.8.6 *excelsa illa fortuna propugnans miseriis meis*.

As Amm.'s report shows, there were military men present at the hearing, in sufficient numbers to threaten Flaccianus' life. One wonders whether the trial was public, like the ones the urban prefect Apronianus occasionally held (see the note ad 26.3.2 *unde quibusdam*).

obicientium ideo Tripolitanos non potuisse defendi, quod ipsi ad expeditionales usus praebere necessaria detrectarunt The only other occurrence of *usus expeditionalis* is HA PN 10.1 (ut) *iusserit omne argentum summov(er)i de usu expeditionali*. Flaccianus' defense clearly caused anger and irritation among the soldiers present, apparently because he held the military responsible for the disasters that had befallen Tripolitania. The fact that Flaccianus was shouted down by the soldiers indicates that according to the military the Tripolitani themselves were accountable for the calamities that had come over them, because they had refused to furnish the necessary supplies for a campaign against the Austoriani; see the note ad § 6 above. This is the first and only time in this chapter that Amm. shows the other side of the Tripolitanian controversy.

Apart from the support of the army Romanus also had the backing of the *vicarii* Dracontius—Tomlin, 1973, 202 calls him Romanus'

accomplice—and Crescens, and of the *magister officiorum* Remigius; Coşkun, 2004, 307. Demandt, 1968, 358–359 considers the Tripolitanian affair therefore—probably correctly—as a conflict between the military authorities on the one hand and Tripolitania and its civil administration on the other about the financing of the defense of Tripolitania: “Somit ergibt sich, dass auf der Seite des Romanus das Heer, die Militärverwaltung, einzelne Hofbeamte und die jeweilige Verwaltungsspitze der Africanischen Diözese gestanden hat, während wir auf der Gegenseite die Stadt Lepcis, die Mehrheit der tripolitanischen Provinzialversammlung und in Ruricius die zivile Verwaltungsbehörde der Provinz finden. Bei einer solchen Parteilung kann man nur von einem politischen Interessenkonflikt über die Finanzierung der Verteidigung sprechen”.

et ob haec trusus in carcerem, dum consultus super eo, quid conveniret agi, decerneret imperator When accused of a crime a person, regardless of his social position, was arrested and placed in custody pending his trial; *Cod. Theod.* 9.2.2 (22 January 365). Imprisonment as a penalty was an exception. See the note ad 26.7.4 *ne quid*. For the expression *trudere in carcerem* see the note ad 28.1.57 *et Doryphorianum*. Clark reads *conveniet* c.c. instead of V's *conveniret*, as in 21.4.4 *scriptisque lectis doctus, quid agi conveniet*, but Seyfarth is probably right in taking the end of the *dum*-clause as the end of the colon and to accept V's reading, which is of course grammatically correct. The final verdict on Flaccianus is left to the emperor, who had also pronounced judgment on Iovinus *cum suis*. 6.24

sollicitatis, ut dabatur opinari, custodibus in urbem Romam abierat profugus ibique delitescens fatali lege discessit For *sollicitare*, ‘to bribe’, see the note ad 27.12.2 *et primo*. The expression *ut dabatur opinari*, which occurs only in Amm. and implies that a statement is based on conjecture, is discussed in the notes ad 24.8.5 *ut opinari* and 26.1.7 *Qui cum*. For comparable expressions, such as *Iren.* 1.4.5 *ut datur intellegi*; see TLL V 1.1690.33–46. In 21.1.8 (q.v.) the expression *fatali lege* refers generally to the immovable decrees of fate. Here it denotes a natural death; cf. *Tac. Ann.* 2.42.3 *finem vitae sponte an fato implevit*.

Hoc memorando fine externis domesticisque cladibus vexata conticuit Tripolis The Tripolitani had suffered both at the hands of the Austoriani (*externis*) and their own government (*domesticis*). In the light of the preceding narrative this seems a more natural interpretation than to 6.25

suppose that *externis* refers to earthquakes, as Mattingly, 1995, 181 does. The verb *conticescere* means that they cease to protest, as in 19.10.3 *vulgus ad clementiam suapte natura proclive lenitum conticuit* and 20.4.4 *Conticuit hisque acquieverat Iulianus*. The present text should therefore be brought under the heading ‘quiescere’ in TLL IV 695.75, rather than “i.q. perire, cadere, evanescere”, 696.62.

The Tripolitanian affair was settled in favour of Romanus with the executions of Ruricius and those Tripolitani who had pleaded the cause of Tripolitania—a just cause in the eyes of Amm.—before the emperor, as described in § 22–23. The real culprits, again in the eyes of Amm., Romanus, Palladius and Remigius, got off, at least for the time being. However, as has been argued in the note ad § 1 *quas*, the Tripolitanian affair induces Amm. repeatedly to express his conviction that the goddess *Iustitia* watches over human actions and in the end punishes the guilty and rehabilitates the innocent; see the note ad § 1 *quas* and Mratschek, 2007, 249–252.

non indefensa, quia vigilavit Iustitiae oculus sempiternus ultimaeque legatorum et praesidis dirae The notion of ‘the eye of Justice’ is old; cf. *Trag. adesp.* 421 ἔστιν Δίκης ὀφθαλμός, ὃς τὰ πάνθ’ ὁρᾷ and *S. fr.* 12 Ραδτ τὸ χροῦσεον δὲ τᾶς Δίκας δέδορκεν ὄμμα; Leutsch-Schneidewin II 366. Cf. *Gel.* 14.4.1 *os et oculos Iustitiae*; Otto, 1890, 180. For the *ultimae dirae*, the last curses of the Tripolitanian delegates and the *praeses* Ruricius against those who had treated them unjustly before they were executed, see the note ad 28.1.57 *Sed vigilantur*.

diu enim postea huiusmodi casus emerisit: solutus sacramento Palladius destitutusque fastu, quo tumebat, discessit ad otium Amm. uses *huiusmodi* here for one specific event, which is comparable to 20.8.4 *erat autem litterarum sensus huiusmodi*, followed by the text of the letter in oratio recta, and 25.1.15 (q.v.), where he speaks about elephants and goes on to say *ita citius vitam huiusmodi adimi beluarum*. For *emergere* in the sense of *accidere* cf. 26.9.2 *ne quid inopinum per eos emergeret tractus*; TLL V 2.479.29–47. The t.t. *sacramento solvere* for ‘to dismiss from military service’ is discussed ad 24.3.2 *residuos*. The addition of *destitutusque fastu* in combination with *proiectum* in the next sentence suggests that Palladius was cashiered. By way of contrast cf. 30.7.3 *honeste sacramento solutus revertit ad larem*.

The date of Palladius’ dismissal from the imperial service is not known, but it must have happened after the executions of Ruricius and the

Tripolitanian officials, which took place sometime during the years 370–373, and before the discovery of Meterius’ letter among the belongings of Romanus (§ 26, q.v.) This letter was presumably discovered soon after Romanus’ arrest which in its turn took place not long after Theodosius’ arrival in Africa—possibly in April 373 (see the next note)—as may be deduced from Amm. 29.5.5–7. Demandt, 1972, 106 therefore suggests that Palladius left the imperial service early in 373 for reasons which can only be guessed at. Tomlin, 1973, 204–205 considers Palladius’ relationship with Romanus and his role in the whole affair to be unclear, and goes so far as to suggest that Palladius had already been bribed before he left for Africa for the first time, possibly by Remigius, who as *magister officiorum* had close contacts with *notarii*. Tomlin’s suggestion, although interesting, is no more than a guess.

et cum Theodosius, ductor exercituum ille magnificus, oppressurus Firmum perniciose coeptantem venisset in Africam For Theodosius see the note ad 27.8.3 *postremo*. His qualities as a military leader are fulsomely praised by Amm., as is illustrated in the notes ad 27.8.3 *officiis Martiis* and 28.3.1 *Theodosius*. An elaborate account of the Firmus revolt is presented by Amm. in 29.5; see Drijvers, 2007. The date of Theodosius’ entry into Africa is not handed down, but he probably arrived there in 373, possibly in April; Demandt, 1972, 103–111.

6.26

Amm. uses *coeptare* often in connection with rebellion, 14.10.5 (Gal-lus) *exitiosa coeptantem*; 15.5.4 (Silvanus) *altiora coeptantem et prope diem loci principalis aditurum*; 16.6.2 *rettulimus accusasse Adelphium urbi praefectum ut altiora coeptantem*; 26.6.3 (the *notarius* Iovianus) *novaque exinde coeptare suspectum*.

proscripti Romani rem mobilem, ut iussum est, scrutaretur, inter chartas eius inventa est et Meteri cuiusdam epistula id continens Gelenius added *et* before *proscripti* to link *cum...venisset* and *scrutaretur*, which does seem indispensable, despite the fact that Blomgren 45–46 defended the reading of the ms. V. Kellerbauer, 1873, 136 wrote *proscripti* instead of V’s *praescripti* for two good reasons. In Amm. *praescriptus* always means ‘ordained (by fate or law)’, and the fact that Romanus’ house is searched proves that his property is confiscated. Neither Amm. (nor any other author) uses *praescriptus* in the sense of ‘mentioned before’, postulated by Coşkun, 2004, 297 n. 16. Regrettably, the author mentions Romanus’ *proscriptio* only in passing. In 29.5.7 we read that Theodosius put Romanus and his collaborators (*domestici*) under the surveillance of

protectores, but there too no reasons are given. Amm. uses different terms for ‘moveable property’: *res mobilis*, *mobilis census* (28.1.3) and *supellex* (28.6.4).

Romanus’ arrest and presumable discharge from the office of *comes* occurred not long after Theodosius’ arrival in Africa in April 373, as mentioned in the note ad § 25. These events should therefore probably be dated to the summer of 373. At about the same time Meterius’ letter was found. All we know about him is the information given here. The verbal quotation from the letter indicates that Amm. had access to it or that the contents of the letter were included verbatim in the report that was Amm.’s source for his account about the Tripolitanian affairs.

“domino patrono Romano Meterius” et in fine post multa nihil ad rem pertinentia: “salutat te Palladius proiecticius, qui non aliam ob causam dicit se esse proiectum, nisi quod in causa Tripolitanorum apud aures sacras mentitus est” The combination of *dominus* and *patronus* is not unparalleled in the epistolography of Late Antiquity. Cf. *Avell.* 29.1 (p. 74.21), a *relatio* of Symmachus to the *comes* Constantius: *domino semper illustri et cuncta magnifico meritoque sublimi ac praeclaro patrono Constantio*; other examples in TLL X 1.787.59 sqq. When the traitor Antoninus met Ursicinus in 18.8.5, *salutavit patronum appellans et dominum*. The adj. *proiecticius*, ‘disgraced’, is extremely rare; TLL X 2. 1802.44–51. It is derived from *proicere* in the sense of ‘to dismiss’; see the note ad 22.10.5 *e numero*. For the emperor’s sacred ears cf. *Cod. Theod.* 12.12.9.1 about provincial delegates: *sicut licere volumus oppressis deflere quae perferunt, ita provinciales nostri nec incassum peregrinationem suscipiendam eaque ad sacras aures deferenda cognoscant, quae probabiliter principibus adserantur nec superfluis perennitatem nostram existiment actibus occupandam* (“just as it is Our will that the oppressed provincials shall be permitted to lament their sufferings, so Our provincials shall know that they must not undertake such a pilgrimage for no good reason and that they must convey to Our sacred imperial ears those matters which may reasonably be alleged before the Emperor, and they must not suppose that Our Eternity should be besieged with superfluous actions”, tr. Pharr adapted) and *Symm. rel.* 25 (gesta), *quae ubi ad sacras aures perennitatis vestrae recitata pervenerint, oro atque obsecro, ut incertum animi mei responsis imperialibus instruat*ur.

6.27 *his litteris ad comitatum missis et lectis Valentiniani iussu Meterius raptus suam esse confitetur epistulam ideoque Palladius exhiberi praeceptus*

For *comitatus* see the note ad 26.5.7 *cum legatis* and for *rapere*, ‘to arrest’, cf. 15.2.5 (ut) *raptus Ursicinus indemnatus occideretur*; Tac. Ann. 6.18.1 *nullo pavore diem natalem celebrans raptus in curiam pariterque damnatus interfectusque*. The verb *exhibere* is a juridical t.t. Heumann-Seckel s.v. 189 define *exhibere* as “die körperliche Gegenwart einer Person oder Sache bewirken”. Palladius is ordered to appear at the court; cf. the note ad 21.4.6 *exhibitus* and 29.1.11 *ad extollendam eius vanitatem sidera quoque, si iussisset, exhiberi posse promittens* (‘he flattered Valens’ vanity by promising that even the stars would appear before him, if he gave the order’); TLL V 2.1418.54–55 “mediopass. fere i.q. comparere, praesentem fieri”.

cogitans, quas criminum coxerit moles, in statione primis tenebris observata custodum absentia, qui festo die Christiani ritus in ecclesia pernoctabant, innodato gutture laquei nexibus interiit The metaphorical use of *coquere*, ‘to cook up’, is unique in the *Res Gestae*. It is found from Plautus onwards, e.g. Liv. 3.36.2 (consilia) *quae secreto ab aliis coquebant*; 8.3.2 *principes occulte Romanum coquebant bellum*; TLL IV 928.21–33. The translators are unanimous in their interpretation of *criminum* as meaning ‘crimes’, but it seems slightly preferable to give it the meaning ‘accusations’ in view of expressions like 15.3.5 *gravi mole criminis pulsabatur*; 22.11.2 *urgentibus atrocium criminum mole supplicio capitali multatus est*. By his repeated false reports about the events in Tripolitania Palladius had implicitly accused people like Ruricius, Erechthius, Aristomenes and the envoys of deceiving the emperor.

Apparently, Palladius had been arrested and was kept in custody at a military post, which must be the meaning of *statio* in this context rather than a station of the *cursus publicus*; see the note ad 26.7.5 *oppressurus*. Demandt, 1972, 106 dates Palladius’ suicide in 375, and Seyfarth n. 164 (bilingual edition) even in 376, which seems rather late considering that Meterius’ letter was probably discovered in 373. Since Palladius killed himself during a Christian nocturnal vigil, he took his life either at Christmas, Epiphany, Maundy Thursday, or Easter; Coşkun, 2004, 302 suggests Christmas 374 or Epiphany/Maundy Thursday/Easter 375. One is reminded of the raid on Mogontiacum by Rando, described in 27.10.1–2, who also profited from the absence of the soldiers celebrating a Christian festival on that day. It is not unlikely that Amm. added this strictly superfluous detail with malicious intent. Amm. uses the expression *Christianus ritus* (or vice versa) in 15.5.31, 18.10.4, 22.10.7 (q.v.), 26.3.3, 27.3.13, 27.10.2, 29.3.4, 29.5.15 and 31.12.8. In Amm.

ecclesia always has the meaning of a church building; 21.2.5; 22.11.9; 22.13.2.

Hanging was considered an infamous and ignoble death—cf. e.g. Verg. A. 12.603 *nodum informis leti*—and a form of suicide not approved of by the élite; Gris , 1982, 107–109; Van Hooff, 1990, 64–78; Hofmann, 2007. On the use of *laqueus* in phrases denoting suicide see the note ad 26.6.20 in *Africa*.

- 6.28** *hoc fortunae secundioris indicio plene comperto deletoque tristium concitore barbarum exsiluerunt Erechthius et Aristomenes e latebris* In the end these Tripolitani at least were put in the right against Palladius, the ‘instigator of the troubles’ who had maligned them (§ 20). For the phrase *fortuna secundior*, ‘a turn for the better’, which occurs only in Amm., see the relevant note ad 26.7.15. Amm. uses *plene*, ‘in detail’, regularly with *verba declarandi et sentiendi*, as in 15.8.10 *hoc ipso plene videor exposuisse, quod elegi*; 20.5.6 *gentibus cunctis plene iam cognita sunt*; TLL X 1.2424.55–2425.27. For *concitor* cf. 14.10.5 *per turbulentos seditionum concitores* and 25.10.9 *concitorem tumultus auctoresque seditionis*, q.v.

qui, cum sibi iussas abscidi linguas didicissent ut prodigas, ei ad longe remota declinarunt et abdita Amm. refers to the end of section 20 *invidiosa quaedam locutos*, q.v. Since Erechthius and Aristomenes obviously went into hiding before they reappeared, the use of the perfect *declinarunt* shows that in Amm. the distinction between perfect and pluperfect tense is blurred. Pace Petschenig, 1892, 527 (Wagner’s *procaces* is only a gloss on *prodigas*) it would be wrong to read *procaces* instead of V’s *prodigas*, because the adj. is certainly borrowed from Gel. 1.15.17 *lingua tam prodiga infrenisque* (‘unrestrained and unbridled’; TLL X 2.1613.49–60). Hertz, 1874, 298 acutely observes that the borrowing is confirmed by the fact that Amm. in the next chapter (29.1.8) uses the expression *linguam non infrenem*. L fstedt’s *prodigas ei ad* (1907, 94–95) is palaeographically by far the best remedy for V’s *prodigas ei a*. For the combination of a relative and a demonstrative pronoun see the note ad 26.10.8 *inclementius*. The phenomenon is discussed in Touratier, 1980, 487 and Pinkster forthcoming, ch. 17. For the expression *ad longe remota ... et abdita* cf. the note ad 26.6.4 *vitans*. The combination of intransitive *declinare* with *ad* is very rare, the only examples from the classical period being Liv. 38.20.8 *ad se declinare et suo agmini coniungi* and Plin. Nat. 28.93 (hyena’s) *cum fugiant venantem, declinare ad dexteram*; for later periods see TLL V 1.191.32–42.

doctoque super nefanda fraude Gratiano imperatore fidentius—Valentinianus enim obierat—ad Hesperium proconsulem et Flavianum vicarium audiendi sunt missi The *nefanda fraus* was Palladius' false accusation of Erechthius and Aristomenes. Translators seem unanimous in taking *fidentius* to mean trustworthy, to be understood as a characterization of the report to Gratian as trustworthy, but *fidentius* normally refers to self-confidence; cf. 14.9.5 *Eusebius vero obiecta fidentius negans*; 19.12.11 *purgando semet fidentius absolutus est*; 23.5.13 *id vetare procinctum fidentius affirmabant* (q.v.); 26.4.1 (Dagalaifus) *respondit fidentius* (q.v.). After the death of Palladius (and Valentinian!) Erechthius and Aristomenes eagerly and confidently seize the opportunity to obtain justice.

Valentinian died on 17 November 375; Kienast, 1996², 327. Gratian may have received the information about the fraud sometime in 376. Later that year or in 377 the hearing of Erechthius and Aristomenes before Hesperius and Flavianus took place, as a result of which the penalty imposed upon them by Valentinian is likely to have been lifted. Decimius Hilarianus Hesperius (*PLRE* I, Hesperius 2), son of the poet Ausonius, was *proconsul Africae* in 376–377; Barnes, 1985, 150–151. Symm. *Ep.* 1.16 congratulated him on this appointment. As *proconsul* he received *Cod. Theod.* 15.7.3 (10 March 376), 16.5.4 (22 April 376), 8.5.34 (27 February 377) and 1.32.2 (8 July 377). In 378 he was *PPO Galliarum*, in 378–379 *PPO Italiae et Galliarum*, and in 379–380 *PPO Italiae et Africae*. He was honoured by the Leptinians as their patron and as a man of justice (*IRT* 526).

Virius Nicomachus Flavianus (*PLRE* I, Flavianus 15), was born in 334 of senatorial family. His long and distinguished career is described in *CIL* 6.1782 (= *ILS* 2947) and *CIL* 6.1783 (= *ILS* 2948). He was *vicarius Africae* in 377. According to the *PLRE*, *Cod. Theod.* 16.6.2 (17 October 377) was addressed to him in spite of the address *ad Florianum vic. Asiae*; *Florianum* should be *Flavianum* and instead of *Asiae* should be read *Africae*. Based on this law, which refers to a situation in Africa, namely the prohibition of the Donatist practice of rebaptism, the *PLRE* dates Flavianus' vicariate to 377; cf. Coşkun 2004a, 469, who plausibly suggests that Flavianus entered this office earlier, possibly in the autumn of 375 or the spring of 376. The people of Leptis honoured him also as their patron; *IRT* 475. He held various other high positions later: that of *PPO Illyrici et Italiae* in 390–392 and 393–394 (under Eugenius), and that of consul in 394 (also under Eugenius). As an adherent of the traditional cults he vigorously promoted polytheism. He supported Eugenius and committed

suicide after he had been defeated by Theodosius on 5 September 394; Rufin. *hist.* 11.33; Soz. *HE* 7.22.5–6. He was a close friend of Symmachus who addressed his letters 2.1–91 to him. He was a historian (*historico disertissimo*, *ILS* 2947, cf. 2948). On Flavianus see further e.g. Honoré, 1989; Cameron, 2011, 627–690. From the dates of office of Hesperius and Flavianus we can conclude that they undertook their investigation in 376/377.

quorum aequitas auctoritate mixta iustissima torto Caecilio aperta confessione cognovit ipsum suasisse civibus, gravarent mentiendo legatos The personification lends distinction both to the magistrates in question and to the dénouement of the story. Caecilius, Romanus' *consiliarius*, had been instrumental in the downfall of Iovinus (§ 21). For the paratactical structure *suasisse gravarent* see the note ad 26.6.2 *mandaratque*.

With Hesperius and Flavianus justice had returned after the corrupt rule of Romanus and his associates, among whom was his adviser Caecilius. The fact that the latter was tortured seems to imply that he, although *consiliarius* of Romanus, was a *humilior*, since *humiliores* were subject to torture, from which *honestiores* were excluded except in cases of treason; Jones 519. For torture in Amm. and in general see the notes ad 26.10.5 *unde post* and 28.1.19 *Amantius*. Whereas Amm. speaks here of envoys, in § 21 he only mentions one envoy, namely Iovinus.

Once again the narrative leaves important questions unanswered. Amm. does not tell us what had happened to Romanus after his arrest. He must have been released again, for otherwise it would have been impossible for him to travel to the court in order to assist Caecilius in pleading his case, as we are told in the next section. Why was Romanus not immediately indicted after his *consiliarius* Caecilius had confessed that he had slandered the envoys?

haec acta secuta est relatio gestorum pandens plenissimam fidem, ad quam nihil responsum est This important *relatio*, which, as Sabbah 162 plausibly suggests, has provided Amm. with the material for his description of the Tripolitan affair, will have exonerated the provincials of Tripolitania and in all likelihood blamed Romanus for his behaviour towards the provincials during his years as *comes Africae*; Coşkun, 2004, 305; Mratschek, 2007, 256–260. The change of the official attitude with regard to the affairs in Tripolitania may have been connected with events at the imperial court, in particular the replacement of Remigius as *magister officiorum* by Leo; Warmington, 1956, 61.

The *relatio* is described as exhaustive and reliable. Sabbah suggests that the dossier incorporated the *relationes* by Remigius (§9), Iovinus and Pancratius (§16) and Ruricius (§22), to which the letter of Meterius may be added. It is conceivable that Gratian decided not to react to the *relatio* by Hesperius and Flavianus because he regarded it as final and conclusive. Be that as it may, the silence of Gratian may have encouraged Romanus to fight back.

Et ne quid coturni terribilis fabulae relinquerent intemptatum, hoc quoque post depositum accessit aulaeum This difficult sentence has led to divergent interpretations. Most translators, as well as Mratschek, 2007, 261 n. 82, take *fabulae* as the subject of *relinquerent*. Thus Marié: “pour que ces récits ne laissent inemployée aucune ressource de la terreur tragique”, Rolfe: “that these dramas should leave no awful tragic effect untried”. That would be a crass instance of personification, but not beyond Amm.’s stylistic daring, for which see the note ad 20.11.26 *rationes*. However, there is a problem, namely that Amm. treats the Tripolitanian affair as one single drama, of which we have reached the end in the preceding section. The same objection applies to the translation of Viansino, who takes *coturni* as subject: “i coturni della terrificante tragedia”. It seems decidedly better, therefore, to take an unspecified ‘they’, that is ‘the *dramatis personae*’ as the subject and to interpret *coturni terribilis* as a gen. inversus with *fabulae*, which itself depends on *quid*. As has been argued ad 22.4.5 *ambitiosa*, 25.7.11 *hac perniciosa*, 26.7.1 *insoliti casus*, 26.9.11 *perque morum* and 27.9.9 *cuius auctoritate*, the gen. inversus is a favourite device of Amm.’s grand style to add two qualifications to one Head. In the present case the drama (*fabula*) of the Tripolitani is characterized as tragic (*coturni*) and frightening (*terribilis*). The translations of Seyfarth “Bei dieser furchtbaren Tragödie sollte es auch an nichts fehlen” and Hamilton “to complete the full tragic effect of this frightful drama” express the content of the sentence adequately. For *deponere aulaeum* cf. 16.6.3 *velut aulaeo deposito scenae* with De Jonge’s note and the note ad 26.6.15 *ut in theatri*. 6.29

Romanus ad comitatum profectus secum Caecilium duxit cognitores accusaturum ut inclinatos in provinciae partem Romanus was clearly not happy with the outcome of the enquiries by Hesperius and Flavianus which he considered biased in favour of the Tripolitani. He went, therefore, to the court together with his *consiliarius* Caecilius who intended to countersue Hesperius and Flavianus and prove their report false. His

hearing at the court—for *comitatus* see the note ad 26.5.7 *cum legatis*—probably took place in Trier in 377 or 378; Coşkun, 2004, 305–306; cf. Tomlin, 1973, 208 who suggests c. 379. The *cognitores* must have been Hesperius and Flavianus, and Caecilius obviously intended to retract his confession (see the preceding section). For *inclinare* in cf. Tac. *Hist.* 2.30.2 *studia tamen militum in Caecinam inclinabant*; Ann. 2.56.2 *favor nationis inclinabat in Zenonem*.

isque Merobaudis favore susceptus necessarios sibi plures petierat exhiberi For *necessarius* used of human beings cf. 22.4.10 *omnes huiusmodi...ut parum sibi necessarios...proiecit*. For *exhibere* see the note ad 28.6.27 *his litteris*. Romanus asked for more witnesses to be summoned from Africa, probably, if the interpretation of the next section is correct, adversaries of his whom he wanted to compromise.

Flavius Merobaudes (*PLRE* I, Merobaudes 2) was of German, probably Frankish, origin. He served as an officer in the Roman army under Julian. According to Philost. *HE* 8.1 he accompanied Julian's body to Tarsus, but this cannot be correct, as has been argued in the note ad 25.9.12 *cum Iuliani*. In 375 he was appointed *magister peditum* by Valentinian (30.5.13, Zos. 4.17.1), a position which he held possibly until 388. He was consul in 377 together with Gratian and in 383 with Fl. Saturninus; Bagnall et al., 1987, 288–289, 300–301. He played a part in the proclamation of Valentinian II as Augustus; 30.10.4–5; Zos. 4.19.1; *epit.* 45.10. See also Waas, 1971², 93–98. Merobaudes was favourably disposed towards Romanus, possibly because they were both hostile towards Theodosius the Elder and may both have had a hand in his demise in 375/376; Demandt, 1968, 356; Mratschek, 2007, 263; cf. Saylor Rodgers, 1981, 85–87.

- 6.30 *qui cum Mediolanum venissent frustra se tractos ob simultates documentis probabilibus ostendissent, absoluti redierunt ad lares* We must understand that Merobaudes complied with Romanus' request to summon witnesses from Africa. Unfortunately, the text is damaged here. V reads *obsimulatis documentis*. Since *obsimulare* does not exist, Novák, 1896, 68 conjectured *adsimulatis* which he took to mean “documenta, quae speciem probabilium prae se ferebant”, which is very doubtful Latin. Valesius' *ob simultates* is palaeographically attractive and well suited to the context. If it is correct, we must conclude that the witnesses were adversaries of Romanus, who had been summoned for no other reason than Romanus' personal spite; Sabbah 383. For *frustra*, ‘needlessly’, see

the note ad 28.6.20 *reversusque*. The verb *trahere* is used regularly in the sense of ‘to haul someone to court’, 14.5.3 *iniecto onere catenarum in modum beluae trahebatur*, 21.9.6 *ad Lucillianum vocandum trahendumque, si reniteretur*. For Milan as imperial residence, see the note ad 25.8.9 *properare Mediolanum*. On *lares* as a poetic term for a person’s home, see the note ad 21.5.12 *ille innoxius*.

The tribunal was apparently moved from Trier to Milan, where the court resided from 379 onwards (Seeck, 1919, 246 sqq.). Although Romanus and Caecilius had not managed to be rehabilitated, they were not convicted either. If they had been, Amm. would not have omitted to mention it, just as he had mentioned the arrest and suicide of Palladius and Remigius; Coşkun, 2004, 306. Romanus, therefore, seems to have been the only one who escaped the whole Tripolitanian affair scot-free, which puts a blot on Amm.’s picture of *Iustitia* rewarding the good and punishing the guilty. It may be one of the reasons why Amm. added the complaint *utinam semper!* in 14.11.25, and also why he presents the sequel of the story of Romanus as an *exodium*, an appendage after the drama itself had ended.

Valentiniano tamen superstite post superiora, quae narravimus, Remigius quoque digressus ad otium laqueo vitam elisit, ut congruo docebimus loco For *superstes* see the note ad 21.7.5 *eo enim*. Remigius retired from the imperial service to his native Mogontiacum (Mainz) in 371/372. In 30.2.10–12 Amm. reports how he was scorned and injured in every possible way by Maximinus, then praetorian prefect of Gaul, in order to force him to own up to his involvement in the criminal acts of Romanus, which impelled Remigius to commit suicide, possibly in 374; Coşkun, 2004, 296.

Once again, Amm. manipulates the chronological order of events. Caecilius had made his confession after the death of Valentinian (section 28) and now we return to the time when Valentinian was still alive. The *superiora* must therefore refer to what Amm. had related earlier, in section 8, about Remigius’ role in the affair. The reason may be that Ammianus wanted his narrative of the Tripolitan affair to end on a positive note with the suicide of one of the main culprits, Remigius, which had already been announced in 15.5.36 (*Remigio*) *cui multo postea, Valentiniani temporibus, laqueus vitam in causa Tripolitanae legationis erupit*. Wagner rightly calls the phrase ‘he squeezed out his life with a rope’ “mire dictum”. In 30.2.9–12 Amm. describes the downfall of Remigius in loving detail.

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INDICES

I. Lexical (Latin)

- absolutus*: 257
absurdus: 224
accedere: 73
acerbitas: 287
actitare: 40
actus: 74
acumen: 97
ad loca: 235
ad usque: 176
ad: 272, 287
addicere: 289
addictus: 226
adigere: 168
adradere: 123
adulterium: 62
adversum: 190
aegre: 135
aerumnae: 256
affectare: 190
agere: 101, 279
agilis: 238
agitare: 156
alacer: 149
alacritas: 149
alea: 204
alearius: 205
aleator: 204
ales: 18
aliquotiens: 79
allabi: 265
altrinsecus: 214
altus: 131, 171
amabilis: 12
ambigere: 103
ambiguus: 203
ambitiosus: 143
amendare: 98
amicitia: 61
ampla: 75
amplus: 96
anatomicus: 229
anhelare: 70
animula: 18
animus: 148
annectere: 80
ante dictus: 49, 280
antepilanus: 93
antequam: 276
anxius: 169, 270
ap(d)prime: 18
apparare: 264
apparitor: 79
appellare: 51
applicare: 225
apponere: 192, 234
aquarius: 126
arbiter rerum: 239
arbiter: 282
arca: 170
ardere: 177
argumentum: 10
arripere: 131
artifex: 25, 126
artus: 156
asciscere: 214
aspernari: 133
at: 118
atterere: 73, 142
audire: 50
augmentum: 108
auguralis: 18
aula/olla: 227
aulaeum: 299
auspicium: 125
ausum: 155
avertere: 276, 282
baiulus: 72
barbaricum: 123
basiliscus: 85
burgus: 119

- bustuarius*: 30
caedes: 258
calamitas: 62
calceus: 216
calere: 36
callere: 206
calumnia: 56, 170
capitis reus: 114
caput: 106
carcer: 220
caritas: 9, 262
carnifex: 59
carptim: 7
castellum: 119, 150
castra: 119, 150
caterva: 247
causari: 260
cautio: 212
cautus: 89
celsus: 171
census: 9
centenarium: 260
Christianus ritus: 295
cinis: 282
circumcidere: 170
circumspectus: 191
circumvenire: 286
citerior: 171
civilis: 89, 198
civitas: 150
clam palamque: 155
clangere: 227
clarissimus: 25
claudere: 9
cliens: 26
coartare: 95
codex: 57
codicilli: 31
coepi/coeptus sum: 187
coeptare: 293
cognitor: 26
cohaerenter: 221
colligere: 148
colluctatio: 235
colonia: 13, 150
columen/culmen: 174
comitatus: 58, 84, 136, 161, 269
commentum: 142, 241
commerere: 136
commilitium: 162, 270
comminisci: 75
commonitorium: 46
compaginare: 127
compertus: 234
compingere: 21
compitum: 219
componere: 92
concedere: 159
concertatio: 220
conciliare: 11
concilium: 266
concupere: 49
concitor: 296
concordare: 283
concorporalis: 239
concrepare: 33
condere: 75
confragosus: 83
confundere: 127, 242
conicere: 156
coniurare: 141
consarcinare: 29
consciis: 288
consessus: 207
consiliarius: 91, 286
consolari: 11
consopire: 157
constructio: 191
conticescere: 292
contiguus: 110, 134
continere: 100
contio: 218
contrahere: 95
contractare: 195
controversus: 214, 235
contubernalis: 98
conveniens: 90
conventiculum: 219
convincere: 161
copia: 178
coquere: 295
cor: 155
corrigere: 157
coturnatus: 11

coturnus: 215, 299
cruciabilis: 9
culpare: 80
cum: 181
cumulus: 168
cunctator: 90
cupitum: 218
curare: 88
curator: 195
curialis: 272
cursus: 87
dalivus: 180
damnatorius: 113
declinare: 296
decolorare: 76
decretum: 269
decurio: 272
deducere: 13
defectus: 199
defensor: 33
deferre: 38
deformis: 184, 240
deicere: 169
delere: 105
denique: 124
desidia: 282
destinatus: 141, 234, 286
dicio: 159
digerere: 10
dignitas: 31
digredi: 167
dirae: 112
diritas: 182
disceptatio: 269
discindere: 228
discriminare: 235
discurrere: 161
discutere: 34, 167
disponere: 30, 106, 130
dissimulanter: 265
dissimulare: 265
dissimulatio: 177
distentus: 226
distringere: 248
diu multumque: 167
diversorium: 39
divus: 29

documentum: 61, 69
domesticus: 286
dominus: 294
ducere: 50, 58, 181
dum: 186
dux: 131, 156
ecclesia: 296
edictum: 98
effari: 18
effectus: 81, 155, 278
efferratus: 27
efferre: 277
efflare: 30
effrenatus: 177
effundere: 23
ego: 48
emergere: 292
eminere: 33, 259
emissarius: 112
enim: 13, 96, 161
enimvero: 204
enormis: 265
ephemeris: 211
erectus: 92
erratum: 178
eruditus: 72
erumpere: 141, 272
ex: 55
exaggerare: 79
examinare: 71
exardescere: 257
exci(ta)re: 177
excipere: 138
excire: 5
excitare: 274
exhibere: 295
eximere: 128
exitialis: 45, 153
exodiarius: 225
exodium: 225
exorare: 83
exordium: 119
expeditionalis: 290
explere: 271
exploratus: 57
exstinguere: 152
exsultans: 129

- extentare*: 77
extollere: 109
extremus: 238, 265
fabula: 12, 177
fabulari: 177
fabulosus: 177
facundia: 281
fallere: 286
falsum: 287
familia: 93
familiaris: 144
fatalis: 291
favere: 61
feritas: 260
ferreus: 83
ferri in: 219
ferus: 235
fidentius: 297
fides: 70, 134
firmare: 75, 237
fiscalis: 42
fiscus: 42, 170
flabellum: 201
flamma: 58
flatus: 70, 155
flectere: 116, 134
fodere: 132
foris: 168
forma: 126
formula: 126
fortuna: 77, 296
fovere: 61
fretalis: 119
fretum: 119
fructuosus: 138
frustra: 283
frustrari: 265
fugare: 149
fulcire: 78
fulcrum: 95
fumus: 58
funalis: 221
fundamentum: 132
fundare: 125
fundere: 137, 149
funditare: 19
funestus: 59
fusius: 222
gallicinium: 227
ganea: 175
geminus: 246
gemitus: 77
generalis: 250
genitalis: 239
genus: 196
globus: 135, 143, 270
gradus: 86
grammaticus: 91
grassari: 76, 277, 287
grassator: 140
gratanter: 246
gravare: 286
gressus: 144
grex: 206
habilis: 120
hactenus: 198
haerere: 103
haruspex: 21, 22
hebetare: 107, 144, 262
heiulare: 79
hendinos: 250
hinc inde: 238
hoc genere: 149
honestus: 75
honoratus: 140
horreum: 42
hostis: 159
huiusmodi: 292
humanitas: 169, 198
ignobilis: 16
illecebrosus: 155
illicitus: 56
immanitas: 242
imminuere: 90
immo: 108
immodicus: 288
immorari: 88
imperiale praeceptum: 103
impius: 143
implacabilitas: 80
implere: 104, 130, 208
impulsus: 58
imus: 36
in cassum: 134

in: 53, 83, 85
incestus: 172
incidentia: 178
incitator: 102
inclinare: 300
inclutus: 148
incrementum: 262
incumbere: 238
indago: 226, 281
indicare: 99
indicium: 259
indignatio: 11
indigne ferre: 71
indistanter: 138
indoles: 40
inducere: 10, 46
indumentum: 63
infamare: 96
inferre: 238
inflammare: 149
infligere: 274
inicere: 9
iniquitas: 88, 287
inominalis: 220
inopinus: 141, 262
inquietudo: 128
inquietus: 153
insectator: 170
insidere: 201, 261
insigne: 181
insperatus: 2, 98
instaurare: 157
instructio: 35
instrumentum: 265
integer: 43, 149
intentare: 94
intentus: 233
intercipere: 144
interpretari: 49
interpretium: 44
intimare: 161
intoleranter: 113
intromittere: 56
invidiosus: 285
ita: 188, 242
iubar: 221
iudex: 108, 143, 171

iudiciolum: 195
iugis: 5, 177
iurgium: 22, 74
ius: 83
iustitia: 83
iustus: 239
labes: 177
labi: 276
lacinia: 201
laetus: 129
laqueus: 296
lar: 239, 301
larva: 18
latro: 137
latrones: 137
latus: 25, 140
lavare: 211
lectitare: 196
legatum: 74
lentus: 162
lex: 133
libellus: 22
libertas: 56
licenter/licentius: 259
licet: 174, 204
limes: 159, 233
lis: 74
lituus: 33
lixa: 176
locus: 178
luctificus: 142
ludere: 270
ludibrium: 249
lupa: 184
lustrum: 218
machina: 73
mag(ic)us: 34
male: 102
malevolus: 57
mandere: 176
manipulatum: 182
materia: 23, 73
meatus: 126
Medicus: 8
medietas: 75
mediocris: 16
meretrix: 184

- meritum*: 285
miles: 140
minax: 184
minister: 49
minutia: 142
miseratio: 277
mitis: 89
mobilis: 9
modestia: 7
modius: 43
moles: 8, 119
mollis: 174
morem gerere: 208
morigerus: 128
mos: 55
muginari: 100
multiformis: 25
multiplex: 77
multitudo: 233
multus: 7
municeps: 272, 281
municipium: 150
munimentum: 124
munire: 75
nam: 251
ne forte: 6
ne...usquam: 169
nec: 82, 177
necessarius: 157, 300
necessitas: 9
nefandus: 108
nefariae: 100
negotio levi: 236
negotium: 24, 40, 49, 168
nervus: 93
nihilo minus: 30
nimis: 169
nimum quantum: 140
nimius: 205
nitere: 216
nobilis: 25, 39
nobilitas: 25, 178
nundinatio: 44
obliquare: 187
obliquus: 111
oblit(t)erare: 5
obnoxius: 62
obnubilare: 171, 172
obsecrare: 47
occultus: 71
oestrus: 142
officialis: 15
officium: 15
opera: 104
operare: 209
opimus: 199
opitulari: 235
opperiri: 208
optimates: 132
ordo: 87
organarius: 21
origo: 62
ovare: 159
ovatio: 159
pacatus: 258
palaestrita: 21
palpari: 184
Pannonius: 30
pari sorte: 64
pars: 44, 211
particeps: 288
parum quam: 44
parum: 111, 171
pascere: 233
passim: 65
patricius: 103
patrimonium: 199
patronus: 294
pectus: 238
penitus: 277
pensare: 240
pensilis: 201
per occasionem: 252
percitus: 53, 237, 282
perculsus: 144
perfugium: 52
periculum: 238
permittere: 236
perpetrare: 27
perpetuus: 251
Persicus: 8
perterrefacere: 97
pertinacia: 46
pertinax: 46

petulans: 74
petulantia: 74
pinna: 277
platea: 219
plebs: 178
plectere: 53
plenus: 170, 296
pondus: 245
poples: 134
postica: 24
potestas: 209
potior: 270
praecipuum: 83
praecipuus: 160
praeclarus: 40
praeco: 143
praeda: 161
praedo: 108
praeire: 226
praelicenter: 212
praenomen: 179
praerodere: 227
praescribere: 293
praesidalis: 15
praest(r)igia: 208
praestruere: 280
praetentura: 157
praeter: 33
praeterlabi: 125
praetermittere: 144
praetorium: 77
praevenire: 149
pravus: 46, 64
pressorium: 203
primas: 143, 262
primitiae: 149, 268
primus: 233
principium: 280
priscus: 68
pro captu: 155
pro consule: 41
probrum: 177
procedere: 146
proconsularis: 207
prodigus: 296
professio: 212
progredi: 99, 182

proicere: 294
proiecticius: 294
proloquium: 27
proludium: 25
pronuntiare: 64, 102
propensus: 89
proponere: 53
propositum: 27, 157, 174
proprius: 212
propugnare: 290
prorsus: 82
proscribere: 293
prostibulum: 184
provenire: 42
provincialis: 15
provocare: 51, 58
publica mors: 39
pulsare: 277
punctum: 132
purus: 221
qua gratia: 282
quaerere in unum: 143
quaestio: 156
quamlibet: 87
quidam: 152, 234, 270, 278
quidem...vero: 156
quietus: 134
quin etiam: 64
quoniam: 108
rabies: 137, 260
radere: 123
rapere: 111, 295
rapinae: 258
ratus: 70
recalcitrare: 72
recalere: 17
receptaculum: 97
recipere: 98
rector: 159
referre: 56, 159
regere: 16
regimentum: 18
relatio: 26, 47
religio: 65
remedium: 270
replicare: 80, 192
repugnare: 214

- rescribere*: 102
restituere: 149
retexere: 281
retinaculum: 36
reus: 38
reverti: 116
rigidus: 174
ruere: 234
sacramento: 136
sacramentum: 66, 292
salina: 246
salsus: 218
salutatio: 187
satietas: 220
scaenarius: 222
scaenicus: 222
scaevus: 136
scatere: 137
scientia: 156
scrupulosus: 211
secretum membrorum: 63
secretus: 46
secundus: 296
securitas: 149
secus: 97
sedere: 243
seminudus: 135
senator: 25, 199, 216
senatus: 216
series: 50
severitas: 27
severus: 27
silentium: 5
simultas: 300
sinistus: 251
soccus: 215
solidus: 43
sollerter: 189
sollicitare: 155, 291
sollicite: 189
sollicitus: 169
sopire: 157
sordidus: 35
sospitalis: 202
spatium: 176
spectare: 25
spectatissimus: 161
sperare: 58, 206
sponte propria: 198
sportula: 170
squalidus: 35
statarius: 217
statio: 160, 295
statuere: 285
stilus: 10, 127
strepere: 35
strepitus: 161
stringere: 241
stuprum: 62
sub(c) crescere: 145
subiectus: 171
sublimis: 72, 111
subradere: 123
subserere: 214
subsidiere: 207
subterraneus: 19
suburbanum: 261
succedere: 188
sufficere: 177, 226, 264
sufflare: 190
suggerere: 238
sulcare: 25
summates: 71
summitas: 78
summus: 36
sup(p)ellex: 144
super: 52, 60, 278
superbus: 153, 235
superstes: 301
superus: 209
supervenire: 245, 270
supplicium: 27
suscipere: 132
suspectari: 21
suspendere: 191
suspensus: 270
susplicere: 206
taeter: 175, 224
tamen: 154, 275
tamquam: 106
tartareus: 26
tectus: 51
tempestas: 21
tempus: 155

tendere: 70
tepscere: 22, 205
terribilis: 92
tesserarius: 204, 206
testamentum: 74, 214
testari: 214
textus: 6, 145, 269
titubare: 250
titulus: 208
tortor: 40
tradere: 59
trahere: 301
transcurrere: 271
tripudiare: 162
tristis: 109
truculentus: 47
trudere: 79, 291
trulla: 217
tueri: 163
tumor: 92, 262
turbo: 258
turris: 119
tutus: 75
uber: 75
ulterior: 190
ultra: 80, 192
ultro citroque: 161
ululare: 237
umbraculum: 201
unde: 170

II. Lexical (Greek)

ἄσβελος: 21
 θυμοκάτοχος: 47
 κῦμα: 217
 νεκροκαύστης: 30
 περίβλεπτος: 191

urere: 5
urgere: 212
ut datur opinari: 291
ut ita dixerim: 116
utinam: 5, 174
vacuus: 236
vaporatus: 201
variare: 236
varius: 7
vectigal: 170
vel: 247, 268
veneficium: 60, 212
venenum: 21
verbi gratia: 211
vergere: 171
vertere: 145
verum: 43
vetare: 172, 277
vetus: 160
via: 259
vicaria: 104
vigor: 148
vilitas: 222
vinculum: 21
vindex: 198
vis: 100
vocare: 98
voluntas: 75
vulgaris: 176

σιδήρεος: 83
 ταυρηδόν: 188
 τυμβωρύχος: 30
 χεῖλος: 20

III. *Syntax and Style*

abl. abs. without a nominal ablative: 106
 abstractum pro concreto: 262
 accusativus respectus: 174
 adj. as substitute for a genitivus: 222
 adj. with gerund and infinitive: 18
alius, 'grecizing' use of: 39
 alliteration: 89, 184, 262, 288
 alternation of imperf. and perf. tenses: 17
antequam with subjunctive: 276
 asyndeton: 197, 212, 278
augere with abl.: 84
ausus with inf. perf.: 34
 combination of a relative and a demonstrative pronoun: 296
 comparative: 120
 compound forms with *sub(ter)*: 124
*consci*us with dative: 60
 constructio ad sensum: 182
convincere with infinitive: 57
cursus: 58, 120, 132, 145, 169, 222, 225, 228, 258, 279
 dat. sing. in *-u*: 52
dum with future indicative: 227
 ellipsis of forms of *esse*: 289
facere with inf. praes. act: 109
 forms in *-erunt* with a short penultimate: 187
 future part. in irrealis: 175
 future part. used in a final sense: 279
 gen. plur. of third declension: 33, 141
 genitivus forensis: 50
 genitivus identitatis: 188, 221
 genitivus inversus: 182, 184, 205, 228, 279, 299
 gerundive as part. fut. pass.: 50, 58, 135, 187
 grecism: 140
 historic infinitive: 133, 145
 historic present: 279
 hyperbaton: 169, 258, 279

iam de préparation: 273
idem, anaphoric: 64, 74, 152
 indicative in indirect questions: 197
 indicative in oratio obliqua: 134
 inf. praes. instead of an inf. fut.: 80
is used anaphorically: 225
is used cataphorically: 225
 iterative subjunctive: 200
 litotes: 70
nullo as ablative of *nihil*: 265
 omission of comparative words before *quam*: 199
orere(n)tur / *orire(n)tur*: 134
 part. and finite verb changing places: 175
 part. fut. with a *ni*-clause: 152
 passive perfect forms with *fui*: 222
 perfect and pluperfect: 296
 perfect forms in *-ere* and *-erunt*: 270
 personificatio: 298, 299
petere aliquem, ut: 268
 pleonasm: 265
 poetical plural: 17
 predicate in first position: 128, 152, 233
 present part. with preterite force: 196
 presentative sentence: 152
providere with (a.c.) inf.: 105
quicumque followed by subjunctive: 138
quisquam adjectival: 55
repraesentatio: 136, 282
 Satznachtrag: 208
se as subject in the Acl: 286
sociare with dative: 30
suus not referring to the subject of the sentence: 160
 synonymous adjectives: 33
tamquam + participle: 25
ubi with subjunctive: 249
 variatio: 267
verba frequentativa: 40
veteri ablative: 250

IV. *Geographical Names*

- Achaea: 207
 Aesica: 151
 Africa: 41, 207
 Alexandria: 210
 Alta Ripa: 121, 132
 Alteium: 121, 247
 Anderidos: 151
 Antiochia: 173
 Antonacum/Antennacum: 121
 Apamea: 140
 Apennini: 14
 Arbeia: 151
 Argentaria: 121, 233
 Armenia: 2, 3
 Asia: 207
 Augusta/Londinium: 148, 150
 Baetica: 59
 Baiae: 200
 Basilia: 119
 Belgica Secunda: 232
 Bingium/Vingo: 121
 Boae: 52
 Bodobrica: 121
 Braboniacum: 151
 Branodunum: 151
 Brementennacum: 151
 Brisiacum: 118, 123
 Britannia Prima: 158
 Britannia Secunda: 158
 Camulodunum: 150
 Carthago: 41
 castellum Mattiacorum: 118
 castrum Divitensium: 123
 castrum Rauracense: 122
 civitas Mattiacorum: 118
 Complatum (?): 118
 Concangis: 151
 Confluentes: 118, 121
 Constantinopolis: 93
 Corsica: 14
 Ctesiphon: 5
 Cyrenaica: 258
 Dacia Ripensis: 120
 Danum: 151
 Derventio: 151
 Deuso: 237
 Dictum: 151
 Dubris: 151
 Durnovaria: 150
 Eburacum: 150
 Edessa: 78
 Emona: 91
 Flavia Caesariensis: 158
 Gallia Narbonensis: 266
 Galliae: 120
 Gamala: 9
 Gariannonor/Gariannum: 151
 Germania Secunda: 232
 Glannibanta: 151
 Glevum: 150
 Hadrian's Wall: 151
 Hadrianopolis: 5
 Hiberia: 2
 Hunnum: 151
 Illyricum: 92, 101
 Isca Dumnoniorum: 150
 Lacus Avernus: 200
 Lavatris: 151
 Lemannis: 151
 Leptis/Lepcis: 256, 261, 267, 271, 281, 297
 limes Tripolitanus: 260
 Lindum: 150
 Longovicium: 151
 Lupodunum: 125
 Magis (?): 151
 Maglona: 151
 Maiozamalcha: 9
 Mamaeae aquae: 202
 Marato: 140
 Martiaticum: 118
 Masada: 9
 Mauretania Sitifensis: 289
 Mauretania: 252
 Maxima Caesariensis: 158
 Mediolan(i)um: 267, 269, 301
 Miletus: 2, 8, 12
 Mogontiacus: 121, 241, 295, 301
 mons Piri: 130
 Morbium: 151

- Nemetae: 120, 121, 132
 Nicer: 124, 125
 oceanus: 232
 Ocriculum: 50, 103
 Oea: 256, 271
 Opitergium: 180
 Orcades: 158
 Othona: 151
 Padus: 252
 Palmyra: 185
 Paris: 269
 Petra (Lazica): 9
 Pons Aelii: 151
 Portus Adurni: 151
 Portus Iulius: 201
 Puteoli: 200
 Raetia: 248
 Raetiae: 119
 Regulbium: 151
 Remi: 269
 Rhenus: 119
 Robur: 122
 Rutupiae: 151
 Sabratha: 256
 Sale(c)tio/Saliso: 121
 Sardinia: 17
 Scythopolis: 36
 Segedunum: 151
 Sicilia: 14
 Silvani lavacrum: 202
 Sirmium: 139
 Sitifis: 263, 289
 Sopianae: 15, 91
 Summa Rapida: 122
 Syracusae: 209
 Taberna(e): 121
 Tarsus: 300
 Terranova: 17
 Thessalonica: 173
 Toxandria: 232, 237
 Tres Tabernae: 124
 Treviri: 101, 118, 120, 125, 162, 285, 300
 Tripolis/Tripolitania: 256, 261
 Tuscia: 17, 86
 Utica: 289
 Valentia: 158, 159
 Valeria: 15, 153, 159
 Vangiones: 121
 Verteris: 151
 Verulamium: 150
 Via Salaria: 246
 Vicus Iulius: 121
 Virosidum: 151

V. Names of Persons/Peoples

- Abienus: 61, 96, 99
 Aedesius: 16
 Aemilii: 262
 Aginatus: 1, 14, 23, 32, 66, 67, 71, 84, 108, 110
 Agnes: 63
 Alamanni: 118, 137, 242, 244, 252
 Alexander Severus: 202
 Alexander: 78
 Alfenius Ceionius Iulianus *signo*
 Kamenius: 60
 Alypius: 22, 38, 57
 Amantius: 22, 45, 46, 48, 66
 Ambrosius: 139
 Ampelius: 15, 20, 40, 49, 50, 54, 65, 88, 168, 172, 173
 Andronicus: 16
 Anepsia: 62, 67, 74, 76, 98, 99, 106, 110
 Anicia Faltonia Proba: 169
 Anicii: 68, 71
 Anicius Acilius Agina(n)tius
 Faustus: 67
 Antaeus: 94
 Antoninus: 79, 294
 Antonius: 114
 Apelles: 26
 Apodemius: 143
 Apollonius: 31, 32
 Apronianus: 290
 Apuleius: 34
 Aquilinus: 104
 Arator: 131, 132
 Arbitio: 19, 140

- Arcani (?): 160
 Ardiaei: 247
 Areani (?): 160
 Aristomenes: 281, 296
 Artemisia: 185
 Asbelie: 21
 Asbolius: 21, 25, 39, 64
 Athanasius: 21, 60
 Attacotti: 140, 149
 Auchenius: 60
 Aurelianus: 185, 236
 Ausonius: 169, 297
 Austoriani: 140, 257, 261, 271, 275
 Autariatae: 246
 Avienius: 96
 Bappo: 15
 Barbarus: 79, 90
 Bellona: 4
 Betitius Perpetuus Arzygius: 17
 Brahmanes: 31
 Bucinobantes: 241
 Burgundii: 242–244, 247–249
 Busiris: 94
 C. Ceonius Rufius Volusianus *signo*
 Lampadius: 60
 C. Gracchus: 170, 216
 Caecilius: 279, 286, 298, 301
 Caecina Decius Acinatius Albinus:
 67
 Caecinia Lolliana: 57
 Caelestinus: 288
 Caeonii: 68
 Camenius: 60
 Camillus: 68, 162
 Campensis: 21, 25, 39, 45, 50, 65
 Carpi: 16
 Castor: 189
 Catilina: 94
 Cato Censorius: 81, 185, 206
 Cato Uticensis: 81, 206, 209
 Ceionii Iuliani: 60
 Cerialis: 139
 Cethegus: 36–38, 57, 64
 Chilo: 20–22, 42, 67
 Cicimbricus: 217
 Claritas (Charitas/Caritas): 38, 62
 Claudius: 175, 226
 Cleopatra: 184
 Clodius Celsinus Adelphius: 168
 Codrus: 13
 Concordius: 288
 Connus: 196
 Constans: 160
 Constantia: 72
 Constantianus: 138
 Constantinus: 4, 28, 45, 50, 139, 207,
 219, 285
 Constantius Chlorus: 4
 Constantius: 5, 47, 93, 188, 219, 225,
 241, 274, 287
 Corbulo: 206
 Cornelius: 25, 58, 64
 Crescens: 269, 284, 291
 Cresphontes: 215
 Dalii: 178
 Damasus: 4
 Damis: 31
 Decentius: 130
 Decius Mus: 206
 Democritus: 228
 Dicalydones: 149
 Diocletianus: 86, 207, 256
 Diogenes: 21
 Dionysius of Syracuse: 94
 Domitius Corbulo: 81
 Doryphorianus: 67, 88, 103–105,
 108
 Dracontius: 41, 44, 260, 268, 279,
 290
 Drusus: 243, 246
 Dui(l)lius: 200, 201, 206, 209
 Dulcitius: 156, 161
 Dumnonii: 150
 Durotriges: 150
 Ellebichus: 107
 Ennius: 273
 Epimenides: 177
 Erechthius: 281, 296
 Esaias: 38, 89, 93
 Eugenius: 297
 Eumenius: 61, 96
 Eunus: 98
 Eupraxius: 56
 Eusebius: 32

- Eutropia: 4
 Faltonia Betitia Proba: 168
 Faltonius Probus Alypius: 38
 Fausiana: 62, 96, 100
 Faustinus: 59
 Ferasii: 178
 Ferreolus: 136
 Festus: 16
 Firmicus Maternus: 211
 Firmus: 270, 287, 293
 Flaccianus: 267, 271, 284, 289
 Flaviana: 38, 62
 Flavianus: 269, 297
 Flavii Vibiani: 262
 Flavius Archontius Nilus: 261
 Flavius Nepotianus: 261
 Flavius Saturninus: 300
 Flavonii: 178
 Flavonius Lollianus: 180
 Franci (Salii): 123, 137, 232, 242
 Fraomarius: 242
 Frontinus: 49, 91, 155, 286
 Fullofaudes: 161
 Furia: 68
 Furi: 68
 Furius Camillus: 206
 Furius Maecius Gracchus: 37
 Gabinius: 240
 Galerius: 206
 Galla Placidia: 139
 Galla: 139
 Gallus: 38, 47, 72, 93
 Gereones: 178
 Geryon: 94
 Gluturinus: 217
 Gothi: 140
 Gracchi: 68
 Grata: 139
 Gratianus: 92, 110, 111, 281, 297, 299
 Hannibal: 118
 Hariulfus: 249
 Heliodorus: 21, 30, 214
 Hermogenes: 132
 Hesperius: 297
 Hesychia: 62, 94, 95
 Hierocles: 32
 Hilarinus: 38, 60
 Hippocrates: 228
 Hispanilla: 34
 Hymetius: 40, 41, 43, 45, 46, 48–50, 52, 57, 88, 102
 Hypatius: 173
 Hyperechius: 79
 Illyrii: 247
 Iovianus: 2, 31, 241, 260, 263
 Iovinus (*legatus*): 276, 284
 Iovinus: 162, 252
 Isauri: 140
 Iulianus: 31, 40, 47, 67, 69, 154, 157, 170, 222, 225, 241, 243, 274, 300
 Iulius Caesar: 200, 209
 Iusta: 139
 Iustina: 115, 139
 Iustus: 139
 L. Aradius Valerius Proculus *signo*
 Populonium: 68
 L. Marius Maximus Perpetuus
 Aurelianus: 194
 L. Papirius Cursor: 162
 Laches: 215
 Laeta: 181
 Laguatan: 258
 Lampadius: 4
 Leda: 189
 Lentienses: 233, 235
 Leo: 1, 13, 29, 30, 49, 84, 113, 130, 298
 Lollianus: 57–60
 Lucanicus: 217
 Lucilius Constantius: 17
 Lucius: 288
 Lusius Quietus: 81, 206
 M. Claudius Marcellus: 209
 M. Licinius Crassus: 81
 Macrianus: 241, 242
 Magnentius: 4, 139, 157
 Magnus Maximus: 156
 Mallobaudes: 242
 Mamaea: 202
 Maratocupreni: 139, 143, 232
 Marcellianus: 240
 Marcellus: 89, 90
 Marcianus: 60

- Marcus Aurelius: 81
 Marina Severa: 139
 Marinus: 33, 34, 58
 Mausolus: 185
 Maxima: 20, 21
 Maximianus: 243
 Maximinus Thrax: 47, 119
 Maximinus: 1, 4, 13, 14, 16–19, 23,
 26, 31, 34, 36, 40, 45, 49, 54, 57,
 61, 64–66, 70, 71, 77, 78, 81, 83,
 84, 88, 102, 113, 153, 155, 301
 Maximus: 7
 Mazices: 258
 Merobaudes: 300
 Messalla Avienus: 68
 Messores: 217
 Meterius: 294
 Micio: 215
 Minervius: 54, 55
 Modestus: 49
 Mucianus: 79, 90
 Musufilus: 284
 Mychon: 276
 Nannienus: 233, 234
 Nepotianus: 3, 4, 273
 Nero: 175
 Nicasius: 272
 Nilus: 273
 Numa Pompilius: 81
 Numerius: 266
 Odaenathus: 185
 Olybrius: 3, 15, 17, 21–23, 50, 54, 65,
 67, 88, 168, 170, 171
 Ortygius: 258
 Pagonii: 178
 Palladius: 21, 155, 274, 280, 282,
 284, 293, 295, 297
 Pammachius: 68
 Pancratius: 276, 284
 Paphius: 25, 58, 64
 Papirius Cursor: 206
 Parthi: 184
 Paula: 68
 Paulus Catena: 36, 77, 81, 157
 Perpetua: 63
 Petronius Probus: 66, 70, 83, 195, 197
 Petronius: 93
 Phalaris: 94
 Philagrius: 130
 Philoromus: 60
 Phrynichus: 1, 2, 76, 111
 Picti: 140, 149
 Polemius: 68
 Pollux: 189
 Porclaca: 217
 Postumus: 237
 Praetextata: 55
 Praetextatus: 20, 40, 54, 55, 67,
 168
 Probus: 243
 Procopius: 38, 140
 Publicolae: 68
 Q. Clodius Hermogenianus
 Olybrius: 38
 Quadi: 101, 240
 Ragonii: 180
 Ragonius Vincentius Celsus: 180
 Rando: 241, 295
 Reburri: 178
 Remigius: 84, 257, 267, 268, 291,
 298, 301
 Romanus: 256, 263, 268, 282, 286,
 287, 290, 292–294, 298, 301
 Rufina: 38, 62, 89
 Rufius Antonius Agrypnus
 Volusianus: 68
 Ruricius: 271–273, 282, 288
 Rusticianus: 272
 Salsula: 217
 Sapaudulus: 99
 Sapor: 2, 47
 Saraceni: 258
 Sarapio: 217
 Sarmatae: 101, 137
 Saxones: 137, 232, 238, 240
 Scipio: 118
 Scipiones: 68
 Scotti: 140, 149
 Semicupae: 217
 Semiramis: 184
 Septimius Severus: 159, 262
 Serapini: 217
 Serapio: 217
 Serapis: 217

- Sericus: 25, 39, 64
 Severus (*legatus*): 267, 271, 284
 Severus: 234, 248
 Sextus Quintilius Condianus: 206
 Sextus Quintilius Valerius Maximus: 206
 Sfalancius: 59
 Silva: 262
 Simplicius: 88, 89, 91, 98, 99, 101, 114, 286
 Stachao: 258, 259
 Statarii: 217
 Syagrius: 130, 135, 290
 Synesius: 258
 Tacitus (emperor): 68
 Tacitus: 68
 Taifali: 140, 172
 Tanaucius Isfalangius/Sfalancius: 59
 Tarracii: 178
 Tarracius Bassus: 60, 180
 Tauriscus: 94
 Temenus: 215
 Terentius: 86
 Theodora: 4
 Theodosius, general: 141, 147, 156, 162, 216, 248, 252, 263, 264, 272, 293, 300
 Theodosius I: 139, 147, 169, 298
 Thorax: 60
 Ti. Victor Minervius: 55
 Tiberius: 28, 175, 192, 223, 243, 246
 Titucius Roburrus: 180
 Toxotius: 68
 Tyndareus: 189
 Tyrrania Anicia Iuliana: 169
 Ursatius: 267
 Ursicinus: 14, 84, 88, 90, 294
 Ursinus: 4
 Vaballathus: 185
 Valens: 111, 139, 145, 169, 174, 232
 Valentinianus: 118, 125, 153, 161, 174, 232, 241, 247, 248, 263, 268, 269, 275, 284, 287, 297
 Valentinianus II: 111, 139, 300
 Valentinus: 141, 152, 153, 159
 Valerius Publicola: 185
 Vandali: 243, 262
 Venustus: 54, 55, 62
 Verturiones: 149
 Vespasianus: 118
 Victorinus: 61, 74, 97
 Vincentius: 268
 Virius Nicomachus Flavianus: 55, 62
 Viventius: 4, 67, 173
 Volusianus: 57
 Volusii: 262
 Volusus: 68
 Zenobia: 184

VI. *Military Matters*

- ala prima Saxonum*: 236
annona: 274
Batavi: 148
burgus: 119, 125
castellum: 119, 121
castra praesidiaria: 128
castra: 119, 150
catafracti: 238
centenarium: 260
comitatenses: 132
cuneus: 238
donativum: 274
dux Germaniae primae: 132
dux: 131, 156
 fortifications in Late Antiquity: 122
globus: 135
Heruli: 148
Iovii: 148
legio II Augusta: 148
limitanei: 132, 236, 260
magister equitum per Gallias: 162
magister peditum praesentalis: 234
numeri: 148, 280
praetentura: 157
 Rhine fleet: 122
Schiffsländeburgi: 121

stipendium: 274, 281
tribunus stabuli: 138
turris: 119

Victores: 148
Wehrbauern: 260

VII. Various Topics

actors: 224
 Adonis festival: 237
 Adrastia: 257, 283
 adultery: 37, 62, 93, 94, 99, 110
aedilis: 272
aerarium: 43
 Africa: 41
agens in rebus: 90
alea: 204
 Ammianus
 abundantia sermonis: 88, 138, 221
 humiliores: 39
 animal images: 13, 260
 announces future events: 2
 archives: 69
 astrology: 210
 belief in the triumph of justice: 257
 brevity: 142
 chronology: 3, 20, 66, 76, 263,
 287, 290, 301
 Cicero: 215
 comedy: 190, 215
 conviction that justice will
 prevail: 2, 84, 112, 292
 erudition: 16
 exempla from Republican times:
 206
 first person plural: 40, 133
 foresees criticism: 35
 Herodotus: 9, 13
 inaccuracies: 196
 insinuation: 18
 Juvenalis: 193, 211
 lost books of the *Res Gestae*: 4
 Macrobius: 197
 mistrust of oral tradition: 69
 moral standards: 172
 Philostratus: 32
 praises Theodosius: 147, 155, 161
 qualified appreciation of moral
 values: 239

Roman literature: 107
 satirist: 185, 193, 214, 218
 sexuality: 172
 sources: 159
 theatre: 171, 215, 222
 upward mobility: 15, 86, 209
 Vergil: 127, 131
 Apollonius: 32
apparitor: 15, 79
arca: 43
 archives: 35, 36
 Arianism: 139
 aristocratic ancestors: 68
 arrogance: 149
 astrology: 210, 224
 atheism: 210
aurum coronarium: 266
Ba(c)gaudae: 137
 banishment: 153
 barbarian priesthood: 251
 book lost between 30 and 31?: 113
 border between Romans and
 Burgundians: 243
 Brahmanes: 31
 brevity: 168
 broom: 85
 burning alive: 63
calumnia: 56
 camels: 264
canon frumentarius: 41, 43
caput: 106
castellum: 150
 chariot races: 60, 189, 218, 219
 charioteers: 211
 Christian emperors and the Circus:
 219
 Christians: 210
 Cimmerians: 202
 Circus Maximus: 219
 circus, venue for communication:
 218

- claque: 223
clarissimatus: 60
clarissimi: 25, 219
clarissimus: 60
 Codex Calendar of 354: 211
codicilli: 31
cognitor: 26
comes Africae: 263
comes et praeses: 261
comes litoris Britanniarum: 233
comes litoris Saxonici: 233
comes per Africam: 263
comes rei militaris Africae: 263
comes tractus Armoricani: 233
comes: 233
comitatus: 58, 136, 161, 269, 283
 comparisons with men from the
 past: 81
concilium: 266, 278
 conflict between Burgundians and
 Alamanni: 244
 conflict between desert peoples and
 city-dwellers: 259
 conflict between military authorities
 and civil administration: 291
 conflict of *honestum* and *utile*: 240
consiliarius: 49, 91, 286
consistorium: 56
consularis Baeticae: 59
consularis: 55, 59, 159
contio: 218
corrector Apuliae et Calabriae: 55
corrector Tusciae: 17
 corruption of numerals: 3
 corruption: 170, 280
crematio: 259
crimen maiestatis: 27
curia: 86
 death penalty: 27, 63, 65, 259
 decapitation: 38
delator: 45, 285
 Democritus: 228
 dendrochronology: 121
deportatio: 288
 deserters: 148
dignitas: 31
dirae: 112, 292
divus: 29
documentum: 61
domesticus: 286
 Donatists: 297
dux Britanniarum: 151
dux Mogontiacensis: 121
dux provinciae Tripolitanae: 256, 263
dux: 131, 156
eculeus: 46
 Egypt: 250
 Egyptians: 214, 223
 Eusebius: 32
evidentia: 226
 exile: 50
falsum: 287
fama: 61
felicitas as a virtue: 251
 finance: 170
fiscalis: 42
fiscus: 42, 170
 fortune: 157
 gait: 31
 Gargilius Martialis: 194
 gladiatorial games: 219
 gluttons: 226
 greeting: 81
 hanging: 296
 Hercules Deusoniensis: 237
 Hercules Magusanus: 237
 Herodotus: 107
 Hersfeldensis: 207
 Hippocrates: 228
 holding an office twice: 173
 homosexuality: 172
honestiores: 27, 28, 58, 298
honoratus: 140
 Horatius: 179
 horoscopes: 211
horrea fiscalia: 42
 hostages: 133, 236
humanitas: 188
humiliores: 58, 65, 298
 immigrants: 224
 imprisonment: 40, 291
 intercalary day: 210
 Ionian revolt: 8
 Isis: 223

iudex: 171
 Iulianus, decisiveness: 131
Iustitia: 257, 283, 292, 301
 Iuvenalis: 179, 193
 Iuuentius Martialis: 194
 Jewish names: 89
 Jews: 224
 kissing: 186
latro: 240
latrones: 137
 lawyers in the Later Empire: 33
 lawyers: 207
 legacy hunting: 207
 levitation: 32
limes Tripolitanus: 260
limes: 159, 233
 Lucilius: 179
ludi equestres: 221
mag(ic)us: 34
 magic: 13, 51, 58, 60, 64, 74, 100, 173, 211
magister officiorum: 30, 173
maiestas: 13, 56, 282
 malicious people: 23
Mamaeae aquae: 202
 Marius Maximus: 193, 194
miles: 140
minister: 49
Misopogon: 47
 names: 179
naumachia: 201
 necromancy: 19
 negligence of the *limes*: 264
nobilis: 25, 39, 60
nobilitas: 25, 54, 178
nos(ter) referring to the Romans: 161
notarius: 30
numerarius: 15
 obelisk: 219
officialis: 15, 16
officium: 15
ovatio: 159
peculatus: 44
perfidia: 240
 Persian Wars: 8
 philosophers: 224

Phrynichus: 107
plebs: 178, 216
possessor: 260
praefectus annonae Africae: 41, 43
praefectus annonae: 15, 17, 23, 70, 71
praefectus praetorio: 15, 57, 59, 71
praefectus urbi: 17, 20, 29, 37, 49, 57, 59, 60, 77, 88, 168, 170, 180
praepositus limitis: 260
praeses: 159, 256, 273
praesidiale officium: 15
praetorium: 77
pro consule: 41
proconsul Africae: 41, 49
procurator monetae: 64
 prostitutes: 184
provincialis: 15
provocare: 58
publicatio: 288
rationalis: 140, 143
relatio: 26, 47, 288, 298
religio: 65
repetundae: 44
 Rome, *urbs aeterna*: 5, 76
 Rome, former greatness: 188
rumor: 61
sacerdos provinciae: 266
salutatio: 187
 senate and emperor: 53
 senator: 25
 senatorial jurisdiction: 52
sermo castrensis: 176
 sexual offences: 13
 sidelong glance: 92, 209
 silk garments: 181
Silvani lavacrum: 202
 slave marriages: 99
 slave's evidence: 109
 Stesichorus: 196
stuprum: 62, 110
 suffocation: 95
 Synesius: 258
tabularius: 15
 taverns: 175
 tears in the *Res Gestae*: 82
thermopolium: 176

torture: 25, 27, 28, 46, 49, 55, 94,
109, 298
treason: 51
treaties between Alamanni and
Romans: 133
tributarius: 252
Trimalchio: 203
Tullianum: 114
usurper: 154, 156
Valentinianus
vehementia: 128
border forts: 121, 122, 125
increases the size of the army: 119
necrology: 244
religion: 171

strategy: 118, 129, 130
treaties: 133
venator: 226
veneficium: 60, 212
vicarius Africae: 41, 43, 256, 284
vicarius Hispaniae: 55
vicarius Italiae: 14
vicarius praefecturae urbis: 14
vicarius urbis Romae: 14, 17, 23, 29,
37, 71
Victoria, golden statuettes: 267
villains of the past: 94
women, execution: 62, 63
xenophobia: 223
Zeno: 196

VIII. Passages referred to (Latin)

Ambrosius (Ambr.)
epist. 10.76.18: 139
Hymn. 8.26–28 Fontaine: 63
Iac. 1.2.5: 175
in psalm. 118 *serm.*
20.36: 285
22.20: 245
in psalm.
45.9.3: 128
Nab. 3.54: 189
Vid. 2.12: 104

Ampelius (Amp.)
14.6: 8

L'Année Épigraphique (AE)

1889.32: 17
1903.241: 132
1911.106: 42
1954.15: 152
1982.512: 138
1983.927: 128
1989.480: 138
1992.1119: 148
1996.1612: 132
1996.1613: 132
1997.1187: 118
2002.1676: 59, 96
2003.2004: 59

Anonymus (Anon.)
de mach. bell.
20.1: 120

Apicius (Apic.)
8.9: 192

Apuleius (Apul.)
Fl. 15: 177
Met. 1.12: 92
1.23: 203
2.13: 136
2.28–29: 19
3.7: 114
3.28: 143
5.28: 205
6.29: 195
8.7: 46
9.8: 138
9.17: 281
Soc. 15: 18
19: 134

Augustinus (August.)
adv. Don.
31.54: 249
c. Iul. 4.82: 98
C.D. 2.21: 114
6.9.2: 85

- 9.11: 18
 10.28: 154
 11.23: 80
 22.24: 229
Conf. 1.15: 239
doctr. 2.47: 156
epist. 173.4: 277
 245.1: 72
in Gal. 35: 210
in psalm.
 40.1: 199
 150.7: 250
pecc. orig.
 1.31.34: 75
serm. 181.7: 203
 360: 94
trin. 4.22: 156
 7.4.7: 250
- Aurelius Vicor (Aur. Vict.)
Caes. 10.3: 96
 11.12–13: 224
 14.10: 163
 15.1: 178
 20.25: 276
 33.4: 36
 39.17: 137
 39.32: 8
 40.27: 219
- Ausonius (Auson.)
epist. 4.19–20: 219
Mos. 208–219: 201
 421–424: 125
Periocha Iliados
 16: 238
- Caesar (Caes.)
Civ. 1.58.5: 127
Gal. 1.6.1: 152
 1.31.12: 88
 2.12.1: 247
 5.9.3: 182
 5.24.1: 42
 5.45.2: 233
- Calpurnius (Calp.)
Decl. 44: 96
- Cassianus (Cassian.)
conl. 21.9: 72
- Cato
Agr. 50.2: 123
- Celsus (Cels.)
 1 *pr.* 43: 138
 2.10: 163
- Censorinus (Cens.)
 24.2: 227
- Chromatius (Chromat.)
in Matth.
 57.1: 75
- Chronica Minora (Chron. Min.)*
 I, p. 631: 113
- Cicero (Cic.)
Agr. 2.47: 93
 2.69: 205
Amic. 79: 138, 215
 98: 190
Att. 7.13a.2: 85
 7.22.2: 75
 8.11.6: 221
 15.13a.1: 36
 16.12: 100
Brut. 125: 170
 173: 220
 239: 217
Cael. 37: 83
 52: 60
Cat. 1.2: 181
 2.7: 175
 2.23: 206
 4.3: 83
Clu. 13: 58
 56: 60
 70: 67
 133: 178

- de Orat.* 1.59: 170
 2.158: 97
 2.162: 213
 2.361: 174
Div. 1.91: 196
 1.102: 74
 1.131: 228
Dom. 55: 96
 73: 220
 75: 269
Fam. 1.9.12: 93
 3.10.10: 88
 6.5.2: 88
 6.20.1: 11
 9.9.2: 268
 9.16.6: 7
 11.8.1: 279
Flac. 52: 35
Inv. 1.103: 274
 1.109: 82
 2.36: 11
Leg. 1.48: 83
 2.20: 18
 2.28: 177
 3.32: 6
Luc. 61: 202
Mil. 8: 236
 9: 100
N.D. 1.53: 10
 1.66: 169
 2.6: 189
 2.161: 200
Off. 1.131: 31
 3.45: 53
 3.69: 83
Or. 129: 169
 235: 85
Part. 57: 82
Phil. 1.25: 236
 3.35: 204
 7.5: 58
 13.28: 216
 14.34: 7
Pis. 19: 30
Prov. 6: 277
Q. fr. 1.1.39: 83
 1.4.4: 129
Q. Rosc. 30: 222
Quinct. 37: 3
S. Rosc. 88: 219
Sen. 7: 103
 26: 196
 62: 220
Sest. 103: 216
Sul. 73: 167
Tog. Cand.
 fr. 21: 93
Tusc. 1.28: 190
 1.110: 168
 2.25: 142
 3.31: 185
Vat. 4: 209
Ver. 2.22: 112
 2.113: 285
 4.35: 167
 5.59: 167
 Claudianus (Claud.)
Bell. Get.
 286: 280
carm. min.
 25.101–102: 203
 26.62: 183
Epith. Hon.
 187–188: 86
Eutr. 1.463–465: 201
IV Cons. Hon.
 339–341: 202
 Codex Iustinianus (Cod. Iust.)
 9.9.29: 38
 9.41.1 pr.: 110
 9.41.11: 28
 Codex Theodosianus (Cod. Theod.)
 1.6.6: 20
 1.6.8: 105
 1.29.4: 118
 1.32.2: 297
 2.10.5: 15, 172
 2.25.1: 98
 3.14.1: 252
 5.11.11: 98
 6.4.1: 219

- 6.4.2: 219
 6.4.4: 219
 6.4.5: 219
 6.4.13: 219
 6.4.21: 15
 6.4.33: 219
 6.6.1: 33
 6.7.1: 15
 6.24.4: 187
 6.26.4: 104
 6.35.7: 87
 6.35.8: 118
 7.4.16: 42
 7.22.3: 16
 8.1.9 pr.: 15
 8.5.33: 101
 8.5.34: 297
 8.7.10: 118
 8.7.15: 131
 8.10.1-4: 170
 9.1.8: 17
 9.1.12: 90
 9.2.2: 291
 9.34 rubr.: 45
 9.5.1: 28
 9.6.1-2: 84
 9.6.1: 114
 9.6.2: 99, 110, 111, 114
 9.7.1: 97
 9.7.2: 38, 90
 9.7.6: 39
 9.16.1: 45, 48, 50, 65
 9.16.2: 48, 66
 9.16.3: 34
 9.16.4: 48, 66
 9.16.6: 48, 66
 9.16.9: 48, 66
 9.16.10: 50, 88, 173
 9.19.4: 84, 114
 9.24.3: 15, 67
 9.26.4: 173
 9.27.1-7: 44
 9.28.1-2: 44
 9.29.1: 89, 92, 98, 101,
 104
 9.30.2: 137
 9.34.4: 45
 9.35.1: 28, 54
 9.35.2.1: 65
 9.38.4: 94
 9.38.5: 48, 54
 9.40.1: 34, 38
 10.1.10: 44
 10.4.3: 248
 10.9.1: 143
 10.10.2-3: 45
 10.10.2: 285
 10.10.10: 283, 288
 10.10.29: 62
 10.19.6: 118
 11.1.11: 260, 264
 11.1.13: 41
 11.1.17: 284, 289
 11.7.3: 65
 11.7.9: 268
 11.14 rubr.: 42
 11.20.1: 67
 11.27.2: 42
 11.30.4: 41
 11.30.16: 59
 11.30.33: 268
 11.31.3: 22
 11.31.4: 118
 11.31.5: 247
 11.36.4: 38
 11.36.22: 101
 12.1.15: 263
 12.1.73: 84
 12.1.80: 65
 12.1.85: 65
 12.6.16: 20, 42
 12.12.1: 266
 12.12.6: 284
 12.12.7: 266
 12.12.9.1: 294
 12.12.11: 269
 12.12.13: 266
 13.1.10: 101
 13.3.11: 114
 13.4.4: 20, 101
 13.5.2: 41
 13.5.3: 41
 13.5.10: 173
 13.5.12: 118

Codex Theodosianus (Cod. Theod.) (cont.)

- 13.6.3: 284
 13.6.5: 17
 13.6.7: 20
 14.3.13: 20
 14.3.14: 15, 89
 14.15 rubr.: 41
 14.17.6: 15, 17
 14.25 rubr.: 41
 14.25.1: 41
 15.1.12: 42
 15.1.13: 120, 121
 15.5.1: 84
 15.7.3: 297
 15.9.2: 222
 15.10.1: 15, 42, 173
 16.2.22: 84
 16.5.3: 104
 16.5.4: 297
 16.6.1: 84
 16.6.2: 105, 297
 16.7.3: 104
- 2.3479: 138
 3.1559: 138
 6.1672a-b: 59
 6.1672b: 59
 6.1709 (= 6.31907):
 37
 6.1714: 169
 6.1777: 55
 6.1782: 297
 6.1783: 297
 8.1358: 59
 8.8836: 42
 8.11025: 266
 8.12675: 98
 8.12755: 98
 8.25895: 42
 9.329: 55
 10.1690-1692: 201
 10.7643: 218
 10.8026: 17
 13.1668: 224
 13.3682: 249
 13.3689: 138
 13.6646: 181

Collectio Avellana (Avell.)

- 1.8-10, p. 50-52: 169
 8.1, p. 50, 10-11: 67
 9.1, p. 50, 22: 67
 11.4, p. 53, 5-12: 15
 13.3, p. 55, 10-13: 104
 29.1, p. 74, 21: 294

*Cyprianus (Cypr.)
ad Donat.*

- 6: 137
Fort. pr. 4: 249
laps. 30: 181

Columella (Col.)

- 1.2.4: 42
 9.8.5: 211

Damasus (Damas.)

carm. 37.7 Ferrua: 63

Corippus (Coripp.)

- Ioh.* 1.144: 258
 4.48: 258
 7.535: 258
 8.434: 258

Digesta (Dig.)

- 1.12.1.4: 50
 5.3.25.17: 108
 9.4.13: 108
 26.12.1.5: 89
 47.2.54 *prol.*: 27
 47.14.3.3: 53, 156
 48.2.21: 114
 48.4.7.2: 99
 48.5.6.1: 62
 48.5.30 (29).9: 100
 48.5.35 (34): 62
 48.6.3.4: 100

Corpus Glossariorum Latinorum (Gloss.)

- II 426, 26: 119
 II 570, 30: 119

Corpus Inscriptionum Latinarum (CIL)

- 2.2968: 138

- 48.11.1–9: 44
 48.12.1: 98
 48.13.1: 44
 48.18.17 pr.: 110
 48.18.17.1: 110
 48.18.18.5–8: 99
 48.18.18.6: 109
 48.18.18.18: 109
 49.1.10.1: 51
 49.1.21.1: 51
 49.42.1: 98
 50.2.14: 28
- Donatus (Don.)
Ter. Ad. 7: 12
- Ennius (Enn.)
Ann. 277: 155
- Epitome de Caesaribus (epit.)*
 21.3: 112
 45.10: 300
- Eutropius (Eutr.)
 10.11: 4
 10.16.3: 170
- Festus (Fest.)
 p. 43M: 202
 p. 73M: 228
 p. 352M: 115
 p. 356M: 115
- Firmicus Maternus (Firm.)
math. 3.9.6: 39
 4.14.9: 39
 4.15.4: 39
- Florus (Flor.)
Epit. 1.38.20: 190
 2.18.6: 201
 4.12.2: 209
- Frontinus (Fron.)
Str. 1.5.9: 225
 2.1.12: 9
 3.7: 126
- Gaudentius (Gaudent.)
serm. pr. 5: 139
- Gellius (Gel.)
 1.15.17: 296
 1.22.2: 219
 2.23.2: 82
 2.23.21: 10
 4.1.1: 207
 4.9.10: 182
 5.16.5: 100
 5.17.3: 220
 6.16.6: 226
 9.4.8: 225
 10.18.5: 185
 12.5.2: 191
 14.4.1: 292
 15.27.5: 196
 16.7.1: 212
 16.7.12: 19
 16.10.1: 207
 17.8.17: 227
 17.10.7: 102
 17.19.3: 195
 20.1.39: 188
 20.6.6: 19
- Gregorius Turonensis
 (Greg. Tur.)
Franc. 2.9: 234
- Historia Augusta (HA)*
 A 24: 32
 26–28: 185
 38.1: 185
 AC 1.1: 68
 1.4: 68
 AS 4.3: 207
 23.2: 161
 26.9: 202
 37.9: 194
 44.3: 68
 C 2.8: 205
 4.9: 206
 15.4: 195
 Cc 5.6: 217
 DI 9.1: 205

- Gd* 2.2: 68
 9.4: 68
 17.2: 68
 21.3: 195
H 25.9: 18
Hel. 11.6: 195
Max. 13.3: 119
 28.7: 186
PN 10.1: 290
Pr. 2.6: 194
Q 1.2: 194
 6.3–4: 195
S 8.5: 41
 14.7: 159
 23.2: 41
T 27.1: 184
 27.2: 185
Tac. 10.3: 68
V. 4.6: 205
 4.8: 61
Val. 5.3: 96
- Hegesippus (Heges.)
 5.20.1: 134
- Hieronymus (Hier.)
Chron. a. 371: 23, 153
 a. 372: 152
 a. 373: 232, 236
 p. xviii Helm: 113
epist. 4.2: 208
 6.1: 72
 22.28: 32
 22.54: 179
 47.1: 71
 53.1: 32
 54.1: 68
 54.4: 68
 54.15: 213
 66.6: 68
 107.2: 81
 107.5: 55
 108.1: 68
 108.4: 68
 108.13: 70
 108.15: 109
vir. 29: 154
- vita Pauli*
 17: 181
- Hilarius (Hil.)
psalm. 14.15: 70
- Hirtius (Hirt.)
Gal. 8.14.2: 127
- Horatius (Hor.)
A.P. 94–95: 10
Carm. 1.14.14–15: 200
 1.34.12–13: 36
 1.37.9–10: 206
 3.24.58: 259
 3.29.43–45: 221
Ep. 1.17.55: 97
 1.20.11: 195
Epod. 7.16: 144
S. 1.3.9–11: 31
 1.4.6: 179
 2.2.10–11: 200
 2.2.33–34: 192
 2.5.53: 92
- Inscriptiones Christianae Urbis
 Romae (ICUR)*
 6.16987: 21
- Inscriptiones Latinae Selectae (ILS)*
 212: 224
 472–473: 268
 762: 132
 768: 41
 773: 132
 774: 128, 132
 775: 124, 128, 132
 780: 148
 1214: 14
 1253: 14
 1254: 14
 1256: 40, 41
 1257: 14
 1259: 55
 1265: 71
 1267: 71
 1270: 38

- 1271: 169
 1272: 180
 2478: 128
 2479: 128
 2646: 138
 2947: 297, 298
 2948: 297
 2948: 298
 3805: 118
 4152: 16
 5358: 132
 5535: 92
 5554: 132
 5557a: 55
 5717: 37
 5795: 138
 5910: 42
 6072: 60
 7085: 118
 8504: 138
 8505: 138
 8506: 138
 8507: 138
 8937: 123, 128
 8949: 122
- Inscriptions of Roman Tripolitania (IRT)*
 57–58: 268
 475: 297
 480: 258
 526: 297
 562: 261
 563: 261
 565: 261
- Iordanes (Iord.)
Rom. 308: 153
 309: 243
- Iustinus (Iust.)
 13.6.18: 148
- Iuvenalis (Juv.)
 1.158–159: 201
 3.53–54: 283
 3.375: 194
 5.162: 226
- 6.572–574: 210
 7.105: 194
 8.30–32: 179
- Lactantius (Lact.)
Inst. 2.4.25: 249
 5.9.19: 170
 5.17.2: 111
mort. pers.
 40.4–5: 39
- Laterculus Veronensis*
 p. 249 Seeck: 158
- Livius (Liv.)
 1.7.5: 276
 1.24.3: 133
 1.46.2: 154
 3.16.3: 7
 3.36.2: 295
 3.56.13: 51
 4.3.13: 188
 4.11.2: 168
 4.21.4: 286
 5.34.7: 256
 8.3.2: 295
 8.32.15: 70
 9.27.10: 127
 22.5.1: 144
 22.25.18: 35
 22.31.4: 238
 22.59.15: 109
 23.42.10: 182
 24.7.1: 67
 24.35.9: 245
 24.45.8: 95
 25.6.23: 218
 26.2.15: 175
 30.30.15: 118
 32.1.12: 86
 34.7.14: 285
 37.52.7: 96
 38.20.8: 296
 43.10.6: 233
- Lucanus (Luc.)
 2.103–104: 238

- Lucanus (Luc.) (*cont.*)
 2.390: 174
 4.284: 22, 205
 6.566: 114
 6.624: 19
 8.199–201: 221
 9.701: 209
 10.114–115: 191
- Lucilius (Lucil.)
 712–713: 36
- Lucretius (Lucr.)
 2.264: 220
 4.757–759: 39
 4.990: 220
 5.256: 123
- Macrobius (Macr.)
 Comm. 1.5.7: 148
 2.16.19: 100
 2.17.8: 81
 Sat. 1.5.13: 55
 1.6.26: 96
 1.11.7–16: 197
 1.16.26: 221
 1.17.15: 202
 1.17.25: 202
 1.21.15: 176
- Manilius (Man.)
 4.873: 219
- Martialis (Mart.)
 1.17.1: 40
 2.46.3–4: 203
 3.82.10–12: 201
 9.59.1: 167
 11.59.1–3: 203
 12.3.7–8: 81
- Minucius Felix (Min. Fel.)
 37.10: 64
- Nonius (Non.)
 p. 543M: 227
- Notitia Dignitatum* (*Not. Dign.*)
 Occ. 1.30, 32: 263
 1.75–77: 158
 1.77: 159
 1.118–121: 158
 2.41: 41
 3.11: 159
 3.32–37: 158
 4: 17
 20.3–7: 256
 20.13: 256
 23.3–7: 158
 28.3–11: 151
 28.13–21: 151
 31: 256, 263
 40.5–16: 151
 40.20–31: 151
 41.2–13: 121
 Or. 32.37: 236
- Novum Testamentum* (*NT*)
 Acta 18.2: 224
 Apoc. 1.5: 71
 Luc. 10.30–31: 137
- Oracula Sibyllina* (*Or. Sibyl.*)
 8.239 (August. *C.D.* 18.23): 109
- Orosius (Oros.)
 hist. 6.17.1: 93
 7.3.6: 223
 7.32.10: 141, 232, 237
 7.32.11: 243
 7.32.12–13: 244
 7.32.12: 243
- Ovidius (Ov.)
 Ars 1.679: 100
 2.369–370: 198
 Met. 2.787: 92
 3.582: 236
 4.233: 100
 6.164: 66
 7.278: 36
 7.411–412: 187

- 8.835: 119
 15.459–461: 75
 15.560–564: 86
Tr. 1.9a.18: 144
- Panegyrici Latini (Pan.)*
 2.8.3: 148
 4.2.6: 218
 4.35.3: 224
 4.35.5: 219
 10.5.1: 243
 11.17.3: 244
- Passio Perpetuae (Perp.)*
 3.5: 40
 20.4: 63
- Paulinus Nolanus (Paul. Nol.)
Carm. 27.323: 72
epist. 49.1: 42
- Paulus (Paul.)
sent. 2.26.14: 38
 5.16.5: 99
 5.23.17–18: 34, 65
 5.23.17: 58
 5.23.18: 58
 5.27: 44
- Paulus Diaconus (Paul. Diac.)
Hist. Rom.
 11.4.4: 237
- Petronius (Petr.)
 5: 223
 28.2: 203
 30.4: 211
 65.7: 176
 113.6: 92
- Phaedrus (Phaed.)
 3.18.4: 227
- De physiognomonia (Physiogn.)*
 74: 31
 130: 227
- Plautus (Pl.)
Bac. 87: 155
Men. 396: 249
 591: 83
Mil. 38: 193
 46: 190
 61: 190
 164: 205
 813: 73
 1054: 190
 1394: 111
Most. 594: 77
Ps. 247: 202
 840: 227
 883–884: 227
Trin. 141–142: 245
- Plinius Maior (Plin.)
Nat. 3.61: 202
 3.73: 159
 3.118: 126
 3.147: 91
 3.152: 52
 4.99: 243
 7.186: 61
 8.78: 85
 8.86: 73
 8.223: 192
 11.248: 134
 28.93: 296
 29.19: 200
 29.66: 85
 31.4–5: 202
 31.73–105: 246
 31.88: 246
 31.102: 246
 35.84: 26
 35.169: 127
 36.4: 192
 36.6: 191
 36.75: 216
- Plinius Minor (Plin.)
Ep. 1.6.1: 200
 2.3.7: 83
 3.17.3: 270
 6.4.1–2: 202
 7.25.2: 43

- Pan.* 24.4: 171
71.1: 186
- Polemio Silvius (Pol. Silv.)
chron. I p. 542: 158
- Porphyrio (Porph.)
Hor. S. 1.2.3: 196
- Propertius (Prop.)
1.6.12: 162
- Prudentius (Prud.)
perist. 9.15: 193
10.116–117: 65
10.122: 65
- Quintilianus (Quint.)
Decl. 366.5: 288
Inst. 3.10.4: 94
5.10.9: 171
6.1.27: 82
6.3.92: 208
7.3.24: 111
10.1.62: 196
10.1.129: 170
10.2.22: 215
11.1.47: 83
12.1.16: 43
12.10.70: 114
- Quodvultdeus (Quodv.)
prom. 1.36.50: 63
- Rhetorica ad Herennium*
(*Rhet. Her.*)
1.13: 10
3.2.3: 75
4.22: 11
- Roman Inscriptions of Britain (RIB)*
1.1672: 150
1.1673: 150
- Rufius Festus (Ruf. Fest.)
6: 158
- Rufinus (Rufin.)
hist. 8.12.7: 63
11.15: 139
11.33: 298
- Rutilius Namatianus (Rut. Nam.)
1.167–170: 68
1.267–276: 96
1.271–272: 68
2.44: 36
- Sallustius (Sal.)
Cat. 4.1: 200
13.3: 175
15.5: 31
20.7: 159
36.5: 177
47.3: 95
52.21: 62
55.3: 114
55.4: 39
59.4: 276
Jug. 2.4: 7
5.4: 142
13.6: 272
15.3: 198
20.1: 272
32.4: 177
34.2: 249
89.7: 174
- Salvianus (Salv.)
gub. 6.68: 42
- Scholia in Iuvenalem* (Schol. Iuv.)
3.175: 225
- Seneca Maior (Sen.)
Con. 2.1.12: 191
8 exc. 3: 96
- Seneca Minor (Sen.)
Ag. 81–82: 5
Ben. 1.11.1: 100
5.19.6: 212
5.23.1: 248
brev. vit. 7.10: 220

- Clem.* 1.11.4: 75
Cons. Pol. 17.4: 205
De ira 3.19.2: 107
 3.25.1: 250
Ep. 31.4: 80
 41.3: 191
 47.13: 186
 47.19: 197
 54.2: 35
 74.30: 283
 77.1: 201
 88.29: 218
 95.42: 192
 107.2: 83
 115.9: 191
 118.3: 186
Helv. 12.4: 174
Med. 259–260: 228
Nat. 4a.2.19: 233
Phaed. 1209–1210: 198
Phoen. 47–48: 218
 663: 66
Thy. 160: 187
tranq. 1.5: 203
- Servius (Serv.)
A 3.93: 209
- Sidonius Apollinaris (Sidon.)
carm. 9.302–304: 173
epist. 1.7.4: 95, 136
 1.7.9: 52
 1.9.4: 96
 4.14.1: 68
 5.5.1: 136
 5.17.4: 136
 8.3: 32
 8.8.1: 136
 9.14.7: 194
- Silius (Sil.)
 5.182: 142
 6.233–234: 209
 7.92: 163
 14.179–180: 182
 17.300–301: 278
- Solinus (Sol.)
 27.50–53: 85
 32.6: 135
- Statius (Stat.)
Silv. 4.91: 66
Theb. 3.338: 281
 4.5–6: 5
 4.56–57: 145
 6.590: 134
 7.193: 134
 12.687: 22
- Suetonius (Suet.)
Aug. 16: 201
 42.3: 223
 47: 67
 56.1: 285
 70.2: 205
 71.3: 205
 92: 86
Cal. 19.3: 46
 41.2: 205
Cl. 13: 134
 25.4: 224
 33.1: 226
 33.2: 205
Dom. 1.3: 99
 10.3: 224
 10.4: 225
 12.3: 289
fr. 104 (p. 134Re): 57
 157 (p. 244Re): 115
 161 (p. 250–251Re): 227
Gal. 3.3: 40
 15.2: 112
Jul. 13.1: 214
 52.2: 31
 56.6: 72
Nero 8: 182
 16.2: 175
 25.1: 223
 30.3: 205
Tib. 14.4: 280
 34.2: 175
 36.1: 224
 45: 225

<i>Tib. (cont.)</i>	<i>Ann.</i>	1.16.1: 116
68.3: 31	1.34.4: 116	
73.2: 203	1.35.1: 128	
<i>Tit.</i>	2.2.2: 256	
9.1: 93	2.30.3: 99	
<i>Vit.</i>	2.32.3: 224	
1.1: 62	2.42.3: 291	
4.1: 205	2.44.2: 236	
Sulpicius Severus (Sulp. Sev.)	2.56.2: 300	
<i>chron.</i>	2.85.5: 223, 224	
2.18.7: 238	3.17.4: 44	
2.50: 60	3.21.4: 191	
Symmachus (Symm.)	3.38.1: 28	
<i>Ep.</i>	3.52.1: 175	
1.2.4: 68	3.70.1: 98	
1.16: 297	4.10.2: 45	
2.1–91: 298	4.14.3: 224	
2.22.1: 137	4.20.1: 44	
3.3.1: 71	4.21.3: 35, 62	
4.18: 55	4.28.1: 109	
4.29: 55	4.48.2: 108	
4.30: 55	4.58.1: 156	
4.35: 55	6.3.3: 95	
5.22: 248	6.4.2: 283	
5.68.2: 200	6.5.2: 58	
7.9: 97	6.18.1: 295	
10.2.3: 113	11.20.3: 128	
<i>Or.</i>	11.24: 224	
1.14: 123	12.4.2: 172	
2.4: 121	13.3.2: 206	
2.12: 123	13.10.2: 98	
2.13: 240, 244	13.46.3: 43	
2.18: 125, 132	13.53.2: 128	
2.19: 133	13.57.1: 246	
2.24: 125	14.15.5: 223	
2.28: 120	16.4.4: 223	
2.31: 129	16.5.1: 223	
3.9: 120	16.22.3: 195	
4.11–12: 113	<i>Dial.</i>	18.2: 170
4.13: 76	<i>Ger.</i>	10.1–2: 250
4.14: 79	<i>Hist.</i>	1.1.4: 7
<i>rel.</i>	1.7.2: 171	
6.3: 189	1.10.1: 142	
23.4: 77	1.11.3: 116	
23.12: 77	1.16.1: 220	
25: 294	1.53.1: 282	
28: 172	2.21.4: 80	
Tacitus (Tac.)		
<i>Ag.</i>		
2.2: 224		
31.3: 171		

- 2.30.2: 300
 2.62.1: 175
 2.62.2: 224
 2.76.1: 118
 2.96.1: 49
 3.78.2: 92
 3.82.2: 7
 3.83.1: 61
 3.83.2: 82
 4.10: 286
 4.12.3: 142
 4.18.1: 177
 4.47: 36
 4.64.3: 171
- Terentius (Ter.)
Ad. 685: 150
Andr. 20–21: 221
Eu. 780: 190
Hau. 655: 203
 760: 81
- Tertullianus (Tert.)
anim. 33.8: 227
Apol. 46.1: 94
Mart. 6.2: 24
- Ulpianus (Ulp.)
reg. 5.2–5.5: 98
 20.1: 74
- Valerius Maximus (V. Max.)
 1.1.13: 58
 1.8.1: 189
 3.2.17: 214
 4.1.4: 96
 4.6 ext. 1: 185
 4.7 ext. 2: 62
 6.6 ext. 1: 9
 6.6.2: 134
 6.9.13: 59
 8.7 ext. 8: 196
 8.12 ext. 3: 26
 8.13 ext. 4: 220
 9.12.7: 95
- Varro (Var.)
L. 5.7.41: 132
 5.151: 115
 5.153: 220
 6.76: 18
R. 1.11.1: 42
 1.14.4: 127
- Vegetius (Veg.)
mil. 2.7.5: 205
 2.14.8: 235
 3.6.18: 238
 3.8.11: 135
 4.10.3: 119
 4.11: 246
- Velleius Paterculus
 (Vell.)
 1.14.8: 159
 2.2.3: 36
 2.11.1: 154
 2.23.1: 154
- Vergilius (Verg.)
A. 1.98: 96
 1.142: 81
 1.471: 238
 2.39: 222
 2.487–488: 278
 3.429–430: 221
 3.442: 201
 4.134: 99
 4.473: 112
 4.474: 142
 5.274: 73
 5.418: 243
 6.622: 127
 6.624: 63
 6.873–874: 126
 7.8: 85
 7.529–530: 127
 7.696–697: 181
 8.190: 191
 8.703: 5
 9.399–400: 198
 10.63: 131
 10.78: 276

- A. (cont.)*
 12.409: 238
 12.603: 296
Ecl. 10.51: 196
G. 1.512: 220
 3.514: 228
- Vetus Testamentum (VT)*
 eccles. 28.25: 245
 Num. 34.12: 70
- Vitruvius (Vitr.)
 1.4.9: 228
 1.5.1: 132
 5.12.3: 126, 127
- IX. *Passages referred to (Greek, including Joshua the Stylite)*
- Aelianus (Ael.)
 VH 13.17: 12
- Aeschylus (A.)
 Pers. 621: 19
 Pr. 242: 83
- Alciphro (Alciphro.)
 3.40.2: 183
- Appianus (App.)
 BC 4.80: 9
- Aristophanes (Ar.)
 Ra. 804: 188
- Aristoteles (Arist.)
 Ath. 1: 177
 HA 5.21, 553: 86
 Pol. 1303 b 17: 5
- Chronicon Paschale (Chron. Pasch.)*
 a. 369: 115, 116
 a. 378: 115, 116
- Dio Cassius (D.C.)
 48.50: 201
 55.26.1: 223
 57.21.3: 224
 60.6.7: 175
 60.34.4: 202
 67.13.3: 224
 72.5.3-4: 206
- Diodorus Siculus (D.S.)
 11.37.6: 8
- Diogenes Laertius (D.L.)
 1.109-116:
 177
 9.46-47: 228
- Diogenianus (Diogenian.)
 8.45: 59
- Ephorus
 FGrH 70 F 134: 202
- Eusebius (Eus.)
 Hierocl. 19.1: 32
- Flavius Josephus (J.)
 AJ 18.65-80: 223
 BJ 4.79: 9
 7.389-398: 9
- Herodianus (Hdn.)
 1.15.6: 24
 8.1.4: 91
- Herodotus (Hdt.)
 5.92: 19
 6.18: 9
 6.21: 12
 9.64.2: 8
- Hippocrates (Hp.)
 Ep. 17: 228
- Homerus (Hom.)
 Il. 5.83: 107
 9.1: 107
 13.1: 107

- 13.6: 107
 17.645–647: 108
Od. 11.14–19: 202
 17.218: 103
 19.109–114: 251
- Inscriptiones Graecae (IG)*
 12.9.907: 173
- Johannes Antiochenus (Joh. Ant.)
fr. 186.2 Müller = 279
 Roberto: 148
- Johannes Chrysostomus (Chrys.)
Hom. In Mat.
 28 (29).4 (PG 57, 356): 24
stat. 3.6 (PG 49.56): 39
- Johannes Lydus (Lyd.)
Mag. 3.10.3: 52
- Joshua the Stylite (Josh. Styl.)
 29 (Syrian): 78
- Julianus (Jul. Caes.)
Ep. 89 b, 304 c: 222
- Libanius (Lib.)
Decl. 28.1.18: 199
Ep. 208.3: 173
 208: 173
 232: 49
 315.2: 173
 1190.4: 21
Or. 5.14: 24
 22.21: 107
 48.36: 145
 56.2: 225
- Lucianus (Lucian.)
DMort. 18.1: 213
Nigr. 13: 183
 21: 186
 23: 192
 29: 88
 34: 183
Peregr. 34: 181
- Macarius (Macar.)
 8.42: 59
- Malalas
Chron. 13.339–340: 39
 13.341: 115, 116
- Papyri Graecae Magicae (PGM)*
 XXXVI 36–37: 47
- Papyri Lipsianae (P. Lips.)*
 20.1: 131
 21.1: 131
 28.1: 131
- Papyri Rainer (P. Rainer)*
Cent. 86.1: 131
- Palladius (Pallad.)
hist. mon.
 I 24 p. 306D: 211
- Philostorgius (Philost.)
HE 8.1: 300
 11.8: 258
- Philostratus (Philostr.)
VA 3.15.1: 31, 32
- Plato (Pl.)
Euthd. 272 c: 196
Lg. 642 d: 8
 909 b: 19
Phd. 60d–61 b: 196
 117 b: 187
- Plutarchus (Plut.)
Brut. 31: 9
Cat. Ma. 17.7: 185
Cat. Mi. 42.1–4: 206
Dio 55: 85
Mor. 139 e: 185
Rom. 20.5: 85
- Procopius (Procop.)
Arc. 27.29: 52
Goth. 4.12.14–16: 9

- Ptolemaeus (Ptol.)
2.11.8: 243
- Sophocles (S.)
fr. 12 Radt: 292
- Socrates (Socr.)
HE 4.31.10–17: 115
- Solon *fr.* 17: 197
- Sozomenus (Soz.)
HE 7.22.5–6: 298
- Stobaeus (Stob.)
3.29.58: 197
- Strabo (Str.)
5.4.5 (244C): 201, 202
5.4.7 (246C): 202
7.5.11 (317C–318C): 246
14.2.16 (656C): 185
- Suda* F 762: 10
- Sylloge Inscriptionum Graecarum*
(*SIG*³)
905: 173
- Synesius (Synes.)
catast. 2: 258, 264
ep. 57: 258
78: 258
- Themistius (Them.)
Or. 8. 117 a: 140
- Theodoretus (Thdt.)
h. rel. 10.9: 140
- Thucydides (Thuc.)
1.41.2: 8
1.97.1: 8
- Tragica Adespota* (*Trag. adesp.*)
421: 292
- Vetus Testamentum* (VT)
Num. 17.20: 85
17.23: 85
- Zenobius 1.77: 81
- Zosimus (Zos.)
1.39.2: 185
1.54.2–55.1: 185
1.68: 243
4.3.5: 121
4.12.2: 152, 153
4.16.1: 130
4.17.1: 300
4.19.1: 300
4.35.3: 148
5.2.4: 65